

A
HISTORY OF ENGLAND

BY
J. FRANCK BRIGHT

PERIOD I.

MEDIAEVAL MONARCHY

A
HISTORY OF ENGLAND

BY
J. FRANCK BRIGHT

PERIOD I.

MEDIAEVAL MONARCHY

The Project Gutenberg eBook of A History of England, Period I. Mediæval Monarchy

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A History of England, Period I. Mediæval Monarchy

Author: J. Franck Bright

Release date: February 9, 2020 [eBook #61358]

Most recently updated: October 17, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/61358

Credits: Produced by Jane Robins, John Campbell and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK A HISTORY OF
ENGLAND, PERIOD I. MEDIÆVAL MONARCHY ***

TRANSCRIBER'S NOTE

Footnote anchors are denoted by [number], and the footnotes have been placed at the end of the book.

Some minor changes to the text are noted at the [end of the book](#).

A HISTORY OF ENGLAND

MEDIÆVAL MONARCHY

449–1485

A HISTORY OF ENGLAND.

By the Rev. J. FRANCK BRIGHT, M.A., Fellow of University College, and Historical Lecturer in Balliol, New, and University Colleges, Oxford; late Master of the Modern School in Marlborough College.

With numerous Maps and Plans. Crown 8vo.

This work is divided into three Periods of convenient and handy size, especially adapted for use in Schools, as well as for Students reading special portions of History for local and other Examinations.

Period I.—MEDIÆVAL MONARCHY: The Departure of the Romans, to Richard III. From A.D. 449 to A.D. 1485. 4s. 6d.

Period II.—PERSONAL MONARCHY: Henry VII. to James II. From A.D. 1485 to A.D. 1688. 5s.

Period III.—CONSTITUTIONAL MONARCHY: William and Mary to the Present Time. From A.D. 1689 to A.D. 1837. 7s. 6d.

[All rights reserved.]

A
HISTORY OF ENGLAND

BY THE REV.

J. FRANCK BRIGHT, M.A.

FELLOW OF UNIVERSITY COLLEGE, AND HISTORICAL LECTURER IN BALLIOL, NEW, AND UNIVERSITY
COLLEGES, OXFORD; LATE MASTER OF THE MODERN SCHOOL IN MARLBOROUGH COLLEGE

PERIOD I.

MEDIÆVAL MONARCHY

From the Departure of the Romans to Richard III.
449–1485

With Maps and Plans

RIVINGTONS
WATERLOO PLACE, LONDON
Oxford, and Cambridge
MDCCCLXXVII

[*Second Edition, Revised*]

P R E F A C E .

THE object of this book is expressed in the title. It is intended to be a useful book for school teaching, and advances no higher pretensions. Some years ago, at a meeting of Public School Masters, the want of such a book was spoken of, and at the suggestion of his friends, the Author determined to attempt to supply this want. The objections raised to the school histories ordinarily used were—first, the absence of historical perspective, produced by the unconnected manner in which the facts were narrated, and the inadequate mention of the foreign relations of the country; secondly, the omission of many important points of constitutional history; thirdly, the limitation of the history to the political relations of the nation, to the exclusion of its social growth. It was at first intended to approach the history almost entirely on the social and constitutional side; but a very short trial proved that this method required a too constant employment of allusions, and presupposed too much knowledge in the reader, to be suitable for a book intended primarily for schools. It was therefore resolved to limit the description of the growth of society to a few comprehensive chapters and passages, and to follow the general course of history in such a way as to bring out as clearly as possible the connection of the events, and their relative importance in the general national growth. This decision, though taken against his inclinations, the Author can no longer regret, as the social side of our history has been so adequately treated by Mr. Green in his *History of the English People*, of the approaching publication of which he was at the time quite ignorant. On the same grounds of practical utility, it has been thought better to retain the old and well-known divisions into reigns, rather than to disturb the knowledge boys have already gained by the introduction of a new though more scientific division.

The Author has not scrupled to avail himself of the works of modern authors, though, in most cases, he has verified their views by reference to original authorities. In the earlier period the works of Professor STUBBS, Mr. FREEMAN, and Dr. PAULI; in the Tudor and Stuart period those of FROUDE, RANKE, and MACAULAY; in the later period the histories of Miss MARTINEAU

and Lord STANHOPE have been of the greatest assistance. Greater stress has been laid upon the later than the earlier periods, as is indeed obvious from the divisions of the work. With regard to the starting-point chosen, it may be well to explain that the English invasion was fixed upon, because it so thoroughly obliterated all remnants of the Roman rule, that they have exerted little or no influence upon the development of the nation—the real point of interest in a national history. It is hoped that the genealogies of the great families will assist in the comprehension of mediæval times in the history of which they played so large a part, and that the maps supplied will suffice to enable the reader to follow pretty accurately, without reference to another atlas, the military and political events mentioned. A brief and rapid summary for the use of beginners was originally projected to preface the work, but the brevity required by a book of this description rendered such an addition impossible without injury to the more important part. An attempt has been made to replace it by a very full analysis, which, in the hands of a careful teacher, has been proved by experience a useful method of teaching the main facts of history.

OXFORD, 1875.

A LIST OF SOME USEFUL AUTHORITIES.

BEFORE THE CONQUEST.

GENERAL HISTORIES.

Lappenberg's *England under the Anglo-Saxon Kings*. Lingard's *History of England*. Sharon Turner's *History of the Anglo-Saxons*. Freeman and Palgrave have each published short books for the young on the period.

CONSTITUTIONAL.

All that is necessary to be known is to be found in Stubbs' *Constitutional History*. Treated more at length in Kemble's *Saxons in England*, and Sir F. Palgrave's *History of the English Commonwealth*. An excellent sketch in Freeman's *Norman Conquest*. All the ancient laws are collected in Thorpe's *Ancient Laws*; sufficient extracts to be found in Stubbs' *Illustrative Documents*. The whole history, including literature and society, is given in Green's *History of the English People* in a brief and very interesting form.

GENERAL AUTHORITIES.

Bæda's *Ecclesiastical History*, for a century and a half after the landing of Augustin. *The Anglo-Saxon Chronicle*, which becomes very important after the time of Alfred. Milman's *Latin Christianity*.

THE ENGLISH CONQUEST.

Gildas, and the earlier part of the *Anglo-Saxon Chronicle*.

ESTABLISHMENT OF THE CHURCH.

Kemble's *Saxons*. Stubbs' *Constitutional History*.

ALFRED.

Asser's *Life*. Dr. Pauli's *Life*.

DUNSTAN.

Stubbs' Preface to *Life of Dunstan* (Master of the Rolls' series). E. W. Robertson's *Essay on Dunstan*.

EADWARD THE CONFESSOR AND FAMILY OF GODWINE.

Lives of Eadward, edited by Luard (Rolls' series). Freeman's *Norman Conquest*, vol. ii.

NORMANDY.

Palgrave's *History of Normandy and England*. Freeman's *Norman Conquest*. William de Jumièges. Orderic Vitalis. William of Poitiers.

NORMAN AND PLANTAGENET KINGS.

GENERAL HISTORIES.

Lingard. Lappenberg. Pearson's *Early and Middle Ages of England*. Hook's *Lives of the Archbishops of Canterbury*. Campbell's *Lives of the Chancellors*. Foss's *Judges of England*.

CONSTITUTIONAL.

Stubbs' *Constitutional History and Illustrative Documents*.

GENERAL AUTHORITIES.

Orderic Vitalis. *Anglo-Saxon Chronicle*.

WILLIAM I.

Eadmer's *Historia Novorum*. Domesday-Book with Ellis' Introduction.

WILLIAM II.

Palgrave's *William Rufus*. Eadmer's *Life of Anselm*. Church's *Life of Anselm*.

HENRY I.

William of Malmesbury. Henry of Huntingdon (Surtees Society).

STEPHEN.

Gesta Stephani (Surtees Society).

HENRY II. and BECKET.

Dr. Giles' *Collection of the Letters of Becket, Foliot, and John of Salisbury*. Gervais of Canterbury till 1200 (Twisden's *Decem Scriptores*). Benedict of Peterborough, 1169-1192, and Roger of Hoveden to 1201, with Stubbs' Prefaces in the Rolls' series. William of Newbury, to 1198 (English Historical Society). Lord Lyttleton's *Life of Henry II*.

IRELAND.

Geraldus Cambrensis' *Conquest of Ireland* (Rolls' series, translated in Bohn).

RICHARD I.

Itinerarium Regis Ricardi (Rolls' series). Richard of Devizes (English Historical Society). Ralph of Diceto, 1200 (Twisden). Several chronicles are translated in Bohn as *Chronicles of the Crusades*.

JOHN AND THE GREAT CHARTER.

Roger of Wendover, who was continued by Matthew of Paris, and William Rishanger (Rolls' series). Chronicles of various abbeys, such as Waverley and Dunstable. For the English reader, Stubbs' *Illustrative Documents*.

HENRY III.

Matthew of Paris. Rishanger. *The Royal Letters* (edited by Shirley in the Rolls' series). *The Rhyming Chronicle* of Robert of Gloucester to 1270. Blaauw's *Barons' War*. Wright's *Political Songs* (Camden Society). Brewer's *Monumenta Franciscana* (Rolls' series).

LATER PLANTAGENETS.

GENERAL HISTORIES.

Sharon Turner's *Middle Ages*. Lingard. Dr. Pauli's *Geschichte von England*. Hook's *Archbishops*. Campbell's *Chancellors*.

CONSTITUTIONAL.

Stubbs. Hallam.

GENERAL AUTHORITIES.

Rymer's *Fædera*. Public Documents published chiefly by the Record Commission. Various Rolls, especially *Rolls of Parliament*, *Statutes of the Realm*, *Proceedings and Ordinances of the Privy Council*. Walter of Hemingburgh, to 1346. Thomas of Walsingham, a compilation from the Annals of St. Albans Abbey (Rolls' series).

FOR SCOTCH HISTORY.

Hill Burton's *History of Scotland*.

FOR FRENCH HISTORY.

Martin or Sismondi's *History*.

EDWARD I.

Trivet (English Historical Society). Rishanger. Palgrave's *Documents and Records illustrating History of Scotland*. Freeman's *Essay on Edward I*. Modus tenendi Parliamentum (Stubbs' *Documents*). *Rotuli Scotiæ* (Record Commission).

TOWNS.

Ordinances of the English Guilds (Early English Text Society), with Brentano's Preface.

EDWARD II.

Trokelow, to 1323 (Rolls' series). Anonymous Monk of Malmesbury, to 1327. Thomas de la Moor (Camden Society). Adam of Murimuth (English Historical Society).

EDWARD III.

Froissart. John le Bel. Robert of Avesbury, to 1356 (Hearne). Knyghton (Twisden's *Decem Scriptores*). Longman's *History of Edward III*.

WICLIFFE.

Shirley's Preface to *Fasciculi Zizaniorum*. Vaughan's *Life of Wicliffe*.

BLACK DEATH.

Seebohm's Essays in the *Fortnightly Review* for 1865.

CONDITION OF THE PEOPLE.

Rogers' *History of Prices*.

RICHARD II.

Walsingham. *Annales Ricardi Secundi et Henrici Quinti* (Rolls' series). *Chronique de la Traison et Mort de Richard* (English Historical Society). M. Wallon's *Richard II*. is said to be the best modern book on the subject. Wright's *Political Songs* (Rolls' series).

HOUSES OF LANCASTER AND YORK.

GENERAL HISTORIES.

As before, with Brougham's *History of England under the House of Lancaster*.

OLD HISTORIES.

Fabyan, died 1512 (edited by Sir Henry Ellis). Hall, *Henry IV. to Henry VIII*. Polydore Vergil (Camden Society). Stowe, published 1592. Ellis' *Collection of Original Letters illustrative of English History*.

HENRY IV.

Walsingham (Rolls' series). Knyghton. *Royal Historical Letters* (Rolls' series).

HENRY V.

Walsingham. *Memorials of Henry V.* (Rolls' series). Titus Livius *Vita Henrici Quinti* (copied in part in the *Gesta*). *Gesta Henrici Quinti* (Historical Society). Monstrelet.

HENRY VI.

William of Worcester to 1491 (completed by his son). *English Chronicle* (Richard II. to 1471) (Camden Society). Continuator of Croyland, 1459-1485. John of Westhampstead (Hearne). *Paston Letters*, 1434-1485 (E. D. Gairdner). *Memoir of John Carpenter*. *Wars of the English in France* (Rolls' series). *Procès de Jeanne d'Arc* (Historical Society of France).

EDWARD IV.

Arrival of Edward IV. (Camden Society). Warkworth, 1461-1474.

EDWARD V.

Life, by Sir Thomas More.

RICHARD III.

History, by Sir Thomas More. Miss Halsted's *Life. Letters of Richard III. and Henry VII.* (Gairdner, Rolls' series).

CONTENTS.

ENGLAND BEFORE THE CONQUEST. 449-1066.

	PAGE
Departure of the Romans,	<u>1</u>
Settlement of the various English tribes,	<u>1</u>
449 The Jutes,	<u>1</u>
477 The Saxons,	<u>2</u>
520 The Angles,	<u>2</u>
597 Conversion to Christianity,	<u>3</u>
Struggle for supremacy among the Saxon kingdoms,	<u>3</u>
Supremacy of Northumbria,	<u>3</u>
716-819 Supremacy of Mercia,	<u>4</u>
800 <i>Ecgberht</i> ,	<u>5</u>
Supremacy of the West Saxons,	<u>5</u>
Period of Danish Invasion,	<u>5</u>
836 <i>Æthelwulf</i> ,	<u>6</u>
858 <i>Æthelbald</i> ,	<u>6</u>
860 <i>Æthelberht</i> ,	<u>6</u>
866 <i>Æthelred</i> ,	<u>6</u>
870 Danish Conquest of East Anglia,	<u>7</u>
871 <i>Alfred</i> ,	<u>7</u>
Appreciation of Alfred's character,	<u>8</u>
Continued superiority of Wessex,	<u>10</u>
901 <i>Eadward the Elder</i> ,	<u>10</u>
925 <i>Æthelstan</i> ,	<u>11</u>
940 <i>Eadmund</i> ,	<u>11</u>
946 <i>Eadred</i> ,	<u>11</u>
Rise of Dunstan,	<u>12</u>
955 <i>Edwy</i> ,	<u>13</u>
957 <i>Eadgar</i> ,	<u>13</u>
Dunstan's government,	<u>13</u>
Division of Northumbria,	<u>14</u>
975 <i>Eadward the Martyr</i> ,	<u>15</u>

	Fall of Dunstan,	15
979	<i>Æthelred the Unready</i> ,	15
	Third Period of Danish Invasion,	15
991	Battle of Maldon,	16
994	First Danegelt,	16
	Æthelred's Marriage with Emma,	17
1002	Massacre of St. Brice,	17
	Pernicious influence of Eadric Streona,	17
1008	Thurkill's invasion,	17
1013	Swegen's Great Invasion,	18
	England submits to Swegen,	18
1014	Restoration of Æthelred,	18
1016	<i>Edmund Ironside</i> ,	19
	Five great battles,	19
	Division of the Kingdom,	19
1017	Cnut King of all England,	19
	His patriotic government,	20
	Disputed succession,	21
	Importance of Earl Godwine,	21
1037	<i>Harold</i> ,	21
1040	<i>Harthacnut</i> ,	21
	Restoration of the English Line,	21
1042	<i>Eadward the Confessor</i> ,	21
	Rivalry of Godwine and the French Party,	22
1051	Godwine banished,	22
1052	His return and death,	23
1053	Harold succeeds to his influence,	23
	He subdues Wales,	24
1066	Harold made King,	24
	Claims of his rivals, Tostig and William of Normandy,	24
	William's preparations,	25
	Tostig's invasion,	26
	William lands,	26
	Battle of Hastings or Senlac,	26
	Death of Harold,	27

STATE OF SOCIETY AT THE CONQUEST.

THE CONQUEST.

WILLIAM I. 1066-1087.

1066	Intended resistance of the English,	40
	Election of Eadgar,	41
	William marches to London,	41
	William is crowned,	41
	His position as King,	42
	Transfer of Property,	43
	The form of Law retained,	43
	Castles built,	43
	Appointment of Earls,	43
1067	William revisits Normandy,	44
	Misgovernment by his Viceroys,	44
	Consequent rebellion,	44
	Insurrections call him home,	44
1068	His position in the North and West,	45
1096	His devastations in Yorkshire,	47
1070	Complete subjugation of the North,	47
	William's legislation,	48
	His reform of the Church,	48
	Appointment of foreign Bishops,	48
	Stigand deposed,	48
	Lanfranc Archbishop,	49
	His Legislation,	49
	He connects the Church with Rome,	49
	But William still Head of the Church,	49
1071	Final Struggle of the English under Hereward,	50
	Wales held in check by the Counts Palatine,	51
	Savage invasions from Scotland,	51
1072	Malcolm swears fealty,	52
1075	Troubles in Normandy,	52
1076	Conspiracy of Norman nobles suppressed,	52
	Waltheof executed,	53
	Quarrel between William and his Sons,	53
1079	Reconciliation at Gerberoi,	54
	Odo's oppressive government,	54
1084	Cnut's threatened invasion,	54
1085	The Domesday Book,	55
1087	William's death and burial,	55

CONQUEST OF NORMANDY AND ORGANIZATION OF ENGLAND.

WILLIAM II. 1087-1100.

1087	William crowned by Lanfranc,	56
------	------------------------------	--------------------

	Appeases the English,	56
	Checks Norman opposition,	57
1089	Lanfranc dies,	57
	Flambard succeeds him,	57
1090	William's quarrels with his Brothers,	57
1091	War with Scotland,	58
1094	Continued War with Wales,	59
	Troubles in Normandy,	59
1095	Conspiracy of Mowbray,	59
1100	Size of his Dominions at his death,	60
	Causes of his inferiority to his Father,	60
1089	Disputes with the Church,	61
	Bishoprics left vacant,	61
1093	Anselm made Archbishop,	61
	William opposes his reforms,	62

HENRY I. 1100-1135.

1100	Henry secures the crown,	63
	Conciliates all classes,	63
	His policy,	64
	His opponents,	65
1101	Robert seeks the crown,	65
	Withdraws without bloodshed,	65
	Henry attacks his partisans,	65
1102	Defeat of Belesme and Norman Barons,	66
	Establishment of royal power,	66
	Belesme received in Normandy,	66
1105	Consequent invasion of the Duchy,	66
1106	Battle of Tenchebray, defeat of Robert,	66
1107	War with France,	67
	Louis supports William Clito,	67
	End of the War,	67
1113	Treaty of Gisors,	67
	Prince William acknowledged heir,	68
1115	Renewed War with France and Anjou,	68
1119	Battle of Brenneville,	68
	Complete prosperity,	68
1120	Death of Prince William, and its consequences,	68
1124	War with Anjou,	69
1128	Death of William Clito,	69
	Attempt to secure the succession to Matilda,	69
1135	Death of Henry,	70

	Wales held in check by colonies of Flemings,	70
	Constant insurrections,	70
	Henry's Church policy,	70
1100	Anselm refuses fealty,	71
	He has to leave England,	71
1106	Unsupported by the Pope,	71
	Makes a compromise at Bec,	71
1102	Synod of Westminster,	71
	Frequent bad Church appointments,	72
	Henry corrects them when possible,	72
	Wretched condition of the People,	72
	Their chief complaints,	73
	Baronial tyranny,	73
	Heavy taxation,	73
	Henry cures what evils he can,	74
	His strict Police,	74
	Administrative machinery,	74
	Local Courts,	75
	Curia Regis,	75
	Its political effect,	76
	The National Assembly,	76

FEUDAL OUTBREAK.

STEPHEN. 1135-1154.

1135	Strange character of the Reign,	77
	Great power of the Church,	78
	Stephen's Charter,	78
	Affairs in Wales,	78
	Early signs of disturbance,	79
1137	War with Scotland,	79
	Last national effort of the English,	79
1138	Battle of the Standard,	80
	Growth of Anarchy in England,	80
	Creation of Earldoms and castles,	80
	Robert of Gloucester renounces his fealty,	81
	Stephen's mercenaries,	81
	Jealousy between the old and new Administrations,	81
	Stephen's quarrel with the Church,	82
1139	Consequent arrival of Matilda,	82
	Civil War,	82
	Continued quarrel with the Church,	82

1141	Robert of Gloucester, to bring matters to a crisis, fights the Battle of Lincoln,	83
	Matilda seeks help from the Church and becomes Queen,	83
	Importance of the Londoners,	83
	Matilda offends both Church and Londoners,	84
	Consequent revolution of affairs,	84
1142	Gloucester taken prisoner and exchanged for Stephen,	84
1146	Renewal of the old anarchy,	84
1147	Appearance of Prince Henry,	84
1148	Death of Robert of Gloucester,	85
1152	Henry's marriage and increased power,	85
	The Church sides with him,	85
1153	Meeting of the armies at Wallingford,	85
	The Church mediates a Compromise,	86
1154	Death of Stephen,	86
	Quotations from Chroniclers showing the miseries of the Reign,	86

RECONSTITUTION OF THE MONARCHY—FORMATION OF THE NATION.

HENRY II. 1154-1189.

1154	Main Objects of Henry's Reign,	89
	He restores order in the State,	90
	Friendship with Adrian IV.,	90
1157	Master of England, Henry attacks Wales,	91
	Rise of Thomas à Becket,	92
1158	He is employed in foreign negotiations,	92
1159	Nevertheless there is war with France,	92
	Interesting points in it,	92
	The Scotch King serves Henry,	93
	Introduction of Scutage,	93
	Having reduced the State to order, Henry turns to the Church,	93
	General friendship of England and France with the Pope,	94
1161	Election of Becket to Archbishopric,	95
	He upholds the Encroachments of the Church,	95
1164	Quarrel with Becket, and Constitutions of Clarendon,	95
	Becket refuses them,	96
	Lukewarmness of Alexander III.,	96
	The quarrel takes a legal form,	97
	Comes before the Council,	97
	Henry presses him with charges,	97
	Becket leaves the Court before judgment is given,	98
1165	He is received by the Pope,	98

	But Henry refuses to oppose Alexander,	99
1166	Meanwhile he attacks Wales, and secures Brittany,	99
	Becket excommunicates his enemies,	99
1167	The Pope temporizes,	99
	Critical position of Henry,	100
1170	Coronation of young Henry,	100
	Finding this step unpopular,	101
	Henry submits,	101
	Becket ventures to return to England,	101
	Becket's death,	101
	Henry retires to the Invasion of Ireland,	102
	Condition of Ireland,	102
1169	Invasion by Strongbow,	102
1171	Henry himself invades Ireland,	102
	Irish Church adopts Romish discipline,	102
	Henry's reconciliation with Rome,	103
1174	Great Insurrection,	103
	Crisis of the danger,	104
	Henry's penance at Canterbury,	104
	Capture of the Scotch King at Alnwick,	104
	Henry's complete success,	105
	Small diminution of Henry's power, either temporal or ecclesiastical,	105
	Henry's Judicial and Constitutional changes,	106
	The Curia Regis,	106
	Itinerant Justices,	106
	Origin of the Jury,	108
	Assize of Arms, Scutage,	109
	Closing troubles with his Sons and with France,	109
	The causes of these troubles,	109
1183	First War, against Young Henry,	110
1184	Second War, against Richard,	111
1187	Third War,	111
1188	Saladin Tax,	111
1189	Last War, with Richard and Philip,	112
	Henry's ill success,	112
	Disastrous Peace and Death,	112
	Importance of the Reign,	113

RICHARD I. 1189-1199.

1189	Persecution of the Jews,	115
	All Offices put up for sale,	116
1190	Richard starts for the Crusade,	110

	Leaving England to Longchamp,	116
	Richard quarrels with Philip in Sicily,	117
1191	He conquers Cyprus,	118
	Miserable condition of the Kingdom of Jerusalem,	119
1187	Jerusalem taken by Saladin,	119
1189	Acre besieged,	119
1191	Arrival of the Crusaders,	119
	Richard saves Acre,	120
	Philip goes home,	120
	Richard quarrels with Austria,	120
1192	Truce with Saladin,	121
1191	John's Behaviour in England,	121
	Return of Philip,	122
	Need of Richard's return,	122
1192	His imprisonment in Germany,	122
	John and Philip combine against him,	122
	England ransoms him,	123
1194	Richard's return, John's defeat,	123
	War with France,	123
1199	Richard's death at Chaluz,	124
	Development of the Administrative System,	124

STRUGGLE BETWEEN THE CROWN AND THE NATION.

JOHN. 1199-1216.

1199	John secures the crown,	126
	His strong position,	127
1200	His danger from France,	127
	Peace with Philip, and marriage treaty,	127
	Marriage with Isabella de la Marche,	128
1201	Homage of Scotland,	128
	Outbreak in Poitou,	128
1202	John's French Provinces forfeited,	128
1203	Death of Arthur,	129
1205	Loss of Normandy,	129
1206	Peace with Philip,	129
1205	Election of the Archbishop of Canterbury,	130
	Stephen Langton,	131
1207	Consecration at Viterbo, and John's violence,	131
1208	Interdict and flight of Bishops,	131
1209	Excommunication,	131
1210	Attack on Scotland, Ireland and Wales,	132

	Disaffection of the Northern Barons,	<u>133</u>
	The King's rapacity,	<u>133</u>
1211	European crisis,	<u>133</u>
	League with Northern Princes,	<u>133</u>
1213	John's deposition,	<u>133</u>
	Surrender of the Crown to the Pope,	<u>134</u>
	John's improved position,	<u>134</u>
1214	Renewed difficulties with Stephen Langton,	<u>135</u>
1215	John hopes to secure his position by victory in France,	<u>135</u>
1214	Battle of Bouvines,	<u>136</u>
1215	Insurrection in England on his return,	<u>136</u>
	Meeting at Brackley,	<u>136</u>
	Capture of London,	<u>137</u>
	Runnymede,	<u>137</u>
	Political position of England,	<u>137</u>
	Terms of Magna Charta,	<u>138</u>
	John attempts to break loose from it,	<u>139</u>
1216	Louis is summoned,	<u>139</u>
	John's death,	<u>140</u>

HENRY III. 1216-1272.

1216	Henry's authority gradually established,	<u>141</u>
	Difficulties at his accession,	<u>142</u>
	Pembroke's measures of conciliation,	<u>142</u>
1217	Fair of Lincoln,	<u>112</u>
	Louis leaves England,	<u>142</u>
	Renewal of the Charter,	<u>142</u>
1218	Papal attempt to govern by Legates,	<u>143</u>
	Pandulf's government,	<u>143</u>
1221	His fall,	<u>143</u>
	Triumph of national party under Hubert de Burgh,	<u>143</u>
	Parties in England,	<u>144</u>
1223	Opposition Barons at Leicester,	<u>144</u>
	Resumption of royal castles,	<u>145</u>
1224	Destruction of Faukes de Breauté,	<u>145</u>
	Danger from France,	<u>145</u>
1223	Death of Philip,	<u>145</u>
1226	Death of Louis VIII.,	<u>145</u>
	English neglect this opportunity,	<u>146</u>
	Poitou remains French,	<u>146</u>
1227	Hubert's continued power,	<u>146</u>
	Langton supports his policy,	<u>146</u>

	Change of Popes—increased exactions,	147
1228	Death of Langton,	147
	Quarrel of Henry and De Burgh,	147
1229	Henry's false foreign policy,	147
1231	Return of Des Roches,	148
1232	Twenge's riots,	148
	Fall of De Burgh,	148
1233	Revolution under Des Roches,	149
	Earl of Pembroke upholds De Burgh,	149
1234	Edmund of Canterbury causes Des Roches' fall,	150
1235	Henry becomes his own minister,	151
1236	Henry's marriage,	151
1237	Influence of the Queen's uncles,	151
1238	Formation of a national party under Simon de Montfort,	152
	Revival in the Church,	152
	Grostête,	153
1243	Loss of Poitou,	153
	Prince Richard joins the foreign party,	154
1244	Exactions in Church and State,	154
1247	Inroad of Poitevin favourites,	155
1248	Discontent of the Barons,	155
	Continued misgovernment,	155
1249	Tallages on the cities,	155
1250	Diversion of the Crusade,	156
	De Montfort's government of Gascony,	156
	His quarrel with the King,	156
1253	By his aid Gascony is saved,	156
	The King's money difficulties,	157
1254	The Pope offers Edmund the Kingdom of Sicily,	157
	Henry accepts it on ruinous terms,	157
1256	Consequent exactions,	158
1257	Terrible famine,	158
	Parliament at length roused to resistance,	158
	Parliament at Westminster,	158
1258	The "Mad Parliament,"	159
	Provisions of Oxford,	159
	Opposition to the surrender of Castles,	160
	Exile of aliens,	160
	Proclamation of the Provisions,	160
	Government of the Barons,	160
1259	Final treaty with France,	161
	Henry thinks of breaking the Provisions,	161
1261	The Pope's absolution arrives,	161

	Quarrel between De Clare and De Montfort,	161
1262	Return of De Montfort,	162
1263	Outbreak of hostilities,	162
1264	The Award of Amiens fails,	163
	War—Battle of Lewes,	163
	The Mise of Lewes,	163
	Appointment of revolutionary government,	163
	The exiles assemble at Damme,	164
	De Montfort desires final settlement,	164
	Royalist movements on the Welsh Marches,	164
1265	Parliament assembles,	165
	Conditions of Prince Edward's liberation,	165
	De Clare forsakes the Barons,	166
	He joins the Marchers,	166
	Escape of Edward,	166
	Leicester opposes Edward in Wales,	166
	Defeat at Kenilworth,	166
	Battle of Evesham,	167
1266	Dictum of Kenilworth,	168
1267	De Clare compels more moderate government,	168
	Constitutional end of the reign,	168
	Views of the people on the war,	168

SETTLEMENT OF THE CONSTITUTION.

EDWARD I. 1272-1307.

1272	Edward's accession and character,	171
	The first English King,	172
	His political views,	173
	His legal mind,	173
	His success,	173
	His enforced concessions,	174
1275	His first Parliament,	174
	Statute of Westminster,	174
	Establishment of Customs,	174
1278	Edward's restorative measures,	174
	New coinage,	175
1279	Statute of Mortmain,	175
	Affairs in Wales,	175
1275	Llewellyn's suspicious conduct,	175
1277	War breaks out,	176
	Llewellyn submits, and is mercifully treated,	176

1282	Second rising in Wales,	176
	Death of Llewellyn,	176
1288	Execution of David,	176
1284	Statute of Wales,	177
	Annexation of Wales,	177
1282	Foreign affairs call Edward abroad,	177
1284	The Sicilian Vespers,	177
1286	Edward acts as mediator between France and Aragon,	178
1288	His award is repudiated,	178
1289	Disturbances in England during his absence,	178
	He returns, punishes corrupt judges, banishes the Jews,	179
	Second period of the reign,	179
	Relations with Scotland,	180
1290	Extinction of the Scotch royal family,	181
	Proposed marriage of the Maid and Prince Edward,	181
	Invitation to Edward to settle the Succession,	182
	Death of the Maid,	182
1291	Meeting at Norham,	182
	Edward's supremacy allowed,	182
	The claimants to the Scotch throne,	182
1292	Edward gives a just verdict,	183
	Balliol accepts the throne as a vassal,	183
1293	Scotland appeals therefore to the English Courts,	183
	The appeals not pressed to extremities,	184
	Quarrel with France,	184
	Edward is outwitted, Gascony occupied,	184
	Balliol in alliance with France,	184
1295	First True Parliament,	183
1296	Edward marches into Scotland,	185
	Defeat of the Scotch at Dunbar,	185
	Submission of Balliol and Scotland,	186
	Constitutional opposition of Clergy and Barons,	186
1296	Refusal of the Clergy to grant subsidies,	186
1297	The Clergy outlawed,	187
	The Barons refuse to assist Edward,	187
	Compromise with the Clergy,	187
	Edward secures an illegal grant,	187
	The Earls demand the confirmation of the Charters,	188
	They are granted with reservations,	188
	Scotch insurrection under Wallace,	189
1299	English Treaty with France,	189
	Edward invades Scotland,	190
	Defeats Wallace at Falkirk,	190

	Comyn's Regency,	190
1301	Parliament of Lincoln,	190
	The Pope's claims rejected,	191
1303	Third invasion and conquest of Scotland,	191
1306	Bruce murders Comyn and rebels,	192
	Preparations for a fourth invasion,	192
1307	Edward's death near Carlisle,	192
	Constitutional importance of the reign,	193

RENEWAL OF THE STRUGGLE OF THE NATION AGAINST THE CROWN.

EDWARD II. 1307-1327.

1307	Edward's friendship for Gaveston,	198
1308	The Barons demand his dismissal,	198
1309	Gaveston's return,	199
	General discontent,	199
	Statute of Stamford,	200
1310	Appointment of the Lords Ordainers,	200
1311	Useless assault on Scotland,	200
	The Ordinances published,	201
	Policy of the Opposition,	201
	Gaveston banished,	201
1312	He reappears with the King,	202
	He is beheaded at Warwick,	202
1314	Renewal of the War with Scotland,	203
	Battle of Bannockburn,	203
	Edward refuses to treat,	204
	Consequent disasters,	204
1315	Wars in Wales and Ireland,	204
	Bruce's invasion of Ireland,	204
1316	He is crowned King,	205
1318	He is killed at Dundalk,	205
1316	Distress in England,	205
	Lancaster temporary Minister,	205
	Power of the Despensors,	205
1318	Temporary reconciliation,	206
1320	Truce with Scotland,	206
	The Welsh Marchers quarrel with the Despensors,	206
	Edward supports his favourites,	206
1321	Hereford and Lancaster combine,	206
	The Despensors are banished,	206
	An insult to the Queen rouses the King to energy,	207

	Edward recalls the Despensers,	207
1322	Pacifies the Marches,	207
	Attacks Lancaster,	207
	Battle of Boroughbridge,	207
	Lancaster worshipped as a Saint,	207
	Triumph of the Despensers,	208
	Renewal of war with Scotland,	208
1323	Peace for thirteen years with Scotland,	208
	Dangers surrounding the King,	208
1324	Difficulties with France,	209
1325	The Queen and Prince in France,	209
1326	She lands in England,	210
	Her party gathers strength,	210
	The King is taken,	210
1327	The Prince of Wales made King,	210
	Murder of Edward,	211

BEGINNING OF HUNDRED YEARS' WAR, AND CONSTITUTIONAL PROGRESS.

EDWARD III. 1327-1377.

1327	Measures of reform,	214
	Mortimer's misgovernment,	214
	Fruitless campaign against Scotland,	214
	Opposition to Mortimer,	214
1330	Conspiracy and death of Kent,	215
	Edward overthrows Mortimer,	215
	Edward's healing measures,	216
1332	Balliol invades Scotland,	216
	Edward supports him,	216
	Siege of Berwick,	217
1333	Battle of Halidon Hill,	217
1334	Temporary Submission of Scotland,	217
	Edward's claims on France,	218
	The Scotch, with Philip's help, renew the War,	218
1337	Edward therefore produces his claims,	218
	Edward attacks France,	218
1338	His alliances on the North-east,	219
	He is made Imperial Vicar,	219
	Great taxation,	219
	He lands in Flanders,	220
1339	Deserted by his allies, he returns home,	220
1340	Returns, and wins the Battle of Sluys,	220

	Fruitless expedition to Tournay,	220
	Sudden visit to England,	221
	Displacement of the Ministry,	221
1341	His dispute with Stratford,	221
	Edward yields,	221
1342	Loss of all his allies,	222
	New opening in Brittany,	222
1343	Mediation of the Pope offered,	223
	Decay of Papal influence,	223
1344	His mediation accepted conditionally, it fails,	224
	Edward's commercial difficulties,	224
1345	War breaks out again,	224
	Derby hard pressed in Guienne,	224
1346	Edward, to relieve him, lands in Normandy,	225
	Marches towards Calais,	225
	Battle of Cressy,	227
	Battle of Neville's Cross,	228
1347	Siege of Calais,	228
	Truce,	229
1349	The Black Death,	229
1355	Renewal of the War,	229
	Destructive March of the Black Prince southwards,	229
	The "Burnt Candlemas,"	231
1356	The Black Prince's expedition northwards,	231
	Battle of Poitiers,	231
	Release of King David,	232
1357	Peace with Scotland,	232
	Terrible condition of France,	232
1359	Reviving power of the Dauphin,	232
	Edward again invades France,	233
1360	Want of permanent results induce Edward to make The Peace of Brétigny,	233
	The Treaty is not carried out,	234
1364	The War in Brittany continues,	234
1365	Affairs of Castile,	234
1366	France and England support the rival claimants,	234
1367	Battle of Navarette,	235
1368	Taxation in Aquitaine,	235
	The Barons appeal to Charles,	235
1369	Renewal of French War,	235
	Gradual Defeat of the English,	236
1370	The Black Prince takes Limoges,	236
	His final return to England,	236
1374	Loss of Aquitaine,	236

1372	Naval victory of the Spaniards,	236
1375	Discontent in England,	236
	Politics of the Time,	237
1376	The Good Parliament,	239
	Death of the Black Prince,	240
	Lancaster regains power,	240
1377	The Lancastrian Parliament,	240
	Trial of Wicliffe,	240
	Uproar in London,	240
	Death of the King,	240

BEGINNING OF THE FACTION FIGHT AMONG THE NOBILITY.

RICHARD II. 1377-1399.

1377	Difficulties of the new reign,	242
	Regency and administration of Lancaster,	242
	Patriotic government,	243
1380	Money wanted for the War in Brittany,	243
	The Poll Tax,	243
1381	Insurrection of the Villeins,	244
	Death of Wat Tyler,	244
	The insurrection suppressed,	245
	Parliament rejects the Villeins' claims,	245
1383	Suspensions of Lancaster's objects,	245
	He deserts Wicliffe,	245
	He is charged with the failure in Flanders,	246
1385	Jealousy of him thwarts the Scotch invasion,	246
	He is glad of the excuse to leave England to support his claims in Castile,	246
	Gloucester takes Lancaster's place,	246
	The King's Favourites,	247
1386	Gloucester heads an opposition,	247
	Change of Ministry demanded,	247
	Impeachment of Suffolk,	247
	Commission of Government,	247
1387	The King prepares a counterblow,	248
	The Five Lords Appellant,	248
	They impeach the King's friends,	248
	Affair of Radcot,	248
1388	The Wonderful Parliament,	248
1389	Gloucester's unimportant Government,	249
	Richard assumes authority,	249
1393	Final Statute of Provisors,	250

1394	Expedition to Ireland,	250
1397	Marriage with Isabella of France,	251
	Richard's vengeance after seven years' peace,	251
1398	Hereford and Norfolk banished,	252
	His arbitrary rule alienates the people,	253
1399	During his absence in Ireland,	253
	Hereford returns and is triumphantly received,	253
	He captures Richard,	254
	Makes him resign the Kingdom,	254

STATE OF SOCIETY.

MONARCHY BY PARLIAMENTARY TITLE.

HENRY IV. 1399-1413.

1399	Henry's position in English History,	275
	Reversal of the Acts of the late King,	276
	Tumultuous scene in the First Parliament,	276
	The King's insecure position for nine years,	276
1400	Insurrection of the late Lords Appellant,	277
	Imprisonment and secret death of Richard,	277
	Hostile attitude of France and Scotland,	278
	Useless and impolitic march into Scotland,	278
1401	Insurrection Wales,	278
	Owen Glendower,	278
1402	Quarrel with the Percies,	278
	The pretended Richard,	279
	Causes of the quarrel with Northumberland,	279
1403	The Percies combine with Glendower,	279
	Battle of Shrewsbury,	280
1404	Submission of Northumberland,	280
	Widespread Conspiracy,	280
1405	Flight of the young Earl of March,	280
	Renewed activity of Northumberland, Scrope and Mowbray,	281
	Events which secured Henry's triumph,	281
	Capture of James of Scotland,	281
1407	Murder of Orleans,	282
1408	Final defeat and death of Northumberland,	282
	Henry's improved position,	282
	His enforced respect for the Commons,	282
	Climax of their power,	283

	Explained by the King's failing health,	283
1412	Renewed vigour at the end of his reign,	283
	Henry's foreign policy,	283
	His alliance with the Church,	284
	His persecuting Statute,	285
	Views of the nation with regard to the Church,	285
	Henry's jealousy of the Prince of Wales,	285

RENEWAL OF THE HUNDRED YEARS' WAR.

HENRY V. 1413-1422.

1413	Fortunate opening of his reign,	287
	General amnesty and release of prisoners,	288
1414	Signs of slumbering discontent,	288
	The Lollards,	288
	Henry's reason for the impolitic French War,	289
	State of France,	290
	Expulsion of the Burgundians from Paris,	290
	Attempt at national government,	290
	Henry's double diplomacy and outrageous claims,	291
	His preparations,	291
1415	He lands in France,	292
	Conspiracy of Cambridge,	292
	Capture of Harfleur,	292
	Henry compelled to retire upon Calais,	293
	Battle of Agincourt,	295
	The French Government falls into the hands of the Armagnacs,	296
1416	Visit of Sigismund,	297
	His position in Europe,	297
	His close union with Henry,	297
	Failure of his mediation,	298
1417	Armagnac attacks Queen Isabella,	298
	She allies herself with Burgundy,	298
	Henry's second Invasion,	298
1418	The Parisians, anxious for peace, admit the Burgundians,	298
1419	Fall of Rouen,	299
	Negotiations for peace,	300
	Attempted reconciliation of the French parties,	300
	Murder of Burgundy,	300
	Young Burgundy joins England,	300
1420	Treaty of Troyes,	300
1421	English defeat at Beaugé,	301

Henry hurries to Paris,	301
1422 While re-establishing his affairs he dies,	301
Death of Charles VI.,	302

LOSS OF FRANCE AND DESTRUCTION OF THE BARONAGE.

HENRY VI. 1422-1461.

1422	Arrangements of the Kingdom,	303
	Position of affairs in France,	304
1423	Bedford's marriage,	304
	Release of the Scotch King,	304
1424	Battle of Verneuil,	305
	Consequent strength of the English position in France,	305
	It is disturbed by the consequences of Gloucester's marriage,	305
	The first blow to the Burgundian alliance,	305
1425	Rivalry of Beaufort and Gloucester,	306
1426	Gloucester's marriage with Eleanor Cobham,	307
	Bedford again secures Burgundy,	307
1428	And attacks Orleans,	307
1429	Battle of the Herrings,	308
	Danger of Orleans,	308
	Joan of Arc,	308
	Causes of her success,	310
	The siege is raised,	310
	March to Rheims to crown the Dauphin,	310
	Unsuccessful attack on Paris,	311
1430	Capture of Joan of Arc,	311
	Coronation of King Henry,	311
1431	Joan's death,	311
1432	Increasing difficulties of the English,	312
	State of England,	312
	Conduct of Gloucester,	312
	Death of the Duchess of Bedford,	312
	Bedford re-marries. Second blow to the Burgundian alliance,	312
1433	Efforts at peace, and	313
1434	Rise of a War party under Gloucester,	313
1435	Great Peace Congress at Arras,	314
	Bedford's death,	314
	Consequent defection of Burgundy,	314
1436	Obstinacy of the War party,	314
	Continued ill success,	315
	Danger from Scotland,	315
1437	James's death,	315
1440	Peace party procures the liberation of Orleans,	316
1442	Peace becomes necessary,	316
	Rise of Suffolk,	316

1445	Marriage of Henry with Margaret of Anjou,	316
1446	Pre-eminence of Suffolk,	317
1447	Gloucester's death,	317
	York takes his place,	317
1448	Ministry of Suffolk,	318
	His unpopularity,	318
	Renewal of the War,	318
1449	Fall of Rouen,	319
	Popular outbreak against Suffolk,	319
1450	Murder of Suffolk,	319
	Continued discontent,	320
	Jack Cade,	320
1452	York's appearance in arms; Civil War begins,	320
	He is duped into submission,	321
1453	Imbecility of the King,	321
1454	Prince of Wales born,	321
	York's First Protectorate,	322
	Recovery of the King,	322
1455	York again appears in arms,	322
	First Battle of St. Albans,	322
	Character of the two parties,	323
1456	York's Second Protectorate,	324
1457	With the Nevilles he retires from Court,	324
1458	Hollow reconciliation of parties,	325
1459	Renewed hostilities,	325
	Battle of Blore Heath,	325
	Flight of the Yorkists from Ludlow,	325
	Lancastrian Parliament at Coventry,	325
1460	Fresh attack of the Yorkists,	325
	Battle of Northampton,	326
	Yorkist Parliament in London,	326
	York at last advances claims to the throne,	326
	The Lords agree on a compromise,	326
	York is defeated and killed at Wakefield,	326
1461	The young Duke of York wins the Battle of Mortimer's Cross,	327
	The Queen, advancing to London, wins second Battle of St. Albans,	327
	Sudden rising of the Home Counties,	327
	Triumphant entry of Edward,	327

HEREDITARY ROYALTY WITHOUT CONSTITUTIONAL CHECKS.

EDWARD IV. 1461-1483.

1461	Edward secures the crown,	328
	Battle of Towton,	328
	Yorkist Parliament,	328
1462	With French help Margaret keeps up the War,	328
1464	Battle of Hedgeley Moor,	328
	Battle of Hexham,	328
1465	Edward's triumph and popular Government,	329
	Apparent security of his Throne,	330
	Destroyed by his marriage, and the rise of the Woodvilles,	330
1466	Power of the Nevilles,	331
	Their French policy,	331
	Edward's Burgundian policy,	331
1467	Defection of the Nevilles,	332
1469	Popular risings inspired by them,	332
	Clarence's weakness drives them to the Lancastrians,	333
1470	Wells' rebellion,	333
	Flight of Warwick,	333
	He returns and re-crowns Henry,	334
1471	Edward gets help from Burgundy,	334
	Clarence joins him,	335
	Battle of Barnet,	335
	Margaret lands in England,	335
	Battle of Tewkesbury,	335
	Edward's triumphant return to power,	335
	Murder of Henry,	335
	Clarence's quarrels,	336
1476	With Richard,	336
1477	With Edward,	336
1478	His trial and death,	337
1475	Edward joins Burgundy against France,	337
	Failure of his expedition,	337
	Treaty of Pecquigni,	338
	Ambitious projects of marriage for his daughters,	338
1482	Affairs in Scotland,	338
	Edward supports Albany,	339
	He gains Berwick,	339
1483	His death and character,	339

EDWARD V. 1483.

1483	State of parties at Edward IV.'s death,	340
	Richard overthrows the Queen's party,	340
	He is made Protector,	340

He quarrels with the new nobles,	340
Hastings' death, and fall of his party,	341
Richard, with Buckingham's help, secures the crown,	341

RICHARD III. 1483-1485.

1483	Richard's position, and policy of conciliation,	345
	His strong position,	345
	Weak points in it,	346
	Disaffection in the South,	346
	Death of the Princes,	346
	Projected marriage of Elizabeth and Richmond,	346
	Defection of Buckingham,	347
	Richmond's first Invasion,	347
	Death of Buckingham,	347
	Failure of the Conspiracy,	347
1484	The great Act of Confiscation,	347
	Richmond's continued schemes,	348
	Richard's efforts to oppose him,	348
	<u>Attempts to win the Queen,</u>	348
	Death of the Prince of Wales,	348
	Lincoln declared heir,	348
1485	General uneasiness in England,	348
	Richard has recourse to benevolences,	349
	Richmond lands at Milford,	349
	Conduct of the Stanleys,	349
	Battle of Bosworth,	349
	Richard's character and laws,	350

LIST OF MAPS.

1. SAXON ENGLAND	<u>At end of Book</u>
2. CRUSADES	” ”
3. FRANCE	” ”
4. ENGLISH POSSESSIONS IN FRANCE	” ”
5. NORTH OF FRANCE	” ”
6. ENGLAND AND WALES	” ”

INTRODUCTION.

The history of civilization can be traced in great lines which have more or less followed a similar direction throughout all Europe. The interest of a national history is to observe the course which these lines have followed in a particular instance; for, examined in detail, their course has never been identical. The period occupied by what we speak of as English history is that, speaking broadly, during which the great mediæval systems—feudalism and the Church—have by degrees given place to modern society, of which the moving-springs are freedom of the individual, government in accordance with the popular will, and freedom of thought. The object of a History of England is therefore to trace that change as it worked itself out amid all the various influences which affected it in our own nation. The peculiar circumstances of the Norman conquest prevented the complete development in England of either of the great Continental systems. Neither the feudal system nor the system of the Roman Church are to be found in their completeness in England. The separation of England from the Empire, the entire destruction of the Roman occupation by the German invaders, prevented that contact between German and Roman civilization from which Continental feudalism sprang. And though, if left to itself, the civilization of the early English would have ripened into some form of feudalism, it was caught by the Conquest before the process was completed. The Normans brought with them, indeed, the external apparatus of the completed system; but in the hands of their great leader, and grafted upon the existing institutions of the country, it assumed a new form. The power of the King was always maintained and the power of the barons suppressed, while room was left under the shadow of a strong monarchy for the growth of the lower classes of the nation. In the same way, the Church was always kept from assuming a position of supremacy, and its subordinate relations to the State

maintained. The establishment of this new form of government may be held to occupy the first period of our history since the Conquest, lasting till the reign of John. During that time the barons, who had more than once attempted to establish the same virtual independence as was enjoyed by their fellows abroad, were taught to recognize the power of the Crown. The legislation of Henry I. and Henry II., and the establishment under the latter of a new nobility dependent for their status upon their ministerial services, coupled with the incorporation of the national system of justice with the feudal system of the conquerors, united all classes of Englishmen and consolidated the nation, but in so doing raised to an alarming degree the power of the Crown. The miserable reign of John, and the tyrannical use he made of the power thus placed in his hands, called attention to the dangers which beset the administrative arrangements of his father. The total severance of England from France, which took place in his reign, and his rash quarrel with the Church, completed the work of national consolidation, but placed the united nation in antagonism to the throne. The nobility, which in other countries were the natural enemies of all classes below them, were thus forced to assume the lead of all who desired a reasonable amount of national freedom.

The struggle to harmonize the relations which should exist between the Crown and the subject occupies the second period of our history. It assumes several forms; sometimes the dislike of foreigners, sometimes a desire for self-taxation, sometimes it seems little more than an outbreak of an over-strong nobility. But whatever its form, the fruits of the struggle were lasting. The rival claims of King and nation, acknowledged and regulated by the wisdom of Edward I., gave rise to that balanced constitution which in its latest development still exists among us. But it would seem that this great advance in government had been somewhat premature. In other nations institutions resembling our Parliament sprang into existence, and faded away before the power of the Crown, an effect which can be traced chiefly to the strong line of division separating the commonalty from the nobles. Without support from the nobility, and in all its interests in direct antagonism to it, the commonalty, after supporting the Crown in the destruction of the baronage, found itself in presence of a power to which it was unable to offer any resistance. Several causes already mentioned had in England weakened the sharp definition of classes, but there was a great risk even there of a similar failure of constitutional monarchy. It was as the

leader of the nobility that Henry IV. first rose into importance in the reign of Richard II., and subsequently obtained the crown. The limitation of the franchise in the reign of Henry VI., and the consequent subserviency of Parliament, were steps towards the elevation of an aristocratical influence, which, had it grown till its suppression by the Crown was rendered necessary, would have reproduced in England the historical phenomena visible in France. Fortunately the nobility were not at one among themselves. The various sources from which they derived their origin, the close family connections, and personal interests, split them into factions, which, taking advantage of a disputed succession, brought their quarrel to the trial of the sword with such animosity that the nobility of England was virtually extinguished.

But while this faction fight, and the great French war which preceded it, attract the attention chiefly during the third period of the history, a quiet advance of great importance had been going on, sheltered by the more obvious movements of the time. The same spirit which had found its expression in the establishment of the Constitution, had indirectly, if not directly, influenced every class of the nation. The exclusive merchant guild had given place to the craftsman's guild. The wars in France, the alienation of property fostered by the legislation of Edward I., the Black Death, which had robbed the country of at least a third of its labouring hands, had sealed the fate of serfdom, and established in England the great class of free wage labourers. The same alienation, the gradual increase and importance of trade, and the formation and introduction of capital, had formed a middle class of gentry, from which the successful merchant was not excluded. Nor had this political growth been unaccompanied by an advance of thought. The failure of the crusades, the last great exhibition of material religion; the Franciscan revival; the philosophy of Bacon and his successors; the bold declaration of independence on the part of Wicliffe, and the grasping and repellent character of the Roman Court, had shaken the Church to its foundations. The storm which had shaken the surface of English society had left its depths unmoved and undisturbed by the great work of extermination proceeding overhead; these processes of growth had been gradually continuing their course during the whole of the third period. Thus, then, when Edward IV. emerged from the troubles of the Wars of the Roses as King of England, his position, though it might seem very similar to that of a king who had triumphed over his nobility, was yet considerably modified.

The nobility were no doubt gone, but it was not the Crown which had crushed them. The Church, indeed, threw all its influence on the side of the Crown, but it was in the consciousness of the insecurity of its position in the hearts of the people that it did so. The King and his Commons stood face to face, with no intermediate class to check their mutual action, but the Commons were already free, and headed by a rapidly rising body of wealthy secondary landowners or merchants. Nevertheless, the immediate effect of the destruction of the nobility was completely to check constitutional growth, and to establish a government which was little short of arbitrary.

The Italian statecraft, which the influence of the Renaissance rendered paramount, for the moment increased the tendency to absolutism; and in the reign of Henry VIII., though a shadow of popular government yet remained, the will of the king was little short of absolute. What may be called the fourth period of our history is occupied by the establishment of this arbitrary power, and the gradual awakening of national life, under the influences of the Renaissance, and of the circumstances which accompanied the Reformation, which tended to modify it in the reign of Elizabeth. When Protestantism and the vigorous young thought of the reawakened nation became linked indissolubly with the fortunes of the sovereign in her national war against Spain, the mere necessity of the union tended much to put a practical limit to the arbitrary character of the new monarchy. It was the miscomprehension of the necessity of this union between king and people which produced the contests which occupy our history during the reign of the Stuarts.

Bred in the theory of monarchy by Divine right, the logical offspring of feudalism, when separated from the Empire and the Church, the Stuarts were willing to accept the arbitrary power of their predecessors, but would not acknowledge the necessity of harmonious action with the people, on which alone, as things then were, such arbitrary authority could rest. The middle class of gentry had been increasing in power and influence till they were now in a position to assume that leadership in the nation which the destruction of the nobles had left vacant. And behind them there was the bulk of the people, whose Protestantism, the religious character of the late national struggle, and the love of truth engendered by the Renaissance, had raised to enthusiastic Puritanism. The constitutional life, checked for a time

by the Tudor monarchy, again sprang into existence. In the struggle which ensued it was the enthusiastic party which ultimately triumphed, and its leader, Cromwell, is seen mingling his conscientious efforts at the establishment of constitutional government with a religious fervour too great to be sustained.

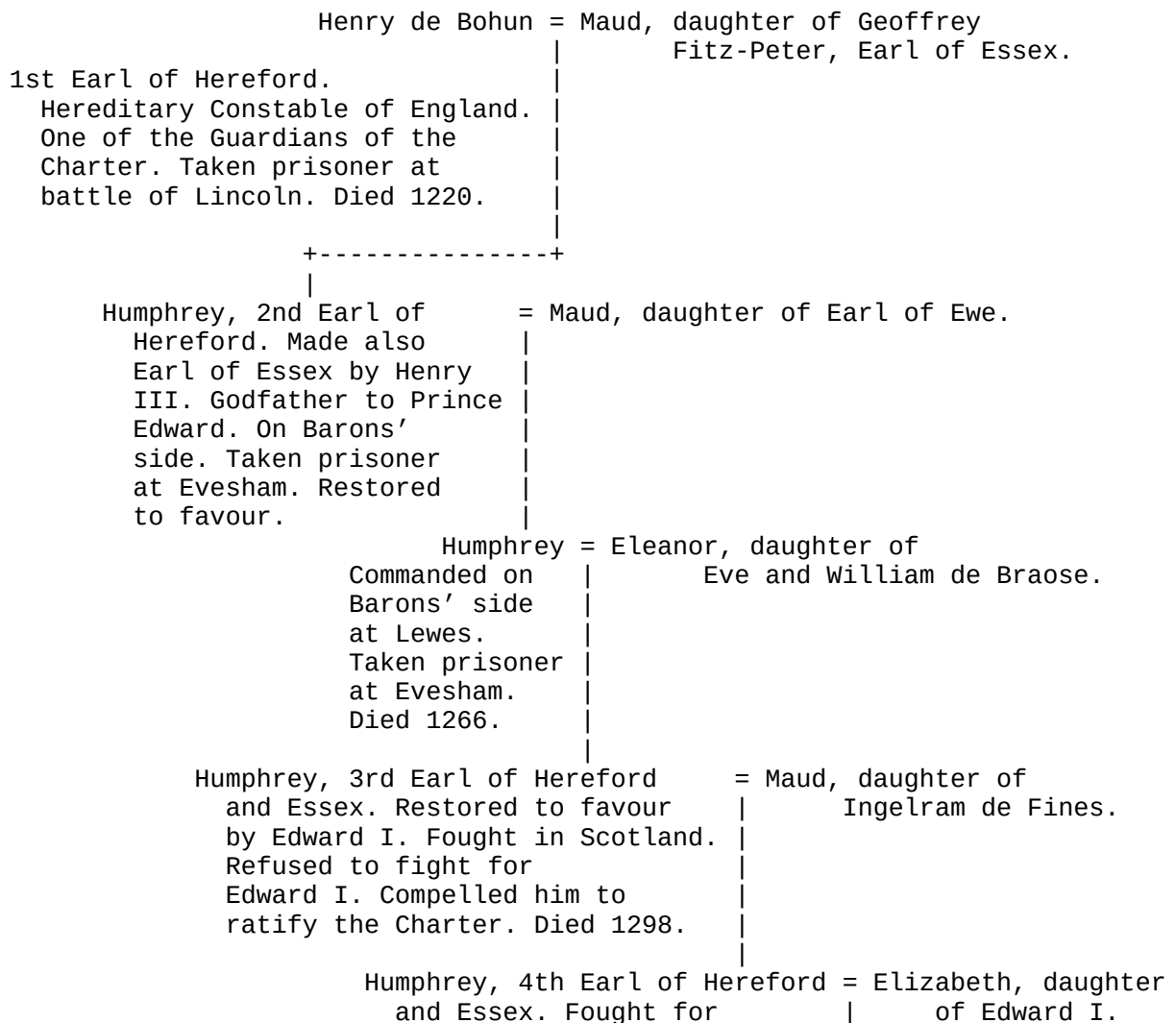
But his rule, freed from those parts for which, as yet, the gentry at all events were unprepared, established, definitely and for ever, the necessity of recurring sooner or later to the constitutional principles of the fourteenth century. In the Revolution of 1688 those principles triumphed. But they triumphed in the hands no longer of a great enthusiastic leader, but of a party, which found its chief supporters in a limited number of noble houses, whose aristocratic pride was injured by the arbitrary power of the sovereign, and whose influence in the formation of Parliament promised them political superiority under the establishment of parliamentary government. From that time till the present the scene of the contest has been changed. A party struggle of some thirty years gave place to the unchecked predominance of parliamentary rule. And the last period of our history has been occupied by the efforts of the excluded nation to make their voice heard above that of a nominal representation, consisting in reality of the representatives of a dominant class, under the influence either of the great Whig families or of the Crown.

GENEALOGIES OF THE LEADING FAMILIES

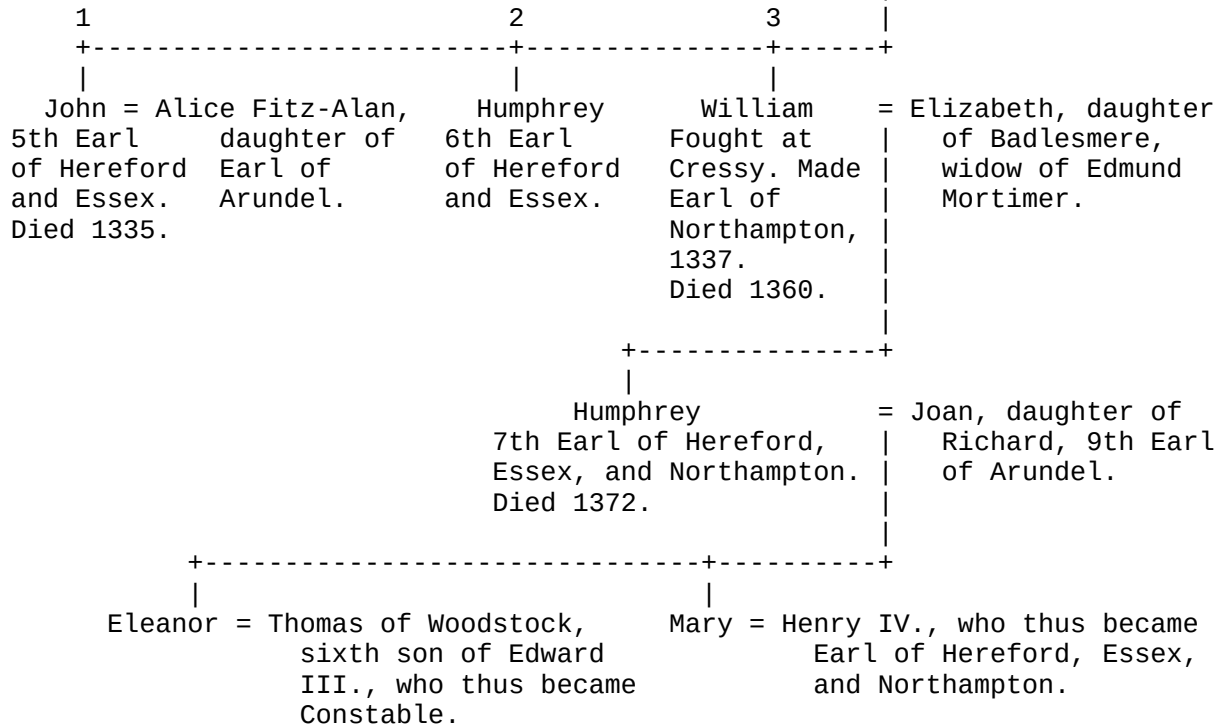
(The founder of the family a kinsman of William I.)

DE BOHUNS (HEREFORD, ESSEX, NORTHAMPTON).

[click here to see the image](#)



Edward I. and II. in
Scotland. Taken prisoner at
Stryvelin; exchanged for
Bruce's wife. Refused to
obey Edward's order not to
fight Despenser. Joined
Lancaster's insurrection.
Killed at battle of
Boroughbridge, 1322.

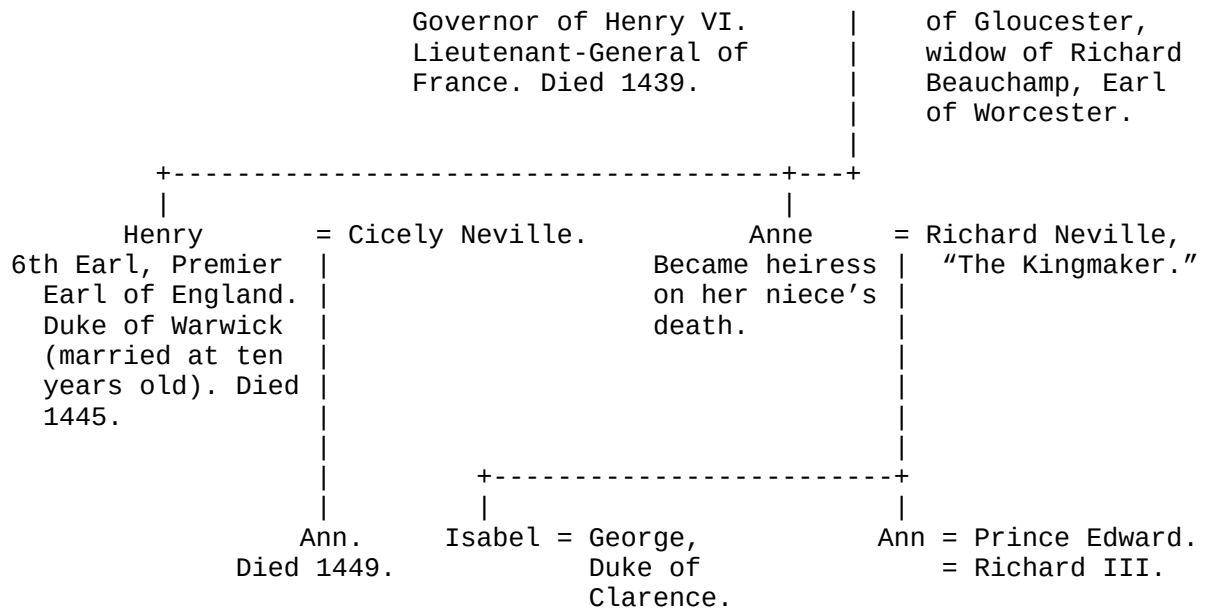


(Family founded at the Conquest.)

BEAUCHAMP (WARWICK).

[click here to see the image](#)

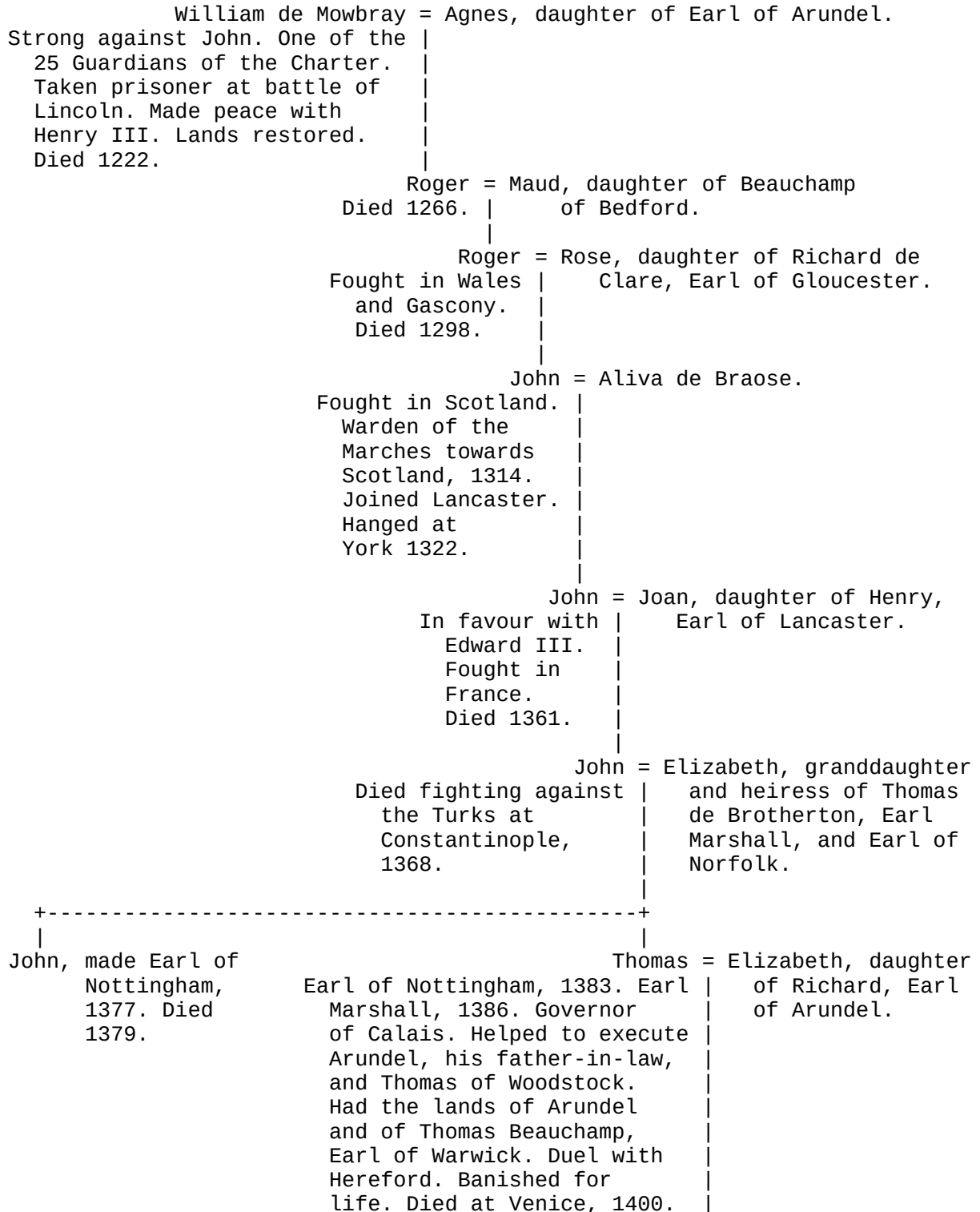
Walter de Beauchamp	= Bertha de Braose.
Fought against John.	
Made peace with	
Henry III. One of	
the Barons-Marchers.	
Died 1235.	
Walcheline	= Joan, daughter of
Died 1235.	Roger Mortimer,
	who died 1215.
William	= Isabel, sister and
Fought in Gascony.	heiress of
and in Scotland.	William Maudit,
Died 1268.	Earl of Warwick.
William	= Maud Fitz-John,
1st Earl of Warwick.	widow of Girard
Distinguished in	de Furnival.
Edward I.'s wars.	
Died 1298.	
	Guy = Alice de Toni.
2nd Earl, "The Black	
Dog of Ardenne."	
Caused Gaveston	
to be beheaded.	
Died 1315.	
	Thomas = Catherine, daughter
3rd Earl. Fought	of Roger Mortimer,
at Cressy and	1st Earl of March.
Poitiers. Died	
of the plague	
at Calais,	
1369.	
	Thomas = Margaret Ferrars.
4th Earl. Governor of Richard	
II. Joined Thomas of	
Gloucester. Condemned to	
death. Banished to Isle of	
Man. Kept in the Tower.	
Restored by Henry IV. Died	
1401.	
	Richard = 1. Eliz. de Lisle.
5th Earl. Fought against the	= 2. Isabel Despenser,
Percies at Shrewsbury.	daughter of Earl

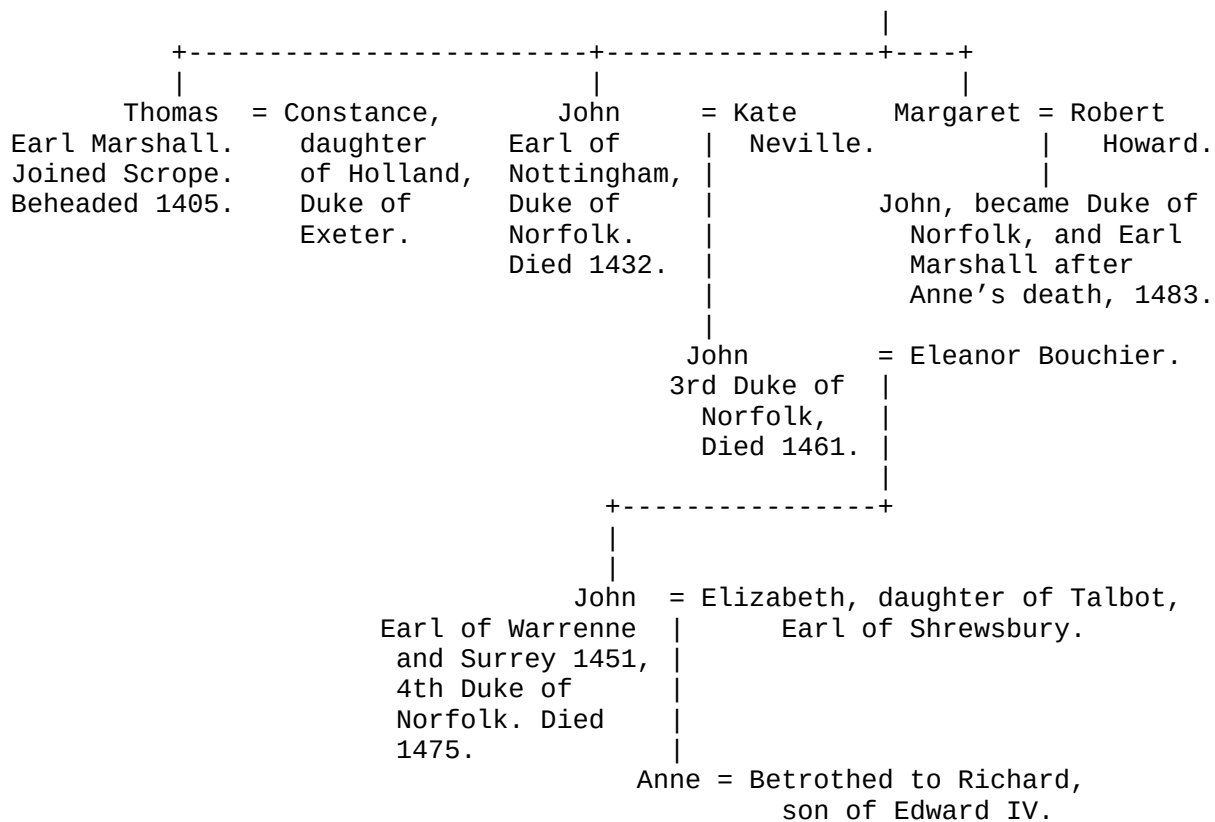


(Family founded at the Conquest.)

MOWBRAY (NOTTINGHAM, NORFOLK).

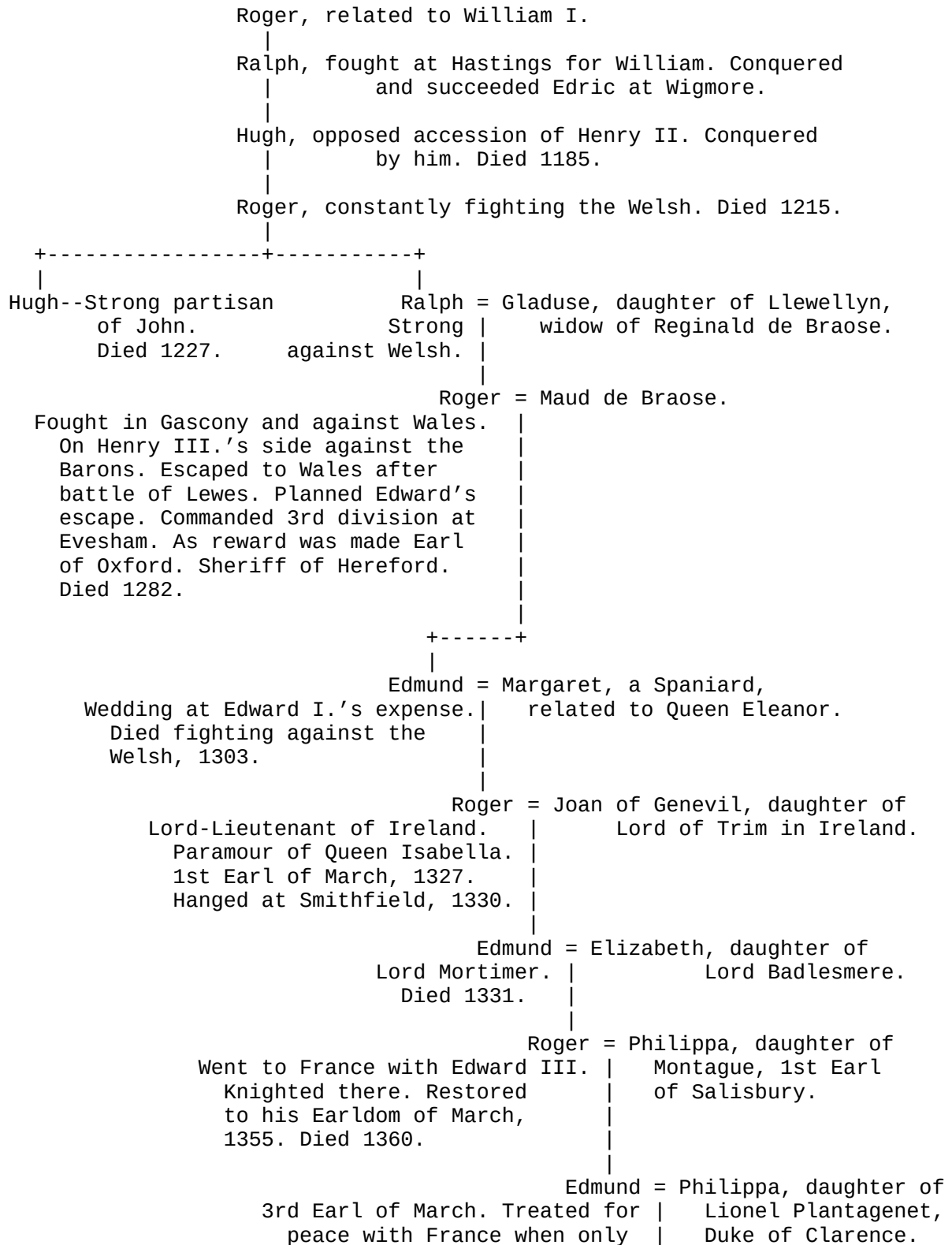
[click here to see the image](#)

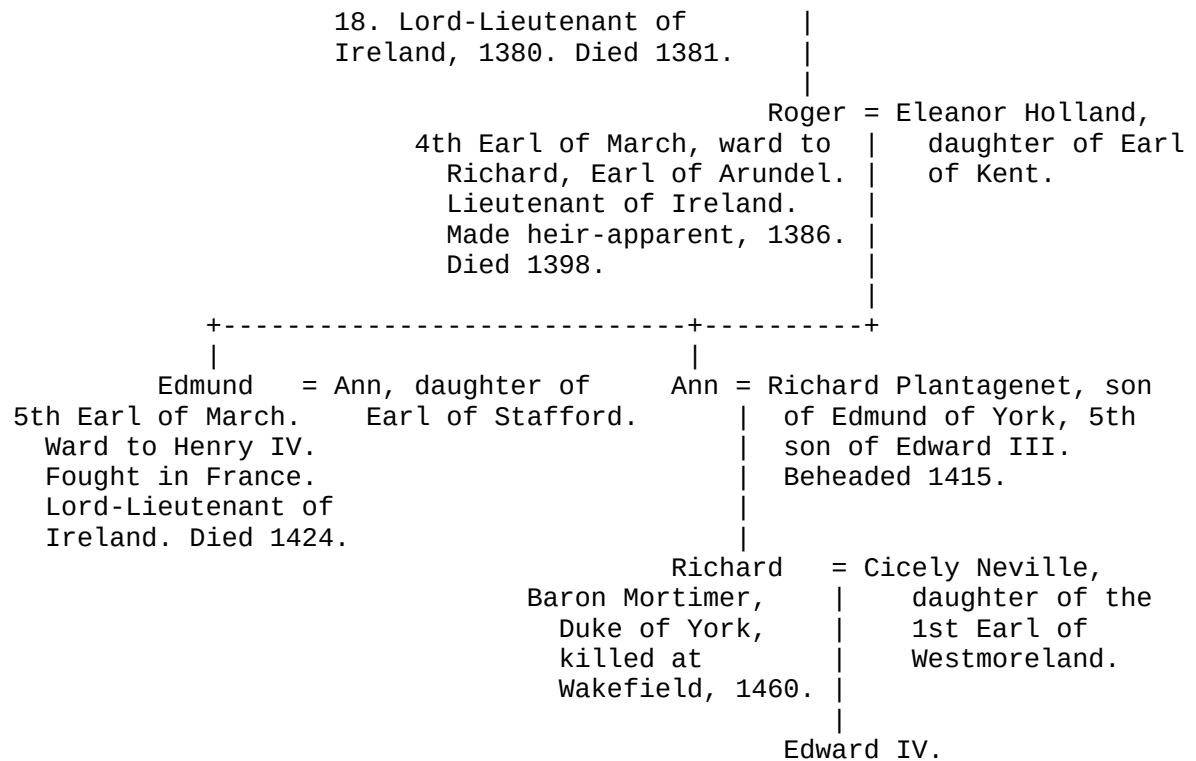




MORTIMERS (MARCH).

[click here to see the image](#)

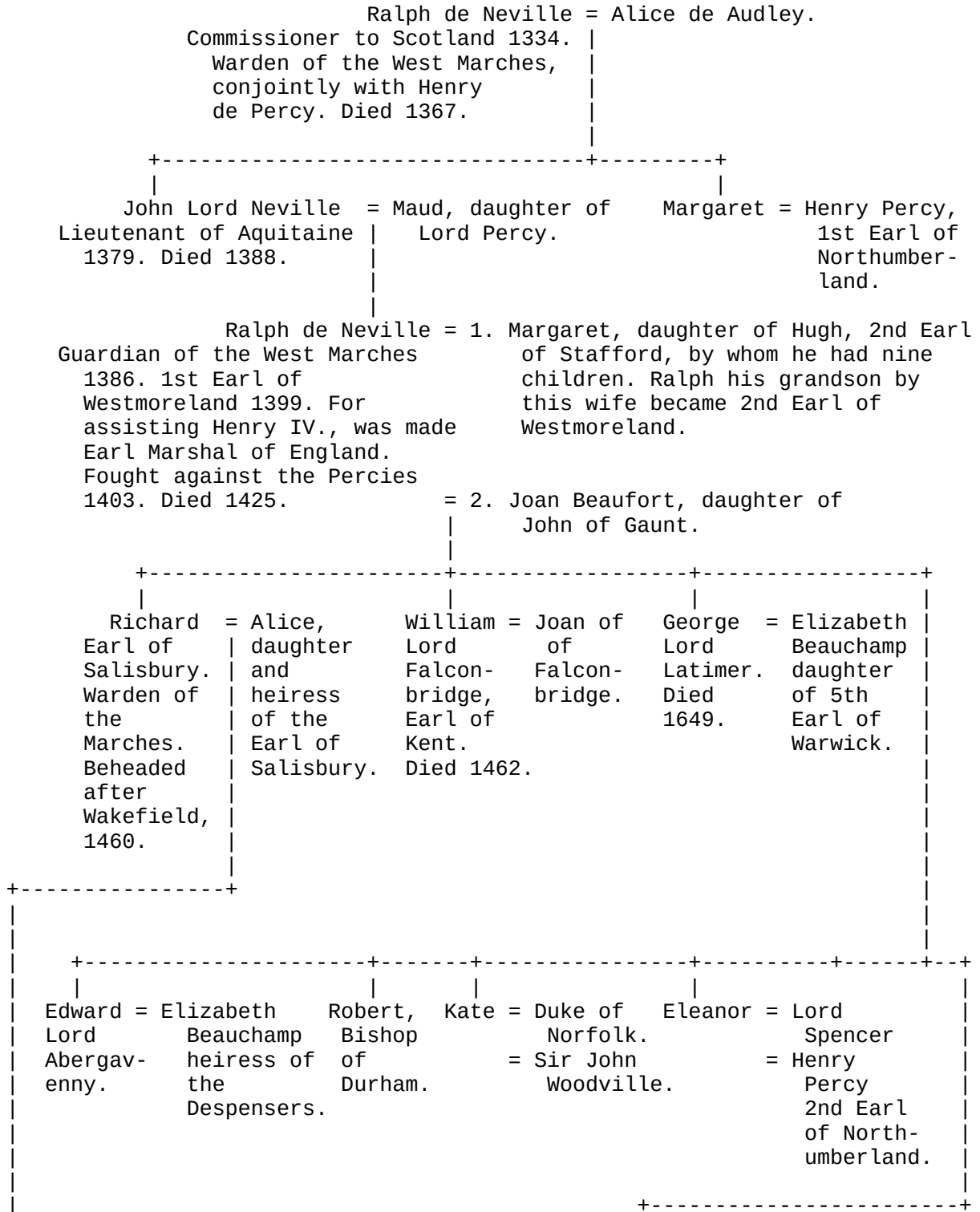


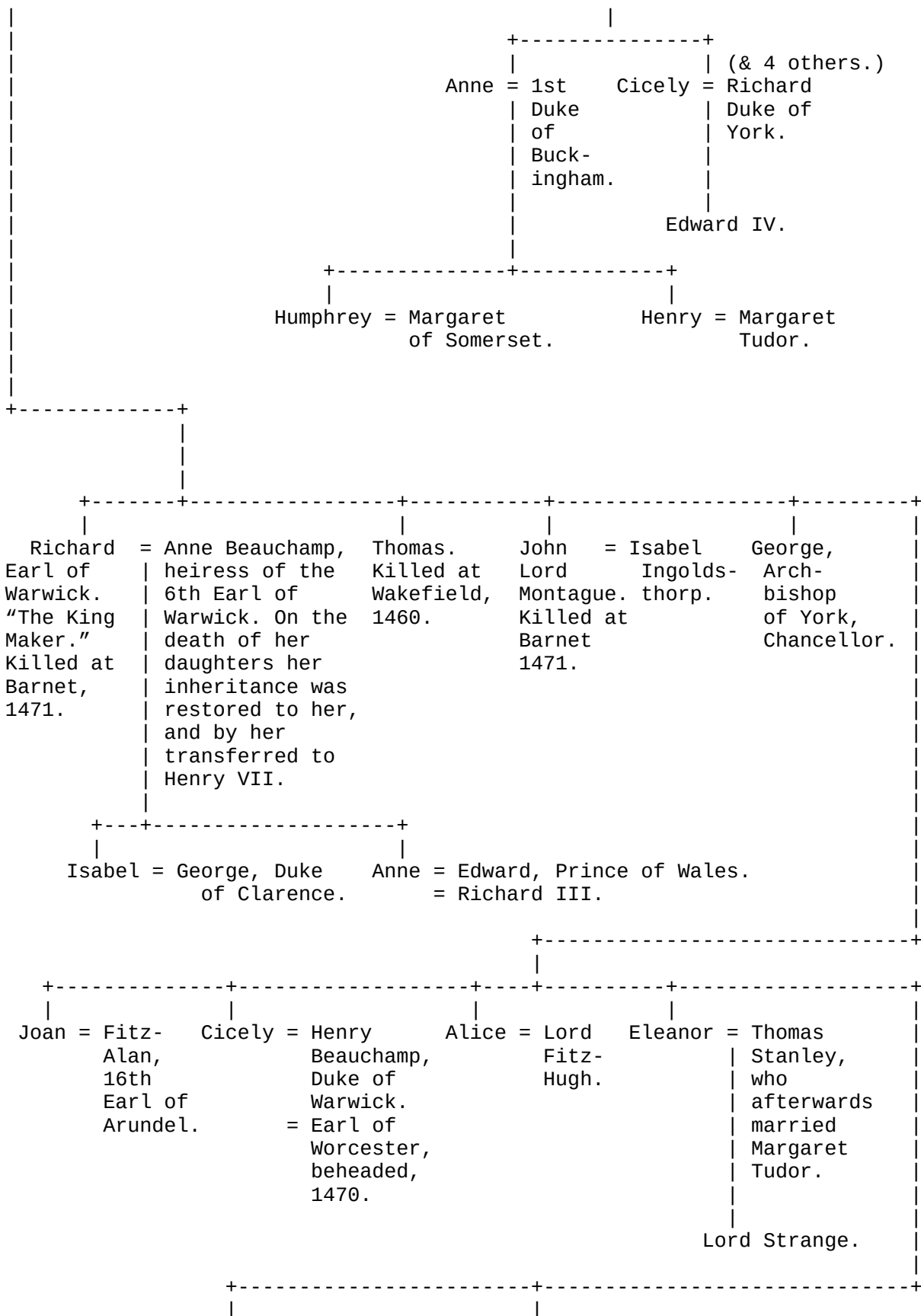


(Family founded at the Conquest.)

NEVILLES (WESTMORELAND, WARWICK).

[click here to see the image](#)



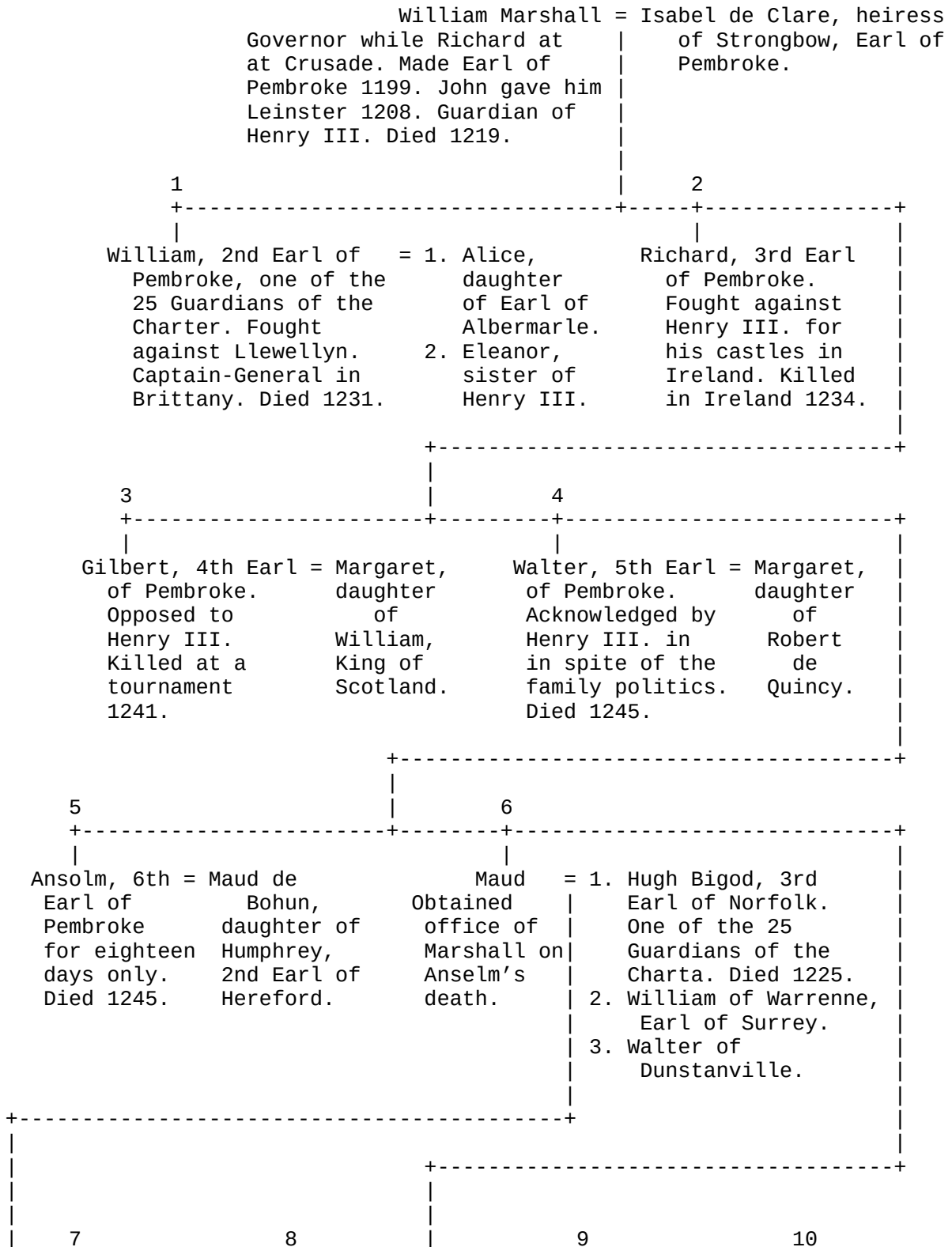


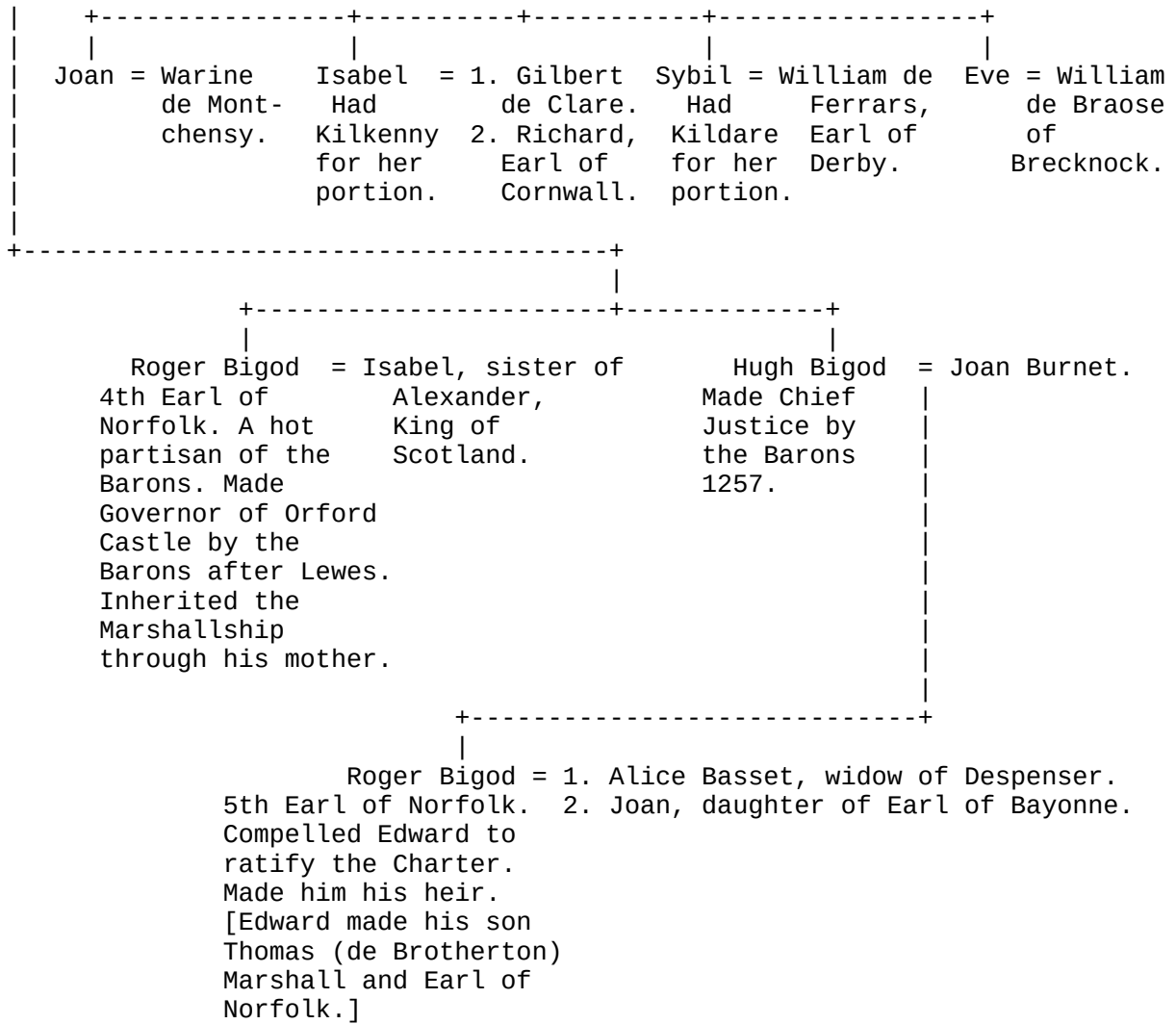
Kate = Lord
Bonville.

Margaret = De Vere, Earl of Oxford.
= Lord Hastings.

MARSHALLS AND BIGODS.

[click here to see the image](#)

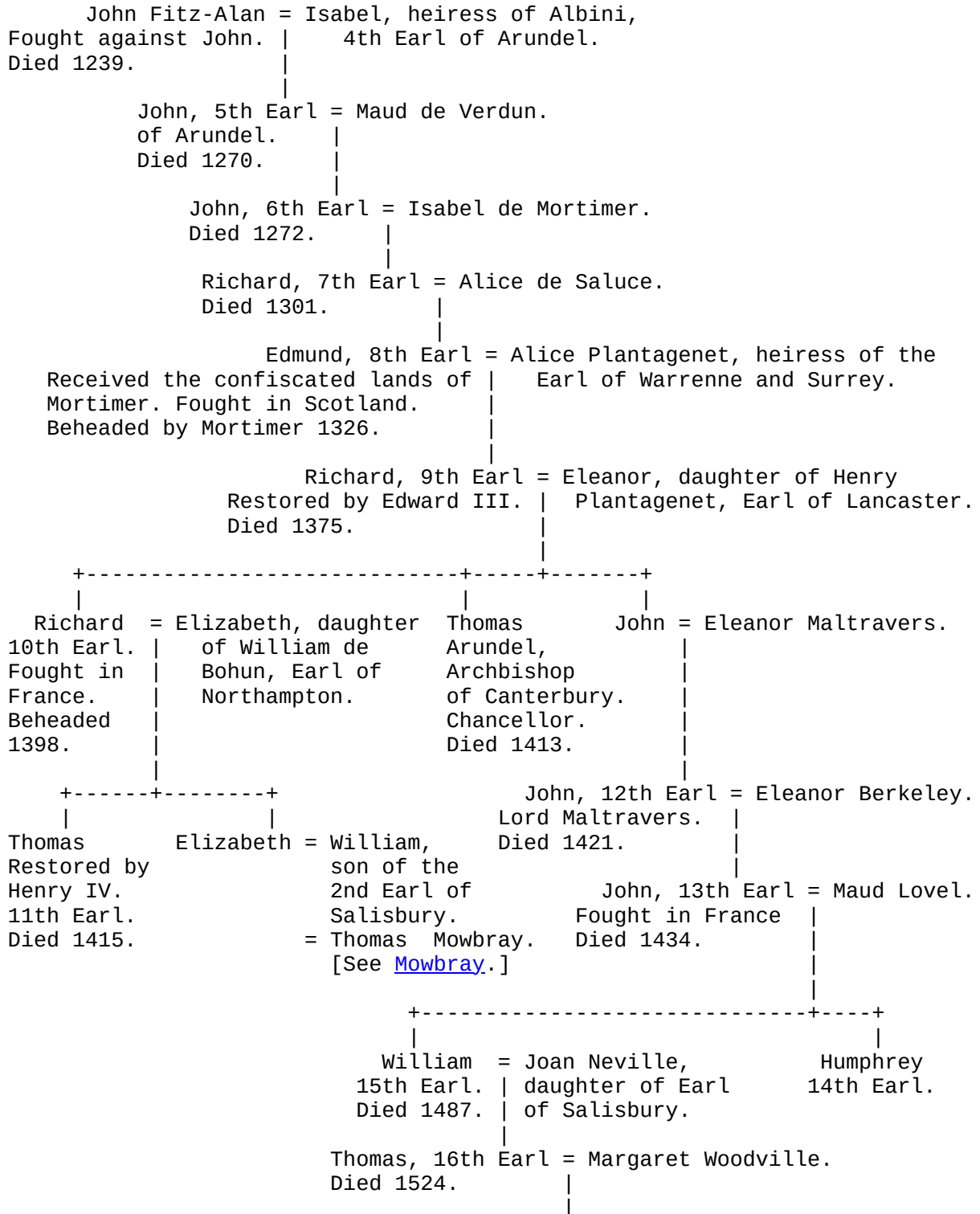




(Family founded at the Conquest.)

FITZ-ALAN (ARUNDEL).

[click here to see the image](#)



William, 17th Earl = Anne, sister of
Died 1543. | the Earl of
| Northumberland.

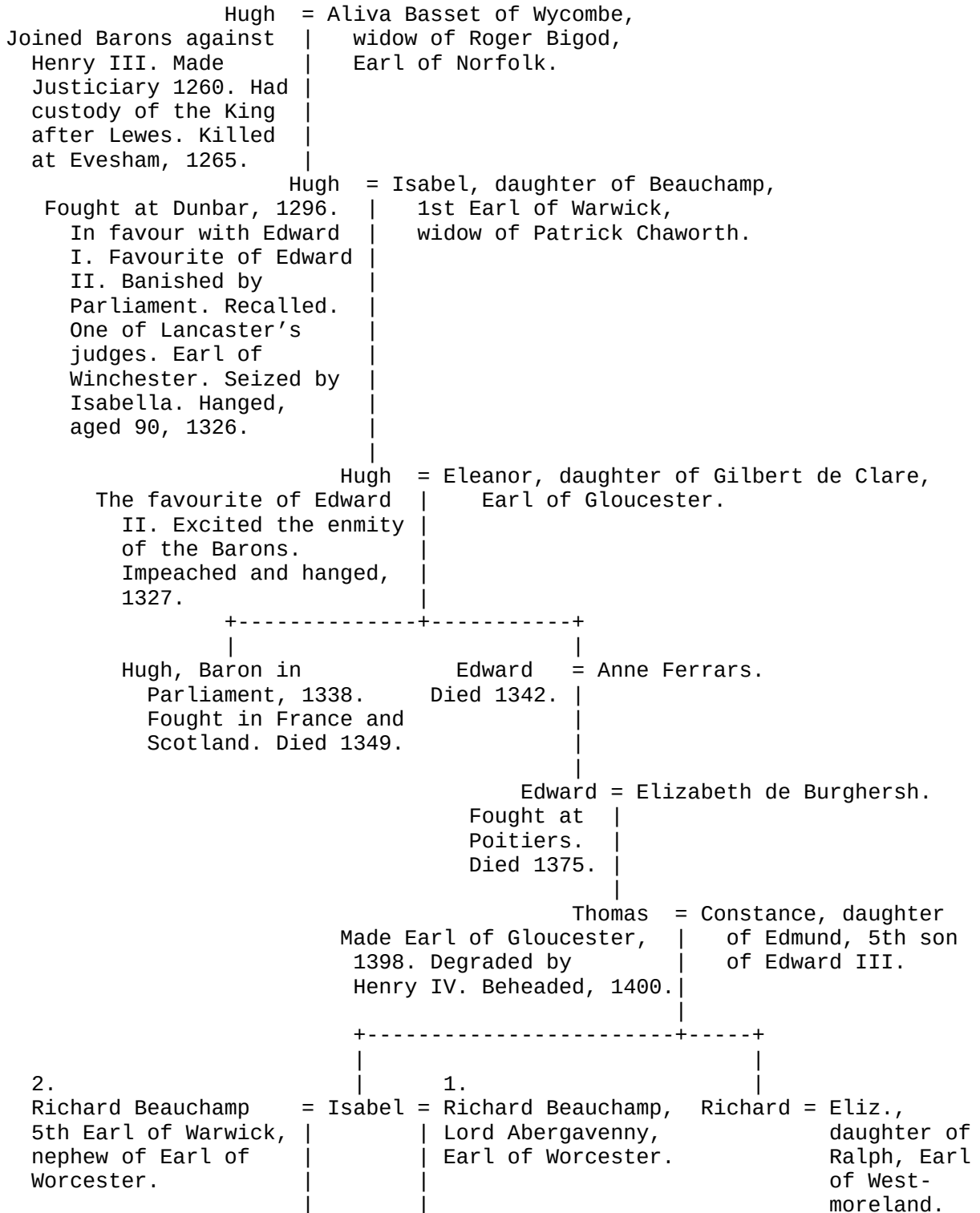
Henry, 18th Earl = Catherine Grey,
Imprisoned in | daughter of 2nd
Edward VI.'s reign. | Marquis of Dorset.
Died 1579. |

Mary = Thomas Howard,
who became Earl
of Arundel.

(Family founded in Henry I.'s reign.)

DESPENSERS.

[click here to see the image](#)

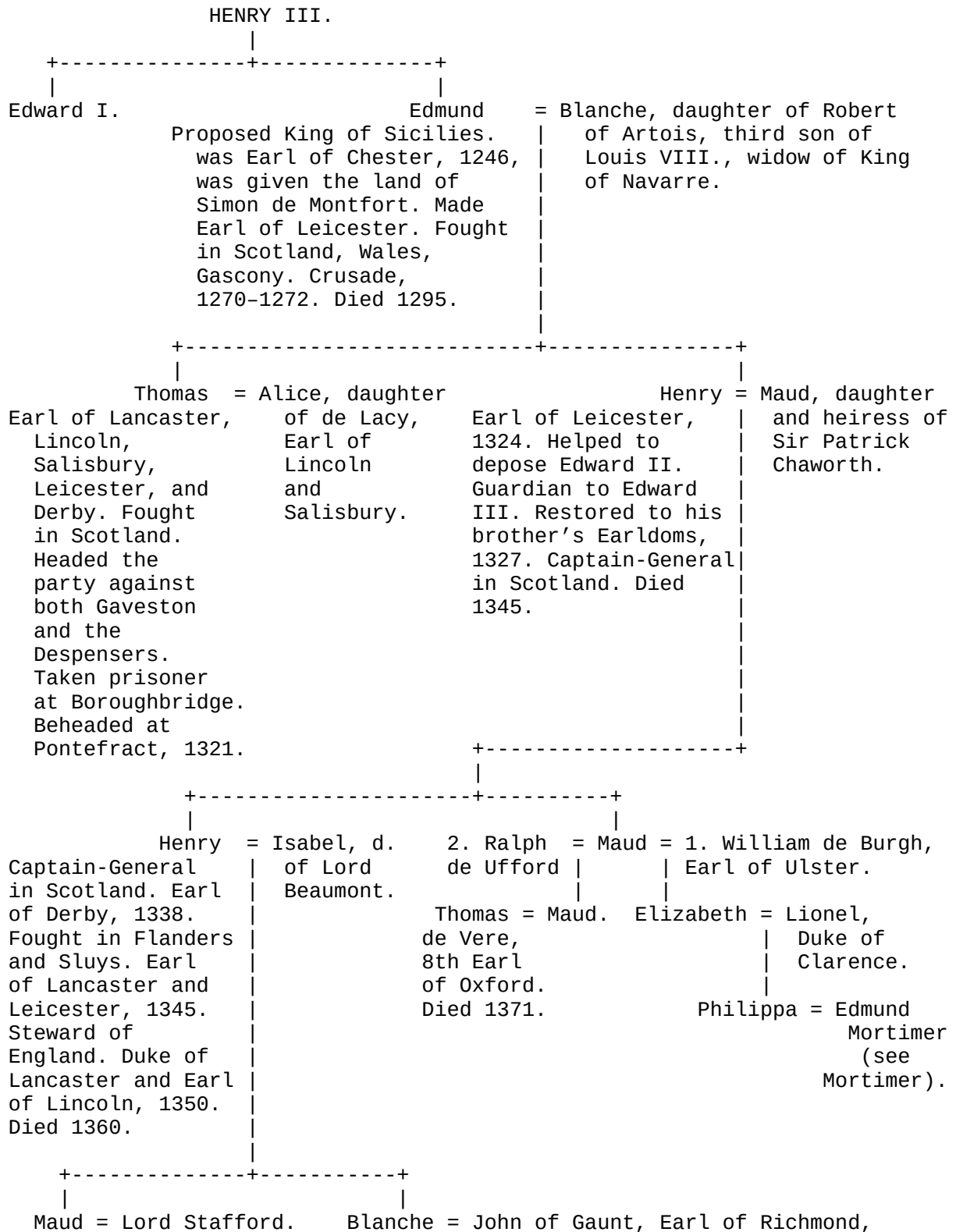


Cicely Neville = Henry
d. of Earl
of Salisbury.

Elizabeth = Edward Neville, son of Ralph,
1st Earl of Westmoreland,
who thus obtained the
Baronies of Despenser and
Abergavenny.

LANCASTERS.

[click here to see the image](#)



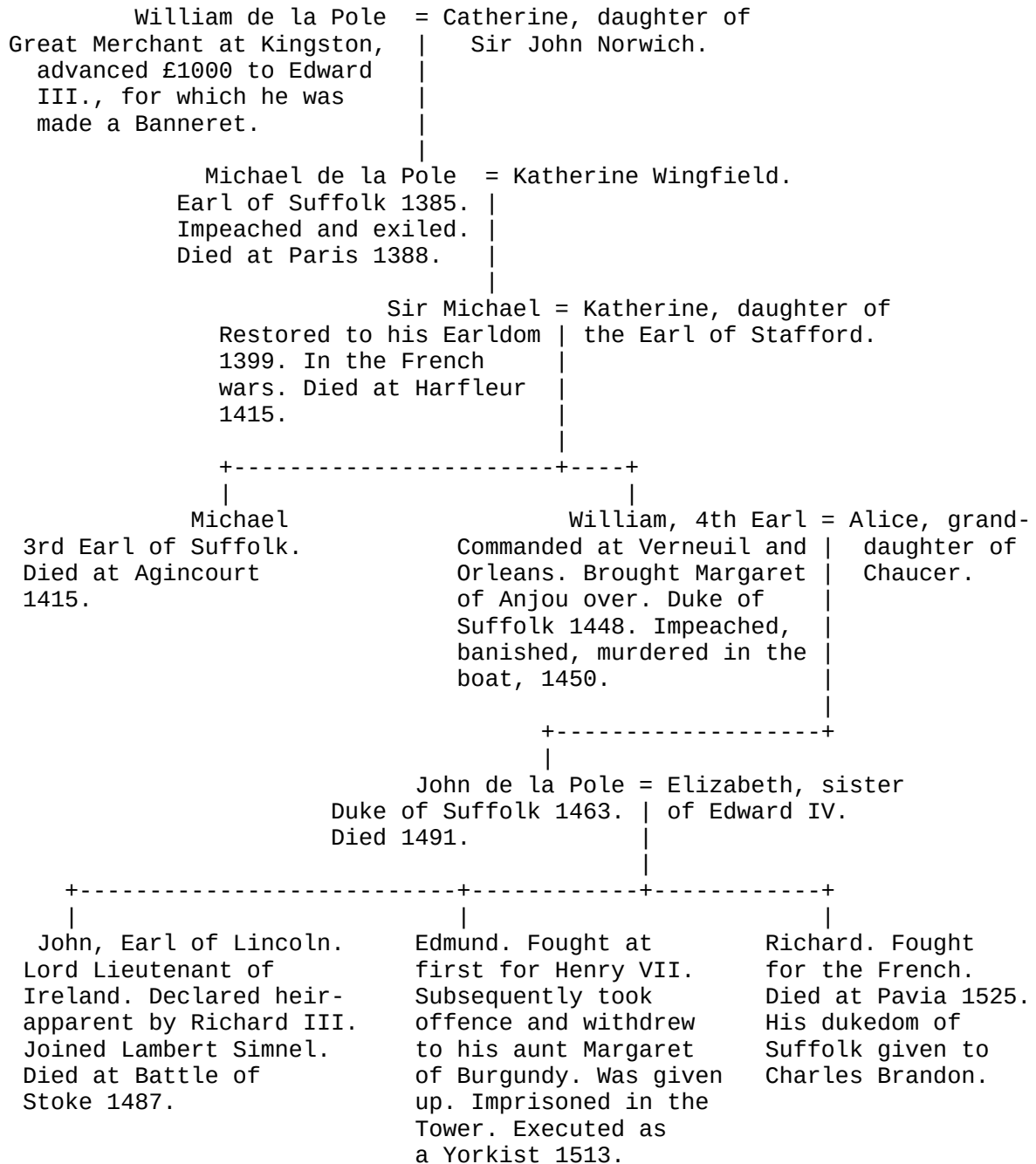
= Duke of Zeeland.
No children.

| who thus became Duke of Lancaster,
| Earl of Derby, Lincoln and
| Leicester.

|
Henry IV. (Earl of Hereford, Derby,
Lincoln and Leicester,
and Duke of Lancaster.)

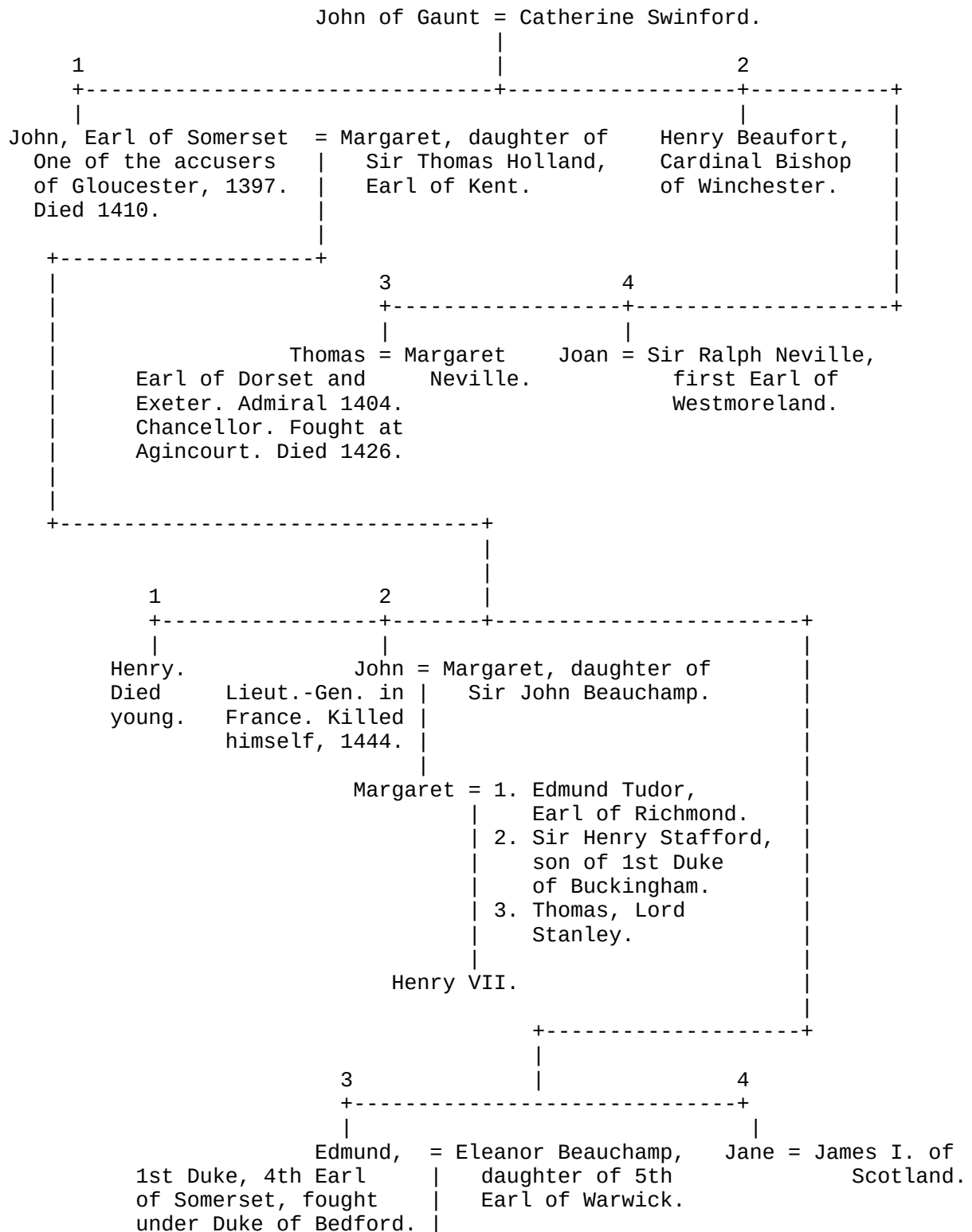
DE LA POLES.

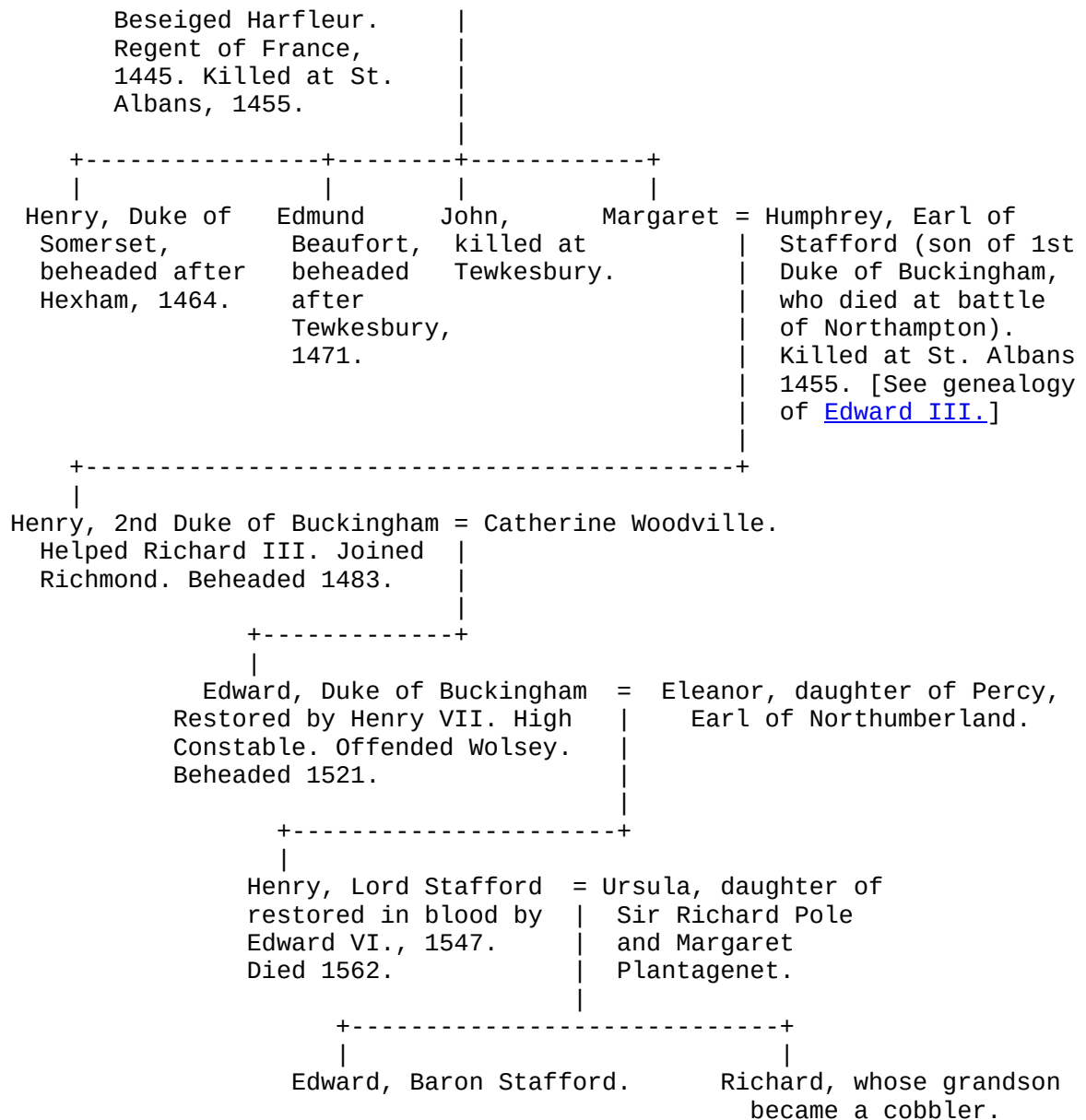
[click here to see the image](#)



BEAUFORT (SOMERSETS), AND STAFFORD (BUCKINGHAMS).

[click here to see the image](#)



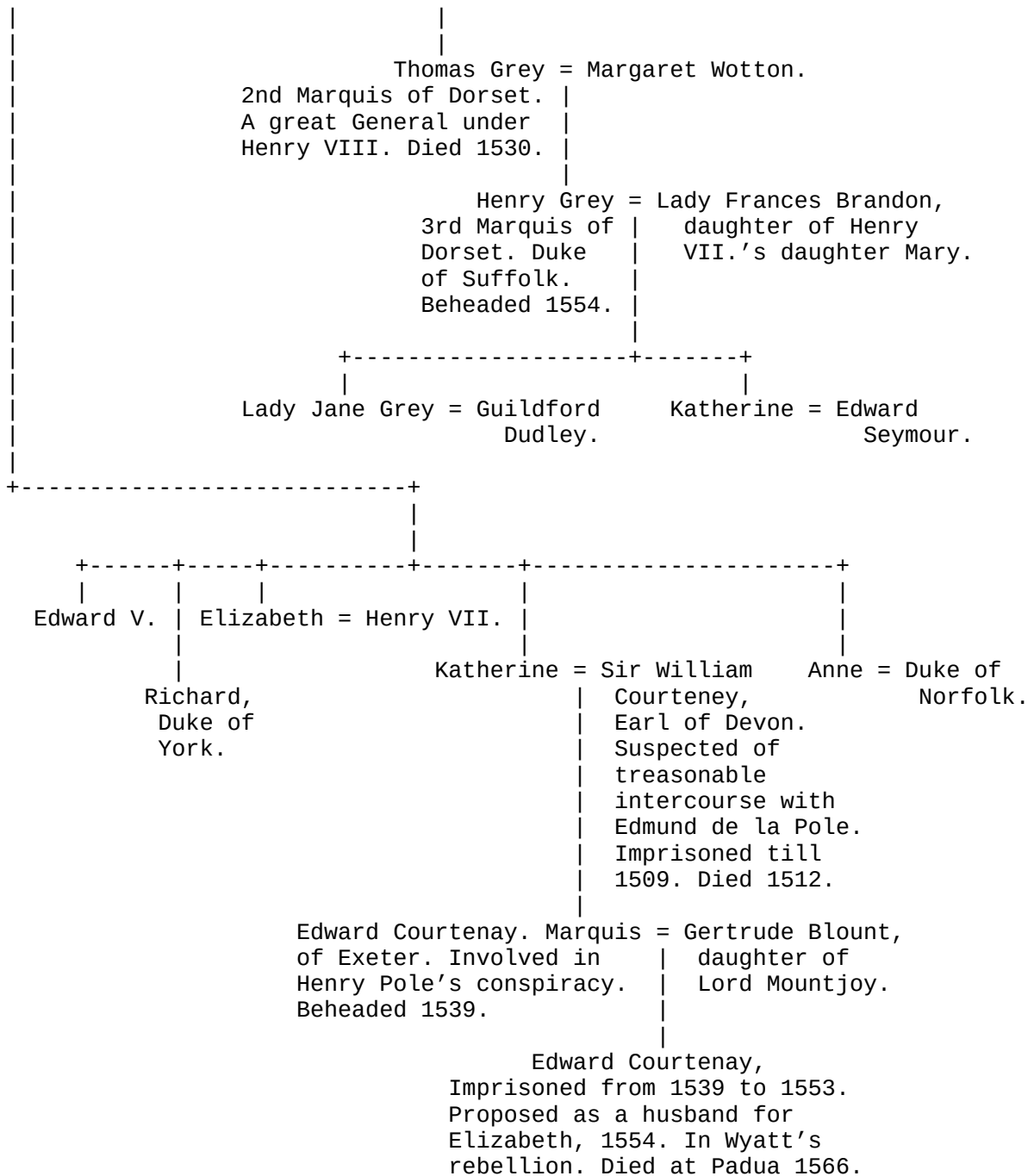


[click here to see the image](#)

+	+	+	+	+
Anthony = Elizabeth,	John,	Lionel,	Richard,	
Lord heiress of	Beheaded	Bishop of	2nd Earl	
Scales. Lord Scales.	1469.	Salisbury.	Rivers.	
Earl Rivers.				
Guardian				
of Edward V.				
Beheaded				
1483.				

Mary = Earl of Huntingdon.	Katherine = 2d Duke of Buckingham. = Jaspar Tudor. = Sir Richard Wingfield.	Anne = Lord Bouchier. = Earl of Kent. = Sir Anthony Wingfield.
----------------------------	---	--

Thomas, 1st Marquis of Dorset, escaped to Brittany 1483. Restored by Henry VII. Died 1501.	= Cecily Bonville.	Sir Richard Grey Beheaded 1483.
---	-----------------------	------------------------------------



ENGLAND BEFORE THE CONQUEST.

The dominion of the Romans in Britain had been complete. The country, as far as the Frith of Forth, had been brought under Roman civilization. But in England, as elsewhere, the continuance of that form of civilization had produced weakness; and the unconquered Britons of the North, known by the name of Picts, broke into the Romanized districts, and pushed their incursions far into the centre of the country. On all sides, the nations outside the Empire were breaking through its limits and threatening its existence. The danger which threatened the very heart of the Empire, from the advance of the Goths into Italy, compelled the Romans in 411 to withdraw their legions from Britain, and leave the inhabitants of the island to fight their own battles with the Picts. When these enemies formed an alliance with the pirates of Ireland, known by the name of the Scots, and with the German pirates of the North Sea, known as English or Saxons, the civilized Britons were unable to make head against them, and found it necessary to seek for aid among the invaders themselves. They therefore made an arrangement with two Jutish chiefs or Ealdormen, Hengist and Horsa, to come to their assistance. The German rovers consisted of three nations—the Saxons, the inhabitants of Holstein, who had advanced along the coast of Friesland; to the north of them the Angles or English, who inhabited Sleswig; and still further to the north, the Jutes, whose name is still perpetuated in the promontory of Jutland.

Departure of the
Romans.

The first landing-place of the Jutish allies of the Britons was in the Isle of Thanet, separated at that time by a considerable inlet from the British mainland. Their aid enabled the Britons to drive back the Pictish invaders. But their success, and the settlement they had formed, enticed many of their brethren to join them, and their numbers were constantly

The Jutish
settlement in Kent.
449.

increasing. Increase of numbers implied increased demand in the way of payment and provisions. Quarrels arose between the new-comers and their British allies.

The Saxons in
Sussex. 477-495.

War was determined on. The inlet which divided Thanet from the mainland was passed, and at Aylesford, on the Medway, a battle was fought, which, though it cost

The Angles in East
Anglia. 520.

Horsa his life, put the conquering Barbarians into possession of much of the east of Kent. The victory was followed by the extermination of the inhabitants; against the clergy especially the anger of the conquerors was directed. The country was thus cleared of the inhabitants, and the new-comers settled down, bringing with them their goods and families and national institutions. This process was repeated at every stage of the conquest of the country, which thus became not only a conquest but a re-settlement. The Jutish conquest of Kent was followed, in 477, by an invasion of the Saxons, who, under Ella, overran the south of Sussex, and captured the fortress of Anderida near Pevensey; and in 495, by a fresh Saxon invasion under Cerdic and Cymric, who passed up the Southampton water and established the kingdom of the West Saxons. A momentary check was given to the advance of the conquerors, in 520, at the battle of Mount Badon. But almost immediately fresh hordes of Angles began conquering and settling the East of England, where they established the East Anglian kingdom, with its two great divisions of Northfolk and Southfolk. Between that time and 577, the date of a victory at Deorham, in Gloucestershire, the West Saxons had overrun what are now Hampshire and Wiltshire, Oxfordshire, Berkshire, and the valley of the Severn, reaching almost as far as Chester; while the Angles, entering the Humber and working up the rivers, established themselves on the Trent, where they were known as Mercians or Border men, and formed two Northern kingdoms, that of Deira in Yorkshire, and that of Bernicia, extending as far as the Forth. The capital of this last-named kingdom was Bamborough, founded by Ida, and called after his wife Bebb, Bebbanburgh, or Bamborough.

The junction of these two kingdoms under Æthelfrith, about 600, established the Kingdom of Northumbria; thus was begun the process of consolidating the several divided English kingdoms. This tendency to consolidation is marked by the title of Bretwalda, which is given to the chief of the nation dominant for the time being. The name had been applied to Ella of Sussex, to Ceawlin of Wessex, and was held at the time of the

establishment of the Northumbrian power by Æthelberht of Kent. There were thus two pre-eminent powers among the English—Northumbria, under its king Æthelfrith, claiming supremacy over the middle districts of England, including the Mercians and Middle English; and Kent, under Æthelberht, paramount over Middlesex, Essex, and East Anglia; while a third kingdom, that of Wessex, though large in extent and destined to become the dominant power, was as yet occupied chiefly in improving its position towards the west. Beyond these lay the district still in the possession of the Britons. The possessions of this people were now divided by the conquest of the English into three—West Wales, or Cornwall; North Wales, which we now call Wales; and Strathclyde, a district stretching from the Clyde along the west of the Pennine chain, and separated from Wales by Chester, in the hands of the Mercians, and a piece of Lancashire in the hands of the Northumbrians.

It was while the kingdoms of Northumbria and Kent were thus in the balance that the conversion of the English to the Christian faith began. Æthelberht of Kent had married Bercta, the daughter of the Frankish King of Paris. She was a Christian; and Gregory the Great at that time occupying the Roman See, which was rapidly rising to the position of supremacy in the Christian Church, took advantage of the opening thus afforded, and despatched a band of missionaries under a monk named Augustine to convert the people. In 597 they landed in Thanet. By the influence of the Queen they were well received, and established themselves at Canterbury, which has ever since retained its position as the seat of the Primacy. The Kings of Essex and East Anglia followed the example of their superior Lord, and became Christians. The Northern kingdom was still heathen. But Eadwine, who succeeded Æthelfrith on the Northumbrian throne, surpassed his predecessor in power. On Æthelberht's death, he received the submission of the East Anglians and men of Essex, and conquered even the West Saxons. Kent alone remained independent, but was compelled to purchase security by a close alliance with Eadwine, who married a Kentish princess. With her went a priest, Paulinus; and priest and Queen together succeeded in converting Eadwine, and bringing the Northern kingdom to Christianity. Heathenism was however not extinct. It found a champion, Penda, King of the Mercians. In alliance with the Welsh king he attacked and defeated Eadwine, in 633, at the battle of Heathfield, and united under his power those who were

Conversion of the
English. 597.

properly called Mercians and the other English tribes south of the Humber. He also conquered the West Saxon districts along the Severn, and thus established what is generally known as the Kingdom of Mercia. Paulinus had fled from York after the battle of Heathfield. But the contest between heathen and Christian was renewed by Oswald, Eadwine's successor; for Paulinus' place was taken by Bishop Aidan, a missionary from Columba's Irish monastery in Iona, who had established an Episcopal See in the Island of Lindisfarne. From thence missionaries issued, who continued the work of conversion, to which Oswald chiefly devoted his life. Birinus, sent from Rome, with the support of Oswald, succeeded in converting even Wessex, and establishing a Christian church at Dorchester. Penda still continued in the centre of England to uphold the cause of heathendom. At the battle of Maserfield he conquered and slew Oswald, and re-established his religion for a time in Wessex. But at length, in 655, he succumbed to Oswi, Oswald's successor, and with him fell the power of heathendom. It seemed as though Irish Christianity, and not Roman, would thus be the religion of England. But Rome did not suffer her conquests to slip from her hand. A struggle arose between the adherents of the two Churches. The matter was brought to an issue in 664 at a Council at Whitby. The Roman Church there proved predominant. And this victory was followed by the appointment of Theodore of Tarsus, an Eastern divine, to the See of Canterbury. Under him the English Church was organized. Fresh sees were added to the old ones, which had usually followed the limits of the old English kingdoms. Canterbury was established as the centre of Church authority. Theodore's ecclesiastical work tended much both to the growth of national unity and to the close connection of Church and State which existed during the Saxon period. The unity of the people was expressed in the single archiepiscopal See of Canterbury and in the Synods; while the arrangement of bishoprics and parishes according to existing territorial divisions connected them closely with the State.

The contest for supremacy between Mercia and Northumbria still continued. After the fall of Penda, the supremacy of the Northern kingdom was for some time unquestioned. But sixty years later, during the reign of three Christian kings, Ethelbald, Offa, and Cenwulf (716-819), Mercia again rose to great power. Offa indeed came nearer to consolidating an empire than any of the preceding kings, although he is not mentioned among the Bretwaldas. It is

Supremacy of
Mercia. 716-819.

said that he corresponded on terms of something like equality with Charlemagne; and the great dyke between the Severn and the Wye which bears his name is supposed to mark the limits of his conquests over the Britons.

With these princes the supremacy of Mercia closed, for a great king had in the year 800 ascended the throne of Wessex. Ecgberht had lived as an exile in his youth at the court of Charlemagne, and there probably imbibed imperial notions. During his reign of thirty-six years he gradually brought under his power all the kingdoms of the English, whether Anglian or Saxon. In 823, at the great battle of Ellandune, he defeated the Mercians so completely that their subject kingdoms passed into his power. Four years later Mercia owned his overlordship, and Northumbria immediately after yielded without a struggle. These great kingdoms retained their own line of sovereigns as subordinate kings. Ecgberht continued the hereditary struggle against the British populations, with the West Welsh or Cornish, and the North Welsh or Welsh, and in each instance succeeded in establishing his supremacy over them. North of the Dee, however, his power over the British population did not spread. Thus the kingdom of the West Saxons absorbed all its rivals, and established a permanent superiority in England.

Ecgberht. 800-836.

Consolidation under the West Saxons.

Already, however, a new enemy, before which the rising kingdom was finally to succumb, had made its appearance; a year before his death, Ecgberht was called upon to defend his country from the Danes. This people, issuing from the Scandinavian kingdoms in the North of Europe, had begun to land in England, to harry the country, and to carry off their spoil. At first as robbers, then as settlers, and finally as conquerors, for two centuries they occupy English history. Their first appearance in this reign was at Charmouth in Dorsetshire. Subsequently, in junction with the British, they advanced westward from Cornwall. This led to the great battle of Hengestesdun, or Hengston, where the invaders were defeated (835). It seems not unnatural to trace the appearance of the Northern rovers in England to the state of the Continent. Driven from their own country by want of room, obliged to seek new settlements, they found themselves checked by the organized power of Charlemagne's empire. They were thus compelled to find their new home in

Period of Danish invasion. 790-1013.

countries they had not yet visited. The reign closed with the capture of Chester, the capital of Gwynedd, the British kingdom of North Wales.

The reign of Æthelwulf, the successor of Ecgberht, was chiefly occupied in constant war with the Danes. Various success attended his efforts. The great battle at Ockley (851), where they were heavily defeated, for a time kept them in check; but, on the whole, the invaders constantly gained ground, and at last, in 855, for the first time so far changed their predatory habits as to winter in the Isle of Thanet. Another characteristic of Æthelwulf's reign is the connection with Rome which he established. When his youngest son Alfred was still a child, he sent him to Rome, where the young prince was anointed; and two years afterwards he himself took the same journey, was received on the road by Charles the Bald, King of France, and spent a whole year in Italy. He there re-established the Saxon College, and by his engagement to supply funds for its support seems to have originated the well-known Peter's Pence. His connection with Charles the Bald was further cemented by his marriage with Judith, daughter of that king. After Æthelwulf's death she married her stepson Æthelbald, was divorced by him, returned to France, married Baldwin of Flanders, and was the ancestress of Matilda, wife of William the Conqueror. These connections show the rising importance of England, and the entrance of the country into the general politics of Europe. Something in Æthelwulf's government, perhaps his lengthened absence abroad, or the step he had taken in getting Alfred anointed, excited discontent. His eldest surviving son, Æthelbald, conspired with other nobles to exclude him from the country, and he was forced to consent to a compromise, accepting as his own kingdom, Kent and the Eastern dependencies of Wessex, while his son ruled over the rest of the kingdom.

Æthelwulf. 836-857.

On his death he bequeathed his own dominions to Æthelberht, his second son, while Wessex was, upon the death of Æthelbald, to pass in succession to his two sons, Æthelred and Alfred. In spite of this will, on the death of Æthelbald five years later, Æthelberht of Kent succeeded in making good his claims to Wessex also, and upon Æthelberht's death, after a reign of five years, marked only by

Æthelbald. 858-860.

Æthelberht. 860-866.

renewed attacks of the Danes, both kingdoms passed without question to Æthelred.

It was during the reign of Æthelred that the Danes first established themselves permanently in the country. In 867 Ingvar and Hubba, said to be the sons of Ragner Lodbrog, a great Scandinavian hero, invaded England. Legend says that this invasion was intended to exact vengeance for the death of their father, who had been cruelly put to death by Ella of Northumberland. There are chronological difficulties in the way of accepting this story, which are increased by the fact that the Danish landing was really in East Anglia. Thence, in 867, they advanced into Northumbria and took York. The anarchy in which Northumbria lay, caused by the rival claims of Osberht and Ella to the throne, rendered its conquest easy. In 868, they marched towards Mercia, and took Nottingham. Burhred, the King of Mercia, then implored the aid of Æthelred and his brother Alfred, who so far succeeded that they drove the Danes back to Northumbria. From thence, in 870, an invasion, under many leaders, whose connection is not very clear, was directed against East Anglia. They were there joined by Guthrum, another Danish leader, and their combined forces pressed victoriously onwards through Croyland, to Peterborough, Huntingdon, and Ely. After defeating the English at Thetford, they took Edmund, the Saxon King of East Anglia, prisoner, and, upon his refusal to accept the pagan religion, put him to death. For his constancy he was honoured with the title of Saint Edmund. East Anglia was thus completely in possession of the Danes, and Guthrum took to himself the title of king. East Anglia became henceforward for some time the principal point of Danish settlement in England. From thence the invaders passed into Wessex, under the command of Bagsecg and Halfdene. They were vigorously met by Æthelred. They pushed on, however, as far up the Thames as Reading, near which town a series of battles was fought,—at Englefield, where the Danes were beaten; at Reading, where the fortune of the day was changed; and subsequently at the great battle of Ashdown, where the victory of the English was regarded as being due to Alfred, who, being in command of half the army, attacked and defeated the enemy, while his brother was losing the precious moments in prayer for success. Though the victory of Ashdown was complete, it did not close the war. Almost immediately afterwards we hear of battles at Basing and at Merton, in

Æthelred. 866-871.

Danish conquest of
East Anglia. 870.

which the Danes were again successful. These battles took place just before the death of Æthelred.

He was succeeded at once by his brother Alfred. Another victory of the Danes at Wilton compelled Alfred to make peace. For a time the Danes withdrew from Wessex, and employed their energy in subjugating Mercia. Burhred, who had married Alfred's sister, was driven from the throne, and retired to Rome to die. A Danish agent, named Ceolwulf, was put in his place, and the country laid under heavy contribution. But Ceolwulf in his turn was displaced, and the Danes took possession of much of the country themselves, conquering among other places the five great towns, Lincoln, Nottingham, Derby, Leicester, and Stamford, known as the five Danish Burghs, or, with the addition of York and Chester, the seven Burghs. They also carried their invasions northward, and Cumberland and part of Strathclyde were overrun and peopled by them, under the command of Halfdene. Nor was the treaty with the East Anglian Danes permanent. Guthrum sailed round the coast and captured Wareham and Exeter. To oppose them on their own element, Alfred introduced a new form of ship, of greater size and length than had hitherto been used, and succeeded in winning a great naval victory in Swanage Bay. But the Danish forces were gradually closing round him. London and Essex had been taken, and a colony of Danes had conquered South Wales. At length, attacked in all directions, his kingdom of Wessex was practically limited to the country of the Somersætas; and, unable to make head against his enemies, the King took refuge among the impassable morasses of the river Parret. It is during this time of his exile that the well-known story of the burnt cakes is told. But while apparently completely beaten, Alfred succeeded in gathering a new army, issued from his seclusion, and attacking the Danes at Edington (878), near Westbury, completely defeated them. The consequence of this battle was the Treaty of Wedmore. By this treaty the kingdom of East Anglia was surrendered to the Danes, and a line was drawn to separate their kingdom from that of Wessex. This line from the Thames ran along the Lea to Bedford, then along the Ouse till it struck Watling Street, and then followed Watling Street to the Welsh Border. The greater part of Mercia was thus restored to Wessex. In exchange, Anglia and Mercia beyond this line were ceded to the Danes, who were to hold them as vassals of the West Saxon king, and who were to become Christians. The limits of

Alfred. 871-901.

Treaty of Wedmore.

their occupation are still to be traced by the occurrence of the termination “by” in the names of the towns; it was in many instances appended to the name of the Danish holder of the manor. Guthrum, on his baptism, took the name of Æthelstan, and many difficulties in the chronology of the legends of the time may be solved by supposing that the Æthelstan mentioned in them is Guthrum, and not the Æthelstan who reigned in the year 925. This treaty, although it curtailed the supremacy of Wessex, made the kingdom in fact stronger, and secured a temporary rest for the whole of England. Mercia, that part of it at least which remained English, was governed by its Alderman Æthelred, and by the King’s daughter Æthelflæd, known as the Lady of the Mercians. On the death of Gutred, the Danish King of Northumbria, Alfred re-established his power there, and the peace and prosperity of England were further increased by the fact that the energy of the Danes was for the present chiefly directed against France and Belgium. Guthrum died in 890, and though the treaty was confirmed by his successors, the defeat of the Danes in Belgium threw fresh invaders into the kingdom. In 893, Hasting, a well-known sea-rover, in alliance with the Anglians and Northumbrians, committed fresh ravages in all directions; but at last, having ventured up the Lea, Alfred hit upon the expedient of draining the river, and leaving their ships aground. After this they were glad to retreat, but lesser expeditions were constantly vexing the coast. The reign of Alfred is thus divided into two periods of Danish war, between which, and at the close of his life, there occurred intervals of peace.

It has been usual to attribute to Alfred most of the marked peculiarities of English civilization, the formation of shires, the establishment of juries, and so on. Such assertions will not bear examination. As a lawgiver, he collected the laws of the three principal states over which he ruled—Kent, Mercia, and Wessex—which had been already recorded by the Kings Æthelberht, Offa, and Ine. As a warrior he was on the whole victorious, and understood the necessity of establishing a fleet, which he appears to have constructed on a different principle from that of the Danes, the ships being longer, and serving less as mere stages on which to fight. As a governor he was impartial and strict; his police was severe, the system of mutual responsibility became universal, and under him the idea of morality began to mingle with the idea of injury to the commonwealth, which had been the Saxon notion of crime. His son Eadward, who succeeded him, was probably

Appreciation of
Alfred’s character.

as great as his father, but he had not the love of literature which forms the marked characteristic of Alfred's public life. It has been questioned whether Alfred could himself read; however this may have been, he was so conscious of the necessity of literature for the people that he set himself to work to make translations for them. "The History of the World on Christian Principles," by Orosius, Bede's "History of the Anglo-Saxon Church," and Boethius' "Consolation of Philosophy," were the works he translated. Besides his own literary work, he established conventual schools at Shaftesbury and Athelney, and probably a more general one at Oxford. The love of the people, whom his indefatigable energy saved from their barbarous and pagan invaders, has attributed to their hero an original genius of which there are no distinct proofs. What is really known of him is, that he was an able, honest, persevering governor, gifted with that power and habit of method and organization which is perhaps more useful in advancing early civilization than greater and more splendid gifts. Upon Alfred's death, though England, as a whole, had suffered by the loss of the country granted to the Danes, or, as it was called, the Danelagu, Wessex had assumed a position of superiority, and was regarded as the representative state of the English. This position it fully vindicated during the reigns of Eadward, Alfred's son, who succeeded him, and of the four next kings, till the kingdom of Wessex grew to be the kingdom of England, and exerted an imperial supremacy over the whole island.

Eadward's first difficulty was with his cousin Æthelwulf, the son of Alfred's elder brother Æthelred. This prince claimed the throne. He landed in England, was driven to Northumbria, where he was chosen king, and then, in company with Eohric, the King of East Anglia, marched up the Thames to Cricklade. He was however defeated, and with his ally killed by a portion of the English army near the Ouse. The consequence was the renewal of the acknowledgment of the supremacy of Wessex by Guthrum II. of East Anglia. In conjunction with his sister, the Lady of the Mercians, Eadward attempted to secure himself from further molestation by the erection of numerous stone castles. These castles, which seem to have been built on a new and better plan than any before erected, became also in many instances the origin from which towns sprang; for laws were passed creating them into markets, and forbidding bargains to be made without the walls. Some sort of monopoly

Supremacy of
Wessex.

Eadward the Elder.
901-925.

of trade was thus secured for fortified posts. On the death of Æthelflæd, Mercia, both Anglian and Danish, submitted to Eadward's authority. He continued the active government of his sister, and went on with her work of fortress-building. An invasion by the Danes of Northumbria in conjunction with the Welsh, who hoped to find Mercia unguarded, was signally defeated. The Welsh kings swore alliance to Eadward, and the Danes of Northumbria, and even the Kings of Scotland and Strathclyde, acknowledged him as their "father and lord." Eadward was thus in fact master of the whole of England, and had completed more thoroughly the work of Ecgberht. The greatness of his position is clearly marked by the marriages of his children with the greatest Princes of the Continent. One married Charles the Simple of France, a second Hugh the Great, Count of Paris, a third Otto I., Emperor of Germany.

The greatness Eadward had thus secured descended to his son Æthelstan, with whom the grandeur of the Saxon monarchy reached its highest point. He married one of his sisters to a Northumbrian prince, Cytric, receiving his allegiance for Benicia from the Tees to Edinburgh, and, on the death of Cytric, incorporated the country with his own dominions. Cytric's two sons fled, the one to Ireland, where the Danes received him willingly, the other (Guthrith) to Constantine, King of Scotland. The consequence of the escape of these princes became evident in after years. In 934, Constantine and his heir Eorca, Owen or Eugenius, King of Cumberland, made war upon England, but were defeated and compelled to acknowledge the supremacy of Æthelstan. The attention of the English King was subsequently drawn abroad, where he upheld the cause of his nephew, Louis de Outre-Mer, son of Charles the Simple, against the attacks of his brothers-in-law, the German Otto and Hugh of Paris. It was while thus employed that the Scotch kingdoms again rose in insurrection. A great conspiracy against Æthelstan appears to have been formed, at the head of which were Anlath, son of that Guthrith who had fled to Scotland, Constantine, Owen, and several princes of the Danes from Ireland. Their object was the re-establishment of the Danish power in Northumbria. The attempt was completely thwarted by the great battle of Brunanburh, near Beverley, in Yorkshire. Not long after this decisive victory Æthelstan died. His splendid reign is further marked by legislation of a more original description than that of his predecessors. He ordered, among other things,

Æthelstan. 925-940.

Battle of
Brunanburh. 943.

that every man should have a lord who should be answerable for him to justice, and rendered more systematic the arrangement of mutual responsibility, which appears to have been one of the principles of Saxon police.

His younger brothers, Eadmund and Eadred, followed in his footsteps, defeating the Northumbrian rebels, who from time to time elected kings of their own, but were completely conquered by Eadred. He so thoroughly incorporated the country with his own, that its ruler could no longer claim the title of king. Both Bernicia and Deira were bestowed as an earldom on Osulf, who had assisted in the conquest of the rebels, and remained in the hands of his family till the Norman Conquest. Eadmund also maintained his supremacy over Scotland, with which country his relations were of a very friendly nature, as he granted a part of the kingdom of Strathclyde, consisting of Cumberland and Galloway, to King Malcolm, to be held by military service.

Eadmund. 940-946.

Eadred. 946-955.

The policy of Eadred and of his successors seems so closely connected with the rise of Dunstan, that it may be justly attributed to him. The monkish historians, to whom we owe our knowledge of this great man, have overlaid his history with mythical stories, and have given him a character and policy to suit their own purposes. In their eagerness to secure the name of the greatest statesman of the age in support of their pretensions against the secular clergy, they have drawn him as a youth of miraculous gifts, of severe monkish asceticism, whose claim to greatness consisted in the establishment of the Benedictine rule. In the same way they have painted his opponent King Edwy [Eadwig] in the blackest colours. The common story tells us that, after a childhood passed in learning, so deep as to excite a suspicion of magic, illness drove Dunstan to the cloister at Glastonbury; that he there established the Benedictine rule, entering with such vehemence into its spirit that his asceticism almost turned his brain. On the accession of Edwy, the young king, it is said, deserted the assembly of the nobles, to pass his time in the company of the beautiful Ælfgyfu [Elgiva], his mistress. Dunstan is represented as violently dragging the unworthy king back to his proper place, as securing the banishment of Ælfgyfu, and with his partisans cruelly putting her to death upon her return. Edwy is then

Rise of Dunstan.

described as raging fiercely against all the monks in his kingdom. In truth, it is in politics rather than in ecclesiastical discipline that Dunstan's greatness must be sought, and he must take his place in history rather as a conciliatory and patriotic governor than as an ascetic and violent churchman.

Born at the beginning of King Æthelstan's reign, and trained partly at Glastonbury, where he found and studied books left by wandering Irish scholars, and partly at the King's Court like other young nobles of the time, an illness induced him to devote himself to the Church. His interest secured him the Abbey of Glastonbury at the early age of seventeen. He shortly returned to the Court, became the King's treasurer, and as an influential minister joined himself to the party which he found pre-eminent during the reign of Eadred. That king was a constant invalid, the influence of the Queen Mother was paramount, and she was supported by the chiefs of East Anglia and those whose views were national rather than provincial. The kingdom of Northumbria was in a state of ceaseless confusion. Again and again the Danes and Ostmen raised insurrections there. Wulstan, the Archbishop of York, with constantly shifting policy, at one time supported the insurgents, at another persuaded the Northern Witan to submit to Eadred. At length, in a final insurrection, he was overcome and imprisoned. The affairs in Northumbria had to be settled. It is here that the national policy of the dominant party made itself felt. Contrary to the views of the Wessex nobles, who would have wished for active interference of the government, the kingdom was reduced to the condition of an earldom under Osulf. But English supremacy being thus established, Wulstan was released, and self-government both in Church and State permitted. This conciliatory policy was interrupted by the death of Eadred.

The new King Edwy, nephew of Eadred, was a mere child, and a palace intrigue, headed by Æthelgyfu and her daughter Ælfgifu, who had obtained influence over the lad, drove the Queen Mother Eadgyfu from the Court, and established the power of the Wessex party.

Edwy. 955-957.

Eadgar. 957-975.

Unpopular among the Wessex nobles and in his own monastery, Dunstan was driven abroad, and took refuge in Ghent. But his party was still strong in England. Indignant probably at a violent resumption of grants from the Folkland, the nobles of England, with the exception of Wessex, set up Edwy's younger brother Eadgar as a rival king, and were sufficiently

powerful to oblige Edwy to divide the kingdom and content himself with the territories of Wessex south of the Thames. Dunstan was recalled by his partisans. He received from King Eadgar the sees of Rochester and of London; and when, on the death of Edwy, Eadgar succeeded to the undivided sovereignty of the kingdom, Dunstan rose with him, and became his chief minister and Archbishop of Canterbury.

As minister, Dunstan had both Church and State to reform. In both, decay had made great progress. The increased importance of the English King had raised him to a position very different from that of the tribal monarch. Along with the King had risen his dependants, the old members of the Comitatus. His Thegns or servants, rendered rich by grants of the public land, had gradually succeeded the old nobility by birth, of the German races. The troubled situation of the country had driven the freeholders more and more to seek safety by placing themselves and their land in a state of dependence on the Thegns. Even as early as Alfred every man was obliged to have a lord. At the same time the spirit of provincialism was strong, each district which had been a separate kingdom wishing to maintain its own independence. Dunstan seems to have understood that a change in the character of the monarchy was inevitable, and that national unity could only be secured by upholding that change, placing the monarch in what may be regarded as an imperial position over the subject kingdoms, and allowing the separate districts as much self-government as possible. Within the kingdom of Wessex itself, and perhaps of Mercia also, he established a strict police, and suppressed disorder with a strong hand. Beyond that, the largest freedom was permitted. Thus, the subordination of Northumbria was further secured by its division into three parts. The district between the Tees and the Humber was intrusted to Oslac. From the Tees to the Tweed remained in the hands of Osulf, while the Lothians between the Tweed and the Forth were given out on military service to the King of Scotland; and in subsequent history it was this district, peopled with English and Danes, which formed the civilized centre of the Scottish kingdom. But, when the supremacy of Wessex was thus secured, the Danes of the North were allowed to keep their own customs and make their own laws. Similarly, friendship with the Northmen of Ireland was maintained, and through their friendship the King was enabled to keep up a powerful fleet, which constantly sailed round the

Dunstan's
government.

Division of
Northumbria.

coasts, and kept them free from foreign invasion. The tradition that Eadgar was rowed upon the Dee to Chester by eight tributary kings, whether the fact be true or not, points to the imperial position which Dunstan had secured for him. In the Church the same policy was pursued. The great disturbances of the kingdom had thrown much power into the hands of the Church, the most permanent element of society. This increase of influence had been followed by an increase of secularity. The bishops became statesmen, and even commanders of armies. The older form of monasticism died out. Marriage of priests was constant. Livings began to be handed on from father to son. There was some chance of the establishment of an hereditary priestly caste. In Ghent, Dunstan had become acquainted with the Benedictine rule lately established there. He saw its efficiency for securing discipline among the clergy. Like other strong rulers, he regarded anarchy with aversion, and was therefore anxious to introduce the rule into England. He intrusted the work to his friend Æthelwold, whom he made Bishop of Winchester, and to Oswald, whom he raised to the See of Worcester. In Wessex and Mercia he carried out his reform with vigour, even with violence: but, as in his secular government, he kept himself under the restraints of prudence. Thus, when Oswald was appointed Archbishop of York, he made no efforts to restrain the marriage of the clergy, and in Dunstan's own See he yielded to the prejudices of the people, and allowed the abbeys to continue in the hands of secular clerks. The title of Eadgar the Peaceful, and a reign of seventeen years unbroken by any great foreign war, attest the success of Dunstan's policy.

But with Eadgar's death, and the accession of his son Eadward, this prosperous state of things ended. For a time Dunstan held his own, but not without strong opposition. Again and again he had to plead his cause before the Witan. And at one synod, at Calne, it was intended to bring the matter to a crisis. Beornhelm, a Bishop of the Scottish Church, was brought forward as a champion by his enemies. His eloquence was carrying the assembly with him, and Dunstan could only appeal to heaven for assistance. Nor was that assistance denied; by accident or design, the floor of the upper chamber where the meeting was held gave way in that part where Beornhelm and his friends were seated, and they were hurried to swift destruction, while Dunstan's triumphant party remained uninjured on the floor above. But even

Eadward the Martyr
975-979.

Fall of Dunstan.

miraculous interferences did not suppress the enemies of the Prelate. A conspiracy, in which Ælfthryth [Elfrida], the mother of Ethelred, seems to have been chiefly engaged, was formed; and Eadward, returning from the chase, was killed at her castle at Corfe.

Eadward the Martyr, as his monkish chroniclers call him, being thus disposed of, his brother, Æthelred the Unready, ascended the throne. Dunstan, compelled to assist at the coronation, did so only to denounce curses on the new king. He had to withdraw from Court. His policy was at an end. Mercia and the North fell away from Wessex. The King's own character, at once weak and cruel, was not such as to inspire confidence; and we accordingly enter upon a period of almost inexplicable treasons, weakness, and disorder. The Danes reappear on the coast, and what has been spoken of as the third period of Danish invasion begins. The fleets were no longer merely piratical expeditions, but were commanded by kings of whole countries, and towards the end of the period the object was no longer plunder, or even settlement, but national conquest. The change was closely connected with the gradual consolidation of the three Northern kingdoms of Europe—Norway, Sweden, and Denmark, in each of which, as in England, one sovereign had now become paramount. The chief personage in these invasions is Swegen or Swend, son of the King of Denmark. In the year 982 he made his appearance on the English coasts, and Southampton, Chester, and London were either taken or destroyed. The kingdom was in no condition to offer a firm resistance. Internal dissensions had already begun. The King was at enmity with the whole of Dunstan's party. We hear of a fierce quarrel with the Bishop of Rochester. The allegiance of Mercia and Northumbria was more than doubtful. East Anglia, where resistance to a kindred people might have been least expected, alone succeeded in checking the Danes. There, under Brihtnoth, the great battle of Maldon was fought, which forms the subject of one of the greatest of the Anglo-Saxon poems. Such single instances of resistance were of no real avail. Sigeric of Canterbury, who had succeeded to Dunstan's position and policy, and was therefore by no means

Æthelred the
Unready. 979-1016.

Third Period of
Danish invasion.

Battle of Maldon.
991.

The first Danegelt.
994.

Æthelred's marriage
with Emma.

Massacre of St.
Brice. 1002.

Pernicious
influence of Eadric
Streona.

unfriendly to the Danes as the opponents of Wessex, induced the King to entertain a fatal plan of buying off the invaders. With the consent of his Witan, he raised £10,000, with which he bribed the Danish hosts. This was the origin of the tax known as Danegelt, which became permanent, and lasted till the reign of Henry II. The effect of such a bribe was naturally only to excite the Northern robbers to further efforts. Accordingly, in 994, Swegen and Olaf of Norway made their appearance, and England was assaulted by the national fleets of Denmark and Norway. Divided by faction, undermined by treason, and without a leader, the English knew no expedient but the repetition of bribes. Olaf, as a Christian, was indeed induced to return to his own country, but Swegen's invasions were continuous. Supported by the disloyal chiefs of the North, he ravaged in turn Dorsetshire, Hampshire, Sussex, and Kent. And when, in the year 1000, a temporary lull occurred, Æthelred, with a madness which seems almost inconceivable, insisted on quarrelling, first with the King of Cumberland, who is said to have refused the disgraceful tribute demanded of him, though willing to serve with his forces against the Danes, and afterwards with the Normans in France. An expedition undertaken against this people with ridiculous ostentation was easily defeated. A peace was made, and hostility changed into alliance, cemented by the marriage of the King with Emma, a Norman Princess. In her train came certain followers, who obtained high office and military commands, and added a fresh element of weakness to already weakened England. But though contemptible in the field, with the craft and cruelty of a weak mind Æthelred planned the massacre of all the Danes in Wessex. Many of these were settled quietly in different parts of the country, or billeted and living on friendly terms with their landlords. On the 13th of November 1002, on the festival of St. Brice, the cruel plan was carried out. Among other victims was a sister of Swegen's who had become a Christian; she was put to death with circumstances of unusual barbarity, it is said, at the instigation of Eadric *Streona*, or *the Gainer*. This man henceforward plays a prominent part in the history. Though of low birth, he had contrived to make himself the favourite of the King, whose daughter he subsequently married. Selfish, unscrupulous, and treacherous, his influence as the King's adviser was most pernicious; while, if it suited his own ends, he never hesitated to betray his master. So completely is he identified with the disasters of England, that there is scarcely any criminal act of the reign that is not traced to him. But

his repeated treasons do not seem to have destroyed the trust which Æthelred and his nobler son Edmund placed in him. After the massacre of St. Brice the Danes naturally sought revenge. Exeter was taken by the treachery of Hugh the Frenchman, one of Emma's followers. Wiltshire and Salisbury were deserted by the traitor Ælfric. Again East Anglia, under Ulfcytel the Ealdorman, made the only show of resistance; but here too, treason, not of the commander but of the soldiers, themselves of Danish origin, proved fatal. Famine and civil quarrels added to the misery of the English. Again Eadric is visible, ruining rival Thegns, and advising still further use of bribes. In 1006, he had succeeded in getting made Ealdorman of the Mercians. His family rose with him, and in 1008, when at last a great national fleet was collected, the quarrels of his brother Brihtric and his nephew Wulfnoth destroyed its utility.

In the same year, a fresh host, one division of which was commanded by Thurkill or Thurcytel, one of the most formidable of the Danish sea kings, made its appearance. In 1010, the English were again defeated at the battle of Ipswich, and the country was in a condition of absolute collapse. Mercia and Wessex itself were overrun. The cause of Æthelred looked so hopeless, that Eadric the Gainer thought it time to change sides, and after the capture of Canterbury and the death of the

Thurkill's
invasions.

Swegen's invasion.

England submits to
Swegen. 1013.

Archbishop St. Alphege, the Witan was collected under Eadric, without the participation of the King, and a further large tribute paid, while by some arrangement, probably the cession of East Anglia, Thurkill was drawn to the English side. This step of Thurkill seems to have opened Swegen's eyes at once to the inutility of single invasions, and to the possibility of himself effecting some similar arrangement. He felt confident of the support of Northumbria and Mercia against Wessex. He therefore moved his fleet to the Humber, and advanced to York. He had not miscalculated. The whole of the Danelagu joined him, and with this assistance, leaving his son Cnut behind him in command of the fleet in the Humber, he advanced into Wessex. His success was constant. Oxford was taken, and the royal town of Winchester. At Bath the Danish conqueror received the submission of the Thegns of the West. London, which we find constantly rising in importance, alone held out, nor was it till Æthelred deserted the city that it surrendered. But then, there being no longer any opposition, Swegen was, in fact, King

of England. Æthelred sought and obtained an asylum in Normandy, till recalled by Swegen's death the following year.

The Danes acknowledged Cnut as King, but the bulk of the English wished to retain the House of Cerdic, if Æthelred would pledge himself to rule better. This he promised to do, and his cause for a time was successful. Cnut had to retreat to his ships. Nevertheless, we hear of another large tribute, but it was paid probably to a fleet of Danish auxiliaries serving upon the English side. Eadric had of course again joined the victorious party; but again his persistent treachery was the destruction of the country. He enticed Sigeferth and Morkere, Thegns of the Five Danish Burghs, to Oxford, and there murdered them. Sigeferth's widow was kept a prisoner, and taken in marriage by Edmund Ironside, Æthelred's son. This prince thus acquired possession of the Five Burghs, and secured an influence which enabled him to take up a position in opposition to Eadric. On the renewal of the invasion by Cnut both Eadric and Edmund collected their forces; but, angry at the new rivalry he was experiencing, Eadric led his troops to join Cnut. Wessex was thus thrown open, and by a strange inversion of affairs, Edmund, with Utred of Northumberland, occupied the northern part of England, while the Danes, under Cnut and Eadric, held Wessex and the South. In 1016, Æthelred died.

Restoration of
Æthelred. 1014.

The Witan of the South immediately, under the influence of the conquerors, elected Cnut as his successor, but London and the rest of the Witan chose Edmund. It was plain that Wessex could acknowledge Cnut only through fear, and thither Edmund betook himself, and collected troops. As if to prove what the English could do if well commanded, in a few weeks he fought, on the whole successfully, five great battles. At Pen Selwood in Somerset; at Sherstone, where the English were only prevented from winning by a trick of Eadric's, who, raising the head of another man, declared it was the head of the slain English king; at Brentford; and afterwards, when Eadric had again changed sides, at Otford in Kent; and Assandun in Essex. In this last battle the whole forces of England were arrayed. The sudden withdrawal of Eadric, who was commanding the Magesætas, or men of Hereford, secured a victory for the

Edmund Ironside.
April to Nov. 1016.

Five great battles.

Division of
England.

Danes, and Edmund had to retreat across England into the country of the Hwiccas, or Gloucestershire. Not yet wholly beaten, he was preparing for a sixth battle, when he was persuaded to make an arrangement similar, though not identical, with that which Alfred had made with Guthrum. He surrendered to Cnut Northumberland and Mercia, retaining for himself Wessex, Essex, East Anglia, and London. On St. Andrew's Day of the same year, Edmund Ironside died, a misfortune, like most other acts of villainy of the time, attributed to Eadric. With him fell the hope of the English. The treachery of Eadric, the folly of Æthelred, met with their reward, and Cnut was acknowledged King of England.

Indeed, Edmund's sons were so young that it was not probable that the Witan would elect them. The only other claimant was Edwy, Edmund's brother. To secure himself against him, Cnut is said to have employed Eadric to put him to death; and though he escaped on that occasion, he was certainly outlawed, and all the old members of the royal family were kept abroad. The children of Æthelred and Emma, Edward and Alfred, were in Normandy with their mother. The children of Edmund Ironside, Edward and Edmund, were sent first to Sweden, and then to Hungary, where Edward married Agatha, niece of the Emperor Henry II. Cnut's object, on finding himself King of England, appears to have been to obliterate, as far as possible, the idea of conquest, to rule England as an English king, and making that country the centre of his government, to form a great Scandinavian Empire. To this end, pursuing the policy of Dunstan, he divided England into four great earldoms, representing the old kingdoms. Northumberland and East Anglia were intrusted to Danes; Mercia was given to Eadric; Wessex he kept in his own hands. Eadric's influence had compelled Cnut thus to promote him, but he so mistrusted him, that within a year he caused him to be put to death. In the same year he sent for Queen Emma from Normandy, and married her, though she must have been much older than himself, with the object apparently either of connecting himself with the late dynasty, or of securing the friendship of the Normans. The next year the Danish fleet was sent home. Englishmen were again put in high office. Thus Leofric was made Earl of the Mercians, and Godwine, of whom we now first hear, and whose origin and rise is variously related, was made Earl of Wessex, presumably the second man in

Cnut. 1017.

The four Earldoms.

Cnut's patriotic government.

the country. Thus, too, Cnut flattered the feelings of the English by moving the body of St. Alphege, who had been killed by the Danes twelve years before, with all honour to his own Church at Canterbury; and thus, too, he did not scruple to fill the English bishoprics with Englishmen, and even to promote them to high office in Denmark. During his reign England was at peace within its own borders, while Scotland was brought to submission. In 1031, Malcolm, King of the Scotch, and two under-kings, did homage to the English King. A strong, well-ordered government was established, supported for the first time by a standing body of troops, known as the House-carls. Early in the reign Eadgar's law had been renewed with the advice of the Witan, and, in 1028, Cnut promulgated a code of his own, which is little else than repetition of former laws and customs. But the proof of his good government is this, that just as the law of the great Eadgar was looked on as typical, and demanded by Cnut's Witan, and as after the Conquest the Confessor's law was demanded, so we find the people of the North demanding Cnut's law,—in each case law meaning system of government. His importance as a king is marked by the respect shown him on his pilgrimage to Rome in the year 1027. There, as he tells his people in a letter which he sent them, he negotiated with the Pope, the Emperor, and King Rudolph of Burgundy, for the free passage of English pilgrims and merchants; he received large gifts from the Emperor, and made the Pope promise to lessen his extortions upon granting the Pallium or Archiepiscopal cloak. His daughter by Queen Emma, Gunhild, was, moreover, thought a fitting wife for Henry, afterwards the Emperor Henry III. Cnut died still young in 1035.

With him fell his plans, both of the Scandinavian Empire and of good government in England. His sons, Harold and Harthacnut, in no way inherited his greatness; they appear to have been little better than savage barbarians. The succession was disputed between them. Godwine and the West Saxons obtained the South of England for Harthacnut, while Harold reigned in the North. But as Harthacnut did not come to England, but remained in his kingdom of Denmark, Godwine was the practical ruler. This great Earl, whose sympathies were wholly national, was accused of putting to death Alfred, the son of Æthelred and Emma, who seems to have taken advantage of the

Disputed succession.

Importance of Earl Godwine.

Harold. 1037.

Harthacnut. 1040.

absence of Harthacnut to aim at re-establishing himself in Wessex. But as the actual murderers were the men of Harold whom Godwine had opposed, it would seem that the charge was a false one. The continued absence of Harthacnut enabled Harold to secure the whole of the kingdom, over which he reigned for two years. On his death, in 1040, Harthacnut stepped unopposed into his position. His short reign was marked by no great events. Godwine, having cleared himself by oath and by compurgation (in which a large number of Earls and Thegns joined) of the charge of murdering Alfred, remained in power. A tyrannical use of the King's House-carls in collecting a tax produced an outbreak in Worcester, which was punished with brutal severity. And when the King fell dead, while drinking at a bridal feast, the English were glad to be rid of a line of such barbarous sovereigns, and to restore the House of Cerdic in the person of the late king's half-brother Edward, who, in the absence of direct descendants of the Danish house, entered almost unopposed on the kingdom.

It was the eloquence of Godwine which overcame the slight opposition offered to Edward's election, and secured him the throne. This nobleman thus reached the summit of his power, and two years afterwards his daughter Edith became the King's wife. Edward's education and training had rendered his tastes and policy as decidedly French as those of Godwine were national. There thence arose, and continued throughout the reign, a constant enmity between the two parties—the Frenchmen, whom Edward brought over in great numbers and employed particularly as bishops, and the national party, headed by Godwine and his sons. It is the progress of this quarrel which forms the history of the reign, side by side with the efforts of Godwine to push his family prominently forward in opposition to the family of Leofric, Earl of Mercia. On the one hand, the King lavished favours upon his foreign followers. A Frenchman, Robert of Jumièges, became Bishop of London, and afterwards Archbishop of Canterbury; Ulf, another Norman, became Bishop of Dorchester in Oxfordshire; Ralph, the son of Edward's sister and the Count of Mantes, was made an Earl; and Eustace of Boulogne, her second husband, was loaded with honours. On the other hand, Godwine succeeded in securing for members of his own family the earldoms of Somersetshire

Edward the Confessor. 1042.

Rivalry between Godwine and the French party.

Godwine banished. 1051.

Return and death of Godwine. 1052.

and Herefordshire, and of the East and Middle Angles. The crisis of the rivalry at length arrived. It arose from an outrage committed by the followers of Eustace on the citizens of Dover. The townsmen rose against the insolent Normans and drove them from the city; and when Godwine, as Earl, was called upon to punish the citizens, he positively refused unless they were fairly tried before the Witan. Both sides took up arms,—Godwine and his sons on one side; the King, with Siward of Northumberland, Leofric of Mercia, and his own French partisans on the other. The armies faced each other in Gloucestershire; but Godwine, unwilling to press matters to extremity, accepted the proposal of Leofric that the question should be referred to the Witan. When the Witan assembled, the King was there with a great army. Overawed by this force, the Witan, recurring to the old charge against Godwine and to a late act of violence on the part of his son Swend, ordered Godwine and his sons to appear before them as criminals. This they refused to do unless hostages were given, and as this demand was refused, they would not appear, and were outlawed. Godwine and three sons retired to Baldwin of Bruges, Leofwine and Harold to Ireland. The French party were triumphant. Robert, as we have seen, was made Archbishop, William, another Frenchman, succeeded him as Bishop of London, and Odda, probably an Englishman in the French interest, was given the western part of Godwine's earldom. Harold's earldom was given to Ælfgar, son of Leofric. At the same time, to complete the French influence, William of Normandy came over to England, and, as he always declared, received a promise of the succession from his cousin Edward.

The administration of foreigners was so unpopular and so unsuccessful, that Godwine and his family thought that an opportunity had arisen for their return. Unable to procure their restoration by peaceful means, they determined upon using force; and after various expeditions, but feebly opposed by the English, who at heart wished them well, Godwine found himself strong enough to sail up the Thames; and so preponderating was the feeling of the country in his favour, that, as the King refused justice, it was agreed that the matter should be referred to the Witan. What their decision would be was not doubtful, so the French prelates and earls and knights, who had been building feudal castles, at once fled, and Godwine and his sons came back in triumph. Stigand, a priest, who had been originally appointed by Cnut to an abbey raised at Assandun in memory of the Danish victory over Edmund Ironside, and who had acted as principal mediator,

was elected to the Archbishopric of Canterbury, left vacant by the flight of Robert. The next year Earl Godwine died suddenly, while at dinner with the King.^[1] His death restored the balance between the two great families. While Harold succeeded to the earldom of the West Saxons, and the vacant earldom of Northumbria was given to his brother Tostig, East Anglia was restored to Leofric's son Ælfgar. Earl Siward of Northumbria had died in 1055.^[2]

The succeeding years are marked by the gradual increase of the power of Harold and his family. In 1055 Earl Ælfgar was outlawed, and his earldom given to Gurth, Harold's brother. The exiled Earl, making common cause with Griffith [Gryffydd] of Wales, defeated Ralph, the French Earl of Herefordshire. To repair this disaster the war was intrusted to Harold; he prosecuted it with success, and Herefordshire, which he had thus rescued, was added to his earldom. The death of Leofric still further increased the power of the House of Godwine, although Ælfgar, the late Earl, was allowed to succeed him; and finally, Essex and Kent were formed into an earldom for Leofwine, the remaining brother of Harold. Godwine's sons now possessed all England, with the exception of Mercia. The last probable heir to the throne—the Ætheling Edward, the son of Edmund Ironside—had been brought over from Hungary, but had died almost immediately after reaching England. And when, in 1063, Harold, by employing his men as light troops, succeeded in the final subjugation of Wales, his greatness was such that he must almost certainly have been regarded as the next king. Three years afterwards, in January 1066, King Edward, the last male descendant of Cerdic who reigned in England, died. His last year had been troubled by a great insurrection of the Northern counties against the rule of Tostig. The house of Leofric had had a stronghold in the North, and Tostig's injudicious vigour in attempting to reduce the barbarous population to order had excited great discontent. His energy seems more than once to have led him into murder. The Northumbrian therefore deposed him, and elected Morcar [Morkere], the grandson of Leofric, in his place. His brother, Edwin of Mercia, who had succeeded his father Ælfgar, made common cause with him; and Harold, whose policy was always conciliatory, found it necessary to persuade the King to confirm Edwin and Morkere in their possessions.

Importance of Earl Harold.

Death of Edward. 1066.

Tostig retired as an exile to Bruges. While England was thus troubled, the King died—a good man, devoted to the Church and the monks, and therefore afterwards canonized, but as a king unfitted by his pliant character, and more especially by his love of foreign favourites, to rule over England at such a difficult crisis.

The Witan at once assembled, and used its power of election. This power was usually exercised within the limits of the royal family; but on this occasion, as there was no claimant of the royal house but Edmund Ironside's grandson, the child Eadgar, the Witan looked beyond their usual limit, and elected almost

Harold elected king.
1066.

Claims of William
of Normandy.

unanimously the great Earl Harold. Though thus King of England by the most perfect title, he found himself opposed by two enemies. On the one hand was his brother Tostig, the exiled Earl of Northumberland, who had been a favourite of the late king, and had perhaps himself hoped to be elected; and upon the other Duke William, who, out of a variety of small and insufficient pretexts, had constructed a very formidable claim to the crown of England. He asserted that the Confessor had promised him the kingdom, that he was the nearest of kin, and that Harold had himself sworn to him to be his man, to marry his daughter, and to own him allegiance. The circumstances under which this last event had taken place are not very certain; but it seems to be true that Harold, on some occasion, had been shipwrecked on the coast of France and taken prisoner, and held to ransom, according to the barbarous custom of that day, by Guy, Count of Ponthieu, lord of the country. The intervention of William as superior lord rescued him from his disgraceful position. He spent some time in friendly intercourse at William's court, and there probably, as was not unusual, made himself the Duke's man, and did homage. Such an act could be only personal, and could have nothing to do with the kingdom of England, and even as a personal tie was not very binding. It was his knowledge of this which induced William to play the well-known trick upon Harold. When the Earl had taken what he believed to be only a common oath of homage, the cover of the table on which his hands had been placed was withdrawn, and he found he had been swearing upon most sacred relics. With regard to the other claims, it may be said that Edward the Confessor, in accordance with the constitution of England, could not promise the crown to any one, and, moreover, had nominated Harold on his deathbed; while, although William

was the cousin of the late king, it was only through Edward's Norman mother, Emma, that he was so. But when put forward artfully, and mingled with coloured accounts of the injuries suffered by the French in England at the return of Godwine, these claims seemed very plausible to the French, especially when backed by the influence of the Papal See wielded by Archdeacon Hildebrand, afterwards Pope Gregory VII. The Papal support was won partly by representing Harold as a perjured man, partly because the Normans in Italy were regarded as the great champions of the Papal See, but chiefly because Godwine and Harold had throughout sided rather with the party of the secular clergy in England than with that of the monks, [3] and had been national in their views with regard to the Church as well as in other matters. The Pope, Alexander II., was led by Hildebrand to see the opportunity offered, and expressed his approbation of the expedition by sending a consecrated ring and banner.

William, immediately after the death of the Confessor, sent to demand the crown, which was of course refused. He then proceeded to collect troops, not only his own Norman feudatories, but also large bodies of adventurers from other parts of France. Aware of the intended invasion, Harold collected his forces, and occupied the Southern coast. But William was so long in coming, that Harold's militia army, anxious to return to their agricultural works, and straitened for food, could not be kept together. He was left with his immediate followers, his House-carls and Thengs. Just then, when his great host had disappeared, news was brought to him that Tostig had invaded the North of England. Foiled in a weak attempt upon the South near Sandwich, and refused aid by William of Normandy, Tostig had fallen in with the fleet of Harold Hardrada, King of Norway. This king was a great warrior, who had served in the armies of the Byzantine Empire, and fought in Africa and Sicily. He was easily persuaded to join Tostig, and reinforced by the Earls of Orkney, they together sailed up the Ouse, and reached Fulford on the way to York. Edwin and Morkere, the sons of Ælfgar, whose sister Harold had lately married, honestly opposed them, but after a severe battle they were beaten. Arrangements by which the North was to join Harold Hardrada were being made at Stamford Bridge upon the Derwent, when Harold, who had hastened with extreme rapidity from the South, fell upon the invaders. They were taken by surprise, and some, but slightly armed, were overcome; but

William's
preparations.

Tostig's invasion.

the bridge over the Derwent was held with determination, and a fierce battle was fought on the other side. The English were entirely triumphant, both Tostig and Harold Hardrada being slain. The Norwegian fleet was forced to withdraw. This was on the 25th of September.

On the 28th King William landed at Pevensey. Harold was still at York when the news reached him. He hastily gathered what troops he could round the nucleus of his own immediate followers who had been with him at Stamford Bridge. All the South of England joined him gladly, both from Wessex and East Anglia. But Edwin and Morkere, in their jealousy of the rival house, forgot their patriotism and Harold's good deeds to themselves, and deserted him. With such an army as he had, Harold took up his position upon the hill of Senlac, where Battle Abbey now stands. This hill runs out from the North Sussex hills southward like a peninsula. There Harold erected palisades, and arranged his men with a view to defensive action only. This step was rendered necessary by the difference of the armies; the English fought all on foot, a large proportion were irregularly armed militia, and the hand javelin—not the bow and arrow—was their national missile. The Normans, on the other hand, fought as chivalry on horseback, and had many archers. Once in the plain Harold's army might have been crushed by the charge of the mailed cavalry. But repeated charges uphill against an entrenched foe, stubborn and heavily armed, could not but wear out the mounted knight. Our descriptions are all from Norman sources, and the contrast between the religious Norman and the jovial Englishman is fully brought out. On the one side, the night is said to have been passed in prayer, and on the other in revelry. There were certainly, however, priests and monks upon the side of the English, and probably this story is a monkish exaggeration. Harold drew up his forces with his own picked troops upon the front of the hill, between the dragon banner of Wessex and his own banner adorned with a fighting man. The backward curves of the hill were occupied by his worse armed troops. He himself, with his brothers Gyrth and Leofwine, took their place beside the standard. The French advanced in three divisions,—the Bretons, under Alan, on the left; the Normans, under their Duke and his two brothers, Robert and Odo, Bishop of Bayeux, in the centre; the adventurers, under Roger of Montgomery, on the right. They galloped forward, preceded by Taillefer, a minstrel, tossing his sword aloft

Landing of William.

Battle of Hastings.
Oct. 14.

Death of Harold.

and singing songs of Charlemagne. But their efforts were vain. The heavy axe of the English hewed down man and horse if any reached the barricade, and the French had to draw back. The Bretons began the flight, and the Normans soon followed, but the English militia were not steady enough to withstand the excitement of victory. The veteran centre stood firm, but the troops opposed to the Bretons broke from their position in pursuit. William saw his advantage, rallied his troops, drove back the pursuers, and made a second vehement assault upon the barricade. The Earls Gyrth and Leofwine were killed, the barricade in part removed, but still Harold held his ground, and William had to have recourse to stratagem before he could secure a victory. His present comparative success had been caused by the accidental over-eagerness of the English. He determined to try whether he could not again induce them to break their line. The Normans turned in apparent flight, the English, heated by the long fight, rushed forward in pursuit. The Norman cavalry turned round and rode down their pursuers, and, driving them before them, again charged up the hill; while the archers, whose skill had been somewhat foiled by the shields of the English, were ordered to drop a flight of arrows upon the heads of Harold and his men. The plan was fatally successful; the battle was still stubbornly contested, though no longer in serried ranks, when Harold fell, pierced in the eye by an arrow. With him disappeared all hope of English success. His body was found, and buried under a cairn by the sea, till afterwards removed to his minster of Waltham.

STATE OF SOCIETY

449-1066

The chief interest in the Conquest is the change that it is always said to have exercised in the character of the institutions of England. It used to be asserted that the feudal system was introduced, and completed as a wholly new system to the English, after the Conquest; and Hume speaks of the division of the kingdom into so many knights' fiefs, into so many baronies, as if there were complete reorganization of the whole constitution. Modern inquiry tends to confirm what would naturally have been supposed, that the whole of the elements of the feudal system existed in England as in other Teutonic countries before the arrival of the Normans. The form which the civilization of the Scandinavian and Teutonic nations took seems to have been that of a collection of village communities, such as may be seen at work at present in India. The district occupied by such community was called the Mark, and was divided into three parts, in each of which every free member of the community had his share, but which were cultivated in strict accordance with the customary system of agriculture which no one might break. There was first the village, then the arable mark (cultivated land), then the common pasture, and beyond that the waste. Every freeman had a share in the arable and in the common pasture, but he was bound to sow the same crops as his neighbours, and to follow the same arrangement, which appears to have been simple and barbarous. The common fields, or mixed lands as they are called, were divided into three strips by broad grassy mounds; one was sown with autumn crops, one with spring crops, and the third left fallow. In the same way, though under somewhat varying rules, the grass mark was partitioned. Frequently all enclosures were removed at the close of the hay harvest, and the cattle grazed in common, as they were allowed

The Mark system.

to do also in the stubble of the arable mark. Lands were probably redistributed at certain intervals of time, and the power of devising hereditary property by will was strictly restrained. Traces of common fields cultivated on the threefold system, and of customary cultivation, are still to be found in England, and were plentiful in the last century.

But though this system would appear to have been common in nations of Germanic origin, it can be gathered from the Germania of Tacitus that other political institutions existed in Germany. Thus, the subdivisions of the Tribe were called Pagi, which seem to answer to the English Hundred. The Pagus was under the official chieftainship of an elective head called the Princeps, answering to the Saxon Ealdorman. This Pagus, which may perhaps have been originally a division of a hundred heads of families, supplied a hundred warriors to the host, a hundred assessors at the Judicial Court of the Princeps. Below this we come to the Vicus or township, which was probably organized upon the Mark system above described, or on some modification of it. The commanders in war, or Duces, were elected, probably from among the Principes, for each special occasion. It is, moreover, clear that private property had begun to exist. In pastoral life, where the common right of grazing would be the chief common privilege, there would be no difficulty in one man possessing more cattle than another. Neither would it be a great step to grant to such wealthier men, upon the redivision of the common arable mark, extra shares for the support of slaves or dependent freemen whom his wealth had attracted around him. There also existed a variety of ranks, which may be roughly divided into three classes,—the noble or *eorl*, who must have owed his nobility to birth; the freeman or *ceorl*, possessing his own homestead, his own share in the common land, and dependent on no man; and the *læt* or dependent workman, cultivating his lord's land. Besides these, there were actual slaves or *theows*, consisting of men who had lost their liberty either as captives, or for debt, or for some other easily conceivable causes. It does not appear that nobility of birth gave any additional political rights, although personal consideration was awarded to the noble. It was the possession of free land which made a man a full member of the tribe. The *læts*, however, were probably dependent only as regarded their lord, in

German
institutions.

Division of ranks.

The Comitatus.

Growth of
feudalism.

every other respect free. Thus, like other members of the community, their death had to be atoned for by the payment of a sum of money or *weregild*, although the sum was smaller than in the case of freemen. They probably formed a considerable part of the armed force of the nation. The class may have consisted originally of a conquered population of kindred blood, or of men who voluntarily put themselves into a state of dependency upon their richer neighbours for security, or because for some reason they had become landless. Side by side with this democratic constitution, there was a peculiar institution known as the *Comitatus*. Each Princeps was allowed to collect around him, under a tie of personal dependence, a body of professed warriors, who were bound to him by the closest ties of honour; and the importance of each chief must have depended in a great degree upon this following. In case of conquest, it would naturally be the duty of the conquering chief to see to the welfare of his followers, and to give them grants, which might either be grants in perpetuity, or only the right of present possession, and which would be drawn from the conquered land remaining over after its distribution among the body of freemen. To cultivate these grants, the comrades of the king would have had to employ their own dependants, and these dependants would settle in villages, which took the form of village communities, except that the rights, which in the free communities would be vested in the whole body of the freemen, were in this case vested in the lord. We here have the germ of the relation between vassal and lord. But this element of feudalism soon acquired greater strength. The conquering chief would take upon himself the title of king, claim descent from the gods, and make his line hereditary. As the position of the king advanced, the position of the comrade or *Gesith* would advance also. As the king of a tribe became the king of a nation his dignity would greatly increase, and with his that of his followers, who, as the court became more formal, would accept as honours duties about the household, and the word *Gesith*, comrade, changed into *Thegn* or servant. In times of war such nobles by service became natural leaders of the people, and the position of the chief men of the village proportionately sunk. So that there arose a class of nobles in immediate connection with the crown, possessing property not belonging to a village community, and exercising rights of lordship over its inhabitants. It is not difficult to see in what a superior position they were thus placed; what powers of encroachment they might have; and how willingly, in times of danger, village communities would put

themselves in the same position with regard to them, as that occupied by those settlers on the Thegn's lands, who had always acknowledged them as their lords. We have therefore two sources from which feudalism might have arisen; the village headman, in accordance with what seems to be a general law, as his powers came to be legally defined (especially in the matter of collecting the king's taxes), would be regarded as the hereditary lord of the village, and would obtain the right of permanently enclosing his share of the common land; while the king's Thegn, side by side with him, would plant his own subject villages, and accept by what is called *commendation* the supremacy of such villages as might offer it to him.

The Saxons then brought with them, in their invasion of England, their threefold division of rank, their association or township, their Pagus or Hundred, the Mark system, the principle of election to public functions, and the Comitatus or personal following of their chiefs. The conquering Principes or Ealdormen became kings. The country in all probability was divided out with some degree of regularity between villages, similar in constitution with those of Continental Germany. There was no necessity for these apportionments being equal. But a certain number of villages, whatever their property was, were divided into Pagi or Hundreds. This explains the inequality of those divisions. The unoccupied land was left in the king's hands to reward his chief followers. On these demesnes, and on the public lands, the *læts* found their homes, with such of the conquered race as remained; and from time to time fresh estates were granted as fresh conquests increased the surplus land. From this land also the monasteries were endowed. The portion allotted to each free household was called the *Hide*. Land held by hereditary possession or by original allotment was called the *Ethel*. That held by grant from the public land and by charter was called *Bocland* (i.e. book-land). The land neither partitioned nor granted was the common property of the nation, and was called *Folcland*. As all land, whether bocland or folcland, could be let out, and was so treated on various conditions, there was much variety in the tenures of that class of people who did not possess free land of their own.

Saxon institutions
introduced into
England.

Land.

Whether the mark system prevailed to any great extent or not, (and this is a somewhat uncertain point,) practically it was the township which formed

the lowest part of the general organization. The hundred was a collection of townships, the shire a collection of hundreds. The chief officer of the township, the town reeve, was elected by the freeholders of the township, and with four of their number represented that township in the Court of the Hundred, of which the township was a subordinate division. Townships established upon the lands of lords also had their reeve, but probably he was appointed by the lord. Their constitution was the same, but the proprietor of the soil took the duties and privileges which in a free township belonged to the freeholders. Such townships formed manors. It was from the township also that the burghs or towns arose. The Saxons had a natural dislike for town life, and we must not look for the arrangements of the borough to the remnants of Roman civilization. But when the village grew very large the same constitution as existed in the township was employed, the freeholders within the limits of the borough forming the municipal body. Such boroughs may also frequently have arisen from an agglomeration of townships. They would then be analogous to the hundred. The existence of two or three parishes in most boroughs leads to the same conclusion; for, ecclesiastically, the limits of the township and the parish were the same. Such towns, growing up naturally round the dwellings of wealthy men or of the king, would generally be either on folcland, and as such, dependent upon the crown, or upon the land of some lord on whom they would then depend. When the national system became organized, there would thus be the Court of the Township, with its counterpart in the dependent Township of the Manor Court. Above that, the Hundred Court, presided over by the Hundred-man, while the township were represented by their Reeve and four members. And above that there was the Shire Court or Gemot. The shires were not, properly speaking, part of the original organization. They seem to be in most cases the old sub-kingdoms. The Court, therefore, of the Shire represented the National Court. Over these sub-kingdoms or shires was appointed a royal officer, shire-reeve or sheriff, representative of the king for judicial and fiscal purposes. There is no proof that he was an elective officer. Beside the sheriff, who represented the central authority, was the Ealdorman, who had the command of the military force of the shire and the third of the fines levied. He was the representative of the old sub-king. He was a national officer, appointed by the king and by the central assembly of the nation, the Witana-Gemot. He sat with the sheriff in the Shire Court, but

Judicial
organization.

it would seem that the sheriff was the official whose presence constituted the court. In all the courts it was a principle that the suitors of the court, those, that is, who were liable to its jurisdiction, were also the judges; that is to say, the courts were essentially popular. The whole body present settled the disputes or judged the crimes of the individuals, the chief officer being, in fact, the chairman. Practically, in the Shire Court, twelve chief Thegns or chief freeholders sat with the sheriff as judges, representatives of the whole body. It was also a principle, at all events originally, that no superior court should have jurisdiction till the inferior courts had done their best towards the settlement of the disputed point.

Ecclesiastically, the parishes were co-extensive with the townships, the bishoprics in a great degree co-extensive with the shires or ancient kingdoms.

In process of time, the position of the king somewhat changed. He began to be regarded as the one lord of the land. From being the King of the Saxons he gradually became the King of England. His personal relation became territorial. The folcland became royal demesne, and the king came to be regarded as the origin of justice. This change, among other causes, tended much to the growth of a system which was in fact incipient feudalism. The national courts constantly became more the private courts of great lords. The connection between the possession of land and the judicial power grew constantly stronger. It had early been the custom to establish in the favour of lords to whom grants were made Liberties, or *Soken*, as they were called; that is, land was granted exempted from the jurisdiction of the Hundred. The judicial rights of the Hundred, together with the payments accruing from them, were vested in the lord who received the grant. These rights are implied in the words *sac* and *soc*. As townships on a lord's land became manors, so these Liberties, on which there were many townships, became private Hundreds. They were probably, before the Conquest, not exempted from the jurisdiction of the Shire. It has been already mentioned that, either by commendation or by the encroachment of local magnates, freemen (allodial proprietors as they were called) took in many cases the position of dependants. Their property then assumed the character of bocland, or land held by charter, instead of hereditary freehold. By commending themselves to a lord they would free themselves from the

Growth of territorial jurisdiction.

burden of military duty, which would then fall upon the lord as proprietor of the land. Justice would be more easily obtained from the neighbouring court of the lord than from the distant court of the Hundred or county. Protection from invasion or from the violence of neighbours would be gained. Again, the police regulation, by which all landless men were obliged to seek a lord, would strengthen the idea of the necessity of dependence.

Meanwhile, the Franchises and territorial jurisdictions went on increasing till the ideas of possession of land and jurisdiction began to go constantly together. The Thegn, who only possessed five Hides, had his court. In the time of Cnut a further step was taken. The wealthy landowner, under the name of Landrica, represented the king in his district, and had jurisdiction over the lesser freeholders. While, to crown all, the new position of the king gave him the sole jurisdiction over the holders of bocland, to which, as we have seen, allodial property was gradually assimilating itself. In all these ways private and territorial jurisdictions were strengthened, and enabled very largely to encroach upon the national and popular courts. The position of the Landrica was little else than that of a feudal baron, and the independence of the great hereditary official, so marked a characteristic of Continental feudalism, was almost reproduced in England, when Cnut divided the kingdom into four great Earldoms.

To pass from the local government to the central. It has been seen that justice and municipal law were carried on through a series of free assemblies or Gemots; so too the general meeting, or Gemot of the nation, constituted the chief legislative and judicial assembly. This was called the Witan or wise men, or the Witana-Gemot or assembly of wise men. It was doubtless originally the National Assembly of all free men, but by an easy change which befalls all such assemblies, attendance on it grew awkward to the multitude, and was shortly confined to those who bore office about the court, the king's Thegns and bishops. The principle of representation was not understood, and the freemen, although they possessed an inherent right to be present, were not in fact represented, except in so far as the presence of friendly and neighbouring Thegns might be held to represent them. The power of the Witan was great and various, being in theory the power of a free nation. They could elect

Central government. The Witan.

Increased power of the King.

Finance.

and discrown a king, and practically did elect him, though usually from among the nearest relatives of the late king. A remnant of this elective form of the monarchy still exists in our form of coronation. Peace and war were discussed in the Witan. The co-operation of the Witan was necessary to authorize alienation of public land; and to them ultimate judicial appeals were made. Early in the eleventh century, however, the king had so far improved his position that he was able to grant land without their leave, and also to call to his court cases not yet completed in the lower courts. The same change in the character of the king, which has been already mentioned, shows itself here also. He was originally the leader of a free tribe, perhaps of a clan, but gradually as his dominion extended his power rose also; and his personal influence, though somewhat undefined, was paramount. The great king could always wield the Witan as he pleased. His office was, as has been said, elective, but under certain restrictions. It seems to have been regarded as necessary that he should be an Ætheling (or born in legitimate wedlock), and in England. With this limit, and with a certain preference allowed to the eldest son, and to the one whom the dying king nominated, the choice of the Witan was free; and, practically, the prince of the royal house best fitted for the immediate circumstances of the kingdom was chosen. Thus the king's brother was sometimes chosen instead of his son, who, in his turn, might succeed his uncle to the exclusion of his uncle's children. This preference for the best man over the nearest relative continued after the Conquest, and renders erroneous the appellation of usurper when applied to the early Norman kings. The arrangements of finance, as far as they can be understood, were very simple. Upon every citizen, whether agricultural or urban, there was laid a *trinoda necessitas*, that is to say, the duty of serving in war, the repair of bridges and public roads, and the maintenance of fortifications. It is plain, therefore, that the wants of the crown were chiefly personal, that what we consider the chief expenses of government, justice, maintenance of public works, and military expenditure, were supported by the people themselves, without the interposition of government. The expenses of the crown would be discharged very largely from the public property or folcland reserved to the nation, and from such taxes as were rendered necessary from time to time to support the grandeur and hospitality of the king as national representative.

The system of police was based on the idea of mutual responsibility. Frankpledge or *frithbohr*, by which is

Police.

meant the division of the country into sections of ten men mutually responsible for one another, cannot be proved to have existed before the Conquest. On the other hand, its principle no doubt existed. Every man, by the law of Cnut, was bound to be in a Hundred and a *tithing*. This latter term cannot be accurately defined, but it was a subdivision of the Hundred. By the laws of Æthelstan and Eadgar every landless man was compelled to have a lord to answer for him in the courts, and every man a surety to answer for him if he were absent when legally required.

From this sketch it will be seen that, with regard to classes, there must have been at the time of the Conquest *Thegns*, who were to all intents and purposes feudal barons; *Sokmen*, those freemen who owed suit to the lord's soke or court; a certain number of *Eorls* or nobles by birth, who would most likely have become assimilated to the Thegns; *freeholders*, holding land in common where it had not yet come under the suzerainty of a lord (this same class of freemen degenerated under various circumstances and with varying tenures into villeins, or dependent cultivators, under lords); and absolute slaves, consisting originally probably of the conquered race, and added to by criminals and outlaws, or others who had lost their rights as freemen.

There was here every element of the feudal system. Even the tenure of land upon military service existed. The main distinction between the condition of England and that of the Continent, where the feudal system had been fully established, lay in this,—there still existed a certain number of freemen whose land was their own. They were indeed obliged to acknowledge the jurisdiction of a lord, but they were free to choose their own lord. They were suitors to his court, but he did not possess their land. The feudal system in its completed form may be regarded as exhibiting two peculiar features:—jurisdiction was in the hand of large landowners; and the lord was regarded as the possessor of the land over which he exercised jurisdiction. In England, one feature alone had become prominent. The judicial power was in the hand of large landowners; but their jurisdiction extended over men whose land they did not possess, but who were owners of their own property, and able to attach themselves to any lord they liked. With the Conquest, while the judicial power was restrained, the connection between that power and the possession of land over which it was exercised became absolute.

The Church occupied a position of very great importance. It was the guardian of the morality of the country, and as such had a share in all secular jurisdictions; but it was the remnant of a national Church, not closely united to the Roman See. It was therefore inclined to be somewhat disorderly. Its bishops were appointed properly by the king and the Witan, but latterly the power had practically been with the king alone. These bishops obtained their license from the Pope. But the case of Archbishop Stigand, to whom the Pope had not sent the Pallium, shows how little weight was given to this proceeding. Similarly, the lower clergy had formed the habit of marrying, contrary to Papal laws, and although there was a growing feeling that this was wrong, the practice still continued while the monks were constantly attempting to break free from their rules and establish themselves as canons.

The Church.

To such a civilization came William, who had seen the evils of Continental feudalism in his own country, and had secured his position only after long struggles. He claimed England, not as a conqueror, but as the legitimate sovereign, nominated by Edward the Confessor, and as such was accepted by the Witan, and crowned in London after the battle of Senlac. His natural policy was, therefore, to continue such institutions as were not yet feudal, and thus his arrival checked that natural growth of feudalism which was running its course in England as in other Teutonic countries. On the other hand, it was impossible from his position that he should do otherwise than introduce many feudal institutions. He had brought with him many of his vassals, who held from him in feudal tenure; and it was necessary, when, from the confiscated lands of Harold and his family and of the other nobles who either opposed his entrance into England or afterwards revolted against him, he made large grants to reward the adventurers of whom his army mainly consisted, he should make those grants in accordance with the system with which he was acquainted in exchange for military service, and saddled with the usual feudal burdens. While he thus, on the one hand, was the national English sovereign, on the other he was the supreme landowner and feudal lord. Under this double influence, the tenure of land, following the universal tendency of Europe, became wholly feudal and military. But the other side of feudalism—with its isolation, the virtual independence of the

Effects of the Conquest.

Restraints upon feudalism.

feudatories (among whom the king was but the first among his peers), and the suppression of national jurisdiction, which were the chief characteristics of French feudalism—was kept in careful restraint. Thus, the whole machinery of justice, the Hundred Court and the Shire Gemot were retained under presidency of the sheriff, side by side with that territorial jurisdiction which he could not refuse to his feudal vassals. The police system of mutual responsibility was kept up and systematized under the name of *frankpledge*, and on the whole nation still lay the *trinoda necessitas*. The Witan remained, although its members were now feudal vassals; the laws as they existed were for the most part perpetuated, though certain emendations were made, such as the law of Englishry,^[4] for the protection of his Norman subjects, and the liberty allowed to the different nationalities to be tried according to their own law. At the same time, the further to restrain the independent power of the great feudatories, the great earldoms which Cnut had created were broken up, with the exception of three border counties, Chester, Durham, and Kent; the business of the counties was transacted by the sheriff, who was a royal officer, and the earldoms were either of one county only, or if of more than one, of counties far apart. As a final court of appeal, he established the Curia Regis, formed of the Justiciary (who was the king's representative and regent when he left the country), with a staff of justices, consisting originally of the officers of the household, but tending gradually to consist of new nobility appointed by the king for the purpose. This was the final court of appeal, and could draw to it any suit from the county court. But the chief restriction upon military feudalism, which rendered its appearance in England impossible, was, that each freeholder swore allegiance, not to his immediate lord, but to the king. Abroad, if a great noble went to war with the king, his vassals were doing right in following him; in England, they were committing treason.

This oath was exacted after the great work of the Domesday Book was completed. This book consisted of a registration of all the lands in the kingdom, made by commissioners, after inquiry upon oath of the chief men and lesser freeholders of each district. By it not only were the limits of property settled, but the king knew what resources he could rely upon both in men and money. The king's power was nominally limited by the "counsel and consent" of the National Council, which was at once the old English Witan and a feudal assembly, but its power was really nominal. The taxes seldom

William's position.

called for interference, as they were derived principally either from the old national dues, the *ferm* of the shire (a fixed rent of the old public lands and royal domains), the danegelt, and the proceeds of fines or feudal aids. The army was also completely in the king's hands; as national sovereign, the old national militia was at his command; as feudal sovereign, he could claim the military service of his vassals, which was defined in every case by the Domesday Book, while the whole people were bound to him by oath. We thus see William the Conqueror occupying the position of a practically irresponsible monarch, with a mixed monarchy of national and feudal character, but, with the exception of some parts of the administration of justice, carried on wholly under feudal forms.

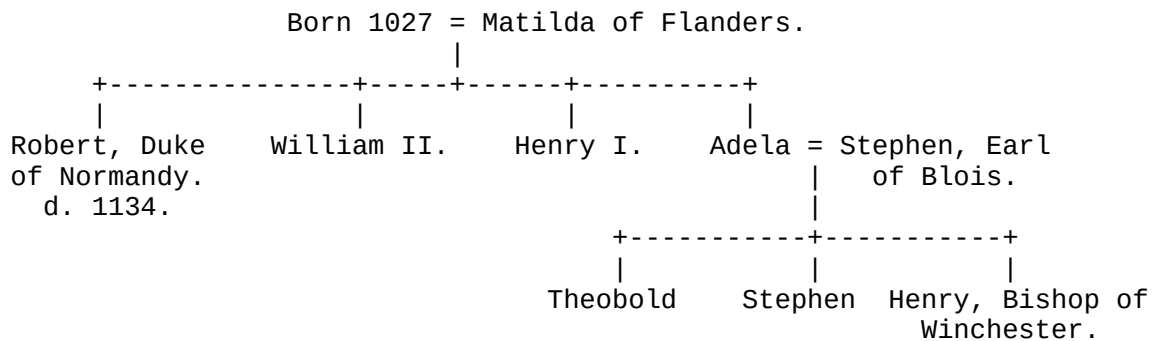
As regards the Church, two important changes were made. As the champion of orthodoxy, William, by means of his Archbishop, Lanfranc, restored the Roman discipline to the Church, and connected it closely with the See of Rome. And, secondly, he separated the ecclesiastical jurisdiction from the secular. The bishops withdrew from the county court (perhaps finding their position there useless now that those courts had sunk in importance), and established courts of their own. During William's reign no inconvenience arose from this, but the inherent defects of the step became obvious when Henry II. attempted to reorganize the kingdom after the disorder of Stephen's reign. The Conqueror's police was unusually strict. It became the common saying that a man laden with gold could pass unharmed through the country. He abolished the penalty of death (which was, however, speedily resumed), and substituted mutilations of various kinds. He also repressed the right which the Saxon laws had allowed of killing the murderer or the thief when taken red-handed. It has been suggested that the great forests he created, and the care with which they were maintained, is to be attributed as much to the king's desire to maintain an efficient staff of police always ready as to his great love of hunting.

The Church.

WILLIAM I.

1066–1087.

[click here to see the image](#)



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Malcolm III., 1057.	Philip I., 1060.	Henry IV., 1056.	Sancho II., 1065. Alphonso VI., 1072.

POPES.--Alexander II., 1061. Gregory VII., 1073. Vacancy one year.
Victor III., 1086.

Archbishops.	_Chief-Justices._	_Chancellors._
Stigand, 1052–1070.	Odo of Bayeux, and William Fitz-Osbern, 1067.	Herfast, afterwards Bishop of Elmham, 1068.
Lanfranc, 1070–1089.	William de Warenne, and Richard Fitz-Gilbert, 1073.	Osbern, afterwards Bishop of Exeter, 1070.
	Lanfranc, Geoffrey of Coutances, and Robert, Count of Mortain, 1078.	Osmund, afterwards Bishop of Salisbury, 1074.
		Maurice, afterwards Bishop of London, 1078.
		William de Beaufeu, Bishop of Thetford, 1083.
		William Giffard, 1086.

The death of Harold left England without a king. As yet, although William had expected the immediate submission

Intended resistance of
the English.

of the whole country, no such course was thought of. The idea which occupied men's minds was the election of a new king, who might continue the defence of the country. The two sons of Ælfgar, the great northern Earls Edwin and Morkere, whose jealousy of Harold had been one of the chief causes of his disaster, found themselves, now that the House of Godwine was practically destroyed, the most prominent leaders of the English. They came to London, and there, collecting about them such nobles and important people as they could readily find, they held an assembly which in some sort represented the Witan. They probably expected that the crown would be given to one of themselves, and that the hour for the triumph of the Mercian house had arrived. They were disappointed in their hopes. Of properly qualified candidates there were none, but the Southern Witan preferred to place the crown upon the head of the grandson of Ironside, the heir of the old royal house, and elected the Ætheling Eadgar, young though he was.^[5] It does not seem however that he was actually crowned, that ceremony being postponed till the feast of Christmas.

Election of Eadgar.

After the slaughters of the late battles, the means of resistance in the Southern counties must have been much diminished, and when Edwin and Morkere completed their treasonable conduct by again withdrawing their troops, and, though they had accepted the election, refused to give practical support to the defence of Wessex, immediate opposition to the Conqueror became hopeless. No further combined action was possible and no other great battle was fought.

Meanwhile William, disappointed in his hopes, proceeded with his own foreign forces to make good his conquest. He determined to subdue the South-eastern counties before he advanced against London. He marched eastward, took Romney, and captured the castle and town of Dover, and had reached Canterbury, when he was seized with an illness which kept him inactive during the whole month of November. Thence he sent an embassy which secured the great town of Winchester, and thence in December he moved to attack the capital, but contented himself with burning the suburb of Southwark, and passed on westward on the southern side of the Thames, which he did not cross till he reached Wallingford, intending to pass northward and thus cut the city off from the unconquered country. With this view he marched to Berkhamstead in Hertfordshire. But his progress had broken the spirit of the Londoners, and he was there met by Eadgar, Ealdred the Archbishop of York, and others, who submitted to him, and offered him the crown. After a feigned rejection of it, till he had further secured the kingdom, he accepted it at the earnest request of his followers, and marching into London, was crowned at Christmas. The ceremony was performed by Ealdred of York in the place of Stigand of Canterbury, whose appointment to the See

William's march to London.

Receives the crown at Berkhamstead.

Coronation of William.

had not been strictly canonical; it was impossible that William, one of whose professed objects was the reform of the uncanonical Church of England, should receive his crown from the hands of a schismatic. Stigand's importance as the chief official of the English prevented William from taking immediate steps against him. He was therefore present at the ceremony, but though William thus, and for some time afterwards, temporized with him, his ruin was already determined. The coronation was performed with the usual English ceremonies; the name of the King was proposed for election to those who were present, and the shout of acquiescence excited the alarm of the Norman troops outside the church. They proceeded to set fire to buildings in the neighbourhood; the assembled multitude rushed from the church to extinguish the flames, and William was left almost alone with the officiating ecclesiastics. But the ceremony was completed in the midst of fears and misgivings of those within the Cathedral, and of uproar and confusion without.

William was thus crowned King of England, having received the crown from the hands of the Witan, and having been nominally elected by the popular voice. His position was in strict accordance with the claims he had raised, and he proceeded to pursue a policy in harmony with it. He had come to claim his rights against a usurper, he had obtained those rights, and would henceforth make them good while strictly following the forms of law. As crowned King of England, opposition to him was treasonable, and the property of traitors legally confiscated. It is clear that this position gave him great advantages, and would induce many a weak-hearted or peaceful Englishman to accept without opposition the *de facto* king, while it enabled William to hide the harsh character of the conqueror under the milder form of a monarch at war with rebellious subjects.

William's position as king.

In pursuance of this policy, no sudden change was made in the constitution or social arrangements of the country. In the first period of his rule, William merely stepped into the place and exercised the rights of his predecessor; but those rights he found sufficient to secure his own position and to reward his followers. For these purposes it was necessary for him to give to Normans much of the conquered land, by which means he would spread as it were a garrison throughout the country, and at the same time gratify his adherents.

He started from the legal fiction that the whole of the land, as the land of traitors, was confiscated. The folcland he made crown property, thus completing a change which had been long in progress. The large domains of the House of Godwine were by the destruction of that house naturally at his disposal, as was also the property of those who had fallen in arms against him at Hastings or been prominent in opposition. The land thus gained he granted to his followers, not making a new partition of it, but putting a Norman in the place of the

Transfer of property.
The form of law retained.

Castles built.

dead or outlawed Englishman who was legally regarded as his ancestor. To complete this process, and appropriate all the conquered land, would obviously have been impolitic; and very shortly after his coronation he appears to have allowed a general redemption of property. Proprietors submitted, paid a sum of money, and received their lands back as fresh grants from the Conqueror. In addition to this, many of the smaller Thegns and free Ceorls were too insignificant to be disturbed, and in many instances some little fragment of their dead husband's property was given in contemptuous pity to the widows, saddled frequently with some ignoble tenure. Still further to complete the subjection of the country, in every conquered town of importance a castle was erected.

In addition to his grants of land, William had the government of the country to attend to, and the vacant earldoms to fill. In doing this he was guided by his past experience, and in the fully conquered parts of England was careful not to put any earl into the position occupied by the great earls of the last days of the Anglo-Saxon monarchy. In this respect, as in some others, the spirit of feudalism had been making rapid strides in England, and the great earls, as well as the great cities, were bidding fair to assume the position of the feudatories and free cities of the Continent. William was careful to return to older precedent, and to confine his earldoms to one shire. The importance of this in English history is great, as it obliged the nobility to work in alliance with the commonalty, and secured national rather than aristocratic progress. Thus his two most trusted servants, to whom in his absence he left the vice-regency of the kingdom, William Fitz-Osbern and his brother Odo, Bishop of Bayeux, were respectively but Earls of Hereford and of Kent. William thus arranged that part of England which he had really conquered. In the North he as yet continued the existing state of things. Edwin and Morkere did homage and received their Earldoms back again. Waltheof remained Earl of Nottingham, and Copsige (Copsi or Coxo) was given the earldom of the Northern province of Northumberland. To secure the allegiance of these great unconquered Earls, William took them with him when in March he went to revisit his native duchy. The kingdom he left in charge, the South to Odo of Bayeux, the North to William Fitz-Osbern.

Appointment of Earls.

His retirement from England has sometimes been traced to an evil intention of enticing his new subjects into a more serious rebellion, that he might conquer them more completely. His natural desire to display his triumph in his own country would seem to supply a sufficient reason, without attributing to him such double dealing. The effect of his absence, however, was in fact to produce such an insurrection. In the midst of his conquests and confiscations he had always kept a strong hand upon his followers, and his police was good. The case was different under the government of his

William revisits Normandy.

Misgovernment by his viceroys and consequent rebellion.

viceroys. The rapacity and licentiousness of the conquerors made itself heavily felt. Discontent began to show itself in the North, in the West, and in the South; and the native English, despairing of their unaided efforts, began to seek assistance from abroad. The news of this danger brought William back to England in the December of 1067. But already a revolt in Bernicia, as the Northern division of Northumberland was called, had produced the death of the newly-made Earl Copsige. Eadric the Forester in the West of England, in union with the Welsh, had ravaged Herefordshire, and the men of Kent had obtained assistance from Eustace of Boulogne in a fruitless attack upon Dover. It was the dread of more important foreign allies which brought William back. The English efforts to get aid from Henry IV. of Germany, or from the Prince of Norway, had been frustrated either by William's intrigues or by the character of the Princes to whom they applied, but Swend of Denmark seemed likely to embrace their cause.

On his return, William found that although his lieutenants had repressed actual insurrections, the unconquered districts both of the North and West of England were gloomy and threatening. Want of union was still the bane of the English; the insurrection of Exeter and the West had been suppressed before York and the North moved. The party of Harold and his family was strong in Exeter and the Western shires. At Exeter, indeed, it is probable that what remained of the family of Godwine was at this time collected. William marched against the city, harrying Dorset as he passed. The position of Exeter was characteristic. As in the case of the great earldoms, so in that of the great cities, the feeling of local independence had been rising, and the chief men of Exeter seem to have had some thought of making their city a free town. They offered to own the King's supremacy and to pay his taxes, but refused to admit him within their walls. The one point of William's policy which is most prominent is his determination to establish the strength of the monarchy, as against local interests. He therefore rejected the proposition, and marched upon the city. The civic chiefs offered to submit, but the people repudiated their arrangements, and stood the siege. The city was captured by means of a mine. Harold's family fled—Gytha, his mother, to the islands in the Bristol Channel, his sons to Ireland. As usual, a castle was built in the city; the tribute of the town considerably increased; both Devonshire and Cornwall completely subdued, and the same process of partial confiscation which had marked the first steps of the Conqueror carried out there. The earldom of Cornwall, and a large quantity of property, was given to Robert of Mortain, William's half-brother. The conquest of the West was completed by the subjugation of Gloucestershire and Worcestershire.

William returns.

Insurrection in the West. Taking of Exeter.

This insurrection was hardly over when a general confederation against the Conqueror was set on foot in the North. Edwin and Morkere, and Eadgar, the

nominal king, combined with Eadric the Forester, and had good hopes of assistance from the Welsh, from Malcolm Canmore of Scotland, and from Swend of Denmark. This help was not forthcoming; civil war hindered the Welsh, and Malcolm and Swend were not ready. The feeling against the Normans was, however, very strong, many of the inhabitants of Yorkshire

Insurrection in the North.

William's position in the North and West.

taking to the woods rather than submit. The insurrection was a failure. Again Edwin and Morkere showed complete want of energy, submitted, and were received into favour. Such a desertion destroyed all unity of action; their armies dispersed to their own homes. A certain number of the insurgents retired and held Durham, others took refuge in Scotland, but William found no opposition; York submitted, and the usual castle, the constant badge of conquest, was built there. On his homeward march through Lincolnshire, the town of Lincoln and that part of England was also subjugated, while, at the same time, Malcolm of Scotland sent an embassy, and commended himself to William. At the close of 1068 William was actual possessor of England as far northward as the Tees; but Cheshire, Shropshire, Staffordshire, and part of Herefordshire were still unconquered; Durham, Northumberland, and Scotland were his only by the tie of homage.

At this time it is said that a considerable number of his Norman followers, disliking to leave their homes so long, returned to Normandy, throwing up their estates in England. This movement has been exaggerated, as Hugh de Grantmesnil, who is mentioned as the leader of the returning Normans, undoubtedly held property in England afterwards. It is, however, probable that some returned, for William at this time discharged many of his mercenaries, acting henceforward more completely as English king.

At the midwinter meeting of the Witan he proceeded to act as though the North was completely conquered, and granted the earldom of Northumberland, vacant by the flight of Gospatric,

Revolt in the North.

to his follower Robert de Comines. But the reception of this new earl showed how unsubdued as yet the northern earldom was. He reached Durham, and was received by the Bishop Æthelwine; but when his troops treated the city as though they had conquered it, the inhabitants rose and put him and his men to death. The spirit of insurrection spread, and the citizens of York at once also rose and slew one of the commanders there, Robert Fitz-Richard. This blow, which seems to have been concerted, was immediately followed by the return of Eadgar and the other exiles from Scotland. William hurried thither in person, re-established his authority, and built a second castle, which he put into the hands of William Fitz-Osbern. He then withdrew into the West of England, conscious probably that the Northern insurrection was only one of his dangers, for Swend of Denmark had at length sent a fleet to the assistance of the English, the sons of Harold were landing in Devonshire,

and Eadric the Wild was threatening the north-west of his dominions. In fact, we have in this year the great final struggle of the English, and the Norman dominions were assaulted upon all sides.

As usual, however, the want of proper concert and of any acknowledged and heroic leader rendered the English efforts futile. The sons of Harold were disastrously defeated by Count Brian of Brittany, their wandering and ill-disciplined troops conquered in two battles in one day, and they themselves, escaping to Ireland, are heard of no more. This was in July. In September the Danish fleet approached. It touched, but was beaten off, both in Kent and in East Anglia, and finally entered the Humber, where it was joined by the great English exiles.

Futile insurrections
against the Normans.

William's devastation
in Yorkshire.

Complete subjugation
of the North. 1070

Thence the combined English and Danish army moved upon York, while Eadric, in Staffordshire and the Welsh border, moved forward and besieged Shrewsbury, and the men of the West, though unaided by the sons of Harold, rose and besieged the castle of Montacute in Somersetshire. These two lesser insurrections William could afford to leave to his lieutenants; Bishop Geoffrey of Coutances relieved Montacute, and William Fitz-Osbern and Earl Brian apparently completed the subjugation of the West, compelling Eadric the Forester to retire after he had destroyed Shrewsbury, and re-establishing the Norman influence in Devonshire. William himself hastened to the scene of greatest danger. Already the castles of York were taken, as the story tells us chiefly by the prowess of Waltheof; but having completed this object the army had foolishly dispersed, and the Danes, lying in the Humber, were occupying Lindesey and the north of Lincolnshire. There William's sudden march surprised them, and they were compelled to withdraw to the other side of the Humber. William then set quietly to work, with his army, which had now joined him, at the reconquest of Yorkshire. Staffordshire and Nottingham were secured, and after a lengthened delay at the passage of the Aire, during which he was probably engaged in negotiations with the Danes, he moved on practically unopposed to York. He there re-established his two castles, and proceeded to give the inhabitants of the country a lesson they were not likely to forget. He set to work systematically to lay waste the whole of the territory from the Humber to the Tees. Every house, every store of food, the very cattle themselves were included in the great burning. The completeness of the destruction is marked by the entries of "Waste," following each other in unbroken succession in the Domesday Book. For nine years the country was left untilled, the towns wholly uninhabited, and the few survivors lived like beasts of the field, feeding upon unclean animals, and reduced even, in their utter want, to eat human flesh. Having completed this terrible work, William kept his Christmas in state at York. He pursued his advantage further, and, as the winter went on, advanced and secured the hitherto unconquered town of Durham. The North of England was at length completely conquered.

But the North-west, the counties of Cheshire and Shropshire, was still unsubdued, and in the dead of the winter William made his way, in the midst of unspeakable difficulties, through the wild moorland and hill country which joins the Peak district with the higher mountains of the Pennine range. The conquest of Chester, and the ravaging of the neighbouring counties, completed his work. And when, early in the year Osbern, the commander of Swend's fleet, yielding to the diplomacy and bribes of William, sailed away to his own land, the conquest of England may be said to have been finished.

For the moment free from military difficulties, William proceeded to the regulation of his Conquest. He is said now to have re-enacted the laws of Edward, and although it is probably a legend that he issued a complete code of laws, it is likely that he took the opportunity of declaring the re-enactment of existing laws, with such changes as he chose to introduce. Two ordinances which seem to belong to this period exist. One, ordaining that peace and security should be kept between English and Normans, and the laws of Edward, with regard to land and other matters, upheld, with the addition of such as the King had added for the advantage of the English people. The second, enacting a heavy fine for the death of any one of his soldiers, which fine is to be made good by the Hundred in which the murder was committed; this was for the defence of his troops against lawless patriotism, and grew into the law of Englishry, by which an unknown corpse was always presumed to be that of a Frenchman, and the fine inflicted, unless the English nationality of the murdered man was proved.

William's legislation.

But William had always kept before him, as an object, the change and reform of the English Church, which till this time had been strictly national, its laws having been enacted by the mixed secular and ecclesiastical Witan, and the bishop having presided side by side with the secular judges in the shire gemot. The intention of William, whose enterprise had been undertaken with the full concurrence of the Roman See, whose interests he, as well as the Normans of Sicily, had much at heart, was to Romanize this national Church. For carrying out that scheme he looked to the gradual displacement of bishops of English birth, whose places could be filled with foreigners. This connection with Rome is marked by the re-coronation of the King in 1070 by the Papal Legates, immediately after which the attack upon the English Church began. The Primate Stigand was the first victim. With him the King had hitherto temporized; when he was charged with holding the See of Winchester with his own archbishopric, with having obtained the Pallium from the false Pope Benedict X., and with having accepted his bishopric during the lifetime of his predecessor Robert. He was deprived of both his bishoprics, and kept a prisoner at Winchester. His brother Æthelmær was removed from the bishopric of the East Angles. Æthelwine of

His reform of the Church. Appointment of foreign Bishops.

Stigand deposed.

Durham was also deprived and outlawed, and Ethelric, Bishop of Selsey, deposed. The Archbishopric of York, too, was vacant by the death of Ealdred, so that William had here a good opportunity for carrying out his plans.

The most important appointments were the two archbishoprics. For his new Primate he selected Lanfranc, an Italian priest, at this time Abbot of the little monastery at Bec, whose learning and importance were such that he had already been offered and had refused the Primacy of Normandy. It was not without much show of opposition on his part that he accepted the Archbishopric of Canterbury; but, when once

Lanfranc made
Archbishop.

Lanfranc's legislation
connects the Church
with Rome.

appointed, he proved himself a most efficient instrument in carrying out the plans of the King. To the other vacant bishoprics, in almost every case, chaplains of the King were appointed. The changes thus begun were carried out gradually during the whole reign, and were in fact an offshoot of the great movement for the revival of the Papacy being carried out in Europe by Hildebrand. Having first, for the purposes of centralization, established the supremacy of the See of Canterbury over that of York, Lanfranc set on foot the habit of holding separate ecclesiastical councils after the great National Meetings had been dissolved; the bishops withdrew from the county court, and established ecclesiastical courts of their own; as far as possible regular canons were put in the place of the secular canons, of whom many of the chapters consisted; and although the archbishop had sufficient sense to tolerate those of the clergy who were already married, for the future such marriages were strictly prohibited.

The effect of such legislation was to separate the clergy from the laity, and to connect the Church much more nearly with Rome. This policy, which in after times was the source of so much evil, was rendered harmless during the reign of William by his great power and decision. He always claimed the position of supreme head of the Church in England, nor would

But William still head
of the Church.

The change good on
the whole.

he suffer any encroachments from the Papal See. On more than one occasion he exhibited this determination. To the end of his reign he insisted upon giving the ring and staff to his bishops. He would not allow any of his soldiers to be excommunicated without his leave, and when Hildebrand, occupying the Papal throne as Gregory VII., demanded that he should both pay Peter's pence and declare himself the Pope's man, he replied, the money he would pay, as his predecessors had, that the homage he would refuse, as he had neither himself promised it, nor had his predecessors paid it. In many respects the change was doubtless for the better. The bishops were on the whole more learned men, and education was improved. The spirit of self-denial for the sake of the Church, and the consequent establishment of foundations and cathedrals, was revived, and the Church, brought

into better discipline, was more able to play its proper part of mediator and peace-maker in an age of violence. The distribution of patronage was not, however, without its dark side. In many instances ecclesiastical position was given in reward of services to men qualified rather to be soldiers than clergymen; and complaints exist of the tyrannical manner in which these soldier-abbots or bishops behaved to their English inferiors.

The conquest of England was completed, as we have seen, in 1070. But it was six years more before William enjoyed the throne in peace. The remnant of the conquered nation gathered around a national hero, called Hereward, in the Fen country. His origin is not certain, but he seems to have been a Lincolnshire man who had been deprived of his property by a Norman intruder. He first appears as assailing with a host of

Final struggle against the Normans under Hereward. 1070.

William conquers him. 1071.

outlaws the monastery of Peterborough, where one of those soldier abbots just mentioned, Turolf by name, had been lately appointed. He is next heard of when, in 1071, the Earls Edwin and Morkere, who had seen the destruction of their old earldoms, while living in inglorious ease, half prisoners half guests at the Norman court, at length awoke from their lethargy and attempted to renew the war. Edwin was killed as he fled, stopped by the flooding of some river; Morkere succeeded in joining the insurgents at Ely. Hereward's fastness was known by the name of the Camp of Refuge. There were collected many of the noblest of the old English exiles; and legend speaks of the presence of several people who were undoubtedly not there; but, at all events, Æthelwine, the deposed Bishop of Durham, was with the patriots.

The attack was intrusted to William of Warenne, Earl of Surrey, and Ivo of Taillebois, under the superintendence of William himself, who came to Cambridge. The difficulties of the situation were overcome by the building of a great causeway across the fens. The defence of the camp is described as lengthened and heroic, but before the end of the year it seems to have been captured, and Morkere and Æthelwine both prisoners. Hereward himself escaped, and in 1073 is mentioned as leading the English contingent in William's attack on Maine. The legend describes how, while living in peace with the king, he was surprised at his meals by a band of Normans, and after a terrific combat, in which he slew fifteen or sixteen Frenchmen, was finally overpowered by numbers. In sober fact, his end seems to have been peaceful, as he appears in Domesday Book as holding property both in Worcester and Warwick.

From the English William had no further trouble; with the neighbouring kingdoms he had still some difficulties. With the Britons in Wales, the old Earls of Mercia and the house of Leofric had had friendly connection; but all sign of this had

Wales held in check by the Earls of Chester and Shrewsbury.

ceased upon the Conquest. The wars carried on against them were however local in character; for, contrary to his usual practice, William had established upon the West March two palatine counties of Chester and Shrewsbury. In these counties the whole of the land belonged to the earl and his tenants, and the king had no domain. They were, therefore, like the great feudal holdings of France. Chester he at first placed in the hands of Gerbod the Fleming, his stepson, and, upon his withdrawal to the Continent, in those of Hugh of Avranches, surnamed Lupus, a man of whom the chroniclers speak much evil as at once licentious and tyrannical. Together with his lieutenant, Robert of Rhuddlan, he waged continual war with the Welsh. The same task fell to Roger of Montgomery, Earl of Shrewsbury, who took advantage of the disputes among the Welsh Princes, and succeeded so far as to build and hold, far in Wales, the castle of Montgomery, called after his own property in the neighbourhood of Lisieux in Normandy.

Malcolm Canmore had throughout appeared as the supporter of the conquered English, and at his court the exiles had been constantly received. This did not prevent him from pushing his ravages into the Northern counties; nor did they cease when he received Eadgar Ætheling and his sisters on their flight to the North (1070). This was followed by acts of extraordinary barbarity. Gospatric, who had found favour with William, and accepted the Earldom of Northumberland, attempted a counter invasion into the Scotch district of Cumberland. In rage at this Malcolm gave orders to spare neither sex nor age. The old and the infants were slaughtered, the able-bodied men and maidens were carried off into slavery, so that there were few Scotch villages where there were not English slaves. Malcolm, however, grew milder under the influence of his wife Margaret, Eadgar's sister, and the effect of the presence of the numerous English, either refugees or slaves, was such that the Lowlands became thoroughly Anglicised.

Scotland's savage
invasions.

In 1072, William himself revenged the inroad of the year 1070, by marching into Scotland and receiving the oath of fealty of Malcolm at Abernethy on the Tay. It is mentioned that the last great noble who had held out against him, Eadric the Wild, accompanied him on this expedition, which marks not only the Conquest of England, but the assumption on the part of William of that Imperial position in Great Britain which the great English kings had held.

William makes
Malcolm swear fealty.
1072.

His foreign neighbours also gave William some trouble. The province of Maine, which he had conquered in 1063, threw off his allegiance. The citizens of Le Mans had risen in insurrection against their lords, and formed themselves into a free commune; but Geoffrey of Mayenne, a nobleman whose help they had sought, betrayed the burghers in their efforts to reduce one of the neighbouring nobility, and they were

Trouble in Normandy.
1075.

obliged to call in the assistance of Fulk of Anjou, who had claims upon the province. William reduced Le Mans, but was obliged to make a peace with Fulk, who had strengthened himself by an alliance with the Bretons; and, by the treaty of Blanchelande, William's son Robert took the government of Maine, but did homage for it to Anjou.

While affairs on the Continent were thus occupying his attention, in 1075 a conspiracy of his own nobles in England broke out. Ralph of Gwader (or Wader), the son of Ralph the Staller and a Breton lady, had been intrusted with the Earldom of Norfolk. Roger, the son of William Fitz-Osbern, had succeeded to the Earldom of Hereford. These two nobles sought to ally their houses, and, against the will of William, Ralph married Emma, Roger's sister. At the bridal feast Waltheof of Nottingham, the one remaining English Earl, was present, and there a conspiracy was entered into, apparently on account of the strong hold which William kept over his nobles, and in the interests of more perfect feudalism. The kingdom was to be divided among the three earls, one of whom was to be king. Waltheof had been well treated by the King, and married to his niece Judith. His conscience seems to have pricked him, and he confessed all to Lanfranc, at that time governing England. The conspiracy was at once suppressed; Norwich alone, under Emma, the new married bride, made a brave defence. Ralph fled to Brittany. Roger was taken prisoner, and spent his life in captivity. Waltheof was at first received into favour, but afterwards, it is believed at the instigation of his wife, he was tried before the Witan and found guilty of death. The sentence was executed in secret outside the town of Winchester. During his imprisonment the Earl's penitence had been deep, and it was while still on his knees uttering the Lord's Prayer that the impatient executioner smote off his head. The national hero, dying in this religious state of mind, speedily became the national saint. His remains were removed to Crowland, which he had much benefited, and miracles were worked at his tomb. The confiscation of the property of these two earldoms, and the death of Queen Edith, the widow of the Confessor, threw great property into the hands of William, who did not reappoint to the earldoms.

Conspiracy of
Norman nobles
suppressed. 1076.

Waltheof executed.
1076.

From this time onward William lived generally in Normandy, leaving England to the care of Lanfranc and Odo of Bayeux. The great success of his reign had indeed been reached, and the remaining years were disturbed by constant disputes with his sons and with his suzerain the King of France. Already, when pursuing Ralph of Gwader on his retreat into Brittany, and besieging him in the town of Dol, he had found himself checked by the union of Philip of France with Alan Fergant of Brittany, and had found it advisable

Quarrels between
William and his sons.

Reconciliation at
Gerberoi. 1079.

to marry his daughter Constance to that nobleman as the price of peace. So, too, to lessen the jealousy the King of France might naturally have felt at his vassal's great aggrandisement, he had made the Norman barons swear fealty to his son Robert as his heir, and had caused him to do homage in his place for Maine. Robert desired to make this nominal position real; and, as a part of the same feudal movement perhaps which produced the conspiracy of 1075, he demanded Normandy and Maine of his father. His demand was refused; and when, during an expedition of William against the Count of Mortagne, an accidental quarrel arose between Robert and his brothers, in company with many of the younger nobility he broke into open rebellion. With these, after an unsuccessful attempt at Rouen, he fled to Hugh of Neufchâtel. Beaten thence, he wandered from court to court, assisted by his mother Matilda, against William's will. At length he found an ally in Philip, who established him in 1079 in Gerberoi, near the borders of Normandy. It was there that father and son met face to face, and that William was unhorsed by Robert. The siege of Gerberoi had to be raised, and William underwent the humiliation of seeking a reconciliation with his son, a reconciliation which was of short duration, as in 1080 Robert again fled from court.

In all directions ill success was attending William. He had been defeated at Dol and at Gerberoi; his son Robert in the period between his two quarrels had failed in an expedition against Scotland; he had just lost his son Richard in the New Forest; and in 1083 he lost his wife, to whom he was deeply attached. Meanwhile Odo had been ruling with extreme severity. In suppressing an insurrection in Northumberland he had been guilty of extortion and of cruel punishment even of the innocent. In his general government he seems to have been extremely avaricious. In the year 1082 his wealth and pride had risen to such a point that he thought of attaining to the Papacy. This he intended to secure by violent means. He purchased a magnificent palace in Rome to win the favour of the people, and even collected an army, in which Hugh of Chester took service, to cross the Apennines. William met him and apprehended him at the Isle of Wight; nor could the complaints of the Pope, which we cannot conceive to have been very earnest, produce any effect. He was seized, as the King affirmed, not as Bishop but as Earl of Kent, and remained in prison till the King's death. Odo's oppressions had been very severe, and the condition of England no doubt had become much worse since the complete subjugation of the country, and now, in addition to a famine which had just wasted the country, a heavy direct tax was laid on all land, and worse than that, a vast host of foreign mercenaries was quartered on all the King's tenants, for a great danger was threatening.

Odo's oppressive government.

Cnut was on the throne of Denmark. He had been one of the commanders in Swend's disastrous expeditions; he had married Adela the daughter of Robert of Flanders, one of William's

Cnut's threatened invasion. 1084.

chief Continental enemies, and had now determined to invade England. He had induced the King of Norway to join him, and their combined fleets were expected. William took ruthless precautions against his enemies. The old tax of the Danegelt was reimposed, and all the land along the coast was laid waste. The people were even ordered to shave and change their dresses, that the Danes might not easily recognize them. Disputes among the leaders, and the death of Cnut, prevented the invasion. But it was probably the difficulties which William had found in collecting his taxes and troops on this occasion which induced him to set on foot the great survey which produced the Domesday Book. For this purpose commissioners were appointed, who went through England, and in each shire inquired of the sheriff, priests, reeves, and representatives of the inhabitants, the condition of the land and its value, as compared with what it had been in the reign of the Confessor. The whole of this great work was completed in one year. On its completion a great assembly was held on Salisbury Plain. It was, in fact, a vast review, attended by no less than 60,000 persons. In this assembly was passed the important ordinance which ordered that every man should be not only the man of his immediate lord, but also the man of the king. This was in direct opposition to the usual rule in feudal countries. The whole assembly took the oath to William. This great piece of work, which rendered England one nation, was a fitting conclusion to William's reign.

The Domesday Book.
1085.

In the following year a war broke out for the possession of the Vexin claimed by the King of France. Angered by a coarse jest of that monarch, William entered the country and ruthlessly ravaged it, and at the destruction of the town of Mantes, his horse stepped upon a burning coal and threw him forward upon the pommel of the saddle; the bulk of the King aggravated the injury, which in a few days caused his death. Before he died he released his prisoners. No sooner had the breath left his body than his attendants are said to have fled. He owed his burial not to his son, but to the kind offices of a neighbouring knight, and when brought to his Church of St. Stephen's at Caen, it was not till the clergy had paid the price of the grave that Anselm Fitz-Arthur, whose property had been seized to make room for the Church, would allow his body to be buried.

William's death and
burial. 1087. Sept. 9.

WILLIAM II.

1087–1100.

[click here to see the image](#)

CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Malcolm III., 1057.	Philip I.,	Henry IV.,	Alphonso VI.,
Donald Bane, 1093.	1060.	1056.	1072.
Duncan, 1094.			
Donald Bane, 1094.			
Edgar, 1097.			

POPES.--Urban II., 1088. Pascal II., 1099.

Archbishops.	_Chief-Justices._	_Chancellors._
Lanfranc, 1070–1089.	Odo of Bayeux, 1087.	William Giffard, 1087.
Anselm, 1093–1109.	William de S. Carilepho,	Robert Bloett, 1090.
	1088.	Waldric, 1093.
	Ranulf Flambard, 1094.	William Giffard, 1094.

While the late King was on his deathbed, he had been induced to declare his wishes with regard to his kingdoms. In pursuance, perhaps, of a wise policy, and with the wish to keep up and increase the nationality of England, he gave his hereditary dominions to his son Robert, England to his second son William. He told his son Henry to bide his time, and gave him £5000 in money.

1087.

William at once hurried to England to secure his succession, and, winning the support of Lanfranc, was in less than three weeks crowned by him. At Winchester he found the King's treasure, from which he distributed gifts among the churches in England, and a sum of money for the poor in every shire. A promise of laws more just and mild than their forefathers had known, attached the English to him for a

William is crowned by Lanfranc, and appeases the English.

Opposition of the Normans checked. 1088.

time. Thus supported by the Church and by the conquered people, who could not but rejoice at the separation of England from Normandy, it was only the Norman Baronage he had to fear.

In Normandy the character of the new Duke Robert, who was a mere knight-errant, induced the great nobility to get rid of the royal garrisons from their castles, and otherwise to establish their feudal independence. A similar movement was begun in England, where Odo of Bayeux, liberated at the late King's death, had returned to his county of Kent, and now found himself at the head of a strong party who disliked the separation of their conquered possessions from their hereditary property. Among the adherents of the party we find such names as the two great bishops, Geoffrey of Coutances and William of Durham, Robert, Count of Mortain, Roger of Montgomery, Earl of Shrewsbury, his son Robert of Belesme, and Hugh of Grantmesnil, with others. Odo occupied the castle of Rochester, and against it William led a body of English, collected by a threat that all who had remained behind should be proclaimed "nithing," or worthless. The efforts of the discontented barons in other parts of England were checked, and finally the castle of Rochester was captured. Odo of Bayeux and the Normans of the garrison were allowed to march out, which they did amid the revilings of the besiegers, and to retire to France. The King thus secured his position in England.

He had hitherto been kept in some restraint by the influence of Lanfranc; but when that prelate died in 1089, his coarse, licentious, sceptical and avaricious character began to display itself. His chief minister was Ralph Flambard, a Churchman, who, like many others, was of low parentage, but who seems to have recommended himself to William by his skill as a financier. One of the plans attributed to him was a more accurate completion of the Domesday survey, and the measurement of the hides of land there returned. This would have been harmless enough, but there must have been many other more flagrant exactions, though very likely covered by some form of law, to account for the hatred with which he was regarded. Although his office is not mentioned, he was probably justiciary.

Lanfranc dies. Ralph Flambard succeeds him. 1089.

While England was groaning under the exactions of this man, so that "men would rather wish to die, than to live under his power," the attention of the King was chiefly engaged in intrigues with the nobles of Normandy. The easy character of Duke Robert, and the rising anarchy among the nobles, afforded abundant opportunity. On one occasion it was the citizen Conan of Rouen with whom he was in correspondence; and when this plot was discovered, and Prince Henry, at that time acting with Duke Robert, had thrown the traitor from the cathedral

William's quarrels with his brothers in Normandy. 1090.

tower, it was a quarrel between Grantmesnil and Curci on the one side, and Robert of Belesme on the other, which gave him an opportunity of mixing in the affairs of the duchy. In 1091, however, the brothers came to an agreement, and a treaty was made at Caen, by which they engaged that the survivor should succeed to the possessions of his brother; and meanwhile Eu, Fécamp, Mont S. Michel, Cherbourg, and some other territories, were given to William, who in return promised to conquer Maine for Robert. Twelve barons of either party swore to the observance of this treaty.

Prince Henry, finding himself completely ignored by this arrangement, took possession of the rock of St. Michel, and bade defiance to his brothers. After a siege of some duration he was driven thence; but in the general anarchy of the duchy he found a home at Domfront, where the citizens begged him to be their lord, on the condition that he would not give them up to any other. It is doubtful whether he could have kept possession of this strong place, had not William's attention been engaged by the affairs of Scotland.

Feb. 1091.

Henry obtains
Domfront.

Malcolm had renewed hostilities, and William found it necessary to march in person against him. His expedition was not successful. The weather destroyed a fleet which accompanied it, and, by its inclemency, caused much loss to his army. His presence, however, was sufficient in some degree to overawe Malcolm; a compromise was effected; Malcolm again did homage, and received back certain properties in England of which he had been deprived, and which were perhaps manors which had been given him as resting-places when he came to do homage to his suzerain. At the same time, William turned aside into the district of Cumberland, which was a dependency of the Scotch crown. He re-established Carlisle, and filled the county with peasants brought from the South of England from destroyed villages in the neighbourhood of Winchester. In this he disregarded the interests of the Scotch King, the immediate lord of the country, who therefore complained, and was invited to meet William at the next assembly at Gloucester. There, on the refusal of William to do him justice, a new quarrel broke out, and Malcolm was shortly afterwards killed, while invading England, at Alnwick, by Mowbray, Earl of Northumberland.

War with Scotland.
1091.

1093.

In the neighbourhood of Wales, too, fighting was almost perpetual. Not only did the great Earldoms of Shrewsbury and Chester increase their borders, but many knights took advantage of the frequent civil divisions of the Welsh to push westward and set up their castles. The course of the war had lately been in favour of the Welsh rather

Continued war with
Wales. 1094.

than of the Normans, and in 1095 William thought it necessary to lead an army against them. His attempt was not successful, nor was a repetition of it two years later more so. The nature of the ground was too difficult for the advance of a great army, and William, thus a second time repelled, had again to trust to the self-interest and courage of individual Norman settlers. This plan he strengthened by granting to Normans portions of land as yet unconquered. Thus two members of the house of Montgomery, brothers of Hugh, Earl of Shrewsbury, Roger and Arnulf, did homage for lands in Powys and Dyfed, and Hugh de Lacy for lands to the west of Herefordshire. This guerilla warfare was successful, and Hugh of Chester was just succeeding in winning back Anglesey, which had been taken from him, when an invasion of Magnus of Norway checked for the time the Norman success. The Earl of Shrewsbury, while assisting Hugh of Chester, lost his life, and was succeeded by Robert de Belesme, his brother. On the whole, the English frontier constantly advanced, and the border counties were thronged with castles either of the great Earls or of individual adventurers.

Intrigues and irregular fighting had meanwhile been constant in Normandy. In 1094 King Philip of France had been called in by Robert, but nothing of importance arose from this. But it gave rise to a curious act of extortion on the part of William, who summoned 20,000 men from England, evidently the old English County Militia, and on their arrival at the coast dismissed them, taking from them the ten shillings a head, viaticum, or journey-money, they had received from their counties. In 1095 a great conspiracy of the nobles in England, headed by Mowbray of Northumberland, came to light. Mowbray threw himself into Bamborough castle, which could not itself be taken, but immediately opposite to it another castle, called Malvoisin, was raised, and the garrison of this “ill-neighbour” found means to decoy Mowbray out of his stronghold and to take him prisoner. The danger which threatened William was thus got over; while the following year the object of his wishes came into his hands, when Robert, eager to join a crusade which had just been preached, pledged Normandy to him for the sum of £6,666. His new situation as ruler of Normandy brought William into hostility with the neighbouring countries, and especially with Maine, where H lie de la Fl che made head against him, and, with the assistance of Fulk IV. of Anjou, succeeded in beating him off from Le Mans. William’s power was now, in spite of this repulse, very great, and the King of France, with whom he became involved in war in 1097 on the old subject of the Vexin, looked with anxiety at the growth of his great vassal, especially when a close friendship arose between him and the

Troubles in
Normandy. 1094.

Conspiracy of
Mowbray crushed.

William obtains
Normandy from
Robert. 1096.

Size of his dominions
at his death, 1100.

Duke of Poitiers and Guienne. This conjunction, giving the English King a grasp of France all round the seaboard, made men believe that his ambition reached to the throne of France, especially as Philip had but one son, Louis. The strange death of William put an end to all such thoughts. He was hunting in the New Forest, whither he had been warned not to go, and there met his death; whether by an accidental arrow from the bow of Walter Tyrrel, or falling forward upon the point of an arrow as he stooped over his prey, or slain by the hands of some of those whom his cruelty and avarice had made his implacable enemies, is uncertain. The flight of his attendants, and the unceremonious treatment of his corpse, seemed to favour the last supposition.

In spite then of his unamiable character; of the difficulties which had beset him from his somewhat questionable title; of the natural impulse towards feudal isolation of his barons; of troublesome neighbours; and occasional want of success in his expeditions; Rufus had on the whole succeeded in his plans, as far as his external circumstances were concerned. It was in his domestic government, especially with regard to the Church, that his inferiority to his great father is most obvious. Unlike the Conqueror, he was unable to see, or if he saw, to care for the national advantages which sprung from a well-organized Church. With a similar determination to be a perfect king in his own dominions, he asserted that opinion by violent acts against the Church itself, by appointments of the worst description, and by a life from which all show of decency was banished. As long as Lanfranc lived, he kept some restraint upon himself, but upon his death he began to show his real temper.

Causes of William's inferiority to his father.

It was a critical time in the history of the Church. The quarrel about investitures was raging in Europe. The skill of Lanfranc and the power of the Conqueror had, as we have seen, prevented the quarrel from reaching England during that King's reign; and to the end of Gregory's life, 1085, he had kept up friendly, even flattering, relations with the English King. When Henry IV. had, in 1080, raised the Anti-Pope Guibert to the Papal throne under the name of Clement III., Lanfranc had contrived not to commit himself to either party, but, on the whole, it is probable, that during his life the regular Popes, Victor III. and Urban II., who succeeded him in 1088, were acknowledged in England. On his death advantage was taken of the Schism practically to acknowledge neither Pope, and to leave the abbeys and bishoprics vacant. Indeed, we are told that it was openly

Disputes with the Church.

Bishoprics left vacant.

Repenting after illness, he makes Anselm Archbishop.

Anselm unwillingly accepts. 1093.

Anselm's reforms.

asserted that it was a privilege of the King of England to acknowledge the Pope or not as he pleased. Thus for four years the archbishopric was unfilled, along with several other important ecclesiastical preferments, and the want of discipline in the Church grew worse and worse. Ralph Flambard, as administrator of the diocese of Lincoln, was unlimited in his extortions. The Norman Church dignitaries marched between lines of armed men to church. The Bishop of Wells demolished the houses of the canons to build his own palace, and even the religious and moral scruples of the English monks were laughed at by their licentious superiors. In 1093 the King fell very ill, and for the time became repentant and religious; he proceeded to listen to the wishes of his people and fill up the vacant appointments. The most important of these was the archbishopric. For this post he selected Anselm of Aosta, Abbot of Bec. This man was a Piedmontese, who had been attracted to Normandy by the fame of Lanfranc, and had entered the Abbey of Bec under him. Upon Lanfranc's removal to Caen he was made Prior, and afterwards Abbot. Both his character and attainments commanded the veneration of the age; and at the present time he had been invited by Hugh the Fat, Earl of Chester, to come over and assist him in establishing a Benedictine abbey at Chester. For this purpose, and charged with a mission from his monastery, he was induced much against his will to come to England. In the first access of the King's repentance—after issuing a royal proclamation promising afresh the freedom of captives, the good laws of King Edward, and the punishment of evil-doers—he proceeded so far to action as to appoint Anselm Archbishop. It was not without something like actual violence that Anselm was forced to accept the Episcopal staff. The great importance of the primacy and Anselm's view of the King's character are well shown by some words that are attributed to him: "England's plough is drawn by two supereminent oxen, the King and the Archbishop of Canterbury.... Of these oxen one is dead, and the other, fierce as a savage bull, is yoked young to the plough, and in place of the dead ox you would yoke me a poor feeble old sheep with the wild bull." The feeble old sheep, however, was a very decided ecclesiastic. He insisted at once upon the restoration of the whole of the lands of the See of Canterbury, more even than Lanfranc had held. He declared that he would publicly acknowledge Pope Urban. And when, after his consecration, on his presenting the King with £500 of silver, the King demanded £1000, he withdrew his intended present and distributed all to the poor. Nor was it as a defender of ecclesiastical rights that he was pre-eminent. He set himself to check as far as it was possible the shameless and abominable vice that was rampant in England. Among other signs of the degraded licentiousness of the times was the effeminate foppery of the courtiers. Against their long hair and sharp-peaked shoes the Archbishop was never weary of inveighing. The King's

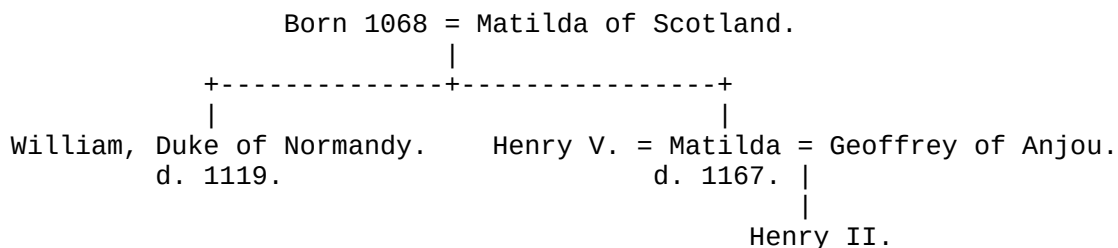
William opposes him.

absence from England put an end for a time to the disputes between the Archbishop and the King, but upon his return Anselm demanded leave to obtain his pall from Pope Urban. This open acknowledgment of the Pope William wished to avoid, and at a council, summoned to consider the matter, the deposition of Anselm appears to have been suggested. The bishops, creatures of the King, basely deserted their chief; and the wisdom of the Baronage of England, under the guidance of Robert, Count of Mellent, who throughout this and the preceding reign appears as the good adviser to the sons of the Conqueror, alone saved him from that disgrace. Unable to refuse Anselm's wish absolutely, the King contrived to persuade the Pope to send *him* the pall, but Anselm stoutly refused to receive it from secular hands, and ultimately triumphed so far as to be allowed to take it himself from the high altar of the Cathedral of Canterbury. For the moment the primate was triumphant, the cowardly bishops sought his absolution. Bishoprics which fell vacant were at once filled up. The Irish and Scotch prelates acknowledged Anselm's superiority. But William, cunning and implacable, was not to be thus foiled. If the churchman could not be touched, the feudal tenant could; and Anselm was accused of insufficient performance of his duty in supplying military followers for an expedition into Wales. In 1097, unable to withstand the royal violence, he left England, and made his way to Rome. He there was present at two great councils, that of Bari in 1098, where the orthodox doctrine as to the Holy Ghost was established; and one at Rome in 1099, where a curse was laid on all laymen who conferred ecclesiastical investitures and upon all churchmen who received them. Upon William's death Anselm returned to England.

HENRY I.

1100–1135.

[click here to see the image](#)



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Edgar, 1097.	Philip I., 1060.	Henry IV., 1056.	Alphonso VI., 1072.
Alexander I., 1106.	Louis VI., 1108.	Henry V., 1106.	Alphonso VII., 1109.
David I., 1124.	Lothaire II., 1125.		Alphonso VIII., 1134.

POPES.--Pascal II., 1099. Gelasius II., 1118. Calixtus II., 1119.
Honorius II., 1124. Innocent II., 1130.

Archbishops.	_Chief-Justices._	_Chancellors._
Anselm, 1093–1109.	Robert Bloett, 1100.	William Giffard, 1100.
Ralph of Escures, 1114–1122.	Roger the Poor, Bishop of Salisbury, 1107.	Roger the Poor, 1101.
William of Corbeil, 1123–1135.		William Giffard, 1103.
		Waldric, 1104.
		Ranulf, 1108.
		Geoffrey Rufus, 1124.

Henry had been hunting in the New Forest when his brother William was killed, and rode at once to Winchester to secure the King's treasure. As the rights of primogeniture had not yet been established, and he was very obviously a fitter man to be King than his brother Robert, the slight opposition offered by the treasurer was speedily overruled, and the Sunday following (August 5, 1100) he was crowned at Westminster. To secure his position, however, he found it

Henry secures the Crown. 1100.

He conciliates all classes.

necessary to conciliate all parties. The Church he won by the immediate filling of vacant sees, and by the recall of the exiled Anselm. William Giffard, the chancellor of Rufus, was made Bishop of Winchester; Girard of Hereford, Archbishop of York; while both Norman and Saxon laity were bound to him by a charter, by which he laid some constitutional restrictions upon the despotism established by his father. In that charter he promised to abolish all oppressive duties, and to confine his demands to his just claims as feudal lord; rendering the same agreement obligatory on his tenants towards their vassals. False coining was checked, the right of leaving personal property by will granted, and the law of King Edward, which meant the old institutions of the country, re-established. He likewise thought it well to win the heart of the people by marrying a Princess of English descent, Matilda, niece of Eadgar Ætheling, daughter of Margaret and Malcolm of Scotland. Further to show his disapproval of his brother's policy, he arrested Ralph Flambard, who, however, found means to escape to Normandy, and was made Bishop of Lisieux.

Henry had thus declared the policy he intended to pursue, the policy of his father rather than of his brother. He meant to be at once a friend and master of the Church, and a national sovereign of the English, a character which became a prince who had been born in that country. That position implied a power much more centralized than that of a feudal suzerain; and in England his chief policy was directed throughout his reign to upholding his mastery over the Church and over refractory barons who aimed at more perfect feudalism. He was in heart however a Norman, and, in pursuit of his objects, did not shrink from using his English subjects with great severity. Similarly, his chief foreign difficulties were produced by his wish to win the Duchy of Normandy, and having won it to rule it in the same masterful spirit in which he ruled England. We find then in his reign ecclesiastical disputes, disputes with the feudal barons of both England and Normandy, wars for the conquest of the duchy, and consequent complications with his suzerain the King of France. Mixed with these are stories, chiefly from Saxon sources, of cruel and unjust exactions and acts of injustice, tolerated, if not ordered, against his Saxon subjects.

His views found supporters in the two sons of that Roger de Beaumont, to whom his father had left the regency of Normandy when he first came to England. These were the two great Earls, Robert, Count of Mellent,^[6] afterwards Earl Leicester, and his younger brother Henry, Earl of Warwick, the elder of whom had received no less than ninety-one manors from the Conqueror, and was the most influential and wisest statesman of the day. On the other hand, he was constantly opposed by his brother Robert, a military prince of the feudal type, and Robert de Belesme of the House of Montgomery, possessor of the Earldoms of Alençon in France and of Shrewsbury in England, and by right of marriage of the county of Ponthieu.

His policy.

His supporters.

His opponents.

Robert heard of his brother's accession to the throne while on his journey home from the Holy Land. He had served with credit throughout the first crusade, especially at Dorylæum and at Ascalon. He had declined the offer of the crown of Jerusalem, and on his return home had married Sibylla, the daughter of Geoffrey of Conversana. He was a man of extravagant and profligate habits, and speedily squandered the fortune which his wife had brought him, but the entreaties of English exiles, and of those discontented nobles who longed for an easier rule than they could expect from Henry, roused him to assert his claim to the English crown. Robert of Belesme and his brothers, Walter Giffard, Robert Malet, Ivo of Grantmesnil, even William of Warrenne, Earl of Surrey, closely connected with the royal house, joined his party.

Robert of Normandy seeks the English Crown. 1101.

But the English were true to the King. Fitz-Hamon, Bigot, and the Earl of Mellent, added their influence to the same side. It was probably chiefly the talents of Mellent, and the threat of excommunication from Archbishop Anselm, which brought about a peaceful solution of the difficulty. A treaty was arranged by which Robert renounced his claims in exchange for the Cotentin and 3000 marks a year. It was also stipulated that a complete amnesty should be extended to the partisans of either prince in his brother's country. It was not Henry's intention however to carry out this part of the stipulation, and no sooner

Withdraws without bloodshed.

Henry attacks his partisans.

Defeat of Belesme. Establishment of royal power in England.

had Robert left the country than the King proceeded to take steps against the two leaders of his brother's faction, Ivo of Grantmesnil and Robert of Belesme. Ivo had been a crusader, and was one of those who had fled from the siege of Antioch, being let down the wall with a rope. He had thus earned the title among the witty Normans of the "Rope-dancer," and finding his credit gone he withdrew from England. His share in the earldom of Leicester was given to Robert of Mellent, who subsequently acquired the rest of the earldom. Alarmed by these measures of the King, William de Warrenne induced Robert foolishly to come over to England to negotiate for the safety of his partisans. His position there was one of great jeopardy, and he was glad to retire, having renounced his money payment, but having secured the restitution of William in his Earldom of Surrey, of which he had been deprived. The withdrawal of Robert from the contest allowed Henry to turn his undivided attention to the destruction of Robert de Belesme, the head of the Norman party in England. From him he won the castles of Nottingham and Tickhill, and subsequently that of Bridgenorth, to which he had retreated. When many of the barons combined to seek his pardon, Henry, still resting on the support of the English, refused to listen to them, and proceeded to win from him his last stronghold, the Castle of Shrewsbury. Upon this Belesme withdrew with his two brothers into Normandy, and the disaffection of the aristocracy was permanently checked.

It had been stipulated that the brothers should not receive each other's exiles. In spite of this Robert of Normandy, enraged at the persecution of his partisans, restored to Belesme his continental property. Henry consequently on his side continued his measures against Robert's partisans. He first banished the Count of Mortain, Earl of Cornwall, who claimed also the Earldom of Kent in succession to Odo of Bayeux, the possession of which would have rendered him the most powerful noble in England, and then proceeded to Normandy to continue his attacks upon Belesme. He alleged not only the reception of his exiles, but the general misgovernment of Robert, as an excuse for his proceedings; and in truth, under that Prince, Normandy had become a scene of anarchy. As an instance of this it is mentioned, that on his arrival a church was pointed out to him full of property sent there for safety from the hands of the marauding barons. He captured the towns of Caen and Bayeux, and found allies in the persistent enemies of the Dukes of Normandy, Fulk Count of Anjou, and Hélie de la Flèche, who had succeeded in regaining the County of Maine. With Count Robert of Flanders also he renewed friendly relations. With such support he proved too strong for the Norman Duke, and before the Castle of Tenchebray a battle was fought, on the anniversary of the battle of Hastings, which ended in favour of the King. Duke Robert himself, the Count of Mortain, and Eadgar Ætheling, who had been serving with the Duke, were taken prisoners. Eadgar was liberated, and died in peace in England some years after; but Duke Robert and the Count of Mortain were imprisoned for the rest of their lives. Normandy and England were thus again united.

Belesme received in Normandy.
Consequent invasion of the Duchy. 1105.

Battle of Tenchebray.
1106.

The possession of Normandy brought Henry into more immediate contact with France. Louis VI. was upon the throne of that kingdom, the first of those great kings to whom the monarchy owed its ultimate triumph over feudalism. It was natural that he should look with jealousy on the vast strength of his great vassal, and should attempt to curtail that power which the supineness of his predecessor had allowed to accumulate. A constant border warfare was the consequence, rendered the more possible by the doubtful position of such counties as Maine, Evreux, the Vexin, Blois, and Alençon, the counts of which were for ever changing their allegiance. Louis had no difficulty in finding a pretender to the Norman Duchy whom he might use as his instrument in opposing the English King. William, the son of Robert, had fallen into Henry's hands, and had been by him intrusted to the care of Hélie de St. Saen. In 1110, in connection apparently with a movement of disaffected nobility (for Braiose, Malet, and Bainard are mentioned as being exiled at that time), Hélie fled with the young Prince, and sought to raise all the neighbouring princes in his cause. Their efforts were not

Wars with France.
1107.

Louis upholds
William Clito as
claimant to the Duchy.

End of the war. Treaty
of Gisors. 1113.

successful. Henry's arch-enemy, Robert of Belesme, fell into the King's hands at Bonneville, where he had presented himself with extraordinary effrontery, trusting that a message with which he was charged from the King of France would give him the security due to an ambassador. The same year Theobald of Blois, acting for Henry, defeated the French King at Puyssac. And when Henry himself succeeded in capturing the town of Alençon, and in attaching the Count of Anjou to his interests, by giving him his heir, William the Ætheling, as a husband for his daughter, Louis found it desirable to conclude a peace at Gisors, by which he resigned his claim of suzerainty over Maine, Belesme, and Brittany, and left entirely unmentioned the rights of William, son of Robert. There followed a period of some years, during which Henry was able to live in tolerable peace in England.

His position was, indeed, unusually strong. His son was contracted to the daughter of the Earl of Anjou; his natural daughter to Conan, son of Alan Fergant of Brittany; and, in the following year, his daughter Adelaide or Matilda was married to the German Emperor Henry V. He took this opportunity of securing the succession to his son William, to whom, in the years 1115-1116, he succeeded in inducing the barons both of England and Normandy to promise their allegiance. But this cessation of hostilities was not of long duration.

Prince William
acknowledged heir.

The causes of war had not been removed. There was still chronic disaffection among the Norman barons, who disliked the firmness of Henry's rule; constant jealousy upon the part of the French King; and the Pretender William, the Clito as he is called, was an ever-ready instrument for their hands. Thus the border warfare was renewed, and we hear of the disaffection, not only of the King's great barons, but of his allies, both Robert of Flanders and Fulk of Anjou adopting William's cause. Other distresses likewise came upon Henry. He lost his wife Matilda, and his firm and sagacious minister, Robert of Mellent. But, in 1118, prosperity again returned to him. The Count of Flanders was killed in an attack upon the Count of Eu. Money or negotiation won back the friendship of Fulk, and in the following year a battle between a few knights at Brenneville, at which both Henry and Louis were present in person, was regarded as so decisive a victory for the English, that, by the mediation of Pope Calixtus, a new Treaty was arranged, and William's interest completely disregarded. Thus was triumphantly closed the second of Henry's wars in France.

Renewal of the war.

Depression of Henry.

Battle of Brenneville,
and complete
prosperity. 1119.

At this period of his greatest prosperity a blow fell upon Henry from which he is said never to have recovered. He was returning in triumph to England, when a certain Thomas Fitz-Stephen, whose father had conveyed the Conqueror to England,

Death of Prince
William and its
consequences. 1120.

claimed the privilege of conveying the royal party. To gratify him, Prince William, with the king's natural daughter Matilda, the Countess of Perche, and other young nobles, consented to embark in his ship called the "Blanche Nef." They remained behind the rest of the fleet and celebrated the occasion in festivity, which ended in the drunkenness of the crew. As they rode upon the harbour of Barfleur in the moonlight they suddenly struck upon the rocks of the Ras de Catte, and there was barely time for the young Prince to escape in a boat from the sinking ship. The cries of his sister are said to have induced William to return towards the wreck, when the hurried rush of the despairing crew capsized his boat, and all on board were drowned. Of the whole crew of the ship one only, Berold, a butcher of Rouen, survived, owing his safety to the warmth afforded him by his rough garb of undressed sheepskins. With fear and trembling the news was broken to Henry by the young son of Count Theobald of Blois. Henry is said to have fallen fainting from his seat, and from that time onwards never to have relaxed into a smile.

The death of Prince William was not only a domestic misfortune. By it was broken also the tie which bound the Count of Anjou to Henry's interests. It was a natural jealousy of his great neighbour, the Norman Duke, which had induced Fulk to act in alliance with Henry. When Robert's imprisonment put Henry on the throne of Normandy, he in turn became the object of Fulk's enmity. The state of the Duchy, where a disaffected party constantly existed, afforded him ample opportunity of giving effect to that enmity. Thus, in 1124, Henry was again recalled to Normandy to suppress a rebellion in favour of William Clito, who was supported by Anjou. Not only Anjou but France was inclining to join the rebels, and it was only by instigating his son-in-law the Emperor to attack France that Henry could manage to make head against his opponents. As it was, however, a fortunate surprise by which all the leaders fell into his hands enabled him to crush the rebellion, and again induced the foreign powers to desert William. The King of France indeed did not wholly give him up; but in 1127, after investing him with several important territories, he brought him forward as a claimant to the throne of Flanders, to which he had a claim through his grandmother, Matilda, the Conqueror's wife, who was a daughter of Baldwin, Count of Flanders. Against him Henry supported the claims of Diederik or Dirk, Count of Alsace, the last count's nephew, and his rightful heir. The matter came to war, and in July 1128, before Alost, Prince William was wounded, and died of his wounds. Henry was thus rid of his most formidable opponent.

Insurrection of the Duke of Anjou.

Death of William Clito.

It remained for him to secure the succession for his daughter Matilda, and he induced all the great men of England to acknowledge her, and swear to support her claims. The list of those who swore was headed by the Archbishop of Canterbury, followed by the King's nephew, Stephen of Boulogne, and his natural son, Robert of Gloucester. They

Attempt to secure the succession to Matilda.

always declared that they accepted the oath on the condition that she should not be married to a foreigner without their consent, and therefore many of them held themselves absolved from their oath, when she was betrothed and ultimately married to Geoffrey, son of the Count of Anjou.

The close of his reign was chiefly occupied in arranging disputes in consequence of this marriage. It was while still in Normandy on this business, though his presence was imperatively demanded in England to suppress an insurrection in Wales, that he died, as it is said, of the effects of a hearty meal of lampreys on the 1st of December 1135.

Death of Henry.

Throughout the reign he had had considerable difficulties with the Welsh, for although, as has been said, many Norman knights and barons had established strongholds among them, they were by no means subdued. They took part in the insurrection of Robert of Belesme; and Henry, conscious that they would be difficult to conquer, hit upon the plan of establishing among them colonies of Flemings, many of whom had come over with the Conqueror, and still more about the year 1106, driven from their country by inundations. The land granted them was in the western part of Wales, near Haverfordwest and Tenby, where they acted at once as a military post, and, through their knowledge of manufacture and agriculture, as an instrument of civilization. In 1114 the Welsh rose under Gryffith. The occupation of Caermarthen and Cardigan, where Gilbert Strongbow, Earl of Strigul, was at that time commanding, separated the Flemings from the English, and Henry was compelled to march to their rescue. This insurrection was suppressed by Robert of Gloucester, himself the son of Gryffith's sister.^[7] Small insurrections continued. In 1122 Henry again went in person to Wales, but, on the whole, the inhabitants were kept in subjection by the Flemings and by numerous Norman castles till 1134, when they were provoked to a new outbreak, so important that the King was preparing to cross from Normandy to suppress it, when he died.

Welsh held in check by colonies of Flemings.

Constant insurrections.

At home the great points of Henry's reign were those which form the domestic history of all feudal monarchies, the relation of the Church and State, and the maintenance of police. With regard to the Church his views were those of his father. He was ready to support and increase its influence; he was not ready to give up any of the prerogatives which his predecessors had possessed. He thus reversed all the action of his brother, recalled Anselm at once with marked honour, and filled up the vacant benefices. But the Archbishop during his exile had mixed in Continental politics, at that time consisting almost entirely of the question of investitures. He returned home determined to

Henry's Church policy.

Anselm refuses fealty.

Anselm has to leave England.

Unsupported by the Pope, makes

assert to the full the independence of the Church. He therefore refused to swear fealty, and do homage to the King, or to consecrate those bishops who had received their investitures from him. Henry, supported by his lay counsellors, was equally determined to uphold the rights of the crown. The matter was referred to the Pope, Pascal II. The Papacy had enemies enough already, and could not afford to drive to extremities a Prince so powerful, and in the main so friendly, as Henry. The reply which was returned was ambiguous. Henry again commanded the Archbishop to perform his usual duties. A second application to Rome produced no better result. Anselm was urged to perseverance. Henry's ambassadors were given to understand that, as long as his appointments were good, the King should not be interfered with. Firm in his own views, but uncertain as to the Pope's wishes, Anselm had no course open to him but to visit Rome in person. He there met with but lukewarm support, and withdrew to Lyons, while Henry laid hands upon all the revenues of the archbishopric. For some time Anselm rejected all offers of compromise; but when, after all his efforts, he could induce the Pope to go no further than the excommunication, not of the King, but of some of his ministers, he lost heart, and, in 1106, a compromise was arranged at Bec, by which Henry retained the really important part of investiture, the oaths of fealty and homage, while resigning the idle symbol of the gift of ring and crozier. This compromise, which was the same in effect as that made sixteen years afterwards at Worms between Henry V. and Calixtus II., set at rest for the present that rivalry between Church and State which the policy of the Conqueror had introduced. The decrees of a Synod held at Westminster, 1102, by Anselm before going to Rome, show the abuses which the ecclesiastical disputes of the last reign had introduced. They are directed against such habits as simony, marriage of the clergy, the assumption of lay dress by ecclesiastics, the holding of secular courts by bishops, the adoration of unauthorized saints and relics, and vindicate the claims of the Church to be considered as the chief civilizing agent of the time by forbidding the selling of men for slaves.

compromise at Bec.
1106.

Synod of Westminster.

It was not always that the Church appeared in such an amiable light. Henry no doubt, on the whole, attempted to make good appointments, but interest or desire to reward an ardent partisan sometimes put an unfit person into office. Thus Henry of Poitou was given the Abbey of Peterborough, although he already held an abbey in France, apparently as a reward for the support he gave the King in upholding the illegality of the marriage between William Clito and Sibylla of Anjou on the score of consanguinity. "He came like a drone to a hive," says the chronicler; "all that the bees draw towards them the drones devour and draw from them, so did he." It is fair to say that Henry, when he found out how bad a person he had appointed, had him removed. "It was not very long after that that the King sent for him, and made him give up the Abbey of Peterborough, and go out

Frequent unfit
appointments in the
Church. Henry
corrects them when
possible.

of the land.” Thus, again, after a great distribution of abbeys in 1107, it is remarked “that the abbots were rather wolves than shepherds.” Such complaints are however usually uttered by English writers, and the plight of the conquered people was evidently very miserable.

It was a time of great suffering on more accounts than one, and the suffering was of a kind to fall chiefly upon the lower orders. Agriculture was so rough that any little irregularity in the seasons produced a failure of the crops, and the habits of the people were such that any infectious disease was liable to become a pestilence. The constant warfare, either against his vassals or his enemies, which the King carried on, was the cause of frequent taxation, against which no class in the State had it in their power to remonstrate; while the natural and artificial causes of suffering were further aggravated by the frequent issue of false coin. Thus we find year after year such entries as these in the chroniclers:—“The year 1105 was very miserable, because of the failure of the crops, and the ceaseless taxation.” “The year 1110 was full of wretchedness, because of the bad season, and the tribute the King demanded for his daughter’s dowry.” “In this year (1124) were many failures in England in corn and all fruit, so that between Christmas and Candlemas the acre seed of wheat was sold for six shillings; and that of barley, that is three seedlips for three shillings, the acre seed of oats for four shillings, because there was little corn, and the penny was so bad that a man who had at market a pound could by no means buy therewith twelvepenny-worth.” “In this same year (1125) was so great a flood on St. Lawrence’s mass day that many towns and men were drowned, and bridges shattered; corn and meadows totally destroyed, and for all fruits there was so bad a season as there had not been for many years before.” “In that year (1131) there was so great a murrain of cattle as never was in the memory of man.” This carried off neat, swine, and domestic fowls alike. And when the harvest was good the pestilence came. “This year (1112) was a very good year, and very abundant in wood and field, but it was a very sorrowful one through a most destructive pestilence.” Or again, the year 1104, “It is not easy to recount all the miseries the country suffered this year through various and manifold illegalities and imposts which never ceased nor failed, and ever as the King went there was plundering by his followers on his wretched people, and at the same time often burnings and murders.”

Wretched condition of the people.

Extracts from old chroniclers.

In these extracts, which might be largely multiplied, the chief causes of the people’s misery are mentioned. Heavy taxes, famines, floods, pestilence, false money, and purveyance. To attempt to rectify such of these as were within the power of man, was one main part of Henry’s duty. To that was added the work of suppressing, by a centralized royal power, the excesses of the feudal barons. What crying necessity there was that they should be suppressed

Their chief complaints.

Baronial tyranny.

is made plain by the stories related of Robert of Belesme, their chief. He is spoken of as guilty of the most unheard-of barbarities, as having scorned the ransoms of his captives to torture them by newfangled instruments; he found delight in seeing men and women impaled and struggling in the agonies of death. "He was a man," says William of Malmesbury, "intolerable for the barbarity of his manners, remarkable besides for cruelty;" and, among other instances, he relates how, on account of some trifling fault of its father, he blinded his godchild, who was his hostage, by tearing out the poor little creature's eyes with "his accursed nails."

One complaint of his people Henry systematically disregarded. He could not afford to do without his taxes, and on all classes on this point he leant with a heavy hand. But in other respects, as far as in him lay, he rectified abuses of administration, and established a vigorous and effectual police.

Heavy taxation.

Henry cures what evils he can.

The evils of purveyance had become extreme; no property was safe from the hands of the followers of the court, and when they found larger supplies than they wanted, "if it was liquor they washed their horses' feet in it, or food they wantonly destroyed it." But Henry made a regulation for the followers of his court, at whichever of his residences he might be, stating what they should take without payment from the country folk, and how much, and at what price they should purchase, punishing the transgressors by heavy fine or loss of life. So with regard to false coinage, immediately after the complaint of high prices in the year 1124, it is mentioned that Henry at once sent from Normandy to England, and commanded that all the moneymen should have their right hands cut off, and be otherwise mutilated. Bishop Roger of Salisbury sent all over England, commanded them all to come before him, and then and there punished upwards of fifty. Henry was careful, indeed, in other ways with regard to the money, having the whole of the coinage broken to prevent the refusal of broken silver pennies; for it seems to have been the custom to break the coinage to see that the money was good, and tradesmen not unfrequently refused the broken coins.

Against offences of violence Henry was equally vigorous. At one single court held in Leicestershire by Basset the Justiciary, during the King's absence in 1124, no less than forty-four thieves were condemned and hanged, besides others mutilated. "He sought after robbers and counterfeiters with the greatest diligence, and punished them when discovered," says William of Malmesbury. Rivalling his father also in other respects, he restrained by edict the acts of his courtiers, thefts, rapine, and the violation of women, commanding the delinquents to be deprived of sight. He also displayed singular vigilance against the mint masters, suffering no man who had been guilty of "deluding the innocent by the practice of roguery" to escape without losing his hands. "A good man he was," says the Saxon Chronicle, "and all men stood in awe of him;

His strict police.

no man durst misdo against another in his time. He made peace for man and beast. Whoso bare his burden of gold and silver, no man thirst do him aught but good.”

To carry out this strict police some apparatus was necessary, which at the same time should serve the purpose of diminishing the power of the great nobles, and that of beginning at all events, by its centralizing influence, to re-form the conquered people and their conquerors into one nation. The rudiments of such an apparatus Henry found already existing in the arrangements which the Conqueror had made. The system of frankpledge, increased and adapted to the more general feudal

Administrative
machinery.

Local courts.

Curia Regis.

form of society, supplied him with an efficient system of police. There was no man in the kingdom but some one was answerable for him. If he was a vassal, his lord. If he was a freeman, the knot of freemen of which he was a member. As courts to carry out this system, there were the old Hundred and Shire gemots. These Henry strengthened and, it would seem from one existing order, restored when in any way decayed to their original purity. To these courts criminal cases belonged, and civil suits between vassals of different lords. Questions between vassals of the same lord seem to have fallen within the jurisdiction of the lord. But these inferior courts, although they were excellent for police purposes, and as a check upon the powers of the baronial courts, would have done little towards the formation of nationality had they not been brought into connection with a superior court of which the king was chief. This central court consisted of the King in his ordinary council, which, since the Conquest, was known as the Curia Regis. Over it was the justiciary, who was the King’s representative, his regent during his absence, the head of his administration, both judicial and financial, at all times. Under him was a selection of barons, the chief officers of the royal household, and those best qualified for judicial purposes. The clerks of this court were placed under a head, who was the chancellor. The judges themselves sat for financial purposes in the exchequer chamber, and were spoken of as the barons of the exchequer. For general business they were called justices, and their head the chief-justice. The organization of this court dates from the reign of Henry I. The office of chief justiciary had been founded by William the Conqueror, but the regular formation of the Exchequer Court was the work of Roger, Bishop of Salisbury, in the hands of whose family the direction of the machinery remained for nearly a century.

[8] It was afterwards, as we shall see, brought to its completion by Henry II., but all its essential parts are to be found in the reign of his grandfather. It was as officers of finance that the justices first began to traverse the country. The sheriffs could not always be trusted in their own localities, and change of property and other causes gave rise to difficult questions, requiring to be settled by the immediate intervention of the King’s officers. From financial questions their authority naturally passed to questions of justice, and their connection with the local courts was further strengthened when Henry united several sheriffdoms under one of his justices.

Following a natural tendency, the men employed for these offices were not the great barons, but new men, who rose by their talents, and were naturally upholders of the royal power and of order in opposition to the anarchical baronial party.

To sum up; after the year 1108, when the local courts were re-established, both the Hundred and county courts were the same in constitution and in arrangement as before the Conquest. But they were connected with the central government; because matters in which the King was interested were set aside for the consideration of the Curia Regis, or travelling justiciary sent out from that body; and because the Norman lawyers had introduced the practice of issuing writs from the King's court, whereby the King, in virtue of what is called his "equitable power," that is, his power of securing justice where the law did not give it, prescribed the method of action in certain difficult cases. The Hundred court was sometimes a lower court for the arrangement of small debts; the Bailiff of the Hundred then presided. Sometimes it was the great court held only twice a year; the sheriff then presided, the court exercised criminal jurisdiction, and was known as the "Court Leet." It also saw to the filling up of the divisions of ten men required by the system of Frankpledge; this was called "the view of frankpledge." The court was then known as "the Sheriff's Tourn." Below these local courts were the feudal manor courts, the old motes of the township, now become the courts of the lord. But we must not suppose that the authority of the sheriff and the local courts (now virtually royal courts) was universal. Certain great lords enjoyed franchises, that is, exercised jurisdiction over several manors. If the lord had "sac and soc," his court had the authority of the Court Leet. If he had "the view of frankpledge," the suitors at his court were free from attendance at the Sheriff's Tourn. His court was then in all points like the Hundred court, but independent of the sheriff. This double system Henry had apparently to submit to, watching the baronial power as well as he could, by means of the local courts and travelling justices.

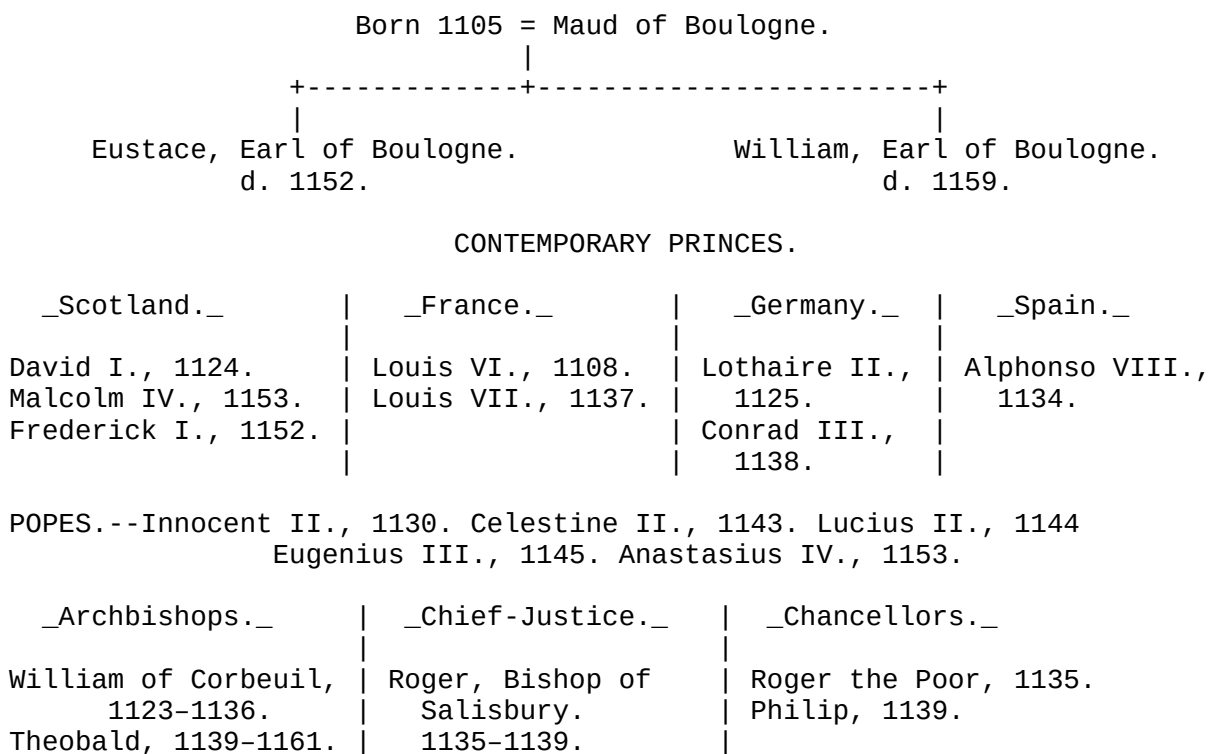
It is to be carefully remembered that though the Curia Regis, representing the King's council, attested charters, and revised and registered laws, it had no legislative authority. Both the imposition of taxes and the making of laws still rested with the King and his great council, the representative of the Witan, which had become a feudal court, and consisted chiefly of the King's vassals. Their "counsel and consent" was a necessary condition of all legislation.

The National
Assembly.

STEPHEN.

1135–1154.

[click here to see the image](#)



On Henry's death, according to the oath of the nobles, Matilda, late Empress, now wife of Geoffrey of Anjou, should have become Duchess of Normandy and Queen of England. But the principle of hereditary succession was by no means firmly established; a female sovereign was not desirable for a feudal country; her child Henry was an infant; and the nobles held that the conditions of their oath of fealty had been broken when Matilda had married a foreigner. There was therefore almost a unanimous feeling that one or other of the Princes of Blois, grandsons of the Conqueror, Theobald the elder brother, or Stephen, Count of Mortain and Boulogne, should ascend the throne. Steps were being taken in Normandy to induce Theobald to come forward,

Stephen's accession.

when news was brought to him that the superior quickness of his brother Stephen had already secured the crown in England, where, though not without some demur, the influence of the Church, headed by his brother Henry of Winchester, had secured him success.

There followed a period of twenty years without a parallel in the history of England. It was the only time during which the feudal baronage assumed that position of practical independence which it was always aiming at, which it frequently enjoyed abroad, but which the wise management and strong government of the Conqueror and his two sons had rendered impossible in England. The weak title of the King, and the constantly urged claim of the Empress, joined with the personal character of Stephen, who seems to have been unable to refuse a request, afforded an opportunity to the barons of asserting virtual independence and fighting for their own interests, while nominally upholding one or other of the claimants to the throne. The same causes affected the Church, which was now able to make good that commanding position which the legislation of the Conqueror had given it, although up to this time the strong hand of the King had rendered the position worthless. The only organized power in the midst of anarchy, it was enabled to use its influence to the full. It was the Church that set Stephen on the throne; it was his quarrel with the bishops which lit up the civil war in England; the success of the Empress was of no avail till she was accepted by the Church; her attack upon Henry of Winchester was the signal for her discomfiture; it was the mediation of the Church which ultimately produced a cessation of the war.

Strange character of the reign.

Great power of the Church.

The facts of the reign are few and in themselves unimportant. To the growth of the constitution it added nothing. It is nevertheless interesting as exhibiting the effects of unbridled feudalism, and as preparing the way for the great work of consolidation perfected by Henry II.; on the one hand by the misery and disgust excited by the lawless outrages of the barons; on the other by the overwhelming power thrown into the hands of the Church, which could not co-exist with any true national monarchy.

The interest of the reign.

On his coronation, Stephen, in general terms, promised to uphold the good laws of his predecessors. At the first great council of his reign he issued a more explicit charter, securing to the Church their property and privileges, and promising to suppress illegalities on the part of the sheriffs. The character of the reign rendered such a charter quite inoperative. The insurrection in Wales, which had been bringing Henry to England when he died, continued. Its conduct

Stephen's charter.

Affairs in Wales.

fell chiefly to Ranulf, Earl of Chester, and Richard Fitz-Gilbert of Clare. Stephen's presence on the borders did not succeed in checking it. Richard Fitz-Gilbert was killed, and he left the country as before to be conquered by the gradual advance of the lords marchers.

Already, it would seem, the yielding character of Stephen had been discovered. Already barons began to take advantage of it. Roger Bigot seized the Castle of Norwich, and wrested from the King the earldom of that county and of East Anglia. Robert of Batherton and Baldwin of Redvers, in Devonshire, began to rebel. They were indeed both conquered, but such movements mark the temper of the times. In 1137 Stephen found himself strong enough to cross to Normandy, where Geoffrey of Anjou was making war upon his provinces. His success there was not great. He purchased from Geoffrey a cessation of hostilities. Meanwhile the Northern frontier of England had become a scene of war. David of Scotland, the nephew of Eadgar Ætheling, and uncle through his sister Matilda of the Empress, had himself some claims to the English throne. But these he declared that he waived, wishing to abide true to the oath he had taken to support his niece. He, however, demanded that his son Henry should be allowed to do homage to Stephen for Cumberland, and that he himself should receive the counties of Northumberland and Huntingdon, which he claimed in right of his wife, the daughter of Earl Waltheof. Though he himself declared that he had no desire for the English throne, there is mentioned by one chronicler^[9] a general conspiracy of the native English with their exiled countrymen, of whom the south of Scotland was full, for the purpose of taking advantage of the condition of the country to put to death the Normans, and to place the crown upon David's head. The plot was discovered by the Bishop of Ely, who was at once Bishop and Governor of that district, which had been formed by the last king into a modified county palatine. He told his discovery, and many of the conspirators were hanged, but many others found a refuge in Scotland. At length, in 1138, David entered England with a large army, and pushed forward as far as Northallerton in Yorkshire. He was there met by the forces of the Northern bishops and barons, gathered under the command of Walter Espec, Thurstan, the aged Archbishop of York, William of Albemarle, Roger of Mowbray, and other barons. They gathered round a tall mast borne upon a carriage, on which, above the standards of the three Northern Saints, St. Peter of York, St. John of Beverley, and St. Wilfred of Ripon, was displayed a silver pyx bearing the consecrated wafer. The motley army of the Scots, some armed as the English, some in the wild dress of the Picts of Galloway, after a well-fought battle, broke against the full-clad Norman soldiers, and were

Early signs of disturbance.

War with Scotland. 1137.

Its connection with an English conspiracy.

Battle of the Standard. Aug. 22, 1138.

killed by the arrows, which had now become the national weapon of the English; 11,000 are said to have fallen on the field. But, in spite of the victory, Stephen, conscious of his general weakness, accepted an unfavourable peace, by which Northumberland was given to Prince Henry.

All this time the spirit of lawlessness had been increasing. “Many persons,” says the chronicler,^[10] “emboldened to illegal acts, either by nobility of descent or by ambition, were not ashamed, some to demand castles, others estates, and indeed whatever came into their fancy, from the King. When he delayed complying with their request ... they, becoming enraged, immediately fortified their castles against him, and drove away large booties from his lands.” “He created likewise many earls where there had been none before; appropriating to them rents which had before belonged to the crown. They were the more greedy in asking, and he more profuse in giving, because a rumour was pervading England that Robert of Gloucester would shortly espouse the cause of his sister.” The creation of earldoms had been rare under the three first Norman kings, and as those offices died out their places had not been filled. It is said, indeed, that in 1131 there were but three earls in England, Robert of Gloucester, and the Earls of Chester and Leicester.^[11] As the earl received the third penny of the fines of his earldom, the creation of earls manifestly impoverished the crown. But Stephen appears to have gone beyond the filling up of regular earldoms, and to have created titular earls,^[12] with grants of royal demesne lands to support their dignity. The building of castles^[13] was the great sign of the anarchical condition of England, implying private war and all the other horrors of the worst forms of continental feudalism.

Growth of anarchy in England.

Creation of earldoms and castles.

This anarchy began to assume a form when Robert of Gloucester, alleging his previous oath to Matilda, and asserting that the conditions on which he had accepted Stephen had not been kept, renounced his fealty. His influence was in his earldom, and in the West of England; the headquarters of his party was Bristol; and his agent during his absence was Milo, Constable of Gloucester, afterwards Earl of Hereford. Nearly all the West, and by no means the West only, declared for Matilda. But in most cases the rival claims to the throne were used as an excuse merely. Change of sides was common, and there are instances of leaders excluding their own nominal partisans from strongholds they had won.^[14] At first the insurrection was unsuccessful. Stephen, conscious of his weakness, had collected mercenaries from Flanders and from Brittany. The condition of the country made them eager to come. In Stephen’s time numbers of freebooters from Flanders and

Robert of Gloucester renounces his fealty. 1138.

Stephen’s mercenaries.

Brittany flocked to England in expectation of pillage.^[15] The chief leader of the Flemings was William of Ypres; the Bretons were commanded by Alan the Black of Richmond, Hervé of Léon, and Alan of Dinan. With the aid of these Stephen speedily regained the great castles he had lost, such as Bath, Castle Cary, Harptree, and Shrewsbury; and might perhaps even yet have established his authority, when an act of supreme folly set him at variance with the Church.

The new administrative class was represented by Roger of Salisbury, who had succeeded in procuring for his nephew Alexander the bishopric of Lincoln, for Nigel the bishopric of Ely, while his illegitimate son Roger was Chancellor. The vast wealth and influence of this family encouraged them to build castles, and Devizes, Sherborne, Malmesbury, and Salisbury were strongly fortified. The family of Beaumont, Earls of Mellent, had been generally firm supporters of the crown and of authority. They now seem to have seen with jealousy their position as the chief advisers to the crown occupied by men of law, ecclesiastics, yet without the sanctity which befits the ecclesiastical profession. At their instigation, and at that of their friends, the King took the ill-advised step of beginning his assault on his castle-building barons by demanding the surrender of these bishops' castles. The Bishops of Lincoln and Salisbury were suddenly arrested at an assembly held at Oxford (1139); the Bishop of Ely took refuge in the castle of Devizes. Thither the King betook himself, with his two prisoners, as some accounts assert, kept entirely without food, one in a cow-stall and the other in a hovel. This treatment of the bishops, and a threat of hanging Roger the Chancellor, produced the surrender of Devizes as well as the other three castles.

Jealousy between the old and new administration.

The success was dearly bought. The King's brother, Henry of Winchester, upheld the dignity of his order. He summoned a council, produced a Papal letter declaring him legate, proceeded to lay his charges against the King before the council, and advised him to submit to canonical punishment. Stephen's case was defended by Aubrey de Vere, who, when the aggrieved bishops spoke of an appeal to Rome, declared that the King advised them not to do so, as whoever went might find it difficult to return; and himself appealed to the jurisdiction of the Pope. This threat, and an ominous appearance of drawn swords around the meeting, prevented the bishops from proceeding to extremities; but none the less had Stephen forfeited their support. The immediate effect was the arrival of Gloucester and the Empress in the South of England.

Stephen's quarrel with the Church.

Consequent arrival of Matilda. Sept. 30, 1139.

After a short stay at Arundel, the Empress withdrew to join her brother, who had preceded her, at Bristol. There had been

Civil war.

a friendly meeting with Henry of Winchester upon their arrival, and it was the same Henry who escorted the Empress to join her brother.^[16] The scene of confusion became still more confused. Brian Fitz-Count^[17] held Wallingford for the Empress; Milo of Gloucester regained many of the Western castles which Stephen had won. In Cornwall, Reginald of Dunstanville, a brother of the Earl of Gloucester, upheld, though without much success, the cause of the Empress. In Wiltshire, Fitz-Hubert, a Fleming, and Fitz-Gilbert fought nominally for the Empress, really for themselves, till Fitz-Gilbert enticed Fitz-Hubert, who had refused admission to the partisans of the Empress for whom he was nominally fighting, to the Castle of Marlborough, and there hanged him.

The quarrel between Stephen and his bishops grew worse and worse. Roger of Salisbury died in 1139. The Bishop of Winchester demanded the See for his nephew. Again Waleram of Mellent thwarted the Church, and his request was refused. At the Whitsuntide festival (1141) held in London, but one bishop,^[18] and that a foreign one, was with the court. The state of uncertain anarchy was becoming highly distasteful to Robert of Gloucester. An opportunity occurred of bringing matters to a crisis. Ranulph, the Earl of Chester, had hitherto played fast and loose with both parties, and the King had parted from him at Lincoln, which he possessed in right of his mother Lucia, believing him to be his partisan. But, a few days after his departure, Ranulph and his brother William of Roumare, surprised the castle, on which the King, who was a good soldier and very rapid in his movements, suddenly came back and besieged it. Ranulph escaped from the castle to Robert of Gloucester, who seized the occasion to bring on a pitched battle. With Ranulph, his own partisans, and the Welsh, he reached the Trent, passed it with some difficulty, and appeared suddenly before Lincoln. A great battle ensued, in which the victory fell to Gloucester, and Stephen was himself taken prisoner.

Of course this defeat somewhat changed the balance of affairs. Cornwall was regained for the Empress, and her influence reached eastward as far as Bedford and Nottingham. But she could not hope in any true sense to obtain the crown without the consent of the all-powerful Church. At once therefore negotiations were opened with Henry of Winchester. Having won his adherence, and with it that of the greater part of the bishops, she went from Gloucester, accompanied by the Bishop of Ely and other supporters, to Winchester. In an open plain without the city she swore to follow the advice of the Legate on Church matters. Her oath was attested by Milo, afterwards Earl of Hereford, Earl Gloucester, Brian Fitz-Count, and others. A

Continued quarrel
with the Church.

Robert, to bring
matters to a crisis,
fights the battle of
Lincoln. Feb. 2, 1141.

Matilda seeks help of
the Church, and
becomes Queen.

Importance of the
Londoners. 1141.

council of the Church was held a few days after. The Legate addressed the assembly, and declared his adhesion to Matilda. It is to be observed that he waited a day to receive the citizens of London, who were “as it were nobles by reason of the magnitude of the city.” Both the Londoners and many of the nobility besought for the release of Stephen, but their request was refused, and many of the royal party executed. Having obtained the castle of Oxford from Robert of Oilli, Matilda proceeded to London; but there the haughtiness of her behaviour soon produced the ruin of her cause.

It seems as though, if he could only have regained his liberty, Stephen himself and his partisans would have been willing now to retire from the contest. The Earls of Leicester and Mellent, hitherto staunch supporters of the King, together with his old friend Hugh, the Bishop of Rouen, went so far as to offer the crown to Stephen’s brother Theobald. But that prince declined to receive it, and even advised them to transfer their offer to Geoffrey of Anjou, on the sole condition that Stephen should be liberated. Taking advantage of such an opportunity as this, while supported by the friendship of Henry of Winchester and the Londoners, Matilda might have made her throne secure, but she at once took steps which alienated both. To Henry of Winchester, who must naturally have felt the ties of relationship towards his brother, she refused the natural request that Stephen’s son Eustace might be placed in possession of his father’s foreign fiefs. From the Londoners she demanded a heavy tallage, in spite of their complaints that they had been already stripped by taxations. King Stephen’s Queen, to whom many of the fugitives from Lincoln had betaken themselves, made use of the discontent thus excited to advance against London. The inhabitants rose, and the Empress barely escaped with a few followers to Oxford. The insurgents demanded the liberation of Stephen. In this demand the Bishop of Winchester now joined, and the Empress besieged him in his castle outside the town of Winchester. But her besieging army was soon itself besieged, its communications and means of subsistence cut off, and she found herself obliged to retire. The Earl of Gloucester therefore despatched her before him to Devizes, while he himself covered her retreat. But he was hotly pursued and taken prisoner. This neutralized all his previous successes. After some negotiations the great prisoners were exchanged, and the state of parties fell back very much to its position before the battle of Lincoln.

Matilda’s opportunity, but she offends both Church and Londoners.

Consequent revolution of affairs.

Gloucester taken prisoner, and exchanged for Stephen. 1142.

Of decided successes on either side there were none. In 1142, the Empress, hard pressed at Oxford, barely made her escape with two knights, all clothed in white, across the snow. In the following year Stephen, on the other hand, suffered a defeat at Wilton. The

Renewal of the old anarchy. 1146.

same struggle for individual liberty on the part of the barons was apparent everywhere. Thus the Cathedral of Coventry was changed into a fortress by a baron of the name of Marmion, the Abbey of Ramsey by Mandeville. Nor did the retirement of several of the hotter spirits from the contest to join in a crusade which St. Bernard was then preaching materially change the aspect of affairs. But, in 1147, new actors begin to appear upon the scene. Wearied with the long useless struggle, Matilda withdrew to France. But to take her place her son Prince Henry came over to England. As it were to match him, Stephen brought his son Eustace prominently forward. This change of persons is still more clearly marked by the death of the great Earl of Gloucester, a man to whom many acts of cruelty in accordance with the temper of the time could be attributed, but who, if we may judge from the testimony of William of Malmesbury, was far superior in character and civilization to most of those by whom he was surrounded.

Appearance of Prince Henry.

Death of Robert of Gloucester. 1148.

The withdrawal of the Empress and the appearance of Henry made a considerable difference in the views of those barons in England who were not wholly selfish. Stephen had been tried and failed. They had no longer to fear the rule of a woman. And thus we find Robert of Leicester, second son of the great Earl of Mellent, who had hitherto served Stephen and done him good service in Normandy against the Angevins, giving in his adherence to the young prince. In company with his cousin Roger of Warwick, he held the town and castle of Worcester for him, and succeeded in driving off the royal army. Henry's accession to the county of Anjou upon the death of his father Geoffrey, in 1151, and still more his marriage with Eleanor, the divorced wife of Louis, heiress of Poitiers and Guienne, changed the character of the war. He was no longer a poor claimant, at best the son of a count, but had been suddenly transformed into one of the most powerful princes in Europe. In addition to this, since the death of Pope Innocent in 1144, the Papal See had been taking a more decided course against Stephen. The legatine authority had been withdrawn from Henry of Winchester, whose relationship with Stephen made his action always doubtful, and been given to Theobald the Archbishop, but Stephen, with his usual want of address, contrived to quarrel with him, and he therefore threw his whole weight upon the side of Henry.

Henry's marriage and increased power.

Church sides with him.

Thus, when Henry contrived to form a truce with his rival the French King, and to enter England with a considerable army, the country was much disposed to receive him. Many of the nobility began to declare for him. The Beaumonts, as we have seen, were already his friends. The Countess of Warwick placed her castle in his hands. Robert

Meeting of the armies at Wallingford. 1153.

of Leicester supplied him with provisions, and he marched in good hope to relieve Wallingford, which, defended by Brian Fitz-Count, Stephen was now besieging. There the two armies met; but the desire for peace was so general, that they both demanded that negotiations should be opened. Nothing was then settled, but the armies separated. Stephen proceeded to besiege Ipswich, where Bigot had declared for Henry, and Henry, taking Nottingham on the way, was marching to relieve it, when the heads of the Church saw their opportunity, and Theobald and Henry of Winchester combined to mediate a peace. This was the more easy on account of the death of the young Prince Eustace. On the 7th of November the Treaty of Pacification was concluded at Winchester. It was a compromise. Stephen was to remain King of England during his life; Henry was to be accepted as his son and heir; Stephen's son William was to do homage to Henry for all his large possessions in England and in Normandy. There then followed an arrangement for restoring the administration which the war had ruined. The castles were to be razed, the coinage reformed, the sheriffs replaced, the crown lands resumed, the new earldoms extinguished, foreigners banished, and administration of justice restored.^[19] After this treaty Henry's duties summoned him chiefly to France; and Stephen, for the short remnant of his life, remained undisputed King of England. He died on the 25th of October 1154.

Church mediates a compromise. 1153.

Death of Stephen. 1154.

Two short extracts from chroniclers give a more complete view of the misery which attended this lawless period than any fresh description could do. William of Newbury says: "Wounded and drained of blood by civil misery, England lay plague-stricken. It is written of an ancient people, 'In those days there was no king in Israel, and every man did that which was right in his own eyes;' but in England, under King Stephen, the case was worse. For, because at that time the King was powerless, and the law languished because the King was powerless, though some indeed did what seemed right in their own eyes, many because all fear of King and law was taken off them, did all the more greedily what by their natural instincts they knew to be wrong.... Neither King nor Empress was able to act in a masterful way, or show vigorous discipline. But each kept their own followers in good temper by refusing them nothing lest they should desert them.... And because they were worn out by daily strife, and acted less vigorously, local disturbances of hostile lords grew the more vehement. Castles too rose in great numbers in the several districts, and there were in England, so to speak, as many kings, or rather tyrants, as lords of castles. Individuals took the right of coining their private money, and of private jurisdiction." We have here the effects of the loosened hold of the crown,—castles, private war, private coinage, private justice. The Saxon

Quotations from chroniclers. The miseries of this reign.

Chronicle supplies us with a picture of the effect of these feudal usurpations upon the lower ranks of the people:—

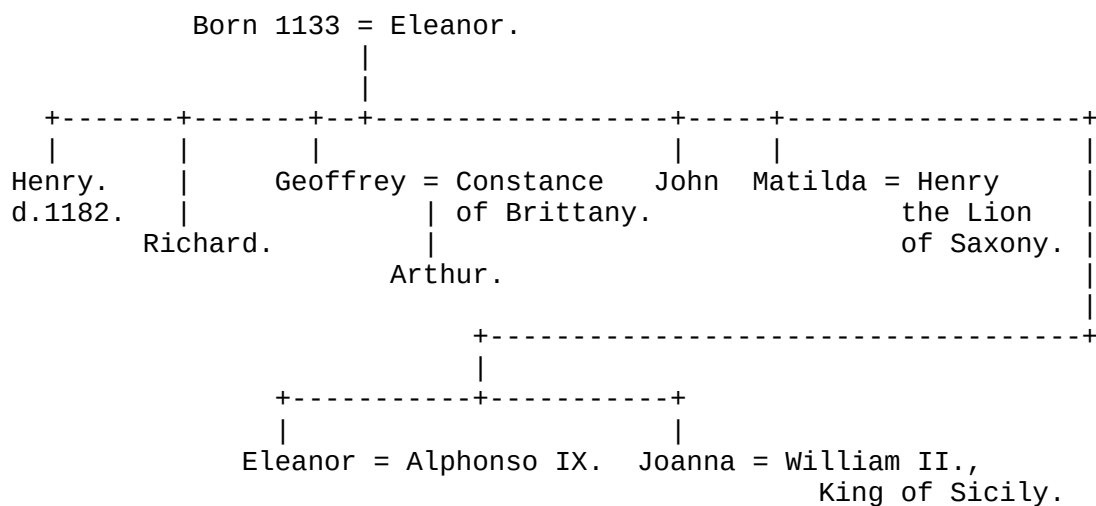
“When the traitors perceived that Stephen was a mild man, and soft and good, and did no justice, then did they all wonder. They had done homage to him and sworn oaths, but held no faith; for every powerful man made his castles and held them against him, and they filled the land full of castles. They cruelly oppressed the wretched men of the land with castle works. When the castles were made, they filled them with devils and evil men. Then they took those men that they imagined had any property, both by night and by day, peasant men and women, and put them in prison for their gold and silver, and tortured them with unutterable torture; for never were martyrs so tortured as they were. They hanged them up by the feet and smoked them with foul smoke; they hanged them up by the thumbs or by the head, and hung fires on their feet; they put knotted strings about their heads, and writhed them so that it went to the brain. They put them in dungeons, in which were adders, and snakes, and toads, and killed them so. Some they put in a ‘cruset hûs,’ that is in a chest that was short and narrow and shallow, and put sharp stones therein, and pressed the man therein, so that they brake all his limbs. In many of the castles were instruments called a ‘lāõ (loathly) and grim;’ these were neck-bonds, of which two or three men had enough to bear one. It was so made, that is, it was fastened to a beam, and they put a sharp iron about the man’s throat and his neck, so that he could not in any direction sit, or lie, or sleep, but must bear all that iron. Many thousands they killed with hunger; I neither can nor may tell all the wounds or all the tortures which they inflicted on wretched men in this land; and that lasted the nineteen winters while Stephen was King; and ever it was worse and worse. They laid imposts on the towns continually; and when the wretched men had no more to give, they robbed and burned all the towns, so that thou mightest well go all a day’s journey, and thou shouldest never find a man sitting in a town, or the land tilled. Then was corn dear, and flesh and cheese and butter; for there was none in the land. Wretched men died of hunger; some went seeking alms who at one while were rich men; some fled out of the land. Never yet had more wretchedness been in the land, nor did heathen men ever do worse than they did; for everywhere at times they forbore neither church nor churchyard, but took all the property that was therein, and then burned the church and altogether. Nor forbore they a bishop’s land, nor an abbot’s, nor a priest’s, but robbed monks and clerks, and every man another who anywhere could. If two or three men came riding to a town, all the township fled before them, imagining them to be robbers. The bishops and clergy constantly cursed them, but nothing came of it, for they were all accursed, and forsworn, and lost. However a man tilled, the earth bare no corn; for the land was all foredone by such deeds, and they said openly that Christ and His saints slept. Such, and more than we can say, we endured nineteen winters for our sins.”

A people who had suffered these things must certainly have sighed for a strong government, by whatever hand it should be wielded; and miserable though the reign had been, it tended towards the consolidation of nationality.

HENRY II.

1154–1189.

[click here to see the image](#)



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Malcolm IV., 1153. William, 1165.	Louis VII., 1137. Philip Augustus, 1180.	Frederic I., 1152.	Alphonso VIII., 1134. Sancho III., 1157. Alphonso IX., 1158.

POPES.--Adrian IV., 1154. Alexander III., 1159. Lucius III., 1181.
Urban III., 1185. Gregory VIII., 1187. Clement III., 1187.

Archbishops.	_Chief-Justices._	_Chancellors._
Theobald, 1139–1161. Thomas à Becket, 1162–1170. Richard, 1174–1184. Baldwin, 1185–1190.	Robert, Earl of Leicester, 1154–1167. Richard de Lucy, 1154–1179. Ranulf Glanville, 1180–1189.	Thomas à Becket, 1154–1162. Ralph de Warneville, 1173–1181. Geoffrey, the King's son, 1181–1189.

The consolidation of the nation was the great work of Henry of Anjou. He brought to it great gifts, sagacity, masterful courage, a legal and judicial mind; while his training, as the prince of widely extending countries, prevented the intrusion of petty local interests into his views for his people's good.

Main objects of
Henry's reign.

First acts of his reign.

The lessons of the last reign were not lost on him. Before all things he desired a strong government and good order. In pursuing these objects he took for his model his grandfather and great-grandfather, and worked out in greater and more systematic detail the policy they had begun. And though in his efforts to subordinate the Church he may seem to have run counter to the legislation of his great-grandfather, it will be seen that in many points his policy was really the same. In the earlier part of his reign work lay ready to his hand, and the compromise at Winchester had already marked out his line of action. He could not immediately come to England, being detained by an insurrection in Guienne. But when he had settled this, and, by a humility of bearing he knew well how to feign, secured the friendship of Louis VII., he crossed the Channel, and at once proceeded with his reforms.

He renewed the charter of the City of London; fixed a short period during which the Flemish auxiliaries, who had already probably begun to return home, should leave the country; recalled grants of the royal domains which had been made in Stephen's reign; re-established the old number of limited earldoms; and proceeded to lay hands on both the royal castles which individual barons had appropriated and those private fastnesses with which the country had become covered. Their number is variously estimated, by some it is put as high as 1150. It was not without some opposition that he carried out this work. It was chiefly in the North and West that difficulty occurred. Before the year was over he had received the submission of William of Albemarle, who was nearly independent in Yorkshire. In February of the next year he expelled Peveril, who had been guilty among other things of poisoning the great Earl of Chester, from his Earldom of Nottingham. He followed up his success by compelling the border barons, Roger, son of Milo, Earl of Hereford, and Hugh Mortimer, a descendant of the same family as Robert de Belesme, to surrender their fastnesses. To complete his dominion at home he marched against Malcolm of Scotland, who was occupying the three Northern counties. These he compelled him to resign, obliging him to do homage for the county of Huntingdon, which he claimed as a descendant of the old Earl Waltheof. Throughout all the earlier part of the reign the Scotch King appears as a great English baron, following the King to his wars.

He restores order in
the State.

Henry even thus early began to think of curbing the overgrown power of the Church; and Henry of Winchester, in fear of what might happen, thought it better

to lay aside his episcopal robes and retire for a time to Clugny, from which, however, he was soon induced to return. An event, indeed, soon occurred which rendered the King's position with the Church peculiarly strong. In 1154 Nicolas Breakspear ascended the Papal throne, the only Englishman who ever attained that honour. The connection between England and the Papal See, always close since the Conquest, was drawn even closer, and the Pope made a grant of the schismatical country Ireland to the English King; a grant the enjoyment of which Henry postponed till a more convenient season. Henry's widely spread dominions kept him constantly moving, and in 1156 the affairs of his native county summoned him to France. He left his kingdom in charge of Robert of Leicester, his great justiciary.

Friendship of Adrian IV.

The difficulty in Anjou arose from the claim raised by his younger brother Godfrey to that province. This claim rested upon a doubtful will, by which his father was said to have intended Anjou for Godfrey if Henry was called to the throne of England. By force of arms Henry reduced the country; and his brother withdrew on the receipt of certain payments, being shortly after called by the burghers of Nantes to become lord of their town. This affair was scarcely settled when Henry hurried back to England, there to complete his conquest of the Scotch King, by obliging him to surrender his strong castles of Bamborough, Newcastle and Carlisle, and again to do homage for Huntingdon, on which occasion, however, the clause "Salvis omnibus dignitatibus suis" was introduced into his oath. This, with the surrender of castles by Hugh Bigod in Norfolk, and of William, called of Warrenne, son of the late King, and Earl of Surrey, completed the subjugation of the feudal nobles, and rendered him absolute master of England.

Wales alone gave him further trouble. Thither, in 1157, he led an army against Owen Gwynneth at the instigation of his fugitive brother Cadwallader. The expedition was not successful; on this, as on subsequent occasions, Henry found it impossible to reduce the Welsh in their mountain strongholds. It is noteworthy, as affording the first instance of scutage, or money payment in exchange for personal service, which was in this instance demanded of knights holding from the clergy; and for the shameful flight of Henry de Essex, the royal standard-bearer, which gave rise afterwards to a remarkable judicial duel. In the year 1163 Robert de Montfort impeached Henry de Essex for cowardice and treachery. The matter came to the ordeal of battle, and Essex being conquered, forfeited all his lands, and retired as a monk to the Abbey of Reading. This, and the confiscation of the property of Peveril, already mentioned, are the only two instances of confiscation during the reign.

Master of England, Henry attacks Wales.

Rise of Thomas à Becket.

He is employed in foreign negotiation. 1158.

It was during this prosperous period of the King's reign that Thomas à Becket becomes prominent. The son of a citizen of London, his talents had been early seen and employed by Archbishop Theobald. In 1143 he had succeeded in getting for his patron the legatine authority over England, and afterwards that Papal bull which prevented the crowning of King Stephen's son Eustace. He was richly rewarded by livings in the Dioceses of Oxford, London, and Lincoln, and, in 1154, with the position of Archdeacon of Canterbury. The recommendation of the Primate soon placed him about Henry's court. He was appointed chancellor, and as such was the chief clerk of the Curia Regis, kept the King's seal, and had the management of vacant ecclesiastical benefices. He was further intrusted with the guardianship of the Tower of London, and with the castle of Eye in Berkhamstead, thus occupying a position partly secular, partly ecclesiastical. In this situation he exhibited all the splendour of a great noble; kept a magnificent table, followed the sports of the field, and was a proficient in knightly exercises. Henry found much pleasure in his society, and employed him in delicate negotiations. Thus, in the year 1158, he was sent to arrange a match between Margaret of France and Henry's son Henry. His magnificent embassy dazzled the eyes of the Frenchmen and was completely successful. The object of the arrangement was to win the friendship of Louis, and prevent him from interfering with the King's plans on Nantes, where he meant to make good his claim as successor to his brother Godfrey, who had lately died. A meeting with Louis was effected on the river Epte. Henry accompanied him back to Paris, and received from him the child princess, whom he intrusted to the care of Robert of Neuburg, Justiciary of Normandy. Strong in this new-formed friendship, Henry found no difficulty in securing Nantes, and thereby a hold upon Brittany.

In spite however of his apparent agreement with Louis he soon found himself at open war with him. Queen Eleanor's grandfather, on going to the Crusades, had mortgaged the county of Toulouse to Raymond of St. Gilles. The mortgage money had not been repaid, as Raymond of St. Gilles still held the city. This nobleman had married the French King's sister Constance. When therefore Henry raised the claim of his wife, the French King openly adopted the cause of Raymond.^[20] Henry determined to have recourse to arms, and in 1159 raised an army for the purpose. The war is interesting, not so much in itself, as in two or three collateral points connected with it. Thus Malcolm of Scotland came with forty-five ships, and a Welsh prince likewise joined the army. Again, the presence of Becket at the head of an unusually well-equipped body of 700 men is mentioned. He is said to have urged the King to active measures against the French monarch.

Nevertheless there is war with France. 1159.

Interesting points in it.

Scotch King serves him.

Introduction of scutage.

But Henry—who was surprised at finding his lately made friend in arms against him, and opposing with all his power a claim he had once himself urged, and who by no means wished to drive matters to extremity—showed some scruple in attacking his suzerain, and contented himself with gaining his object by laying waste the country and capturing the castles. At the same time he contracted an engagement between his son Richard and Berengaria, the daughter of Count Raymond of Barcelona, the son-in-law of the King of Aragon,^[21] and in fact Governor of that country. But the most important point about the war was the introduction of the habit of money payments in exchange for military service. This measure had been adopted previously with respect to the Church in the war with Wales. On the present occasion the sum is said to have amounted to £180,000.^[22] There were many advantages in the change. The King was enabled to hire mercenaries, and dispense with the irregular services of his feudal followers; he got contributions from the Church lands, and was enabled to do without the hated tax of the Danegelt, at the same time that he struck a blow at the military importance of his feudal barons.

Thus far the course of Henry's reign had been one of unbroken prosperity. He had settled and increased his dominions both in England and on the Continent, had on the whole gained in his opposition to his suzerain the King of France, and had strengthened himself by prudent marriages for his children. He was henceforward, except for a very few years, to be plunged in disputes and difficulties. It has been mentioned that the Church in England had reached a position

Having reduced the State to order, Henry turns to the Church.

General friendship of England and France with the Pope.

of great pre-eminence during the troubled period of Stephen's reign. The policy of the Norman kings had been always to support the Church to the utmost, to keep on good terms with Rome, but at the same time to make good the supremacy of the power of the king in his own dominions. William the Conqueror, it will be remembered, had entirely separated the spiritual from the temporal jurisdiction. Before the arrival of the Normans, all offences not strictly ecclesiastical had been tried and punished in the County and Hundred courts, where both bishop and aldermen presided side by side. In withdrawing the bishop from the secular courts, William had desired to raise the character of the clergy by confining them more completely to spiritual matters. But an abuse had easily grown up, which produced a directly opposite effect. As the pretensions of the Church rose, not only were spiritual questions to be tried in the spiritual courts, but spiritual men were also withdrawn from the secular jurisdiction, and the doctrine became prevalent that the cleric could be only tried by his ecclesiastical superior.^[23] Now ecclesiastical courts could not inflict corporal punishments. Censures, excommunications, and penances were their weapons. Consequently clerks might and did commit every

sort of crime without suffering any punishment. To Henry's love of justice and order this was most repugnant. But at the same time that he wished to curtail the license of the clergy, and to establish the superiority of the royal jurisdiction, he distinctly upheld the policy of his predecessors in supporting the Roman See. It was a critical time for that power. The great Frederick Barbarossa was upon the throne of Germany and attempting to establish with regard to himself and the Pope on a larger scale what Henry was anxious to do in England. With a comprehensive view of the struggle, he had invited the Kings of England and France to join him in united action for the establishment of the supremacy of the secular power. His overtures had not been received; and when, upon the death of Hadrian, in 1159, after a stormy conclave, the Italian party elected Rolando Bandinelli, under the title of Alexander III., and the imperial party Cardinal Octavian, as Victor IV., the two Western kings gave in their adhesion to Alexander. When expelled from Italy, they received him with extreme honour at Chateauroux, where they acted as his grooms, leading his horse between them. He finally found shelter in the French town of Sens.

In 1161, Theobald the Archbishop died, and it seemed to Henry that the opportunity had arrived for carrying out his reforming plans. Without difficulty he secured the election of his Chancellor, believing that he would serve him still in that capacity. But such were not the views of Becket. He found himself in a position where he might not only serve but rival the King, and he at once became the ambitious and fanatical ecclesiastic. His manner of life was wholly changed, fasts and penances took the place of his former gaiety; the ostentation which he still exhibited was for others and not for himself; he scarcely touched food while his guests were feasting; and poor

saints and beggars took the place of the courtiers who had formerly thronged his hall. He did not wait to be attacked, but himself began the quarrel with the King. He at once insisted on resigning his temporal offices. He then demanded homage from some barons whom he declared to be liegemen of the See of Canterbury and not of the King. He refused in bold outspoken words to pay the usual tax for the sheriff at a court at Woodstock. But these were only slight beginnings. A meeting of the clergy was held at Westminster, and the great subject of ecclesiastical jurisdictions was raised. A very bad instance had just excited the King's attention. A clerk of the name of Philip Brois had committed a murder and received no punishment. At the assizes of Dunstable, Simon Fitz-Peter, the King's Justice, had found him guilty of the murder, but Becket insisted on his being withdrawn from the secular jurisdiction, and sentenced him to two years' loss of his benefice. To Henry this seemed at once an insult to his authority and a mere fostering of crime.

Election of Becket to
Archbishopric. 1161.

Becket upholds
encroachments of the
Church.

Henry produces
Constitutions of
Clarendon. 1164.

He determined upon action, and demanded of the bishops whether they would accept the ancient customs of the country. Many of the clergy Henry knew he could rely upon, such for instance as Becket's old enemy Roger of York, and Gilbert Foliot, Bishop of London. He did not expect to meet much opposition anywhere. With much persuasion Becket certainly accepted the customs. Henry, determined that there should be no question on this matter, caused these customs to be drawn up in the form of Constitutions, and presented to a great council held at Clarendon. There Becket distinctly broke his word and retracted.

Bishops and laymen, knowing the King's character, besought Becket not to risk the fortunes of the Church by further opposition. For a moment he seemed to yield, but the next day, when his final answer was to be given, he again refused to sign them. He stated his objections fully. His arguments were based principally on the Canon law of Gratian^[24] and the False Decretals. The Body of Customs, as presented to him, consisted of sixteen clauses. By these, which did not pretend to be new legislation, but a recapitulation of the old practices of the country, the line was sharply drawn between criminal and ecclesiastical cases; the criminal clerk being amenable to the civil jurisdiction: questions with regard to land claimed by the clergy were to be referred to a jury: as also cases of crime where there was no accuser: the King was made the ultimate hearer of appeals, except by his own special leave: bishops were restrained from leaving the country without leave, or from excommunicating the King's men: elections to bishoprics were to be held in the King's chapel, in the presence and with the consent of those whom he should summon: and the newly-elected officer was to swear fealty to the King.^[25] Other minor matters with regard to the position of the Church were also settled, but it is these chiefly which were to secure the supremacy of the crown. Becket is said to have particularly objected to any subordination of clerks to secular jurisdiction; to have held that one punishment for one offence was enough, and that the Church should look to; and to have regarded with displeasure any restrictions laid upon the right of clerical jurisdiction or excommunication.^[26] Ultimately, however, he was certainly induced to accept and to seal them. On retiring from the council he at once began to show signs of repentance, and got absolution for what he had done from the Pope.

Becket refuses them.

Alexander's position was peculiar, and, as in the case of Anselm, it was too important to him in his present difficulties to retain the friendship of England for him to allow himself to side very strongly with Becket. Throughout the quarrel it is the Archbishop who urges the Pope onward, and not the Pope the Archbishop. Such lukewarmness suited neither party, and Henry summoned another council for 8th of October at Northampton. Two days

Lukewarmness of Alexander III.

The quarrel takes a legal turn.

before the council the Archbishop arrived. He did not receive the kiss of peace, and it was plain that matters were coming to extremities. Again the Archbishop began the attack. He lodged some complaint against a nobleman, and had justice promised him; but was then in his turn charged with delaying justice, in the case of an official of the Treasury called John the Marshall, who demanded a piece of land in his court. Marshall summoned him before the royal court, and he was now told that the case would come on before the council on the following day. On that day therefore the court sat in judgment upon the Archbishop. He was found guilty. The extreme penalty, which would have been the seizure of all his moveables, was remitted, and a heavy fine of £500 substituted. No sooner was this charge finished than a fresh charge was brought against him, and £300 demanded of him, which he had borrowed upon the castles of Eye and Berkhamstead. On the following day a sum of 500 marks, which he had borrowed for the expedition to Toulouse on the King's security, was demanded. Becket declared it was a gift. He found fresh securities, and retired in dudgeon. He found his hall deserted by the knights and barons. Then followed the final blow. As chancellor he had had the administration of vacant ecclesiastical and baronial benefices; and now he was ordered to account for a sum of not less than 30,000 marks. On accepting the bishopric, he had been discharged from all liability by Prince Henry and Richard de Lucy the Justiciary. The demand was manifestly an unjust one, and the greater part of the bishops appealed against it. The temporal nobles refused to allow the appeal, as it had yet to be proved that the King was a party to the discharge. Sickness kept the Archbishop confined to his house for some days. Meanwhile the bishops attempted to make him yield, and finally for the most part deserted him, and betook themselves to the court. The Archbishop was determined to meet the charge in all the magnificence of his office, and went to the council with his cross and other insignia. The bishops, overawed by this unusual demonstration, which they regarded as a challenge to the King, went to him, leaving the accused Archbishop sitting alone with a few friends. They tried in vain to get the King's demand lessened, and changed for the fine usual in Kent, which was only forty shillings. Henry, in wrath, merely asked whether the Archbishop had made up his mind to accept the Constitutions. Becket refused to plead upon any charge except that of John the Marshall, and at length openly declared that he placed himself and the Church under the guardianship of the Pope and of God. The disturbance was great. The King wished the bishops to declare the sentence. They earnestly entreated not to be called upon to judge their superior, and finally the duty was left to Robert of Leicester the Justiciary. But the Archbishop would not let him speak. "How can you judge me who appeal to a higher power? And do not thou Earl of Leicester venture to judge thy spiritual father!" He rose, and, leaning

Comes before the council.

Henry presses him with charges.

Becket leaves the court before judgment is given.

on his cross, swept from the hall. As cries of “traitor” arose behind him, his old worldly vehemence got the better of him, and he turned and cried, “Might I but wear weapons, I should soon know how to clear myself of the charge of treason.” As he passed on his way through the streets people knelt and demanded his blessing. A final answer was required of him the following day, but in the night, in the midst of wild weather, he secretly left Northampton, and after a difficult flight, on the 2nd of November contrived to cross to Gravelines.

On the very same night, an embassy, consisting of his chief enemies—the Bishops of York, London, Exeter, Chichester and Worcester, together with John of Oxford, the King’s chief adviser in this matter,—crossed to seek the Pope. The Archbishop put himself under the protection of the King of France at Soissons; and the two parties carried their case before the Pope at Sens, where John of Salisbury, Becket’s emissary, had already been winning him friends. The King’s embassy entreated that legates might be sent to finish the case in England. But Alexander, although the Peter’s Pence from England were absolutely necessary to him, refused their request. Upon receipt of this information, the King drove abroad all friends and dependants of the Archbishop, who had succeeded meanwhile in getting a favourable reception from Alexander. Till 1170 he remained abroad, carrying on his struggle with the King.

He is received by the Pope. 1165.

Of course, during that time Henry could not afford to let his other business rest. But it is the quarrel with the Archbishop which gives its complexion to the history of those years. In 1165 the Pope was enabled to return to Italy, but Frederick of Germany, still refusing to acknowledge him, at an Assembly at Wurtzburg caused Cardinal Guido to be elected under the title of Pascal III. in the place of Octavian, who was just dead. Henry seized the opportunity. He had already forbidden all intercourse between England and the Pope, and he now despatched an embassy, headed by John of Oxford and Richard of Winchester, to attempt to act in consort with Frederick. This was in reply to a demand on the part of the Emperor, who had sent his chancellor, Reginald of Cologne, to ask for two of Henry’s daughters in marriage, the one for his son, the other for Henry the Lion of Saxony. The ambassadors declared that there were fifty bishops ready to accept the anti-pope. However, matters did not reach this point: Alexander still temporized. The clergy of England were very averse to deserting the legitimate Pope, and the old policy of the Norman kings had yet a strong hold upon Henry.

But Henry refuses to oppose Alexander.

Meanwhile, leaving the quarrel in abeyance, he again invaded Wales, again without much success. He was more successful in the following year in his designs on Brittany. “He dealt,” says the Chronicler,^[27] “with the nobles of the

Meanwhile he attacks Wales, and secures Brittany. 1166.

district of Le Mans according to his pleasure, and the region of Brittany, and with their castles....” A treaty of marriage between his son Geoffrey, and Constance, the daughter of Conan of Brittany and Richmond, having been entered into, this Earl made a grant to him of the whole of Brittany, with the exception of Guingamp, which had descended to him from his grandfather. The King received the homage of all the barons of Brittany at Thouars. Thence he came to Rennes, and by taking possession of that city, the capital of Brittany, he became lord of the whole duchy. While thus triumphing, he received news that Becket, weary of the Pope’s procrastination, had gone to the Church at Vezelay, and there, after explaining the Constitutions of Clarendon, had excommunicated John of Oxford, Richard of Ilchester, and Richard de Lucy, the King’s Counsellors, and Joscelin of Balliol, and Ranulph de Broc, who had entered into possession of his confiscated estates. This step caused considerable anxiety, and the bishops and abbots of England met and appealed to the Pope, thus postponing the execution of the excommunication. The Archbishop, in reply, bid them carry the excommunication at once into effect, and at the same time excommunicated Godfrey Ridel, the Archdeacon of Canterbury, for not remitting to him the income of his see. In anger, the King threatened to expel from England the whole Cistercian order, as a punishment for allowing the Archbishop to dwell in their monastery. To avoid this, Becket withdrew to Sens.

Becket
excommunicates his
enemies.

The appeal however went on, and, to the surprise of every one, the Pope, who had perhaps been bribed, at length appointed legates to examine the dispute. In 1167, John of Oxford, the King’s ambassador, came home in triumph, declaring that the excommunications had been removed. Naturally therefore Becket dreaded the approach of the legates. By means of his influence with the French many obstacles were thrown in their way, and as a fresh declaration that his views were unchanged, he excommunicated Gilbert of London. At length the legates obtained meetings both with Becket and Henry. In neither instance were they satisfactory. Becket refused to withdraw the convenient words “saving our order,” and Henry would hear of no half measures. However, their temper was on the whole conciliatory, and they removed the excommunications conditionally. This friendly feeling on the part of the Pope was still further shown by his suspending the Archbishop for a time from the exercise of his office. In fact, the Pope had just been driven from Rome by Barbarossa, and Henry’s support was indispensable to him. All this made no difference to Becket, who, on Palm Sunday, repeated his excommunications, and contrived at length to get them smuggled over into England, where, with striking effect, Gilbert of London was suddenly suspended in the midst of the celebration of mass in his own church.

The Pope temporizes.

The political difficulties under which Henry was at this time struggling may have given fresh courage to the Archbishop, for, both during 1167 and 1168, there was war with Louis of France and with his other neighbours. The Count of Flanders was even threatening a descent on England, while the Counts of Marche, Angoulême, and Limousin, counting on the succour of the French, were laying waste Henry's southern dominions. This difficulty he left in the hands of his General, Count Patrick of Salisbury, while he himself was called upon to suppress disturbances in Brittany. His fortunes were indeed at a very low ebb. In presence of these difficulties, Henry found it necessary to lower his tone; a peace with his enemies was patched up at Montmirail. There too a commission from the Pope awaited him, and he found himself obliged to consent virtually to the demands of Becket. As however he refused to give his refractory Archbishop the kiss of peace, which was regarded as the only sure sign of reconciliation, the quarrel was not yet terminated. Although the point at issue was a small one, both parties continued obstinate.

Critical position of Henry.

Henry, determined to show his authority, caused his son Henry to be crowned in England by the Archbishop of York. This was a distinct invasion of the rights of the Archbishop of Canterbury, for the coronation was performed in the southern province. It produced so great an outcry, that Henry felt he had gone too far, especially as he had neglected to have Henry's wife, the French princess, crowned with him, which Louis regarded as a great insult. With this feeling against him, Henry consented to a meeting at Fretheval, and there yielded what was required of him, embracing the Archbishop, raising him from the ground, when he knelt before him, and holding his stirrup for him to remount. The quarrel seemed ended, but some slight delays occurred before Becket could return to England, and more than one warning message was sent to him that England was no safe place for him. When he demanded a safe conduct from Henry, it did not promise any true reconciliation that John of Oxford was sent as his escort. He ventured however, but found the feeling in England, among the laity at all events, very strong against him, and was bidden to withdraw to his city of Canterbury. Although conscious of the power of his enemies, he continued his obstinate course, excommunicated the Archbishop of York, De Broc, and other lay holders of the property of the See, whom he found it difficult to dispossess. When the King heard of this conduct, the anger which had been boiling within him, but which circumstances had obliged him to suppress, broke loose, and he accused his courtiers of caring nothing for him since they suffered this audacious priest to live. Four knights took him at his word, hurried across to England, collected followers

Coronation of Young Henry. June 14, 1170.

Finding this step unpopular, Henry submits.

Becket ventures to return to England.

His death. Dec. 29, 1170.

among his enemies, and proceeding to Canterbury, demanded the immediate removal of the excommunication. The monks in terror hurried the Archbishop to the Cathedral, and wished to shut the doors, believing him then in safe sanctuary, but he would not allow any sign of weakness. Headed by the knights, the armed mob broke in, still demanded the removal of the excommunication, were still refused, and killed him at the altar.

The outcry which rose throughout Europe told Henry that he had lost his cause. He at once declared himself innocent, refused food, took on him all the outward signs of penitence, and despatched a mission to exculpate him at the court of the Pope. Though Alexander was very angry, he was persuaded to send legates for a formal inquiry. Henry did not await their coming, but as a means of employment and retirement, proceeded to carry out an intention he had long had of conquering Ireland.

His opportunity there indeed had fully come. The country, divided among petty chieftains, had from time to time been gathered under the command of one chief king. When his authority was at all strong, some little order existed; when he was weak, wild disorder reigned. The present holder of that position was Roderic O'Connor of Connaught. In 1153, Diarmid, or Dermot, King of Leinster, had carried off the wife of O'Ruark, Prince of Breffni, or Leitrim. When O'Connor gained the crown of Tara in 1166, he proceeded to punish the offender who fled to England, and, collecting round him some Welsh adventurers, returned home. Still unable to cope with his enemies, he sought Henry in Guienne, did homage to him, and received leave to collect an army in England. In 1169, the half-brothers Robert Fitz-Stephen and Maurice Fitz-Gerald crossed over to Wexford. This advance-guard was followed by a stronger party of Welshmen under Richard of Clare, Count of Strigul, surnamed Strongbow, who, deeply in debt, had lost his possessions in England, and was glad to seek some elsewhere. He took Waterford, and married Eva, Dermot's daughter; while Dublin, which belonged to the Danes who had settled in Ireland, was captured by Milo of Cogan. In 1171 Dermot died, and Strongbow succeeded to the crown of Leitrim as his heir. Henry was not pleased with the rapid success of his vassal, and proceeded to deprive him of his English property. In vain were ambassadors sent to the King; he refused them admittance. It was only when the Earl surrendered Waterford, Dublin, and his other castles, to the King, that Henry secured to him his other conquests. Matters were in this condition when Henry determined himself to visit Ireland. After a month spent in preparation, he reached Waterford with a fleet of 400 ships in October. Here Strongbow did homage to him

Henry retires to the invasion of Ireland.

Condition of Ireland.

Invasion by Strongbow. 1169.

Henry himself invades Ireland. 1171.

Irish Church adopts Romish discipline. 1172.

for Leinster, and several Irish princes acknowledged him for their chief. From Roderic O'Connor he had to be contented with such slight acknowledgment as the acceptance of his envoys, De Lacey and William Fitz-Aldelm, might imply. With the Church he was more successful. All the archbishops and bishops took the oath of fealty. At a synod held at Cashel the Roman discipline was introduced; and in 1174, bulls from Rome, authorizing the collection of Peter's Pence and the conquest of the country, were received and accepted. In a wooden palace, built outside the walls of Dublin, Henry exhibited the splendours of the English crown, and granted out the conquered lands to his vassals. Hugh de Lacey received the Earldom of Meath, and was made Viceroy; Fitz-Bernard received Waterford, De Courcey and others were instructed to carry on the work of conquest; and English colonists were placed in Dublin and other devastated towns. Having made these arrangements, Henry returned to Normandy, where his presence was much required. But his conquest was by no means completed; disturbances arose at once upon his departure; nor was it till 1175 that Roderic was subdued. He then sent delegates to make his submission to the King at a council held at Windsor. A treaty was arranged, which acknowledged him as chief of all the Irish princes, with the exception of Henry and his knights. He consented to pay a yearly tribute. But except in the conquered countries, Irish law (the Brehon law as it was termed) held good throughout Ireland, and English law only within those provinces which had been thoroughly subdued and were called the English Pale.

It was partly to meet the Papal legates that Henry returned from Ireland. He met them at Avranches, and there swore that he had nothing to do with the murder of the Archbishop, and promised adhesion to Pope Alexander in opposition to the German anti-pope, free intercourse with Rome, the abrogation of the Constitutions of Clarendon, and personal attendance at a crusade, either in the East or in Spain, within three years, meanwhile paying the Templars to undertake this duty for him. Although this seemed a complete submission, it in fact left the question of the supremacy of the civil power open.

Henry's reconciliation with Rome. 1172.

All his dominions seemed now at peace, but a great danger was brewing. His son Henry, since his coronation, had already, at the instigation of the French King, his father-in-law, demanded the actual possession of some portion at least of his kingdom, and this combination caused him well-grounded apprehension. He took the opportunity of the general peace of his kingdom to negotiate a marriage for his son John with the daughter of Count Humbolt of Savoy, and promised to give with him as her dowry Chinon, Loudon, and Mirabeau. The young king Henry protested against this treaty, and suddenly disappearing from

Great insurrection of 1174.

Crisis of the danger. 1174.

Henry's penance at Canterbury.

court, took refuge with Louis VII. at St. Denis. The old king understood only too well what this meant. Shortly, there was a universal insurrection throughout all his dominions. It is not difficult to understand. His domestic relations were not happy, although he was very fond of his children; his wife was constantly urging them to disobedience. His dominions were widespread, and consisted of various races; his hand was heavy upon the feudal nobility, when the English nobles had not yet forgotten the charms of the late reign; while the defeat which the King had sustained in his quarrel with Becket gave a false impression of his weakness. The discontent was very general. While Louis recognized the young Henry as the rightful king, and entered into his quarrel in company with the Counts of Blois, Boulogne, Flanders, and others, the nobles of Aquitaine rose in insurrection, the princes Richard and Geoffrey made common cause with the insurgents, William the Lion of Scotland was engaged to take part with them, and the great Earls of the middle and north of England, Leicester, Ferrars of Derby, Chester, and Bigod, joined in the general alliance. Henry, though alarmed, did not despair. His policy had led him to trust much to his auxiliaries, and with these he determined to withstand the feudal malcontents. Leaving his generals to resist the attack from Flanders and France, he won a great battle before Dol in Brittany, took the great Earl of Chester prisoner, and re-established his power in that province. Meanwhile, Leicester had been besieged by Lucy, his justiciary in England; the efforts of William the Lion, who demanded Northumberland and refused homage for Huntingdon, were thwarted by the brave defence of the border castles; and an invasion of Flemings from the East, headed by the Earl of Leicester, was defeated at Farnham, near Bury St. Edmunds. But the existing truce with France terminated at Easter; the king of that country was able to enter actively into the war; and Henry's successes, and the large offers he made his sons, seemed alike unavailing. Hostilities began again, and Henry was obliged to take the command in person in his hereditary provinces, Maine and Anjou, where he was received with enthusiasm. The troops of his son Richard were conquered; while in England the King's natural son, Geoffrey Plantagenet, and Richard de Lucy, made head against the nobles in the East and a fresh invasion from Scotland; but were still so pressed, that messengers were sent in haste to summon Henry across the Channel. It was indeed a moment of great danger. Philip of Flanders and his allies, to whom Kent had been promised, were assembling a fleet at Whitsand; the Scotch invaders had reached Alnwick. Henry hastened home. But before he proceeded to active measures, in deference to the popular feeling, which attributed his difficulties to the Divine anger at Becket's death, he made a pilgrimage and did penance at the shrine of the martyr. Immediately after this while still in anxious doubt as to the fate of his kingdom, news was brought him that Ranulf de Glanvill had surprised the Scotch at Alnwick, and that William the Lion and many of his

Capture of the Scotch King at Alnwick.

Henry's complete success.

nobility were prisoners. A few days afterwards the town of Huntingdon was taken, and Hugh, the Bishop of Durham, who had joined the insurgents, conquered. By July all the English nobles had returned to their allegiance, and Prince David had withdrawn the Scotch troops. The same rapidity which saved England saved Normandy also. The sudden arrival of the King before Rouen raised the siege of that place, which had been hard pressed, and before long a peace between Henry and Louis was made, by which all the French conquests were restored, and the young King Henry's dependants had to abjure the fealty which they had taken to him. The great insurrection which for a moment had threatened the existence of Henry's monarchy was thus over. To his sons Henry was merciful. To Richard he granted two castles in Poitou, with half its revenues; to Geoffrey, similar terms in Brittany. They were required to renew their allegiance. William of Scotland was forced to content himself with harder terms. He was only released upon condition of appearing at York in the following year with all his barons, and swearing fealty to Henry as his suzerain. He and his brother did homage for Scotland, for Galloway, and for their English possessions; while the Scotch clergy acknowledged the supremacy of the Archbishop of York. In the following year the young Henry left his French patron and reconciled himself completely with his father.

This outbreak may be regarded as a consequence of Henry's defeat in his dispute with Becket. The King had shown how little that defeat had weakened his real power in temporal matters. His appointments to the vacant bishoprics, which were a necessary consequence of the termination of that quarrel, prove how little he had really lost even in influence. Of the six bishoprics which were filled up, three were given to avowed partisans of the King. Winchester fell to Richard of Ilchester; Ely, to Godfrey Ridel, Becket's great opponent; and Lincoln to Geoffrey Plantagenet; while, shortly after, the Bishopric of Norwich was given to John of Oxford, who had been Henry's chief agent throughout the Becket difficulty. Such disputes as still existed in the Church ceased to have political meaning, and assumed the form of quarrels between the monks and the secular clergy. It was thus that Richard, the Prior of Dover, a man in the royal interests, was elected to succeed Becket after a lengthened dispute between the monks of the Holy Trinity at Canterbury, who claimed the right of election, and the other bishops of the province. Henry's influence was naturally employed in favour of the episcopal candidate, but he contrived to confine the dispute within the limits of the ecclesiastical body.

Small diminution of Henry's power, either temporal or ecclesiastical.

The period which elapsed between the suppression of the great rebellion and the outbreak of the quarrel between Henry and his sons is the period of his greatest power. It is at this

Henry's judicial and constitutional

time that we find the greatest marks of his activity as a lawgiver. The year 1176 is marked by the great Assize of Northampton, an expansion of a similar Assize of Clarendon in the year 1166, the fruit perhaps of his experience in the late rebellion, and the knowledge gained by his inquiries into the conduct of the sheriffs in 1170. That inquiry, which was called for by the complaints of the exactions of the sheriffs, proved to him that their conduct had not been free from peculation, and led him to believe that the employment of local nobles as his chief officials was dangerous. He took the opportunity of making a general examination of the judicial system of the country, the fruit of which was the concentration and organization of the Curia Regis, and the arrangements embodied in the Assize of Northampton. The King's court consisted originally, as has been already mentioned, of all those tenants who held their land direct from the crown (tenants *in capite*), and was the ordinary feudal court, and the natural parent of our present Parliament, and especially of the House of Lords. But for the ordinary despatch of business, whether judicial or financial, what may be regarded as a permanent committee of this body of immediate holders was employed. This committee consisted of the great officers of the household, such as the chancellor, treasurer, marshal and others, and other selected barons closely connected with the royal household. The head of this committee, or Curia Regis, was the great justiciary, the King's representative. The royal chaplains or clerks were formed into a body of secretaries, at the head of which was the chancellor. The Curia Regis at first attended the King and had a twofold duty; when they sat as judges its members were called justices, in financial questions they sat in the exchequer^[28] chamber, and were called barons. This administrative system, which had been organized in Henry I.'s reign, was entirely destroyed by the wild reign of Stephen. Its reconstitution was the great work of Henry II. In the earlier part of his reign the visitations were renewed upon the old system, the itinerant justice being usually either the great justiciary, chancellor, or some other great household officer. In the year 1168 four barons of the exchequer performed this duty; in 1176 the country was divided into six circuits. This number was not permanent, several alterations were made in it. Nor was the number of visitations thoroughly established. By Magna Charta in John's reign commissions are promised four times a year, but shortly afterwards it would seem that the general journey of the itinerant justices was every seven years, until the reign of Edward I. It is to be remembered that these visitations were for all sorts of objects; for hearing civil cases, for inspecting the working of criminal jurisdiction, and, perhaps before all things, for arranging the financial matters of the country, and superintending the sheriffs in all matters connected with the exchequer. The itinerant justices during their circuits superseded the sheriff's authority and

changes.

The Curia Regis.

Itinerant justices.

presided in his courts. They were also allowed to enter and preside in the baronial courts. It has been mentioned that these courts were in most respects complete Hundreds. The two parallel systems, now on certain occasions presided over by the same official, were thus assimilated and brought into immediate connection with the central authority. This administrative organization gave rise to what is of much political importance, a new class of barons, new men who had risen by their talents and by the King's favour, whose interests were therefore on the side of order and of the crown. At one period, in 1178, Henry II. appears to have found his new ministers untrustworthy, at all events in that year he restricted the Curia Regis to five persons, keeping the highest appellate jurisdiction in the hands of himself and the old Curia Regis, which may henceforth be regarded as the King's *ordinary council*. The name Curia Regis has thus passed through three phases; a feudal court, a permanent committee of the feudal court, and a restricted committee of that committee. In these various bodies we have the sources of all the judicial bodies in England. The feudal court, with certain additions, became the Parliament; without those additions the Great Council, retaining its natural prerogative of final court of appeal, and represented now by the House of Lords. The permanent committee, or ordinary council, is represented by the privy council, still retaining some of its judicial powers. From its body of clerks, headed by the chancellor, arose the courts of Chancery. While the limited committee was divided shortly after the Magna Charta into three courts, the exchequer, the common pleas, and the king's bench, at first with the same judges for all, but by the end of Edward III.'s reign with a separate staff.

Henry's legal mind, which thus organized the administration, introduced many improvements In judicial procedure. It is to this reign that can be traced the origin of trial by jury. This method was not employed first in criminal cases, but in carrying out inquiries of various kinds. As soon as such inquiries came to be made on oath, the beginning of the jury system had arrived. As early as the great Domesday survey, the sheriff, barons, freeholders, the priest, the reeve, and six villeins of each township, had been all examined upon oath. Judicially this method of inquiry was first applied in civil cases. By the ordinance of the Grand Assize, a choice was given to any person whose right to the possession of land was called in question. He might either if he pleased defend his claims by the old-fashioned appeal to battle, or he might have his right examined by twelve freeholders on their oath, selected by four freeholders also on their oath, nominated by the sheriff. These sworn freeholders were evidently at first witnesses; twelve others were subsequently added to them, who, from their neighbourhood or other reasons, might be supposed to be better acquainted with the facts. This took place in Edward I.'s reign. The double jury was then separated, the original twelve playing

Origin of jury.

their part as jurors of the present day, judging of the facts asserted by the second twelve, who represent the witnesses. In 1166, by the Assize of Clarendon, the same process was extended to criminal cases; that is to say, twelve lawful men from each hundred, and four from each township, were sworn to inquire whether there were any criminal, or receiver of criminals, in their district, and to present the same to the itinerant justices or to the sheriffs. These criminals were then put to the ordeal without further investigation. This was the origin of the grand jury. The abolition of ordeal rendered some substitute necessary, and ordinary trial by jury was the consequence.

The Assize of Northampton in 1176 was, as has been said, a repetition in stronger terms of the Assize of Clarendon. It is moreover interesting, as giving a notion of the duties of the itinerant justices, who on this occasion were six in number. Not only was the examination of crimes in their hands, but they had to arrange the law with regard to tenure of land, reliefs of heirs, dowers of widows, and other such matters, and to exact fealty from all classes of the commonwealth, and to see to the complete destruction of private castles, and the secure guardianship of those of the crown. These latter points were probably rendered necessary by the Rebellion of 1174. The same feeling of mistrust of his feudal barons which dictated these precautions was the cause of two other measures of this reign. The military service of the tenants in chief was changed into a money payment called scutage. This money enabled the King to hire men for his foreign wars, and to dispense with the service of his barons; while, by the Assize of Arms in 1181, the national militia of England, the old *fyrð* of the Saxons, to follow which was one of the duties of the *trinoda necessitas*, was reorganized, and the arms required of each class in the country carefully defined.

Scutage.

Assize of arms.

At the same time that Henry was thus organizing his authority in England, his position in Europe was a great one. Two of his sons were married or betrothed to daughters of the King of France. Of his three daughters, the eldest was the wife of Henry the Lion of Saxony, the rival of Frederick Barbarossa; the second, Eleanor, was Queen of Castile; the third, Joanna, though still a child, was taken to Sicily as the bride of the Norman king of that country, which at this time was the dominant power of the Mediterranean. His importance indeed was such that he seemed of all the kings in Europe most firmly seated on his throne, and was selected on account of his power and character, as well as for family reasons, as arbitrator between Alphonso of Castile and his uncle Sancho of Navarre, and as the strongest ally to whom Henry the Lion could have recourse when he was stripped of his German possessions. This befell him in consequence of his desertion of Frederick Barbarossa before his

Henry's importance in Europe.

Closing troubles with his sons and France.

invasion of Lombardy, which terminated in the great battle of Legnano. But in the midst of his greatness there were two dangers constantly besetting Henry; on the one hand was the King of France, on the other were his own children. Not only did the great power of a feudatory naturally excite the French King's jealousy, Henry had pursued a crooked policy with regard to the marriage of his sons; he had refused to surrender to Louis the Vexin and Bourges as he had promised to do upon their marriages. There was thus a constant opportunity for quarrel. On the other hand, with regard to his sons, his measures had been still more unfortunate. Anxious to secure his succession, and conscious probably that his kingdom was too large to be held by one hand, he had caused his eldest son to be crowned, thus exciting the envy of his brothers; while, at the same time, he had given them large duchies, which rendered them nearly independent of him. In addition to this, his dislike for his wife had rendered her a constant enemy, while his foolish affection for his youngest son John gave still further cause of offence. When therefore, as was likely to happen, any of his sons determined to oppose him, they were certain of assistance from France, and of bad advice from their mother.

It is difficult to arrange the constant brief wars which characterized the close of his reign, complicated as they are by the rising interests in the affairs of the East, which were gradually bringing on the third Crusade. They may perhaps be divided into four; the first extending to the death of young Henry; the second to the death of Geoffrey of Brittany; the third from 1184 to a peace negotiated in the interests of the crusades in 1188; and the last, the quarrel with Richard and John, which terminated with the King's death. The first of these broke out in 1183. Richard had entered with zest into the wild feudal life of Poitou and Aquitaine, and had been very successful there. He had even pushed his arms to Bayonne, in the territories of the Basques, and to the borders of Navarre. This had aroused the envy of his elder brother. This young prince, who regarded himself, and was regarded by many, as the flower of knighthood, was capable of any amount of hypocrisy and double dealing, and seems to have so far cajoled his father as to persuade him to demand from his younger brothers homage to the elder. This Richard positively refused to give. But his arbitrary rule in Poitou and Aquitaine had made him many enemies, at the head of whom was the wild intriguing noble, at once warrior and troubadour, Bertram de Born. With these young Henry allied himself, and, with the aid of his brother from Brittany, pressed so heavily upon Richard, that the old king had to come to his assistance. At this crisis the young king caught a fever and died, forgiven but unvisited by his father. The King took advantage of his son's death to pursue his success, and succeeded in subjugating the refractory barons, and re-establishing peace. Conscious that the young King Philip II. of France, who had succeeded to the throne in 1180, and over whom he had once had much influence,

First war; against
young Henry. 1183.

had been mixed in his son's rebellion, Henry tried to make peace with him too. Philip met the request by a demand for the restitution of Gisors and the dower of his sister Margaret, young Henry's widow, and it was with much difficulty that temporary peace was patched up; but it was finally arranged that part of the dowry should be restored, and Gisors transferred to Richard on his marriage with the Princess Alice.

Constantly unwise in his conduct to his sons, Henry now demanded from Richard, perhaps as a recompense for his assistance, a part of Aquitaine, to be given to his favourite son John. This Richard refused to give, and consequently both John and Geoffrey of Brittany attacked him. But though Geoffrey was thus ready enough to quarrel with his elder

Second war; against Richard. 1184.

Third war. 1187.

brother, it was from no love of his father that he did so. He, as well as Richard, was hurt by Henry's evident partiality for John. He took the opportunity of putting in his own claim for Anjou. On Henry's refusal, he at once fled to France, where he was as usual well received. His death relieved his father for the time from his opposition, but sowed the seed of further difficulties; for on the one hand his province Brittany was at once divided between the French and English faction, and on the other King Philip II. raised claims as overlord to the guardianship of his young son Arthur. There was a growing disinclination however on all sides to plunge into war; for the Pope was constantly urging a general peace, and the combination of Christian princes for the great Eastern Crusade. A succession of weak princes, and the unnatural and artificial character of the feudal kingdom of Jerusalem, together with the rise of the new Mahomedan power of the Saracens under Saladin, had reduced European power in the East to a very low ebb; and in 1184, Heraclius, the Bishop of Jerusalem, had found it necessary to come over, to attempt to persuade the Kings of England and France to embark in a new crusade. But to Henry, although under a pledge to join such an expedition, the idea of leaving his European dominions in their present critical situation was very distasteful, and he consequently postponed taking action. The feeling however that a crusade was imminent rendered hostilities more difficult; so that when, in 1187, the arbitrary behaviour of Richard in Aquitaine had produced fresh difficulties with France, which as usual terminated in the flight of Richard and the junction of his interests with those of his father, the news of the great battle of Hettin, in which the flower of the Christian army of Jerusalem had been entirely destroyed, and the arrival of William of Tyre for the purpose of exciting the enthusiasm of the West, put a sudden end to the hostilities; and, in 1188, the two kings met in perfect friendship under the old elm in the neighbourhood of Gisors, which was their usual place of treaty, and joined with apparent heartiness in taking the Cross. Upon this occasion Henry imposed upon England the tax, known as the Saladin tax, which

was a tenth on all property, and in the collection of which the King's officers were to work hand in hand with the Church.

But nothing could keep the restless Richard in order; before the year was over, he was engaged in fresh quarrels with Geoffrey of Lusignan and Raymond of Toulouse. After mutual demands for the ransom of some captives, Richard advanced in arms against Raymond, who applied to his suzerain Philip for assistance. This open attack on his dominions Philip could not put up with. At length he declared himself the open enemy of the English. It was in vain that his great feudatories reminded him that he was under the crusader's vow, in vain that a meeting was held at Gisors. The enmity of the kings was only thereby inflamed, and, in token of his eternal hostility, Philip had the old elm of reconciliation hewn down. One would have supposed that Richard, the cause of the quarrel, would have clung to his father; nor is the reason for his not doing so very plain. Perhaps it may be traced to his father's refusal to give him up Alice, the French King's sister, for his wife, wishing it is said to make her his own; perhaps it was continued jealousy of his brother John. Certainly he did betake himself to the French court, and with him many others of Henry's French feudatories fell away. Henry thus found himself in a difficult situation; broken in mind and body, his resources strained to the utmost by the late heavy taxation of England, and his nobles rapidly deserting him.

Last war; with Richard and Philip. 1189.

His health appears to have influenced his mind. He remained inactive at Le Mans, while Philip overran Maine and threatened to besiege Tours. At length Le Mans, where Henry was with his son Geoffrey, was taken. The city where he had himself been born was the particular object of Henry's love. He felt its loss as a heavy blow, and though he knew his weakness, could not bring himself to retreat to Normandy, where his chief strength lay. With a sudden accession of energy, he reappeared in Anjou. But his appearance had no effect. One by one the fortresses of Maine were captured, and Philip constantly approached Tours. When that town fell, Henry's spirit was quite broken. He agreed to an interview with Richard and Philip on the plain of Colombières, to make his submission. Almost fainting, and held upon his horse by his attendants, in the midst of a violent thunderstorm, he met his undutiful son, and brought himself to give him the kiss of peace, whispering as he did so, however, "May God not let me die until I have taken me due vengeance on thee." The terms of his submission were complete. He promised to give up the Princess Alice; he allowed his nobility to swear fealty for their lands to his son Richard; he promised to pay Philip 50,000 marks for the restoration of his conquests. He had asked, in exchange, for a list of those nobles who had joined Richard in rebellion. When he found at the head of the list the name of his beloved son John, his heart was broken. "I care no more for myself nor for the world," he said. A day or two

Henry's disastrous peace and death.

longer he lingered, and was carried to Chinon, murmuring at intervals, “Shame, shame, on a conquered king,” and there died, attended only by his natural son and Chancellor Geoffrey.^[29]

It is scarcely possible to place the importance of this reign too high, or to overvalue the work of Henry II. We find in his reign the organization of almost all departments of the government subsequently completed by Edward I. The arrangements of the Curia Regis and the reforms in judicial procedure have been already mentioned. The exchequer also was put on a new footing. It now becomes possible to see with some clearness the sources and amount of the royal revenue. To the revenues derived from the domain lands and from the Danegelt, the Norman kings had added feudal dues. Both the proceeds of the royal domain and of the Danegelt appear to have been farmed. The farm of the counties amounted in Henry II.’s reign, after the deductions caused by the grants both of Stephen and of Henry, to about £8000 a year. The Danegelt, originally two shillings on every hide, amounted in Henry I.’s reign to about £2500. As this is about a tenth of what the tax would have produced had it been fully exacted, it must probably also have been farmed to the sheriff, who collected what he could of it, and paid a fixed sum to the exchequer. This unsatisfactory tax came to an end in Henry II.’s reign, perhaps through the agency of Becket. The other source of revenue was the *Donum* and *Auxilium*, contributions paid by vassals to assist their lords. The first term applied to the counties, the second to the towns. These names became the general names of all irregular imposts, which are also sometimes called hidage, scutage, or tallage, the tallage being the aid raised from towns, the scutage the aid raised from knights’ fees, the hidage the aid raised from tenants in socage. The importance of the scutage as a commutation for military service has been already dwelt upon. Recourse appears to have been had to these scutages only three or four times during the reign. To these sources of revenue are to be added the fees from the law courts, and the incomes arising from feudal incidents, such as wardship, marriage, and reliefs. The whole income of the country was perhaps about £50,000. The taxes seem to have been assessed by Barons of the Exchequer, aided by the declaration of the knights as to their own holdings, by juries in the case of minor tenants. But it was not only in details of administration that Henry showed his character. He constantly summoned great councils, and as his power was so great and centralized that he could certainly have acted without them, this appears to show a fixed intention on his part to assume the position of a national and constitutional king. The general effect of his work at home was to form the nation. Normans became English. The English no longer felt themselves a conquered people. Their oppressors, the feudal nobility, were destroyed or kept in restraint. The new nobles were chiefly ministers of the crown, and all sections of the people

Importance of the reign.

looked to the King as the national representative. The importance of Henry's reign abroad was scarcely less striking. His immense continental dominions made him one of the great powers of Europe. His close contact with France, and the difficulties which it produced, began the hereditary policy of opposition to that country which has characterized the whole of English history. On the other hand, though he may have had no clear view of what he was doing, he set on foot also the lasting friendships of the nation. The marriage of his daughter with the Guelph Duke brought England into constant friendship with Germany, and caused Otho, the son of Henry the Lion, to be brought up in England, and to be regarded as an English prince. The marriage of his other daughter with Spain set on foot that connection which lasted even beyond the Reformation. His work as a whole may be summed up in the words of Professor Stubbs: "He was faithful to the letter of his engagements. He recovered the demesne rights of the crown, so that his royal dignity did not depend for maintenance on constant taxation. He restored the usurped estates; he destroyed the illegal castles, and the system which they typified; he maintained the royal hold on the lawful ones, and the equality and uniformity of justice which their usurpers had subverted; he restored internal peace, and with it plenty, as the riches of England in the following reign amply testify. He arranged the administration of justice by enacting good laws and appointing faithful judges. He restored the currency; he encouraged commerce, he maintained the privileges of the towns; and, without encouraging an aggressive spirit, armed his people for self-defence. He sustained the form, and somewhat of the spirit of national representation. The clergy had grounds of complaint against him for very important reasons; but their chief complaints were caused by their preference for the immunities of their class to the common safeguard of justice."

RICHARD I.

1189–1199.

[click here to see the image](#)

Born 1157 = Berengaria of Navarre.

CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
William, 1165.	Philip Augustus, 1180.	Frederick Barbarossa, 1155. Henry VI., 1191. Philip, 1198.	Alphonso IX., 1158.

POPES.--Clement III., 1187. Celestine III., 1191. Innocent III., 1198.

Archbishops.	_Chief-Justices._	_Chancellors._
Baldwin, 1185–1190. Reginald Fitz-Jocelin, 1191. Hubert Walter, 1193.	Hugh of Durham, and William Earl of Essex, 1189. William Longchamp, 1190. Walter of Rouen, 1191–1194. Hubert Walter, 1194–1198. Geoffrey Fitz-Peter, 1198–1199.	William Longchamp, 1189. Eustace, Bishop of Ely, 1197.

Richard began his reign with some show of penitence. He got absolution for his disobedience to his father, and gave his friendship to the existing ministers, with the exception of the Seneschal of Anjou and Ranulf de Glanvill. It is possible that the government of this great justiciary had been over arbitrary, for in England, where his mother acted principally for him, Richard is said to have freed all those prisoners who were confined by the orders of his father or the justiciary, but demanded bail for those who were legally imprisoned. He also seems to have punished the severity of some of the sheriffs. His coronation pomp was interrupted by a strange disturbance. The Jews had been ordered to absent

Richard seems to begin well.

Persecution of the Jews.

themselves from the ceremony. This strange people had been admitted to England by the Conqueror; the only capitalists of the time, their ability and willingness to lend money rendered them invaluable both to the rising industry of the country and to the crown; and to their knowledge is due much of the growth in science which was beginning to be made in this century. So great was their use, in spite of the heavy usury they demanded, that they were allowed to establish themselves in various towns, in districts known as Jewries, to build synagogues, and follow their own customs. They were not however admitted to full citizenship. The Jewries, like the forests, were not under the protection of the common law of the country, but were entirely in the King's power. In spite of the evident advantages derived from their presence in England, their wealth, their foreign manners, their high usury, and their strange worship rendered them objects at once of contempt and hatred to the people. Some of them, in spite of the order forbidding their presence, showed themselves at the ceremony of the consecration. They were assaulted by the soldiery. This gave a signal to the the crowd who attacked the detested people in all parts of the city. Nor was this all; the same feeling spread throughout England. In some places the Jews gained safety by conversion; but early in 1190, in Norwich, in Stamford, and in York, many were put to death. In the last-mentioned place, the Jews sought refuge in the castle, and being besieged there, determined to die together. Firing the tower, they first killed their own women and children, and then sprang with them into the flames.

In fact, the Crusades brought with them a passion for adventure and licentiousness, as well as religious enthusiasm. This spirit was now abroad in England, and the King, with his wild love of adventure at any price, was its fitting representative. For the sake of adventure, honesty, good government, and national honour, were sacrificed. Thus there was scarcely an office which was not openly put up up for sale; cities bought their charters, judges their seats on the bench, bishops their sees. Thus too Hugh de Pudsey bought the Earldom of Northumberland for £1000; and Longchamp, the Bishopric of Ely for £3000; while the King relinquished all the advantages his father had won over William the Lion of Scotland for 10,000 marks; it was for Huntingdon alone that the Northern King did fealty to Richard.

All offices put up for sale.

Having by such unjustifiable means procured money for his purposes, entirely regardless of the misery he could scarcely fail to leave behind him, Richard crossed over to France to join his forces with those of Philip Augustus. Such precautions as he did take against maladministration in England were not of the wisest. He put the whole power into the hands of William Longchamp, Bishop of Ely, whom he made at once Chancellor and Chief Justiciary, securing for him also the authority of Papal Legate. But Longchamp was a man who could not

Starts for the Crusade, leaving England to Longchamp. 1190.

fail to have many enemies. Of low extraction, and regarded as merely the favourite of Richard, he was fond of exhibiting his grandeur in the most ostentatious manner; moreover, in making him justiciary Richard supplanted Hugh de Pudsey, to whom the office had already been given. Pudsey did not surrender without some opposition. He obtained from the King letters patent, naming him justiciary north of the Humber; when he exhibited these to Longchamp, the Chancellor contrived indeed to entrap him to London, and there made him surrender his claims, but he had made himself a powerful enemy for life. Richard also, as a second precaution, made his brother John, and his half-brother Geoffrey, who had got the Archbishopric of York in exchange for the chancellorship, promise not to enter England during his absence. But he afterwards unwisely absolved John from his vow. He thus left behind him in England a possible claimant to the succession, whose power as a baron was very great, for he was the possessor of Derbyshire, the inheritance of the Earl of Gloucester, which he had obtained by marriage, and of Cornwall, Devon, Dorset, and Somerset, which Richard had himself given him.

The death of William II. of Sicily, and of the French Queen Isabella, delayed the Crusade till June 1190. But at the end of that month, the Kings set out towards their first point, which was Sicily, Philip by Genoa, Richard by Marseilles. At the same time, a fleet of more than a hundred sail left the harbours of Brittany and Guienne. On reaching Sicily the friendship of the two kings was at first most edifying, but it was not long before various causes of dispute arose between them. To the inhabitants of the island the Crusaders seemed a horde of new invaders. The overbearing character of Richard exasperated the feelings of jealousy thus aroused. The conciliatory manners of Philip, on the other hand, were such that he was known as the Lamb, in contradistinction to Richard, who was called the Lion. The difference of feeling with which they were regarded was plainly shown when, on the occasion of some quarrel, the town of Messina was closed against Richard, while Philip was admitted within its walls. The enemies of the French King suggested indeed that his mildness was a proof of treasonable lukewarmness towards his fellow Crusaders. These suspicions were afterwards confirmed. On the death of William II.,^[30] Tancred, an illegitimate son of William's brother Roger, had seized the throne, despoiling of her rights Constance, the daughter of Roger and the wife of Henry VI. of Germany, and keeping in some sort of confinement Richard's sister Joanna, the widow of William the Good, and retaining the dowry secured her by her husband's will. The enmity thus excited in Richard's mind gave way, after a lengthened dispute, to the natural feeling of friendship between the two Norman houses. Joanna and her dowry were given back to Richard; and at one of the meetings between the two princes, Tancred informed him of a plot on the part of the French to fall treacherously on the English army. Philip does not seem to have

Quarrels with Philip
in Sicily.

denied the charge, and it was perhaps the consciousness of his guilt which prevented him from making any effectual opposition when Richard repudiated his sister Alice. Contrary to the national feelings, and on purely political grounds, Richard had been contracted to this princess by his father. He now, throwing over this unnatural match, sought for himself a wife from Spain, a country then and for long afterwards connected by close friendship with England. This wife was Berengaria, the daughter of Sancho I. of Navarre. Though unavenged, the insult was felt. From that time onwards Philip and Richard were enemies.

At length the armies broke up from Sicily and sailed for Acre. With the three leading ships of the English fleet were Berengaria and the King's sister Joanna. Richard brought up the rear. Two of the Queen's vessels were wrecked upon the Isle of Cyprus, and their crew imprisoned by Isaac, the ruler of that island. This monarch, a descendant of the Emperor John Comnenus, banished from Byzantium, had established himself with the title of Emperor in the Isle of Cyprus. He was an inhuman tyrant, the dread of pilgrims and of shipwrecked sailors. He tried to entice the two queens to land, but luckily Richard's fleet arrived. The Cyprians were driven from Lymesol, where the King established his court. He there received Guy of Lusignan, the nominal King of Jerusalem, completed his marriage with Berengaria, and made a treaty with Isaac. But when the Emperor sought to evade his engagements, Richard conquered the rest of the island, and organized it in the feudal fashion. On the 8th of July he reached Acre. The arrival of this warlike prince raised the spirit of the besiegers, who were in a very depressed condition. The siege had lasted since 1189, having been undertaken by Guy of Lusignan, who saw the importance of the place, if he was to continue to hold his kingdom. This was indeed a doubtful question. The Christian fortunes had sunk very low. Among the Mahomedans power after power had arisen with rapid success, and sunk as rapidly under the attacks of its own slaves or vassals. As the Abbassid Caliphs yielded to the Seljukian Turks, the Seljukians in their turn yielded to the Atabeks. The power of this race was brought to its height by Nouredin, who established his rule at Damascus, and extended it even into Egypt. Saladin, the son of Ayub, had attended his uncle Shiracouh, when he destroyed the rule of the Fatimite Caliphs in Egypt, and brought that province under the power of Nouredin. On Nouredin's death, Saladin acquired possession of Egypt, to which he subsequently added the provinces of Damascus and Aleppo, and raised an empire which reached from Tripoli in Africa to the Tigris. It was this new warlike power which had overwhelmed the kingdom of Jerusalem. Baldwin IV.,^[31] King of

Conquers Cyprus.
1191.

Jerusalem taken by
Saladin. 1187.

Acre besieged. 1189.

Arrival of the
Crusaders.

Richard saves Acre.

Philip goes home.

Jerusalem, became a leper. His sister Sybilla married Guy of Lusignan, a French prince of weak character, who succeeded to the throne. His elevation excited the jealousy of Raymond, Count of Tripoli, the greatest of his vassals. By his treacherous advice, Saladin attacked Tiberias. To complete his treachery, Raymond persuaded the Christians to take up a position in a camp destitute of water, and withdrew with his forces at the moment of attack. The destruction of the Christians was complete. In a few months Jerusalem itself was taken, and Tyre and Tripoli the only places left in Christian hands. Tyre was defended with success by the bravery of Conrad of Montferrat, who, in consequence of this success, was regarded as the great champion of the Christians. He had married a young sister of Sybilla of Lusignan, and upon the death of Sybilla, holding that the right went to the living princess, his wife, rather than to Lusignan, the husband of the dead princess, he demanded the throne. Meanwhile Guy besieged Acre, thirty miles south of Tyre, and was there surrounded by an army under the command of Saladin, and cut off from all assistance except by sea. It was under these circumstances, in the midst of the disputed succession to the throne, that the third crusade had begun. Frederick Barbarossa, who had marched with the Germans by land, perished on the road, and the Duke of Swabia reached the camp with only five thousand wearied men. The arrival of the hosts of England and France by sea changed the aspect of affairs; and the kingdom might have regained had it not been for the bad feeling which existed between Richard and Philip, which found new food in the rivalry of the two claimants for the crown of Jerusalem. Conrad of Montferrat at once allied himself with the French monarch; Guy of Lusignan, whose family in Languedoc were English vassals, attached himself to Richard. Directed by the enthusiasm of Richard, who, whenever mere fighting was the question, came prominently forward, the arms of the besiegers were successful, and Acre fell. The superiority which Richard acquired in actual warfare added fresh fuel to Philip's anger. There were besides certain circumstances in his own kingdom, where he had lately acquired Flanders, which seemed to require his presence. He therefore withdrew from the crusade, leaving the Duke of Burgundy with a part of his army under Richard's command. Had Richard been a general as well as a soldier, he had still forces enough to have brought this crusade to a successful issue. As it was, it consisted but of a series of brilliant but useless skirmishes. Even the great battle of Arsouf, which Richard won in September on his way to Joppa, brought him no nearer his object.

The presence of Philip in France, in close proximity to his own dominions, made him wish to be at home; and in 1192 he began negotiations with Saladin. He might even yet have been successful. In the course of the year he marched within sight of the Holy City. But his allies insisted that the capture was

Richard quarrels with Austria.

Truce with Saladin.

impossible, and he withdrew to Ascalon. There all causes for giving up his enterprise became stronger. The split with France widened. He quarrelled deeply with the Archduke of Austria, and with the faction of Conrad of Montferrat, who was also intriguing with Saladin. News of the disturbances in his own kingdom reached him. Everything urged him to go home. He summoned a council to settle the dispute as to the kingdom, was astonished when Conrad was named, but unwillingly gave his consent. At this very time, in what appeared to be only too opportune a moment for Richard, Conrad was murdered, as there seems no reason to doubt, by two members of the sect of the Assassins sent by the Old Man of the Mountain;^[32] but the crime was soon fastened upon Richard. For the present, however, he was free to take advantage of the death of Montferrat. Sure of the incompetence of Lusignan, he gave the kingdom to Henry of Champagne. To save appearances, he made one more rapid advance towards Jerusalem, but halted within sight of the city, apparently overborne by the argument that an attack on Egypt would be more profitable. Hearing that Saladin was besieging Joppa, he hastened to the relief of that town, and there won his final victory. Both he and Saladin were worn in health and weary of the strife. A three years' truce was arranged between them. By this it was agreed that Ascalon should be shared with the Turks, while the Christians should possess from Joppa to Tyre, the Counts of Tripoli and Antioch should be included in the treaty, and pilgrims have free access to Jerusalem. He then set off on his homeward voyage.

1192.

It was indeed time for the King to return. Richard had left William of Ely the chief command both in Church and State. An ambitious upstart, of ostentatious habits, William speedily roused against himself the bitterest hatred. He had one dangerous enemy who could give a voice to this unpopularity. This was the King's brother John, who wished to secure what he believed would be the speedy succession to the throne, while William sought to give a seeming legality to his position by upholding the claim of young Arthur of Brittany. Hence arose two great factions in the kingdom. The King, hearing in Sicily of the misdeeds of his Chancellor, had commissioned Archbishop Walter of Rouen, and William, the heir of Strongbow of Pembroke, if necessary, to remove him from the regency; at all events to join themselves with him and Fitz-Peter in a committee of government. Archbishop Walter shrank from the task. The quarrel came to an issue at Lincoln, which Gerard of Camville held in the interests of John, and which the Chancellor claimed for the crown. John seized the royal castles of Nottingham and Tickhill, and the question was brought before a meeting at Winchester, where a compromise was effected. A second cause of quarrel occurred, when the Bishop caused Geoffrey, the King's natural brother, the new Archbishop of York, who had landed in England contrary to his oath, to be

John's behavior in England. 1191.

apprehended in the very church at Dover. The two brothers made common cause. They demanded satisfaction for Geoffrey, and summoned a meeting between Reading and Windsor. Meanwhile the Chancellor suddenly left Windsor, and shut himself up in the Tower of London, and the meeting reassembled in St. Paul's. There all the charges against the Chancellor were produced; Hugh of Durham produced his old grievances, Geoffrey of York his late injuries. The Tower was ill provided with food; the Chancellor was obliged to appear and to plead; but now at length Richard's envoys produced their authority. Longchamp was dismissed from his offices. Walter of Rouen was put in his place, and the fallen Chancellor took refuge in France. The Pope received him, and excommunicated his enemies; but as usual this proceeding, when against the popular feeling, had but little effect.

Meanwhile Philip Augustus had been returning from the Holy Land. In December 1192 he reached Paris, and early in the following year demanded from the Seneschal of Normandy the restoration of his sister Alice, the Castle of Gisors, and the towns of Aumale and Eu, which he said that Richard had promised him. On the refusal of this request he began to tamper with John, begging him to come to him, when Normandy and England should be assured to him. John was stopped from immediate action by the influence of Queen Eleanor, but the disorder in the country was becoming flagrant. Richard's French vassals in Aquitaine were with difficulty suppressed.

Return of Philip Augustus.

It was plain that the return of the King alone could save the kingdom. Yet those English pilgrims who returned home before Christmas were surprised to find the King yet absent. He did not come, and the gloomy news was at length noised abroad that he was in a dungeon in Germany. He had attempted to return by sea, but afraid to travel through France, he had made his way up the Adriatic, intending to cross Germany to the dominions of his friend and relative the Duke of Saxony. Travelling in disguise, he had been discovered while in the Duchy of Austria; and the Archduke, whose anger he had roused at Ascalon, made him his prisoner. He shortly after sold him to Henry VI., Emperor of Germany. The capture of the King, whose name was in every one's mouth, strongly excited the feelings of Europe, and steps were immediately taken for his liberation. But to John his imprisonment served only as a means of aggrandizement. He hurried abroad, did homage to Philip, purchasing his favour with Gisors, the Vexin, and with Tours, and pledging himself not to make peace with his brother without Philip's permission. He tried to persuade the English justiciaries that his brother was dead, and secured, with his auxiliaries, Wallingford and Windsor. Philip, too, basely took advantage of his rival's position, used all his

Need of Richard's return.

His imprisonment in Germany.

John and Philip combine against him.

influence to lengthen his imprisonment, broke off the feudal connection between them, and invaded his dominions. Richard's subjects were, however, remarkably true to him. The justiciaries, assisted by Queen Eleanor, boldly opposed John in England, and the burghers of Rouen put Philip to a shameful flight.

In Germany Richard did homage to Henry for England. The connection of England with Germany makes it possible that there may have been some political meaning in this act. Some general action against France, or against Apulia, may have been thought of. But it came to nothing. It was afterwards cancelled by Henry himself, and has been generally regarded as a mere formality. However formal the act of homage may have been, Richard was certainly much connected with the German Empire. He mixed authoritatively in the next imperial election, after the death of Henry VI. in 1198; and it was chiefly by his influence that Otho, his nephew, a prince of the Guelphic royal family, and generally regarded as an English prince, was elected to succeed him. Of more immediate importance to England than this connection was the sum of money demanded for the King's ransom. The form of a trial was gone through at Spiers. All the charges which had been brought against him in the East were repeated;—his friendship with Tancred, his victory over Isaac, the murder of Conrad, his insults to Austria, even his final treaty with Saladin. He replied frankly and eloquently to these charges, and it was finally agreed that he should be liberated on the payment of 100,000 marks of silver, and 50,000 additional as a contribution to the Emperor's proposed march against Apulia. He was to be liberated as soon as the first sum was paid; for the payment of the second hostages were to be left. With considerable difficulty the money was collected, chiefly from the estates of the Church; and after some further difficulties, caused by the intrigues of Philip Augustus, in 1194, on the 13th of March the King landed at Sandwich.

England ransoms him.

His appearance in England at once destroyed the influence of John's party. Hubert the Justiciary had been doing his best to suppress it; such castles as still held out surrendered at the presence of Richard. His residence in England was short. He caused himself to be re-crowned, to remove the stain of his captivity, had recourse to his old nefarious means of gathering money, and then, weary of idleness, crossed into the more troubled country of France. With Philip it was impossible that he should have peace. An almost continuous war between the kings occupied the rest of the reign. Richard never displayed the talents of a general, and the war dwindled into an uninteresting series of petty skirmishes. These were usually decided in favour of Richard. Once, in the year 1196, united action among the enemies of France seemed to threaten Philip with a heavy blow.

Destruction of John's party.

War with France.

Richard's death at Chaluz. 1199.

Raymond of St. Gilles, Richard's old enemy, married his sister, Joanna of Sicily; the Count of Flanders, the Bretons, and the Count of Champagne joined in the league; and in the following year, Count Baldwin of Flanders succeeded in taking Philip prisoner, but he was freed on promising peace; nor for want of leaders did the alliance get much beyond the ordinary petty warfare of the time. At length, in 1198, a truce was patched up by the Papal influence, but before disbanding his troops, Richard led them to attack the Castle of Chaluz, where the Count of Limoges was said to be keeping some treasure which the King claimed. He was there wounded in the shoulder, as he rode round the walls, and the wound proved fatal. During his illness the castle was taken, and all the garrison hanged, with the exception of Bertrand de Gourdon, who had discharged the fatal arrow. He was reserved for the King's own judgment. "What have I done," asked the King, "that you should take my life?" "You have killed my father and my two brothers," answered he, "and I would willingly bear any torture to see you die." King Richard is said, in spite of his merciless temper, to have ordered his life to be spared. Mercadi, the chief of his mercenaries, was not so scrupulous; he had him flayed and hanged.

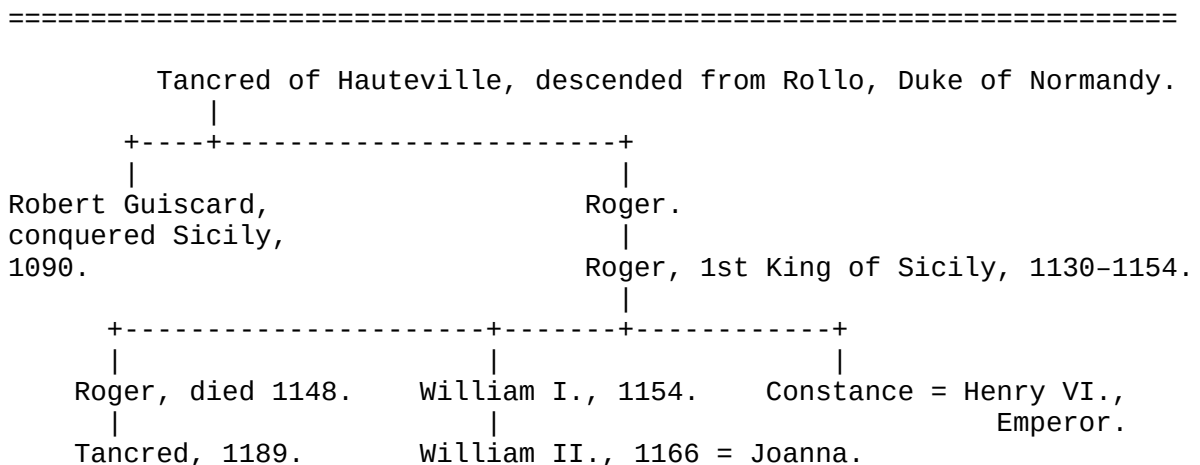
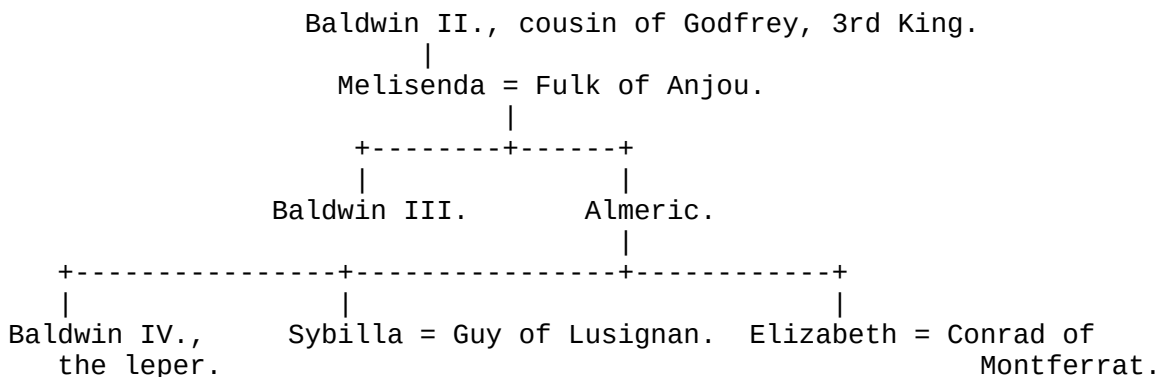
Although the King himself was but a few months in his own country, the conduct of affairs in England possesses some interest, as showing the further advance of the administrative system established by Henry II. After the King's return from his captivity, and final triumph over the machinations of John, the kingdom was left in the hand of Hubert Walter, Archbishop of Canterbury. He had been trained by Glanvill, and belonged to the class of officials created by the late King. It was through his activity that, while the ransom was still being collected, the kingdom was reduced to tranquillity, and John's castles captured in the name of the King. On Richard's withdrawal to his native dominions, Hubert held the three high offices of Justiciary, Archbishop, and Papal Legate. The whole government of the kingdom was virtually in his hands. It was carried on by him in harmony with the system in which he had been trained; and in the instructions given to the justices, for a great visitation of the kingdom in the year 1194, we find the superiority of the central to the local courts still further increased by an order, that sheriffs should not act as justices in their own counties. The dangerous power of these officers was for the time destroyed, when afterwards by the Magna Charta they were forbidden to hold the pleas of the crown at all, that is to say, all business in which the crown was interested was removed from their jurisdiction to that of the central courts. The demands of Richard for money were incessant. And on one occasion, when a large carucage, or tax upon every carucate of land, was demanded, which was in fact a renewal of the Danegelt in another shape, a fresh survey of the country, established by sworn and representative witnesses, and very similar to the Domesday survey, was ordered. In this system of representative

inquiry for financial purposes is to be found the beginning of the representative system subsequently employed in Parliament. So heavy were the taxes, that opposition was finally excited, and Hugh of Lincoln followed the example of Thomas à Becket, and refused payment from his Church land. It was apparently in connection with this opposition that Hubert, in 1198, withdrew from his secular work, and was succeeded by Geoffrey Fitz-Peter. Politically, the strength of the crown exhibited in these transactions, the very completeness and excellence of Henry's system, tended to change the interests of the various classes in England. The crown, hitherto the champion of the people against the feudal barons, began to overstrain its power, and all classes were gradually forced into opposition to it,—a work completed by the greater and less glorious tyranny of John, and by the increased feeling of nationality excited among the barons, when the loss of Normandy severed them entirely from France.

[click here to see the image](#)

Lines of Jerusalem and Sicily.

Godfrey de Bouillon, 1st King of Jerusalem; his brother Baldwin I.,
2nd King.

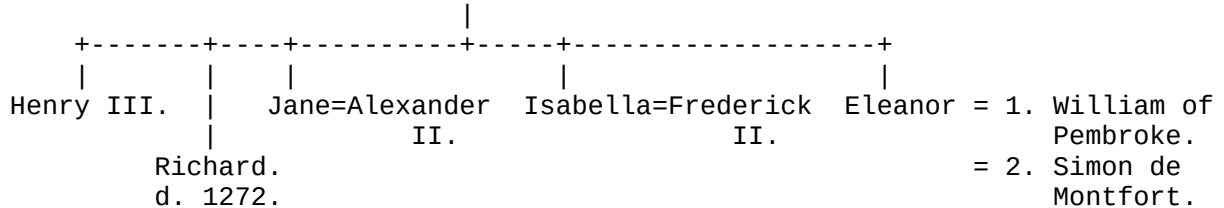


JOHN.

1199–1216.

[click here to see the image](#)

Born 1167 = 1. Hadwisa of Gloucester.
= 2. Isabella de la Marche.



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
William, 1165. Alexander II., 1214.	Philip Augustus, 1180.	Philip, 1198. Otho IV., 1209.	Alphonso IX., 1158. Henry I., 1214.

POPE. - - Innocent III., 1198.

Archbishops.	_Chief-Justices._	_Chancellors._
Hubert Walter, 1193-1205.	Geoffrey Fitz-Peter, 1199.	Hubert Walter, 1199.
Stephen Langton, 1207-1228.	Peter des Roches, 1214.	Walter Grey, 1205.
	Hubert de Burgh, 1215.	Peter des Roches, 1213.
		Walter Grey, 1214.
		Richard de Marisco, 1214.

King Richard had nominated John as his successor, having never renewed the recognition of Arthur of Brittany which he had made in Sicily. The new King at once set about securing his possession. He succeeded in laying hands upon the treasury at Chinon and the castles of Normandy. In Brittany, Anjou, Maine, and Touraine, there were signs of opposition. The barons put forward the claim of Arthur; Constance, his mother, took the young prince to the court of Philip, and that king proceeded in his name to master the towns and fortresses. But the assistance of his mother Eleanor, who had taken

John secures the crown.

possession of her old inheritance Poitou and Aquitaine, enabled John to make successful opposition to the invasion, and on the 25th of April he was crowned at Rouen, and felt himself strong enough to establish his claims in England. Thither he had already sent the chief of his brother's ministers—Hubert Walter, the Archbishop of Canterbury; Fitz-Peter, justiciary, and afterwards Earl of Essex; and William Marshall, Earl of Pembroke. These ministers had already obliged the nobles to tender their oath of allegiance; and John, on his arrival in May, was crowned at Westminster, taking the usual oaths to guard the Church, to do justice, and to repeal bad laws, but giving no further charter. The Archbishop is said to have begun the coronation with the declaration that the throne was elective, an assertion received with acclamation by those who were present. He is said afterwards to have declared that he took this step, knowing the King's character; he was, however, throughout his life a devoted servant of the crown.

John's position at the beginning of his reign was good. He was accepted in England; he was strong enough to refuse the Scottish King's demands on Northumberland and Cumberland; the Counts of Flanders and Boulogne made offers of friendship; and Otho of Germany even pressed him not to make peace with the French king, promising to come to his assistance. It was from Philip only that he appeared to have to dread any danger; for that king's early friendship for him had now changed to hatred, as he declared because he had accepted his continental dominions without asking leave of him, his feudal superior. We have thus early the key to the policy of Philip Augustus, who was determined to make use of the letter of the feudal law to bring his great vassal into subjection and establish royalty in France. He had a ready weapon in the person of young Arthur, who had already done homage to him for Maine, Anjou, Touraine, and Brittany. The efforts of the Church were however constantly exerted to keep the peace between these rivals; and Philip had a difficulty on his own hands which induced him to desire peace. He had married Ingelborga of Denmark, but had almost immediately separated from her and married Agnes de Méranie. The cause of the divorced princess was warmly taken up at Rome, and in this year Innocent III. had laid France under an interdict.

His strong position.

His danger from France. 1200.

Under these circumstances a treaty was patched up. John promised to young Louis, the heir of France, the hand of his niece Blanche of Castile, and along with her the Earldom of Evreux; at the same time pledging himself not to assist his nephew Otho against the rival Emperor of Germany, Philip of Swabia. Philip in return secured to England the disputed province of the Vexin, and for the time dropped the claims of Arthur. A formal interchange of homage was then made; on the part of John for his French possessions, on the part of Louis for

Peace with Philip, and marriage treaty.

Marriage with Isabella de la Marche.

Homage of Scotland.

his newly acquired earldom, on the part of Arthur for his provinces in France. John at once began to destroy his good position. A large aid gathered before his coronation, and another for the purpose of paying a sum of money demanded by the late treaty, had already excited anger in England. He now proceeded to rouse the displeasure of some of his chief French nobles. He put away his wife Hadwisa, the daughter of the Earl of Gloucester, and was beginning to treat for the hand of a Portuguese princess, when he suddenly fell in love with Isabella, the daughter of the Count of Angoulême, and carried her off from her betrothed husband, the Count de la Marche. Before the storm broke, however, he was able to oblige the Scotch king, with whom he had been in constant correspondence, to meet him at Lincoln, and there to do him homage, and to swear to be his liegeman for life, limb and land. It must be supposed that this was real personal homage for the kingdom of Scotland, as William the Lion's claims on the Northern counties were still postponed.

But the King's difficulties soon began. Wishing to collect an army to suppress disturbances in Poitou, he was met by a refusal from his barons, who assembled at Leicester, and demanded the establishment of their rights. The disturbances in Poitou were caused by the insurrection of the Count de la Marche, full of anger at losing his wife. Deserted by his barons, John was unable to suppress the insurrection. He had been invited to Paris, and received with every demonstration of friendship; but while there the barons of Poitou, following the policy of Philip Augustus, and it is fair to believe induced by him, lodged formal complaints with the French king as their suzerain. John was called upon to plead before the feudal Court of Peers. He refused, averring that the Duke of Normandy had never transacted business with his suzerain except personally upon the borders of his own duchy. Philip seized the opportunity, urged that the Duke of Normandy was at the same time Count of Poitou, obtained judgment against John, declared all his fiefs forfeited and again raised the claims of Arthur. War was the immediate consequence. The defection of the Count of Boulogne opened the west of Normandy, and that side of the country was speedily in the hands of the French.

Outbreak in Poitou.

John's French provinces forfeited. 1202.

Arthur himself now appeared in arms, renounced John, and entered Poitou in alliance with the insurgent barons. He there besieged Mirabeau, where the old Queen then was lying ill on her return from a journey into Spain, whither she had gone to fetch the Princess of Castile, according to the treaty with the French King. The capture of the castle seemed inevitable, when John, with one of those sudden acts of vigour which broke his indolent life, suddenly came upon the besiegers, and surrounded them, rescued his mother, and took the young prince captive. The war became still more vehement. The Bretons claimed the restoration of their prince. Philip moved his army to the Loire, and town after town was captured, while John lay in sensual enjoyment at Rouen. The Norman barons, unused to an unwarlike governor, deserted to Philip, and

Death of Arthur. 1203.

John was compelled to return to England. He had hardly reached it when the terrible rumour spread that the young Prince Arthur had disappeared. His fate is variously related. The more commonly accepted story is, that, imprisoned at Falaise, under the care of Hubert de Burgh, he escaped, by the good will of his custodian, from the designs of John, who had sent to have his eyes put out. He was thence removed to Rouen, to the charge of Robert de Vipont, and murdered, perhaps by his uncle's own hand, and his body thrown into the Seine.

However he may have died, his death raised a storm of indignation. Philip pressed more boldly forward. In March 1204, Chateau Gaillard, the key of Normandy upon the Seine, was taken. One after the other, Caen, Bayeux, Coutances, Lisieux, and all the country to Mont St. Michel, were captured; Rouen alone remained. John was again summoned before the Peers at Paris. Philip even prepared to invade England, and to make good there the claims of the Counts of Brabant and Boulogne, who had married the granddaughters of King Stephen. In June, Rouen was compelled to capitulate, and in the following year, Loches and Chinon, south of the Loire, yielded, and Rochelle, Niort, and Thouars, in Poitou, were the only towns left in the possession of the English.

Loss of Normandy.
1205.

Meanwhile John had tried in vain to assemble an effective army in England. He had raised money and collected troops, but it would seem that they were disaffected; for at the urgent entreaties of his faithful servants, Hubert of Canterbury and William Marshall, they were disbanded. One futile attempt was indeed made from Rochelle, and John boasted loudly of his capture of Montauban, but he was none the less compelled in October of this year to make a two years' peace with Philip. The connection between England and Normandy was thus for ever broken; henceforward the country was thrown upon its own resources, and its life and interests became more distinctly national.

Peace with Philip.
1206.

Many causes had been at work to separate the interests of the crown and nation, but before mentioning them it will be necessary to speak of the second great event of John's reign, his dispute with Innocent III.

In July 1205, had died Hubert of Canterbury, whose influence as minister of the crown had been paramount during this and the preceding reign. The right of election to the metropolitan See had been constantly disputed between the monks of the cathedral and the suffragan bishops of the province. The younger monks thought to steal a march upon their rivals, and, even before the Archbishop had been buried, had elected Reginald, the sub-prior. Without waiting for the King's approval, which had been invariably required during the reigns of the Norman kings, they hurried the

Election of the
Archbishop of
Canterbury.

Election of Stephen
Langton. 1207.

Archbishop elect abroad, binding him not to disclose his election till he reached Rome. His vanity got the better of his wisdom; he boasted of his good fortune. A rumour of what had been done reached the ears of the King. The elder monks took fright, betook themselves to John, and received orders from him, in complete disregard of the claims of the bishops, to elect John de Grey, Bishop of Norwich, one of his ministers. He was elected, invested with the temporalities, and messengers stating the fact were at once sent to Rome. It was now the turn of the bishops to complain. In point of fact, the last three archbishops had been elected by the common consent of the bishops and monks, and with the approval of the crown. The older right was decidedly with the bishops, and they too despatched messengers to the Papal Court. A claim raised by three distinct parties, and brought to his court to settle, was exactly the opportunity Innocent desired. There was much in the position of England and the English Church which he would have wished to see changed. The election of bishops and archbishops, under whatever forms it had been carried on, had been virtually in the hands of the crown. Many of these appointments had been given to Churchmen, who had devoted their chief time to the great administrative system which Henry II. had perfected.^[33] The mixture of lay and ecclesiastical elements was very objectionable to the Pope; while if there was one thing more than another which he was desirous of suppressing, it was the independence of national churches as represented by their bishops. Innocent, therefore, now ruled that the bishops had not the slightest voice in the matter, that the monks alone had from time immemorial possessed the right of election, although it had accidentally fallen into abeyance. He thus robbed both king and bishops of their share in the election, and then declaring that the election of Reginald in the present instance had been irregular, bade the monks, a considerable number of whom had come to Rome, proceed at once to the election of his old friend and fellow-student, Stephen Langton, cardinal priest of St. Chrysagonus. He so far acknowledged the existence of John as to write him several letters pressing him to receive the Archbishop. On the rejection of these overtures, foreseeing that he was entering on an important struggle, he arranged a peace with Philip of Swabia, the rival of Otho the Guelph, the Papal candidate for the throne of Germany, and proceeded to consecrate the new archbishop with his own hands at Viterbo.

John had already quarrelled with the bishops, because they had refused, at a council held at St. Albans, to give him a contribution which he had required, for the assistance of this same Otho, who was his nephew. The news therefore of the consecration at Viterbo at once moved him to violence. The monks of Canterbury were driven from their monastery, and when, in the following year, an interdict which the Pope had intrusted to the Bishops of London, Ely and Worcester, was published, his hostility to the Church became so extreme, that

John's violence.

Interdict and flight of bishops. 1208.

Excommunication. 1209.

almost all the bishops fled; the Bishops of Winchester, Durham and Norwich, two of whom belonged to the ministerial body, being the only prelates left in England. The interdict was of the severest form; all services of the Church, with the exception of Baptism and extreme unction, being forbidden, while the burial of the dead was allowed only in unconsecrated ground; its effect was however weakened by the conduct of some of the monastic orders, who claimed exemption from its operation, and continued their services. The King's anger knew no bounds. The clergy were put beyond the protection of the law; orders were issued to drive them from their benefices, and lawless acts committed at their expense met with no punishment. While publishing the interdict, the Pope had threatened still further measures, and the King, conscious of his unpopularity among the barons, sought to secure himself from the effects of the threatened excommunication by seizing their sons as hostages. Nevertheless, though acting thus violently, John showed the weakness of his character by continued communication with the Pope, and occasional fitful acts of favour to the Church; so much so, that, in the following year, Langton prepared to come over to England, and upon the continued obstinacy of the King, Innocent, feeling sure of his final victory, did not shrink from issuing his threatened excommunication. John had hoped to be able to exclude the knowledge of this step from the island, as his father Henry had done; but the rumour of it soon got abroad, and its effect was great. The fidelity even of the ministers was shaken, and one of them rose from the council table, asserting that it was unsafe for a beneficed clergyman any longer to hold intercourse with the excommunicated King.

In a state of nervous excitement, and mistrusting his nobles, the King himself perpetually moved to and fro in his kingdom, seldom staying more than a few days in one place. None the less did he continue his old line of policy. Sums of money were still frequently demanded, and sent out of the kingdom to support the cause of Otho, who, having procured the assassination of his rival, was again making head in Germany. Nor did he refrain from carrying out a policy which in any other king would have been accepted as national and good. The loss of the French provinces had thrown England back upon itself, and the country now seemed inclined to seek a surer foundation for its power in the more complete subjection of the immediately surrounding nations. Thus William the Lion of Scotland was compelled, by the advance of an English army, to make a treaty which was in fact a complete submission to England. He was obliged to pay a large sum of money, and to give up into the hands of John his daughters Margaret and Isabella, as well as hostages drawn from the noblest families of the country; while some years later, in 1212, his son Alexander appeared in London, and was knighted and swore fealty to the King.

Attack on the other insular nations, Scotland.

Shortly after this success in the North, John betook himself to Ireland, where quarrels had arisen between the angry Irish nobles, and where Hugh de Lacy had suppressed his rival John

Ireland.

de Courcy, and, being enfeoffed with the kingdom of Ulster, had arrogated to himself rights closely touching upon royalty. John raised supplies from the English towns, and crossed over to Waterford. He there succeeded in establishing order, and having introduced the English form of administration, returned to England, leaving John de Grey, Bishop of Norwich, behind him

Wales.

Disaffection of the Northern barons.

as his representative. He then directed his arms towards Wales. Along the marches of that country there was constant strife, as the Lords Marchers erected new castles and encroached upon their neighbours. In 1211 the King marched through the country, and received at the foot of Snowdon the submission of Llewellyn, his son-in-law,^[34] and other princes. A fresh outbreak, accompanied by the usual cruel slaughter of the garrisons of the castles, roused his anger. At Nottingham he had all the Welsh hostages he had taken under the late treaty hanged, and was preparing for further vengeance when news reached him of the discontent of the Northern barons. He was induced therefore to direct his arms against them, filled Northumberland with his foreign mercenaries, and seized fresh hostages from his suspected nobles.

These wars had but afforded still further opportunities for the King's rapacity; from which every class in the kingdom was now suffering. Those classes even which John had hitherto somewhat spared now felt the pressure. There was a universal persecution of the Jews, who were all suddenly apprehended, and many of them tortured to declare their wealth. He is said to have extracted 60,000 marks from the race. The clergy too had been obliged to find him £100,000; the Cistercian monks some £30,000, or £40,000, and subsequently, in 1212, another £12,000 was wrung from them, because the chief of the order, acting as Papal Legate, had, during the Albigensian crusade, injured Raymond, the King's brother-in-law.

The King's rapacity.

While he had been thus, even in the pursuit of national objects, estranging by his tyrannical conduct his own subjects, John had been carrying on his opposition to the Pope outside the

League with Northern princes.

limits of the kingdom; and events in Europe were rapidly approaching a crisis. Otho, the Guelphic Emperor, upon the death of his rival, had so completely succeeded, that in 1209 he had been solemnly crowned Emperor in Italy. But no sooner had he gained his object than the inevitable rivalry between Pope and Emperor again arose, and in a few years he had forfeited the Pontiff's favour so completely as to become the object of his greatest hatred; he had even been excommunicated, while the Pope found a new protégé in the young Frederick of Sicily, whose anti-papal tendencies were not at that time suspected. Similarity of circumstances rendered still closer the bond of union between John and his nephew, and in 1211 a league of excommunicated leaders was formed, including all the princes of the North of Europe; Ferrand of Flanders, the Duke of Brabant, John, and Otho, were all members of it, and it was chiefly organized by the activity of Reinald of Dammartin, Count of

Boulogne. The chief enemy of most of these confederates was Philip of France; and John thought he saw in this league the means of revenge against his old enemy.

To complete the line of demarcation between the two parties, Innocent, who was greatly moved by the description of the disorders and persecutions in England, declared John's crown forfeited, and intrusted the carrying out of the sentence to Philip. In 1213 armies were collected on both sides, Philip was already on the Channel, and John had assembled a large army on Barhamdown, not far from Canterbury. But Innocent probably never intended to proceed to extremities. To embroil two Christian nations would have been to thwart one of his greatest objects, which was a new crusade. But he knew his man; he knew the weakness which was hidden under the violence and ostentatious passion of John, and he also well knew from his emissaries in England the widespread disaffection there. While the army was still lying in its camp, there appeared at Dover Pandulf, as the Pope's Legate. He demanded and obtained an audience with the King, and there explained to him the gravity of his position. He found means to bring home to his mind the perfect insecurity of his position at home, while John, from his own experience, knew both the power and the skill of Philip. The consciousness of his danger destroyed his boastful obstinacy, and he made an unconditional submission. The paper which he signed was drawn up almost in the very words of the demands of Pandulf. He offered to plead before the Papal Court; he promised peace and a good reception to Langton, the other bishops, and banished laity; he was to restore all Church property, and to make restitution for all loss since the interdict. Having accepted these conditions, the King went further. On the 15th of May, at Dover, he formally resigned the crowns of England and Ireland into the hands of Pandulf, and received them again as the Pope's feudatory.

John is deposed 1213.

Surrender of the crown to the Pope.

It was not without ulterior objects that John took this disgraceful step. He believed that he saw in it a way out of all his difficulties, and the means of revenging himself upon his enemies. He had no intention of allowing his new position to interfere with his continental alliances, and it was to their success that he looked to re-establish his power. When Philip of France was no longer the agent of Papal authority, he believed that it would be possible for him to resist the storm that was gathering round him. He expected that one great victory would go far to give him back his lost French dominions, when the prestige of success, the friendship of the Church, and the increase of power derived from his regained dominions, would make him master of the situation in England. At first all seemed to work as he wished. Pandulf immediately hurried to France, and forbade Philip to attack the Pope's new vassal. The opportune attacks of Ferrand of Flanders diverted the French army towards the dominions of that prince; the English fleet which was sent to assist the Flemings destroyed the whole French shipping in

John's improved position.

Renewed difficulties with Stephen Langton.

the port of Damme; the Archbishop Langton was received with honour, John threw himself at his feet, reconciled himself with the Church, issued writs to all the churches to inquire into the amount of damages to be restored, and ordered a great council to meet at St. Albans to settle finally the restitution of the Church property. He then summoned his barons to meet him, and join him in an attack upon Poitou. But he was mistaken, both in the character of the Churchman, in whom he hoped to find an obedient servant of the Papal See, and in the amount of dissatisfaction among his nobles. The barons of the North refused to follow him, and the meeting at St. Albans resulted, not in a settlement of Church difficulties, but in the open declaration of the complaints of all classes. A few weeks after, Langton, who had seen through the character of John, and was full of hatred of his tyranny, met an assembly of malcontents at St. Paul's in London, and there declaring that he had found documentary proof of their rights, produced the coronation charter of Henry I., which was at once accepted by the barons as the declaration of the views and demands of their party.

In the meantime, two events had happened disastrous to the royal cause. Nicholas of Tusculum had arrived as Papal Legate, and the justiciary Godfrey Fitz-Peter had died. The Legate, ignorant of the feelings of the English, and eager to support and make real the Papal authority, had thoroughly adopted the King's cause. He threatened the clergy unless they at once accepted the arrangements which the King offered; and although

John hopes to remove them by victory in France. 1214.

Battle of Bonvines. 1214.

it was the very thing which had before excited the anger of the Pope, he proceeded to fill vacant benefices with the devoted adherents of the royal party. In the place of the experienced Fitz-Peter, who, however far he might have strained the administrative power of the crown, had yet exercised a wholesome restraint on the King, Peter des Roches was raised to the office of justiciary, and appointed to be the representative of the crown during John's absence in France. The people saw themselves, as they thought, both in spiritual and temporal matters in the hands of the tyrant. A great success abroad might yet have checked the growing disaffection. The King led an army to Rochelle. At first he was successful everywhere. He overran Poitou, and crossing the Loire captured Anger, but the Poitevin barons had been too deeply injured by him to be faithful friends; their disaffection soon compelled him to retire. But the great confederation was at work upon all sides. The Count of Flanders was pressing in upon the North, Otho was advancing from Germany. In July a junction was made at Valenciennes. Thither Philip now betook himself; he was followed faithfully by most of his great nobles, and by the militia of the chartered cities. The whole success of his policy was at stake. A defeat would ruin the object of his life—the establishment of the royal power in France. For Otho too the stake was high; the triumph of the Guelphic house in its long war against the Hohenstaufen would be the fruit of victory. For such prizes the battle of Bouvines was fought, at a small place

upon the little river Marque. The fortune of the day was with the French; in all directions they were victorious. Both for Otho and John the defeat may be said to have been final; the Emperor withdrew to his hereditary dominions, in Brunswick, where, after some not very important fighting, he died in 1218. John returned, having lost his last hope of re-establishing his power at home by foreign conquests.

He returned to England to find himself in a worse position than ever; for Innocent had found out the errors his legate had committed, and recalled him; and John had lost another of his most trusty counsellors by the death of the Bishop of Norwich.

Insurrection in
England on his return.
1215.

Thus left to his own resources, with his usual folly he took the opportunity of demanding a heavy scutage from those barons who had not followed him abroad. The nobles of the North rose. A meeting was held in November at Bury St. Edmunds, and it was there determined that they would make their formal demands upon the King in arms at Christmas time. John was keeping his Christmas at Worcester; but having no doubt heard of the action of the barons, hurried to London, where they appeared before him in arms. He demanded till Easter for consideration. The time was given him. He used it in an attempt to sow dissension among his enemies. He granted to the Church the free right of election, hoping thereby to draw Langton from the confederation. He took the oaths of the crusader to put himself more immediately under the guardianship of the Church, and hastily summoned troops of mercenaries from Poitou.

The barons at once reassembled at Brackley. At their head was Fitz-Walter, an old enemy of the King, and William Marshall, son of the Earl of Pembroke. Their strength consisted of the nobles of the North—and they were spoken of as the Northerners,—but many barons from other parts of England joined them, and in spite of various compromises offered by the King, they laid siege to the castle of Northampton. They there

Meeting at Brackley.

Capture of London.

Runnymede.

received messages of adherence from the mayor and citizens of London, into which city they were received in May; and thus masters of the greater part of England, and of the capital, they compelled John to receive them and hear their demands at Runnymede, a meadow by the Thames' side not far from Staines. There was signed, on the 15th of June, the paper of forty-nine articles, which they presented, and which were afterwards drawn up into the shape of the sixty-three articles of the Great Charter.

That Great Charter was the joint work of the insurgent lords, and of those who still in name remained faithful to the crown. In many points this rising of the barons bears the appearance of an ordinary feudal insurrection. Closer examination proves that it was of a different character. The very success of Henry II in his great plan of national regeneration had

Political position of
England.

tended to change the character of English politics. Till his time, the bulk of the people had regarded the crown on the whole as a defence against their feudal tyrants. In the pursuit of good government he had crushed the feudal nobles, and had welded Norman and English into one nation. In so doing, he had greatly increased the royal power; for in those early times good government invariably implied a strong monarchy. In patriotic hands his work might have continued. But when the increased royal power passed to reckless rulers, such as Richard and John, it enabled them to play the part of veritable tyrants. They had used this power in ruthlessly pillaging the people. The great justiciaries, Hubert and Fitz-Peter, content with keeping order and retaining constitutional forms, had almost of necessity lent themselves to this course, while lesser officials had undoubtedly acted with arbitrary violence. The interests of the King and his ministers had thus become separated from those of the nation. To oppose this tyranny, nobles and people could now act in concert. The struggle was no longer between King and people on one side against the nobles on the other, but nobles and people had joined against the King. Besides this political change, a great revolution had taken place in the character of the nobility itself. The feudal nobles, the friends of the Conqueror, had for the most part given place to a new nobility, the sons of the counsellors and ministers of Henry II. In the centre of England alone did remnants of the old feudal families remain. The insurrection then, coming from the North, was the work not of feudal barons but of the new ministerial baronage. Again, the claims raised, although, inasmuch as the monarchy was still in form a feudal monarchy, they bear a resemblance to feudal claims, were such as might have been expected from men trained in the habits of administration. They were claims for the redress of abuses of constitutional power, and were based upon a written document. In addition to this, they were supported by the clergy, who were never and could never be feudal in their views, and by the towns, whose interests were always opposed to those of the feudal nobility. There is another thing to be recollected; the Charter, as ultimately granted, was not the same as the demands of the barons. A considerable number of the older barons, of the bishops, and even the Archbishop himself, remained ostensibly true to the King, and were present at Runnymede as his followers. We are told that it was the younger nobles who formed the strength of the reforming party. Nevertheless, with the exception of the King's actual ministers, and of those foreigners, the introduction of whom was one of his gravest errors, the whole of John's own following acknowledged the justice of the baronial claims, sympathized with the demands raised, and joined in putting them into the best shape. The movement was in fact, even where not in form, national.

The terms of the Charter were in accordance with this state of affairs. To the Church were secured its rights and the freedom of election (1). To the feudal tenants just arrangements in the matters of wardship, of heirship, widowhood, and marriage (2-8). Scutage and aids, which John had from the beginning of his reign taken as a matter of course, were

Magna Charta.

henceforward to be granted by the great council of the kingdom, except in three cases, the deliverance of the king from prison, the knighting of his eldest son, and the marriage of his eldest daughter (12). The same right was secured by the immediate tenants to their sub-tenants. The great council was to consist of archbishops, bishops and abbots, counts and greater barons, summoned severally by writ, and of the rest of the tenants in chief, summoned by general writ to the sheriff (14). The lands of sub-tenants, seized by the king for treason or felony, were to be held by him for a year only, and then to be handed over to the tenant's immediate lord (32). Similarly the crown was no longer to claim wardship in the case of sub-tenants, nor to change the custom of escheated baronies, nor to fill up vacancies in private abbeys (43, 46). These are all distinct regulations of feudal relations. The more general acts of tyranny of the crown were guarded against, by fixing the Court of Common Pleas at Westminster (17); by the settlement of land processes by itinerant justices in the counties where the disputes arose (18); by the limitations of punishments within reasonable limits (20-22); by the restriction of the powers of constables, sheriffs, and other royal officers, both in the matter of royal lawsuits and of purveyance (28-31); by an article (36), which is held to foreshadow the Habeas Corpus Act, stipulating the immediate trial of prisoners; and by other articles (38-40), which are held to foreshadow trial by jury, and which forbid the passing of sentence except on the verdict of a man's equals, and witness upon oath. Other points secured their liberties to the free towns and to merchants. This Charter was to be guaranteed by the appointment of a committee of twenty-five nobles, any four of whom might claim redress for infractions of it, and upon refusal proceed to make war upon the king.

This Charter, which with its final clause implied absolute submission, John never intended to keep. No sooner were his first ebullitions of anger over, than he proceeded to take steps for destroying it. Messengers were at once sent to Rome to get it annulled, and to Poitou to collect mercenaries. Troops came over in crowds, and the barons in alarm ordered William

John's attempts to break loose from it.

Louis is summoned. 1216.

D'Aubigné to attack the castle of Rochester. He seized it, but was there besieged, and compelled to surrender to John's mercenaries. All the common men of the garrison were hanged. John's other message was equally successful. A letter from Innocent announced that he totally disallowed the Charter, and ordered Langton to excommunicate the King's enemies. This he refused to do, and other excommunications and interdicts were also futile. John's temporal weapons were more successful. He overran England with his mercenaries, burning, slaying and harrying with vindictive fury, and so superior was he in the field, that the barons found themselves obliged to summon Louis of France to their assistance. Louis' wife was John's niece, and they probably intended to use this slender connection to change the dynasty.

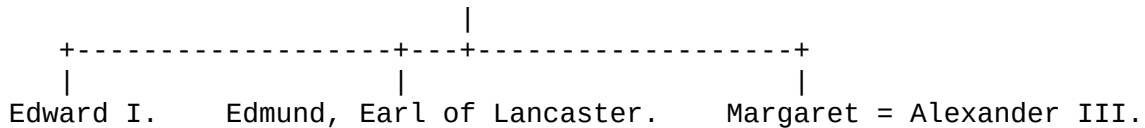
His success was not very rapid, though at first he seemed to have the game in his hands. He wasted his time and lost his opportunity before the castles of Dover and Windsor. His conduct also in bestowing fiefs upon his French followers began to excite the jealousy of the English; and John's cause was again wearing a more hopeful appearance, when, marching from Lincoln, which he had lately conquered, he crossed the Wash, with all his supplies which he had lately drawn from Lynn. The rise of the tide destroyed the whole of his train, and broken by his loss, or perhaps poisoned, or perhaps a victim to his greediness, he died on the 19th of October at Newark. In July of the same year he had lost his great protector Innocent III.

John's death.

1216–1272.

[click here to see the image](#)

Born 1207 = Eleanor of Provence.



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Alexander II., 1214.	Philip Augustus, 1180.	Philip, 1197.	Henry I., 1214.
Alexander III., 1249.	Louis VIII., 1223. Louis IX., 1226. Philip III., 1270.	Otho IV., 1208. Frederick II., 1218. Interregnum, 1250.	Ferdinand III., 1217. Alphonso X., 1252.

POPES.--Honorius III., 1216. Gregory IX., 1227. Celestine IV., 1241 (vacancy 1241). Innocent IV., 1243. Alexander IV., 1254. Urban IV., 1261. Clement IV., 1265 (vacancy 1268). Gregory X., 1271.

Archbishops.	_Chief-Justices._	_Chancellors._
Stephen Langton, 1207-1228.	Hubert de Burgh, 1215-1232.	Richard de Marisco, 1214-1226.
Richard le Grand, 1229-1231.	Stephen Segrave, 1232-1234.	Ralph Neville, 1226-1244.
Edmund Rich, 1234-1240.	Hugh Bigot, 1258-1260.	Walter de Merton, 1261. Nicholas de Ely, 1263.
Boniface of Savoy, 1245-1270.	Hugh le Despencer, 1260.	Thomas Cantilupe, 1265. Walter Giffard, 1265.
	Philip Basset, 1261.	Godfrey Giffard, 1267. Richard Middleton, 1269-1272.

Immediately upon the death of John, William Marshall, Earl of Pembroke, and Gualo, the Papal Legate, the leaders of John's faithful followers, declared Prince Henry king. It was a moment of extreme danger. The Scotch had advanced as far as Carlisle, the Welsh were harassing the Marches, the East and South of England were in the hands of Louis and the revolted barons, the court could with difficulty uphold its influence in the West. But Marshall was a man of tried experience, of trustworthy character, and, though a firm adherent of the crown, no friend to tyranny. The presence of the French prince in England shocked all national prejudices. Pembroke set on foot a policy of conciliation, and attempted to unite all parties against the foreigner. He at once separated the cause of the young Henry from that of his father by accepting the Charter. He wrote friendly letters to the leaders of the revolted barons, and found assistance in the ecclesiastical weapons wielded by Gualo. One by one the insurgents, feeling themselves sure of constitutional treatment at the hands of Pembroke, joined the royal party. Pembroke found himself strong enough to risk a battle. Louis had received reinforcements, and with the insurgent nobles who still upheld his cause marched to Lincoln, where, though the town was in his possession, the castle still held out for the English king. Thither Pembroke betook himself, determined to bring on a decisive engagement. Gaining access to the town through the castle, his troops fell upon the French in the streets, and completely routed them, capturing nearly all the English leaders. London and its neighbourhood alone remained to Louis, and when a great French fleet, under Eustace the Monk, which was bringing him assistance, was completely defeated by Hubert de Burgh and D'Albiny, Louis felt that his cause was lost, and consented to treat. The English, who only wanted to get rid of him, granted easy terms, including the freedom of most of their prisoners. They even advanced 10,000 marks towards defraying the heavy fine which Gualo on the part of the Church demanded as an expiation for disobedience to the Roman See, and Louis was escorted with all honour to the sea coast, and retired.

Difficulties at Henry's accession.

Pembroke's conciliatory measures.

Fair of Lincoln.

Louis leaves England.

With Louis the great obstacle to the settlement of the country was gone. Pembroke continued to act in a conciliatory spirit. A pardon was issued, including all political offenders; peace with Scotland was secured; and the Charter, together with the charter of the forests, was again signed. It underwent, however, some changes. The King was no longer acting under coercion; restrictions which Pembroke considered inexpedient were therefore removed. His object appears to have been to reproduce as far as possible the state of things existing in the reign of Henry II. The destruction of castles erected during the late reign was therefore

ordered, and the clause of the Charter forbidding the levy of scutage without the consent of the barons omitted. The reconciliation thus effected was in fact the triumph of the crown; the offices were filled with adherents of John. But in the hands of Pembroke the regained power of the crown would have been constitutionally employed.

His death opened the door to a strange attempt on the part of the Papal See. The influence of Gualo, the Papal Legate, had been great. It had been so because John's resignation of his crown was regarded at Rome as no vain formality, but as a real cession. But Gualo, a man of somewhat weak character, was no match for Pembroke, and was unfitted to make good the authority which Rome was inclined to claim. He was recalled, and a much more energetic legate appointed in the person of Pandulf, now Bishop elect of Norwich. His

Papal attempt to govern by legates.

Pandulf's government.

His fall.

appointment represents an effort on the part of Rome to govern England as a conquered province by means of its legates. The natural governor of England during the minority of the sovereign was the great justiciary Hubert de Burgh. But Pandulf assumed authority over him, and his letters amply prove how overbearingly he used it. His government was at first successful. The dangers of a French invasion were averted by a renewal for four years of the Peace of Chinon. The friendship of Scotland was secured by the marriage of Henry's sister Jane with the Scotch king. A splendid coronation, and an ostentatious ceremonial at the removal of Becket's bones to the Cathedral of Canterbury, seemed to show the restored grandeur both of King and Church; while a Bull from Pope Honorius commanded the restoration of the royal castles, which the poverty of the King had, in many instances, obliged him to pledge to their governors. But Pandulf's conduct was too overbearing to be endured. Langton, as the head of the English Church, and therefore no friend to the immediate government of Rome, tried to curb him by demanding his obedience as one of his suffragan bishops. The Pope declared him free from this obedience so long as his consecration to the See of Norwich was uncompleted. Langton finally betook himself to Rome, and there, by what means we know not, succeeded in obtaining an order for his recall, accompanied by a promise that no resident legate should be appointed in England during his own lifetime.

Hubert de Burgh at once took his proper position as regent, supported by the national Church; and the attempt at immediate rule from Rome may be said to have failed, though throughout the reign England was regarded as in a special manner a fief of the Papal See, and, as Pope Innocent IV. said afterwards,

Triumph of national part under Herbert de Burgh.

“a well of wealth from which Rome might draw unlimitedly.” For eight years Hubert ruled England well. He was unduly grasping of money, he was occasionally arbitrary, but on the whole his government was directed to the honest support of the Great Charter, and the destruction of that foreign influence under which England was suffering.

The centre of this influence was Peter des Roches, who had the care of the King’s person. These two ministers, Hubert and Peter, were the representatives of the different sides of that quarrel which gives its tone to the whole reign. The characteristic feature of the period is the growth of national feeling. This feeling had been outraged by John by the introduction of foreign favourites. The claims of the Pope on England, the tyranny which he exercised on the national Church, and the constant bestowal of English livings upon foreigners, had a similar effect in shocking the feelings of the clergy. Thus while the Pope and King appear throughout the reign as the favourers of foreigners, the national party both in State and Church were closely connected. As yet, indeed, the King was too young for such a part; the representative of the foreign party was Des Roches. Round him gathered themselves all classes of malcontents, consisting chiefly of those foreign mercenaries whom John had raised to power, and who were occupying the royal castles, of Llewellyn of Wales in close connection with them, and of the nobles of Ireland. Des Roches’ influence at Rome secured for this party on most points the support of the Pope. For two years they were constantly thwarting the government of De Burgh. The necessities of the government had obliged him to be severe in the collection of money; but there was some slight colouring for the charge of undue severity which was laid against him. An uproar in London, headed by Constantine Fitz-Alulf, an old partisan of the French invaders, had been followed by the summary execution of that demagogue. Attacks both in Wales and in Ireland upon the property of William Marshall, who was thoroughly English in his views, were the first signs of the coming storm. A Bull which De Burgh obtained from Honorius declaring the King of age, and demanding the restitution of the castles, brought matters to a crisis. Under this provocation the barons and Peter des Roches proceeded to action. An attack on London was planned, but failed. But the discontented nobles openly appeared before the King; and Peter des Roches formally charged Hubert with treason, and demanded his dismissal. Led by the Earl of Chester, they retired, and kept Christmas with great pomp at Leicester. The Justiciary and the King determined to hold a rival meeting at Northampton. The royal appeal for help was warmly answered. The force collected at Northampton was too strong for the malcontents. Excommunication

Parties in England.

Opposition barons at Leicester. 1223.

Resumption of royal castles.

Destruction of Faukes de Breauté. 1224.

issued against them by Stephen Langton completed their discomfiture. They separated and obtained peace as a price of the surrender of the castles. There was one exception, Faukes de Breauté, who contrived to retain his strongholds. This man, a mercenary of John, had risen to be the sheriff of six counties, the governor of several castles, and a Baron of the Exchequer. Hubert determined to complete his victory by destroying him. His opportunity occurred, when Faukes' brother William laid hands on the travelling justice Henry Braibroc and imprisoned him at Bedford. With extreme rapidity De Burgh marched against him and captured Bedford. Faukes fled to join his former comrades; but it was in vain that both Chester and Peter des Roches, now at one with the Justiciary, petitioned in his favour, De Burgh remained unmoved, and De Breauté was stripped of all his offices, and condemned to perpetual exile. He betook himself to Rome, where he managed to obtain the ear of the Court, and still further increased the difficulties of the English government.

Although he had thus worsted his domestic enemies the Justiciary was surrounded with difficulties. Philip Augustus had died in 1223, and had been succeeded by his son Louis VIII., the old enemy of England. He had begun his reign with a threat of renewed war, to which the disturbed state of Poitou and Guienne afforded a constant opportunity. In those countries there was a succession of unceasing disputes between town and town and noble and noble; the country roughly forming itself into two parties, the towns and the nobles. In 1224, war had in fact broken out. Henry had sought the friendship of the German Emperor Frederick against France, and connected himself with Peter Duke of Brittany, and when Louis appeared at the head of a great army, nominally for a war against the Albigenses, it seemed probable that its real aim was the English provinces. Louis' unexpected death changed the state of affairs. The new king was a child in the hands of his mother Blanche, and the French nobles took the opportunity to loosen the connection between themselves and the crown which Philip II. had established, and thus destroyed for the present the possibility of united national action. But although, on the first slackening of authority, all Poitou passed into the English hands, the chance of forming a united opposition among the discontented French nobles was allowed to pass unused. One by one even the old allies of the English returned to their allegiance to France. At length, Richard, the King's brother, who had the title of Count of Poitou, and had commanded his army, joined in the general pacification.

It was the financial difficulties of the government which had chiefly prevented the success of this war. The opposition

Danger from France.
Death of Phillip.

English neglect the
opportunity.

Poitou remains
French.

Hubert's continued

to Hubert de Burgh was constant, and it had only been upon condition of again signing the Charter that the King had been able to raise a fifteenth for the French war. This tax was probably the first raised in strict accordance with the terms of the Charter. De Burgh was honestly desirous, in opposition to the arbitrary views of his rival Des Roches, that the King should rule constitutionally, and both by proclamation and by official letters he took care to spread a knowledge of the Charter in the country. Although Henry was declared of age in 1227, when he was twenty, the government of De Burgh practically continued. He was made Earl of Kent, and declared Justiciary for life; and his victory was completed by the absence of Peter des Roches, who thought it better to withdraw for a time to the Crusades. His rule was not very popular among the nobles: not only was he naturally disliked by the chiefs of the adverse party, he even quarrelled with Richard, the King's brother, and with William Marshall. Such an act indeed as the following could scarcely have failed to make him enemies. An inquisition was issued to examine into the title deeds^[35] of all tenants in chief, who were obliged to make good their titles by large payments. The sum derived from this inquiry amounted to £100,000.

power.

The support which the Justiciary invariably received from Langton bears witness to the national character of his government. The Archbishop's efforts to free the Church from its foreign slavery were perhaps even more laborious than those of the Justiciary. Already the system which reached such excesses afterwards had been established.

Langton supports his policy.

Change of Popes: increased exactions.

Gualo and Pandulf had been but single instances of a number of Roman officials who had grown rich on gifts of English benefices; and now the Roman Court determined, under the pretext of raising money for the Crusade, to demand both in France and England two benefices in each diocese and each abbey for the exclusive use of Rome. In neither country was the demand allowed. Otho, a Papal legate, held a council in 1226 at Westminster, and brought forward the demand. The clergy would probably have had to yield, had not the Archbishop, by private negotiations with the Pope, succeeded in getting the Legate's commission withdrawn. The clergy then expressly declared that by the laws of England they were free from such exactions. That England was allowed thus to escape, and that the exactions were comparatively so light in these first years of the reign, is due to the character of Honorius and to the interest which he always took in the young King, whom he regarded as his special vassal and ward. The case was different when he was succeeded by Gregory IX., the nephew of Innocent III., and the heir to his imperious temper. It was fortunate that his constant war with the German Emperor prevented him from meddling much with English politics.

But this period, during which England was governed by such patriotic leaders as De Burgh and Langton, working in harmony with one another, was coming to a close. In 1228, the Archbishop died, and was succeeded, after a disputed election, by Richard Chancellor of Lincoln, who was authoritatively nominated by the Pope. The new Archbishop did not live long, and was in his turn succeeded, also on the nomination of the Pope, by Edmund Rich, a man of great sanctity and singleness of purpose. In the following year, a quarrel occurred between the King and the Justiciary, which was probably the beginning of that nobleman's fall.

Death of Langton.
1228.

Henry, now that he was of age, had become anxious to distinguish himself by regaining some of his continental dominions. To this he was pressed by the discontented French nobles, more especially by the Count of Toulouse, who was suffering from the Albigensian crusades, by the Counts of Brittany and of the provinces in the north-east of France. In other words, he was thinking of throwing England back into that position of entanglement and dependence which had hitherto prevented the formation of the national spirit. This was exactly opposed to the Justiciary's views. He was unable to change the King's mind; but when Henry arrived at Portsmouth, where his army was assembled, he found the ships insufficient for its transport. Full of rage, he turned upon Hubert, abusing him as a grey-haired traitor, and affirming that he was bribed by France. The expedition had to be postponed, which was fortunate, as the scutage which had been demanded from the Barons and the Church had indeed been granted, but not yet collected. It was not till the end of April 1230 that the armies sailed. Although the expedition was unwise in itself, it was well timed. With the exception of the Count of Champagne, nearly all the French Barons were in arms, or ready to rise, against the Queen Regent Blanche; but Henry was incapable of seizing the opportunity. He tried diplomacy instead of war, but it was in vain that he persuaded many of the Barons of Poitou to join him; Blanche found means to break up the confederation against her. This change in the aspect of affairs compelled Henry to make a truce, and before the end of the year he returned home, leaving a small army behind him.

Quarrel of Henry and
De Burgh.

Henry's false foreign
policy.

Under pretext of continuing the war, a new scutage was demanded and granted, not without opposition from the clergy; but finally a peace for three years was concluded in July 1231, which was again renewed for five years in 1235. We may suppose, although Henry declared that he was on perfectly good terms with the Justiciary, that their great difference on foreign policy made his suspicious mind inclined to listen willingly

Return of Des
Roches.

Twenge's riots.

to the insinuations of Des Roches, his evil genius, who in this year returned from the Crusade. Every difficulty of the Justiciary was artfully taken advantage of. Among other things laid to his charge was the insecure state of the Welsh borders. He was even represented as fostering a strange lawless opposition to the encroachment of Rome, which had been showing itself in the kingdom. A secret society, part lay, part clerical, had been formed to check the habit of granting English livings to foreign priests, thus not only destroying the funds of the English clergy, but overriding the rights of private patronage. The society wrote letters to all ecclesiastical bodies, threatening them with vengeance if they paid the incomes of the foreign interlopers. The associates did not confine themselves to threats; several foreign priests were robbed and outraged. The head of the conspiracy, Sir Robert Twenge, boldly justified his conduct to the King, and was allowed to depart unharmed, and carry his complaints direct to Rome. The rioters were said to have shown in their justification letters from the Justiciary.

It is scarcely possible that this could have been true; but, together with the disturbances on the Welsh Marches, it formed the chief among a series of very trivial charges which were brought against Hubert, and produced his fall. On the 29th of July 1232, he was suddenly suspended from all his offices. His place was taken by Stephen de Segrave, a close ally of Des Roches. Peter de Rivaux, probably the Bishop's son, was made treasurer, and other favourites of the Bishop were raised to office. Hubert, aware of the strength of his enemies, took refuge in the Priory of Merton in Surrey. He was granted a few weeks to prepare his defence, and to get ready accounts which were demanded of all the money that had ever passed through his hands. Supposing that he was thus at liberty for the present, he went to Bury St. Edmunds to join his wife, but on his journey thither, at Brentwood, he was, by order of the Court, assaulted, and fled for refuge to the sanctuary of a neighbouring chapel. He was torn from his refuge, and hurried to London. The favour he had gained in the eyes of the people and his whole political aim are well shown in the words that are reported to have been used by a smith when ordered to put irons on him: "Is not this that true and noble Hubert who has so often snatched England from the devastating hand of the foreigners, and made England, England?" The Church obliged Henry to restore him to his sanctuary, and the love with which he was regarded was shown by the touching offer of his own chaplain, Luke, Bishop of Dublin, to give himself up in his place. The effect of taking sanctuary was, that the fugitive was bound to swear before the coroner that he would leave England for ever. This exile he was bound to seek within forty days, leaving the coast within a tide after his arrival there, or, if the wind made that impossible, walking daily into the sea to show his willingness to do so. Hubert

Fall of De Burgh.

Effects of taking
sanctuary.

could not bring himself to abjure England; he would not therefore leave his sanctuary, and being surrounded by his enemies, was starved into submission. He was treated mercifully; his Crown fiefs were taken from him, his own property he retained, but he was kept in confinement in the Castle of Devizes.

Once in command of the government, Peter des Roches pushed headlong to the attainment of his objects. The friends of De Burgh were swept from the Court. The offices were filled with foreigners. Henry was persuaded to bring over 2000 troops from France. But Hubert was not the only Englishman among the nobility. Richard Marshall of Pembroke, the second son of the great Regent, and now his representative, raised the voice of patriotism, and declared to the King that as long as foreigners were ruling none of his English counsellors would appear at Court. Des Roches answered insolently that the King and his foreigners would soon bring rebels to reason. At assemblies at Oxford and at Westminster the same sort of language was used. By Peter's advice, the King began to proceed against his discontented subjects. He deprived Gilbert Basset of his property, and ordered the apprehension of his brother-in-law Siward; they fled to the Earl Marshall, their property fell to Rivaux. In August, a day was appointed for the delivery of hostages by the suspected nobles. Pembroke, the Marshall, hearing that there was a plot against his life, retired to his Welsh possessions. The King summoned troops to meet him at Gloucester. The Marshall and his friends were outlawed without trial; fresh foreign troops came thronging over, and civil war began. The King's army did not fare well, and the clergy began to take up the cause of the Marshall. They protested against the confiscation of a peer's property without trial. "There are no peers in England," said Des Roches, "as in France; the King may sentence whom he will, and drive them from the country." The clergy could not hear such absolute principles unmoved. They threatened Des Roches and his favourites with excommunication; and when the King demanded their censure upon the Marshall for an attack upon Gloucester, they said the city was his, and they found no grounds for censure.

Revolution under Des Roches. 1233.

Earl of Pembroke upholds Hubert.

Meanwhile, afraid for his life, De Burgh had escaped from Devizes and again taken sanctuary. Again he was illegally torn from it, again the Church remonstrated, and he was again restored. A sudden inroad into Wiltshire under the Marshall's friend Siward set him at liberty, and he immediately joined the Marshall at Strigul. Again and again the royal troops were worsted; and at length, in 1234, at a meeting of the clergy at Westminster, Archbishop Edmund took the matter up,

Edmund of Canterbury causes Des Roches' fall. 1234.

Henry becomes his own minister.

explained to the King the wretched effects of trusting to his foreign counsellors, warned him that excommunication would most likely fall upon him too, and induced him at length to order the Bishop of Winchester to retire and attend to his spiritual work in his diocese. For a month longer the war went on, or rather attacks continued to be made upon the followers of Peter. But in May, news arrived that Richard Marshall had been treacherously killed in Ireland at the instigation of Des Roches. This was more than the King himself could bear, and the Archbishop received orders to restore to favour all those whom Des Roches had outlawed. Gilbert Marshall received the property and office of his late brother, and Hubert was allowed to retain the earldom of Kent and his own property. This change was followed by the removal of Peter's creatures. After some years of absence, he himself returned to England, was received into favour, and died in his diocese in 1239.

The fall of Des Roches was not productive of such advantageous changes in the government as might have been expected. Segrave held for a few years the office of Justiciary. On his death the office was not renewed till after the Parliament at Oxford. Ralph Neville continued in more or less favour as Chancellor till 1244, when that office also fell into abeyance. The King practically became his own minister, and unfortunately his views of government had more in common with those of Des Roches than with those of De Burgh. It is true that the growing power of the Great Council, which was gradually gaining the name of Parliament, prevented any great infractions of the Charter, and compelled the King again and again to renew that document, though always in exchange for an aid. The frequency of renewal, however, seems to show repeated efforts on the part of the King to free himself from it; nor was the state of his treasury such as to enable him to do without legitimate sources of revenue. The real faults of his reign were not illegal extensions of the royal power, but the readiness with which he allowed and even joined in the exactions of the Papal See, and the total absence of national objects which distinguish his rule, which may be traced to his culpable partiality to foreigners. From the year 1236 till the Parliament of Oxford, these errors were continually on the increase.

The first great influx of foreigners was caused by his marriage. In 1236, he married Eleanor, the second daughter of Count Raymond Berenger of Provence, and sister of the Queen of France. From that moment, the Court was in the hands of the Queen's relatives. It was especially the Queen's uncles into whose hands patronage fell. William, Bishop of Valence, was the first. To him was given the vast property of Richmond in Yorkshire, which had previously belonged to the Counts of Brittany, and the King

Henry's marriage.

Influence of the
Queen's uncles.

had almost succeeded in securing for him the Bishopric of Winchester when news of his death was brought. He was succeeded by another uncle, Peter of Savoy. Richmond was handed on to him; Pevensey and Hastings were intrusted to him, and the wardship of the Earl of Warrenne, which completed his power in the south-east corner of England. To increase his influence, he brought over numbers of young foreign ladies, and married them to some of the great Earls of England. The death of Edmund Rich, Archbishop of Canterbury, in 1240, allowed the King to secure that See, after an interval of five years, for another of his uncles, Boniface, whose violence and warlike bearing, as well as his youth, made him a strange contrast to his predecessor. Peter de Aigue Blanche, another Savoyard, was made Bishop of Hereford, and afterwards became Henry's disreputable agent in the business of the Sicilian monarchy. This lavish support of foreigners naturally caused great discontent in England, and was repeatedly the subject of complaints in the Great Council. Thus, in 1236 and 1237, there were three stormy councils, nor was the money the King required granted till the sanctions of the Magna Charta were again renewed. The arrival of the Cardinal Otho as Papal Legate did not mend matters; his efforts at reconciliation were useless, and he soon turned his attention to collecting money for the Church. At this time, for a very short period, it seemed as if Richard Earl of Cornwall, the King's brother, might have assumed the post of leader of the English party; but his patriotic efforts were short-lived. A few years after he married the Queen's sister, and threw his influence upon the side of the foreigners.

A far greater man took the post he thus resigned. Simon de Montfort, destined to be the real national leader of England, was rising into importance. The sister and heiress of Count Robert of Leicester had married the Count of Montfort, and died in 1204. In 1215, the whole English property had been given to Ralph Earl of Chester. Simon de Montfort, the Conqueror of the Albigenses, never possessed it, but his eldest son Almaric, after the death of the Earl of Chester, in 1232, demanded the property and honours of Leicester for his younger brother Simon, who was thus acknowledged as the owner of the property. He held the bason of water as High-Steward at the Queen's coronation, shortly after married the King's sister, the widow of William, second Earl of Pembroke, and succeeded in getting that marriage acknowledged by Gregory IX. in 1238. Like all those who had to do with Henry, he was obliged to bear extraordinary changes of fortune from the fickle character of the King. An angry quarrel drove him abroad, and, in 1240, in company with Richard of Cornwall, he set out for the Holy Land.

Formation of a national party under Simon de Montfort.

During their absence the government of England grew continually worse. Men began to weary of the personal

Revival in the

government of the King. For several years the great offices of justiciary and chancellor had been left unfilled, and their duties performed by subordinate officials, upon whom the King lavished his favours. One of the chief of these was Mansell, who is said to have held no less than 700 livings, and to have been in the yearly receipt of 8000 marks. The Church was gradually driven to make common cause with the lay opposition. It was a time of spiritual revival. The great monastic orders had lapsed into the position of wealthy landowners. The work which in the early times they had so well performed, the civilization of the country districts, was over. They had become lazy and luxurious. The prelates had for the most part deserted their spiritual calling and become statesmen. The Church as a whole, as represented by the Pope, had misused its influence. Crusades had become the instruments of temporal aggrandizement, or of revenge upon the personal enemies of the Pope. A spiritual revival had been set on foot almost at the same time by St. Dominic and St. Francis d'Assisi, who had founded the two great orders of Dominicans and Franciscans, the Black and Grey Friars. The vow of poverty, evaded by the older orders, had become a reality. The establishments of the Friars had met with great success; thousands thronged to be enrolled in their orders. They had rapidly spread over Europe, and had lately arrived in England, and there begun their work of regeneration. They had laboured chiefly in the towns and among the most wretched outcasts of society, and had there called into life new religious energy, mingled with hatred towards their wealthy predecessors the old monks, and with a consciousness of personal equality in the sight of God, which tended much to strengthen the democratic feeling which supplied Simon de Montfort with his strongest support. Their teaching had not affected the lower classes alone; numbering among them many learned men, they speedily got possession of the education at Oxford, and found a friend in Grostête, the learned Bishop of Lincoln. The reforms which the Church demanded were carried out by him as far as possible in his diocese; and under his guidance, and that of Edmund Rich, the Church of England was becoming at once spiritual and national. The folly of the King, who filled the high ecclesiastical offices with foreign favourites, the exactions of the Pope, who, acting hand in hand with him, placed hundreds of benefices in the hands of Italian priests, compelled all that was best in the Church to throw itself absolutely on the side of the reformers.

Church.

Grostête.

Ecclesiastical and secular misgovernment went on side by side. Disastrous expeditions to France, and consequent exactions from the people, were intermingled with the visits of Papal emissaries, to wring from the wretched clergy contributions for the Papal war against the Hohenstaufen. In

Affairs of Poitou.

Loss of Poitou. 1243.

1242, the King undertook to regain Poitou. Richard of Cornwall had been nominal Count of that province, when, in 1241, Louis gave his brother Alphonse the same title. The most important nobleman in the country was the Count de la Marche, who had married Henry's mother. He at first did homage to the new Count, but afterwards, urged by his ambitious wife, renounced his fealty, and demanded assistance from Henry. The King therefore landed in the following year in Gascony. De la Marche soon began to repent of what he had done, and Henry, never a very active warrior, was disheartened by his treachery. The armies at length met near Taillebourg, on the Charente. Afraid of being surrounded, Henry employed his brother Richard, who had gained general favour with the French by liberally ransoming prisoners in the Crusade, to secure an armistice. He took the opportunity of falling back to Saintes, where he was almost surprised by the pursuing enemy. After this he was gradually driven backwards to the Garonne, while Marche and his revolted barons again accepted their French lord. The year was wasted in fruitless negotiations with the discontented Count of Toulouse, and in collecting money and troops from England. Henry quarrelled with his own nobles, who gradually left his army; and early in 1243 returned to England, having accepted a peace, which deprived him of the whole of Poitou and of the Isle of Rhé. Gascony was now the only part of France remaining to the English. It was during this campaign that Richard of Cornwall met and married Sancha, the Queen's sister, throwing up from this time all chance of leading the national party, and attaching himself to the foreigners.

Prince Richard joins the foreign party.

Such a war did not tend to the popularity of the King. The exchequer had been empty, money was stringently and often illegally exacted. A new Pope, Innocent IV., was elected, and the exactions from the English clergy resumed more vigorously than ever: for the Pope was carrying on the contest he had inherited against Frederick II., and was now summoning at Lyons the council his predecessor had failed to collect, in hopes of destroying for ever the power of the Hohenstaufen. His agent, Master Martin, travelled through England, pillaging the clergy till the English could bear it no longer, and the barons joined with the Church in demanding his dismissal. The foreign element in the Church too continued its baneful activity. Boniface, the Archbishop, laid waste his rich see, cutting down the timber and sending the profits abroad, while the King attempted, though in vain, to secure the Bishopric of Chichester for Robert de Passelewe. The nation determined to demand its rights at the Council of Lyons. The English ambassadors there took an opportunity of charging the Pope with not being contented with his Peter's Pence and the yearly 1000 marks which John had

Exactions in Church and State. 1244.

Council at Lyons.

Futile attempts to check exactions. 1246.

promised, with sending his messengers to make further exactions, and with filling English benefices against the will of their patrons with Italian priests. 60,000 marks a year thus passed into the hands of foreigners, ignorant of the language, and mostly living abroad. The Pope vouchsafed no answer, but shortly afterwards issued a Bull forbidding pluralities, and promising to respect the rights of patrons. The Bull remained a dead letter; and the very next year 6000 marks were exacted, and foreign priests were as plentiful as ever, admitted to their benefices under what was spoken of as “non obstante” clauses, which set aside all previous Bulls. The feeling in England against the Pope, who exacted, and the King, who allowed the exactions, grew more and more determined.

In 1247 matters grew still worse. A fresh swarm of foreigners arrived in England; De la Marche was dead, and the King’s half-brothers came over and were at once received with favour and honoured with profuse gifts. Chief among them was William of Valence, and his brother Aymer, who, in the year 1250, was made Bishop of Winchester, though he was never consecrated. The foreign policy of England was by these men managed for their own interests. Thus on the death of Raymond Berenger, Provence was allowed to pass into the hands of Charles of Anjou, who had married the Queen’s youngest sister; and thus Henry made use of a crusade, on which he said that he was going, to demand large sums of money from the people. In 1248 the crisis seemed approaching. At a meeting of Parliament many charges were raised against the favourites; and the feeling against the King’s personal government, which had long been growing, found vent. In blind security, Henry continued his course. The King’s revenue, squandered in empty magnificence or lavish grants to his foreign friends, became more and more dilapidated. Money had to be borrowed. All men with an income of £20 were compelled to take up their knighthood; and afraid to have recourse to illegal aids from the nobility, the King turned upon the cities, more especially London, and demanded and obtained great tallages from them. The crusade constantly supplied him with an excuse for these exactions; yet even when the King of France was taken prisoner in Egypt, Henry and his crusaders made no movement. He contented himself with appointing a day for his expedition; the expedition itself did not take place. Innocent indeed had other ends in view; he was bent far more on the destruction of the Hohenstaufen than on the recovery of the Holy Sepulchre. Frederick II. had died in December 1250, and the Pope’s energies were now directed to driving those who remained of this family from their kingdom of the two Sicilies.

Inroad of Poitevin
favourites. 1247.

Discontent of Barons.

Continued
misgovernment.

Tallages on the cities.

Diversion of the
crusade. 1250.

Far indeed from assisting Louis, Henry had regarded his absence as an opportunity for regaining his power in the south of France. Gascony was in a state of complete confusion, chiefly through the insurrections of Gaston of Bearn and assaults from the King of Navarre. To bring it into order, Henry had, in 1248, appointed Simon de Montfort his governor there. His government had been completely successful, and at length, in 1250, Gaston was sent a prisoner to England. In his foolish soft-heartedness, Henry at once pardoned and released him. But the vigorous government of Simon had excited the displeasure both of the nobles and of the towns. They sent an embassy under the Archbishop of Bordeaux to lay charges against him before Henry. The King, fickle and jealous, listened to them; and Leicester was summoned home. He had almost ruined himself in his efforts to carry on his government well, and an angry scene of personal recrimination occurred, the King charging him with treason, while Simon demanded repayment for the money he had expended. It shows the state of personal contempt into which the King had fallen, that Leicester could venture to give him the lie direct. But the King could not do without him; by the influence of the Earl of Cornwall the quarrel was adjusted, and De Montfort returned as he believed to his government. His back was scarcely turned when the King appointed in his place his young son Edward, and ordered the Gascons not to obey De Montfort. Feeling himself thus freed from his charge, De Montfort went to Paris. The opinion of his abilities was so high, that he was offered the regency of France; but slighted though he had been at home, he was still true to his adopted country, and declined the flattering offer.

Montfort's
government of
Gascony.

His quarrel with the
King.

Left to himself, Henry found the Gascons more than he could manage. He collected indeed much money for the expedition; the Charter being renewed as usual as the price of a grant. The Jews had to advance money, the towns were tallaged. But, after all, things would have gone badly had not Leicester again patriotically offered his services, and taken command of the disturbed province. With his assistance, and with money obtained from England, by dint of lying letters, narrating the extreme danger of the King from the approach of a vast army of Christians and Saracens under the King of Castile, peace was made with Alphonso X., at that time the King of Castile, and a marriage arranged between Edward and his daughter the Princess Eleanor. This expedition therefore had on the whole been successful; but it plunged the King still deeper into money difficulties, while his constant demands for money, and the dishonest means he had taken to secure it, had lowered him still further in the

By Leicester's aid
Gascony is saved.

Henry's money
difficulties.

eyes of the people. His foolish ambition and his adherence to the Papal See completed what his long reign of misgovernment had begun.

It has been said that the Pope's chief object was to remove the Hohenstaufen from their Italian dominions. As early as 1252, seeking some prince whom he might set in their place, and being assured of the fidelity of the English King, he offered the throne of Sicily to Richard of Cornwall. That Prince, remembering that Henry, Frederick's son, was his own nephew, and too prudent to trust himself blindly to the Pope, declined the offer. But when young Henry died in 1253, and Sicily fell into the hands of Conrad and of his half brother Manfred, the Pope repeated his offer to King Henry's son Edmund. By him it was foolishly accepted; Conrad also died, and a great opportunity was opened for the Pope's intrigues. There were three parties in Sicily: the German party, who upheld a son of Conrad, the Italian Gibellines, who obeyed Manfred, and the Sicilians, who followed Peter Rufus, the Emperor's lieutenant. The Pope succeeded in bribing the leader of the German party, and his views seemed on the point of realization, when he died. He was succeeded by Alexander IV., who was reputed a moderate man, but who accepted all the arrangements of his predecessor. Henry had returned from Gascony, after a costly visit to Paris, deeply in debt. The Charter of London was again set aside, and a heavy tallage inflicted; the Jews were again compelled to pay large sums of money; and the Barons in Parliament were loudly complaining of grievances, and demanding the appointment of a Parliamentary Justiciary and Chancellor. In the midst of all these difficulties, the King was foolish enough to accept the Sicilies on ruinous terms. Two hundred ounces of gold yearly, and the support of 300 knights, were to be promised, the expenses of the war to be paid, and an army at once sent to claim the kingdom. The Pope kept the management of this war in his own hands, but the Bishop of Hereford, Henry's envoy, was allowed to make the King responsible for the outlay. The Pope began immediately to send his creditors direct to Henry, and twice before the end of the year 1256, a Papal Legate of the name of Rustand had appeared in England, raised money of unknown value from the English Church, and freed the King from his Crusader's oath, that he might employ his forces against Sicily.

The Pope offers Edmund the kingdom of Sicily. 1254.

Henry accepts Sicily on ruinous terms.

The English Church was indeed at his mercy. Boniface of Canterbury lived abroad, and was completely in the Papal interest, the Archbishopric of York was vacant, the Bishops of Winchester and Hereford were creatures of the King. Henry himself was acting in complete harmony with the Pope, who had several times granted him a tenth from the clergy, and

Consequent exactions.

Terrible famine. 1257.

had given him the incomes of all vacant benefices, and of intestates. The Church was driven into close union with the rapidly rising baronial opposition, and was obliged to regard its temporalities as ordinary baronies. Scotland and Wales were again becoming troublesome, and the lukewarmness of the English Barons prevented successful resistance to their inroads. To add to the difficulties of England, 1257 was a year of fearful want. The weather was so bad that the harvest stood rotting in the fields even in November. Wheat rose from two shillings to fifteen or twenty the quarter. The harvest of 1258 promised to be as bad. Thousands were dying of hunger.^[36] And when, in the midst of this misery, the Pope's Legate (who in 1257 had stated the amount of debt to the Pope to be 136,000 marks, and had succeeded in wringing 52,000 marks from the clergy) repeated his demand the following year, and threatened an interdict unless the debt was at once paid, Englishmen of all classes felt that the time for action had arrived, and, taking advantage of the absence of the Earl of Cornwall, who was abroad attempting to make good his election to the German Empire, the Barons assembled at a Parliament held at Westminster determined upon reform.

Parliament at length
roused to resistance.

It was a stormy scene. William de Valence and Simon de Montfort almost came to blows. William spoke of Montfort as "an old traitor, and the son of a traitor." "No, no," said Simon, "I am no traitor, nor traitor's son; my father was very different from yours," referring to the constant treasons of the old Count de la Marche. He then poured out his grievances, the squandering of the royal property on favourites, the folly, in the face of such financial difficulties, of accepting the Sicilian throne, and the admission of Papal legates to rob the clergy. At length a sort of compromise was arrived at, and aid was promised if the Pope would lower his demands, and the King on his side promised reform, a promise to which several of his chief favourites had to put their signatures. The King also pledged himself to give full consideration to the Barons' demands at a Parliament to be assembled at Oxford at Whitsuntide, and to leave the question at issue to be decided by a commission of twelve from either side, whose verdict should be final.

Parliament at
Westminster.

On June 11th, this Parliament met. It is known by the name of "The Mad Parliament." The Barons, of whom there were about a hundred,^[37] appeared in arms, under the pretext of the war with Wales, in reality to overawe the King's violent step-brothers. At that Parliament the promised commission of twenty-four was chosen. The King's Commissioners, with the single exception of John of Plesseys, Earl of Warwick, were men pledged to the old evil courses, either by their relationship with the King or by the favours they had obtained from

Mad Parliament.
1258.

Provisions of Oxford.

him. At the head of the Barons appeared Richard de Clare, Earl of Gloucester, the natural head of the English party, and De Montfort, himself indeed a foreigner, but of such high ability and character that he was indispensable to his party. To these twenty-four was intrusted the duty of securing reform. They were not like the twenty-five guardians of the Charter, pledges for the carrying out of the treaty, but a committee representing for the time the executive authority of the Crown. These Barons chose a council of four, John Mansell, the King's secretary, the Earl of Warwick, and two Bigods (the Earl of Norfolk and his brother). These in their turn were to nominate a council of state or executive ministry of fifteen. The predominance of the baronial party is shown by the fact that of those fifteen two-thirds were on the Barons' side.^[38] This Council of fifteen produced the Provisions of Oxford, and appointed new officers. Hugh Bigod was chief justice, John of Peterborough, treasurer, Nicholas of Ely, chancellor. The royal castles were ordered to be placed in the hands of Englishmen; and three times a year a Parliament was to be held, consisting of the fifteen, and twelve members of the old twenty-four representative Barons. These are said to be representatives of the commonalty of England, but it does not as yet appear that the commonalty meant anything but the baronage. These Provisions were accepted and sworn to by the King, Prince Edward, and the Barons, and subsequently, on his return to England, by Richard, King of the Romans.

The article which demanded the surrender of castles by foreigners met with much opposition.^[39] The King's step-brothers refused to surrender theirs. Simon de Montfort, as a foreigner, on the other hand, showed a good example by surrendering two of those he had in charge.^[40] When William de Valence refused this order, "I will have the castles," said De Montfort, "or your head." The threat was too serious to be disregarded; the foreigners crept off in the night, and went to Winchester, where they hoped that Aymer de Valence would afford them protection. The Barons at once pursued them. They were obliged to yield, and were exiled. The Barons then proceeded to check the bad government of the sheriffs. Four knights from each shire (a step towards the coming admission of the lower gentry to Parliament) were appointed to inquire into the question; and it was arranged that the sheriffs should be elected yearly. The Londoners readily accepted the new order of things; and finally, in October, the Provisions were solemnly proclaimed, together with the Magna Charta, in Latin, French and English. In this the King declared his full adhesion to the Oxford Ordinances. It was countersigned by thirteen of the fifteen counsellors. This is the first public document issued in the English language, and may be regarded as a sign of the

Opposition to the
surrender of castles.

Exile of aliens.

Proclamation of the
Provisions.

real question at issue during the reign: Was England to be, in fact, England, and the English to be a nation?

The fifteen counsellors were intrusted with the duty of producing other reforms before the following Christmas. This they neglected to do, and it was only in October 1259 that they produced another series of Provisions. These by no means answered the expectations of the Barons, and were so moderate that, after the cessation of the war, they were incorporated in the Statute of Marlborough, 1267. They were chiefly directed to prevent encroachments on feudal rights. Prince Edward had earnestly pressed for the production of these Provisions. He was at this time a strong reformer, and it was perhaps on account of the inefficient character of the reforms now produced, that a quarrel arose between Leicester and Gloucester, in which, we are told, that Leicester was supported by Edward, Gloucester by the King. The government was meanwhile practically in the hands of the fifteen. They felt that their chief work was in England, and therefore freed themselves as much as possible from foreign complications. They made peace with Wales, entirely renounced all claims upon Sicily, and made a definitive treaty with France. By this treaty Bordeaux, Bayonne and Gascony, with the addition of the Bishoprics of Limoges, Cahors and Périgord, which the honesty of the French King restored, were to be held by England as fiefs of France; all claim on Normandy, Anjou, Touraine and Poitou was to be given up; and the King of France promised to give a sum of money for the maintenance of five hundred knights for two years, to be used only for the good of England or the Church. This last article proved afterwards a source of danger to the baronial cause.

Government of the Barons.

Final treaty with France. 1259.

Their whole government seems to have given satisfaction; but it was not likely that Henry should calmly submit to their domination. With the peculiar faculty of making his religion compatible with bad government and dishonesty, which was the characteristic of this King, he applied, almost immediately after the Parliament of Oxford, to the Pope for an absolution from his promises. A visit twice repeated to the King of France gave rise to the suspicion that he was concerting measures with that monarch; and, in 1261, he was certainly fortifying the Tower. In April of that year an answer of Alexander IV., entirely absolving him from his vows, reached him. He ordered it to be publicly read, proceeded to give some castles into the hands of foreigners, and proclaimed that he would no longer consent to the restraint imposed upon him. The Barons met at Kingston; and, unwilling to

Henry thinks of breaking the Provisions.

Pope's absolution arrives.

Quarrel between De Clare and De Montfort.

proceed to extremities, agreed to refer their differences to the King of France, whose character for honour stood high, though in this instance rumours were afloat that he was already pledged to the King's interest.^[41] The King would probably not have ventured on this course had not a quarrel arisen in the baronial party, which deprived them of their ablest leader. It is not certain what the cause of quarrel was, but as early as 1259, De Clare and Montfort had exchanged hot words, and from that time De Montfort had been very much abroad, and the leadership of the baronial party entirely in the hands of De Clare. In 1262, a second absolution reached the King, and was by his orders publicly promulgated by Mansell, by the Archbishop of Canterbury, and by the Bishop of Norwich.

But meanwhile a stronger leader than Richard Earl of Gloucester had appeared in England, and the King's attempts at recovering his authority were peremptorily checked. The Earl of Leicester, hearing of the death of Gloucester, had returned from abroad, and found himself the unquestioned chief of the party. With himself he associated the late Earl's son, young Gilbert de Clare, and matters soon seemed to be coming to extremities. Llewellyn of Wales, apparently in the baronial interest, attacked the lands of Roger de Mortimer and of that foreign Bishop of Hereford who had been the King's agent at Rome. A general persecution of all those who could not speak English followed in the border counties. The Bishop of Hereford's treasures were seized, and he himself had to fly abroad. At the same time the Bishop of Norwich, who was disliked for having published the absolution, was attacked. John Mansell was driven into France; while, on the other hand, Prince Edward, who had hitherto remained true to the Statutes of Oxford, was reconciled to his father, and appeared in arms against the barons. The people of London joined in the general disturbance. The Queen had to leave London and retire to Windsor. On her way thither, as she was passing up the river, she was assaulted and maltreated by the Londoners, an event which Prince Edward is said not to have forgotten.

Return of De Montfort.

Outbreak of hostilities.

While the parties were thus already beginning to appeal to arms, in January 1264, the King of France published his verdict at Amiens. It was entirely in favour of the Crown, and annulled the Provisions of Oxford, especially declaring that the King had right to employ aliens as the governors of his castles. The verdict was clear enough, and Henry believed that it put him entirely in the right. On the other hand a clause was added of which the Barons took hold to support their cause. By this it was asserted that the verdict was not intended to derogate in anything from the royal privileges, charters, liberties and laudable customs of the kingdom. With this loophole for variety of

Award of Amiens. 1264.

It fails.

opinion, the award left the main question unsettled, although it enabled a certain number of those who were pledged to the Provisions, but disliked the Barons' rule, to join the King. Among others, his brother Richard, the King of the Romans, took advantage of this opportunity. Still unwilling to press their claims to the uttermost, the Barons offered to accept the award, excepting only the one clause, which was in fact the point for which they were fighting, that, namely, which permitted the employment of aliens. The Londoners would not even go so far as this.

The King refused their offer, and war became inevitable. It began by the capture of Northampton by Prince Edward, and gradually drifted southward, till the two armies met at Lewes. The King occupied the town, with the castle and priory; the Barons, the down to the west. The battle ended in a decisive victory for the Barons. Prince Edward, carried away by his anger against the Londoners, whom he despised and hated, was induced to pursue an advantage he had won over them too far. Richard, the King of the Romans, was misled into an attack upon a cage-shaped litter, which he believed to contain De Montfort, who had been wounded by a fall from his horse. De Montfort had purposely left it in his rear, together with his standards and baggage; it really contained only four refractory Londoners of the King's party. These two errors on the part of the enemy secured the victory to De Montfort; and when Prince Edward returned from his pursuit, he found the battle lost, and the struggle only prolonged by the fighting round the castle at Lewes. De Montfort, evidently the victor, offered to put an end to the bloodshed by an immediate truce; and an agreement known as the Mise of Lewes was made, by which the questions at issue were to be settled by a court of arbitration consisting of two Frenchmen and one Englishman. The two Princes, Edward and Henry d'Almeine, were to remain in captivity meanwhile, in exchange for their fathers, the King and his brother Richard, who had been taken prisoners; and the prisoners on both sides were to be released.

War, and battle of
Lewes. May 14.

The Mise of Lewes.

De Montfort was for the time completely master of the country. He at once proceeded to act with vigour to bring the country into order. The King's peace was proclaimed everywhere. The prisoners were exchanged, and till the open question with regard to the election of sheriffs should be settled, guardians of the peace were appointed for each county. In the offices thus created, as well as in those of the King's Council, the friends and followers of Simon were put. A Parliament was then called, which assembled in June, at which it is probable that knights of the shire were present. At this Parliament a committee of three was

Appointment of
revolutionary
government.

appointed, who nominated nine others, in whose hands the government was to be placed. If the nine could not come to agreement, the final decision remained with the three, who were the Bishop of Chichester, Simon de Montfort, and Gilbert de Clare. At the same time the affairs of the Church were put in order, its grievances being left to the settlement of three bishops appointed by statute.

De Montfort thus seemed in a fair way to make his position durable; but unfortunately three important men had made their escape from Lewes:—these were the Earl of Warrenne, Hugh Bigod and William de Valence. These three fugitives betook themselves to Damme, in Flanders, where the Queen, in company with the exiled foreigners,

Exiles assemble at Damme.

Archbishop Boniface, Bishop of Hereford, Peter of Savoy, and John Mansell, had assembled an army of hired troops. Great preparations were made to meet the expected invasion, but the winds were so contrary that the ill-provided army, weary of waiting, separated. The closeness of the danger, however, induced Simon to send ambassadors to France, to urge on the completion of the settlement according to the Mise of Lewes. The embassy was at the same time to try and make terms with the Papal Legate, who had been quickly despatched to uphold the cause of so good a vassal of Rome as Henry. They were unsuccessful in both their objects. The Queen had been beforehand with Louis, and the Legate, who shortly afterwards ascended the Papal throne as Clement IV., replied only by excommunication. The Bull, however, was taken by the mariners of the Cinque Ports before reaching England, and thrown into the sea; and the excommunication did not take effect.

Montfort desires final settlement.

Meanwhile, the royalist barons on the Marches of Wales, especially Mortimer, Clifford and Leybourne, began to bestir themselves. Some of them even pushed as far as Wallingford, where Prince Edward was a prisoner, and attempted, though

Royalist movements on the Welsh Marches.

in vain, to liberate him. The liberation of this Prince was now the chief object of the royalists, and the pressure put upon Leicester was so great, that he had, though unwillingly, to consent to measures which should bring it about. There was indeed every reason to desire that he should be freed. The part he had played in the late disputes had been highly honourable; he had remained true to the Provisions of Oxford, till the breaking out of the war seemed to render it his imperative duty to assist his father; and from his subsequent conduct it is plain that, although he must have disliked the present restrictions upon the royal power, there was much in the national policy of the Barons with which he sympathized. All those who resented the assumption of power by Montfort, while desiring a reform in government, would have found in him a welcome leader.

It was principally for this object that the famous Parliament of 1265 was called. To it were summoned only twenty-three peers, friends of De Montfort, though the great Northern and Scotch barons, who had strongly supported the King at Lewes, also received safe conducts. Of the higher clergy there were no less than one hundred and eighteen, a number by no means unprecedented, but which seems to show how completely the Church sympathized with the Barons. There were also knights of the shires—two from each county. Even from the time of the commission for forming the Domesday Book, elected knights had been occasionally consulted upon the affairs of their county; since Henry II.'s reign, although they had never been properly summoned to Parliament, this practice had been more frequent. But the addition of two burghers from the chief cities was wholly new, and although the practice was not continued without a break, this, says Hallam, is the epoch at which the representation of the Commons becomes distinctly manifest. To De Montfort it was of the greatest importance that the general acquiescence of all important classes of the country in his government should be shown.

Parliament of 1265.

The assembly thus formed had first of all to consider what was to be done with the present insurgents and with the exiles, and, secondly, on what conditions Prince Edward might be with safety liberated. On the first point it was decreed that the barons of the Welsh Marches should be exiled to Ireland for three years, and the fugitives from Lewes were summoned to stand their trial before their peers, a summons to which, of course, they paid no attention. The other question was more important, but the conditions were finally arrived at on which the Prince might be set at liberty. There was to be complete amnesty for all that was past; the King and Prince were never to receive their former favourites; the royal castles were to be placed in trustworthy hands; the great charters of liberty were to be again established; the Prince was not to leave the country for three years, and must choose his council by the advice of government; and the county of Chester, with its castle, together with the castles of the Peak and Newcastle, were to be given up to De Montfort. For this, however, an equivalent was to be given from De Montfort's county of Leicester. All these arrangements were made under the most solemn sanctions. On the last article much of the abuse of Leicester for avarice and self-seeking has been rested. But, in fact, the position of the lands commanding the Scotch and Welsh borders afforded a sufficient political reason for requiring their cession. A copy of this arrangement was sent to each sheriff, and the great charters of liberty publicly read, with a solemn threat of excommunication against all who should break them.

Conditions of the
Prince's liberation.

These arrangements tended to the establishment of a peaceful government and to the healing of faction; but unfortunately there was constant jealousy of De Montfort among his colleagues, arising probably in part from his foreign birth and royal connections, in part from the truly popular nature of his views, with which the Barons had but little sympathy. Again, as on a previous occasion, De Clare, the leader of the English Barons, deserted him, and began to intrigue with his enemies. At the same time, William de Valence landed in his lordship of Pembroke. By the instrumentality of Mortimer, Edward made his escape from Ludlow Castle; and the invaders, the Prince, the Lord Marchers, and Gloucester opened communications one with the other. The trick by which Edward effected his escape is well known. On pretence of racing, he wearied the horses of his guardians, and then galloped from them on a particularly swift horse that had just been sent him, which he had kept fresh. The danger had become so pressing that Leicester advanced against the invaders in the South of Wales: but while in that distant corner of the country, the Prince, with the men of Chester, who willingly joined their old governor, marched down the Severn and took Gloucester, thus cutting Leicester off from the rest of his supporters.

Defection of De Clare. He joins the Marchers.

Escape of Edward.

De Montfort at once recognized that Edward was his chief enemy, and turned back to meet him, at the same time summoning to his aid his son the younger Simon, who was with an army at Dover. Had he executed this duty intrusted to him satisfactorily, Edward would either have been enclosed between the two armies, or De Montfort largely reinforced.

Leicester opposes Edward in Wales.

Defeat at Kenilworth.

As it was, he wasted some time at Kenilworth, his father's chief stronghold, and foolishly suffered his troops to encamp outside the walls of the castle. A female spy brought Edward news of his enemy's mistake, and a sudden onslaught scattered De Montfort's reinforcement in disgraceful flight. Edward tried to check De Montfort's return by breaking down all the bridges over the Severn, but a way was at length found to cross the river about four miles below Worcester, and the baronial army reached Evesham in the full expectation of speedily meeting their friends.

As they marched out in the early morning on the 4th of August, they saw a well-ordered army approaching, and Leicester's barber, who happened to be the longest-sighted man amongst them, at first recognized all the standards as belonging to young De Montfort; only after he had ascended a church-tower did he perceive the emblems of De Clare and Edward mingled with them. De Montfort was thus greatly

Battle of Evesham.
Aug. 4.

outnumbered and surprised. As the enemy approached in three well-arrayed divisions, “Ah,” said he, “that arrangement is not your own, I have taught you how to fight.” Then, as it became evident that he had neither time nor men to secure the victory, he added, “God have mercy on our souls, for our bodies are the Prince’s.” The stories of the fidelity of his party are touching. He begged his partisans to fly while there was time. They refused to leave him, while his son Henry begged him to make good his retreat, and leave him alone to fight the battle. He was not a man to listen to such advice. At length the assault came. He saw the best of his followers and his son killed or disabled around him. But still, though his horse was killed under him, “like a giant,” says one, “like an impregnable tower for the liberties of England,” says another of the Chroniclers, he fought on, wielding his sword with both hands, till he fell overpowered by the assault of numbers. Three hours completed the battle, which was little else than a massacre. “Thus lamentably fell the flower of all knighthood, leaving an example of steadfastness to others. But since there is no curse more baleful than a domestic enemy, who can wonder at his fall? those who had eaten his bread lifted their heels against him, they who loved him by word of mouth lied in their throat.”^[42]

The victory produced a complete reaction in England. Castle after castle opened its gates to the royalists. At Kenilworth alone, which Simon had defended with extraordinary machines which his skill as an engineer had invented, and in the inaccessible marshes in the East of England, the baronial party still held out. The conqueror proceeded at once to act with reckless severity. The whole of Leicester’s property was confiscated and given to Prince Edward, all his followers were deprived of civil rights and property, and all acts of the government since the battle of Lewes were declared null. This was the work of a Parliament summoned at Winchester, where of course there is no sign either of county or of borough representation. After London, which made some opposition, was conquered, and for the time disfranchised, all efforts were directed against Kenilworth. This stronghold had become a centre from which, as from the Eastern Fens, disorderly bodies pushed out to wreak their vengeance on the King’s followers. The defence was heroic. It seemed plain that the reaction had been carried much too far. One party at all events of the royalists, with Prince Henry d’Almeine and perhaps Prince Edward at its head, desired a more conciliatory policy, and at length, at the end of the year, a Commission of twelve was established to attempt to produce peace. Under their management, a Parliament and Convocation was held, the Magna Charta again acknowledged, even by the Papal Legate, and those who had been disinherited were allowed to regain their lands by paying a certain number of years’ income to

Kenilworth and the
Fens hold out. 1266.

Dictum of
Kenilworth.

the new possessors. The sons of Lord Derby and Leicester were alone excepted. In accordance with this arrangement, called the Dictum of Kenilworth, the castle was surrendered.

The insurgents in the Fens afterwards submitted on the same terms, but not before Gilbert de Clare had again changed sides, making it plain to the government that however much jealousy of De Montfort might have broken the baronial moderate party, the feelings which had dictated the Provisions of Oxford were still unconquered. Under these circumstances it was found necessary to take further measures to insure moderation of government. In May 1267, Magna Charta was again enacted, and from this time forward kept. The offices were given into the hands of Englishmen, and Englishmen only. The Sicilian project had become impossible, indeed the crown had been given to Charles of Anjou; and, finally, Prince Edward, whose influence might have been dangerous, had withdrawn from England on a crusade, and taken many English nobles with him. The Barons' war had thus, although in its outward form a failure, secured its main object—tolerable constitutional government, and the establishment of a national rule. In 1272 the King died.

De Clare compels more moderate government.

Constitutional end of the reign.

It is always difficult to know how far the popular feeling is engaged in political revolutions. The great bulk of the nation is never the originator of such changes. The fate of a country is settled by the conduct and thought of its educated men, though the mass of the people plays a very prominent part as an instrument in the hands of its leaders. There is much to make us believe, however, that the movement of the Barons was in reality a national one. More particularly is this true in the case of Simon de Montfort. He is constantly spoken of by contemporary writers with admiration. "Il aime dreit, et att le tort," (He loves right and hates the wrong), says one poet. "It should, however, be declared," says the Chronicler of Melrose, "that no one in his senses would call Simon a traitor, for he was no traitor, but the most devout and faithful worshipper of the Church in England, the shield and defender of the kingdom, the enemy and expeller of aliens, although by birth he was one of them." The Londoners were his devoted adherents, while the character of the Parliament which he summoned after the battle of Lewes was certainly popular. It seems fair to believe that he was the unselfish supporter of the national policy.

Views of the people on the revolution.

Again, all the writers of the time, with very few exceptions,^[43] whether chroniclers or poets, were in favour of the baronial party. When some of the leaders seem flagging in their energy, they were cheered by such words as these,

—

“O Comes Gloverniæ, comple quod cæpisti,
Nisi claudas congruè, multos decepisti.”

“O tu Comes le Bygot, pactum serva sanum
Cum sis miles strenuus, nunc exerce manum.
O vos magni proceres, qui vos obligatis,
Observate firmiter illud quod juratis.”

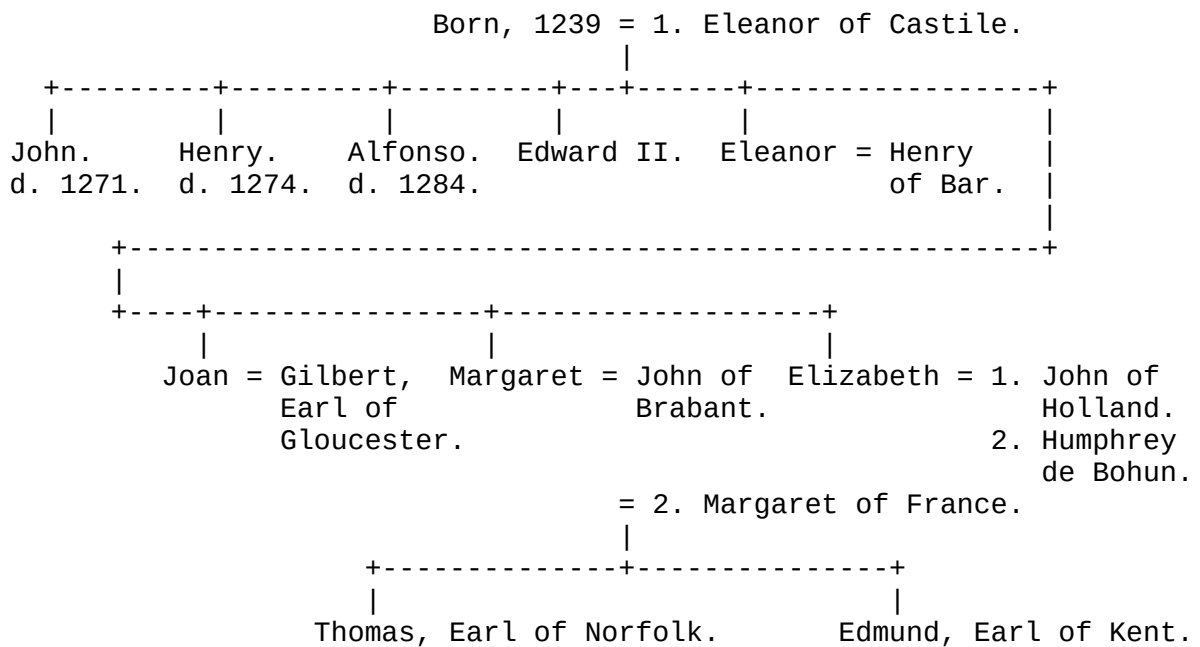
Again, in one political poem of the day we have the question at issue argued out in a manner which shows the advance of political knowledge, and in a constitutional tone which would become a modern Whig. “All restraint does not deprive of liberty. He who is kept from falling so that he lives free from danger, reaps advantage from such keeping, nor is such a support slavery, but the safeguard of virtue. Therefore that it is permitted to a king all that is good, but that he dare not do evil—this is God’s gift.... If a prince love his subjects, he will be repaid with love; if he reign justly, he will be honoured; if he err, he ought to be recalled by them whom his unjust denial may have grieved, unless he be willing to be corrected; if he is willing to make amends, he ought to be raised up and aided by those same persons.... If a king be less wise than he ought to be, what advantage will the kingdom gain by his reign? Is he to seek by his own opinion on whom he should depend to have his failing supplied? If he alone choose, he will be easily deceived. Therefore let the community of the kingdom advise, and let it be known what the generality thinks, to whom their own laws are best known. Since it is their own affairs that are at stake, they will take more care and will act with an eye to their own peace.... We give the first place to the community; we say also that the law rules over the king’s dignity, for the law is the light without which he who rules will wander from the right path.”

That proclamations should be published in English is also a significant fact, and it may on the whole be considered that this war was practically the conclusion of foreign domination in England. It is the great honour of Edward I. to have perceived this so clearly, that he willingly accepted the new national line of policy which the Barons had marked out, and he may be regarded as our first purely national monarch.

EDWARD I.

1272–1307.

[click here to see the image](#)



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Alexander III., 1249.	Philip III., 1270.	Rodolph, 1272.	Alphonso X., 1252.
Margaret, 1286.	Philip IV., 1285.	Adolphus, 1291.	Sancho IV., 1284.
Interregnum, 1290.		Albert, 1298.	Ferdinand IV., 1295.
Baliol, 1292.			
Interregnum, 1296.			
Robert I., 1306.			

POPES.--Gregory X., 1271. Innocent V., 1276. Adrian V., 1276. John XX., 1276. Nicholas III., 1277. Martin IV., 1281. Honorius IV., 1285. Nicholas IV., 1288. Vacancy, two years. Celestine V., 1292. Boniface VIII., 1294. Benedict X., 1303. Vacancy, one year.

Clement V., 1305.

Archbishops.	_Chancellors._	_Chief-justices._
Robert Kilwardby, 1273-1278.	Walter de Merton, 1272. Robert Burnell, 1273-1292.	Ralph de Hengham, 1273-1289.
John Peckham, 1279-1292.	John Langton, 1292. William Greenfield, 1302.	Gilbert de Thornton, 1289-1295.
Robert Winchelsey, 1294-1313.	William de Hamilton, 1304. Ralph de Baldock, 1307.	Roger Brabazon, 1295.

Edward was still abroad when the news of his father's death was brought to him. His accession had been so long looked forward to as a happy termination to the difficulties of the last reign, that what might have been a dangerous crisis passed over peacefully. An assembly was summoned at Westminster, not only of the nobles, but also of the representatives of the lower estates, and there an oath of fidelity was taken to the absent King. Three prominent nobles seem to have assumed the position of governors; the Archbishop of York, as head of the clergy, Edmund of Cornwall, the King's brother, as representative of the royalty, and Gilbert of Gloucester, as chief of the baronage. Under them the government pursued its old course. Hearing that things were going well in England, Edward did not hurry home. He returned by Sicily and Rome, where he induced the Pope to visit upon the young De Montforts the murder of Henry D'Almeine, whom they had killed at Viterbo. Thence he passed into France, joined in a great tournament at Châlons, where jest was changed to earnest, and a rough skirmish ensued, known as the little battle of Châlons. True to his legal obligations, he did homage at Paris for his French dominions, demanding what as yet had not been fulfilled, the completion of the late definitive treaty in France: and after settling, not without application to the French King as feudal superior, his quarrels with Gaston de Bearn in Gascony, and establishing friendly relations with Flanders, he returned in 1274 to England, and there, on the 18th of August, was crowned and received the homage of his Barons, and that, among others, of Alexander III. of Scotland. Shortly after, he appointed as his chancellor Robert Burnell, who served him throughout his life as chief minister, while Anthony Beck, Bishop of Durham, was his chief agent in all diplomatic matters.

Edward's peaceful accession. 1272.

His journey home, 1274.

From the reign of Edward began what may be properly spoken of as the *English* monarchy. The last reign had brought prominently forward the two great points which constituted the nationality of the country. Primarily the object of the baronial party had been to separate England from the overwhelming importance of its

The importance of the reign.

foreign connections, and to prevent it from becoming a mere source of wealth to foreign adventurers. In this the baronial party had succeeded. While declaring themselves national, they had been obliged to have recourse for support to other elements of the nation than those from which the ruling class had hitherto been formed. The advance of these new classes had, as has been seen, been gradual. Already, in earlier reigns, the principle both of election and representation had been, on more than one occasion, accepted. But it was the formal admission both of knights of the shire and of burghers to parliamentary privileges, even though the practice had not been continued, which rendered it impossible long to ignore the growing feeling that all classes should in some way be consulted about what interested all.

Edward was well fitted, both by position and character, to play the part of the first English king. He had given distinct proofs in the earlier part of the late baronial quarrels that a good and national government was what he desired. But it would be wrong to suppose that he was at all inclined to what we should now call liberal policy. In the latter part of his father's reign he had made it clear that to his mind a strong monarchy was a necessary condition of good government. It was only gradually, and in accordance with a love of symmetrical government which strongly characterized him, that he recognized the advantage of the complete admission of the hitherto unprivileged classes to the rights of representation. He set before him as his object the establishment of a good and orderly government in the national interests, but carried out by a strong, nay despotic monarch, subjected only to the restrictions of the law. This is indeed another prominent characteristic of the King, in which he went along with the tendencies of the age. His mind was essentially legal, and just at this time the Roman and civil law were forcing their way into prominence throughout Europe. In Edward and his great rival Philip IV. of France, we have, allowing for their differences in personal character, instances of the same course of action. They both intended to make use of feudal law, interpreted more or less by the Roman law, and pressed to its legal and logical conclusions, to strengthen the monarchy. It is thus that we find Edward constantly enacting statutes and constitutions, making use of feudal claims to compel the submission of his neighbours, and exerting to the full, sometimes even beyond the limits of honesty, the rights the constitution gave him, but never wilfully transgressing what he regarded as the law. He was successful in carrying out the two first branches of his threefold policy; in the third he failed. Good government he

Edward the first
English king.

His political views.

His legal mind.

His success.

His enforced
concessions.

established by a series of admirable administrative enactments, and by that power of definition which a living historian^[44] has attributed to him, in spite of the difficulties presented by the independent position of the Church, and by the disorders still remaining from the late troubled times. Nationality he was able to foster both by foreign wars and by his great plan of connecting all the kingdoms of Great Britain. But in his efforts to establish an absolute monarchy, he was met by the financial difficulties into which the late reign had plunged the Crown, and by that entanglement in foreign politics which the English possessions in France, of which he was not yet quite free, continually caused. Urged by his wide schemes to have recourse to arbitrary means for replenishing his treasury, he excited again an opposition similar to that of his father's reign, and found himself obliged to make concessions which effectually prevented any of his successors from attempting to render the Crown independent.

The first years of the King's reign were employed in restoring order to the government and the finances. His first Parliament met at Westminster in 1275, where was passed a great restorative measure known by the name of the First Statute of Westminster. It was so wide and far-reaching that it might be called a code rather than an Act. Its object is said by a contemporary writer to have been to "awake those languid laws which had long been lulled asleep" by the abuses of the time. It secured the rights of the Church, improved the tardy processes of law, and re-established the charters, further limiting the sums which could be demanded for the three legal aids. At the same Parliament, an export duty on wool and leather, the origin of the customs, was granted to the King, the more readily, perhaps, as his firmness had lately re-established the wool-trade with Flanders. During the next three or four years other less popular measures were taken with a view to replenish the King's treasury. Commissions were issued to inquire into the exact limits of the grants of the late King to the clergy, and to inquire into the tenure of property throughout England, with the twofold view of establishing the rights of property disturbed by the late war, and of clearly defining the revenue due to the Crown.

It was not till the year 1278 that the effect of this commission was seen. Orders were then issued to the itinerant justices to make use of the evidence which had been obtained, and to issue writs of "quo warranto," to oblige owners to make good their titles. This was the occasion of the well-known answer of Warrenne, Earl of Surrey, who presented his sword to the judge, saying, "This is my title-deed,

First Parliament.
Statute of
Westminster. 1275.

Establishment of
customs.

His restorative
measures. 1278.

New coinage.

Statute of Mortmain.
1279.

with this my ancestors won my land, with this will I keep it.” The temper thus shown by one of his most faithful followers prevented Edward from pushing matters to extremity. During these years was set on foot also the practice of demanding that those who were wealthy enough should receive knighthood. The practice was kept up during the reign, but the property counted sufficient for the holder of that dignity varied from £20 to £100 a year. The King’s activity reached in all directions. Another commission was issued to inquire into the conduct of sheriffs. The coinage, much clipped and debased, was renewed; it was ordered that its shape should always be round, as the prevalent method of clipping had been to cut the pieces into four, so that the exact edge could not be known. At length, in 1279, Edward proceeded to regulate one of the great abuses of the Church. Not only had that body become exorbitantly rich, but the privileges which it claimed had begun to be detrimental to the Crown; and when, in the earlier part of the year, Peckham, Archbishop of Canterbury, produced and authorized, at a meeting at Reading, some canons tending to the independence of the Church, the King was determined to strike a blow in return. As corporations could not die, land which had passed into their possession was free from the fines and payments due from an incoming heir, which were thus lost to the feudal superior. Moreover, and this touched the Crown more nearly, it had become a habit to give property to the Church, and fraudulently to receive it back again as a Church fief, and thus free from feudal services. By the Statute of Mortmain, which was now passed, it was forbidden, without the King’s consent, to transfer property to the Church.

Meanwhile, while Edward had been thus busied at home, affairs in Wales had begun to attract his attention. Llewellyn had always been in close alliance with the Leicester party, and had shown his dissatisfaction at the accession of Edward by refusing to come to the assembly which swore fealty to the new King. Edward, who wished honestly to heal the late differences, had summoned him to his coronation, and had again been refused. Had he not desired a peaceful solution of the difficulty, he would certainly now have proceeded to extremities. But no less than six opportunities were given to the Prince of appearing in England, to set himself right; on every occasion he had refused to do so. The suspicions which his conduct excited received a strong confirmation when it was known that he was contemplating a marriage with the daughter of De Montfort. It is probable that this marriage was to be carried out in pursuance of some scheme for continuing the disturbances of the

Wales. 1275.

Llewellyn’s suspicious conduct.

War breaks out. 1277.

Llewellyn submits.

His merciful treatment.

last reign. Fortunately the lady was captured, with her brother Almeric who was escorting her, on her way to Wales. This brought matters to a crisis. In 1276, Llewellyn, who had refused all approaches to friendship, demanded, in the language of an independent prince, a treaty, and the restoration of his wife. In November of that year Edward, acting in concert with his Parliament, ordered his army to meet him at Worcester, and the war began. Even the strength of his country did not enable Llewellyn to hold out against the superior power and ability of the English King. A fleet of ships from the Cinque Ports cut him off from Anglesea, and mastered that island, while the English army forced him back towards the mountains of Snowdon. He was induced to treat. The terms given him were stringent. The Cantreds or Hundreds between Chester and Conway were given up to the English. Anglesea alone he was allowed to keep in full, on the payment of 1000 marks, while a few baronies around Snowdon were left in his hands, to prevent his title of Prince of Wales being a mere empty honour. Besides this, he had to pay 50,000 marks for the expenses of the war, and a tribute of 1000 marks. Once conquered, however, and brought to complete submission, his treatment was generous. The money payments were at once remitted. His brother David, his enemy, and a probable source of discomfort to him, was kept in England and pensioned; and finally, he came to England, and received his wife, their marriage being nobly celebrated by the King.

In less than three years the whole arrangement was again destroyed. David, though he had fought for Edward and been well rewarded, suddenly deserted to his fellow countrymen. He attacked the Castle of Hawardyn, and, in company with his brother Llewellyn, besieged Rhuddlan and Flint. Edward at once advanced against them. Hard pressed, the brothers divided their forces. David continued to fight in the North, while his brother betook himself to South Wales. He was there surprised, defeated, and killed, on the River Wye, and his head sent to Edward, and displayed in London, in scorn adorned with an ivy crown, in allusion to some prophecy that he should be crowned in London. David was shortly afterwards compelled to surrender. A Parliament had been summoned to grant supplies; some difficulty had arisen, and before an answer could be given, a fresh one was called at Shrewsbury, (moved afterwards to Acton Burnell, the seat of the Chancellor,) by which the unfortunate Prince was tried, and condemned to death. This Parliament afterwards proceeded to the settlement of the conquered country, by what is known as the Statute of Wales. By this a considerable part of English

Second rising in Wales. 1282.

Death of Llewellyn.

Execution of David. 1283.

Statute of Wales. Annexation of Wales. 1284.

Statute of Winchester. 1285.

law and English institutions, with some modifications to suit the prejudices of the Welsh, were introduced. The conquest was completed by the famous presentation to the people of the King's new-born heir, under the title of the Prince of Wales. There was henceforth no longer any pretence of feudal supremacy; Wales was annexed to the English Crown. The following year the Parliament at Winchester produced the Statute known by the name of that city, which arranged the defence of the country upon a national basis. Of that piece of legislation, as well as of others before and after it, more will be said by and by. In the year after this, Edward left England, placing the government in the hands of his brother Edmund.

It will be necessary to turn for a moment to Edward's foreign relations to explain the necessity of his journey abroad. He had the misfortune, like his predecessors, to be master of Aquitaine, and as Duke of that province a vassal and peer of France. He was, moreover, cousin of the King of France, and brother-in-law of the King of Castile. Although a definitive treaty had been made between Henry III. and the French King, it had never been properly carried out; Edward had, as in duty bound done homage for his French possessions, and had from time to time renewed his claims. He had even been allowed in 1279, in right of his wife, to take possession of Ponthieu. There was, nevertheless a constant feeling of distrust between the French King and his too powerful vassal. Edward had therefore done his best to cement his friendship on the side of Spain. But, in 1282, an event happened which enabled him to secure a settlement of his French claims, and to assume the important position of mediator in a great foreign quarrel. A war seemed imminent between Castile and France, when Peter III. of Aragon, for whose favour both parties had been intriguing, suddenly raised a large army, the destination of which was said to be Africa, but which shortly after proved to be intended for the conquest of Sicily from the French. This put an end to the quarrel with Castile, and brought Aragon forward as the Spanish power against which the French energies were directed. Charles of Anjou had received from the Pope the grant of the Two Sicilies when the Barons of England had obliged Edmund to renounce it. He had made good his position with extreme cruelty; and now the Sicilian people entered into that famous conspiracy known by the name of Sicilian Vespers, and massacred the French throughout the island. They then proceeded to give themselves to Peter III. of Aragon, in concert with whom they had certainly been acting. He was successful in his enterprise. His admiral, Loria, had everywhere defeated the fleets of Anjou, and in 1284 had taken prisoner Charles, Prince of Salerno, the Duke of Anjou's heir. For a short time there seemed some possibility

Foreign affairs call Edward abroad.

Sicilian Vespers.

of the quarrel being ended by a single combat between Peter and Charles; formal preparations were made, and Edward was entreated to preside as umpire. But chivalrous though he was, he was too much of a statesman to give his consent to so trivial a form of settlement; and, in 1285, Charles died.

His quarrel was taken up by the French King, and matters had reached this point when Edward thought it necessary to go abroad (especially as a new King, Philip IV., had just come to the throne), to arrange if possible a question which, involving not only his own interests, but also the authority of the Pope, was one of European interest. He succeeded in inducing Philip IV. to allow the justice of his claims with

Edward mediator between France and Aragon. 1286.

His award is repudiated.

regard to the provinces to be united to Gascony, and proceeded the following year to act the part of mediator between the Courts of France and Aragon. He was trusted absolutely in this negotiation, and after some difficulty hoped that he had arrived at some conclusion, when he had succeeded in obtaining the freedom of Prince Charles of Salerno, although the terms of liberation were very hard. Large sums of money were to be paid, and Sicily was to be given up to the Spanish Prince, James. But no sooner was Charles at liberty than he repudiated these conditions; and Edward, disgusted with his want of faith, and thinking probably that it was wiser not to plunge too deep into European politics, determined to return home, neglecting the offered opportunity of forming an alliance with Aragon, which might have formed some counter-poise in Southern Europe to the power of France and of Rome.

His presence at home indeed was much wanted. The moment the back of the great ruler was turned, and the weight of his hand removed, it became evident that much time would be necessary before his arrangements could restore more than external order to the deeply disturbed society of England. Fresh disturbances had arisen in Wales, where Rhys ap Meredith had been roused to rebellion by the strictness with which the English law was carried out. Nor had the Regent's army, under Gilbert de Clare, succeeded in

Disturbances in England during his absence. 1289.

Edward returns.

Punishes corrupt judges.

capturing him. It seems indeed that several of the greater nobles had begun to show discontent, and in 1288, Surrey, Warwick, Gloucester, and Norfolk had all appeared in a disorderly fashion in arms. There were other disturbances too in the lower strata of society. The Statute of Winchester was not yet fairly in operation, bands of outlaws appeared in the forest districts, and among others, one Chamberlain had fallen upon a fair held at Boston in Lincolnshire, and had burnt the town. The presence of the King restored order, but the fundamental

cause of the misgovernment was laid open to him by his faithful Chancellor, Burnell. Like Henry II., he had employed as his judges professional lawyers, and they had not been proof against the great temptations of their office. The judges were corrupt, and justice was bought and sold. Very serious charges were brought against them in October; all except two, who deserve to be mentioned, John of Methingham and Elias de Bockingham, were convicted. The chief baron, Stratton, was fined 34,000 marks, the chief justice of the King's Bench, 7000, the master of the rolls, 1000; while Weyland, chief justice of the common pleas, fled to sanctuary, was there blockaded, and after his forty days of safety had to abjure the realm. His property, which was confiscated, is said to have amounted to 100,000 marks.

At the same time the King banished all the Jews from the kingdom. Upwards of 16,000 are said to have left England, nor did they reappear till Cromwell connived at their return in 1654. It is not quite clear why the King determined on this act of severity, especially as the Jews were royal property, and a very convenient source of income. It is probable, however, that their way of doing business was very repugnant to his ideas of justice, while they were certainly great falsifiers of the coinage, which he was very anxious to keep pure and true. Earlier in the reign he had hanged between 200 and 300 of them for that crime, and they are said to have demanded 60 per cent. for their loans, taking advantage of the monopoly as money-lenders which the ecclesiastical prohibition of usury had given them. Moreover, about this time, the great banking-houses of Italy were becoming prominent. With them Edward had already had much business, and their system of advances upon fairer terms was much more pleasing to him. From this time onwards the money business of England was in their hands. ^[45]

Banishes the Jews.
1290.

We have now reached what may be considered as the close of the first period of Edward's reign, which had been occupied by legislation and by the conquest of Wales. From this time onwards, it is the conquest of Scotland, and the great constitutional effort of the reign, intermingled with foreign affairs, which we shall have to observe.

End of First Period
of the reign.

It is uncertain when Edward's thoughts were first directed to the Northern kingdom, but events had been rapidly occurring, which threw Scotland almost entirely into his hands. Quite early in the reign he seems to have wished, as was natural for one of his legal mind, to have the disputed question of homage cleared up. Again and again homage had been paid to his predecessors; but, except in the case of

Relations with
Scotland.

William the Lion's homage to Henry II., it had been always open to the Scotch King to assert that it was for fiefs in England, and not for Scotland, that his homage was rendered. Even that clear instance had been annihilated by the subsequent sale of the submission then made by Richard I. It would seem in fact that the claim to overlordship was really based upon much earlier transactions. Scotland consisted of three incorporated kingdoms—the Highlands, or kingdoms of the Scots, Galloway, which was part of the British kingdom of Strathclyde, and the Lothians, which had undoubtedly been a part of the Anglian kingdom of Northumbria. In the time of the English Empire the King of Scots and all the people had chosen Eadward the Elder as father and lord; that is to say, they had what is technically called commended themselves to the English King. Strathclyde had been conquered by Eadmund, and by him had been granted to Malcolm as a fief, on condition of military tenure; while afterwards the Lothians had been granted by Eadgar to the Scotch kings as an English earldom. Thus, on various grounds, all parts of the Kingdom of Scotland acknowledged the English King as their overlord. When England fell into the hands of the Normans, William, professedly assuming the position which his predecessor had held, would naturally expect the same homage to be paid to him. It is equally certain that the Scotch kings would object to pay it. It had therefore been a constantly open and disputed question till the time of Edward. Meanwhile the feudal law, which had not existed at the time of the original commendation, had grown up and been formulated. Edward, as we have seen, intended to use it to the full. He therefore desired the uncertain acknowledgment of the old supremacy to be brought, as it had never hitherto been, within the precise and clearly-defined limits of feudal overlordship. The character of Alexander III. was such as to strengthen such ideas. In 1275, his wife, Edward's sister Margaret, had died. The tie of relationship thus broken, Edward had demanded and received, in 1278, a homage, which he declared to his chancellor was complete and without reservation;^[46] and since that time, more than once, Alexander had seemed to acknowledge the supremacy.

But it was the rapid extinction of that monarch's family which brought matters to a crisis. Margaret had had two sons and one daughter, Margaret. Both the sons had died young, and the daughter had married Eric, King of Norway, with the promise that she was to retain her rights to the Scotch succession. In accordance with this, when she died in her first confinement, her little child of the same name, spoken of as the Maid of Norway, was, in 1284, declared heiress of the throne. In 1286 King Alexander died. He had married

Extinction of the Scotch royal family.

Proposed marriage of the Maid and Prince Edward.

Accepted with restrictions. 1290.

again, but had no children; the crown would therefore have naturally come to the Maid of Norway. During her absence, a regency, consisting of the Bishops of St. Andrews and Glasgow, the Lords Fife, Buchan, and Comyn, and others, was appointed. But already other claimants had come forward, and their respective parties had begun a civil war. To Edward it seemed the opportunity had arrived of establishing his rights without violence. A marriage between his son and the Maid of Norway at once occurred to him. For this he had secretly cleared the way by obtaining from the Pope a dispensation to enable these cousins to marry. Armed with this, but acting ostensibly in the Norwegian interest, he contrived to bring about a meeting at Salisbury between commissioners on the part of Eric, of the Scotch government, and of himself, at which it was agreed that the young Queen should be received in Scotland free of matrimonial engagements, but pledged not to marry except by the advice of Edward and with the consent of her father. Almost immediately after this, the plan of the marriage was made public, and was at once willingly accepted by the Scotch, who were anxious to be saved from a civil war, but who, while accepting it, took care, at a parliament held at Brigham in 1290, to guard with scrupulous care the independence of the kingdom.

It was not exactly thus that Edward understood the treaty. He at once despatched Anthony Beck, Bishop of Durham, to act in unison with the guardians of Scotland, as Lieutenant of Queen Margaret and her husband, at the same time demanding possession of the royal castles, ostensibly for the purpose of preserving the peace of the kingdom. The governors of the castles declined to give them up, but seven great Earls wrote to Edward, as though to a superior, begging him to curb the power of the regency, while, on the other hand, a member of the regency, the Bishop of St. Andrews, also wrote, begging Edward to approach the border to assist in keeping order, and to appoint a king if the rumour which had been spread of the death of the Maid of Norway should prove true. The report was true, Margaret had died on her journey from Norway in the Orkney islands; and acting on these two letters, which he construed as an invitation, Edward summoned a meeting at Norham, to be held after Easter 1291. The delay was probably occasioned by a heavy blow which had fallen on Edward. In November he had lost his much loved wife Eleanor. It is one of his titles to our respect, that in a licentious age he was remarkably pure, and that no word was ever breathed against his perfect fidelity as a husband. After a period of bitter sorrow, and a pompous funeral, each stage of the journey being

Invitation to Edward to settle the succession.

Death of the Maid.

Death of the Queen.

Meeting at Norham. 1291.

subsequently marked by a beautiful cross, he returned again in the following year to his Scotch plans. At that meeting he put forward his claim as superior and overlord of the kingdom, saying that it lay with him in that capacity to put an end to discord. He ended by asking that his title should be acknowledged, in order that he might act freely. A delay of three weeks was demanded, at which time the assembly met again on Scotch ground opposite the Castle of Norham. An answer seems to have been meanwhile sent, but the King had regarded it as not to the point; and at the assembly itself no objections were raised to his claim. All the competitors acknowledged his authority in set words, and the case was put into Edward's hands.

There were a great number of claimants; but three only established a case worth consideration. These were Bruce, Balliol, and Hastings. The claims of all these went back to David I. This king had three grandsons; Malcolm IV., who was childless, William the Lion, whose direct descendants had just come to an end, and David, Earl of Huntingdon, from whom all three claimants were descended. He had had three daughters; Margaret, the eldest, whose grandson was Balliol, Isabella, the second, whose son was Bruce, Ada, the third, whose grandson was Hastings. Besides these three, Comyn was also a grandson of Margaret, but being a son of a second daughter, his claims were obviously inferior to those of Balliol.^[47] To decide these claims, Edward, as lord superior, established a great court; forty of Bruce's friends, forty of Balliol's, and twenty-four members on the part of Edward, were to constitute it. Edward seems to have proceeded with the full intention of giving a just and legal judgment, and after several meetings, in November 1292, a decision was arrived at in favour of John Balliol.

Meanwhile, during the settlement of the question, Edward had taken possession of the Scotch castles, had appointed the great officers of the kingdom, and had caused the regents to exact an oath of fealty to him as superior lord. The new King accepted the throne distinctly as a vassal of England, and finally, to make his dependence perfectly clear, did homage after his coronation. He did not find his new position free from difficulty. He found that the letter of the feudal law to which he owed his elevation could be turned against himself. It was indeed unnatural to expect the Scotch to submit to the inconveniences without claiming the advantages of that law. Balliol had not been long on the throne before they asserted that, if he was a vassal, appeals would lie from his judgments to the

Edward's supremacy allowed.

The claimants.

Edward gives a just verdict. 1292.

Balliol accepts the throne as a vassal.

Scotland appeals to the English Courts. 1293.

The appeals not pressed to extremities.

English courts. In the following year two or three such appeals were made, one from a goldsmith, and one from Macduff, Earl of Fife. When summoned to appear before the English courts, Balliol refused to come. He made his appearance however at the Parliament held in the autumn of 1293, and there declared that, as King of Scotland, he could not act without the advice of his people. A delay was given him for the purpose of consulting his parliament; he did not take advantage of it. The case of Macduff was therefore given against him by the English baronage in his presence. He was fined to Macduff 700 marks, to Edward 10,000. On the protest of Balliol, a fresh delay was allowed, nor does Edward seem to have been in any way disposed to do more than make good his legal position. It is plain, however that the position of vassal king, with its awkward and probably unexpected incidents, disgusted Balliol; and political events soon enabled him to make his displeasure felt.

Philip IV., the new King of France, was as legal in his mind as Edward, but more dishonest. It was as plain to him that it was desirable to unite France by annexing Guienne, as it was to Edward that it was advantageous to England to annex Scotland. They set about their designs in somewhat the same way. The sea was at this time regarded as a sort of no man's land, where incessant fighting little short of piracy was allowable. There were plenty of instances of battles between English and French merchant-ships. The Normans are said to have infested the whole coast of France from Holland to Spain. The Cinque Ports mariners were probably not much behind them. At last a formal meeting was arranged in 1293, where the matter was to be fought out. An empty ship marked the point of contest, and there the fleets of France and England fought a great battle, which terminated in the defeat of the French. Edward, who knew Philip's character and the resources of the feudal law, was anxious to do what he could to clear himself of complicity in the quarrel; but no representations of his were attended to by the French King, and Philip summoned him to appear before the French Parliament. As the English offenders were not given up, and as Edward declined to appear, the Constable of France took possession in the King's name of Edward's French provinces. With much more important matters in hand, and with the knowledge probably of what Balliol's conduct was going to be, Edward tried all he could to settle the matter peacefully. He sent over to France his brother Edmund, whose wife^[48] was the mother of the French Queen. Through the instrumentality of these Queens a treaty was arranged, by which the summons to Paris was annulled, and a personal meeting at Amiens arranged, pending which the strongholds of Gascony

Quarrel with France.

Edward outwitted.
Gascony occupied.
1294.

First true Parliament.

were to be put in Philip's hands. Edmund withdrew the English army, and dismissed the commander, St. John, and at the same time demanded a safe conduct for his brother at the proposed meeting. But Philip refused the safe conduct, declared himself dissatisfied with the surrender of the towns, and refused to leave the country which he had occupied. Fresh insulting messages were sent to Edward, and, in 1294, Edmund returned to England, and war became necessary. Great preparations were made; alliances were formed on the north-east of France; money was granted by Parliament. This proving insufficient, no less than half their property was demanded from the clergy. An insurrection in Wales, and the news that an alliance had been formed between Philip and the Scotch, rendered the preparations useless.

It was plain to Edward that it was worth risking his foreign dominions to consolidate his power as King of Great Britain. For the present, therefore, he left Gascony alone, and turned his arms against Scotland. Engaged at once in a war with France, with Scotland, and with Wales, he found it necessary to raise supplies from all branches of his subjects. A genuine Parliament was therefore called in October, in which all estates were represented, and which has been considered the true origin of our Parliament as it now exists. The three Estates granted the supply as different orders; and it was not without difficulty that the clergy, suffering from the late enormous exaction, were induced to grant him a tenth. The other estates seem to have come readily to his assistance at this great crisis.

In March a large army was assembled at Newcastle, and while the Scotch crossed the borders and ravaged Cumberland with savage ferocity,^[49] Edward pushed forward into Scotland. In three days Berwick was captured. While still before that place, he received from Balliol, who seems to have been under some constraint, renunciation of his allegiance; and before the end of April brought his army, under the Earl of Surrey and Warrenne, to Dunbar. The Scotch advanced to meet him, occupying the higher ground; but foolishly mistaking the movements of the English army in the valley for a flight, they left their strong position, and were hopelessly routed, with a loss of 10,000 men. This battle decided the fate of Scotland. Several of the great Earls and many knights were taken prisoners. The King met no further opposition in his march through Edinburgh to Perth. On the 10th of July, Balliol made his submission, was allowed to live under supervision in the Tower of London, whence he afterwards proceeded to Normandy; and Edward henceforth acted no longer as feudal superior, but as King. At a Parliament held at Berwick, he

Edward marches into Scotland. 1296.

Defeat of Scotch at Dunbar.

Submission of Balliol and Scotland.

received the fealty of the clergy, gentry, and barons of Scotland, whose names, filling thirty-five skins of parchment, are still preserved among the English archives. Scotland was left as much as possible in its old condition, but the Earl of Warenne and Surrey was made Guardian; Hugh de Cressingham, Treasurer; William of Ormsby, Justiciary; and an Exchequer was established in the English fashion. At the same time the coronation stone of Scone was removed to Westminster, where it still is. Edward had thus completed his first conquest of Scotland. Both legally and politically, his conduct is justifiable. The consolidation of Great Britain was a most desirable object. The French alliance, the invasion of England, and the renunciation of vassalage, constituted by feudal law a sufficient cause for confiscating the possessions of a vassal prince. But this leaves untouched the question, how far it is right to annex a free people against their will? It must be remembered that the submission of Scotland had been made by the nobility only, who were in fact Normans, and many of them English Barons.

Freed from danger on the side of Scotland, Edward was now at liberty to turn his attention towards France. But his late exertions had caused great expenditure, to which had been added the subsidies by which he had been compelled to purchase the alliance of the Princes on the north-east of France. To meet this necessity, a Parliament was summoned

Refusal of the clergy
to grant subsidies.
Nov. 3. 1296.

Clergy outlawed.

at Bury St. Edmunds, at which the Barons and Commons gave fresh grants. But the clergy, driven to extremity by the King's late demands upon them, found themselves in a position to refuse. Benedict of Gaita had lately been elected Pope, under the title of Boniface VIII., and had at once entered upon a policy resembling that of the great Popes of the twelfth century. He had issued a Bull known by the name of "Clericis Laicos," in which he had forbidden the clergy to pay taxes to their temporal sovereign. Backed by this authority, Archbishop Winchelsea refused in the name of the clergy to make any grant to Edward. The clergy, it was said, owed allegiance to two sovereigns—the one temporal, the other spiritual. Their obedience was due first to their spiritual chief. An exemption from taxation of the Church, which had rapidly been growing enormously wealthy, would have crippled Edward's resources. He had already accepted the principle, that all should be consulted and all pay in matters touching the advantage of all. He proceeded at once, therefore, to meet the claim in his usual legal fashion. If the clergy would not help him, he would not protect the clergy. The Chief Justice was ordered to announce publicly from the bench in Westminster Hall, that no justice would be done the clergy in the King's Court, but would nevertheless be done to all manner of persons who had any complaint

against them. Nor was this sentence of outlawry a vain one; the tenants began at once to refuse to pay their rents, the Church property was seized, and the owners could get no redress. This severe treatment induced many of the clergy to make their submission, but the Archbishop still held out.

Matters thus remained till another Parliament met at Salisbury in February 1297, when, the Barons only being summoned, the King explained his plan for the war with France. He was under pledge to pay subsidies, and to bring an army to his allies in Flanders. This army he would personally command. He wished his Constable and Marshall, the Earls of Hereford and Norfolk, to take charge of a second army destined for Guienne. These two noblemen positively refused. They had learnt law from their King, and alleged as their excuse, which was evidently only a technical one, that they were only bound to follow the King in person. They then withdrew from the Assembly, which broke up, with nothing done. The King, in want of money, gave free vent to his arbitrary temper, seized the wool of his merchants, and ordered large requisitions of provisions to be made in the counties, for which, however, he promised future payment. In the following March, Winchelsea had a personal interview with the King, in which he appears to have arranged some sort of temporary compromise; for immediately afterwards a meeting of the clergy was held, in which he recommended them to act each for himself as best he could. Determined to proceed in spite of all opposition, the King summoned the whole military force of the kingdom to meet him at London on the 7th of July. There the Earls still refused to do their duty, and fresh officers were appointed in their place. The King reconciled himself with the clergy, and appointed the Archbishop one of the counsellors who were to act as advisers to his young son Edward, in whose hands he left the government. He also induced those nobles and Commons who were with him, though in no sense a Parliament, to make him a money grant. They gave him an eighth of the moveables of the barons and knights, a fifth of the cities and boroughs. This grant was given expressly for a promised confirmation of the charters. This seems to show what the real point at issue was. The King's excessive arbitrary taxation had aroused the old feeling which had produced the baronial wars of the preceding reign. The clergy were also asked for a grant in a convocation held upon the 10th of August. It was there decided that there was good hope that leave would be given them to make a grant. On this the King acted, and ordered a levy of what amounted to a fifth on all their revenue, both temporal and spiritual.

Barons too refuse to help Edward.

Compromise with the clergy.

Edward secures an illegal grant.

Shortly after this, he received the demands of the refractory Earls, complaining of the non-observance of the charters, of the tallages, aids and requisitions, and of the tax on wool. Declining to give an answer at present, on the 22nd of August he set sail for Flanders. On the very next day the Earls appeared in the Exchequer Chamber, and peremptorily forbade the collection of the irregularly granted eighth, until the charters had been signed which had been the express condition of the grant. The necessity for concession had become obvious, and in a Parliament summoned on the 6th of October, the promised confirmation was given by the Prince. The Earls, who appeared in arms, with troops, insisted upon the addition of some supplementary clauses, which have since been known as the statute “De tallagio non concedendo.” They further demanded that the late grant should be considered illegal; it was therefore cancelled, and a new constitutional grant of a ninth was made in its place. Prince Edward’s confirmation was renewed by the King in person at Ghent. It was again renewed, in 1299, with an unsatisfactory clause “saving the rights of the Crown,” which the King was obliged subsequently to remove, and finally, in 1301, at the Parliament of Lincoln. The charters thus confirmed were the amended charter of Henry III., the additions to it were contained in the supplementary articles of the two Earls, which forbid what had hitherto been undoubtedly constitutional, the arbitrary tallaging of towns and taxing of wool. They contained however a clause “saving the old rights of the King,” and Edward took advantage of this afterwards, in 1304, to continue the old wool-tax and to tallage the towns in his own domain. ^[50]

The Earls demand the confirmation of the charters.

It is granted with reservations.

It was the dangerous condition of his affairs which induced the King to yield to the pressure of the Barons; for in the spring of 1297, Wallace had made his appearance in Scotland. The younger son of a small proprietor in Elderslie, and without means of his own, he had established his fame as a guerilla leader. In the woods and mountains he collected a band of outlaws, with whom he attacked isolated parties of English, all of whom were at once put to death. His cruelties especially against the nuns and priests are described as most revolting. Cressingham, Treasurer of Scotland, foolishly despised him, and thus allowed the insurrection to gain head. He was joined by Sir William Douglas; but on the whole was both disliked and despised by the Scotch nobility. At length, as his followers had increased to an army, and threatened the fortress of Stirling, it became necessary to take measures against him. Warrenne, Earl of Surrey, and Cressingham, raised an army, and advanced to the Forth. The armies met early in September at Cambuskenneth, near Stirling. The river is there spanned by a narrow bridge, at

Appearance of Wallace.

the north end of which the Scotch were strongly posted. With overweening folly, Cressingham insisted on an immediate advance across the bridge. The natural consequence followed; when a small portion of the English had crossed, and were thus cut off from support, the Scotch fell on them and completely routed them. Warrenne, an old and feeble man, took to hasty flight, and the army was in fact destroyed. This victory was followed up by a fierce invasion of the north of England. Wallace seems to have collected troops by violent means; he then led them across the English border, and sweeping it lengthwise from Newcastle to Carlisle, "he left nothing behind him but blood and ashes."^[51] His cruelties were indeed beyond description, and could not but have filled the English with horror, something akin to that which the English in India must have felt at the outbreak of the mutiny.

Edward's expedition to Flanders had been a failure. The people in the cities, angry with his interference in the wool trade, were opposed to him; his allies had been tampered with by Philip, who had also won a victory over them at Furnes; the Pope was urging peace; and Edward, who always regarded his French affairs as secondary, made a truce before the end of the year 1297, which two years afterwards ripened under the arbitration of Boniface to the Treaty of Chartres. By that treaty, Guienne was restored to the English King, who withdrew his support from his Flemish allies; while Philip in return gave up the cause of the Scotch. The treaty was cemented by a double marriage. Edward himself married Margaret, the French King's sister; while his son Edward was betrothed to Isabella, Philip's daughter.

Treaty with France.
1299.

Shortly after his return, Edward advanced to revenge the insults of Wallace, who had meantime unwisely taken the title of the Guardian of the Kingdom, thus still further exciting the jealousy of the nobles. He retired before the English army, laying waste the country behind him, and Edward had almost been starved into a retreat, when two Scotch Earls told him that Wallace was in the woods in his immediate neighbourhood. Edward at once advanced to meet him. Wallace, with his infantry formed into solid squares, awaited his attack. Such horse as he had fled without striking a blow. The arrows of the English archers broke the squares, and the 7000 heavy armed English cavalry had no difficulty in completing the victory. Wallace fled, and resumed his outlaw's life, nor does he again play a prominent part in history. In 1305, he was betrayed by one of his own followers named Jack Short to Sir John Monteith, by whom he was given up to the English King, and suffered death,

Edward returns and
invades Scotland.

Defeats Wallace at
Falkirk.

Comyn's regency.

with all the extreme penalties of the law.^[52] The bitter feeling his outrages had caused in England made any other fate impossible. But though Wallace sinks into obscurity, his work had not been without effect. The southern counties were so ravaged that the King could not maintain an army there, and had to retire from the country, which passed into the hands of a temporary regency, at the head of which was Comyn.

For several years the steps taken for the reduction of Scotland were marked by great weakness. Edward's energy was paralyzed, partly by the affairs in France, partly by questions arising with regard to the charters in England. Frequent complaints had been raised with regard to infringements of the Charter of Forests. It was to settle these complaints, and to discuss an extraordinary claim raised by Pope Boniface, that a Parliament was assembled at Lincoln in 1301. With regard to the charter the King yielded, and a considerable disafforesting of districts illegally included within the limits of the forests took place. Pleased with the King's constitutional conduct, the baronage joined heartily in the rejection of the Papal claim. Boniface had issued a mandate desiring the King to abstain from all further attacks on Scotland, "which did and doth still belong in full right to the Church of Rome." This mandate was delivered while Edward was in Scotland, and Boniface's position as arbiter between Edward and the King of France prevented him from at once rejecting it. It is probable that Boniface was only asserting his position as guardian of international law, but the English treated the claim as serious. When it was brought before Parliament, the baronage replied that the kingdom of Scotland never had belonged to the See of Rome, and that they, the Barons of England, would not allow Edward, even if he wished it, to surrender the rights of the Crown. It was not till 1303 that Edward was able to resume his conquest of that kingdom. Early in that year he ordered his Barons to assist John Segrave, Governor of Scotland, in marching from Berwick to Edinburgh. But that General mismanaged his march, and as he approached Roslin on the way to Edinburgh, in three divisions, he was fallen upon by Comyn, and his army defeated in detail.

Parliament of
Lincoln.

The King had thus much to revenge when, in June, he began his march. On this occasion he was accompanied by a fleet to bring his supplies. He thus avoided the difficulty which the desolate state of the country had hitherto presented. He pushed onward into the far North. On returning he took up his abode for a time in Dunfermline.

Fresh invasion of
Scotland.

Second conquest of
Scotland.

Most of the Scotch Barons there sought and obtained pardon, and at length Comyn, who had been the leader of the rebellion, made a treaty in Fife, by which

the Lords agreed to suffer any pecuniary fine Edward thought fit, and the castles and government were to be in Edward's hands. One stronghold only refused to obey this treaty. Sir William Oliphant held the fortress of Stirling, and it required three months to reduce its gallant defenders to submission. This was the last opposition Edward had to fear; he at once admitted the Scotch to pardon, and settled the country, placing his chief confidence apparently in Wishart, Bishop of St. Andrews, John de Mowbray and Robert Bruce. It was soon seen how little reliance could be put on the first and last of these Commissioners.

Bruce murders
Comyn, and rebels.

Preparations for
fourth invasion.

Edward's death near
Carlisle.

Robert Bruce was the grandson of the claimant of the Scotch throne; his grandfather had been an English judge, his father a constant friend of Edward. It was only by marriage that the family had acquired the estates of Carrick and Annandale. He was therefore to all intents and purposes an Englishman, or rather a Norman Baron, possessed of that peculiar characteristic of the race which rendered it in fact a race of adventurers, with the constant hope of winning great things before their minds. The instances of Norman Barons who had won earldoms, kingdoms and empires, were too numerous not to have had effect upon aspiring members of the race. Bruce had up to this time played a somewhat vacillating game, but on the whole, perhaps because of his feud with Balliol, he had remained faithful to Edward. He seems now to have thought his opportunity had arrived. It may perhaps have been the King's growing infirmities that encouraged him. At all events, early in February 1306, he murdered in the church of Dumfries Comyn, who, in accordance with the interpretation of the law which Edward had recognized, stood next to the Balliols in succession to the Scotch throne, and who, since he had last submitted to Edward, had been true to him. Bruce then, joined by a few nobles, raised the standard of revolt. He proceeded at once to Scone, and there, in March, was crowned by Wishart and other of Edward's Commissioners. This unexpected insurrection from those whom he had trusted roused Edward to extreme anger. With great pomp, at a meeting at Westminster, he knighted his son, and took a solemn oath to avenge John Comyn's death. Carlisle was the point of rendezvous, but already Bruce had been defeated at Methven near Perth by Aymer de Valence, Earl of Pembroke, and was wandering barefoot and in misery among the hills and woods of the country. He was reduced to demand the pity of the King, but was refused; and a severe ordinance was issued that all abettors of the murder of Comyn should be hanged, and that all those who assisted Bruce should be imprisoned. The ordinance was carried out with severity. Nigel Bruce, two Seatons, the Earl

of Athole and Simon Fraser, were all executed, and the Countess of Buchan, who had crowned Bruce, was imprisoned, with ironical cruelty, in a crown-shaped cage. But Bruce himself was not taken, and issuing from his fastnesses, he inflicted many losses by surprise upon the English. He even in his turn defeated the Earl of Pembroke, and shortly after the Earl of Gloucester; and Edward was rousing himself to attack him, though scarcely able to mount his horse, when he died upon the march.

The mere narration of the political facts of the reign, although it brings out prominently much of Edward's greatness, gives no idea of the real constitutional importance of his work. Not only was he the first truly English King, both by his circumstances and political views, but he became, in virtue of his love of order and legal arrangement, the completer of the English Constitution. In the first place, it is to him that we owe the perfection of the Parliamentary system, of the complete representation in Parliament of the three Estates of the realm, the Lords, Commons, and Clergy. For it is plain that it was his intention to combine the three, although the clergy refused to accede to his wish, and preferred to tax themselves separately in Convocation; a body which however, as will be afterwards seen, also owes its representative arrangements to him. The gradual introduction of the representative system of the counties has been mentioned. Again and again, on special occasions, knights, to represent the shire and to give information with regard to their counties, had been summoned. Simon de Montfort had even introduced representation of the boroughs; but this was regarded as wholly exceptional. Nevertheless, Edward was not long in seeing both the justice and advantage of the system. In the first Parliament of his reign, when enacting the first great Statute of Westminster, a healing and restorative measure applicable to the whole country, he said that he made it with the consent of the *commonalty*; there were possibly representatives of the counties present; more probably their consent was arrived at in some other way. At the same time, the high view which he took of his own constitutional position is marked by a change in the ordinary form of enactment. Statutes had hitherto been enacted "by the counsel and consent of Parliament." The alteration of a few letters changed the meaning of this phrase. The present statute was said to be enacted "by the King by the advice of his Council and the assent of Parliament." The legislative power was thus made to reside in the King and his Council. It is the power thus claimed which gave rise to the legislative, or rather the ordaining power claimed by the King in Council, which was afterwards frequently complained of by the Parliament. But Edward, in spite of these pretensions, accepted the view that all should be consulted where the interests of all were at

Constitutional
importance of the
reign.

stake. This was of course chiefly in the matter of taxation, and the convenience as well as the justice of the method which Simon de Montfort had set on foot soon became evident to his mind. From the beginning of this reign, the method of taxation had been changed. Instead of an aid, raised from the land, it had become a subsidy raised by an assessment on the moveables of the people. Most frequently the proportion granted was a tenth or fifteenth, but in these early times every variety of proportion was granted. As yet, however, these taxes had been collected locally in accordance with arrangements made by Exchequer officers, sheriffs, or the county court. In 1282, the King, being in want of money for his Welsh wars, proceeded by his ordinary method. The sums raised locally were insufficient; while his Barons were with him at the wars it was inconvenient to hold a Parliament; writs were issued therefore to the sheriffs and archbishops to collect their two Estates, the Commons and the clergy, at two centres, York and Northampton. At these meetings were present four representative knights from each county, and all freeholders of more than one knight's fee. The Commons made their grant of a thirtieth. The assemblies of the clergy declined, until the parochial clergy were represented. For this purpose the election of Proctors was then ordered, and they have since formed a regular part of the Convocation. These negotiations were not completed when what is called the Parliament of Acton Burnell was summoned to settle the affairs of Wales. At that meeting there were present no clergy, and representatives of twenty towns only, summoned separately. In 1290, a further proof is given that for taxation by subsidy the representation of the Commons was beginning to be considered necessary. In that year an old-fashioned feudal aid was granted for the marriage of the King's daughter. It was granted by the baronage for the whole commonalty, and was in the old form of land-tax, but the Commons being subsequently present, it was changed at their request to a fifteenth. It was possible for the baronage to grant the aid upon military tenants, but the rest of the people could not be reached. Two principles had by this time been established,—that the clergy should be fully represented, and that for subsidies upon the whole kingdom it was both convenient and just that the Commons should in some way be represented; but it was not yet held necessary for feudal matters, or for questions touching the baronage only, that the Commons should be present. Indeed, at this very Parliament, the statute “Quia Emptores” was passed by the Barons before the Commons assembled. All these preparatory steps found their completion in the Parliament of 1295, when writs were issued to the Archbishops to appear themselves, and to send Proctors to Westminster; to the Prelates and Barons, as Peers, and to the sheriffs, summoning the knights of the counties, and two burghers from each town.^[53] There was thus a Parliament

complete in all its parts, such as it has since remained. We must not suppose, however, that the Estates acted in common, or that the Commons had much voice in the deliberation. At this very Parliament of 1295, the grant of each order was different, nor was it till 1318, in Edward II.'s reign, that the Commons can be considered as perfectly incorporated in the Legislative Assembly. The constitutional view at present was, that the King, with the assent of his Barons, granted the petitions of the Commons and the Clergy.

The great statutes which were passed in these various Parliaments must now be mentioned. Those which were of most general national interest were the First Statute of Westminster, which, as has been before said, revived and re-established the old constitutions of the country, and limited the employment of feudal aids; and the Statute of Winchester, passed in 1285, which was a re-enactment and completion of the Assize of Arms established by Henry II., and aimed at once at the defence and police of the country. It laid upon the counties, under heavy penalties, the duty of indicting felons and robbers, ordered the police arrangements of walled towns, the enlargement and clearing of the edges of public roads, and further defined the arms which each class of the population was bound to procure for the preservation of the land. Constables and justices were to be appointed to see to the proper observance of this statute, from whom subsequently grew the justices of the peace. Some such statute was indeed very necessary, and even its stringent provisions were not sufficient to establish order. In 1305, England was full of riotous outlaws, who were willing to hire themselves out for purposes of private outrage when they were not plying their own trade of robbery; these were known by the name of "trail-bâtons." To suppress them it was found necessary to issue commissions to travelling justices, empowering them to act summarily towards such breakers of the peace. Their strictness is mentioned in the political songs of the day. It was impossible, it was said, any longer to beat your children, you were at once punished as a trail-bâton.^[54] Even the stringency of these measures of suppression mark Edward's love of order. Lastly, must be mentioned the great Acts for the confirmation of the charters, which are sometimes regarded as the statute "De tallagio non concedendo." From this time forward arbitrary tallages, though occasionally used, began to be regarded as illegal.

Great statutes of the reign.

There were also two great statutes bearing almost entirely upon the feudal relations of landed proprietors. The first was the statute of "Quia Emptores" (1290), which forbade subinfeudation and the formation of new manors. Its original object was to prevent feudal lords from being defrauded of their dues. Henceforward, property alienated ceased to belong in any sense to the subordinate grantor, and returned to the property of the lord superior of the

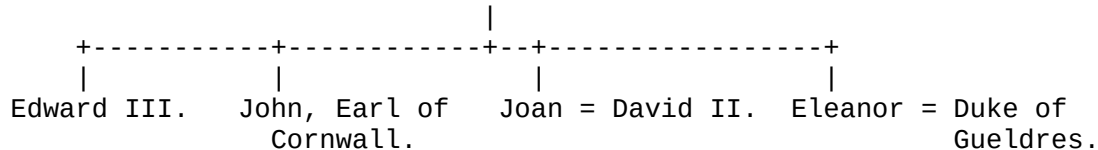
whole estate. The effect, unforeseen by the enactors, was to increase the number of independent gentry holding immediately from the crown or from the great lords. The second statute is known by the name of the Second Statute of Westminster, or “*De donis conditionalibus*.” When an estate had been given to a man and to his children, it had hitherto been held sufficient that the child should be born. The estate had then become the absolute property of the man to whom it had been granted, and he could alienate it at his will. It was now enacted that he had but a life interest in it, that if his children were not living at his death, it reverted to the original grantor. Thus was established the power of entail. There remains one great statute to be mentioned, the Statute of Mortmain. This was aimed against the increasing power and wealth of the Church, and against a legal trick by which laymen had freed themselves from feudal liabilities. It had become a custom to give property to the Church and to receive it back as tenant of the Church, thus freed from obligation to lay superiors. At the same time, even though this device was not used, the accumulation of property in the hands of the Church withdrew it from many feudal duties. It passed, it was said, “*in mortuam manum*”—into a dead hand. All transactions by which lands or tenements could in any way pass into mortmain were now forbidden. The same spirit which produced these laws had been felt in the administration of justice, where the three courts of Exchequer, King’s Bench and Common Pleas were finally separated, and each provided with a full staff of officials. Even from this short sketch of the work of Edward I. may be gathered the great constitutional importance of the reign.

EDWARD II.

1307–1327.

[click here to see the image](#)

Born 1284 = Isabella of France.



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Robert I., 1306.	Philip IV., 1285. Louis X., 1314. Philip V., 1316. Charles IV., 1322.	Albert, 1298. Henry VII., 1308. Louis IV., 1313.	Ferdinand IV., 1295. Alphonso XI., 1312.

POPES.--Clement V., 1305. Vacancy for two years. John XXII., 1316.

Archbishops.	_Chancellors._	
Robert of Winchelsea, 1308-1313.	John Langton, 1307.	John de Salmon, 1320.
Walter Reynolds, 1313-1327.	Walter Reynolds, 1310.	Robert de Baldock, 1323.
	John de Sandale, 1314.	Adam de Orleton, 1327.
	John de Hotham, 1318.	

Note.—The names of the Justiciaries, who now became legal rather than political officers, are no longer given. Throughout, the names under the head of Spain are those of the Kings of Castile.

The reign of Edward II. affords the best apology for any excessive exertions of power which can be laid to the charge of Edward I. It is plain that there existed a readiness on the part of the nobles to take advantage of any weakness in the government of their ruler; on the part of the clergy to reclaim the liberties of their order; and of the lower classes to find a popular hero in every opponent of the government. It would seem indeed that there was no alternative between a strong and practically despotic government and anarchy. It was not till the feudal barons of

England had had their fill of anarchy in the Wars of the Roses, and had destroyed themselves, that constitutional government, in our sense of the word, had a chance of existence, and our sympathies are constantly divided between the Church and barons, whose efforts alone promised freedom, and the power of the encroaching ruler, who alone ensured order. For the weakling who could secure neither one nor the other we can feel no sympathy. In the reign of Edward II. we feel as if we had fallen back again to the time of his grandfather. The great question at issue throughout is the same—Shall foreigners, or indeed any other king-chosen favourites, supersede the national oligarchy of great barons? The constant prominence of this question (which in the present reign was further embittered by the personal character of one at least of the favourites) renders it very difficult to distinguish the part played by real patriotic demands for good government and for constitutional limits to the royal power. It is pretty clear that the favourites were the chief cause of the disturbances of the reign; but, on the other hand, the evident advantages offered by some of the baronial claims, and the love of the populace, who ranked even Lancaster with its saints, compel us to believe that these turbulent disturbers of the peace were worthy of some sympathy.

When the late King died in the neighbourhood of Carlisle, he believed that the war with Scotland would have been carried on by his son, of whom he was very fond; while he thought he had secured him from that danger which he had already foreseen would beset his reign, by insisting on the dismissal of his favourite, Piers Gaveston. Gaveston was a young man of Gascon or Basque origin, of greater refinement apparently than the rough barons of England, their equal, if not their superior, in martial exercises, and possessing those courtly tastes for music and the arts which marked the young King. But Edward disappointed his father's hopes. He had already (before his father had insisted on the dismissal of Gaveston) gone so far as to beg for him, though in vain, the royal county of Ponthieu. On his father's death he immediately recalled him. A hasty and ineffectual march into Scotland, where Aymer de Valence was left as lieutenant, was all that came of the great preparations at Carlisle, and the King's mind seemed to be occupied in lavishing favours on his friend. He gave him the Earldom of Cornwall, hitherto an appanage of some royal prince. He seized the property of Walter, Bishop of Lichfield, who in the late reign had opposed him in his office as treasurer, and bestowed it on Gaveston; and after that young man had, by his ostentation, by his success in the lists, and by a reckless use of his happy gift of applying nicknames, excited the anger of the great nobles, Edward was foolish enough, on leaving England to do homage for his French dominions, to leave him as Governor of the country. Consequently, no sooner was he crowned than the Barons demanded in Parliament the dismissal of the favourite. The demand could not be refused, and Edward promised to accede to it, but proved at the same time how

Edward's friendship
for Gaveston.

Barons demand his
dismissal. March 3,
1308.

determined he was to evade his promise, by not only bestowing fresh grants on Gaveston, but by appointing him Lord Deputy of Ireland. There for a year he reigned with almost royal power.

The quarrel thus begun became the chief question of the reign. All other matters, even the conquest of Scotland, were subordinated to it; and while it was continuing, Bruce was quietly subduing fortress after fortress, and subjugating the whole south of Scotland. In the following year, the King still further showed his untrustworthiness by receiving Gaveston back in England. He met him with great marks of affection at Chester, having probably had recourse already to that dangerous expedient, a Papal dispensation from his promises. In fact, again like his grandfather, Edward found it expedient throughout his reign to keep on very friendly terms with the Pope, and to back his authority by the undefined power which the Head of the Church still wielded. It has been seen how even his great father was unable to resist this temptation. Clement V., an obsequious servant of the French King, and reigning at Avignon, was very different from the formidable Boniface VIII. There was no difficulty in persuading him to renew the old alliance with the sovereign which placed the Church at his mercy. Moreover, at this time he was anxious, in the interests of his master, to procure Edward's co-operation in the unprincipled destruction of the order of the Temple. Philip IV. of France, urged by an avaricious desire to confiscate the vast property of this order, had set on foot the most extraordinary reports of their licentiousness and blasphemy. In October 1307, all their establishments were laid hands on, the inmates imprisoned, their wealth confiscated. He then, in union with the Pope, begged all his neighbours to adopt a similar course. Edward II. consented, and in January 1308, all the Templars in England were imprisoned. They were tried by the Church on the accusation of the Pope. In France, torture, and the skill of Philip's lawyers, had produced certain confessions, on which the King acted, and the Order was there destroyed, its Grand Master, James de Molé, being burnt as a heretic. In England, not even torture, which was now first used, ^[55] could produce any important revelations. The inquiries lasted till 1311. Eventually, certain supposed proofs of heterodoxy having been produced, some of the Knights were confined in monasteries, the Order suppressed, and their property given to the Hospitallers.

Gaveston's return.

The effect of Gaveston's return, and the renewal of Papal influence, was of course to increase the discontent, till, on the 27th of July, at a Parliament held at Stamford, the King was compelled to give his consent to a statute of reform. By this the first Statute of Westminster was renewed, the undue power exercised by the constables of the royal castles, and the extortions of the officers of the royal household, were checked;

General discontent and Statute of Stamford.

Appointment of the Lords Ordainers.

all old taxes upon wool and hides beyond the legal customs were removed; while, at the same time, a general letter was directed to the Pope, begging him to abstain from his exactions. The storm continued to rise. Very shortly after this, the great Earls of Lancaster, Lincoln, Warwick, and others, refused to appear at a meeting at York, if Gaveston were present. A meeting summoned in London at the beginning of the following year met with no better success. The Barons threatened to appear in arms if they appeared at all. The King, in fear, concealed Gaveston for a time; the Barons then indeed came, but came only to demand a complete reformation in the government, to which the King was compelled to give his consent. The precedent in his grandfather's reign was then followed. From the present March to Michaelmas of the following year the government was placed in the hands of a commission of twenty-one members, who were to produce ordinances of general reform. Pending the production of these ordinances, some preliminary articles were at once established. For the payment of the King's debts grants were to be recalled, and his expensive housekeeping was to be limited. To satisfy the national feeling, and in the hope of lightening the taxes, the Italian house of the Frescobaldi, who had hitherto farmed them, was to be deprived of that advantage, and Englishmen alone were to be employed in their collection; and before all things, the charters of liberty were to be observed.

Hoping, probably, to gain popularity for himself and his favourite, and to be thus able to get rid of the Barons' interference, Edward determined on an expedition to Scotland; but the great Barons, on the plea that they were busied with their ordinances, refused to accompany him. Some of his immediate adherents, such as Gloucester, Warrenne, his half-brother, Thomas, Earl of Norfolk,^[56] and Gaveston, alone went with him. His hopes of gaining popularity by victory were disappointed. The Scotch retired before him. Though Gaveston crossed the Forth, he could not bring on an engagement; and when the English retreated, the Scotch hung upon their rear, and pursued their advantages into the county of Durham. In his necessity, the King was driven to illegal actions. He appropriated the property of the Earl of Lincoln and of the Bishop of Durham, and taxed the province of Canterbury. The Parliament, therefore, was in no improved temper when Edward, leaving Gaveston in the protection of Lady de Vescy, went to meet it in London in October. The Ordinances were there produced. In addition to the articles already granted, there were others which seem to explain the policy of the opposition, and to show the chief forms of misgovernment at that time prevalent. No war was to be carried on without consent of Parliament;—taken in connection with the conduct of Bohun and Bigod in the last reign, with the abstention of the Barons from the war with Scotland, and with the treaty between Bruce and Lancaster, which will be

Useless assault on Scotland. 1311.

The Ordinances published.

Policy of the opposition.

Gaveston banished.

afterwards mentioned, this seems to show that the Barons desired a complete settlement of England before engaging in foreign wars. All taxes upon wool and other exports since the coronation of Edward I. were to be removed:—the Barons seem to have seen that export duties are a tax on production, and are advantageous in the long run to foreign manufactures only. The great officers of state were to be nominated with consent of Parliament; while, to complete the system, the sheriffs, whom Edward I. had made elective, were to be nominated by these great officers; in other words, the royal power was to be restricted by a baronial oligarchy. Parliament was to be held at least once a year, which, considering that his father had held at least three Parliaments a year, seems to show a tendency on the part of the King to arbitrary government. Bad companions were to be removed from the King, and his household reformed. Many of these companions are mentioned by name, and appear to have been foreigners. The King's tastes had collected around him foreigners connected with display of the arts, and on them he had lavished favours, which excited the national feeling. But the chief attack after all was upon Gaveston, his countryman De Beaumont, and his sister, Lady de Vescy. It was ordered that Gaveston should leave the kingdom by the port of Dover on the 1st of November, and never again enter any territory belonging to the English Crown. ^[57]

In pursuance of these Ordinances, Gaveston left England, and took refuge in Flanders. But before the year was over he again appeared in England, and joined Edward as he hurried to the North, to be, as he believed, less within the reach of his enemies. At Knaresborough, Edward thought himself strong enough to put forward a proclamation declaring the banishment of Gaveston contrary to the Constitution. He readmitted him to favour, and restored him his property. It was even reported that he was intriguing to secure him a retreat in Scotland. This

flagrant violation of his word set all England against the King. The old Archbishop Winchelsea of Canterbury, as in the last reign, became a centre of revolution; he excommunicated Gaveston, while the Barons, at the head of whom were now the Earls of Lancaster and Hereford, proceeded to take active measures. This Lancaster was the eldest son of Edmund, brother of Edward I. His power in England was enormous; he was Earl of five counties. From his father he had received Lancaster and the confiscated estates of De Montfort and Ferrers, the Earldoms namely of Leicester and Derby; he had married the heiress of the De Lacys, and upon the death of the Earl of Lincoln had succeeded to the Earldoms of Lincoln and Salisbury. He began that opposition, which will be frequently mentioned afterwards, of the younger branch of the Plantagenets to the reigning house. Hereford, the son of the great Humphrey Bohun, was the hereditary chief of the baronial party. He had married Elizabeth, the King's sister. The leaders of the baronial party agreed to repair to those parts of England where they had most influence. Lancaster proceeded

His reappearance with the King. 1312.

The baronial chiefs.

Gaveston beheaded at Warwick.

northwards so rapidly, that the King had to fly before him, and was nearly captured at Newcastle, where Gaveston's jewels and horses fell into Lancaster's hands, and thence he took ship for Scarborough. Lancaster took up his position in the middle of England, while the rest of the baronial party besieged Gaveston in that fortress, where he was soon obliged to surrender. This he did to the Earl of Pembroke, who was no enemy to the King, upon a promise that if he could not come to terms with the Barons he should be restored to Scarborough. Pembroke persuaded him to go with him to his castle at Wallingford, but on the way, during a temporary absence of Pembroke, he was surprised by Warwick, who hated him for having nicknamed him "The Black Dog," brought to his castle of Warwick, and there beheaded on Blacklow Hill. The King was naturally full of anger, nor did he, in fact, ever forgive Lancaster, but he yielded to necessity, being perhaps in a particularly good humour at the birth of a son and heir; and the Barons, who appeared in arms at Ware, all received pardon in exchange for some slight concessions, among others for the restoration of Gaveston's jewels. It was not, however, till the close of the following year that the pardons were completed, Edward having in the meantime been to France.

This closes the first period of the reign, but it is plain that the Barons were not yet satisfied. Their chief enemy was removed, but their policy was not accepted. Thus, when in 1314 the King collected a large army, many of them still held aloof, though they sent their forces. If Scotland was to be saved it was time for energetic action. One by one the fortresses had been taken.

Renewal of war with Scotland. 1314.

Battle of Bannockburn.

Stirling still held out, but the Governor promised to capitulate unless relieved before St. John's Day. By a rapid march Edward reached the place before the fatal day. But Bruce was ready to receive him. He had arranged his troops a little to the south and east of the castle, with his right resting on the little brook Bannockburn. His position was carefully prepared. His front was partly covered by a marsh, and where this ceased and waste land began he had dug shallow pitfalls, with a pointed stake in each, to check the advance of the heavy cavalry, of which the English army then consisted. His left was defended by the cliffs of the castle. Edward Bruce commanded the right, Thomas Randolph the left, Walter Stewart and James Douglas the centre, a small rearguard was commanded by Bruce himself. On the eve of St. John's the English attempted to secure Stirling, but were beaten back by Randolph. On the morning of the 24th of June, the Abbot of Inchaffray said mass in the Scotch army. As they knelt, Edward exclaimed, "See, they beg pardon." But Ingram of Umfraville, a Scotch nobleman, by his side, replied, "Yes, sire, but of Heaven, not of you." Immediately after this the battle began, and already the weight of the English men-at-arms and the flights of arrows were thinning the Scotch ranks, when Bruce fell upon the flank of the archers with his reserve. The fortune of the day was still doubtful, when troops were seen advancing with flying standards behind the

Scotch. They were the camp followers of Bruce's army, who were eagerly pushing forward to watch the fight, but the English believed it was the arrival of reinforcements. They had already found enough to do, and did not wait the new arrivals. The flight soon became a disorderly rout. The horses stumbled and fell in the pitfalls or stuck fast in the morass, and the Scotch pursued ruthlessly. With difficulty the King, under the guidance of the Earl of Pembroke, escaped from the field, and sought safety with a few hundred men in Dunbar, whence he took ship to Berwick. The Earl of Gloucester, with great numbers of Barons and Knights, were left dead upon the field, and during the retreat the Earl of Hereford was captured at Bothwell. He was subsequently exchanged for the Bishop of Glasgow and Bruce's wife and daughter, who had long been in honourable custody in England.

Edward thought for a moment of renewing the war, and again summoned a fresh army; but the condition of England rendered further action impossible. The discontented Earls attributed the disaster to the refusal of the King to accept the Ordinances, and to the influence of his new favourites Beaumont and Despensers. Money, too, was wanting; and the King's renewed efforts to obtain it from the clergy by means of the new Archbishop Walter were met with firm opposition. But though war was useless, he would not listen to Bruce's overtures for peace, obstinately refusing to regard that Prince in any other light than that of a rebel. The North of England was thus left open to the fierce inroads of the Scotch.

Edward refuses to treat. Consequent disasters.

The loss of the English prestige was more disastrous than the immediate loss of the battle. The Welsh and Irish thought their opportunity had arrived for obtaining their independence. The Welsh insurrection was indeed subdued after a year of fighting; but it required three years before Ireland was again secured to the English Crown. In that country Edward I. had done but little. It was in its usual state of disorder. The feuds among the Norman adventurers, to whom the conquest had been left, were scarcely less constant or bitter than the wars among the native tribes who surrounded them. Against these tribes, however, they exercised the greatest cruelties. To be an Irishman was to be excluded from all justice, to be classed at once as a robber and murderer. The news of the Battle of Bannockburn induced the Irish to beg the assistance of Bruce, and to offer him their crown. He declined it for himself, but his brother Edward, as ambitious as the Scotch King, accepted the offer. In May 1315 he landed, supported by the great tribe of the O'Niells, and probably also by the Norman Lacys, and was victorious over the combined forces of the Butlers and De Burghs. In vain did Edward send John of Hotham, a clergyman, to attempt some combination among the English and the Irish tribes. The English dislike to the royal

Wars in Wales and Ireland.

Edward Bruce's invasion of Ireland.

He is crowned King. 1316.

Is killed at Dundalk.

lieutenant Butler prevented union, and in May 1316, O’Niell of Tyrone gave up his claim to the Irish throne to Edward Bruce, who was crowned King. But a series of separate attacks upon the natives was more successful. At Athenry the O’Connors were almost exterminated. The arrival of King Robert in Ulster, and a march in winter to Limerick and Dublin, produced no permanent effect, and at length, in 1317, Roger Mortimer, landing with a considerable army, succeeded in establishing some order. The Lacys were executed for treason; the tribes began quarrelling among themselves; and finally, in 1318, Edward Bruce fell in a battle, in which he was defeated by John of Birmingham, in the neighbourhood of Dundalk. The English government was re-established in all its oppression.

Meanwhile, England itself had been in a miserable plight. 1315 and 1316 were years of fearful famine. Prices rose to an unprecedented height. Wheat was sold for 40 marks a quarter; and Parliament still further aggravated the evil by fixing a maximum price, which for a time closed the markets altogether. Terrible diseases followed in the wake of the famine. Again and again the northern counties were mercilessly ravaged; whole districts and dioceses were glad to compound with the Scotch for safety. An attempt was made by a Parliament in this year to re-establish the national prosperity, by obliging the King to accept Lancaster as his chief minister. Lancaster accepted this position, upon the condition that he should be allowed to resign if the King refused to follow his advice, or if men objectionable to Parliament were admitted to the King’s Council. For a moment there was peace. The Ordinances were accepted, and ordered to be published throughout the country. But it was not in the King to act honourably when the fortunes of his favourites were at stake; and Lancaster soon found himself thwarted by the ever-increasing power of the Despensers. It was in vain that Pope John XXII. was called in as a mediator. His legates were equally unsuccessful in their attempts to heal the domestic quarrels of the country and to establish a truce with Scotland. Bruce refused to treat unless he was acknowledged as King. He continued his enterprises, and captured the town of Berwick. The legates could do nothing but put him under the ban of the Church.

- Distress in England.
- Lancaster temporary minister. 1316.
- Power of the Despensers.

At last, in 1318, a crisis was reached. The necessity of union against Scotland began to be obvious. The Despensers were for a time removed from England, and a committee in the interest of Lancaster was appointed to watch the royal action in the intervals of Parliament. This temporary adjustment of affairs in England was followed before long by a truce with Scotland. Edward tried and failed in an attempt to regain Berwick. Another furious invasion had ravaged the North of England, in which no less than

- Temporary reconciliation in England.
- Truce with Scotland. 1320.

eighty-four towns and villages were burned. It was plain that the Scotch were too strong for him. At the same time Bruce was anxious to be rid of the excommunication, and agreed to waive his claim to the obnoxious title. Under these circumstances there was no difficulty in treating.

It soon became evident that the late attempts at compromise between the two parties in England were hollow. The question had to be tried by an appeal to arms. Nothing could induce the King to get rid of his favourites, nor the opposition to act in common with them. It was a little private quarrel, and no great question, which at length blew the smouldering discontent to a flame. The marriage of young Hugh Despenser with the daughter of the Earl of Gloucester, who had died at Bannockburn, had introduced a new and objectionable power into the midst of the Welsh Marches. A quarrel arose about a vacant fief, and the Marchers made common cause against the favourite. The King ordered the question to be settled before his own court, and subsequently before Parliament; but

The Welsh Marches quarrel with the Despensers.

Edward quarrels with the Marchers.

Hereford and Lancaster combine. 1321.

Despensers banished.

Hereford refused to appear unless the Despensers were removed. As the King vindicated his favourites, and refused to remove them, Hereford marched northward, joined Lancaster, and made a formal agreement with him that there should be no peace till the Despensers were gone. The confederates came in arms to the Parliament held at Westminster, found themselves completely master of the King, presented him with eleven articles of reformation, and procured from him, irregularly, and in spite of the protestations of the clergy, the condemnation and banishment of the Despensers. This condemnation was afterwards formed into a statute, and a pardon given to all those who had compelled the King to grant it.

But though Edward had temporarily yielded, parties were so evenly balanced that very little turned the scale. Young Despenser was serving as admiral on the coast of Kent. He was therefore safe from such personal attacks as Gaveston had been exposed to, and the King was able to repair to the coast and concert measures with him. As the Queen was travelling from London to Canterbury to meet him, she was refused admittance to the royal castle of Leeds by the Governor, Badlesmere.

Insult to the Queen rouses Edward to energy.

He recalls the Despensers. Pacifies the Marches.

Angry at this insult, the King attacked the castle and hanged the garrison. It seems to have been felt that, in insulting the Queen, the opposition party had gone much too far. The King was able to recall the Despensers, several of the nobles declared that the late sentence of banishment had been procured by overwhelming force; and as he marched towards the West against the Welsh Marches, his brothers, the Earls of Norfolk and Kent, and several others of the greater nobility, followed his

standard. By occupying the valley of the Severn, he separated the Marchers from Lancaster, who was collecting troops at Doncaster. Mortimer and most of the Marchers came to terms, and surrendered. Hereford with several others, broke through the royal army, and joined Lancaster. The King's enemies were now collected into one body, and he rapidly turned against them. To secure support, and probably in pursuance of their usual policy, the rebel lords had entered into a treaty with the Scotch. Bruce was to come to their assistance, but no conquests that he should make were to be permanent. The price of his help was to be peace, and the acknowledgment of his royal title.

On the approach of the King, the rebels fell back, and were intercepted at Boroughbridge by Sir Andrew Harklay, Governor of Carlisle. On attempting to cross the bridge, Hereford was killed from below; while the fords were so strongly guarded that the passage of the river seemed impossible. Lancaster, with some hundred barons and knights, surrendered. He was taken to Pontefract. The accusations against him, including his treasonable compact with Bruce, were stated before a committee of the King's Barons, and condemnation passed against him unheard. He was beheaded, with all circumstances of indignity. A considerable number of barons suffered either with him or immediately after. Thomas of Lancaster appears to have been an ordinary feudal party leader, with a policy which was directed chiefly to domestic reforms and to the curtailment of the royal power. At the same time, the commonalty of England must have understood that, however selfish that policy might have been, it yet led, in the existing state of society, to improvement in the condition of the lower orders. Not otherwise can we explain the fact that miracles before long were worked at the tomb of Lancaster, and his memory so worshipped and honoured by the people, that the King found it necessary to surround the place of his execution with armed men.

Defeats Lancaster at Boroughbridge.

Lancaster worshipped as a saint.

The triumph of the Despensers seemed complete. The elder of them was made Earl of Winchester. Their policy too was at once adopted. The Ordinances were revised, all that could touch the King's prerogative was cut out. It was ordered especially that hereafter no baronial committee should dictate laws to the King, but he "should make all laws concerning the estate of the crown or of the realm in Parliament, with the consent of the prelates, earls, barons, and universality of the realm." The two years' truce being now out, the King marched to Scotland, but, like all others of this reign, the expedition came to nothing. No important battle was fought. Want of food compelled the English to return, followed by their indefatigable enemies. So close were they upon their heels, that at a place

Triumph of the Despensers.

Renewal of war with Scotland.

Peace for thirteen years.

called Byland, in Blackmoor Forest, Edward was as nearly as possible surprised. So unexpected was the attack, that treason was at once suspected. To the astonishment of all, Sir Andrew Harklay, who had been made Earl of Carlisle for his services at Boroughbridge, was proved, for some unexplained reason, to have been in correspondence with Bruce. For this treason he was executed. Such constant failures became ridiculous, and at length, Edward, acknowledging Bruce's title as King, made a treaty with him for thirteen years.

It seemed for the moment that Edward's troubles were over. The baronial party was crushed, their intercourse with the Scotch had damaged their reputation; the assumption on their part of the sole power of legislation had produced some reaction. The truce with Scotland had secured Edward from danger from the North. There seemed no reason why he and his favourites should not rule almost as they wished. In fact, however, the crisis of his reign was approaching; dangers surrounded him on every side. That the baronial party was still alive and active was soon made evident by a plot to liberate all the political prisoners. The plot indeed miscarried, but Mortimer found means to make good his escape from the Tower, and, taking refuge in France, became a centre round which disaffection might gather. Want of money, too, was a constant source of danger; while the meagre grants made by Parliament showed how general was the national feeling against the government of the favourites. Nor was the Church in much better temper than the Barons and the Commons. On more than one occasion the King had quarrelled with the national Church, which found an active, able, and somewhat unscrupulous champion in Adam Orleton, Bishop of Hereford. This man had been deeply implicated in the baronial movements, had been deprived of his temporalities, and thus became a determined enemy of the King. While quarrelling with the national Church, Edward had shown no vigour in opposing Rome. On two occasions he failed in procuring the election to bishoprics of his nominees, and yielded without a struggle to the authority of the Pope. But submission to Rome had now become a sure way of gaining unpopularity both among clergy and laity. On the death of Boniface VIII., the grandeur and independence of the old Papal system had come to an end, but its constant demands upon the national churches were by no means lessened; and such exactions had become more intolerable now that the ill-gotten wealth which they supplied found its way into the hands of a Pope holding his court at Avignon, a mere creature of the French King: to the old dislike of Papal supremacy there was now added the national dislike of France.

Dangers surrounding
the King.

To crown Edward's difficulties, he found himself involved in a dispute with France. In 1322, Charles IV., son of Philip the Fair, had ascended the throne. It at once became evident that he intended to pursue his father's policy. He demanded personal homage from King

Difficulties with
France. 1324.

Edward. His ambassadors could procure nothing but the threat that, unless it was paid, Guienne would be seized. In the little town of Saint Sardos, in the Agenois, a quarrel between the people and their English Seneschal brought the matter before the French King. He summoned Edward before his court. It was clear that the old machinery of feudal supremacy was again to be set in motion. War in fact actually began; the French armies captured Ponthieu and the Agenois. It was in vain that King Edward offered justice to the aggrieved inhabitants of Saint Sardos in his own courts, in vain that he sought the mediation of the Pope. He was himself entirely in the hands of the Despensers; and those noblemen, afraid probably to allow the King to get beyond the reach of their personal influence, used all their power to prevent him from going himself to France. It was at last decided that Queen Isabella, the French King's sister, should go to Paris, and try if she could come to some arrangement. She procured leave for her eldest son Edward to represent his father, and do homage for Guienne. But, when the young Prince reached Paris, he was in no haste to return. In fact, the Queen had fallen in love with Mortimer, and had passed entirely under his influence and that of the other baronial exiles; and under the skilful management of Orleton, Mortimer and his friends were engaged in a great conspiracy. It was in vain that the King perpetually wrote to demand her return. She pleaded personal dread of the Despensers, and complained of the King's ill-usage. For a woman living in adultery with her husband's enemy, such charges are perhaps not worth much; but it does seem probable that as a high-spirited woman she had much to bear from the King's partiality for his favourites, many of whom were men of the lower ranks of life.

The Queen and Prince in France. 1326.

The conspiracy was so widespread, and so judiciously managed, that her cause was soon regarded as a national one. Nobles, clergy, and commonalty seem alike to have been in her interest. At the instigation of the Pope, she was obliged to leave Paris, but she took the opportunity of going to Hainault, and there contracting a marriage between her son Edward and the daughter of the Count, and of engaging that Prince to assist her in her enterprise. On the 24th of September she landed with her foreign auxiliaries at the mouth of the Orwell. She was joined by the King's brothers, by his cousin Henry of Lancaster, and by all the nobility of the East. The Archbishop of Canterbury supplied her with money. London rose in her favour. The skilful management of the Bishop of Hereford won her allies on all sides, and the King found it necessary to fly before her advance. Leaving the Earl of Winchester in Bristol, he tried with young Despenser to reach Lundy Isle in the Bristol Channel. The wind prevented him, and he was driven to land in Wales. Bristol was taken by the Queen without a siege, and the

She lands in England.

Her party gathers strength.

The King is taken. 1326.

Prince of Wales made King.

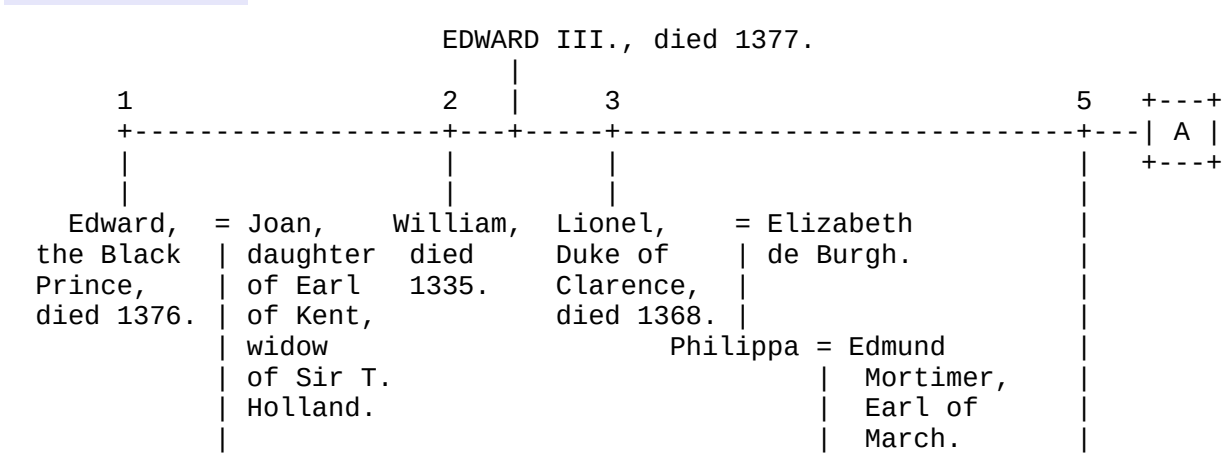
Murder of the King.

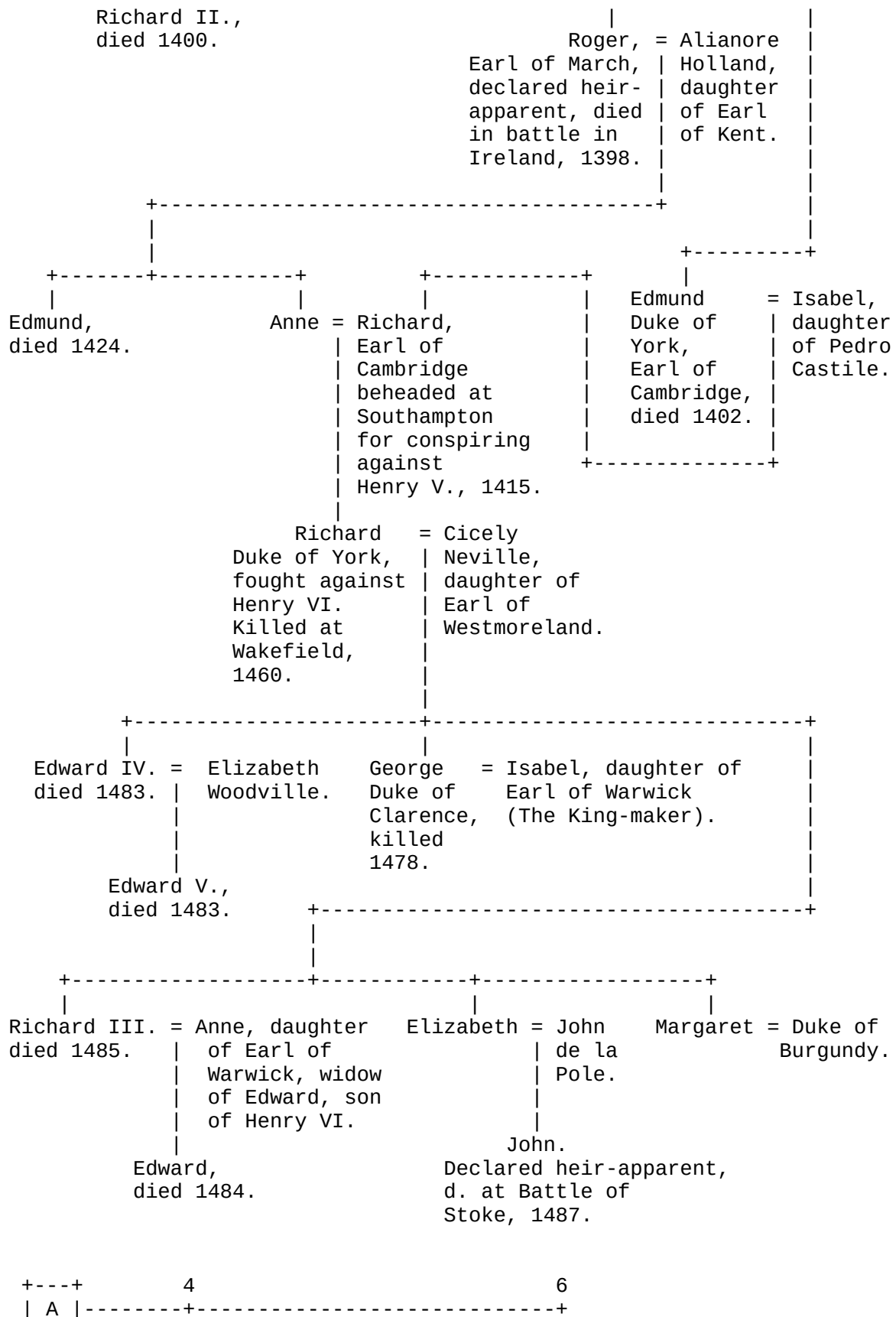
King finally fell into the hands of his pursuers in Wales. He was put into the charge of Henry of Lancaster, brother of the late Earl, at Kenilworth. William Trussel, whom the Queen had made her judge, superintended the trial of the Despensers and their friends, and they were all put to death. In December the Parliament met at Westminster, and swore fealty to the Queen and Prince. The Bishop of Hereford put the question whether Edward or his son should henceforward rule. The assembly declared for the Prince, who accepted the situation, binding himself to six articles, which seem to represent the complaints against the King, and which laid to his charge, the rule of favourites, the contempt of good advice, the loss of Scotland, acts of violence against the clergy and the nobles, and the refusal of justice. Isabella pretended to be angry at this act of deposition, but her pretence could deceive nobody. Finally, a deputation waited upon the unfortunate Edward, and procured his resignation. He was hurried from fortress to fortress, and before long met a cruel death in Berkeley Castle.

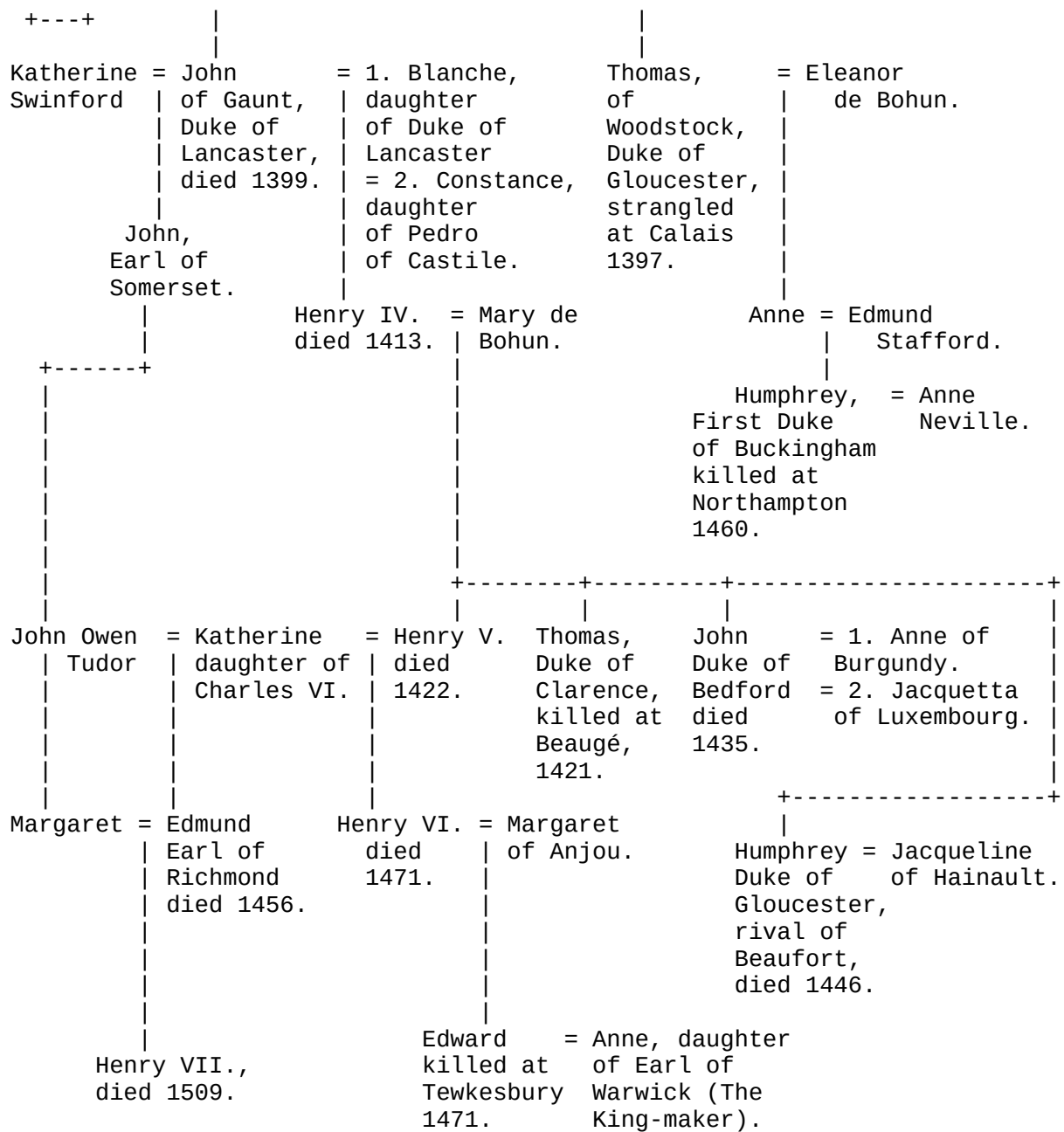
Throughout the baronial efforts of the reign, constitutional views and personal interests had been closely interwoven. The single-minded patriotism of Simon de Montfort had been entirely absent. It was the personal ambition of a Prince of the blood, of enormous wealth and influence, which had supplied the baronial party with their first leader. The vindictive feelings of personal dislike had produced an unjustifiable murder of the royal favourite. Success had been followed by an unconstitutional appropriation of all the powers of government. To support their supremacy the Barons had not shrunk from an alliance with their national enemies. To secure a second triumph and revenge they had adopted the cause of an adulterous Queen and her worthless favourite. Yet throughout, the pretence of their action had been the maintenance of the old constitution, and the act which closed the reign was a formal declaration on the part of Parliament of a constitutional right of the nation to depose a sovereign who proved himself unfit for his high position.

Character of the opposition.

[click here to see the image](#)



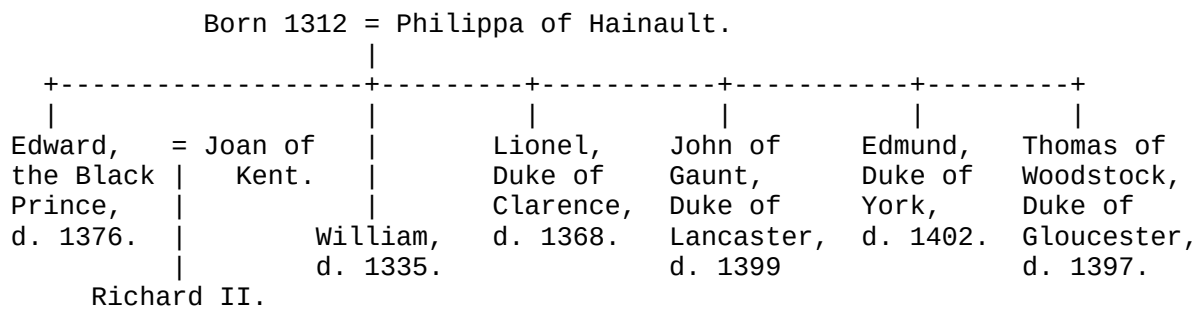




EDWARD III.

1327–1377.

[click here to see the image](#)



CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain (Castile)._
Robert I., 1306.	Charles IV., 1322.	Louis IV.,	Alphonso XI., 1312.
David II., 1329.	Philip VI., 1328.	1314.	Pedro, 1350.
Robert II., 1370.	John, 1350.	Charles IV.,	Henry II., 1368.
	Charles V., 1364.	1347.	

POPES.--John XXII., 1316. Benedict XI., 1334. Clement VI., 1342.
Innocent VI. 1352. Urban V., 1362. Gregory XI., 1370.

Archbishops.

Simon Mepeham, 1328.
John of Stratford, 1333.
Thomas Bradwardine, 1349.
Simon Islip, 1349.
Simon Langham, 1366.
William Whittlesey, 1368.
Simon Sudbury, 1375.

Chancellors.

Henry of Burghersh, 1327.	Robert of Sadyngton, 1343.
John of Stratford, 1330.	John of Offord, 1345.
Richard of Bury, 1334.	John of Thoresby, 1348.
John of Stratford, 1335.	William of Edington, 1356.
Robert of Stratford, 1337.	Simon Langham, 1363.

Richard Bynteworth, 1338.
John of Stratford, 1340.
Robert of Stratford, 1340.
Sir Robert Bourchier, 1340.
Sir Robert Parnynge, 1341.

William of Wykeham, 1367.
Sir Robert Thorpe, 1371.
Sir John Knyvet, 1372.
Adam Houghton, 1377.

As the conquest of England by Queen Isabella and Mortimer had been ostensibly undertaken for purposes of reform in the government, and freedom from the influence of favourites, the first measures taken were such as might befit a reforming party. The charters of liberty were solemnly renewed, and the removal of the more obvious abuses promised, the judgment against Lancaster and his friends was reversed, and the government nominally placed in the hands of a council of regency, formed of four Bishops, four Earls, and six Barons. Nevertheless, the real power remained in the hands of Mortimer; to him and to the Queen a considerable portion of the royal revenues were diverted, and before long all trace of reform had disappeared, and Mortimer, forgetful of the pretext which had secured him his position, and of the fate of his predecessors, became to all intents and purposes himself a favourite, giving to that word the meaning which best describes it, an irresponsible and all-powerful minister. He even surrounded himself, we are told, with a guard of 180 knights, and altogether adopted an ostentatious bearing which could not but create enemies; at the same time his connection with the Queen excited the displeasure of all respectable men.

Measures of reform.

Mortimer's
misgovernment.

His early government was rudely interrupted by an invasion from Scotland. The truce was not yet expired, but the opportunity was too good to be lost. To the English the renewal of war was distasteful, and measures were taken to avoid it. A meeting was arranged with the Scotch King, but the conclusion was so evidently foregone, that Robert summoned his army to assemble on the very day appointed for the meeting, and while the negotiations were still going on, the Scotch crossed the borders in force. The campaign against them was not successful. More used than the English to rapid movements, capable of living upon much less, and able to supply themselves with that little from an enemy's country, the Scotch constantly avoided a great battle. Twice was Edward deceived by a simple stratagem of the Scotch, who left the watchfires burning, while they secretly decamped, and he was finally obliged to close the campaign without a battle. It became necessary for Mortimer and Edward to treat, and the Queen offered her daughter Jane as the price of peace. In March 1328, that peace was concluded; Robert's son, David, was to marry Jane; the English were to use their best endeavours to have the ecclesiastical censures which hung over Bruce removed, and on the payment of £20,000, promised to give up all claims upon the Scotch crown, and to acknowledge Bruce as king.

Fruitless campaign
against Scotland.

Peace.

Though the English nobles had long disliked the Scotch war, and had at all events made use of their pretended dislike as a weapon of opposition to the government, they now, with true party spirit, and moved probably more by dislike to Mortimer than by any patriotic feeling, declared themselves horrified at the disgraceful treaty, and held aloof from the Parliament which ratified it. Dislike to the government was in truth growing to a head. Associations were formed to uphold the ordinances of the last reign. At length, at a Parliament called at Salisbury, to be present at the creation of new peers—when Mortimer was made Earl of March; Prince John, Earl of Cornwall; and James Butler, Earl of Ormond—Prince Henry of Lancaster, the brother and successor of Earl Thomas, and other malcontents, refused to appear. Shortly afterwards it was heard that they were in arms at Winchester. The King's uncles, the Earls of Kent and Norfolk, had hitherto supported Lancaster, but as Mortimer drew near with his army, they suddenly deserted him. This caused the failure of the insurrection, and Lancaster and his friends were obliged to submit to hard terms, purchasing their freedom with half their incomes, and the pledge that they would no longer oppose the government.

It is not to be supposed that this ineffectual insurrection put an end to the discontent. During the whole of the following year, while Edward was absent in France, rumours began to prevail that the old King was still alive, and in the Spring Parliament of 1330, the country was astonished by the sudden apprehension of Edmund, Earl of Kent, the King's uncle. He and many other nobles, among others the Archbishop of York and Bishop of London, had undoubtedly joined in a conspiracy nominally for the restoration of the late King. The examinations made it evident that this insurrection had been fomented by the agents of Mortimer, and that Kent had fallen a victim to their machinations. He confessed his complicity in the scheme, and was beheaded. Mortimer doubtless was glad of the opportunity of thus weakening the party of his enemies. Among the petitions of the Commons in the first Parliament of the reign was one against the exactions of the royal Princes; this renders it probable that they had taken upon themselves to exact purveyance, and Mortimer might rely upon the popular feeling being with him in this act of violence.

Conspiracy and death of Kent. 1330.

But a more important enemy now made his appearance. Edward, who had been married to Philippa of Hainault in 1328, had now a son, afterwards the Black Prince, and therefore could not but feel that he had reached man's estate. He was weary of the domination of Mortimer, and could hardly have looked with favour on the man who had killed his father and his uncle, and was now living in adultery with his mother. He determined to assume the reins of government, and, in alliance with the Barons, suddenly seized Mortimer during the sittings of the Parliament at Nottingham, and procured his speedy trial and execution. To the Queen he acted firmly but mercifully; he allowed her £3000 a year; he subsequently even increased this income, and during her

Edward overthrows Mortimer.

lifetime paid her a yearly visit of ceremony, but he refused to allow her any influence in the government, and she passed the remaining twenty-seven years of her life in privacy at Risings Castle.

The young King was satisfied with the vengeance he had taken, and proceeded by acts of leniency to heal party feeling, restoring the forfeited inheritances to the sons of those who had lately suffered, and extending his kindness to the wives even of Mortimer, and Gournay his father's murderer. He made common cause with those nobles who had hitherto been discontented. Henry of Lancaster became a prominent member of his council; the great seal was placed in the hands of John of Stratford, the author of the bill of deposition in the last reign.

Edward's healing measures.

Edward's attention was almost immediately drawn to Scotland. Robert Bruce had died in 1329, leaving his son David still a child, so that the government fell into the hands of a succession of regents. Scotland had been so closely connected with England, that many barons held property in both kingdoms. During the war of independence, these properties had naturally been confiscated on both sides. At the peace of 1328 they should have been restored. On the part of Scotland this was not done. The party of Balliol and of Comyn was by no means extinct, and the disinherited lords gathered round Edward Balliol, the son of John, who thus became the head of a formidable body of men, whose interests were strongly opposed to the government of the Bruces. They suddenly determined on an expedition to restore if possible Balliol to the throne. Sailing from Ravenspur in Yorkshire, Balliol and his friends landed at the mouth of the Tay, defeated, with much loss, the Regent at the battle of Duplin, pushed onwards towards Perth, and, while his English ships annihilated the Scottish squadron in the river, was crowned at Scone; thus in seven weeks from the time he left England he had apparently secured the crown. His repulse was almost as rapid as his success. In three months the friends of Bruce had rallied, and Balliol, unable to make head against them, had been driven from the country.

Balliol invades Scotland.

Edward, while ostensibly discountenancing Balliol's movement in England, had, in truth, determined to make use of his success; and a treaty was arranged between them, by which Balliol promised to own the supremacy of England and to give up Berwick, while the two kings were mutually to defend each other against all enemies. He made a show of deferring the question first to Parliament, and upon failing to obtain an answer, to the judgment of the Pope and the French King. But there were seldom wanting excuses for a war with Scotland.

Edward supports him.

Siege of Berwick and battle of Halidon Hill. 1333.

Submission of Scotland. 1334.

Border disturbances speedily arose, and in 1333, acknowledging the treaties he had made, he advanced to the siege of Berwick. Archibald Douglas, the then Regent,

came with an army to relieve this important fortress. To oppose him the English had taken up a strong position to the west of their lines upon Halidon Hill. A swampy ground was before them, and as the Scotch knights fell into disorder in the marsh, the English archers “made their arrows flee as thick as motes on the sunne-beme.” It was in vain that the nobility bravely attempted to storm the hill. They were defeated with fearful loss, the Regent, four Earls, the prime of their nobility, and 30,000 common soldiers fell upon the field. On the following day Berwick opened its gates. Balliol proceeded to take possession of the kingdom; fortress after fortress fell; the young King David was taken to the Court of Philip VI. of France, and found refuge in Chateau Gaillard in Normandy. As the price of his assistance Edward received the oath of fealty from the Scotch, and the part of Scotland to the east of Dumfries and Linlithgow. As long as Edward was not otherwise employed, Balliol remained upon his throne; but events soon occurred abroad which called the English King away, and Balliol was again driven from his kingdom.

As early as 1329, on the death of Charles the Fair, the third and last of the sons of Philip IV., Edward, the son of the daughter of that King, laid claim to the French throne.^[58] His rival was Philip of Valois, the son of Charles of Valois, Philip IV.’s brother, and, granting the existence of the Salic law, the undoubted heir; for all the three last kings had died without male issue. Edward’s claims then rested upon three principles; females were excluded from the French throne, or Joan, Queen of Navarre, daughter of Louis X., would have succeeded. The male issue of such females were not excluded; but, thirdly, they must be born during the lifetime of their grandfather, or else the children of the daughters of the three last kings would have a better claim than he had. The question had been properly tried by the Peers of France, and Philip of Valois had been declared King, and in 1331 Edward had himself done homage to him for Guienne. There was however a standing quarrel with regard to certain towns of the Agenois which Charles IV. had conquered. These, Edward understood, were to be restored to him, while Philip VI. declined to surrender them. This quarrel might perhaps have been passed over, but the reception of David on his flight from Scotland, and the assistance which Philip gave to the party opposed to Balliol, by degrees rendered war inevitable; and when once this became obvious, it was clearly good policy on the part of Edward to make his claims as national as possible, and instead of trusting to such secondary causes of hostility as were afforded by Philip’s refusal to surrender a few unimportant towns in a distant dependency, or his intrigues for the restoration of the Bruce dynasty, he at once, with the consent of Parliament, asserted his claim to the French throne.

Edward’s claims on France.

Philip helps the Scotch.

Claims consequently produced. 1337.

There was at present in England a Frenchman whose influence is said to have had much to do with determining Edward to this step. This was Robert of Artois. On the death of

Edward’s alliances on the North-east. 1338.

his grandfather a dispute had arisen as to the succession of the country. The fief did not follow the ordinary feudal custom, but fell to the nearest of blood. Matilda, the daughter of the late Count, therefore succeeded in preference to her nephew Robert. Philip V. had married her daughter, and during his lifetime and that of his two brothers, Robert had been compelled to be content, but on the accession of Philip of Valois he demanded restitution. During the trial which ensued he produced as evidence charters which were proved to be forgeries, and in 1337 took refuge in England, where Edward adopted his cause, and used him as a sort of set-off to David Bruce, whose cause the French King had taken up. The great war with France was a distinct breach in the policy of Edward I. But the present King was not the great statesman his grandfather had been. A false chivalry had gradually been taking the place of the old feudal sentiment, and Edward was open to be moved both by the impulses of a spurious knight-errantry and by personal motives of ambition and passion. When once engaged in the war, however, he acted both energetically and prudently. His marriage with Philippa of Hainault, and the close commercial interdependence of England and the countries on the North-east of France, gave him an opening which he eagerly employed. He entered into alliances with the Princes of that neighbourhood, with Brabant, Gueldres, Juliers and Cologne. In Flanders, where the great mercantile cities were at enmity with their count, who was on his side supported by the French influence, he allied himself heartily with James Van Artevelt, the Brewer of Ghent, the acknowledged chief of the burgher party. He took advantage also of the fierce dispute at that time raging between the Emperor Louis of Bavaria and the Pope, who was a mere creature of the French crown, to secure not only the Emperor's friendship but the title of Imperial Vicar. This title gave something of a national character to that alliance of German Princes which he had arranged. But all these alliances, though they promised so fair, were both expensive and hollow. In every case they assumed the form of subsidies, the foreigners promising to supply troops in exchange for English money. On the other hand, Philip, although unable to take actual possession, took seisin of Guienne, that is, he sent an officer to each of the great towns, and declared that he had taken possession of it. He had also, as was natural in the disturbed state of Germany, found some friends in that country.

Is made Imperial
Vicar.

Edward had set himself right in the eyes of his people by a public declaration of the state of affairs; and relying on the good feeling thus established, and on the favour of the mercantile classes, whose interests he had forwarded by his efforts, though often mistaken ones, to improve the growth and manufacture of wool, he proceeded to raise taxes with an unsparing hand. Not content with the subsidies granted him, he laid tallages on the towns, collected forced loans, induced Parliament to grant him half of the last wool crop, even seized large quantities of wool for which he promised to pay in the course of two years, and laid an extra tax of 40s. the sack on the cost of exportation. He thus

Great taxation.

obtained abundant money for his present need, although he found he had gone rather too far, when, in the following year, Parliament petitioned for the removal of the “Maletolte,” or additional wool tax.

In 1338 he landed with a large army in Flanders, where the people who had lately driven away their count, and were anxious to secure for their cities the monopoly of the English wool trade, received him gladly. But all his efforts came to nothing. He could not bring the French King to an engagement, and shortly became aware of the instability of his foreign allies; in spite of his title as Imperial Vicar they were little inclined to follow him, and speedily found pretexts to desert him. He had to retire to Flanders, but by no means lowered his tone. On the contrary, at the instigation of the people there, he now first took on himself the title of King of France. But he had now to return to England to collect fresh supplies. These were granted him freely, the Parliament giving him the ninth lamb, the ninth fleece, and the ninth sheaf. His back was no sooner turned than Philip began to attack Flanders, and with the aid of the Genoese collected a considerable fleet to prevent his return. On the 24th of June, the English fleet, with Edward on board, found the French at Sluys, where a great sea-fight took place, ending in the complete destruction of the French. They had fought in three lines, connected by chains, imitating as far as possible a land army. The English, after a little manœuvring, had fallen upon them thus huddled together, had thrown them into inextricable confusion, and driven many of the crews in their terror to seek refuge by leaping overboard. So great was the disaster, that none but the jester durst inform Philip of it. “What cowards those English are,” said he, “they had not the courage all to jump overboard as the French did.” In spite of this glorious beginning of the campaign, the year was as unfruitful as the last; simultaneous advances on St. Omer and Tournay both proved failures. Philip, who had been intriguing with the English allies, knew better than to come to a fight, and Edward was not sorry to conclude a truce at the instigation of Jane of Hainault, the sister of Philip. This truce, signed at Esplechin in September, was to last till the following midsummer, and comprehended the allies of both parties.

He lands in Flanders.
1338.

Deserted by his allies.
Returns to England.
1340.

Returns and wins
battle of Sluys.

Fruitless expedition to
Tournay.

Edward’s position was most irritating; his allies were deserting him; in spite of his stringent exactions, his finances were exhausted; he was so deeply in debt that the Flemings, who regarded his presence as a security against France, kept him as it were in pledge. He could not bring himself to believe in such complete failure of his hopes. He was easily led to listen to evil counsellors, who whispered to him that his ministers at home were defrauding him in the matter of the taxes. Suddenly, he set sail with a few of his most trusted friends, leaving

Sudden visit to
England and
displacement of
ministry.

behind him some nobles in pledge to his creditors, and arrived in London in the dead of the night of the 30th of November. He immediately displaced his ministry, his Chancellor, his Treasurer, the Master of the Rolls, and imprisoned several of the judges and officers of the Exchequer. On the bishops he could not lay hands; they claimed the privileges of their order. However, commissions of inquiry were issued to find charges against the late government, new sheriffs were appointed, and, apparently in mistrust of clerical influence, Robert de Bouchier was appointed chancellor.

As had happened so frequently before in English history, the champion of liberty was found in the ranks of the Church. The President of the Council, John of Stratford, Archbishop of Canterbury, retired to his See, and thence wrote to Edward at length, refusing to answer to the charges brought against him, except before his peers in Parliament. At the same time he warned the King to remember his father's fate, and begged him not to act as he was now doing against the Charter. He wrote also to the new officials, declaring that the late grants had been given under conditions which must not be broken, that they were to be collected only from those represented in Parliament, and not from the clergy who were not represented there, at the same time threatening with excommunication all who should disturb the peace of Church and State. In vain the King threatened; his want of money compelled him to summon a Parliament (April 23). An attempt was still made to exclude the Bishops. Whenever they appeared they were refused admittance to the Parliament, and directed to the Exchequer Chamber. At length the baronage grew thoroughly angry, and the King was compelled to admit the Archbishop, but at the same time left the House in anger, and betook himself to the Commons. The Peers were firm in their demand that no Peer should be tried except by his peers in Parliament. At last the King yielded. All the Estates joined in begging him to admit Stratford to his favour, and promising him in exchange for this submission assistance in his necessities. Large help was granted, and the rights claimed thrown into the form of a statute, securing the privilege of the peerage, the immunity of the clergy from the exactions of temporal officials, and ordering that at the beginning of each Parliament the great officers should temporarily resign their offices, to give time for an examination of their conduct. In October, the King having secured his grants, thought fit to revoke the statute, and was not ashamed to avow that he had "wilfully dissembled as he ought" to avoid the dangers which threatened him. The statute was cancelled in 1343, but the privileges then granted were not questioned.

Dispute with
Stratford. 1341.

Edward yields.

As arranged, the truce with France continued till midsummer 1342. During that time Edward found that his German allies had completely left him, and that even Louis of Bavaria had been won over to Philip. This change in the Emperor's policy was caused by a wish to

Loss of all his allies.
1342.

obtain Philip's mediation with his enemy the Pope. He excused it by urging that the treaty of Esplechin had been made without his consent. Thus left without allies, and impoverished by his late subsidies, which indeed, in the absence of money, he had in some instances been obliged to pay in raw wool, Edward might have been content to leave France alone, had he not obtained a new footing in Brittany. The war there was again a war of succession. John III. of Brittany had three brothers, Guy, Peter, and John Earl of Montfort. Guy and Peter died before their brother the Duke. Guy had a daughter, Jane, who as heir of the duchy had married Charles of Blois, the French King's nephew. But upon the death of John, his sole surviving brother, John Earl of Montfort claimed the duchy, and did homage to Edward as King of France. The Peers of France adjudged the duchy to Charles of Blois, and the two kings armed in favour of their respective allies. Charles was at first successful, and took John of Montfort prisoner. The war was, however, carried on with enthusiasm by his wife, Jane of Flanders. She had the good wishes of the people, and held out during the winter in the fortress of Hennebone. She was almost reduced by famine, when the arrival of Sir Walter Manny, who was followed later in the year by Edward himself, raised the siege. But the country now became the battleground between England and France. Edward on the one hand, and the French King's eldest son on the other, entered the duchy, but so little was effected, that at the end of the year a truce for three years and eight months was entered into, the matters at issue being referred to the Pope.

New opening in
Brittany.

It is somewhat surprising to see how constantly the judgment of the Papal See is appealed to, even more frequently than in earlier times, when its authority was of greater weight. No doubt the spiritual position of the Popes had constantly been used as a means of interference in secular questions, and by mere force of encroachment the Pontiff had come to be regarded as the natural arbiter of Europe. But behind this there lay a more real ground for the exercise of the Papal authority. The Papal Curia had in fact inherited a certain portion of the powers and duties of the Roman Empire. During the vigour of Imperial institutions difficulties arising between various states included within the limits of the Empire were settled by the Emperor, who thus became the guardian of international law. When the Empire lost its universal character, and the German Kaiser (whatever vague notions of universal power may have hung about his title) became practically the sovereign only of a part of Europe, he lost the power of enforcing his decisions in the case of quarrels between Princes, who were in fact his equals. National quarrels must therefore have been settled by the sword alone, had not the Court of Rome, still claiming universality, still supplying trained lawyers and adequate courts, afforded an opportunity for continuing in some degree the system of international arbitration. The natural inclination of a spiritual power towards peace rendered still more easy this transfer to the Papacy of the guardianship of the international relations of Europe. The thirteenth century had been remarkable for its

The Pope's position as
Arbiter of Europe.

systematizing character. Powers, acknowledged by common practice and consent but not reduced to system, began to be defined; and as Edward I. in England and Philip IV. in France had brought into fixed and legal shape the lax constitutions of their several kingdoms, so Boniface VIII. had attempted to render Rome a formal court of appeal in all questions of international law. It was thus that we find Wallace and the guardians of Scotland appealing to Rome in their quarrel, and the Pope asserting his supremacy over the Scotch kingdom at the close of the reign of Edward I., and thus that we constantly find the Kings of Europe appealing to the decision of the Papal Curia.

But although the Papal See thus comes constantly forward as mediator in the quarrels of princes, and though cardinals were repeatedly charged with missions of peace in all directions, since the French had caused the overthrow of Boniface VIII. it had no longer its old influence or its old character. Seated at Avignon, the Pope was completely in the hands of the French King; while the rising spirit of freedom, the abuse of crusades which had been frequently employed against Christian princes, and the infinite exactions invented by the papal lawyers, had roused the temper of the people against him. The English Parliament, therefore, was doing a less difficult thing than the Parliament of Lincoln in Edward I.'s reign, when it insisted that the mediation specified in the treaty should be regarded only as that of a private man, without special authority or sanctity, and coupled even that modified acceptance of the offer with a strong protest against provisors. Having thus protested against the Pope, not without covert allusion to the King's own connection with him, the people made grants, which were terribly wanted to save the King from his impoverished condition. The great Italian house of the Bardi was ruined by the great advances it made to him; the German merchants of the Steelyard, the only corporation of German merchants in London, had got a grant of much of the taxes; the subsidies, as we have seen, had been paid in raw wool, seized at the rate of £6 the sack, and sold at £20; the main point of Bishop Stratford's defence had been that the enormous interest on the royal loans swallowed up at once all the money that was collected. But for the timely and liberal grants of the people the government must apparently have stopped. Meanwhile, the Pope was preparing his decision; but it was impossible to expect an honest verdict from him, and though, by the treaty, Philip should have restored his prisoners, he still kept De Montfort and others in prison.

It was plain that the war would soon be renewed. The Parliament in the year 1344 made their grants on the express understanding that this was the case, and that Scotland was waiting to join in the quarrel. In 1345 the expected event took place. The close

Mediation of the Pope offered. 1343.

Decay of Papal influence.

Mediation accepted conditionally.

The King's commercial difficulties.

Mediation fails.

War breaks out again. 1346.

connection between England and Artevelt has been mentioned. It was of the last importance to the Flemings that England should help them against their Count, and supply their looms with wool. Artevelt now offered to make the Prince of Wales Count of Flanders; and in all probability the attack upon France would have been in the old direction, had not a quarrel between the weavers and the fullers in the Flemish towns produced the murder of their great leader. It was in Gascony that the war actually broke out. Thither the Earl of Derby,^[59] the son of

Derby hard pressed in Guienne.

Edward to relieve him lands in Normandy.

Marches towards Calais.

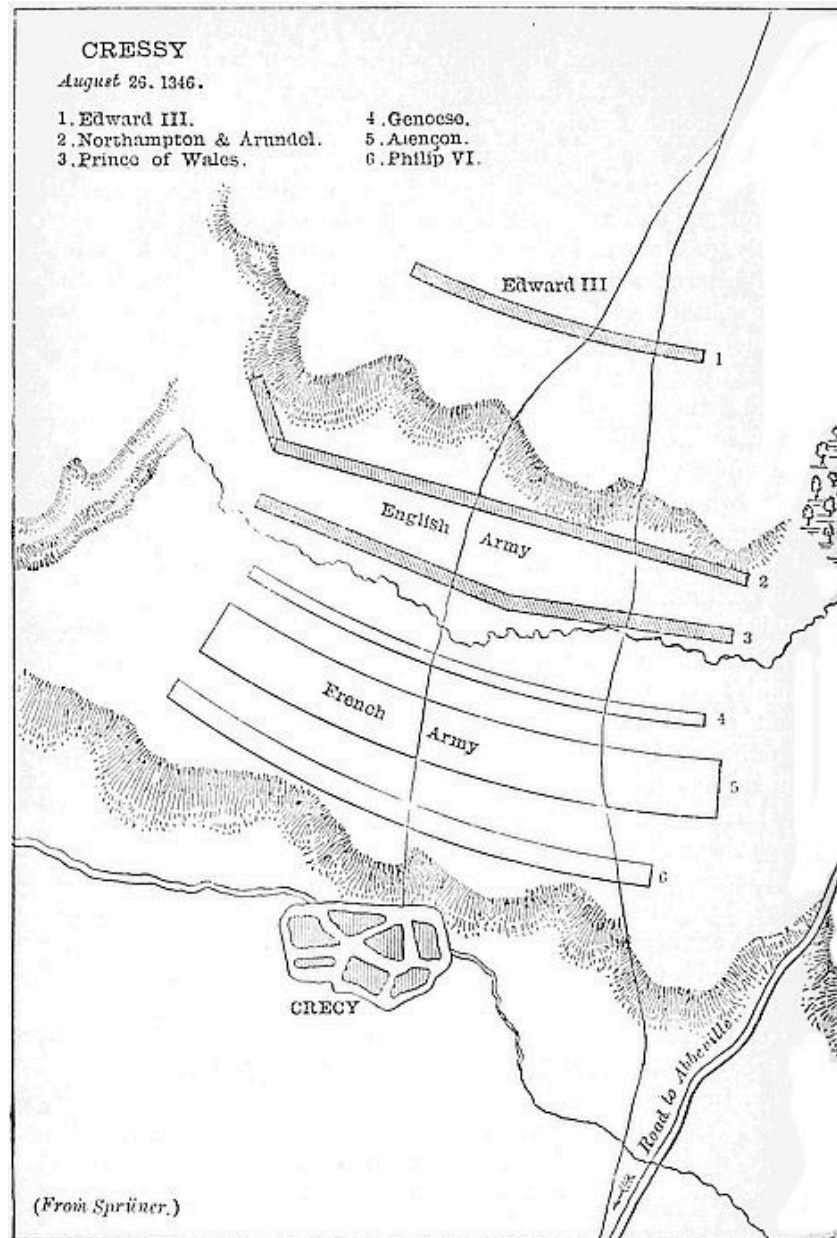
Henry of Lancaster, had been sent, and he had there won a great victory over the French at Auberoche. He was soon, however, hard pressed by Philip's eldest son, the Duke of Normandy, and driven to stand a siege in the fortress of Aiguillon, on the Garonne. Meanwhile, a great fleet and army had been collected, apparently for the purpose of relieving them. But while sailing down the Channel Edward suddenly changed his course, it is believed on the advice of Geoffrey of Harcourt, a French refugee, and landed at La Hogue in Normandy. His object was to draw the Duke of Normandy northward, and thus to relieve Derby, while he himself marched through France into Flanders, and joined his Flemish allies, who had already crossed the French frontiers. But in executing this manœuvre, Edward found all the bridges over the Seine broken, and the French King in force upon the other side, evidently desirous of hemming him in between his own army and that of his son advancing from the south. It was in vain that Edward pushed even to the suburbs of Paris, Philip would not be provoked to break his plan of the campaign. It became absolutely necessary for Edward to cross the river. A rapid feint upon Paris left the broken bridge of Poissy open. Edward hurried back, mended the bridge, and the river was passed.

The tables were now turned. It was the French King who wanted, Edward who avoided, battle. He pushed on, destroying the country as he went, till a fresh obstacle met him at the Somme. With Philip and his vastly superior army immediately in his rear, his position became critical. A peasant was induced to show him the ford of Blanchetaque, near Abbeville, where the river could be crossed. Even that ford was strongly defended, and only won after a sharp skirmish in the midst of the water. The returning tide checked the pursuit of the French, and enabled Edward, who had at length determined to bring matters to a decisive issue, to choose his ground in the neighbourhood of Cressy.^[60] There was fought the first of that great series of battles, in which the small armies of the English showed themselves superior to overwhelming numbers of French.

The cause of this superiority lay partly in the skill of the English archers, but still more in the practised discipline of regular volunteer soldiers, when opposed to an army still formed upon the feudal model. The wars with the Scotch had taught the English a

Change in the character of the army.

lesson they had not been slow to learn. Edward I. had been a soldier of the old school; the strength of his armies had always consisted in the heavy armed cavalry, in which man and horse had been laden with defensive armour to the utmost limits of their capacity; the infantry had been entirely a secondary consideration. But Wallace had proved at Cambuskenneth, and (even though defeated) at Falkirk, the power of resistance which resides in firmly arranged bodies of infantry. Bruce at Bannockburn had shown still more plainly the weakness of heavy cavalry upon ground not exactly suited for their particular form of fighting. Edward III.'s chief claim to greatness as a soldier rests on the readiness and skill with which he adopted the idea supplied him by Bruce and Wallace. The difficulties of keeping together a feudal array during a lengthened foreign campaign, the comparative cheapness of an equipment of foot-soldiers, the increasing number of freemen not employed upon the soil, were all likewise inducements to change the character of the army. The cavalry employed in the French wars was insignificant in comparison to the infantry. The midland counties supplied the army with archers, Wales with ordinary infantry. This change in the army, itself in part the fruit of social growth, reacted on society. Regular hired troops required trained commanders; and there thus grew up a class of professional soldiers, whose existence dealt a heavy blow to the hitherto unquestioned superiority of the feudal leaders.



CRESSY
August 26. 1346.

- | | |
|---------------------------|---------------|
| 1. Edward III. | 4. Genoese. |
| 2. Northampton & Arundel. | 5. Alençon. |
| 3. Prince of Wales. | 6. Philip VI. |

(From Sprüner.)

The hired army of the English, and the professional soldiers who commanded them, formed a far more efficient body of troops than was supplied by the feudal levies and noble leaders

Battle of Cressy. Aug. 26.

of the French. The English were arranged in three divisions, the foremost of which was nominally commanded by the Prince of Wales. From the summit of the hill, Edward had a general survey of the field. As usual, the archers began the battle; their flights of arrows threw the Genoese crossbow-men, to whom they were opposed, into confusion. The confusion once begun, the very numbers of the French did but add to it. The Duke of Alençon, and the Count of Flanders, with their followers, cut their way through their own troops before they could reach the English men-at-arms. While these successfully held their ground, the remaining masses of the French were decimated by the English arrows, nor could any sufficient support be given to Alençon. At length, as night closed in, Philip left the field, and the further disconnected efforts of individual French commanders were useless. The English could hardly believe their good fortune, and Edward, fearing a return of their enemies, kept them under arms during the night. The loss of the French was enormous; the heralds appointed to examine the field reported the death of eleven princes, 1200 knights, and 30,000 of inferior rank. The English had killed considerably more than their own numbers; but their little army was quite insufficient to advance into France, and Edward, following his original plan, marched on to the siege of Calais.

The battle was on the 26th of August. Already some days before, Lionel of Clarence, who had been left in command of England, had summoned troops for the defence of the Scotch border; and Philip now wrote strongly to David, begging him to make a diversion. David was not sorry to answer to the call. Cumberland was overrun, and the Bishopric of Durham; but the English levies, inspired by the courageous language of the Queen, and under the joint command of the Percies and Nevilles, defeated him completely at Neville's Cross, David himself being taken prisoner. The battle of Cressy had relieved the Earl of Derby, who was again overrunning the south-west of France. The year closed in triumph for the English arms in all directions.

Battle of Neville's
Cross. Oct. 17.

This year of success was shortly crowned by the fall of Calais. Edward had attacked that city by way of blockade, shutting his army round it, and guarding the approaches by the sea with his ships. All the efforts of the French King to relieve it had been useless, and the slow process of famine at length obliged its defenders to surrender. The inhabitants had not been free from the usual crime of seafaring life at that time—they were the rivals in piracy of the Cinque Ports and St. Malo. They had but little mercy to expect from the King. Eustace de St. Pierre, an important citizen, offered to give himself up, with a certain number of friends, to bear the first brunt of the King's anger, hoping thereby to save his fellow-citizens. Barefooted and bareheaded, with ropes round their necks, Eustace, with his devoted friends, appeared before the King. Irritated with the long defence of the town, and their former misdeeds, Edward would hear of no mercy; it was only at the urgent prayer of Queen Philippa that the lives of

Siege of Calais. 1347.

the deputation were spared. The advantages of the possession of Calais were obvious. It afforded an excellent entrance into France in the immediate neighbourhood of the King's Flemish allies, and supplied him also with a good central mart for the national commerce, which in the existing state of trade was a thing much desired. The inhabitants were therefore given their choice of being French or English; those who refused to become English were expelled, and their places occupied by English colonists, and the whole "staple"^[61] trade of England was for a certain number of years confined to this town, which accordingly became prosperous.

It is somewhat strange to observe the smallness of the effect of the late great victories. Edward seemed no nearer his objects than before he had won them. The exhaustion of his own kingdom was almost equal to that of France, and shortly after the fall of Calais, a truce was made for a few months, and afterwards from time to time extended. One cause, no doubt, of the general quietness which prevailed at this time in Europe was the presence of the Black Death, a terrible scourge, which, after passing over Europe, reached England in 1349. Its ravages were fearful. It is calculated that at least a third, if not a half, of the whole population of England was swept away. Such calculations are based partly upon the mortality among the clergy: more than one half of the priests in Yorkshire died, more than two-thirds of the beneficed clergy of Norfolk. In Norwich alone 60,000 people are said to have perished. So fearful a plague unavoidably changed the whole relation between employer and employed, and while famine was threatening the country, while farms could no longer be worked or harvests gathered for want of hands, there was a natural disinclination to continue the war.

Truce.

The Black Death.
1349.

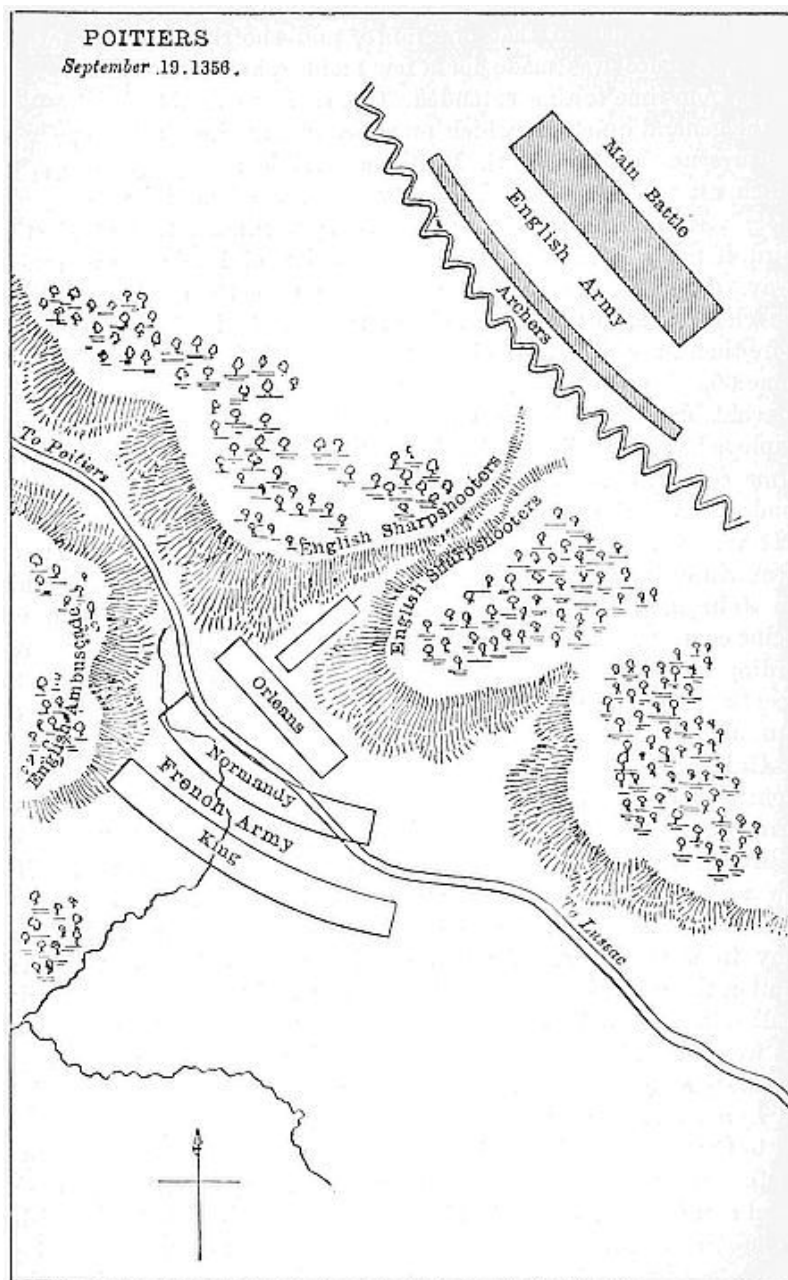
It was not, therefore, till the year 1355 that the war was renewed. Meanwhile, Philip of Valois had died, and been succeeded by his son John, and at the instigation of the Pope, following his usual pacific course, in 1354, a treaty had been set on foot. Edward, regarding his claim to the French throne as hopeless, was willing to accept a peace, if the French King would give him the province of Aquitaine in full sovereignty. English plenipotentiaries appeared at Guisnes ready to conclude the treaty, but the French envoys then declared that they would never surrender a fragment of the French sovereignty.

Renewal of the war.
1355.

Edward had no choice, therefore, but to renew the war. He now possessed two points whence an attack on France was easy; while he pushed out from Calais, the Black Prince was to lead an army from Bordeaux. As so often happened upon the northern frontier, the operations were without fruit; and the King was hastily recalled to England by the news that the Scots had surprised Berwick, and were over the Borders. The Black Prince's expedition was more successful. He marched at the foot

Destructive march of
the Black Prince.
1355.

of the Pyrenees, and all through Languedoc to Narbonne, and to Carcassonne, plundering and burning in all directions, destroying in seven weeks more than five hundred towns or villages. Such brutal and destructive war had indeed become habitual to the English.



POITIERS.
September 19. 1356.

The King's return checked the advance of the Scots. Purchasing the property and rights of Edward Balliol, he

The Burnt Candlemas.

advanced into the country, determined to treat it as a land of rebels. He systematically destroyed every building, and laid waste the country for twenty miles from the coast. But his severity was of no avail; famine again drove him home, and the Scots again hung upon his retreating forces. The following year the Black Prince attempted a repetition of his last exploit. But

Black Prince's
expedition north.
1356.

he now pressed northwards, and had reached the neighbourhood of Poitiers, when the news that a large French army was near forced upon him the danger of his situation, thus wholly separated from his base of operations. The army which threatened him was commanded by King John in person, and all the French princes were with him. So irresistible did it seem, that Edward would have listened to any good terms, but John would hear of nothing but unconditional surrender, and the English, remembering their success at Cressy, determined to fight. Again, what was regarded as their extraordinary good fortune, but which was no doubt their superior organization, secured them complete victory. On a piece of ground difficult of access, except by a narrow road exposed to the fire of the archers, and covered by enclosed country, the hedges of which were lined by the same class of troops, he awaited the assault of the French. The consequences can be easily conceived. The heavy armed Frenchmen in the road formed a target for the arrows; the confined space encumbered with wounded men and horses made the confusion irremediable. The first body of the French being thus disposed of, the Black Prince with his men-at-arms attacked the second, while the third, alarmed by a flank attack of six hundred English horse whom the Prince had detached for that purpose, left the field. Between the Prince and the second body of the French the conflict was a fierce one. It eventually terminated in the complete victory of the English, and the capture of King John.

Battle of Poitiers.

This victory was followed by a truce for two years, and Edward had time to attend more particularly to the state of his affairs with regard to Scotland. King David had been a prisoner, honourably treated, in England since his capture at the battle of Neville's Cross. More than once the national party in his country had attempted to come to terms for his release. His

Release of King
David.

character, however, was not such as to induce them to be eager on the matter; and he himself seems to have preferred the comfort of England to the position of King among his unruly subjects. He had been so obsequious, that he had twice during these ten years visited Scotland as Edward's agent, for the purpose of obtaining, if possible, the submission of those who were contending for his throne. But the Stewart, who was the head of the national party, refused the recognition of English supremacy, and no terms could be arrived at. In 1354 Edward thought he had gained the success of his plan. David was to be released for 90,000 marks. As we have seen, the intervention of the French, followed by the fearful vengeance of Edward in that expedition which is known as the Burnt Candlemas, put an end to this treaty. Now,

Peace with Scotland.

when all hope of help from France was gone, they renewed their negotiation, and David was at length released upon the promise of 100,000 marks, in ten yearly payments, a promise confirmed by the delivery of important hostages. Edward knew that he was really releasing a willing subject, and that it was probable that the failure of payment, or the party quarrels of the country, would before long put the kingdom into his hands.

He was, at all events, free to act against France. On the capture of its King, that country had fallen into the wildest disorder. The Free Companies, as the hired bodies of soldiery were called, from which both armies had been recruited, freed from their engagements, pillaged the helpless country. In their misery the lower commonalty broke out in fierce insurrections.

Terrible condition of France.

Reviving power of the Dauphin. 1359.

The people of Paris, under the Provost of the Merchants, Stephen Marcel, enacted those scenes of revolution with which that city has been too often familiar. Wearing the red cap of liberty, the mob burst into the palace, killed two of the Dauphin's most trusted counsellors before his eyes, and drove that Prince to Compiègne. Charles of Navarre, grandson of Louis X., who was surnamed the Bad, broke from the prison in which he had been confined, made common cause with the Parisian mob, roused his tenants in Normandy, where he had much property, to insurrection, and called in the English King. What with the Jacquerie,^[62] the fierce plunderings of the soldiery, the attacks of England, and the riot in Paris, the condition of France was in the last degree terrible. However, the murder of Stephen Marcel in Paris, and the success of the Dauphin in compelling Charles the Bad to enter into treaty with him, somewhat changed the aspect of affairs. Nor would the Dauphin consent to yield any part of France to his English conquerors.

Thus the time of truce wore away in useless negotiations. As it ended, Edward renewed his invasions. Sir Walter Manny poured with an army of German hirelings over Picardy and Artois. Edward, accompanied by all his sons except Thomas, whom he left at home as ruler, pushed into the heart of Champagne, tried in vain to take Rheims, where he hoped to be crowned, and purchased the neutrality of the Duke of Burgundy. But, successful and destructive as these invasions were, they

Edward again invades France.

Want of permanent results induces Edward to make the peace of Brétigny. 1360.

were only vast plundering excursions; there was little systematic action, no gradual conquest of the country, no firm basis of operations. The very destruction which they caused roused the national spirit, and while Edward pushed to Paris, and tried in vain to excite the Dauphin to a general engagement, the Norman fleet was ravaging England in the neighbourhood of Winchelsea. Moreover, the wasted country could not support the invading armies unassisted by a proper commissariat, and as Edward, retiring from before Paris, was met by a fearful tempest, which seems to have forced upon him the difficulties of his position, he

expressed himself ready to listen to the terms of peace which the envoys of the Legate and the Dauphin offered him. Thus, on the 8th of May, the great peace of Brétigny was made. The terms were, of course, very favourable to the English. Not only Gascony and Guienne, but all Poitou, with the counties of Xaintonge, Agen, Périgord, Limoges, Cahors, Rovergue, Bigorre, and in the north, Montreuil, Ponthieu, with Calais and Guisnes, were to be the possessions of the English crown, freed from all feudal claims. In return, all claim to the crown of France was given up, together with all claims in Normandy, Touraine, Anjou, Maine, Brittany, and Flanders. King John was to be liberated on the payment of 3,000,000 pieces of gold.^[63] Scotland and Flanders were to be left to themselves.

Edward thus appeared, even though he had not made good his claims to the crown, to have regained and put on a better footing the much disputed provinces of the south-west. But it was one thing to make such a treaty and another to secure its being carried out. The very misery of France produced a reaction. Though King John himself returned to France to collect it, his enormous ransom was not forthcoming. The barons of Poitou declared that they would not be severed from the French crown; while the hatred to the English was kept alive by the great bands of discharged soldiers, who, joining themselves to the great Free Companies, swept across France, put the Pope himself to ransom, and finding no congenial employment elsewhere, quartered themselves on the people. At the head of the party who were set against the completion of the treaty was Charles the Dauphin. His accession upon the death of John, who had honourably returned to England when he found himself unable to pay his ransom, marked a change in the national policy of France. Under the new King, it was managed that the renunciations required by the treaty should not be carried out. There were other causes also at work which promised a speedy renewal of the war.

Treaty not carried out.
1364.

By the treaty it had been expressly stipulated that the quarrel between De Montfort and Charles de Blois might be continued, though it was added, that whichever party conquered was bound to swear fealty to France. Du Guesclin, a soldier of a different class from the ordinary feudal leaders who had risen to eminence during the late wars, was sent to support the claims of Charles. The news of his arrival was at once followed by a similar step on the part of the English. Chandos, an English general, marched from Guienne to support De Montfort. A battle was fought at Auray, in which De Montfort's party were successful, and Charles de Blois killed. The Free Companies too, of which the best known are those of Calverley and Knowles, still ravaged France, and were a constant cause of complaint. The English themselves had to take part against them, but at length the means taken by King Charles to rid his kingdom of this burden again brought the French and English into

War in Brittany
continues.

Affairs of Castile.

France and England
support the rival
claimants.

Battle of Navarette.

contact. The provinces of the south-west of France had been erected into the independent duchy of Aquitaine, and given to the Black Prince, who held his court at Bordeaux. Thither, when driven from his country, Pedro the Cruel, of Castile, betook himself. This king had secured his throne by a series of murders. His natural brother, Henry of Trastamare, had fled and taken refuge with the French King. When Pedro carried his cruelty to the pitch of putting to death his wife, Blanche de Bourbon, a French princess, the court of France had determined to assist Henry to dethrone his brother, and had intrusted Du Guesclin with the duty of enlisting the Free Companies for this purpose. His attempt had been successful; Pedro had taken flight, Henry had ascended the throne. But Pedro, as a fugitive king, found ready support at the hands of the Black Prince, thoroughly imbued with the false chivalry of the day. It was whispered to the Free Companies that their loved commander had an expedition on foot. In numbers they deserted from the French army, and gathered round the Black Prince, who was thus enabled to cross the Pyrenees at Roncesvalles at the head of 30,000 men. The rival armies met at Navarette. The French were completely beaten, Du Guesclin taken prisoner.

But Pedro, again upon the throne, forgot his engagements to his protector, and the Black Prince returned to his duchy, broken in health by the hardships of the campaign, and ruined by its expenses. It became necessary to lay heavy taxes upon his subjects. Those subjects were already discontented; the barons of Poitou objected to the English supremacy, and had applied to Charles as their suzerain. Charles had been fomenting their discontent, and had sent secret envoys to raise a similar feeling among the barons of Ponthieu in the north. To these malcontents were now added the Counts of Armagnac, and other barons of the northern slope of the Pyrenees, who regarded the infliction of the tax as a breach of their privileges; and after keeping the matter in abeyance for a year, till he was ready to strike, King Charles, taking advantage of the non-completion of the renunciations, proceeded to treat the Black Prince as a vassal, and summoned him before his court. The Prince answered he would appear at the head of 60,000 men-at-arms. The threat was idle. Before, in his distressed position, he could make any vigorous preparation, the French troops had begun to conquer the outlying parts of his province, and a declaration of war was at once issued. But several years of peace, during which the exhausted country had begun to recover itself, had disinclined the English to renew the war. The King appears to have grown old before his time, and to have thought only of enjoying in pleasure the fruits of his successful youth. Preparations went on but slowly, while insurrections among the nobles, and the pressure of the French army, continually

- Taxation in Aquitaine.
- Barons appeal to Charles. 1368.
- Renewal of war.
- Gradual defeat of the English.
- Black Prince takes Limoges.
- His final return to England.
- Loss of Aquitaine. 1374.

increased around Guienne. There the Black Prince was so ill that he could not himself take the field. His brother Edmund of Cambridge, Chandos and Knowles, were indeed with him, but could scarcely make head against the insurgents. An attack upon Poitou failed, and Chandos lost his life. None of the English plans met with success. Knowles indeed, placed in command of Calais, marched again successfully to Paris, but the long wars had given birth to a new race of French generals, and Du Guesclin, now Constable, prevented any great success. At length the Black Prince roused himself, and took the field. At his mere name the French armies began to dissolve, and he advanced triumphantly to Limoges, a town he had much favoured, and on which he intended to wreak his vengeance. The wall was mined, and the town taken. Men, women, and children, to the number of 3000, were pitilessly murdered. In the midst of this cruel slaughter, the Prince could show his knighthood by sparing and honouring some French gentlemen who made an unusually gallant resistance. It was his last triumph. Early in 1371 he returned to England, broken and dying. There is no need to trace the progress of the war further. The gradual advance of the French could not be checked. The English armies might march far into the country, as one under Lancaster did in 1373, but the French invariably avoided a general action; and thus, by 1374, England had lost all her possessions in France, with the exception of Calais, Bordeaux and Bayonne, and a few towns upon the Dordogne.

The sequel of the Black Prince's friendship for Pedro of Castile deserves to be noticed. Upon the withdrawal of the English, Henry of Trastamare again conquered Pedro, and the brothers having met in Henry's tent, a quarrel ensued, terminating in a personal struggle and the death of Pedro. Henry thus regained the throne; and subsequently two daughters of Pedro married two of Edward's sons, Lancaster and Cambridge. Upon the Duke of Lancaster's assuming the title of King of Castile, Henry entered actively into the war, and at a great naval battle off Rochelle in June 1372, completely destroyed the English fleet under the Earl of Pembroke. At length a truce was agreed on, which, though it never ripened into a peace, continued from time to time during the rest of the reign.

Naval victory of the Spaniards. 1372.

A strange change of fortune thus clouded the end of what promised to be a glorious reign. Edward, making war in the spirit of a knight-errant, and trusting completely to the courage of his troops on the day of battle, had neglected all the precautions which the conquest of a country requires. He had been successful neither as a strategist nor as a statesman, and his war with France, adorned with splendid victories, and for one moment promising to establish on a firm footing the English power in the South of France, had ended in a more complete overthrow of that power than had been seen since the time of King John. It was natural that the close of such a reign should be marked by some expressions of discontent among the people. Old before his time, in the hands of a woman of the name of Alice Perrers, whose ostentation was constantly

Discontent in England.

shocking the public eye, Edward had fallen under the influence of bad advisers, and had let the reins of government slip into the hands of John of Gaunt, his third son.

To understand the politics of this time, we have to rid ourselves of both the names and ideas of the present day. The lines which divided classes were much more distinctly marked.

Politics of the time.

Political life was confined entirely to the upper ranks. The House of Commons, which we are in the habit of regarding as a popular assembly, and which was, in fact, the most popular assembly of that time, was in part entirely aristocratic, in part representative of the moneyed interests of the country. Below this no class could make its voice heard at all, and this moneyed and aristocratic House of Commons was only beginning by slow degrees to force itself into political power. It had, in fact, consisted at first of two separate orders,—the knights of the shire, who represented the lesser nobility, and the burgesses. The knights had naturally joined without difficulty in the deliberations of a baronage who were socially their equals; the burgesses had busied themselves almost exclusively with financial questions touching their own order. Various causes had gradually tended to draw the two lower orders together, and by the beginning of the reign of Edward III., the division of Parliament into two Houses, of which the lower consisted of knights and burgesses, had been completed. Indeed, the Act of 1321, passed when Edward II. was victorious over the barons, had acknowledged the claims of the burgesses to share in the proceedings of Parliament. The practical government of the country had hitherto been in the hands of the House of Lords. There were thus three distinct classes, the baronage, the upper or represented commonalty, consisting of knights and burgesses, and the lower commonalty. Power was as yet in the hands of the baronage. When, therefore, no common cause was driving the baronage to united action, as among all governing classes, there was certain to be a difference of view, and the baronage would be divided into parties. On the other hand, the upper Commons, just forcing their way upwards, were inclined to be sometimes subservient to the wishes of the Barons, sometimes ready to join that one of the baronial parties which seemed to give them the greatest promise of political assistance. The lower, or unrepresented Commons, unable to make themselves heard, had been of no political account; although a series of events had lately contributed to put them in such a position that their friendship was worth having, and to enable them soon to speak with arms in their hands, in a way which was very terrible. Each of these classes had its own particular interests, and made their combinations with the other classes to suit the advance of those interests. The Barons desired power, the higher Commons good administration, especially of the finances; the lower Commons such improvements in their position as they afterwards claimed under Wat Tyler. Hitherto, in the main, the interest of the baronage had been the restriction within fixed limits of the royal authority; they had hitherto been the guardians of the constitutional growth of the country, and their rebellions and opposition, whatever selfish leaven may have been

mixed with them, deserve to be regarded as efforts towards popular liberty. About the period which we have now reached, this guardianship of the Constitution passed into the hands of the upper Commons. The Barons themselves having now acquired a preponderance in the government, it was their encroachments rather than the King's which had to be guarded against. In principle, the safeguards of the Constitution had been established by Edward I., and were therefore no longer the subject of contention. The baronage was no longer interested to secure power, but to enjoy a power already secured. They thus fell into parties whose real object was to appropriate that power. For that purpose, like other political parties, the rival Barons would seek to attach to themselves any of the other sections of society, and would therefore adopt those principles and those party cries which seemed to promise them the most success. It becomes, therefore, impossible to say that this or that baronial insurrection was popular or constitutional. For their own objects, the most disorderly Barons might attach themselves to the Commons, to the lower classes, or to the King. Their divisions had, in fact, become party struggles for power.

Now the chief questions at that time exciting England were the position of the Church, the continuation of the war with France, and the management of the finances. On any of these questions the baronage might form itself into parties, which might seek their own advantage by adopting the interests of other sections of society. It is in this way that must be explained the apparent contradictions in the conduct of the Parliament at the close of Edward's reign. For many years there had been growing a strong dislike to the Church in England. The oppressions of the Popes, the selfish character of their government at Avignon, the loss of spirituality on the part of the higher clergy, from whose ranks the statesmen of the time were largely drawn, and the deterioration of the mendicant orders, together with the idea always prevalent in England of the supremacy of the state, had given birth to a party who desired the pre-eminence in all matters of the laity,—a party which is of course connected with the doctrinal views at this time brought forward by Wicliffe. The existence of this lay party is clearly shown by the proceedings of the year 1340, when for the first time a lay Chancellor, Sir Robert Bouchier, was appointed in the place of Stratford. When the baronage were divided, the natural leaders of the parties were the royal princes. Thus, when circumstances had put the reins of power into the hands of John of Gaunt, he fortified himself by assuming the leadership of the lay party, which found its adherents in all sections of society, but no doubt mainly among the barons, jealous of the great part played in the government by the clergy, the vast wealth which the Church held, and which is calculated at more than a third of the land, and rendered self-confident by their successes in the French war. Already schemes for the confiscation of Church property had been publicly mentioned, and the Commons, with the approbation of John of Gaunt, had in 1371 petitioned for the removal of all the clergy from the higher offices of state. The Bishop of Winchester, William of Wykeham, had surrendered the great seal, which, together with the offices of the

exchequer, had been put into the hands of laymen. There are many proofs that the class which was represented in the Commons partook strongly of the dislike to the Church. But any claim to popularity which Lancaster's administration might have advanced on this ground was destroyed by their mismanagement of the finances and the disasters of the foreign war. In fact, there is little doubt that the ecclesiastics he had displaced were far better governors than the partisans he had put in their places. Another party was therefore formed, at the head of which was the Black Prince, a party consisting of those who preferred the old system of government, and which included the higher clergy and the financial reformers. It has been pointed out that the disastrous government of John of Gaunt had found its partisans chiefly among the Barons. On the whole, therefore, the Commons attached themselves to the party of the Black Prince. For the time a restoration of good government and well-managed finance seemed to them of more importance than the overthrow of the Church, especially as their interests as a class seemed to lead in the same direction. The struggle came to an issue in the Good Parliament, which met in April 1376. The Commons presented a remonstrance, which, after enumerating their financial grievances, and asserting the mismanagement of the Government, demanded a change in the council; in other words, a change of ministry. The clergy, and William of Wykeham among them, again came into office. They were not content with this, but impeached—and this is the first instance of parliamentary impeachment—Lord Latimer, the Chamberlain. A considerable number of the other officers were arrested and thrown into prison, and Alice Perrers was forbidden to use her influence under pain of banishment. They were still discussing further reforms, when the death of the Black Prince deprived them of their chief support. Afraid that John of Gaunt had views on the succession, they insisted on the immediate recognition of the Black Prince's son; and a deputation waited on the old King at Eltham to receive an answer to their complaints and petitions. These, as might be expected, were chiefly directed against the encroachments of the Papacy, in hatred to which all parties in England joined. Still the King's reply shows the influence of the newly restored clerical counsellors. Enough, he said, had been done in the way of legislation, he would continue his personal appeals to the Pope. Parliament then separated.

It at once became plain that the Black Prince's death had again thrown the power into the hands of John of Gaunt. The power of the new Privy Council disappeared, Lord Latimer was pardoned, Peter de la Mare, the speaker of the Good Parliament, was thrown into prison, William of Wykeham was again driven from the court. The Parliament which assembled next year was thoroughly in the Lancastrian interest. Sir Thomas Hungerford, the Duke's steward, was elected Speaker, the proceedings against Alice Perrers withdrawn, and a new form of tax—a poll-tax of 4d.—granted. But the clergy did not thus easily yield their ground. They

Death of Black Prince.
Lancaster regains
power.

Lancastrian
Parliament. 1377.

Trial of Wicliffe.

attacked the apostle of the lay party, Wicliffe. He had to appear before Courtenay, Bishop of London, in St. Paul's. He came, supported by Lancaster and by the Marshall, Henry Percy, a close adherent of that party of which Lancaster was the head.

Uproar in London.

An unseemly brawl arose in the church. Lancaster threatened to

Death of the King.

drag Courtenay out of the church by the hair. The Londoners were already so ill disposed to Lancaster, that measures were in preparation to remove their mayor, and put the government of the town in the hands of a royal commission. The insult to their Bishop roused them to fury. It was only by Courtenay's intervention that Lancaster's house was saved from demolition; and a wretched man was killed under the supposition that he was Henry Percy. Lancaster escaped, and the city had to make some sort of reparation; but the quarrel was scarcely quieted when the King died. Deserted by his mistress, who is said to have torn the rings from his dying hand, and by his servants, the wretched old man died, tended only by a single poor priest.

RICHARD II.

1377–1399.

[click here to see the image](#)

Born 1397 = 1. Anne of Bohemia, 1382.
= 2. Isabella of France, 1396.

CONTEMPORARY PRINCES.

Scotland.	_France._	_Germany._	_Spain._
Robert II., 1370.	Charles V., 1364.	Charles IV., 1347.	Henry II., 1368.
Robert III., 1390.	Charles VI., 1380.	Wenceslaus, 1378.	John I., 1379.
			Henry III., 1390.

POPES.--Gregory XI., 1370. Urban VI., 1378. Boniface IX., 1389.
[Also Clement VII., 1378. Benedict XII., 1394.]

Archbishops.

Simon Sudbury, 1375.
William Courtenay, 1381.
Thomas Arundel, 1397.

Chancellors.

Sir Richard le Scrope, 1378.	Michael de la Pole, 1383.
Simon Sudbury, 1379.	Thomas Arundel, 1386.
William Courtenay, 1381.	William of Wykeham, 1389.
Lord Scrope, 1381.	Thomas Arundel, 1391.
Robert de Braybroke, 1382.	Edmund Stafford, 1396.

The young King was but a child, and there was a prospect of a long minority, affording an ample field for the intrigues of party. The position of the kingdom

Difficulties of the
new reign.

Regency.

too was such as to promise a time of considerable difficulty. The war with France had been put off by a succession of truces, but was still threatening, and England was in no condition to meet it. An invasion actually took place. French troops landed in the Isle of Wight, and laid waste the country. Moreover, the last reign had closed amidst domestic difficulties. The Lords therefore thought it right to take the settlement of the kingdom into their own hands. At a great council it was determined to form a Council of Regency, drawn from all orders represented in Parliament, to assist the great officers of the crown. The dangers which beset the country induced all parties for a time to rally honestly round the throne. The royal princes, who might become party leaders, were on that account excluded from the Council. The national party again gained the majority in the Commons, and again elected De la Mare as their Speaker. But the Commons had no wish to drive matters to extremity, or to change the existing balance of power. They fell back into their old position, which they had temporarily felt themselves obliged to desert, declined to have anything to do with matters of state; and when told to consider the best means for the defence of the kingdom, they pleaded their inability to answer, named a council of peers whom they thought qualified for the purpose, and made overtures of friendship by placing Lancaster's name at the head of the list. Lancaster, who desired power and had no fixed principles, accepted the position, first making a solemn denial of all the calumnious reports which were afloat about him, and thus again became practically Prime Minister. But the Commons showed that they intended to keep their own great object, economical management of the finances, steadfastly in view, by insisting that the subsidy, which was granted at once upon this reconciliation, should be paid into the hands of two treasurers named by themselves. They also demanded, as a further guarantee of good government, that the great officers of state and the judges should be chosen by the Lords, and publicly named to the Commons. The King was left unrestrained in the choice of those who should be about his person. At the next Parliament, held at Gloucester in 1378, they still pursued the same policy, and refused to grant a new subsidy till the accounts of that last granted had been exhibited to them. It was plain that the constant repetition of subsidies was much disliked.

Patriotic
government.

But the continuation of war in Brittany soon made fresh demands for money necessary. This war had closed by a sudden revulsion of feeling on

the part of the Bretons, who had been roused to extreme anger by the annexation of the province by the French King. But on his death they became equally hostile to their late friends the English, and drove them from the country. To supply this want of money, new methods of taxation were devised. A poll-tax, graduated from £6, 13s. 4d. on the Duke of Lancaster, to 4d. on the ordinary labourer and his family, was granted, but produced not half the sum required. Further demands were made, and the consent of the Commons purchased by reforms of the household, and by the establishment of a Parliamentary finance committee. Even the new grants thus purchased did not suffice, and at the end of the year 1380, a poll tax graduated from £1 to 1s. per head was imposed on every male and female.

Money wanted for war in Brittany. 1380.

Poll-tax.

The exaction of this tax, which fell proportionately with much greater weight on the lower, unrepresented orders, produced the great insurrection known as Wat Tyler's insurrection. Many causes had been at work, not in England only, but throughout Europe, to excite discontent among the labouring classes. The severity and rough inquisitorial spirit with which the present impost was collected was beyond what they could bear. In Essex, under Jack Straw, at Dartford, under Wat Tyler, whose daughter had been subjected to insult, and at Gravesend, where Sir Simon Burley had laid claim to a labourer as his villein, insurrections broke out. Wat Tyler was chosen for the general leader, accompanied by John Ball, the popular itinerant preacher. But the insurrection was not confined to these counties only, it extended from Winchester to Scarborough. It was in all respects a revolutionary movement. Manor-houses were pillaged and destroyed, and the court rolls, where the villeins' names were written, were burnt. Officials, those who had served on juries, justices, and even lawyers, were put to death. The rebels were particularly embittered against John of Gaunt, swearing to admit no king of the name of John, and refused all taxes except the customary tenth and fifteenth.

Insurrection of the Villeins. 1381.

The insurgents entered Southwark, and pillaged the palace of Lambeth; on the following day penetrated into London, freed the prisoners in Newgate, destroyed Lancaster's house of the Savoy, and showed their

Death of Wat Tyler.

Insurrection

national spirit by killing some fifty Flemish merchants. The King was alone in London; he offered to meet them at Mile End. He there received their petition, which demanded not political but social rights,—the abolition of villeinage, the reduction of rent to fourpence an acre, the free access to all fairs and markets, and a general pardon. The King granted their demands; and charters were at once drawn up for every township. But, in the meanwhile, the more advanced leaders, disliking the moderation of the bulk of their followers, broke into the Tower and ransacked it. On the following day, the King came across these men in Smithfield. Tyler was at their head. He advanced to have a personal interview with the King, and was suddenly killed by Walworth, the Lord Mayor, as he played with his dagger, an action which was construed as a threat. The young King, with remarkable presence of mind, rode forward to the astonished rebels, declared that he would be their leader, and induced them to follow him to Islington, where they found themselves in the presence of Sir Robert Knowles and 1000 soldiers. They at once yielded, and demanded the King's mercy; he declined to punish them, and dismissed them to their homes. When time had thus been gained, the crisis was over. Richard found himself at the head of an army. Several defeats and numerous executions broke the spirit of the rebels, and the insurrection was suppressed.

suppressed.

In autumn the Parliament met. The King declared he had recalled his charters, but asked the Commons to consider the propriety of abolishing villeinage. The ignorance and want of sympathy with the feelings of the class below them, which existed among the representative Commons, was then made evident. No men, they said, should rob them of their villeins. The charters were therefore finally revoked; and not only the charters, but the general pardon also: at least 250 persons were exempted from it. Meantime, the House of Commons made political capital out of the insurrection; they declared that the cause of the insurrection was not the social oppression of the labourer, but their own grievances, purveyance, the rapacity of the officers of the Exchequer, the maintainers, or bands of robbers who carried on depredations in some counties, and the heavy taxation. This was followed by a further inquiry into the royal household.

Parliament rejects the villeins' claims.

Lancaster continued in power for three years longer. His ministry was unmarked by success; and the feeling against him, which had been exhibited in the insurrection, found frequent expression. With regard to Church reform he had completely changed his tactics. When Wicliffe passed beyond his attacks upon the abuses of the Church, and touched its doctrine, questioning even the fundamental point of Transubstantiation, Lancaster withdrew his support. Although Wicliffe was so far upheld by Parliament, that a statute which had been passed for the suppression of his “poor priests” was repealed, he was unable, without Lancaster’s assistance, to withstand the power of the Church, and was compelled to make some form of recantation before he regained his living of Lutterworth, where he died in 1384. But Lancaster reaped no advantage from this change in his conduct. Every disaster was still laid to his charge, and the old suspicion that he harboured covert designs upon the throne still clung to him. The great schism was at this time dividing the Catholic Church. For seventy years the Papacy fixed at Avignon had been the servant of the French king: the Babylonish captivity the Italians called it. Gregory XI. restored the Papacy to Rome, but his death was followed by a double election. The French cardinals elected Clement VII., the Roman cardinals Urban VI.; and the Christian world was divided in its allegiance. In the interests of Pope Urban, who was received in England, the Bishop of Norwich, a remarkable prelate, who had distinguished himself in the suppression of the late insurrection, was engaged to lead an army against France. He selected the old road of attack. The Flemish citizens, in spite of the death of their great leader, Philip Van Artevelt, and of a crushing defeat they had received from the French chivalry at Rosbecque, continued their enmity to France. The Bishop was to act in concert with them.

Lancaster’s
government.

He deserts Wicliffe.

His expedition failed; it was currently reported that Lancaster had thwarted it. A certain friar came to the King offering to prove traitorous designs on the part of Lancaster. Sir John Holland, the King’s half-brother, and a partisan of Lancaster’s, into whose charge he was given, killed him. His death was no doubt suspicious. His story against Lancaster was believed. In 1385, Scotland, which had been subsidized by France, became troublesome.

Is charged with the
failure in Flanders.

Jealousy of him
thwarts the Scotch
invasion. 1385.

Richard led an army against it; but the advice of De la Pole, the King's chancellor and favourite minister, who pretended to dread the designs of Lancaster, induced Richard to retreat, and the expedition came to nothing. Moreover, still further to mark his fear of Lancaster, Richard declared Roger, Earl of March, his presumptive heir. The enmity between March and Lancaster, in which perhaps may be traced the first beginnings of the Wars of the Roses, had been already marked in the last reign. Peter de la Mare was the steward of the Earl of March, while Sir Thomas Hungerford, the speaker of the following Parliament, occupied the same office in the household of Lancaster.

John of Gaunt, thus mistrusted and opposed, was glad to embrace the opportunity of leaving England, which was offered him by affairs in Spain, where he wished, in union with the Portuguese, to push the claim to the throne of Castile, which he derived from his wife, the daughter of Pedro the Cruel.

He is glad to have to support his claims in Castile.

He was at once succeeded in his influence and in his party leadership by a far more dangerous man, another uncle of the King, Thomas, Duke of Gloucester. Meanwhile the politics of England had changed, and had fallen back into their normal condition. We have seen that the King had been allowed the free selection of his own household. He had surrounded himself by men not drawn from the higher baronage.^[64] His chief favourite

Gloucester takes his place.

The King's favourites.

Gloucester heads an opposition.

was De Vere, whom he had made Earl of Oxford, and subsequently Duke of Ireland, and to whom he had intrusted the government of that disturbed country; while his ministers nominated by Parliament were also men who owed their position to their capacity rather than to their birth. The chief of these was Michael de la

Change of ministry demanded.
Impeachment of Suffolk.

Pole, the chancellor, whom the King had raised to the rank of Earl of Suffolk. He was thus open to the old charge of favouritism. The Lancastrian party had set themselves against his favourites. Already one of them, the Earl of Stafford, had been killed by Sir John Holland, and Gloucester found no difficulty in forming a powerful party among the barons, taking for his cry the reform of the administration, and seeking to excite the national

feeling, by keeping alive the animosity against France, towards which country Richard was much drawn; while the specious pretext of reform as usual attracted the Commons. In 1386, Gloucester took advantage of a threatened invasion from France to produce charges against the administration. The King's officers, it was said, had used the public revenues for their own purposes; the Commons had been impoverished by taxes, the landowners could not get their rents, and tenants were compelled to abandon their farms through distress. The three last of these charges were traceable, not to government, but to economical changes, but served well as a party catchword; and so successful were they, that in a Parliament held at Westminster, Commons and Lords united in demanding a change of ministry. After a contest of three weeks the King yielded. Suffolk was dismissed, and his dismissal was immediately followed by his impeachment. The charges brought against him were held to be partly proved, and he was sentenced to be kept in prison during the King's pleasure. After the dissolution of Parliament he was released. His place was taken by Arundel, Bishop of Ely.

This blow, though severe, was followed by a worse one. The old baronial policy of establishing a committee of reform was renewed. To intimidate the King, the statute of the deposition of Edward II. was produced in Parliament. The estates having declared that unless he granted their requests they would separate without his permission, he was finally compelled to authorize a commission of eleven peers and bishops, to inquire into abuses and regulate reform. Their duty was a very wide one, touching the household, the treasury, and all complaints out of the reach of law. The partisans of Gloucester formed the majority of this committee, of which the Duke himself and his chief friend, Lord

Arundel,^[65] were members. It was arranged that the power of the committee should last for one year only. It does not seem to have brought to light any great abuses, nor was its government sufficiently superior to that which had preceded it to justify its establishment. Richard had no mind to submit to a limitation of his prerogative which seemed so little called for. He set to work with his usual secretiveness. At Shrewsbury, and again at Nottingham, he inquired of the judges how far the late conduct of the

Commission of
Government.

The King prepares a
counterblow. 1387.

The five Lords
Appellant in arms
impeach the King's
friends.

Affair of Radcot.

reformers was constitutional. Their reply was strongly in favour of the prerogative. They declared the late measures treasonable, and its authors liable to capital punishment, denied the power of Parliament to impeach, and declared Suffolk's condemnation false. Fulthorpe, one of the King's judges, though sworn to secrecy, at once told Gloucester of the King's questions. Consequently, when Richard had made all preparations for a sudden coup d'état, he was alarmed to find that Gloucester, Arundel, and Nottingham, had reached London the same day as himself, with a numerous army. At Waltham Cross the Earls of Derby and Warwick joined them, and they proceeded to appeal, or, as we should say, accuse of high treason, the Archbishop of York, the Duke of Ireland, the Earl of Suffolk, Robert Tresilian the judge, and Sir Nicholas Brember, whose influence had been employed to secure London for Richard. The accused sought refuge in flight, and the Duke of Ireland succeeded in raising troops in the West, and attempted to bring the matter to the issue of battle. But the Lords Appellant were beforehand with him; he was unable to cross the Thames, as he hoped, at Radcot; and being there surrounded, with difficulty escaped by swimming the river.

The appellants, now masters of the kingdom, made a thorough clearance of all who could be considered King's favourites. Eleven of his intimate friends were imprisoned, a number of the lords and ladies of the Court removed, and in February 1388, a Parliament known as the "Wonderful or merciless Parliament" assembled, which, in a long session of 122 days, was employed almost entirely in destroying the enemies of Gloucester. His appeal was heard, and all the five accused gentlemen were found guilty; three escaped, Tresilian and Brember were put to death. Some of the judges were likewise executed, some pardoned on the intercession of the bishops, and four knights, old and intimate friends of Richard, of whom Sir Simon Burley is the best known, were also impeached and beheaded. Parliament closed with an ordinance, declaring that the treasons for which these men had suffered were not established by any statute, and should not form a precedent; and by exacting a repetition of Richard's coronation oath. For a year, Gloucester ruled at his will, without any marked success. The Percies were defeated by the Scotch at Otterbourne, and an invasion from France was only averted by the incessant dissensions which had arisen in that

The Wonderful Parliament.

Gloucester's unimportant government.

country during the minority of Charles VI. Before the end of Gloucester's administration, however, truces were concluded with both Scotland and France.

Richard appears to have been able to dissemble profoundly; he had been most submissive to his conquerors, who believed their power safe, when, at a council in the spring of 1389, he quietly asked Gloucester how old he was. Gloucester replied that he was twenty-two. "Then," said the King, "I am certainly old enough to manage my own affairs. I thank you, my lords, for your past services; I want them no longer." He then proceeded to change the ministry, removed Arundel from the chancellorship,^[66] and took the government into his own hands. Although the ministry was changed, there was no great reversal of policy, no punishment of the Lords Appellant. On the contrary, the King, under the advice, it is probable, of William of Wykeham, seemed determined to ignore party, and to attempt a moderate government. He declared that he would be bound by the decisions of the late Parliament, employed among his most intimate counsellors, Derby, who had been one of the appellants, and the Duke of York, who had been on the commission of 1386; and it would appear that he did not even remove Gloucester from his councils. In pursuance of this national and healing policy, in the following year, the chief officers temporarily resigned their offices, that their administration might be examined. The Commons found not the slightest cause of complaint, and they were reinstated at once. This peaceable state of affairs continued till 1397. During the whole of that time, we must believe that Richard was only waiting his opportunity. There were indeed some signs of his secret thoughts. Some of his banished friends were relieved or obtained places in Ireland. On the death of Robert de Vere he succeeded in obtaining the Earldom of Oxford for his uncle, Aubrey de Vere; and a year or two afterwards he brought his friend's body, which had been embalmed, from abroad, and before it was reburied, had the coffin opened, and gazed with much emotion upon the dead man's face. But outwardly such unity reigned, that national matters could be considered, and the period is marked by the completion of the quarrel with the Papacy with regard to Provisors, and by an expedition to Ireland.

Richard assumes
sole authority.
1389.

England, it has been said, embraced the cause of Urban VI. In his gratitude he had given the King the nomination to the two next vacant prebends in all collegiate churches. But the appointment by the Pope of an Abbot of St. Edmunds, in 1380, produced a repetition of the Statute of Provisors of Edward III.'s reign.^[67] Still the laws were repeatedly evaded, the Pope always presenting to benefices which fell vacant at Rome. As the cardinals generally died at Rome, this was a large exception. In 1390, the 29th of January of that year was settled as a term. All Provisors before that year were legal; all after, together with the introduction of any Papal letter of recommendation, absolutely illegal. In 1391, the new Pope, Boniface IX., declared all these enactments void, and proceeded to grant Provisors. Consequently, in 1393,^[68] was drawn up the final Statute of Provisors, or Præmunire. By this any man procuring instruments of any kind from Rome, or publishing such instruments, was outlawed, his property forfeited, and his person apprehended.

Final Statute of Provisors.

The following year the King made an expedition to Ireland. The condition of that country had long demanded attention. Since the invasion of the Bruces, the native tribes had made considerable advances on all sides, but their domestic dissensions prevented any permanent success. A far greater evil was the condition of the Irish of old English race. The want of strong central authority had allowed the individual chieftains to establish something like royal power in their own dominions; they were gradually falling back into barbarism, and in a way very unusual among conquering races, had been gradually adopting the manners and laws of the conquered race around them. Among them, as among the natives, perpetual discord and fighting existed. So disorderly were they, that Edward III. had ordered that no official places should be occupied except by men born in England; and Lionel of Clarence, who had been appointed to bring the country into order, had, in 1364, procured, at the Parliament of Kilkenny, statutes, directed not against the Irish, but against the English settlers, making the adoption of Irish habits, and of the Brehon or Irish law, high treason. Earlier in the reign, Richard had appointed his favourite De Vere to restore order. His success had been prevented by the attack upon him by the Lords Appellant in 1387. The King now, in the year 1394, determined to go in

Expedition to Ireland. 1394.

person. His measures were just and moderate, and he succeeded in inducing all the native princes to swear fealty.

He was called home by the excesses of the Lollards, as the followers of Wicliffe were called. They had prepared a petition, containing a forcible exposition of their own tenets, and a vigorous attack on the priests.

Marriage with
Isabella of France.
1397.

The Church demanded the presence and protection of the King, who, on his arrival in England, expelled the Lollards from Oxford. At the same time he contracted a marriage, consonant with his known French views, with Isabella, the daughter of Charles VI. of France, a Princess of ten years of age. In 1397, the marriage ceremony having been performed, the young Queen was crowned. It seems possible that it was in reliance upon this new friendship with France that the King now determined to execute his long dissembled vengeance. The seven years of peaceful government had allayed suspicion, and won him popularity. Lancaster, who had returned from Spain, had ceased to take a very prominent part in the government, and had, moreover, been gratified by the legitimization of his children by his mistress Catherine Swinford. His son, the Earl of Derby, had deserted his former associates, and was one of the King's advisers. Mowbray of Nottingham, another of the Lords Appellant, had also been won over. The Duke of York had throughout been friendly disposed to the King. On the other hand, Gloucester had been continually acting in a spirit of covert hostility. He had made political capital by opposing the French match, and by publicly speaking against the extravagances of the royal household, which appear to have been very great. Froissart, indeed, mentions a story, which however needs confirmation, that he had combined with Warwick and the Arundels in a plot to seize the King.

Richard carried out his plans of vengeance with his usual secrecy and skill. Suddenly, Warwick, Arundel and Gloucester were apprehended, and sent to different and distant castles. He then proceeded against them as they had themselves proceeded against his friends. They were appealed of treason by a number of Earls in the royal interest. Rickhill, one of the justices, was sent to Calais to obtain Gloucester's confession, and a Parliament was assembled at Westminster, in which the good will of the Commons had been already secured. As a preliminary measure, all pardons

Richard's
vengeance after
seven years' peace.

to Gloucester, Arundel and Warwick were revoked. An impeachment was then brought against the Archbishop Arundel, and the appeal against the Duke and the two Earls was heard. Arundel refused to plead anything but his pardon. This having already been revoked, he was at once condemned and executed. The Earl Marshall, to whom Gloucester had been intrusted, was ordered to produce him, but replied that the Duke was dead. It seems almost certain that he had been murdered by Richard's orders at Calais. The Archbishop was condemned to banishment for life; and Warwick, who pleaded guilty, was exiled to the Isle of Man. Lord Mortimer, who was also involved in the accusation, fled to Ireland, and was outlawed. A shower of new titles was lavished on the obsequious Lords. Derby and Rutland were made Dukes of Hereford and Albemarle; Nottingham, Duke of Norfolk; De Spencer, Neville, Percy and Scrope, respectively, Earls of Gloucester, Westmoreland, Worcester and Wiltshire. A statute was passed making it treason to levy war against the King, and declaring the penalty of treason against any one who should attempt to overthrow the enactments of this Parliament. The next Parliament at Gloucester, in 1398, acted in the same obsequious manner. The Acts of the Wonderful Parliament were repealed. To the grant of a subsidy was added the tax on wool and hides for life; and a permanent committee of twelve peers and six commoners was appointed to represent Parliament for the future.

The new Dukes of Hereford and Norfolk alone remained unpunished of the old Lords Appellant of 1386. These two men, who had shared in the destruction of their former associates, had now quarrelled, and Hereford brought a formal charge against Norfolk of treasonable conversation. To the Parliamentary committee this question was now referred, and by them laid before a court of chivalry; at the same time the committee enacted laws in the royal interest, exactly as though it had been the Parliament. It was agreed that the dispute between the two dukes should be settled by the arbitrament of battle. The lists were prepared at Coventry, but as the combatants were about to engage, the King took the matter into his own hands, and, on what principle it is impossible to conceive, punished both; Hereford he banished for ten years, Norfolk for life. Richard had thus destroyed his old enemies, rid himself of the constraint of Parliament, and was practically despotic. "Then the King began to rule," says Froissart, "more fiercely than before. In those days there were none so great in

Hereford and Norfolk banished.

England that durst speak against anything that the King did. He had council meet for his appetite, who exhorted him to do what he list. He still kept in his wages 10,000 archers. He then kept greater state than ever, no former king had ever kept so much as he did by 100,000 nobles a year.”^[69]

He acted in accordance with his position. He raised forced loans, meddled in the administration of justice, and went so far as to declare no less than seventeen counties outlawed, for having, as he asserted, favoured the Lords Appellant before the affair at Radcot Bridge. But he overrated his real power. His government had been accepted because it had been constitutional and moderate. The change which was evident since his acquirement of the sole authority induced the people to give the credit of that moderation to Hereford, who had been a chief member of that council, and who was a popular favourite. Thousands had attended him as he left England for his banishment, and excitement spread through the country when the King, in contravention of his promise and of law, refused him the succession to his father’s title and property upon the death of that prince. Regardless of the discontented feeling of the people, Richard unwisely determined upon another expedition to Ireland, to complete his work there, and to exact vengeance for the death of the Earl of March, whom he had named as his successor. The kingdom was thus left vacant, and in the charge of the Duke of York, whose subsequent conduct proved that he shared in the national feeling.

His arbitrary rule alienates the people.

During his absence in Ireland, 1399.

The new Duke of Lancaster took advantage of this act of folly to land at Ravenspur in Yorkshire, declaring loudly that he came but to demand his family succession. The Percies, the old friends of the Lancastrians, received him with gladness, and his march southwards soon became formidable. The King’s ministers, Wiltshire, Bussy, and Greene, fled for refuge to Bristol. Thither York also betook himself, thus leaving the capital open. Lancaster, now at the head of a powerful army, also drew to the West. As he came within reach of the Duke of York, civilities were exchanged, which proved that he had no opposition to fear from him. Bristol opened its gates. The King’s favourites were seized and executed, and the King, who had landed in Wales from Ireland, with the Duke of Albemarle and other nobles, saw his

Hereford returns and is triumphantly received.

Captures Richard.

army rapidly dissolve, and had to take refuge in the castle of Conway. Henry of Lancaster found himself joined by all the nobility. He commissioned Percy of Northumberland to procure a meeting with Richard at Flint. The proposed meeting was a trap to catch the King; as he rode from the castle with Northumberland, Richard found himself in the midst of hostile troops. When he was introduced to the presence of Lancaster, he knew that his fate was sealed, and with his peculiar power of accepting circumstances, was entirely submissive in his behaviour.

A Parliament had been summoned to meet in September; but before that time, Richard was induced to make a formal resignation of the kingdom. Not content with this, when the Parliament met, Henry caused the coronation oath to be read. It was contended that Richard had broken it, and therefore forfeited the crown. The Bishop of Carlisle alone raised his voice in favour of the fallen King, and demanded that he should at least be heard in his defence. His interference was, of course, in vain. The deposition of the King was voted. The throne being thus vacant, the Duke was not long in laying claim to it. In a curious document, in which he mingled the claims of blood, of conquest, and the necessity of reform, he put forward his demands. They were unanimously admitted. The Archbishop of Canterbury took him by the hand and led him to the throne. It was his cue to act with strict legality, yet he could not afford to do without a Parliament so obviously devoted to his interests. As that Parliament had expired by Richard's deposition, he immediately issued writs for a new one, returnable in six days, thus rendering it absolutely impossible to make any new elections. It was with the Parliament thus secured that he began his reign.

Makes him resign
the kingdom.

STATE OF SOCIETY.

1216–1399.

Although the narration of political facts implies much of the history of the country, it leaves out of sight much that touches the real life of the people. During the last hundred years great social changes had been going on, and great social progress made. In fact, till the end of the reign of King John, the social, like the political history of the country scarcely deserves the name of national. The description of any feudal society will in a great measure suit it. But the national existence had been worked out in the reign of Henry III., and was completed and finally established by the great time of Edward I. From that time onwards, continuous change and growth had been visible, and that growth had been national. The great fact of all modern history is the breaking up of the feudal and ecclesiastical system of the middle ages, and the introduction, as political and social elements of weight, of the middle and industrial classes. It is the beginning of that process which constitutes therefore the history of this period. The points to observe will be, therefore, the growth and advance of the commons, the decay of the aristocracy. But it is as yet quite impossible to speak of the commons as one body. The line which divided the class which sent its representatives to Parliament, and which was already becoming of political importance, from the mass of the labouring part of the nation, was very clearly drawn, and the characteristics, the employments, and the feelings of the one class, as well as the causes of their advance, will be very different from those of the other. A brief sketch has been already given of the gradual introduction of the commons into Parliament. But it still remains to explain and illustrate the sources of their wealth, their aristocratic tendencies, and the prevalence among them of a strong distaste for the pre-eminent position occupied by the Church. It was their wealth which gained them admission

to Parliament, and the way in which that wealth was gained which greatly influenced their views after they had been admitted.

Trade, on which their riches depended, was as yet in its infancy; and the views which regulated its management as yet too crude to be spoken of by such a dignified title as political economy. As far as they went, however, they were very clear, and were, in fact, though afterwards improved, the same in spirit as those which existed in England before the time of Adam Smith. Observing only the obvious fact, that the possession of money enabled a man to purchase whatever he wanted, early traders conceived the idea that money was wealth, and that nothing else was. And as the wealth of the nation was of the last importance, both to the governor and to the governed, and as trade was the chief method by which money could be supplied, and by which money might be drawn from the country, the regulation of trade became one of the most important duties of the King and the Parliament. Now money being the sole wealth, in that regulation of trade it became necessary to aim first at the introduction of money; secondly, at its retention. It was to these objects that the frequent ordinances and statutes with regard to trade were directed. Although very various and, as such regulations were almost certain to be, frequently inefficacious, they were energetic and simple. England was not as yet a manufacturing country. Its trade was an export trade of raw materials, principally derived from sheep farming on the vast spaces of uncultivated land which then existed, and from its mineral wealth. Its principal commodities were wool, sheep-skins, or wool-fells, and leather, together with tin and lead.^[70] Only the coarsest kind of cloth was manufactured; sometimes intentionally rough and coarse, to be changed into fine cloth afterwards in Flanders, but exported as cloth to avoid the tax on wool. Primitive trade, when the seas were beset with pirates, had been carried on chiefly inland, and great fairs, such as that of Troyes in France, had been established under the guardianship of feudal lords, who guaranteed the safety of the merchants for a toll. Domestic trade was carried on in the same way, and one of the forms of royal exaction was to open a fair, and insist upon all other shops and other places of sale being closed during its continuance.^[71] As the seas became safer, and the mercantile spirit of the Flemings rose, the great free cities of Flanders became as it were perpetual

Trade.

The staple.

fairs, and were known as staples, from the German “*stapeln*,” *to keep up*. In order that trade should be well under command, it was necessary that it should be carried on in few channels. The English government had therefore chosen some of these Flemish towns, and ordered that all the chief productions of England, which have been already mentioned, should be sold in those towns, and nowhere else. These goods were therefore called staple commodities; the merchants who traded in them, the merchants of the staple. And this staple trade was put under an organization—there being a mayor, a constable, and courts of the staple. At these staple towns, the King’s customers, or custom-house officers, by means of this organization, had every bargain under direct supervision; and every bargain thus supervised was obliged to be made for a certain sum of actual coin, the government thus securing a continual flow of silver into the hands of the English merchants. The staple towns were frequently changed. To reward any particularly faithful ally, or to raise the importance of any particular town, as for instance Calais, the staple was removed to that Prince’s province, or to that town. The proportion of each bargain to be brought over in coin was also constantly varying. Indeed, the frequent interference of government in such matters was not among the least of the restrictions of trade. Edward III. was said, at one time of his life, to have had a different plan every month. Upon the whole, however, the principle was the same. Amongst the most remarkable plans of Edward III. was one for keeping the evident riches that accrued to the staple towns within the limits of England. In the twenty-seventh year of his reign he named nine towns in England which were to be the exclusive selling places of the English staple commodities. For an Englishman to carry such commodities beyond the seas was punishable by death. As Edward could not protect the foreign merchants visiting his staples, and as the additional trouble of purchasing goods at them naturally lowered prices, this plan did not answer. It was, in fact, suicidal for an island people, since it destroyed all object in the keeping up a mercantile navy. It was therefore speedily abandoned; and after the reign of Henry VI., Calais became the sole English staple town. A similar attempt was made in the fourteenth year of Richard II., when it was enacted that no Englishman should buy wool except of the owners of the sheep, and for his own use. The export trade was thus again for a time given over to the foreign merchant, for the sake of securing to the wool-grower the profits of the retail as well as the wholesale trade; the effect was

naturally a decrease of purchasers, which reduced the growers to great distress. The government had, by insisting on money payments in every bargain, secured an influx of silver; but as the nation was too far advanced in civilization to do without foreign products, there were a certain number of foreign importers, who threatened in their turn to withdraw it again. One or two attempts were indeed made to confine English trade to the limits of the country. Thus, it was the view of Simon de Montfort, who disliked all extravagance in dress, that the production of the country was enough to supply its own inhabitants; and in 1261, and in 1271, exportation of English wool was forbidden, and people acquired the habit of dressing in undyed native cloth. Such primitive patriotism could not last in an advancing nation. Trade soon resumed its old course. The greater part of the foreign merchants were Germans, and to keep them under government supervision, they were formed into a guild, given certain privileges, allowed to possess a guild-hall, and are generally known as the Merchants of the Steelyard.^[72] Other alien merchants there also were, who were protected by law; notably by the great statute of Edward I., “De mercatoribus.” But although the goods they brought were necessary, their bargains, no less than those of the staple merchants, were under supervision. They were bound to employ a certain proportion of the money obtained from their sales in English goods.^[73] Moreover, all foreign merchants were held to be mutually responsible for each other’s debts. Thus the retention of the silver in England was also secured, while, to avoid any varieties in the value of money, English coin alone was current, and foreign coin had at once to be exchanged at the royal exchangers.

Since money was so important an object, the coinage was naturally regarded with great care. It was an exclusive royal monopoly, and in the reign of Edward III. the punishment of death was enacted against false coiners. There was a constant dread lest in the exchange England should be the loser. The belief was prevalent that the value of the money depended upon the denomination. It had not yet entered men’s minds to think that it was but another commodity, worth exactly its intrinsic value, which no change of name could alter. Up till the reign of Edward III., although clipped and lightened in use, and although Edward I. had begun the bad practice of depreciating the coin by diminishing its legal weight, the coinage had been on the whole

Coinage.

but little tampered with. But between the years 1344 and 1351, the number of silver pennies made from the pound of silver had increased from 243 to 270. In that year, groats of the nominal value of 4d., but of the weight of only three and a half of the diminished penny, were issued. It is impossible to make any true estimate of the comparative value of money then and at the present time. The facts with regard to the actual amount of silver employed are these: The pound, which only nominally existed, was a full pound of silver, which would at present be coined into £2, 16s. 3d. The shilling, which seems also to have been a nominal coin, was the twentieth part of this, or 2s. 9¾d. The silver penny, which was, till the time of Edward III., almost the only coin, was therefore worth 2¾d. Edward introduced several new coins; some of gold, which, as there was no fixed proportion between them and silver, were not popular, and were recalled; and nobles of the value of 6s. 8d., or half a mark; together with the groats above mentioned. But of the purchasing value of the money thus made no fixed estimate can be given, as that of course depends upon the relative value of the articles purchased; and under the very different circumstances of those times the relative value of those articles was so different, that to compare the value of money with any one of them would give a totally false impression. It is usual to say roughly that to reach the present value of any sum mentioned it should be multiplied by fifteen.

This form of commerce, restricted as has been before explained, was certain to break down as the wants of the nation increased. There was a company of merchant adventurers founded, perhaps, though this seems very uncertain, as early as Henry III.'s reign, which had the right to trade in other commodities besides the staple, and to choose its own ports. It was the growth of this company which, in the next century, had most to do with breaking down the staple monopoly. It is needless to point out the bad effects which this constant interference must have produced. It is certain that the foreign merchant paid himself well for the extreme difficulties placed in the way of his business; while, at the same time, the difficulties of procuring foreign articles of luxury must have gone far to render the habits of ordinary life rough and simple. The same principle of restriction, which was established in the commerce of the country, existed in the retail trade. The towns of England were of natural and accidental growth, accumulations of men who had gathered for purposes of self-defence or convenience, living in accordance

Guilds.

with the ordinary habits of the country, in the same position, in fact, with regard to the king and their lords as any other society of men—citizens originally by right of the possession of land, and as the system of lordship established itself, bound to customary duties to their lord, just as the inhabitants of the country were. In the same way the citizens of the town, with the exception of these customary duties, were free and self-governing. They gradually, and chiefly by means of purchase, obtained freedom from the customary duties, and thus became independent, self-governing communities. Charters securing them freedom, in the case of the royal cities at all events, were many of them due to the necessities of the Angevin kings, and to their want of money for the payment of their mercenary troops. The close neighbourhood of the inhabitants of towns early introduced an artificial system of union, analogous to the frankpledge. Men formed themselves into what were known as frith-guilds,^[74] the members of which were mutually responsible for one another, met at periodical feasts, supported one another's poor, and in other respects performed the duties of members of an artificial family. As trade increased these guilds in the generality of cases coalesced into one, which took upon itself the direction of trade, and was known as the merchant guild. With the natural tendency of a governing body, this old merchant guild became exceedingly exclusive. New-comers to the town were not admitted to it, and craftsmen were generally excluded from its limits. In turn those craftsmen established guilds of their own, known as craft-guilds, by the warden and leaders of which the bye-laws of the particular craft were formed. Between these and their aristocratic neighbours, the merchant guild, quarrels arose, and in the thirteenth and fourteenth centuries the contest between the two was fought out, the craft-guilds eventually securing their acknowledgment and a share in the government of the town. Speaking generally, therefore, we may conceive of the towns of England as being divided into a series of guilds, the leaders of which usually formed a governing body, and which were capable of making bye-laws for their own special members. The commercial aim of these associations was, to insure good work, to insure work for all its members, and to resist that spirit of competition which was gradually rising, and which ended in the creation of two classes, the capitalist and the workman. To secure these objects, they limited the number of master workmen, admitted candidates to their association only after lengthened apprenticeships, limited the number of apprentices each

master might employ, and kept a close supervision over the articles made, which were usually authenticated by the corporation mark. ^[75]

These restrictions upon industry at the close of our period were beginning to break down; round the master workmen, there was arising a class of journeymen or day labourers, whose ranks were constantly swelled by fugitive serfs from the country; while, on the other side, individual enterprise was making itself felt, and capital was being collected, the owners of which refused to submit to the old corporation laws. The constant supervision both of trade and of the work of artisans supported the notion that governing bodies had the right to set prices on the articles under their control, a principle which was used not only by the guilds, but by the Government, as when, in the famine years of 1315 and 1316, it prescribed the exact price of all articles of food. As this had the natural effect of keeping things entirely out of the market, so that butcher's meat disappeared altogether, it was shortly repealed; the prices to be demanded for victuals were constantly subject to the supervision of justices. The assize of bread, which is commonly assigned to the fifty-first year of Henry III., 1266, regulated the price in accordance with the market prices of corn, but the assizes of other matters, such as wine, wood, fish, fowls, etc., seem to have been perfectly arbitrary.

Though thus restricted, the trade of the English was very considerable. Their ships reached into the Baltic, where a constant communication was kept up with the Teutonic order, to whom Prussia belonged. The intercourse with that order was close. We hear of Henry, the first Duke of Lancaster, the Earl of Derby, afterwards Henry IV., and Thomas of Gloucester, repairing to their assistance. But the English merchants could never secure an equality of rights in the Baltic, the trade of which was regarded as a monopoly by the Hanseatic towns. English ships also visited Spain, so that Chaucer could describe his experienced shipman as knowing all the harbours from Gothland to Finnisterre; ^[76] while Venetian and Genoese merchants, in whose hands the whole trade of the East was, brought their goods largely to England; indeed, in 1379, a Genoese merchant is said to have suggested to Richard II. to make Southampton the emporium of all the oriental trade of the North. So great was the importance of the English shipping, that Edward III. distinctly claimed for himself and his predecessors the

Ships.

dominion of the sea.^[77] The ships were, however, though numerous, of small burden; in the great fleet employed by Edward at Calais, there were 710 vessels, with crews amounting to 14,151 persons, which would give an average crew of about twenty men; and as it is said that there were about sixty-five sailors to every hundred tons, it would make the average size of the vessels very small. Indeed, a ship manned by thirty seamen, employed to convey Edward I. to the Continent, was regarded as a wonder for its size. Of navy, properly speaking, there was little or none. There were only twenty-five royal ships at Calais, the rest were all merchantmen pressed for the service. About this time it became habitual to put cannon on board ships. When used for military purposes, they were manned by troops and archers.

It has been mentioned that the trade of England was almost entirely in raw materials. The cloth manufactured had hitherto been of the roughest description, but Edward III., true to his view of keeping English trade for the English, and moved perhaps by the wealth of his allies the Flemish, attempted to introduce the manufacture of finer cloths. In 1331, he invited weavers and fullers from Flanders, and the patent exists which he gave to one John Kempe, to practise and teach his mystery.^[78] This seems to have been the beginning of the finer cloth manufactures of England.

The fact of so much trouble being taken to organize trade shows the extent of it, and in spite of all ignorance and mismanagement, it was certain to produce wealth. The standard of comfort among all classes was improving, though there was nothing like what we should now speak of as luxury. The furniture used, even in the houses of the rich, was still rude. Things which are now found everywhere, and taken as matters of course, were then valuable rarities—beds, bedsteads, and rich clothing were frequently left by will. The lists of moveables, on which taxes were paid, are exceedingly meagre. A stool or two, a chest, and a few metal pots, constituted the ordinary supply of furniture. In the houses of the very rich, art had indeed begun to show itself. The payments of Henry III. to foreign artists for paintings in his house are mentioned. Intercourse with the French, and especially with the Spaniards, tended to increase these more luxurious habits. Carpets had always been used by Eastern people, and the Moors had

- Furniture.
- Dress.
- Houses.

introduced the custom in Spain. Thus, on the marriage of Edward I., before the arrival of Eleanor of Castile, her brother, the Archbishop of Toledo, made his appearance. The hangings of his chamber excited the wonder of the people, and Edward, always inclined to ostentation, had the rooms of the bride elect similarly decorated. This is said to have been the introduction of carpets to England; but still the usual covering of the floor was rushes. There is frequent mention of payments for rushes for the King's chambers. In the matter of clothes the same change is observable. The extravagant court of Edward II. is said to have introduced parti-coloured garments. In Edward III's reign, wealth had so increased in all ranks that it was found necessary to pass sumptuary laws, sharply dividing classes by the dress they were allowed to wear, and to confine silk and the finer woollen cloths to the higher ranks, for the sake perhaps of the English wool manufactures. In Richard II.'s reign, extravagance went still further. With his Queen, Anne of Bohemia, came in the awkward habit, soon adopted by all classes, of wearing long shoes, called cracowys or pykys, which required to be tied with silver chains to the knee before the wearer could move.^[79] And Stowe says that Richard himself wore a garment made of gold, silver, and precious stones, worth 3000 marks. At the same time the rich built more comfortable houses. Castles ceased to be mere places of defence. They were at once strongholds and handsome dwelling-places. Warwick and Windsor castles may be looked on as fair specimens of the more magnificent buildings of the time. Meanwhile, though among the few, and on special occasions, splendour was found, houses, even in the streets of considerable towns, such as Colchester, the tenth city of the empire, were still built of mud. In Edward III.'s reign, it was still necessary to issue frequent orders for the cleansing of the streets of London, that his courtiers might not get into difficulties as they moved from Westminster to the City. Filth accumulated in the narrow by-lanes; and, as in the East, crows were held sacred as the only scavengers. Pavement there was none, and lanterns were hoisted from the top of Bow Church, to guide the wayfarer through the paths of the heaths that surrounded the metropolis.

Barbaric profusion in the matter of food made up for the want of substantial comforts. At the coronation of Edward I., 380 head of cattle, 430 sheep, 450 pigs, 18 wild boars, 278 flitches of bacon, and 20,000 capons, was the amount of food provided. The conduits ran wine, and hundreds of knights, who

Food.

attended the great nobles, let their horses run free, to be the prize of the first captor. In 1399, at a Christmas feast of Richard II., there were daily killed twenty-eight oxen and 300 sheep, beside numberless fowl. Richard of Cornwall, at his marriage, is said to have invited 30,000 guests; while we are told that the usual household of Richard II. numbered 10,000. But though at these great festivals there was vast abundance of meat, at other times, especially at the Church fasts, fish, often of the coarsest sort, was eaten. The wife of Simon de Montfort ate the tongue of a whale dressed with peas, and a porpoise dressed with furmenty, saffron and sugar. Enormous quantities of herrings were consumed, spoken of as Aberdeens; in six days of March, Eleanor de Montfort's household consumed no less than 3000. Her meals were diversified by dog-fish, stock-fish, conger eels, and cod. Wine was drunk in great quantities, frequently mixed with honey. Hops, though known in Flanders, had not been introduced; the beer which was largely consumed was made of any grain, and seasoned with pepper.

It was the increasing wealth of the country, especially of the mercantile classes, which had caused their introduction to Parliament. Thither they came with all the exclusive notions which their trade traditions had fostered. They were as careless of the class below them as the Barons. Indeed, it would be true to say that the feeling of the House of Commons was completely aristocratic. One part of it was of necessity entirely so: the knights of the shire, originally the representatives of the lower baronage, were elected in the county court, which was the general meeting-place of all freeholders, whether they held immediately from the crown or not. Consequently, the baronial freeholders became merged in the lesser freeholders, and the class of gentry was created. Many things had tended to the increase of that class. The breaking up of great properties, the division of property among younger children, and alienation, had increased the number of freeholders. The statute "Quia Emptores," intended as a check upon subinfeudation, had really increased alienation by authorizing it. The smaller estates, thus separated from the large baronies, had to be worked to profit, and could not be regarded merely as means of military or political influence. There thus had arisen an industrial as well as a military class of landholders. The representatives of towns, also elected upon a writ directed to the Sheriff, were, if not at first, certainly soon after elected in the county courts. This similarity of election united the two classes in feeling; and the smaller

The House of
Commons.

baronies, small landowners, and burghers, formed the body of representative Commons, aristocratic in feeling in accordance with the origin of the more aristocratic part of the class. It is thus that we find the Commons regarding the Barons as their natural leaders, not joining the crown against them as in France. Edward III., in his difficulties with Stratford, had tried to produce this combination, but had failed; and the Commons joining with the Barons, had insisted on the restoration to favour of that prelate. And thus, too, we find the Commons without sympathy with the demands of the rebels in Wat Tyler's insurrection. They had, indeed, certain grievances of their own, on which they were always petitioning, such as the encroachments of the King's purveyors, and the too great authority, sometimes misused, of the sheriffs. But apart from these particular wrongs, they may be regarded as siding as a whole with the Barons.

In their hatred to the Church they made common cause with all classes. The peculiar position which the submission of John had given the Popes in England was the primary cause of this dislike. Annates, or first-fruits, had been early demanded, but the great grievance, as we have seen, was Provisors. Against this assumption of authority, which forestalled the rights of the patrons, there was the strongest feeling. The exactions of the Pope had been strongly spoken of in the Statute of Carlisle in the end of Edward's I.'s reign. Edward II., like other weak princes, had yielded to this assumption. But in Edward III.'s reign, a series of enactments were passed, each one stronger than the last, against the interference of the Papacy. In 1343 the Statute of Carlisle had been read, and it was enacted that no more Papal instruments should be allowed in England. In 1344, the penalty of exile was pronounced against all provisors. By a Statute of the 25th year of Edward III.'s reign, it was ordained that "kings and all other lords were to present unto benefices, of their own or their ancestor's foundation, and not the Pope of Rome." If the Pope interfered the matter was to come into the King's hands, and penalties were enacted. In the 38th year of his reign these enactments were all confirmed and strengthened by the Statute of Provisors, by which the introduction of Papal Bulls and Briefs was forbidden. The strife, as we have seen, was continued in Richard II.'s reign, and finally completed in the 16th year of that King, by a statute declaring the freedom of the crown of England, which was in earthly subjection to no realm, and pronouncing the

Opposition to the church.

penalties of the Præmunire against all who should purchase or procure any Bulls from the Court of Rome; any who were guilty of this should be put out of the King's peace, and forfeit all their property. In Edward III.'s reign, also, the annual tribute, or census, as it was called, of a thousand marks was left unpaid. At the end of Edward I.'s reign 17,000 marks had become due. Edward II. paid this, and continued throughout his reign to discharge the debt. Edward III. was again strong enough to refuse the payment, and in 1366, Urban V. demanded the arrears of thirty-three years. The King laid the matter before his Parliament, and an instrument was drawn up in the name of the King, Lords, and Commons, declaring that John had acted without the advice of his realm, and that any demand for the money would be resisted to the utmost. It was not again claimed. But it was not against the Roman Church only that the popular feeling had been aroused. The Church itself had become unpopular. The wealth and idleness of the older monastic orders, the spiritual encroachments and licentious lives of the new mendicant orders, had excited popular anger. The charges against them are humorously summed up in the Song of the Order of Fair-ease, a description of an imaginary order, to which each existing class of monks subscribes a characteristic or two. The monks of Beverley give the habit of deep drinking, in which they are joined by the Black Monks; the Hospitallers dress well and amble fairly on grey palfreys; the Secular Canons are the willing servants of the ladies; the Grey Monks are given to licentiousness; while the Friars Minor, whose order is founded on poverty, will never lodge with a poor man so long as there are richer men to be found. In the same way the constant interference of the consistory courts was the cause of popular complaint. "Yet there sit somnours, six or seven, misjudging all men alike, and reach forth their roll: herdsman hate them, and every man's servant, for every parish they put in pain."

To crown all, the doctrine itself of the Church had begun to be questioned. In 1360, the name of Wicliffe first becomes prominent. His first attack was upon the mendicant orders, who had contrived to get into their hands much of the education of the country. From this time onwards he continually waged war against the abuses of the Church. The clergy, he urged, should be poor, in imitation of Christ. This doctrine he carried out by the establishment of an order of poor priests. With regard to the Sacrament, he appealed to common sense; and while not yet ready to attack the doctrine of Transubstantiation,

Wicliffe.

upheld that the elements taken were really bread and wine. But his great work was neither his assault on the wealth of the clergy, nor his attack on their doctrine, but the translation of the Bible into English, which was, in fact, an appeal to private judgment in opposition to ecclesiastical authority. His influence was very widespread. His poor priests worked largely among the lower orders, and his view of the necessity of poverty for the clergy was so in harmony with the feelings of the day, that it met with ready acceptance. As has been mentioned, the Church was too strong for him. He was obliged, when the support of John of Gaunt failed him, to make some sort of recantation, and retire to his living of Lutterworth. But his disciples are said to have numbered a third of the population of England, and when, as was inevitable, social and political views were added to their religious doctrines, they became an object of dread, not only to the Church, but also to the Government.

It is perhaps in the lower commons that social change is most obvious. The great insurrection of Wat Tyler is a sign of something more than mere temporary discontent.

The lower classes.

Agricultural villeinage was disappearing, and giving birth to a new class almost peculiar to England, the free but landless labourer. The existence of this class first comes prominently into notice in the Statute of Labourers. In the terrible pestilence of the Black Death which had ravaged England, a third, perhaps a half, of the population had been carried off. Labour became scarce. The labourers took the opportunity of making what we should now call a strike for higher wages. Such a demand, however consonant with economical principles, was quite repugnant to the feelings of that age, when prices were a constant matter of legal enactment. The Statute of Labourers, stating in its preamble that servants, taking advantage of the necessities of their masters, would not serve except for excessive wages, enacted that every able-bodied man should be bound to serve any one who required him at the old wages under pain of imprisonment; and that every master giving more than the old wages should forfeit thrice the sum he had offered. Such an ordinance could not be kept; but strenuous efforts were made to insist upon it, and again and again in some form or other it was re-enacted. But whether successful or not, it shows the existence of labour for wages, and of a rising knowledge on the part of the labourers of the value of their work. Several causes combined to create this labouring class. The early form of agricultural society may be roughly described as a village of serfs lying

round the manor-house of their lord. Each serf had his share in the common fields of the village, and was bound to join in the cultivation of his lord's domain or manor farm. For the simple farming at that time prevalent this forced labour was sufficient; and the lord valued his serfs more for military purposes than as agricultural labourers. As subinfeudation and alienation went on, the holders of small properties were obliged to work their land to better profit. The alienations also were chiefly made from the lord's domain, but it was not usual to part with serfs. Consequently, their number increased, while the domain land diminished; there were more hands than the lord could employ, and the tenant working for profit could therefore find labour among the surplus serfs who would work for wages. A change in the character of war took place at the same time. The insular condition of England made the feudal arrangement with its limited term of service inconvenient; in the highest ranks, therefore, military service was changed to scutage or money payment, and a large number of dependants became less desirable than money; proprietors were willing to work their farms with fewer servants and to receive money rent instead of service. There were thus at work the two principles which broke down villein labour; labour paid by wages, and land held for money rent. The change in war had another effect. Armies were raised by contract with some great lord. The payment was beyond the ordinary agricultural wages. The earl himself received a mark a day, the common foot-soldier, 3d. or 4d., and the archer, 6d.^[80] Anxious to fulfil his contract, the leader would not be careful to inquire whether he was enlisting serfs or not. On his return from a war, the well-paid soldier would be unwilling to fall back into a state of serfdom. He swelled the ranks of wage-paid labour. Again, the residence of a year and a day uninterrupted within the limits of a borough gave freedom. Serfs, seeing the advantage of money payments, fled thither and became free. Again, the Church, in whose eyes all men were equal, would not refuse to admit them within its ranks; a serf could thus become a priest or monk, and withdraw himself from his lord's power. On the same principle, the Church constantly urged the manumission of serfs. To all these causes was now added the disarrangement of labour consequent on the Black Death. With a general demand for labour all superfluous hands would find easy employment, perhaps at a considerable distance from their old homes. With a sufficient supply himself, the lord would not waste time or money to redeem them. We thus see how there may have been a vast number of free

labourers in England. The Statute of Labourers, destroying their freedom of bargain, attempted, though with but partial success, to force these free labourers back into a semi-servile condition. But they had now joined the ranks of freemen, such as the small farmers of Kent, and the unincorporated artisans of towns. The spirit of equality fostered by the teaching of the mendicant friars, who had reached England in Henry III.'s reign, and who took up their abode among the poor city populations, was still further increased by the teaching of Wicliffe and his poor priests.

“When Adam delved and Eve span,
Who was then the gentleman?”

a doggerel couplet frequent in the mouths of the insurgents of 1382, shows how the lessons of the Bible made public by Wicliffe's translation could be turned in the same direction. The feeling that it was the plebeian archer, and not the lordly man-at-arms, who had won the great victories in France, and the success with which, during the last half century, the smaller trade corporations had in the cities forced themselves into an equality with the great ones, all led to the same democratic feeling. The lower freemen made common cause with the villeins. They had all felt the heavy pressure of the tax-gatherer. The popular songs of the day are full of wretchedness. One, said to belong to the reign of Edward I. or II., speaks thus—

“To seek silver for the King, I sold my seed, wherefore my land lies fallow and learns to sleep. Since they fetched my fair cattle in my fold, when I think of my old wealth I nearly weep; this breeds many bold beggars. There wakes in the world consternation and woe, as good is it to perish at once, as so to labour.”^[81] The democratic outbreak of Wat Tyler was the consequence.

While the two sections of the commons were thus rising in social position, a change had also taken place in the character of the nobility. It may be roughly characterized as the change from feudalism to chivalry.^[82] Many of the same causes which had conduced to the freedom of the labourer had tended to loosen the territorial system on which the ancient strength of the nobility rested. Especially had the voluntary character of military service dealt heavy blows at the practical side of feudalism. Soldiering was no longer the necessary duty of every man; but the military spirit remained, and to the bulk of the aristocracy fighting became a pastime. The subordination of

The nobility.

proprietors gave place to a sort of system of freemasonry, to which all knights were admitted. Knighthood made its holder any man's equal for actual military purposes. It was no longer the great noble, but the good soldier, who was the commander. Manny, Chandos, Knowles, all of them simple knights, were the generals to whom Edward III. trusted. As an amusement war was decked with ostentatious ornament. This is the period of showy tournaments, of armorial bearings, and of grotesque vows, like that of the young knights who attended Edward with black patches over their eyes. It is this chivalrous aspect of war which explains the short-lived character of Edward's expeditions. But it had a more important effect. Importance in the country became a more personal matter; partly from love of show, partly to produce respect, great men began to surround themselves, not with feudal followers, but with paid retainers. To these they granted liveries. It was a point of honour among these retainers to stand by each other and by their chief. Quite in the beginning of Richard II.'s reign, the Commons petitioned against these liveries and the bands of maintainers,^[83] who upheld each other in illegal actions. Thus great households, and by degrees factions, were formed, and things were ready for the great outbreak of faction fighting, which ended in the destruction of the old nobility in the Wars of the Roses.

The feeling of national life, which is one of the characteristics of the time, had shown itself in literature. Public transactions were still carried on in French or Latin; but it will be remembered that as early as the Provisions of Oxford it had been found necessary to publish any important proclamation in English as well. Up till that time the languages of the nobility and of the common people had been distinct. From that time onwards they begin to blend. This, as it happens, can be very well observed. Geoffrey of Monmouth wrote a Latin Chronicle of England in 1130. Before the end of the century it was versified by two writers; one wrote for the nobles and the aristocracy, the other for the common people. Master Wace, a native of Jersey, translated Geoffrey for Henry II. into Norman-French. Layamon, who wrote about 1180, translated it into a language which may be fairly called Anglo-Saxon, although of a somewhat degraded type. We have here a perfect division of the languages. But about the middle of the next century the same work was translated by Robert of Gloucester. In his language there is a much nearer approach to English, and a considerable number of French words are easily

Literature.

to be traced. Some fifty years afterwards, Robert Mannyng, or De Brunne, again rewrote the Chronicle; and again the further introduction of French words is striking. We have thus means of testing, as it were, at three different points, the process of amalgamation that was going forward. The Court language still continued to be French, but French not much like the language of France, and it was ceasing to be thoroughly understood by the bulk of the people. By the time that Chaucer wrote, he could laugh at English-French. His Prioress spoke Cockney-French,

“After the scole of Stratford atte Bowe,
For Frenche of Paris was to hire unknowe.”

And in recommending English writing, he says,—“Certes there ben some that speke thyr poysy mater in Frensche, of whyche speche the Frensche men have as good a fantasye as we have in hearing of Frensche mennes Englyshe.” This indeed was to be expected. From the Conquest the language of schools had been French; but in 1356, John of Cornwall had begun a change in this habit, and taught Latin translation by means of English, and not French. The consequence, as described by Trevisa, was, their “avauntage is, that thei lerneth her gramer in lasse tyme than children were wont to do; desavauntage is, that now children of gramer scole kunneth no more Frensch than her lifte heele.” Other signs also point to this change. Latin had ceased to be the language of public documents in the reign of Edward I. In 1362, in answer it appears to a petition from the Commons, the opening address delivered in Parliament was in English, and the Commons’ debates in English also. At the same time it was ordered that English should be the language of courts of law, because the French tongue was too much unknown. But it was not till the reign of Richard III. that the statutes and rolls of Parliament were written in English. It is probable that Parliamentary business continued to be carried on in both languages for some time longer. In 1381 English seems to have been generally used. There were thus during this period extant three languages for literary purposes—Latin, the language of learned men and historians; French, an acquired Court language, in which most of the legends of chivalry and lengthened rhyming chronicles were produced; and the gradually rising English language, which, as the popular tongue, was chiefly employed in songs and political satire. The earliest form of English poetry was alliterative,—metrical, but without rhyme, and depending for its effect upon a certain number of words in each couplet beginning with the same letter.

But rhyme, and not only rhyme, but very easy and varied metres, were introduced as early as the reign of Henry III. Not unfrequently both principles were blended, and rhyme and alliteration occur together. Latin was also employed, we must suppose by the clergy, in satirical songs. All classical metres were then discarded, and Latin was used as a rhyming language. There are some instances also of verses, partly in one language, partly in the other. It may be worth while to give an instance of two of these various metres. Thus a verse of a song shortly after the battle of Lewes runs thus:—

“Sire Simond de Mountfort hath swore bi ys chyn,
Hevede he nou here the Erl of Waryn,
Shulde he never more come to is yn,
Ne with sheld, ne with spere, ne with other gyn
 To help of Wyndesore.
Richard, thah thou be ever trichard,
 Trichen shalt thou never more.”

This is rhyme, the rhythm is free, and there is a refrain. In the following verse, from a satire on the consistory courts, alliteration and rhyme go together:—

“Ther sitteth somenours syexe other sevene
Mysmotinde men alle by here evene,
 Ant recheth forth heore rolle;
Hyrd-men hem hatieth, ant uch mones hyne,
For everuch a parosshe heo polketh in pyne,
 Ant clastreth with heore colle.”

The next specimen, from a song on the venality of judges, shows how Latin was adapted to modern versification:—

“Sunt justitiiarii,
Quos favor et denarii
 alliciunt a jure;
Hii sunt nam bene recolo
Quod censum dant diabolo
 et serviunt hii pure.”

While in the next verse is shown the mixture of two languages; it is drawn from a song against the King’s taxes:—

“Une chose est countre foy, unde gens gravatur
Que la meyté ne vient al roy, in regno quod levatur
Pur ce qu’il n’ad tot l’enter, prout sibi datur,
Le pueple doit le plus doner, et sic sincopatur.
 Nam quæ taxantur, regi non omnia dantur.”

These satirical poems are directed against nearly every class of society, the monks, the judges, the taxers, the nobility, the ladies, the logicians of the university, and even the doctors meet with their share of abuse. The democratic spirit which is visible in them found a more complete and worthy expression in the poem known by the name of the Vision and Creed of Piers Ploughman. It is supposed to be the work of a poet of the name of Langland. The form is allegorical, a form which the great celebrity of the French "Romance of the Rose" made permanent both in France and England for many years. A pilgrim of quite the lowest rank sees in a vision virtues and vices pass before him, and also representatives of all the various classes of society. Each in turn is criticised; none can lead him in the path of virtue, till Peter the Ploughman appears, who, in a religious conversation, shows him the right way. His character is one of typical perfection, and becomes confused towards the end of the poem with that of Christ. The poem is written in alliterative verse, and in English by no means so much like our present English as some of the songs that preceded it. But at length the time was come for the complete nationalization of the language. French was in decay, the popular songs were in rude English, and when the union of all classes in Parliament had completed the real nationality, any further division of the languages was impossible. The junction was effected by Chaucer. He set himself intentionally to work to make a compound and national tongue. He took for its basis the English; and on it he grafted, sometimes in their own form, sometimes in an altered form, vast numbers of French words. It is a curious instance of an intentional formation of a language. Many words he admitted apparently upon trial, and they have been rejected. Others have been somewhat changed in form, but in his works we have a language which a very little trouble will enable any Englishman to read, and the grammar and structure of which, with few exceptions, is like our own English. The great work for which he employed this language, the "Canterbury Tales," was well fitted to establish it. While the prologue describes every class of English society, each drawn with an incomparable delicacy and humour, the tales which form the bulk of the work are of every description. Love romances for the knights; coarse or farcical incidents for the commonalty; sober religious prose for the serious. Compared with this poem, there is nothing for more than a century worthy of mention. Gower, who wrote at the same time with Chaucer, and in the three languages, is wholly deficient in humour, and heavy and prosaic to the

last degree. His followers in the next century, Lydgate and Occleve, were poets by profession and not by inspiration, always ready to turn out a poem upon demand. Chaucer was not only the founder of the English language, but, before the appearance of Spenser, the only great poet whom England produced.

1399–1413.

Born 1366 = 1. Mary of Bohun.
 | = 2. Joan of Navarre.
 +-----+-----+-----+-----+-----+-----+
 | | | | | |
 Henry V. | John, Duke of Bedford. | Blanche = Duke of Bavaria. |
 | | | | | |
 Thomas, Duke of Clarence. | Humphrey, Duke of Gloucester. | Philippa = King of Denmark.

Scotland.	_France._	_Germany._	_Spain (Castile)._
Robert III., 1390. James I., 1405.	Charles VI., 1380.	Wenceslaus, 1378. Robert, 1400 Sigismund, 1410.	Henry III., 1390. John II., 1406.

Archbishop.	_Chancellors._
Thomas Arundel, 1397.	John Searle, 1399. Edmund Stafford, 1401. Cardinal Beaufort, 1403. Thomas Longley, 1405.
	Thomas Arundel, 1407. Sir Thomas Beaufort, 1409. Thomas Arundel, 1412.

Henry's position in
English history. 1399.

of those instances which history has so abundantly furnished, of the willing acceptance by a nation, after a period of long discomfort, of any one who would bring it rest. There are thus two points of view from which to regard his reign. It is the reign of a usurper bent upon establishing a dynasty, the reign of a conservative who bases his position on the maintenance of the existing state of society, and therefore for a time checks the natural progress of the nation. The necessity which a usurper feels for popularity will explain the improved constitutional position of the Commons during the earlier years of his reign; his position as a reactionary that attachment to the Church which produced the famous statute, “De Hæretico comburendo.”

The arbitrary character of the government at the close of the late King’s reign, and the acts of vengeance which had marked it, were the evils which were most prominent at the moment.

Reversal of the acts of the late King.

Henry’s first step was of necessity the reversal of these acts, and the restoration of the state of things which had existed in 1388. The Parliament was therefore induced to declare all the acts of the last Parliament null, while those nobles whose adhesion to the late King had procured them fresh rank fell back to their old titles. Thus, the Dukes of Albemarle, of Surrey, and of Exeter, appear again as the Earls of Rutland,

Tumultuous scene in the first Parliament.

Kent, and Huntingdon, the Marquis of Dorset as Earl of Somerset. The scene in the House of Lords in the first Parliament marks the pitch to which passion had risen, and the preparation already made for future civil war. Rutland, the son of the Duke of York, was challenged by Lord Fitz-Walter, and when Lord Morley, the friend of the new King, challenged Lord Salisbury, no less than forty lords threw down their hoods as gages of battle on one side or the other. This point is further illustrated by the petition of the Commons, that all liveries except those of the King should be forbidden. The nobles had been gathering paid retainers around them, and getting themselves ready for the threatening quarrel. Meanwhile, the King had been crowned, supported by his two great partisans—whose names show the great influence of the North in the late change of government—Percy, Earl of Northumberland, now made Constable of England, and Neville, Earl of Westmoreland, with the rank of Marshall. It by no means suited Henry to excite remark as to his right. He therefore stepped as quietly as he could into the position of his predecessor, and his son Henry was declared Prince of Wales and heir-apparent, entirely without mention of the young Earl of March, the real heir, who was then a child in the custody of the King at Windsor. A grant of a tax on wool and leather for three years closed the session, and enabled Henry to take measures to secure his position; for it was not to be supposed that the party which had lost its influence would calmly acknowledge the new King. He was scarcely crowned when plots began to be formed against him, nor was it till he had been nine years upon the

The King’s insecure position for nine years. 1400.

throne that the dangers which assaulted him both from his own kingdom and from foreign countries were finally overcome. It was during this period of weakness and uncertainty that he had to rest principally upon the Commons, who supported him as the champion of order against baronial disorder, but did not fail to take advantage of his weakness.

The first of these difficulties arose from those lords who had been the appellants against Gloucester, and whose loss of rank has been already mentioned. A week before Christmas, 1399, several others of the depressed party met at Westminster, and there the Earls of Huntingdon, Rutland, Kent, and Salisbury entered into a conspiracy for the restoration of Richard. Their plan was to seize the King at Windsor, but Rutland, a never-failing traitor, disclosed the project to his cousin; the King hastily betook himself to London, and the insurgent lords, finding that their plans were discovered, fell back towards the West. The King was rapidly pursuing them; but at Cirencester, the inhabitants, under their Mayor, surrounded their lodgings, took them prisoners, and afterwards beheaded Kent and Salisbury. Several escaped for the time, but the same fate at length overtook Despenser at Bristol, and Huntingdon at Pleshy in Essex. Subsequently, Sir Thomas Blunt and eighteen others were executed at Oxford. Among them was a priest, Maudelin by name, who had been chosen for his strong personal resemblance to represent the late King in the insurrection. That the leaders of this conspiracy should have all fallen victims to popular vengeance sufficiently shows the feelings of the bulk of the nation with regard to King Henry and his rival.

Insurrection of the late Lords Appellant.

Meanwhile, Richard had been imprisoned in Pontefract Castle. In February a report was spread that he was dead. On this the Privy Council begged that, if still alive, he might be carefully secured. The answer was given that he was already dead, and a corpse was exhibited in London, the face of which, from the eyes to the chin, was left uncovered, the rest of the body being carefully clothed. This peculiar arrangement excited suspicions, which were probably groundless, but were further supported by the complete mystery which hung over the manner of the King's death. Hunger and violence were both alleged; while some asserted that the corpse exhibited was not that of Richard, but of the priest Maudelin.^[84]

Imprisonment and secret death of Richard.

His domestic enemies for the present silenced, Henry could look abroad. He made advances towards friendship with France, but it soon became plain that that kingdom was inclined to support the cause of the late King, whose young widow, Isabella, was the daughter of Charles VI. The title of King of England was refused to Henry, Isabella and her dowry demanded, and hostility thus kept continually alive. In Scotland, also, the same

Hostile attitude of France and Scotland.

Useless and impolitic march into Scotland.

feeling showed itself. The King, Robert III., was confined by weakness of body and mind almost exclusively to the Isle of Bute; his brother, the Duke of Albany, was the real ruler of the country. Henry, who had a party in the country, and at whose court Dunbar, the Earl of March, the chief enemy of the Douglas family, was resident, thought it desirable to show his power. He therefore marched as far as Leith, demanding homage from the Scotch King similar to that claimed by his predecessors, but the Duke of Rothesay, heir-apparent, held firm in the Castle of Edinburgh, and want of provisions speedily obliged the English to beat a somewhat hasty retreat. As in the case of France, this transaction with Scotland established a constant hostility.

In the other dependency of England affairs were still worse. Owen Glendower, a Welsh gentleman of good family educated in England, incensed at the rejection of a suit about a certain property of Lord Grey of Ruthyn, had roused the national animosity, and claimed for himself the title of Prince of Wales. For the present Henry could do nothing effective against him. The war assumed a national character; the Welsh were expelled from the towns in the Marches. Edward I.'s statutes against the Welsh were re-enacted, even including that which ordered the destruction of the bards. The conduct of the war was placed nominally in the hands of Henry, Prince of Wales, a lad of thirteen. But the whole of the following year Glendower's successes continued. Grey of Ruthyn and Edward Mortimer, uncle of the imprisoned Prince, the Earl of March, were taken prisoners, and an expedition undertaken by Henry in person towards the close of the year was forced to retire from the mountainous strongholds of the Welsh. The storms and snowdrifts seemed to fight against them in that wild district, and gave rise to the belief that Glendower was a magician.

Insurrection in Wales.
Owen Glendower.
1400.

Could these various enemies but find some powerful adherents in England, it was plain that Henry's position would be precarious. A quarrel with those who had hitherto been his chief supporters, the Percies of Northumberland, supplied this element of danger; while a strange report, that the late King was still alive in Scotland, gave a central point round which all Henry's enemies might gather. About Whitsuntide, in 1402, the rumour reached England that Richard had escaped from Pontefract, and had made his appearance at the house of the Lord of the Isles, by whom he was handed over to the Court, and there kept so strictly that no man could get sight of him. The existence of such a pretender was certain. It was in vain that Henry attempted to suppress the rumour by executions; in vain that he even proceeded to execute certain Franciscan monks who had been engaged in spreading it. The secrecy which covered Richard's death, and which for

Quarrel with the
Percies. 1402.

The pretended
Richard.

Causes of the quarrel
with Northumberland.

some reason Henry could not break, prevented any clear proof of the imposture. The false Richard is believed to have been a man of weak intellect, called Thomas Ward of Trumpington. The reason of the King's quarrel with the Percies is by no means clear, but various causes of discontent can be shown. The Duke of Albany, after much fighting on the borders, had made an expedition on a large scale against Carlisle. On its return home, the army, heavily laden with booty, was met by the Percies, and defeated at Homildon Hill. The defeat was complete; many Scotch nobles fell into the hands of the English, among them Murdoch, Earl of Fife, the son and heir of the Earl of Albany, and Douglas, Earl of Angus. For such prisoners the Percies expected a large ransom. Their anger and disappointment was great when the King took Murdoch from them and claimed the ransom of the rest. A somewhat similar affair took place in Wales. Of Glendower's great prisoners, Grey of Ruthyn was allowed to ransom himself, a privilege refused to Mortimer; when the younger Percy, Hotspur, who had married Mortimer's sister, urged his claim, he met with a rebuff. The King also owed the Percies large sums of money; £20,000 was due to them, which the entanglement of the finances made it impossible to pay. The general feeling that they had been badly rewarded for the invaluable assistance they had afforded Henry, acting upon the unusually hot temper of the younger Percy, drove them into a change of policy.

Before the end of the year 1402, they entered into negotiations with Glendower; and Mortimer, instead of attempting to gain his liberty, married the daughter of the insurgent chief, and recognized him as Prince of Wales. The Percies at the same time gained the assistance of their prisoner Douglas, and the conspiracy was completed by the support given to Glendower by France. On all sides the King's difficulties seemed to increase. The Earl of Worcester joined the Percies; Richard's old followers crowded to their standard, and an army, insidiously collected as though for an attack on Scotland, rapidly marched on Shrewsbury to make a junction with the Welsh. Thither Henry, with his son the Prince of Wales, hastened, and the decisive battle of Shrewsbury was fought, in which, after a keen struggle, Hotspur was killed, and most of the other leaders, including Worcester and Douglas, captured. Worcester and the other English leaders were beheaded; Douglas was retained in prison. The King had still to destroy the insurrection of the elder Percies in the North, where all the inhabitants of the country had taken the crescent—the livery of Northumberland. The royal army was, however, obviously too strong for opposition, and the Earl made his submission, and met the King at York. The House of Peers claimed as a right the trial of their fellow, and he was found guilty, not of high treason, but only of misdemeanour, and let off with a fine.

The Percies combine with Glendower.

Battle of Shrewsbury.
July 23, 1403.

Submission of
Northumberland.
1404.

The great conspiracy was thus but half broken. Wales, Scotland, France, and the English malcontents were still in communication. From France, indeed, serious difficulties seemed to threaten. In presence of the weakness of Charles VI., the King of that country, the real power was disputed by his brother Louis of Orleans and his uncle the Duke of Burgundy.

Widespread
conspiracy.

Flight of the young
Earl of March. 1405.

Louis had at this time the upper hand. He took in great dudgeon the events which had taken place in England; and rumours were abroad, strengthened by the distribution among the malcontents of Richard's crest by the old Countess of Oxford, the mother of De Vere, the late King's favourite. These rumours pointed to a great conspiracy, coupled with an invasion of Essex by France, in favour of the spurious Richard in Scotland. For a time the threat of invasion compelled the King to remain quiet; but after the French fleet, which had attacked the Isle of Wight and Plymouth, had been defeated at Portland, he was able to turn his attention to the North, and again to compel Northumberland to come to an explanation. But that explanation he found himself obliged to accept. Almost at the same time a fresh alarm met him. Lady Constance Spenser had contrived to withdraw the young Earl of March from Windsor, and to fly with him. She was shortly captured, and the young Prince brought back, but it was plain that the danger was great.

In April the King went against Wales. His absence in that direction was at once taken advantage of by his northern enemies. The difficulty with which he could secure supplies was one of Henry's main obstacles to success, and in the last

Renewed activity of
Northumberland,
Scrope and Mowbray.

Parliament the opposition had been headed by Sir Thomas Bardolph. That gentleman now appeared in close conjunction with Northumberland, assisting him to garrison his fortresses. At the same time Mowbray, the son of that Duke of Norfolk with whom Henry had quarrelled at the time of his banishment, and Scrope, the Archbishop of York, the brother of that Lord Scrope who had been Richard's chancellor at the beginning of his reign, and whom that King had been forced to remove, joined the insurrection. The Earl of Westmoreland, who remained constantly faithful to Henry, was sent against them while Henry was engaged in Wales. Again, the royal army was too strong for the insurgents. Scrope and Mowbray were induced to disband their forces, and were then immediately apprehended. Gascoigne, the chief justice, was called upon to try them and convict them summarily. He was one of those constitutional lawyers who were gradually rising in England, and he refused to do so, pointing out that he should infringe the liberties both of the Church and the House of Lords. Henry found in Sir William Fulthorpe a more complacent judge. They were both beheaded, not without arousing, as Gascoigne had foreseen, the anger of the Lords. Upon the capture of his confederates, Northumberland fled with Bardolph to Scotland, but being refused an interview with the impostor, and mistrusting the honesty of Albany, he subsequently

withdrew to Wales. It was there alone that the war continued, nor was it finally suppressed during the reign.

But, in the next two years, events occurred which at length placed Henry in a position of security. The friends of the Scotch King, fearing the ambition of Albany, which had already induced him to take the life of the Duke of Rothesay, the heir-apparent, determined to withdraw James, the King's second son and heir-apparent, from danger. He therefore took ship for France, but on the way was captured by English cruisers, and brought a prisoner to Henry, who grimly remarked that they might as well have sent him direct to him, as he could have taught him French quite well. He justified this boast; for though he kept the young Prince prisoner, he gave him an education which, upon his subsequent release, well fitted him for the throne he occupied. Henry had now in his hands pledges of safety from all his enemies. The Earl of March was still with him; Murdoch of Fife, Albany's son, served as a hostage for his father; while James served as security from all attacks from the royalist party in Scotland. The following year (1407) was still more fortunate. The overweening vanity of Orleans, his licentiousness, which, it is said, did not even spare the young Duchess of Burgundy, excited the anger of the Duke of Burgundy, the King's cousin, to such a degree, that he caused the Duke of Orleans to be murdered in the streets of Paris. Henry's chief enemy in France was thus removed. With Burgundy, who had lately inherited Flanders, and thus become the Prince of a trading nation and the champion of the city populations, he had much in common; and though he did not espouse his cause in any active manner, he felt secure from any immediate danger. Without his French allies, Owen Glendower was gradually driven back to the mountains of North Wales, and in despair, Northumberland and Bardolph again appeared in the North, took arms, and were defeated and killed at Bramham. Thus safe on the side of France, with Scotland pledged to peace by the captivity of its princes, the Percies finally defeated, and Owen Glendower confined to the limits of the purely Celtic part of Wales, Henry was at length triumphant.

Events which secured Henry's triumph. 1406.

Capture of James of Scotland.

Murder of Orleans. 1407.

Final defeat and death of Northumberland.

Henry's improved position.

During the whole of these years of difficulty, the King had found it necessary to keep the Commons in good temper. Although he suffered from constant want of money, and in vain tried to induce his frequent Parliaments to act liberally towards him, he seems on no occasion to have employed illegal means for improving his position. It had become an accepted axiom, that consent of all the estates of the realm was necessary for the levying of taxes;

His enforced respect for the Commons.

Climax of their power. 1407.

and the Commons had made their position so good, that, in the very year of his final triumph, they ventured upon a quarrel with the Lords, claiming for themselves the exclusive right of originating grants, and insisting on the absence of the King while they were discussed. More than that, they had attempted, though unsuccessfully, to oblige the King to answer their petition of grievances before they made their grant, and succeeded in establishing the custom of appropriating their grants to special objects, and of paying them into the hands of treasurers of their own appointment. But their increase of power was chiefly visible in their interference with the royal expenditure and administration. In the fifth year of his reign, the King had been obliged to displace four of his ministers at the request of the Commons, to declare his intention of governing economically according to law, and to name his Privy Council in Parliament. And in the eighth year of his reign, when already he seemed upon the point of triumphing over his enemies, he was compelled to grant his assent to a petition of the Commons, which put as strict limitations upon his power as any to which Richard, even at the time of his greatest depression, had submitted. He had to name sixteen counsellors, by whose advice solely he was to be guided. His ordinary revenue was to be wholly appropriated to his household and the payment of his debts. No officer of the household was to hold his place for life or for a fixed term. The council was to determine nothing which the common law was capable of determining; and the elections of knights were regulated. At the head of this council was put the Prince of Wales.

It is difficult to understand how the King should submit to this arrangement, which virtually established a strictly limited monarchy, just at the moment of his success. It is perhaps explained by his failing health. A disease had attacked his face, which changed into a form of leprosy, and during the remainder of his life he was subject to attacks of epilepsy. It was not unnatural that he should wish to withdraw somewhat from public affairs. Under these circumstances, it is not quite clear how far he is to be credited with the remaining events of his reign. But the prudence and state-craft exhibited in them, which could hardly have been expected from so young a man as Prince Henry, and the more vigorous opposition which he subsequently made to the demands of the Commons, would seem to show that he was still practically ruler. This restoration of vigour is marked by his refusal, towards the close of his reign, to grant any extension of the right of liberty of speech, and by the humble tone adopted by the Parliament in the thirteenth year of his reign, when he was entreated to declare that he was not offended, and that he regarded them as his loyal subjects.

Explained by the King's failing health.

Renewed vigour at end of reign.

Having secured his position at home, though not, as has been seen, without some sacrifices, the King's attention was chiefly directed towards securing the permanence of his dynasty by

Henry's foreign policy. Marriages.

foreign matrimonial alliances, and to obtaining a strong position abroad by interfering in French politics. His two sisters were already respectively Queens of Castile and Portugal. He had himself married, in 1403, a Princess of Navarre. As a husband for his eldest daughter he procured Louis, Count Palatine, the son and heir of Rupert, King of the Romans; while his younger daughter married Eric, who had consolidated a great Scandinavian monarchy in the North.

In France he made his weight felt by alternately siding with one or other of the great parties which divided that kingdom. His natural connection would have been the Burgundians; and he first attached himself so far to that party as to send a considerable army to their assistance. A battle fought near St. Cloud (1411), in which the Armagnacs (as the friends of Orleans were now called) were worsted, for the time rendered the Duke of Burgundy the master of France. Henry chose this opportunity to change sides, and entered into an arrangement with the defeated princes, by which he was secured the full possession of Guienne. He intended at the same time to have led an army into France, and to have imitated the career of Edward III. The national danger produced a temporary friendship between the French parties, and Burgundy, at a meeting held at Auxerre, succeeded in persuading the Armagnacs to annul their arrangement with the English. Henry's health prevented him from leading the expedition, as he intended; but an army, under the Duke of Clarence, his second son, laid waste Maine and Touraine, and was only stopped by the payment of a large sum of money. After this Clarence withdrew to complete the conquest of Guienne. Thus, though unable to fulfil his ambitious project of invasion, Henry had contrived to make his position abroad very different from what it was at the beginning of his reign, when the French could refuse him the royal title, and paralyze his home policy by a threat of invasion.

Policy in France.
1410.

Success of his policy.

From one point of view, as a usurper founding a new dynasty, he had now been quite successful. As a preserver of society, he probably regarded himself as not less so. Though the son of John of Gaunt, the favourer of Wicliffe, and not averse in his youth to the doctrines of that teacher, he had seen that Lollardism pointed, not only to ecclesiastical, but to political changes. From the beginning of the reign he had determined that the preservation of the Church in all its privileges and possessions was the surest means of checking the rising democracy. He had therefore been always its staunch supporter. In pursuance of this policy, in the second year of his reign, he had given his assent to a persecuting statute, formed, it seems probable, on the petition of the clergy, without the participation of the Commons. This statute, which is known

His alliance with the
Church.

Persecuting statute.
1401.

Views of the nation
with regard to the
Church.

under the title of “De Hæretico comburendo,” forbade teaching and preaching without the license of a bishop, to whom also was given the right of condemning heretical books and writings, while the State undertook to carry out the bishop’s sentence. Should any person thus condemned continue in his heresy, he was to be regarded as relapsed, and handed over to the civil arm, to be publicly burned. The first victim of this statute was William Sautré, at one time parish priest of Lynn, and involved in the treason of Kent and Huntingdon. On his persisting in the errors with which he was charged, the new law was carried into effect. The persecution once begun did not cease without more victims, and produced the effect, so common in cases of persecution, of driving the Lollards into further extremes of fanaticism. The germ of socialism which no doubt existed in the Lollard doctrine, and which showed itself in the constant demand for the abolition of the wealth of the clergy, alarmed the barons, and made them strong supporters of orthodoxy. The Commons, on the other hand, although they appear to have differed in feeling at different parts of the reign, were on the whole willing enough, while supporting orthodoxy of faith, to countenance the secularization of Church property. Indeed, they went so far in this direction, that in the year 1410, in answer to the reiterated request of the King for a settled yearly subsidy for his life, they pointed out to him the advisability of appropriating some of the ecclesiastical revenues, which would be enough, they said, to supply him with 15 earls, 1500 knights, and 6200 men-at-arms for military service. They begged also that those condemned for heresy might be withdrawn from the bishop’s jurisdiction, and tried by secular courts.^[85]

The popularity of the Prince of Wales, his position as head of his father’s Council, not unnaturally gave the King some uneasiness in his last years. It seems not improbable that, having been once put at the head of the Council, he virtually performed many of the duties of the Government. Documents are extant in which he seems to be regarded as the King’s representative. Moreover, the course of events seems to show certain changes of policy which can be explained in this way. It is evident from his after policy, that he was much attached to the Burgundian party in France. We may therefore credit him with the assistance sent to them, which proved so useful to them at the Battle of St. Cloud, especially as the force was commanded by his friend, Sir John Oldcastle. The sudden change of foreign policy coincides in time with the King’s altered tone in replying to the petitions of the Commons. These changes may very probably mark a determination on the part of the King to re-establish his authority, too much weakened by the position and popularity of the Prince. The stories of the Prince’s wild life in London are mentioned by writers who are almost contemporary, yet do not seem to agree well with what is certainly known of his industry in public business. They, as well as the strange travesty of Oldcastle, a good soldier and stern religious enthusiast, into Shakspeare’s jovial knight, Sir John Falstaff, are perhaps

Henry’s jealousy of the Prince of Wales.

Henry’s death.

based on the malicious view taken by the orthodox of Oldcastle's religious tendencies. It is well known that one of the charges alleged against all enthusiastic religionists is immorality. Prince Henry's subsequent prosecution and punishment of Oldcastle would be represented as the discharge of his old favourites. The aspiring and dangerous character of the Prince, in the eyes of his father, is represented by the story which describes him as having taken the crown from his father's bedside during one of his fits, and placed it on his own head; and having answered to the remorseful observations of the King as to the unjust manner in which he had gained it, that he "was prepared to guard it against the world in arms." It is at all events certain that coolness existed between father and son at the close of the reign. The French expedition was intrusted, not to the Prince of Wales, but to the Duke of Clarence, and for the last year and a half Prince Henry was removed from his position as President of the Council. The disease which had so long tormented Henry came to a fatal termination on the 20th of March 1413.

HENRY V.

1413–1422.

[click here to see the image](#)

Born 1388 = Catherine of France.

|
Henry VI.

CONTEMPORARY PRINCES.

Scotland.		_France._		_Germany._		_Spain._
James I., 1405.		Charles VI., 1380.		Sigismund, 1410.		John II., 1406.

POPES.--John XXII., 1410. Martin V., 1417.

Archbishops.		_Chancellors._
Thomas Arundel, 1397.		Cardinal Beaufort, 1413.
Henry Chicheley, 1414.		Thomas Longley, 1417.

The position of Henry V. on coming to the throne contrasts sharply with that of his predecessor. Henry IV., with disputed title, and in the midst of excited passions of faction, in which he had himself taken a prominent share, had to work out for himself the establishment of his dynasty and the restoration of political order. His son entered into the fruits of his labour. He had but to continue his father's policy. The dynasty seemed secure, the apparatus of government was in good working order, and the new King, already practised in the work of government, brought with him that popularity which brilliant qualities, a handsome person, and the vigour of youth, are sure to secure. The painstaking prudence of the late King, overshadowed as it was by his ill-health and gloomy character, was forgotten, and the hopes of the nation were fixed upon the fortunate youth whose faults as yet had been but those which are easily pardoned as the natural wildness incident to his age.

Fortunate opening of
his reign. 1413.

The young King seemed to please himself with the idea that his peaceful accession was to complete the healing of faction

General amnesty and

in the country, and to begin a period of glory and happiness.

release of prisoners.

He made but few changes in the ministry of his father, but both Thomas Arundel, the Archbishop, and Sir William Gascoigne were removed from their offices. It is possible that they may have been the advisers of the late King during that period when he was at enmity with his son. Already, before his coronation, of their own free will the nobles did him homage; and his Parliament granted him without difficulty the tax on wool for four years. To complete the general harmony, he published an amnesty, dismissed many political prisoners, and the greater part of his Scottish captives, and entered into negotiations for the liberty of the Scotch King. He even went so far as to reinstate both the Earl of March, the real claimant to the throne, and Henry Percy, son of Hotspur, his father's persistent enemy, in their property and position. The body of Richard II. was removed from Langley, and honourably interred in Westminster. The past was, as it were, to be forgotten, and Henry would rule as the popular and accepted King of all parties.

In the midst of this show of security and peace there were, however, visible signs that his father's work was not yet completed. The royal favour shown to the Church and to the orthodox party during the last reign, and the persecution which had fallen upon heresy, had not by any means destroyed the Lollards. The same policy had still to be pursued. The

Signs of slumbering discontent.

religious, it might be called the bigoted, tendency of the house of Lancaster was very strong in the young King. He had been one of the chief petitioners against heresy in 1406, and had shared in and superintended some of the religious executions; especially is mentioned that of John Badby, in 1410. The Prince had interrupted this man's execution, and attempted the conversion of the half-burnt sufferer; finding him firm, however, he allowed the execution to be completed. This tendency induced him to enter into close alliance with the Church, and throughout his reign to adopt the language of religious enthusiasm, pretending to regard himself as the appointed instrument of God's vengeance on the sins of the French. He thus became the willing agent of the clergy in completing their persecution of the sectarians, and listened readily to the exaggerated reports for which the conduct of the Lollards afforded some ground. The head of this party was now Sir John Oldcastle, who sat as a Peer in right of his wife under the title of Lord Cobham. His castle of Cowling, in Kent, afforded shelter to their persecuted teachers, while his high character and old friendship with the King made his influence important. The Archbishop determined to attack this man, at first pretending that he desired his conversion only. He placed in Henry's hands an heretical book which had been found in an illuminator's shop, and which belonged to Oldcastle. Henry tried first of all to argue with Oldcastle (who, however, denied having read the book), but could not convert him. The duties of friendship being

The Lollards. 1414.

now fulfilled, the Church was allowed to take the matter in hand. The heretic appeared several times before his judges, but firmly refused to depart from his points, that the Pope was Antichrist, and that in the Lord's Supper, though the body of Christ might be present, yet the bread was bread. This firmness produced the only possible result, and he was condemned to be burnt; but in the interval allowed him before the completion of his sentence, he managed to escape. ^[86]

The attack upon their chief roused the Lollards, and they are said to have entered into a general conspiracy for surprising and mastering the King and his brothers at Eltham, during the festivities of Christmas. Henry had early news of a meeting which was to be held on the 7th of January 1414, in St. Giles' Fields. It is quite unproved how far the intentions of the conspirators really reached. Henry, with the Church behind him, was ready to believe anything. He feared, perhaps, an insurrection similar to Wat Tyler's. Causing, therefore, the gates of the city to be closed, he spread armed men round the place of meeting, and as the Lollards approached, singly or in small bodies, they were seized. The news that the King's forces were abroad soon spread, and prevented any great number from falling into his hands. A jury was hastily summoned to declare that Oldcastle had treasonable plans, and a price was set on his head. The same jury then proceeded to try the thirty-nine prisoners, all of whom were either hanged or burnt. This event was followed by a still stricter proscription of heretical preachers and books. Chicheley, who succeeded Arundel as Archbishop this year, followed in his predecessor's steps, and a statute was passed by which all judges and municipal authorities were bidden to apprehend and try Lollards, while conviction of heresy entailed confiscation of goods.

Henry prided himself on having won his first victory in the cause of the Church; but his naturally ambitious character led him to desire triumphs of another kind. It seems indeed as if a strange combination of motives impelled him to take the false step which gave the character to his reign, and plunged the country into a lengthy and ultimately disastrous war with France. His father is said to have urged him, with mistaken worldly wisdom, to withdraw the minds of his subjects from dangerous topics by filling them with thoughts of military glory. The Church, frightened by the suggestions of confiscation in the last reign, urged him to pursue the same course. The natural but mistaken admiration for military glory induced him to listen readily to their advice, while the wickedness and misery exhibited by the French nation at once afforded him an admirable opportunity, and may have suggested to his fanatical mind, that it was his duty to punish such vice, and to reduce such turbulence into order. Experience proved, as it often has proved, the mistake, nay, the wickedness, of averting domestic dangers by the wanton pursuit of warlike success. Meanwhile, at first, and during the whole of this King's short

Henry's reasons for the impolitic French war.

life, the step seemed perfectly successful. The reign, as a period of English history, is almost devoid of interest. The attention of the nation was centred in a French war.

Since the Duke of Clarence had secured Guienne the state of France had become only more deplorable. The Treaty of Auxerre produced no real union between the factions. There was a certain show of national action under the pressure of a threatened invasion from England; the King and the Great Council of France sat in Paris; the States General were summoned, and under the influence of the University certain reforms introduced. But the death of Henry IV. prevented for the time all danger of invasion; and the cause of union being removed, the factions again separated. The Duke de Guienne, the French King's eldest son, and representative of the crown during his father's fits of madness, was devoted to the wildest licentiousness, and disliked his gloomy father-in-law, John of Burgundy. He began to intrigue for the restoration of the Orleanist Princes. The ruffianly populace of Paris, headed by the guild of butchers, and led by Caboché, a skinner, were devotedly attached to the Burgundians. A fierce and murderous uproar arose; but its violence was such, that the better class of citizens were aroused, expelled the Cabochiens, who fled to the Duke of Burgundy, and readmitted the Armagnacs, as the Orleanists were now called. The counter-revolution was complete, the Armagnacs got possession of the government, attacked the Burgundian Duke, and drove him before them, till they were checked at Arras. A temporary truce was then patched up; but the Duke of Guienne soon after contrived for a moment to banish both parties from the capital, and to establish a sort of national government.

Expulsion of the Burgundians from Paris.

Attempt at national government.

It was at this time that Henry V. began to meddle in French affairs. Already, during the retreat to Arras, Burgundy had opened negotiations with him, and these, in his anger against the Duke of Guienne, he now pressed still more warmly.

Henry's double diplomacy and outrageous claims.

Meanwhile, Henry negotiated also with the central authority in Paris. By this double negotiation, which included a plan for the marriage of Henry, on the one hand, with Catherine of France, and on the other, with Catherine of Burgundy, Henry made Burgundy neutral, while he pressed claims on the unfortunate French monarch of so outrageous a description, that he must have intended by securing their rejection to give himself a plausible ground for war. His first demand was nothing less than the cession of the whole French monarchy. When this was refused, his ambassadors restricted their demand to all the countries ceded to Edward III. by the Peace of Brétigny, as well as Normandy, the coast of Picardy, Anjou, Maine and Touraine, the suzerainty of Brittany and Flanders, 1,600,000 crowns, as the residue of King John's ransom, with the hand of the Princess

Catherine, and a dowry of 2,000,000 crowns. The Duke of Berri, the King's uncle, was at that time the chief member of the government. He naturally refused Henry's enormous demands, but offered all the districts of Aquitaine to the south of the Charente, and 600,000 crowns as dowry for the Princess.

All this while, Henry continued his preparations, raised troops, borrowed ships from Holland and Zeeland, and summoned in April a great council of Peers.^[87] He there declared his intention of seeking his rights in France, appointed his brother John, Duke of Bedford, Lieutenant of the kingdom, and fixed the conditions of the contracts which he made with nobles for supplying him with soldiers.^[88] He arranged also the manner in which the spoil was to be divided, and other details for the supply of the army. The devotion of the Church was to supply him with the means of meeting these vast expenses. Archbishop Chicheley and the Churchmen, fearing, no doubt, the democratic tendencies of the Commons, were willing to make some sacrifice. They agreed that no foreigners should hold benefices, and thus allowed the King to use the incomes of all the priories of the foreign orders of the kingdom to the number of 122. The proceeds of this transaction, increased by loans from foreigners, the pawning of his jewels, and the pledging of the tax on wool, supplied him with finances. An embassy from France, with still larger offers, including Limousin, and a dowry of 800,000 crowns, produced no improvement in the relations between the two countries.

His preparations.

Before Charles VI. could reply to the despatch of his ambassador, announcing the rejection of these terms, on the 3rd of August, the English army, of about 6000 men-at-arms and 24,000 archers, was already embarked. On the 14th of August it landed at the mouth of the Seine, where Havre de Grace now is. No steps were taken to prevent the disembarkation. The kingdom was in a state of fearful misery and disorder. The conduct of the war was given to the Armagnacs, Charles d'Albret was appointed constable; the Duke of Burgundy therefore held aloof, and the English had, in fact, only one half of the country against them.

He lands in France.
1415.

An event had occurred before the English embarkation which, by proving to the King that his position was not so secure as he thought, may have made him still more determined in his present course. He was engaged at Southampton preparing his expedition, when a conspiracy was discovered, in which the King's cousin Richard, brother of the Duke of York, and lately created Earl of Cambridge, and one of his most trusted counsellors, Henry Scrope of Masham, were implicated. They were accused of an intention to take Edmund, Earl of March, with them into Wales, to crown him there, and declare him rightful King, if Richard were really

Conspiracy of
Cambridge.

dead. They had also summoned from Scotland Thomas of Trumpington, the false Richard. The Earl of Cambridge had married Ann of Mortimer, the sister of the Earl of March. We have here the beginning of that close union between the supporters of the legitimate line and the House of York, which again appears in the Wars of the Roses. Cambridge and Scrope were both executed.

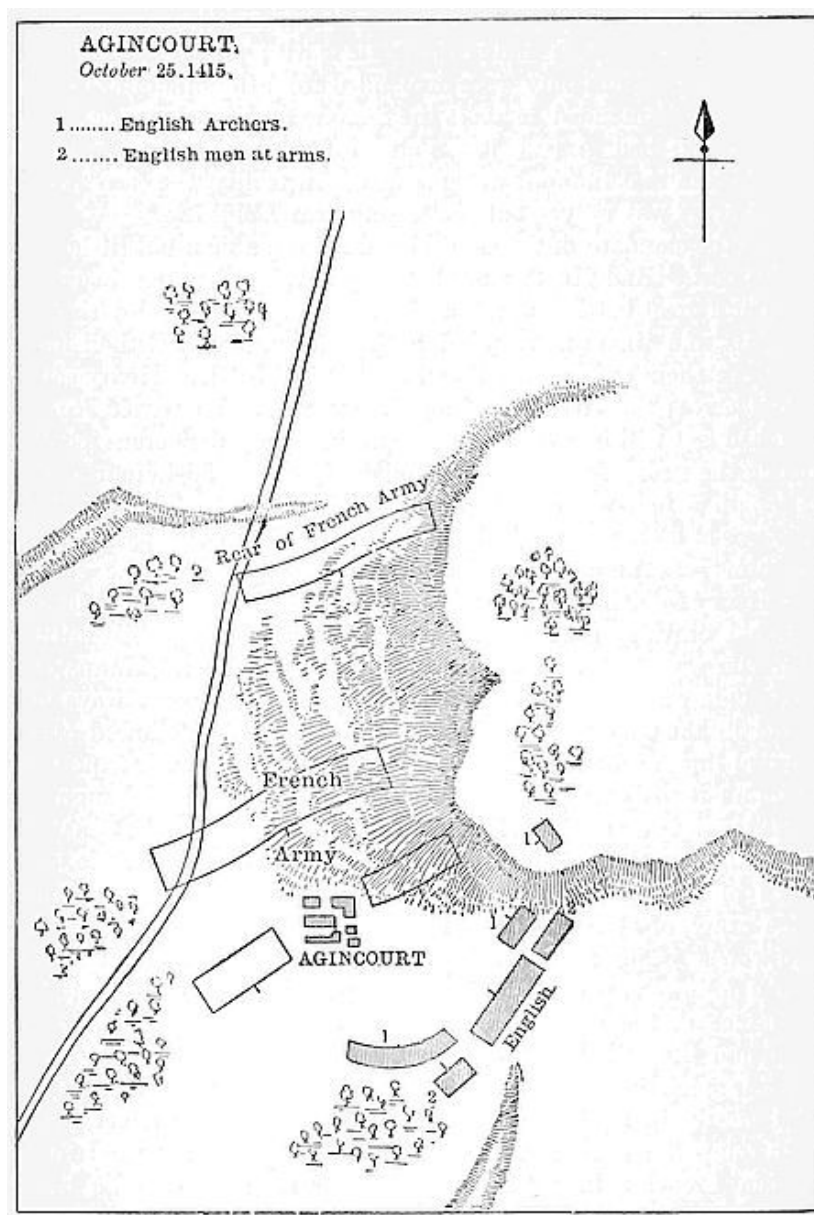
The first place to be attacked was Harfleur; it was bravely defended by the garrison under the Sire d'Estouteville. The inhabitants were told by the Court to take courage and trust to the King, but no help was sent them, though 14,000 or 15,000 men were within reach. On the 22nd of September they were compelled to capitulate. The conquered town was treated as Calais had been; the wealthier inhabitants were put to ransom, the goods seized, the people given their choice of leaving the city or becoming English. But this success had been hardly earned, the losses both by sickness and in fighting had been great. A large number of invalids had to be sent back to England. With little more than half his army Henry could venture no further into France. He determined to march along the coast to Calais. The strictest discipline was maintained in the little band, and the King strove to foster in it a religious and enthusiastic spirit; pillage was punished with death; rations only were demanded from the inhabitants.

Capture of Harfleur.

Henry had intended to cross the Somme at Blanchetaque, where Edward III. had passed it. False information was brought him that the ford was guarded. In reality, the feudal army was as yet only collecting near Abbeville, around the standard of the Constable d'Albret, a man but little fitted for his post. Had Henry passed at once he might have reached Calais without a great battle; as it was, he was compelled to follow the river upwards, and time was afforded to the French to collect their forces, and seek their own destruction in a pitched battle. Henry sought a ford across the river for a long time in vain. He passed Amiens, and had got within a league of Ham, in a very dangerous position among the strong fortresses of Ham, St. Quentin and Péronne, when at length a ford was discovered near Béthancourt. The Constable, who was at Péronne, might have destroyed him in the passage. He let him pass unmolested. Following feudal fashion, he sent to ask Henry to name a day and place for the battle; but whatever external chivalry may have been visible in Henry, his military character was that of a hard, practical, modern soldier. He answered that there was no need to name day or place, as he was always to be found in the open fields. For four days the armies followed almost parallel lines of march, the French making no use of their superiority in numbers to disturb the quiet advance of the English, although they spread nightly among the villages for shelter. At length the Constable, with singular want of prudence, took up his position a little to the north of Hesdin and Cressy, on a small confined plain, where

Henry compelled to retire upon Calais.

his large army, of at least 50,000 fighting men, was jammed in between two woods. This force consisted almost entirely of nobles and their feudal followers, who in their foolish pride of class had rejected the assistance of the infantry of the towns. The ground was arable land, and the soil deep and heavy, so that the heavy armed French in their splendid harness sank deep at every step, while the English, clad mostly in leather jerkins, and many of them barefoot, moved with comparative ease. The night, we are told, was passed in riot by the French; in sober preparation or religious exercise by the English.



AGINCOURT.
October 25. 1415.

1. English Archers.

2. English men at arms.

The French drew themselves up in three massive lines or battles; the two first dismounted and fought on foot, for which their heavy armour but little fitted them; the third line retained their horses, as did two small wings intended to crush the archers. The state of the soil obliged them to adopt a defensive method of fighting quite contrary to their habits. The English advanced upon them—the archers in front, the heavy-armed infantry behind, the mixed archers and infantry on the flanks. They are described as having a miserable, ragged appearance after their weary march, as contrasted with the splendour of the French. Henry rode among them, cheering them with the memories of bygone victories. He had previously ordered every archer to supply himself with a stake sharpened at each end, which he was to plant before him, and thus make a moveable palisade. At eleven o'clock, after a brief and useless parley between the armies, Sir Thomas Erpingham, the English Marshal of the Host, tossed up his baton with the cry "Now strike," and the battle began. The English advanced a few steps, expecting a charge from the enemy, but the hostile ranks remained immovable; they were, in fact, planted knee-deep in the mud, and afforded a fine aim for the English archers, who did not spare them. At length, putting their heads down to avoid as much as possible the fatal arrows, the first line came heavily on, and the mounted wings began to close round the English; but the stakes of the archers served them in good stead. Of the horses, a large proportion tripped and fell in the rough ploughed land; not one in ten of their riders, we are told, came hand to hand with the archers. Unsupported and almost immovable, the infantry broke. The archers seeing their plight, issued from between their stakes, threw down bow and arrow, seized their axes and maces, and fell headlong upon them. "It seemed," says the chronicler, "as though they were hammering upon anvils." The men-at-arms fell beneath the furious charge, and were smothered by their own companions as they fell over them. The same fate awaited the second line. The English men-at-arms had come up to support the archers, and the battle was fiercer, and for a time more equal. Certain of the French knights, under the Duke of Alençon, swore to take the life of Henry, and did their best to keep their oath. One of them cleft in two the golden crown on the helmet worn by Henry, and Alençon killed his cousin, the Duke of York, at his side. It was in vain; the English steadily advanced; the defeat of the first line, the rush of the fugitives, disordered and confused the cavalry, and they turned and fled. The English were already masters of the field, when news was brought that a fresh enemy was in their rear, and flames were seen arising from the village of Maisoncelle behind them. Henry, afraid of this new attack, and of a rally of the fugitives, gave the terrible order that all the prisoners should be killed. When his troops hesitated, he told off 200 archers

Battle of Agincourt.
Oct. 25, 1415.

to do the work; and already very many had been killed in cold blood, when the discovery that the alarm was a false one induced Henry to revoke his order. Of the 10,000 Frenchmen who died 8000 were of noble blood; among them were the Dukes of Alençon, Brabant, and Bar, the Constable d'Albret, and all the chief officers of the army. The Dukes of Orleans and Bourbon, the Counts of Vendôme and Richemont, and Marshal Boucicaut, with 15,000 knights, remained prisoners. Besides the Duke of York and the Earl of Oxford, the English had lost 1600 men. The King, with his triumphant army, at once proceeded to Calais, and thence to England. He attributed his wonderful success to Heaven, whose instrument he was in punishing the crimes in France. "Never," said he to the Duke of Orleans, "was greater disorganization or licentiousness, or greater sins, or worse vices than reign in France now. It is pitiful even to hear the story of them, and a horror for the listeners. No wonder if God is enraged at it."

The destruction of princes and feudal nobles at Agincourt seems to have annihilated the Armagnac party. The hatred of the Dauphin for the Duke of Burgundy prevented the unity which such an event might have produced. He summoned Bernard of Armagnac from the south of France, where he then was, and gave himself completely into his hands, making him Constable, Governor-General of the finances, and Captain of all the fortresses of France.

The French Government falls into the hands of the Armagnacs.

The party of the Constable, which had once been that of most of the princes of the royal blood, consisted now of adventurers, pledged to continue a civil war, to which they owed their importance. The real governors of France and Paris were the Gascon noble D'Armagnac and the Breton Tannegui Duchâtel. Their tyranny was of the bitterest description; their hired men-at-arms did all the harm an undisciplined soldiery can do; the people were taxed, in the midst of bitter famine, to the last farthing; their bloody tyranny induced them to forbid bathing in the Seine, lest the bathers should find there the corpses of their victims. The sole virtue of the party was that they continued the war with England, while Burgundy renewed his treaty with that nation. The Constable's efforts were not successful. An attempt to regain Harfleur was defeated by the Duke of Bedford. But Henry for the present was content to stand on the defensive. The Parliament, in its enthusiasm at his great success, had granted him large subsidies, and the tax on wool for life; and he was spending his time in recruiting the strength of his army, and in giving a magnificent reception to Sigismund, King of the Romans.

That Prince had succeeded in re-establishing the obsolete supremacy of the head of the Roman Empire. This he had done by the activity and success with which he collected a general council of the Church at Constance. His object at the

Visit of Sigismund. His position in Europe. 1416.

council was to heal the great schism, which since 1378 had divided the Church. On the death of Gregory XI., who had brought back the Papacy to Rome, after its seventy years' servitude to the French at Avignon, a double election took place, and the world was divided between Urbanists, who owned Urban VI., the Roman Pontiff, and the Clementines, who acknowledged Clement VII. of Avignon. Each Pope had his successors, and an attempted compromise at Pisa in 1409 had produced a third Pope. The three claimants to the honour were now Gregory XII. at Rome, Benedict XIII. at Avignon, John XXIII. at Pisa. The new council declared itself superior to all Popes, and proceeded to secure the dismissal or resignation of these three prelates. It also undertook to suppress the Wicliffite heresy, which had spread to Bohemia. Its efforts in this direction led to the condemnation and burning of John Huss and Jerome of Prague. The negotiations with Pope Benedict, who was acknowledged in Spain, were intrusted to Sigismund, who thus not unreasonably thought himself the arbiter of Europe, and determined to add to his ecclesiastical successes the healing of the war between France and England. For this purpose he passed through Paris, but met with indifferent success, and then betook himself to England. With Henry, as suppresser of heresy and champion of the Church, he had much in common, and he soon laid aside his position of arbiter to become an English partisan.^[89] One incident of his visit is interesting, as marking both his position and the determined independence of the English. While in Paris he was present at a trial, and one party to the dispute seemed on the point of losing his case because he was not of knightly rank. Sigismund immediately knighted him. This interference was not pleasant to the French, and gave rise to the idea that the Emperor was claiming universal supremacy. On his approach to England, therefore, one of the King's brothers and some other lords rode out into the water by the side of the ship, and there made him solemnly assert that he came as a friend, and claimed no jurisdiction in England.

His close union with Henry.

Sigismund's efforts at procuring peace had been thwarted in Paris by the determination of D'Armagnac, whose position had become apparently more assured than ever. One after the other, Charles VI.'s two elder sons died, and his third son, Charles, who had been brought up by the Armagnac party, was now Dauphin. Besides the Constable, there was no one but his mother who had influence over him. That influence Bernard was determined to destroy. The avaricious character and licentiousness of the Queen afforded easy opportunity. He drove her into privacy at Tours, and seized her money. Henceforward she hated the Dauphin heartily, and was ready to do anything to injure him. Thus, when Burgundy

Failure of Sigismund's mediation.

Armagnac attacks Queen Isabella. 1417.

She allies herself with Burgundy.

Henry's second invasion.

approached Paris with an army, he was suddenly summoned to rescue the Queen from her captivity, and France became still more distinctly divided into the party of the Dauphin and the party of the Queen. Still further to complete the separation, and to give a shadow of legitimacy to their action, the Queen and Burgundy established a counter-Parliament at Amiens, and a rival Great Council of France. The civil war went on increasing in atrocity, and D'Armagnac was too hard pressed to interfere with Henry, who, on August 14th, landed at Honfleur for his second invasion, and proceeded to master Normandy. With Flanders, Artois and Picardy on the one hand rendered neutral by the friendship of Burgundy, and Brittany on the other under a truce with him, he could act at his ease. Caen, Bayeux, L'Aigle, were captured one after the other, and the next year, with four divisions spreading from Artois to Brittany, he pushed southward, conquering all the strong towns as he went. He was not a merciful conqueror. He exacted to the full the rights of war. Most of the towns were treated as Harfleur had been, but in nearly every case a certain number of the citizens were beheaded under the title of rebels.

It was impossible for the French parties, savage as they were, to look on calmly at the English successes; a great attempt at reconciliation was made, but again the obstinacy of the Constable brought it to nothing. The idea of the cessation of the civil war had filled the Parisians with hope. The failure of that hope was more than they could bear. The keys of the gates were secured, and L'Ile-Adam, who commanded one of the garrisons which the Burgundians had pushed close to Paris, was admitted within the walls. The people rose in thousands upon their hated tyrants. Tannegui Duchâtel succeeded in saving the young Dauphin, and retired with him to Melun. Meanwhile, the prisons were crowded with captive Armagnacs, and a few days afterwards the passions of the extreme Burgundian partisans broke loose. The Cabochiens, who had lived as exiles in Burgundy, and returned with the Duke, again made their appearance. A fearful massacre took place at all the prisons; among the number slain was the Constable himself. From this time onward, the Armagnacs were spoken of as the Dauphinois; their leading spirit was Duchâtel, who followed closely in the footsteps of the late D'Armagnac. He would hear of no peace with Burgundy.

The Parisians,
anxious for peace,
admit the
Burgundians.

Yet that peace was terribly wanted, for Henry had now laid siege to Rouen, the capital of Normandy. The defence was in the highest degree gallant. Promises were given by Burgundy that help should be sent, but none came. At length a part of the garrison determined to cut their way through. When a portion of them had already crossed the bridge, it broke with the remainder, and the attempt had to be given up. Men charged Guy Bouteiller, the governor, and not unreasonably, with treacherously sawing the supports. At length all hope, unless succour arrived, was gone. Every eatable thing

Fall of Rouen. Jan.
15, 1419.

had been devoured. Hundreds of useless mouths had been driven without the walls, and not being allowed to pass the English lines, lay starving in the ditches. The extent of charity the garrison could afford to show, was to draw the new-born babes up the walls in baskets, to have them baptized, and then return them to their mothers to starve. Driven to extremities, the garrison sent deputies demanding assistance from the King, and threatening if it did not come to become his fiercest enemies. They were bidden to wait till the fourth day after Christmas. In spite of their miserable plight, they resolved to wait the fortnight that was left. On that day there arrived, not assistance, but a message from the Duke of Burgundy to make what terms they could with the King of England. They asked what those terms would be. He bade them surrender at discretion. But they knew his character too well to trust to his mercy, and resolved to fire the town and make their way out as they could. This threat brought Henry to reason, and for a ransom of 300,000 crowns he gave them the same sort of terms as he usually did. Seven men were excepted from pardon; of these all but one were ransomed. That one, Alain Blanchart, the King, ever unable to appreciate bravery in an enemy, caused to be beheaded.

At length it seemed as though the French factions had come to an understanding; the cry of the whole nation was too strong to resist. A truce was made between the parties for three months, and the Duke of Burgundy, with the Queen and the King, who had been in their custody since the recapture of Paris, met Henry at Meulan, and attempted to come to terms. But Henry still demanded more than it was possible to grant. Burgundy therefore withdrew in anger, and at Pouilli-le-Fort held a personal meeting with the Dauphin, and apparently came to terms with him. The show of friendship was only hollow. Shortly after, at the instigation of Duchâtel, a second meeting was demanded at Montereau sur Yonne. It was nothing but an ambush. The meeting was to be held on the bridge, and barricades were to keep back all but ten partisans of either side; but no sooner was the Duke with two followers within the barrier than Tannegui Duchâtel shut the door on that side, while from the other end the Dauphinois crowded in. The Duke was there murdered, and of his following one man alone escaped.

The effect of this murder was instantaneous. The son of Jean sans peur, Philip, Count of Charolais, at once put himself at the head of his party, and forgetting everything but revenge, opened negotiations with the English. On October 17th, the plenipotentiaries met at Arras, and the preliminaries of the treaty were drawn up; by which Henry was to marry Catherine of France, and to be recognised as heir after the death of the reigning king. Meanwhile he was to have the administration

Negotiation for peace.

Attempted reconciliation of the French parties.

Murder of Burgundy.

Young Burgundy joins England. Treaty of Troyes, 1420.

of the country. All the exchange asked was, that he would make no peace with the Dauphin, and join in carrying on war with that Prince. These preliminaries were to be ratified by the King, the Queen, and States General. The King's imbecility prevented any opposition from him, and the Queen was only too glad of an opportunity of disinheriting her son; she calculated that at least her daughter Catherine, whom she loved dearly, would enjoy the crown. An unexpected consequence followed this treaty, which was completed at Troyes. This was the resurrection of the party of the Dauphin, which henceforward became the national party. Henry was at once called upon to give vigorous assistance, and found occupation for all his army at the siege of Melun, which was defended with extreme courage. But in December he found an opportunity of making a triumphal entry into Paris, where his stern and haughty manner, and "his words which cut like razors," won him but little favour; and thence he passed to England to meet a magnificent reception with his wife.

He there heard bad news. One of the signs of the renewed activity of his enemies had been a treaty with Castile, and the employment of the Castilian fleet. Already, in the preceding year, the Spanish fleet had defeated the English, and then proceeding to Scotland, had returned with a reinforcement of some 4000 men under the Earl of Buchan and Lord Stewart of Darnley. Strengthened with these troops, the Dauphin's party had attacked the English in the west. Clarence, the King's brother, who had been left in charge of the kingdom, advanced to meet them. The armies encountered at Beaugé in Anjou, and there, forgetting the national tactics, and neglecting the use of the archers, they suffered a complete defeat, in which the King's brother was killed. It was the first reverse the English arms had met with, and Henry well understood the moral effect it might have. He hastened at once to France, and leaving alone for the present the disaffection which was showing itself in Picardy, went direct to Paris to re-establish his prestige. Thence he marched to the attack of Meaux, whence an Armagnac garrison was pillaging the country to the very gates of Paris. It was under the command of the Bastard of Vaurus, a savage soldier, who delighted to hang his prisoners by dozens on the branches of a large elm outside his town. The bravery of his defence equalled his barbarity. It was not without the greatest efforts that the town and castle, called the Marché, were reduced.

Meanwhile the war had broken out again in Burgundy, and Henry was summoned to the support of his allies at the siege of Cosne. He would not send help, he said, but would come at the head of his whole army. The boast was a vain one. His army, indeed, set out under the command of the Duke of Bedford and the Earl of Warwick, but the King's health, which

English defeat at Beaugé.

Henry hurries to Paris.

While re-establishing his affairs he dies. 1422.

Death of Charles VI.

had been failing for the last two years, quite broke down, and the generals were hastily recalled to be present at the deathbed of their sovereign, who died on the 31st of August 1422. Conscious of his approaching end, he had made dispositions to meet it; he had laid special stress on the continuation of the treaty with Burgundy; had begged Bedford never to make peace under less advantageous terms than the entire cession of Normandy; had intrusted the regency of France to the same brother should the Duke of Burgundy decline it; put England into the hands of Gloucester; and intrusted the education of his infant son to Warwick. He then died amid all those signs of religious enthusiasm which had marked his life, declaring that he had intended to lead a crusade to Jerusalem, and covering all remorse, which his cruel war might well have excited, by the thought that he had acted with the approbation of those most holy men the English bishops. Stern, haughty, an unpitying soldier, he had yet by his exhibition of firm justice and love of order gained the admiration and respect, if not the love, of his new subjects; and Englishmen forgot his reactionary policy, and misjudged the want of wisdom in his foreign undertakings, amid the enthusiasm his successful career excited. Very shortly after his conqueror, the old King Charles VI. also died, and his son Charles became the representative of the French monarchy. He caused himself to be at once crowned at Poitiers; but the English failed to recognise his title, and spoke of him as the Dauphin.

HENRY VI.

1422–1461.

[click here to see the image](#)

Born 1421 = Margaret of Anjou, 1445.

|
Edward. Died.

CONTEMPORARY PRINCES

<u>_Scotland._</u>	<u>_France._</u>	<u>_Germany._</u>	<u>_Spain._</u>
James I., 1406.	Charles VI.,	Sigismund, 1410.	John II., 1406.
James II., 1436.	1380.	Albert II., 1438.	Henry IV., 1454.
	Charles VII.,	Frederick III.,	
	1423.	1440.	

POPES.--Martin V., 1417. Eugenius IV., 1431. Nicolas V., 1447.
Calixtus III., 1455. Pius II., 1458.

<u>_Archbishops._</u>	<u>_Chancellors._</u>
Henry Chicheley, 1414.	Thomas Longley, 1417.
John Stafford, 1443.	Cardinal Beaufort, 1424.
John Kemp, 1452.	Cardinal Kemp, 1426.
Thomas Bouchier, 1454.	John Stafford, 1432.
	Cardinal Kemp, 1450.
	Earl of Salisbury, 1454.
	Cardinal Bouchier, 1455.
	William Waynflete, 1456.
	George Neville, 1460.
	Sir John Fortescue, 1461.

By the fiction of the English constitution, England was now governed by a child of nine months old. The late King had thoughtfully arranged for the government by the nomination of Gloucester to the regency in England, Bedford to the regency in France; but experience of former regencies, and the constant adherence to constitutional forms which marked the English nobility, led the Privy Council to

Arrangements of the
kingdom. 1422.

make different arrangements. It was determined, in fact, that the Council should be virtually the governing body. This was in accordance with several precedents; even as late as the reign of Henry IV., a council named in Parliament had, during the last years of that monarch's life, governed England. When the hero, whose popularity and ability had for a time carried all men with him, was dead, it was natural that the kingdom should fall back into the same system of government. In the first Parliament therefore, by the advice of the Council, Bedford was made Regent of both France and England, while to Gloucester was given the title of Defender or Protector of the kingdom, which amounted to little more than the position of President of the Council, by whose advice he was bound to act, and of which the members were nominated in Parliament. After this, the grant of the wool tax and of tonnage and poundage, for two years, closed the session.

All interests were still centred in France. To all appearance, both in geographical position and in the talents of their leader, the advantage lay with the English. Bedford shared all the better qualities of his elder brother; as able, both as a general and a statesman, he was of a gentler and a finer character; on the other hand, the Dauphin Charles was a man without vigour, sunk in sensual pleasure, and still under the influence of unprincipled adventurers. His possessions, too, were much restricted. He found himself confined to the centre and south-east of France. It was only from south of the Loire to Languedoc that his power was unquestioned. Either England or its great ally Burgundy possessed or dominated all other parts of France; while Savoy and Brittany, at the extreme and opposite corners, were professedly neutral. The strength of this position, such as it was, lay in its central situation. The immense extent of country the English held required resources beyond the power of that country single-handed to produce; by alliance with Burgundy alone was it possible. But misgovernment and party feeling prevented any great exhibition of strength on the part of France. She had to rely chiefly on mercenaries, and the war was merely kept alive. In 1423, Bedford succeeded in forming anew a close alliance with Burgundy, in which Brittany also joined. It was cemented by a double marriage; on the one hand, Bedford married Anne, Philip's sister, while Arthur of Richemont, the brother of the Duke of Brittany, married her elder sister Margaret.

The treaty was scarcely finished when Bedford had to move southward to relieve Crévant on the Yonne, closely besieged by the Scotch and French. The expedition was very successful. A simultaneous attack from the city and the relieving army destroyed the besiegers; 1200 knights,

Position of parties in France.

Bedford's marriage. 1423.

Release of the Scotch King.

It is useless.

chiefly Scotch, were said to have been left on the field. But fresh recruits were continually coming to the French, some from Italy, some from Scotland; notably 5,000 men under Archibald Douglas, who was raised to the Duchy of Touraine; while Stewart of Darnley, their former leader, received the lordships of Aubigné and of Dreux. Bedford attempted to cut off this source of help by arranging for the release of the Scottish King, who had now been twenty-four years a captive in England. In September 1423, his freedom was arranged, on the payment of £40,000 for his past expenses, and upon a promise on his part that he would keep peace with England, and marry an English lady. He was told to choose his own wife, as English ladies were not in the habit of proposing for husbands, and married Joan Beaufort, daughter of the Earl of Somerset, granddaughter of John of Gaunt. He did his best, though not always successfully, to keep his promise of peace. But this step on the part of Bedford did not stop the Scotch in France. They pushed on even to the borders of Normandy, and captured Ivry. Bedford addressed himself to the recovery of that fortress. 18,000 troops, Scotch, French, and Italians, led by the Duke of Alençon and Earl of Buchan, now Constable of France, marched to relieve it. This they were unable to do, but revenged themselves by the capture of the neighbouring town of Verneuil. Thither the Regent pursued them, and there he brought them to action. It was the old story over again. The French had not yet learnt wisdom by experience; and again the mass of heavy-armed foot, with cavalry on the flanks, was shattered by the English archers from behind their impenetrable wall of pointed stakes. The Scotch auxiliaries were nearly destroyed; and among the 5000 dead were the Earls of Douglas, Buchan and Aumale. The victory was likened in Parliament to the Battle of Agincourt. Its effects were almost as complete. For the time the French had to withdraw completely behind the Loire.

Battle of Verneuil.
1424.

Consequent strength
of the English in
France.

It was the unbridled folly of Gloucester which disturbed the favourable position which Bedford had secured. The Countess Jacqueline of Hainault and Holland had married John of Brabant, and had fled from her husband. She had taken refuge in England, and just before the death of Henry V., Gloucester, during the life of her former husband, had taken her for his wife. The Duke of Burgundy was the cousin and close ally of John of Brabant, and had hoped to bring all the Netherlands under his power by his kinsman's marriage with Jacqueline. Gloucester would hear of no compromise, but, in 1424, appeared with 5000 English troops in Calais, and took possession of Hainault. Philip of

It is disturbed by
Gloucester's
marriage.

First blow to
Burgundian alliance.
1424.

Burgundy at once wavered in his friendship for England, drew closer his connection with Brabant, and even procured a truce with the Dauphin. Preparations for a duel, to which he had challenged Burgundy, called Gloucester home. The immediate effect of his departure was the occupation of Hainault by John of Brabant. Jacqueline herself was taken prisoner, but managing to escape in man's clothes, she reached her other dominions in Holland, and thence proceeded to begin a war with Burgundy. Her English lover could send her but little help, and at last, after her husband's death in 1428, she surrendered to Philip, and declared him her heir. Gloucester's infidelity broke off relations between them, and eventually, in 1436, the whole of the Netherlands came into the power of Burgundy. It has been said that, without the friendship of Burgundy, the English resources were insufficient to retain France. This was the first shock that friendship received.

This outbreak of Gloucester's was but one instance of his intemperate and ambitious character. At home, he had already involved the government in difficulties, by his constant rivalry with Henry Beaufort, Bishop of Winchester, second son of John of Gaunt by Catherine Swinford. This Prince had already been engaged in all the prominent affairs of the last reign. But though a man of vast wealth and large ambition, his aspirations in England were rather for his family than for himself; and in the financial difficulties which began to beset England his money was freely advanced without interest to Government. In 1424, he had been made Chancellor, for the express purpose of counterbalancing the power of his nephew Gloucester, and in pursuance of this object, he had, during Gloucester's absence in Hainault, garrisoned the Tower, from which Gloucester on his return found himself excluded. This produced an open quarrel and an appeal to arms, only repressed by the intervention of the Prince of Portugal, at that time in England. There was one man only who could decide this quarrel, and that was the Duke of Bedford, who on coming to England would at once become the constitutional Regent. He found it therefore necessary to leave France, where he was much wanted, and to return to England. He contrived to bring about a reconciliation, at a Parliament held at Leicester. The Bishop of Winchester, from patriotic motives, resigned his chancellorship, and got leave to absent himself from England to go on a pilgrimage. At the same time, the Parliament defined as before the power of Gloucester, establishing the practical supremacy of the Council. This definition Bedford accepted. Eventually, though much against his will, Gloucester was induced to do so also; but his real view was expressed in the words attributed to him, "Lat my brother governe as hym lust, whiles he is in this lande, for after his

Rivalry of Beaufort and Gloucester.

Gloucester's marriage with Eleanor Cobham.

going overe to Fraunce, I wol governe as me semethe goode.” It was plain that the views of Bedford and Gloucester as to the government of England were very different. Nor had Bedford long left England to return to France when his brother gave rise to a fresh scandal. He had already forgotten Jacqueline, and even while getting supplies from the Commons, with whom he was very popular, for the purpose of upholding her cause, had married his former mistress Eleanor Cobham.

On his return to France, the Duke of Bedford found that his brother’s conduct had increased his difficulties. Richemont, the brother of the Duke of Brittany, had been won to the French side, and received the rank of Constable, vacant by the death of Buchan, and was now using all his influence to induce his brother-in-law Burgundy to follow his example. Bedford’s presence for the moment improved the position of the English. He contrived to renew an alliance with both Burgundy and Brittany, and was thus secured upon either side of Normandy. Encouraged by this success, the English generals were eager to press forward beyond the Loire, which had hitherto been the limit of their conquests. It seems probable that Bedford, with a clearer view of the difficulties of his position, would have been well content to have carried out the wishes of his brother Henry by securing Normandy. He, however, yielded to the pressure brought to bear upon him, and in October, the siege of Orleans, situated on the northernmost angle of the river Loire, and from its position holding command of that river, was undertaken. The town itself stands upon the northern bank, but is connected with a southern suburb, the Portereau, by a bridge, terminating in a strong castle called Les Tournelles. The siege was intrusted to Salisbury,^[90] who began the attack upon the southern side. He established his troops in a fortified camp in the ruins of a monastery of Augustinians, and before long succeeded in capturing Les Tournelles, and breaking the bridge. He was unfortunately killed, while examining the country from that fortress, with a view to further investment of the town. The command devolved upon the Earl of Suffolk, who succeeded before the close of the year in erecting a string of thirteen strongholds, called bastides, round the Northern city. But the weather and want of resources compelled him to put these too far apart, and the intercourse of the defenders with an army of relief under the Count of Clermont at Blois was not broken off. Early in the following year, this army hoped to raise the siege by falling on a large body of provisions coming to the besiegers from Paris under Sir John Fastolf. The attack was made at Rouvray, but Fastolf had made careful preparations. The waggons were arranged in a

Bedford again
secures Burgundy,

and attacks Orleans.

Battle of the
Herrings.

square, and, with the stakes of the archers, formed a fortification on which the disorderly attack of the French made but little impression. Broken in the assault, they fell an easy prey to the English, as they advanced beyond their lines. The skirmish is known by the name of the Battle of the Herrings. This victory, which deprived the besieged of hope of external succour, seemed to render the capture of the city certain.

Already at the French King's court at Chinon there was talk of a hasty withdrawal to Dauphiné, Spain, or even Scotland; when suddenly there arose one of those strange effects of enthusiasm which sometimes set all calculation at defiance.

Danger of Orleans.

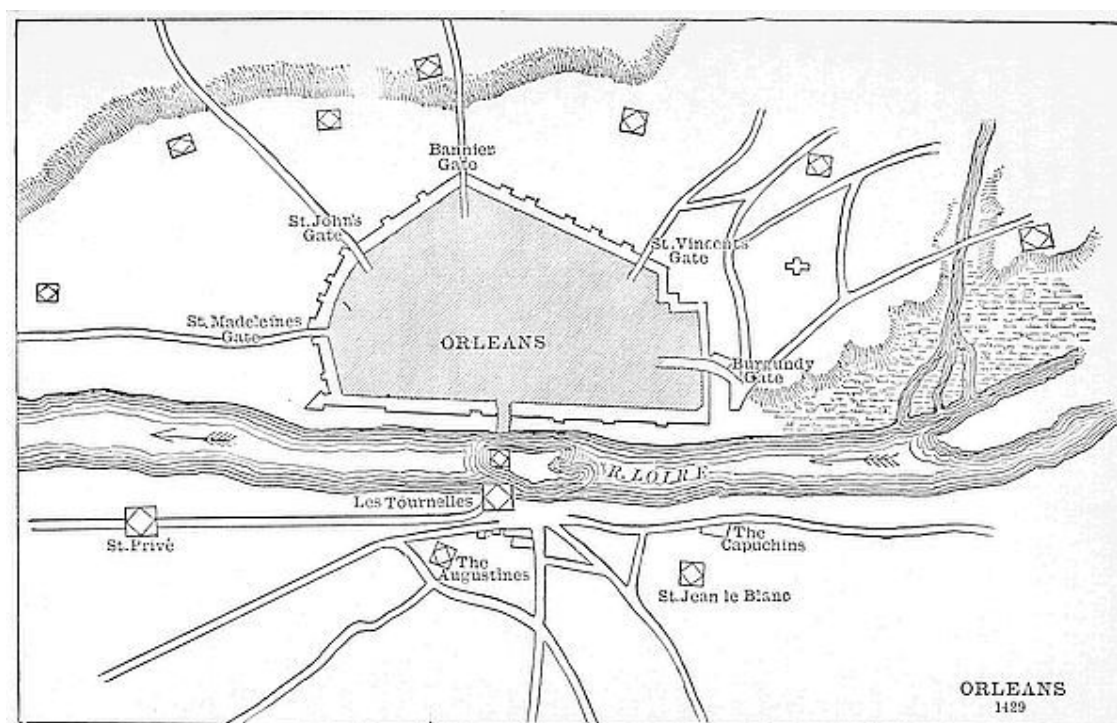
In Domrémy, a village belonging to the duchy of Bar, the inhabitants of which, though in the midst of Lorraine, a province under Burgundian influence, were of patriotic views, lived a village maiden called Joan of Arc. The period was one of great mental excitement; as in other times of wide prevailing misery, prophecies and mystical preachings were current. Joan of Arc's mind was particularly susceptible to such influences, and from the time she was thirteen years old, she had fancied that she heard voices, and had even seen forms, sometimes of the Archangel Michael, sometimes of St. Catherine and St. Margaret, who called her to the assistance of the Dauphin. She persuaded herself that she was destined to fulfil an old prophecy which said that the kingdom, destroyed by a woman—meaning, as she thought, Queen Isabella, —should be saved by a maiden of Lorraine. The burning of Domrémy in the summer of 1428 by a troop of Burgundians at length gave a practical form to her imaginations, and early in the following year she succeeded in persuading Robert of Baudricourt to send her, armed and accompanied by a herald, to Chinon. She there, as it is said by the wonderful knowledge she displayed, convinced the court of the truth of her mission. At all events, it was thought wise to take advantage of the infectious enthusiasm she displayed, and in April she was intrusted with an army of 6000 or 7000 men, which was to march up the river from Blois to the relief of Orleans. When she appeared upon the scene of war, she supplied exactly that element of success which the French required. Already long and bitter experience had taught them the art of war. They were commanded no longer by favourites of the Court, but by professional soldiers, such as Dunois, the Bastard of Orleans, La Hire and Saintrailles; and the cause of their weakness was the deep-rooted immorality both of public and private life, which the disastrous party struggles of the last reign had produced. A national instead of a party cry, strict morality enforced by a Heaven-sent virgin, and the

Joan of Arc.

Causes of her success.

The siege is raised.
May 8.

enthusiasm of religion, were well calculated to remove this cause of weakness. It is to this combination of experience with enthusiasm that the success of the French henceforward must be traced. Aided by the skill of Dunois, Joan succeeded in entering Orleans by water, while her army the day after marched in unopposed upon the northern side. After various attacks upon the Bastides, she at length, on the 6th and 7th of May, attacked the lines upon the south of the river. The camp in the Augustinian monastery was captured, and after a fierce assault the Tower of the Tournelles fell into the hands of the French, Gladsdale, the commander on the left bank, being killed. The effect of her uniform success, and the superstitious dread she inspired, is shown by the fact that three such generals as Suffolk, Talbot and Fastolf, who commanded on the northern side of the river, took no steps to assist their distressed comrades, and on the following day raised the siege.



ORLEANS
1429

The release of Orleans was quickly followed up. The English were hotly pressed. In June, Jargeau on the Loire was taken, and Suffolk with it; while on the 18th of the same month, Talbot and Fastolf suffered a thorough defeat at Pataye, while attempting to save other fortresses lower down the river. Joan of Arc had set herself two great duties to

March to Rheims to
crown the Dauphin,

and unsuccessful
attack on Paris.

perform—the relief of Orleans, and the coronation of the Dauphin at Rheims. To this second duty she now addressed herself. Her difficulties arose chiefly from the folly of the Dauphin, who was under the influence of his favourite, La Tremouille, a strong Armagnac, whose object it was to prevent his master from entering upon an independent course of action. These difficulties were at length overcome. At the head of a small army, Charles and the Maid of Orleans marched successfully into the heart of their enemy's country, securing either by force or by negotiation the strong cities on the way. At Rheims the coronation was completed, and thence the French generals directed their march on Paris at the persuasion of Joan. But there, while Joan had been overcoming the reluctance of the French Prince, Bedford had assembled an army of sufficient strength to resist them. He had summoned to his aid the Bishop of Winchester, who had returned from his pilgrimage to Rome with instructions to collect troops to assist the Emperor Sigismund against the heretic Hussites of Bohemia. With this little army he now joined his nephew; and Bedford, alarmed by the rapid defection of great towns such as Blois, Beauvais and Compiègne, determined, if possible, to destroy the superstitious confidence of the French by a successful battle. In this he was disappointed, for, after an indecisive skirmish near Senlis, he was compelled to fall back to cover Paris. For the present, however, this formed the limit of the French successes. A fruitless attack on the city, in which the Maid was wounded, caused timid counsels to prevail, and the army withdrew behind the Loire.

The winter was employed by Bedford in continued efforts to retain the friendship of the Duke of Burgundy; and the united armies of Burgundy and England were attempting to regain Compiègne, when in March Joan of Arc again took the field. She succeeded in passing through the two armies, and in entering the city, but was surprised during a sally and taken prisoner. Her capture gave the English hopes that they might still retain their conquests, as the sluggish and vacillating character of the French King was well known.

Bedford set to work to do all he could to regain the prestige he had lost the preceding year. Shortly after the coronation of Rheims, he had caused King Henry to be crowned at Westminster, and with his brother Gloucester had retired from his official situation. He now determined to have the coronation repeated in France. Henry was brought over for that purpose, but it was found impossible to crown him at Rheims, now completely in the hands of the French. Bedford had to content himself with a coronation at Paris. Meanwhile the unfortunate prisoner had been given up to be tried as a sorceress. She was found guilty, and

Capture of Joan of Arc. 1430.

Coronation of King Henry.

Joan's death. 1431.

handed over to the secular arm: for a moment she was induced to confess herself guilty, abjuring the truth of her Divine calling; her resumption of arms in the prison was regarded as a relapse into heresy: she was therefore burnt at Rouen. The strangely superstitious character of the age, and the devout belief which existed in sorcery, cannot excuse what was, in fact, an act of base revenge.

From this time onwards the fortunes of England declined. Difficulties accumulated on all sides. The long war had caused such a drain on the finances, that the payment of the troops had already been lowered, and a dangerous mutiny had broken out at Calais. At the same time, Gloucester's meddlesome and overbearing character perpetually kept the Government at home in disturbance. In 1428, an attack was made on the Bishop of Winchester. He had returned from Rome a Cardinal, and with the rank of Papal Legate for the purpose of collecting troops against the Hussites. His authority thus clashed with that of the Archbishop of Canterbury, who was *ex officio* Legate when no one else was specially appointed to that office. Displeased at being superseded, Chicheley joined with Gloucester, and suggested that Winchester, by becoming Legate without royal permission, had incurred the penalties of *præmunire*. Winchester was therefore excluded from the Council, and from the Chapter of the Garter, of which he was the Prelate, held in 1429. His place in the Council was restored to him in gratitude for his conduct in the following year, when he lent troops to Bedford after the relief of Orleans. Nevertheless, during his absence in 1431, he was asked to resign his bishopric, as being the officer of a foreign power, and Gloucester brought formal charges against him, and caused the writ of *præmunire* to be actually prepared. The execution of the writ was postponed till the King's return, when Beaufort was allowed to clear himself, and a declaration vouching for his loyalty given him under the Great Seal. While thus attacking the Cardinal, Gloucester had been attempting to increase his popularity, already very great, by assuming the position of champion of the Church, and persecutor of heresy. In 1430, a man calling himself Jack Sharpe had been put to death at Oxford, and a clergyman of Essex had also been burnt. But there was evidently still existing a strong undercurrent of Lollardism; for the people came in crowds to the place of execution, and made offerings as though the victim of persecution had been a saint. But even worse for Bedford than these troubles at home was the loss of his wife, who died in November 1432, childless, thus breaking the strongest link

Increasing difficulties of the English. 1432.

Conduct of Gloucester.

Bedford re-marries. Second blow to the Burgundian alliance.

Formation of peace and war parties.

Great peace congress at Arras. 1435.

which had hitherto bound England and Burgundy together. This misfortune was made worse by one of the few acts of indiscretion which can be alleged against Bedford. He married Jacquetta, daughter of the Count of Saint-Pol, of the House of Luxembourg, a marriage in itself politic enough, but which, contracted as it was without the permission of Burgundy, the lady's feudal superior, caused a quarrel between the two Dukes. This was the second heavy blow which the alliance between England and Burgundy had received. Yet this alliance was absolutely necessary for the successful carrying on of the war. It began to be a question whether peace of some sort was not becoming necessary. Bedford even in the year 1431 received leave from the English Parliament to treat. Abroad the feeling in favour of peace was still stronger. Pope Eugenius IV. had set seriously to work to put an end to the warfare. The Emperor Sigismund, with Frederick of Austria and Louis of Orange, alarmed at the rising power of the Burgundian House, had made offers of assistance to the French King. The Bretons, headed by the Count of Richemont, were anxious to renew their natural alliance with France. Burgundy himself, in 1432, had gone so far as to make an armistice with the French; the presence at the French Court of La Tremouille, one of the murderers of the Duke's father and the constant supporter of the war, seemed the only obstacle to reconciliation: if that reconciliation were made Bedford must of necessity make peace. Other difficulties were leading him in the same direction. The finances were in the greatest disorder; the garrison of Calais mutinied for pay. Bedford therefore, in 1433, returned to England to see what could be done. He made Lord Ralph Cromwell his treasurer, and intrusted him with the duty of examining and making a statement as to the condition of the finances. It became apparent that the yearly outgoing exceeded the income by £25,000. Bedford at once insisted on economy, and patriotically gave up a considerable portion of his own salaries. But the discovery of his failing resources, the necessity for his presence in England, where Lords and Commons united in intreating him to remain, the increase of the power of France, and the constant danger of reconciliation between Charles and Burgundy, induced him to be quite ready to make arrangements for a peace on honourable terms which should include the possession of Normandy. Such views did not suit Gloucester. He put himself prominently forward as the head of the war party, producing a great but impracticable plan for pressing the war with vigour. Bedford's residence in England was short. During his absence all went wrong; St. Denis was lost, and the Earl of Arundel taken prisoner. He was forced to return to France, and to leave the parties in England (now clearly defined as peace and war parties) to carry on their quarrels. But the general feeling for the necessity of peace, and for the release from their long imprisonment of the captives taken at Agincourt, gained ground abroad. So much was this the case, that Burgundy found means to

assemble on the 14th of July what may be fairly called a European congress, at Arras, to settle if possible the peace of Europe. Thither came ambassadors from the Council of Bâle, (at that time sitting,) the Legate of the Pope, and ministers from the Emperor, Castile, Aragon, Navarre, Portugal, Naples, Sicily, Poland, Denmark, the Parisian University, and the great commercial towns of the Hansa and of Flanders. Archbishop John of York at first represented England. The Duke of Bourbon, who had already entered into agreement with Burgundy, represented France. Even on their first appearance, the English ambassadors were displeased with the precedence given to the French. The rival demands were these:—France wished either for a peace with Burgundy, and the continuation of the war with England, or if there was a cessation of that war, that the peace should be unconditional, with the restoration of all prisoners and all conquests, the three Norman bishoprics alone being left to the English, and those only as fiefs of the French crown; the English demanded the retention of their present possessions and an armistice. The pretensions of the two nations were evidently incompatible; even Cardinal Beaufort, who had joined the congress, was afraid of the war party at home, and on the 6th of September the English embassy withdrew.

At this inopportune moment an event happened which settled the wavering mind of Burgundy, and induced him to make a full reconciliation with the French. This event was the death of the Duke of Bedford. There was no one to fill the place of that great man. It had been his personal influence more than anything else which had kept Burgundy true to England. On his death the Duke at once declared himself ready to receive the terms which France offered.

Bedford's death.
Consequent
defection of
Burgundy.

Obstinacy of the war
party.

These were humiliating enough. Charles apologized for the death of Duke John, declared that he held the act in abhorrence, that he had been brought to consent to it by the advice of wicked ministers, and would henceforward exclude all Armagnacs from his council. At the same time he granted to Burgundy, Macon and Auxerre, together with the basin of the Somme, or Ponthieu. At first, news of this treaty served only to arouse the warlike feeling of the English. The appearance of the Burgundian envoy in London was the signal for violent riots. It was determined to prosecute the war with vigour. A great loan was raised throughout the country, and the prosecution intrusted to the young Duke of York. It was not to be expected that this young prince, however great his ability, could do what Bedford had been unable to accomplish. United with Burgundy, England had scarcely held its position in France. Against France and Burgundy united, it was helpless.

Already before York's arrival a great piece of Normandy, and even Harfleur, had been lost. In April the French King, with Burgundy, advanced on Paris, and was admitted by the townspeople. The war party grew only more obstinate. Gloucester revived his absurd claims upon Flanders in right of Jacqueline, and assumed the title of Count of Flanders. York and Talbot succeeded in driving back the Burgundians from Calais; but this was almost the only English success. In July 1437, York was recalled, and Beauchamp, Earl of Warwick,^[91] appointed in his place. But it was too late for any one to check the advance of the French. That country was indeed exhausted and miserable to the last degree; but England was in little better plight. For several years the plague had been raging, and an unusually bad harvest added to the horrors of disease. Bread there was none, the people were reduced to live on pulse.

Continued ill
success. 1437.

Moreover, the English forces were divided by the threatening aspect of affairs in Scotland. The young King had done his best to keep his promise of peace, but found it impossible to break off the long-standing connection with France. In 1428, his daughter Margaret had been betrothed to Charles VII.'s son, Louis of Anjou. This had excited the fears of the English, and in the following year, the Bishop of Winchester, under the plea of collecting help for his proposed crusade against the Hussites, had visited Edinburgh. A marriage treaty had even been proposed between the two countries, but it came to nothing, and a vigorous diplomatic struggle was still being carried on between the rival parties of France and England, when, in 1434, the folly of Sir Robert Ogle, who led a raid into the Scotch Lowlands, turned the scale in favour of the French. The marriage between Margaret and Louis of Anjou was at once carried out, and, in 1436, an army, with King James at its head, attacked Roxburgh. Fortunately for England, the Scotch King, bred at the Court of Henry V., and eager to introduce into his own kingdom the orderly constitution he had known in England, had excited the anger of his nobles. News of a conspiracy reached him, and he withdrew from his invasion only to fall a victim to that conspiracy in the following year. Weakened by these domestic confusions, Scotland was content to enter into a truce for ten years.

Danger from
Scotland.

James's death.

Neither the suffering of the people, nor the danger from Scotland, nor the constant want of success abroad, had any influence on the passionate obstinacy of Gloucester. Meetings with regard to peace were in vain held at Paris, the English refused to recede from their demands. At length, however, Cardinal Beaufort and the peace party so far prevailed, that, after the fall of Meaux, they

Peace party procure
the liberation of
Orleans. 1440.

procured the liberation of the Duke of Orleans, hoping to find in him an efficient mediator. As a protest against the measure, while the Duke was taking the oaths required of him before his liberation, Gloucester, refusing to be present, betook himself to his barge and remained upon the river. The measure did not produce the desired effect. The Duke of Warwick had died in May 1439. Somerset, who had succeeded him, retook Harfleur, but, in the two following years, not only did the French successes increase in Normandy, even Guienne was in its turn assaulted. All efforts to save it were in vain, and it became quite evident that the policy of peace was the only one which could extricate England with honour from its disastrous situation.

The death of Bedford had left Cardinal Beaufort at the head of the party who desired a reasonable peace. But Beaufort was old, and the influence of Gloucester, as first Prince of the blood and the leader of the popular party, kept him much aloof from public business. In his place there arose a new minister, De la Pole, Earl of Suffolk. This man, a descendant of a wealthy merchant in the reign of Edward III., and grandson of the favourite of Richard II., was fully engaged upon the side of the Lancastrian dynasty. He had been taken prisoner after the siege of Orleans, and had in France formed connections which pointed him out as a fitting person to manage negotiations with that country. It was determined, if possible, to make the marriage of the young King with a French Princess the basis of a peace. The Princess fixed on was Margaret, the daughter of René, Duke of Bar, representative of the Angevin house, the titular King of Sicily and of Jerusalem.^[92] Suffolk undertook to manage the delicate negotiation, although conscious, it would seem, of the obloquy he would probably meet with. He succeeded in obtaining an armistice to extend from June 1444 till April 1446, and the marriage treaty was completed; but so far from receiving a dower with his wife, as might have been expected, (but which her father, who had surrendered his duchy to the Duke of Burgundy, was quite unable to give,) it was arranged that Henry should surrender to the French, as the price of their consent, all that was left to the English of Anjou and Maine, where the war was still being carried on. In carrying out this arrangement, Suffolk had the consent of the Privy Council, but it is probable that they did not contemplate so complete a cession of English rights. His successful return secured him the title of Marquis, and the friendship of the young Queen (whose masculine mind soon got entire command of her husband's will), and enabled him to hold a position of complete superiority in the English councils.

Peace becomes necessary. Rise of Suffolk.

Marriage of Henry with Margaret of Anjou.

Pre-eminence of Suffolk.

Alliance with the French, on the somewhat disgraceful terms on which it had been contracted, not unnaturally raised the anger of Gloucester and his party. The rivalry grew hot between him and Suffolk. There were probably private causes of trouble between them, but at all events, in 1447, the Parliament was held at Bury St. Edmunds, and Gloucester was summoned thither. He went with a considerable following, but does not seem to have suspected danger, although he found the town fortified, and the guards everywhere doubled. He was suddenly apprehended on the charge of high treason, and before any trial was granted him, the public were told that he was dead. A death so opportune for his enemies naturally excited suspicion, and the most sinister rumours of foul play were spread among the people. It is impossible not to join in these suspicions; at the same time it is fair to notice that at a late examination his physician had declared his constitution radically unsound, and that some contemporary writers mention his death as having arisen from natural causes.

Gloucester's death.

His death left room for Richard Duke of York's appearance upon the stage of politics. The son of Anne, sister of the Earl of March, and of that Duke of Cambridge who was put to death for his share in the conspiracy immediately preceding Henry V.'s first expedition to France, he stepped naturally into the place of leader of the Plantagenet Princes. Ever since that family ascended the throne, those branches of it which had not been actually reigning had been for the most part in opposition. Till their accession, the Lancastrians had been the leaders of this party; their place was now taken first by Gloucester, then by York. It will be seen in the sequel that those same families which had formed the discontented party in the reign of Richard II., and in opposition to the Lancastrians, now sided chiefly with York. He had been already employed in public affairs, had been twice governor of Normandy, and in that capacity had quarrelled with the Duke of Somerset, who had been joined with him in command. To rid himself of so important an enemy, Suffolk, the leading statesman of the ruling party, had got him appointed in 1446 to the government of Ireland. This was a post of considerable difficulty; for under the management of the Earls of Ormond, one of the old Anglo-Irish settlers, that country had fallen into great disorder.^[93]

York takes his place.

After Gloucester's death Suffolk had become unquestioned chief Minister, for Cardinal Beaufort had not long survived his nephew. He took upon himself all the unpopularity which the Lancastrian dynasty had latterly earned. It is plain that among the people there was deep-seated discontent. The persecution of the Lollards had never

Absolute ministry of Suffolk.

His unpopularity.

relented. Frequent executions are recorded for heresy. The support the Lancastrians had constantly given to the Church had even produced several outbreaks. In 1438, and again in 1443, there had been uproars in several parts of England, directed against the Catholic ecclesiastical foundations. Nor was this unnatural. Amidst the misery and desolation caused by repeated plagues and famines, and the expenditure both of men and money incident upon a foreign war, the Church alone, represented by the wealthy Cardinal Beaufort, had retained its prosperity; while, to crown all, national honour had been deeply wounded by want of success in France. To this inherited unpopularity, Suffolk added that which arose from the late dishonourable marriage treaty with France. Instead of attempting to lessen the feeling against him, he followed the common course of upstart ministers. The Princes and great nobles found themselves excluded from the Council. His ministers were chiefly bishops, especially Ascough, Bishop of Salisbury, and De Moleyns, Bishop of Chichester, and men of little eminence, as Lord Say. His government in fact resembled that of Bernard of Armagnac in France, and took that particularly objectionable form, the superiority of the lesser nobles.

His foreign policy, too, was eminently unsuccessful. At the close of the truce, in 1446, he had not secured any permanent peace; and early in 1448, an ill-judged outbreak of some English auxiliaries, who captured the town of Fougères, again plunged England into war. John, Duke of Somerset, perhaps in despair at his ill success, had killed himself. His brother Edmund succeeded to his title and position in France. His opposition to the French, who attacked him in great force, was entirely unavailing, and before the year was over Rouen and a large part of Normandy had been regained by the French. In May an armament under Sir Thomas Kyriel had been defeated near Formigny; in July Caen surrendered; and in August the last remnants of the English army returned to England from Cherbourg. In the following year a last effort was made to retain some position in Guienne with equally bad success.

Renewal of the war.

The loss of Rouen, in 1449, brought the anger of the people to its highest point. In an uproar they put to death De Moleyns, Bishop of Chichester, at Portsmouth; and at length the House of Commons, led by Tresham their speaker, insisted upon the apprehension of Suffolk, who had now become a Duke, upon a charge of treason. On the 7th of February eight charges were brought against him of a somewhat indefinite character, especially charging him with a wish to marry his son John to Margaret Beaufort, thus aiming at the kingdom,

Fall of Rouen. 1449.

Popular outbreak against Suffolk.

Murder of Suffolk.

and with gross mismanagement and treachery in France. These were followed by sixteen more specific charges, in which it was asserted that he had appropriated and misused the royal revenues, interfered with the course of justice, and treated treacherously with the French. On the 13th he appeared before the King in the House of Peers. He denied most of the charges, and excused himself on others on the ground that he had acted with the approbation of the Privy Council. He however, declining the privilege of his peerage and trial by the House of Lords, threw himself entirely upon the King's mercy; and Henry, hoping to get over the difficulty without giving up his friend, without a trial banished him for five years. This was a manifest breach of the Constitution, and served only to increase the general discontent. The Duke escaped privately to his own estates, and took sea at Ipswich, but was met by an English squadron, taken on board the largest ship, the "Nicholas of the Tower," and after a sham trial by the seamen, obliged to enter a little boat. He was there beheaded, with a sort of parody of the usual forms of execution. It is pretty evident that behind the popular anger there was the influence of the Duke of York and other noblemen at work.

At the next Parliament, which was held at Leicester, many of the nobles appeared in arms. At the same time the news of the defeat of Kyriel at Formigny arrived; and at once the men of Kent, who were probably in close alliance with the seamen who had executed Suffolk, rose. Their leader was Jack Cade. He led the insurgents under strict discipline towards London, assuming the name of Mortimer, and we cannot but believe with the knowledge of the Duke of York. Two papers were sent in to the Government; one called the Complaints, the other the Demands, of the Commons of Kent. In these were summed up the causes of the unpopularity of Suffolk; and the restoration of Richard of York to favour was demanded. Unable to hold their advanced position, the insurgents fell back to Sevenoaks, but there they were successful against a hasty attack by Sir Humphrey Stafford.^[94] The King retired from London, and so far yielded as to order the apprehension of Lord Say, one of the obnoxious councillors. Cade then advanced, took possession of Southwark, and appeared in London, under the title of the Captain of Kent, and in the arms of Stafford. The burghers of London, full of sympathy for the demands of the Kentish men, and pleased with the strict discipline preserved, sided at first with the insurgents. At a formal trial presided over by the Lord Mayor, Say, who had fallen into the hands of the people, was condemned and immediately executed. Meanwhile, almost at the same time, Ascough, the obnoxious Bishop of Salisbury, was put to death by his own followers at Eddington. Thus all the obnoxious ministers had been got rid of. London was now in the hands of the populace. The temptation was too strong for them, and

Jack Cade.

some plundering took place. On this the Londoners took fright, and, when the insurgents retired for the night to Southwark, broke down and defended the bridge. Cade, unable to regain London, fell back, and after his followers, deceived by a promise of general pardon, had chiefly dispersed, was pursued and put to death near Lewes by Iden the sheriff.

The disaffection was by no means quieted. Complaints were bitter, that by repeated prorogations of Parliament supplies were obtained without any redress of grievances, and that the bishops and clergy sided with the oppressors. While public feeling was in this irritable condition, York,

Continued
discontent.

suddenly leaving his government of Ireland without leave, appeared on the Welsh border with 4000 of his vassals. In this threatening manner, and accompanied by the Duke of Norfolk, the Earls of Devonshire and Salisbury, the whole clan of the Nevilles, and the Lords Cromwell^[95] and Cobham, he appeared at Westminster. Meanwhile, Somerset, the acknowledged head of the rival party, returned from France, and received the office of Constable. The parties were assuming form, and a crisis was evidently at hand. York made a formal demand for the dismissal of Somerset and the punishment of the Duchess of Suffolk. As yet, however, the Government was strong enough to refuse these demands, and during the whole of the year 1451, without any public acts, the quarrel was becoming more embittered. In Devonshire Lord Bonville was at open war with the Earl of Devonshire. In the North, Percy, Lord Egremont, was fighting with the Earl of Salisbury. And in the winter, the Welsh vassals of York were gathered round the castle of Ludlow. Hitherto York and his partisans had persistently declared themselves the faithful servants of the Crown, interested only in the removal of the King's bad ministers. None the less, in the beginning of the year 1452, Somerset and the King marched into the West, where York had been collecting his vassals, while York, moving in the opposite direction, passed the royal troops, and appeared in Kent, where he felt sure of support.

York's appearance in
arms. 1452.

This summoned the King back towards London; he took up his position at Blackheath, and there received the demands of York, to which he consented, promising to imprison Somerset, and to form a new council. Trusting to this promise, York disbanded his army, and went to have an interview with the King. He there discovered, to his dismay, that he had been deceived. His rival was in the tent, and evidently still in favour. Hot words were exchanged, but ultimately York was compelled to renew his oath of loyalty, and the Somerset party for the instant triumphed. The next Parliament was strongly in their favour; the speaker,

He is duped into
submission.

Thomas Thorpe, a strong partisan of the Lancastrians. The King's half-brothers, the sons of Owen Tudor, (Edmund, Earl of Richmond, and Jasper, Earl of Pembroke,) were brought prominently forward as members of the royal house, and Cardinal Kemp, now Archbishop of Canterbury and Chancellor, declared that the Government would enforce peace by arms if necessary.

This triumph was of short duration. News arrived of the failure of the new expedition for the rescue of Guienne, and of the death of Talbot, Lord Shrewsbury, its leader, at Castillon. And worse than that, the King, who had all his life suffered both from bodily and intellectual weakness, fell into a condition of hopeless imbecility. Under these circumstances, the birth of a Prince called Edward, which might have added to the strength of the Lancastrian party, was but a source of weakness. York, as heir presumptive to the throne of a sickly monarch, might have been contented to wait; the birth of a new heir apparent urged him to do what he had to do quickly. The opportunity, too, now offered itself; during the imbecility of the King, some regent was wanted; there was no excuse for passing over York. An instant change of government was the consequence. Somerset was apprehended. Even the Parliament chosen under the Lancastrian influence could not refuse, after it had obtained proof of Henry's folly, to appoint Richard. The amount of authority given him seems to have been exactly that which Gloucester had enjoyed. He was President of the Council, and chief executive officer. His office was terminable at the royal will. Though thus limited, his power was sufficient to enable him to change the constitution of the Council, to carry through a breach of Parliamentary privilege by imprisoning for a debt Thorpe the speaker, and on the death of Cardinal Kemp, to appoint his brother-in-law Richard Neville, Earl of Salisbury, to the chancellorship.

Imbecility of the King. Prince of Wales born. 1454.

York's first Protectorate.

But the supremacy of York disappeared as suddenly as it had arisen. At the end of 1454, on Christmas Day, the King recovered his senses. Everything was immediately reversed. Somerset was taken from the Tower and declared innocent. York's officers were displaced. True to the policy of his house, Henry restored the chancellorship to the Church by the appointment of Thomas Bouchier, Archbishop of Canterbury. But York had now determined upon an appeal to arms. Urged by fear of Somerset, and by dislike to the secondary position which the Prince's birth had given him, and in company with the Nevilles, Lord Salisbury, and his son the Earl of Warwick, he advanced towards London, to forestall the action of the Parliament

Recovery of the King. 1454.

York again appears In arms.

First battle of St. Albans. May 22, 1455.

summoned to meet at Leicester, which he expected to be hostile to him. At the same time the royal troops were marching northward. The two forces consequently met. From Royston, York wrote a letter still declaring his loyalty, and stating his conditions. It was unanswered, and on the 21st of May the armies met at St. Albans. The King had with him the Dukes of Somerset and Buckingham, the Earls of Northumberland, Pembroke, Devonshire, Stafford, Dorset, Wiltshire, Clifford, and Sudely. The battle was fought in the town, and the victory, chiefly owing to Warwick, fell to the Duke of York. Somerset, Northumberland, and Clifford fell. Most of the other leaders were wounded, and the King himself was suffering from an arrow wound when York and the Nevilles came to him, knelt before him, begged his favour, and carried him with them in apparent harmony to London.

On examining the chief names which occur as those of the leaders on either side in this the first battle of the Wars of the Roses, it will be seen that it was the Nevilles and Norfolk chiefly on whom York relied; his own relations, the Percies, and other gentlemen of the North, which constituted the strength of Henry's party. There seem to have been three principles of division at work—family, geographical position, political views; and with regard to family, it would seem that the quarrel was one of very long standing, dating back as far as the reign of Richard II. It has been already pointed out that there was constantly some branch or other of the Plantagenet party in opposition to the reigning branch, which took for its cry reform of government and the good cause of England. In Richard II.'s reign Gloucester had represented this party. If we take the names of the Lords Appellant in the year 1387, we find them to be Gloucester and Derby, Plantagenets; Warwick, a Beauchamp; Nottingham, a Mowbray; and Arundel. Now, of these, the second, Derby, became afterwards King as Henry IV., and the opposition which he had at one time helped to direct was turned against himself and his family. The families of Mowbray and of Arundel had coalesced in the Duke of Norfolk. The heiress of the Beauchamps had married the Earl of Salisbury's son Richard Neville, who with his wife had inherited the title of Warwick. The addition therefore to the party was that of the important family of the Nevilles, which had been consistently faithful to Henry IV. But this family had now become allied by marriage with the Duke of York himself (who had married Cecily Neville), with the Duke of Norfolk, and as we have seen with the family of Beauchamp. In addition to this, the fact that the rival house of the Percies had since the restoration of the son of Hotspur been firm supporters of the Lancastrian dynasty, would have been enough to put the Nevilles on the opposite side. The two families had ever been rivals for the chief influence in the

Character of the two parties.

North of England; and even now Lord Egremont, a Percy, was at open war with the Earl of Salisbury in the neighbourhood of York. Of the leaders appearing on the side of Henry, Northumberland was a Percy, and therefore enemy of the Nevilles; Somerset was a Beaufort, and of the Lancastrian house; Pembroke and Richmond were the King's half-brothers; Clifford was one of the great lords of the North, and an opponent of the Nevilles; Wiltshire was James Butler of Ormond, of that family whose misgovernment York had been sent to cure. Of Buckingham and the Staffords, whose mother was a Plantagenet, it may be supposed that in the family quarrel they preferred the reigning house.

This seems to lead to the conclusion that in the main the war was a fight of faction, a tissue of hereditary family rivalries resting upon merely personal grounds. But beyond these there were geographical and political reasons which had their influence on the bulk of the nation. The demand for reform of government, the support given to the national prejudice in favour of continued war, and the opposition to the strong Church views of the Government, had rendered the party of York distinctly the popular one. The North of England was always more subject than the South to baronial influence. It was in the South therefore, in Kent, and in the trading cities, that the strength of the Yorkist party chiefly lay. To this of course must be added the very large estates held by York himself, as the heir of the Mortimers in the West; and the vast property of the various branches of the Nevilles. On the other hand, the Lancastrian party was that of the lower nobility, and of the Church, and found its strength in the baronial North. Politically, to speak broadly, it was the party of the Conservative gentry and the High Church, pitted against the party of reform of Church and State headed by a few great nobles; geographically, it was the North withstanding the attacks of the South.

One effect of the battle of St. Albans was, that the King again sank into lethargy. Again, for a brief space, was the power of York irresistible; he was appointed by the Lords to his old position of Protector. He was still careful not to speak of his claim to the crown, and accepted the Protectorate only as the gift of both Houses of Parliament. Again, however, the King suddenly recovered. In February, York was removed from his protectorate, and the Queen and Somerset were again ruling. The following year, a great meeting of the Council was held at Coventry, where York and his friends were again compelled to renew their fealty. But the loss of life at St. Albans had rendered the party feud much more violent, and York was induced to believe that the Queen had aims against his life. He and his friends at once

York's second brief Protectorate. 1456.

With the Nevilles he retires from Court.

Hollow reconciliation of parties. 1458.

separated; York to his western castle of Wigmore, Salisbury to Middleham in Yorkshire, Warwick to Calais, of which town he was the governor. Whatever influence the King had seems to have been directed to produce reconciliation. For this purpose he induced, in January, the rival chiefs to meet in London. The peace of the town was intrusted to the citizens, and a solemn reconciliation brought about, based upon money payments to be made by the Yorkists to the sufferers at St. Albans. Meanwhile, Warwick, a lawless and independent person, was living as a sort of authorized pirate at Calais. He attacked a fleet of ships, as he believed Spanish; they afterwards proved to be Hanseatic vessels. He was consequently summoned to Court to explain his conduct. There a quarrel arose between his servants and those of the King, and at once the ephemeral reconciliation was destroyed.

Both parties prepared again for war. The Court having been told that Salisbury was going to Kenilworth to concert measures with Duke Richard, Lord Audley was sent with an armed force to intercept him. The consequence was the battle of Blore Heath on the confines of Shropshire, in which Salisbury was completely victorious. A general meeting of the three great Yorkist nobles took place at Ludlow, where Warwick brought his veterans from Calais, under Sir Andrew Trollope. Again the old proclamation against evil governors was issued; but for some unexplained reason Trollope suddenly deserted, and, deprived of their most trustworthy troops, the leaders thought it wise to fly. York took refuge in Ireland, with his son Edmund of Rutland, while his eldest son, Edward of March, with Warwick, found security in Calais. Their flight caused something like a revolution, so complete was the triumph of the Lancastrians.

The Parliament was assembled at Coventry, probably with much illegal violence, and bills of attainder were passed against the Yorkist leaders. But Warwick was determined upon further action. Having command of the sea, he contrived an interview with Richard in Ireland, and accompanied by his father and the young Earl of March, he landed in Kent, where he was rapidly joined by the people, and appeared at the head of 30,000 men in London. Having captured the capital, with the exception of the Tower, which Lord Scales held, they advanced northwards. The two armies met in the neighbourhood of Northampton. The Lancastrians were strongly intrenched, but the intrenchment once broken through, a terrible slaughter ensued. Buckingham, Shrewsbury, Beaumont, and Egremont were slain. The wretched King was found deserted in his tent. Again

Renewed hostilities.
Battle of Blore
Heath. Sept. 23,
1459.

Flight of the Yorkists
from Ludlow.

Lancastrian
Parliament at
Coventry.

Fresh attack of the
Yorkists. Battle of
Northampton. July
10, 1460.

the scene after St. Albans was repeated, and York, returning from Ireland, was once more master of affairs.

On the 7th of October a Parliament was held in London. All the acts of the Parliament of Coventry were annulled, on the ground that its members had been illegally elected, and in some instances that they had not been elected at all. And then first did York, who appears to have thought that all less decided measures had been tried in vain, bring forward a distinct claim to the throne. This claim he sent in writing to the House of Lords, with whom alone it was said the decision could lie, pointing out, what was undeniable, that his hereditary claim was better than that of Henry VI. The majority of the Lords were at heart Lancastrian. They had, moreover, again and again sworn fealty to the reigning house; and to their common sense as proprietors it seemed ridiculous that an undisturbed possession of more than fifty years, defended by numerous Acts of Parliament, should be set aside by mere hereditary claim. With the Yorkists triumphant, they were naturally disinclined to give any answer, but it was in vain they applied to the judges or to the crown lawyers. The judges declared the question beyond their cognizance, and the crown lawyers argued that it was therefore much more beyond theirs. Thrown back upon themselves, the Lords devised a compromise by which they could save their consciences with regard to the oath of fealty, and yet give effect to the hereditary claim, which was urged by such awkwardly strong supporters. They agreed that the King should hold the crown for life, that it should then pass to Richard and his heirs, that Richard should meanwhile be created Prince of Wales and heir presumptive, and be the practical ruler of the Kingdom. That in spite of his victorious position he should have been able only to secure this compromise, seems to prove the close equality of the parties, and perhaps, taken in connection with his previous action, the moderation of Richard.

Yorkist Parliament in London.

York at last advances claims to the throne.

The Lords agree on a compromise.

The Queen had no intention of submitting to this verdict. Trusting to the power of the North, which was constantly true to her, and collecting round her all the great chiefs of her party, she moved to York. Richard at once determined to hasten against her. Salisbury accompanied him; Edward, his eldest son, was ordered to collect troops; Warwick was charged with the care of the King. With extreme rashness, York met vastly superior forces in the neighbourhood of Wakefield. Unexpectedly attacked, his little army was completely destroyed. He was himself taken prisoner, dragged with every sign of

York is defeated and killed at Wakefield. Dec. 30, 1460.

The young Duke of York wins the Battle of Mortimer's Cross. Feb. 2, 1461.

indignity before the Queen, mockingly crowned with a wreath of grass, and then beheaded. His second son, Rutland, but seventeen years of age, was killed in cold blood as he fled, and Salisbury, who was also captured, was beheaded at the demand of the people. March was collecting troops in the West when he heard of his father's death, and hastening northwards, he suddenly turned upon a small pursuing force under Pembroke and Wiltshire, and completely defeated them at Mortimer's Cross. The Queen's army meanwhile pushed southward. The wild northerners seemed to fancy they were marching through a foreign country. The fiercest destruction and plundering marked the course of their march. To meet them, Norfolk and Warwick had come from London to St. Albans, and there a second battle was fought, this time with the complete defeat of the Yorkists. The King again fell into the hands of the Queen. This battle, as all the others during these wars, was marked by extraordinary destruction among the chiefs, and followed by vindictive executions. Had the Queen pushed direct to London the Yorkist party might have been destroyed. But she could not hold her wild troops in hand. Their devastations excited the anger of the people. All round London the populace rose, determined to avoid the government which promised to be so cruel. The young Earl of March, whom Warwick had joined with the remnant of his troops, took advantage of this feeling, and advanced triumphantly to the capital. At a meeting in Clerkenwell, the Chancellor, the Bishop of Exeter, explained the claims of the House of York. The question "Shall Edward be your King?" was received with general cries of approbation. The news was brought to the young prince in Baynard's Castle, and the next day he ascended the throne in Westminster Hall, explained with his own lips his hereditary claims, and then proceeded to the Abbey where his coronation was performed.

The Queen, advancing to London, wins the second battle of St. Albans. Feb. 17.

Sudden rising of the home counties.

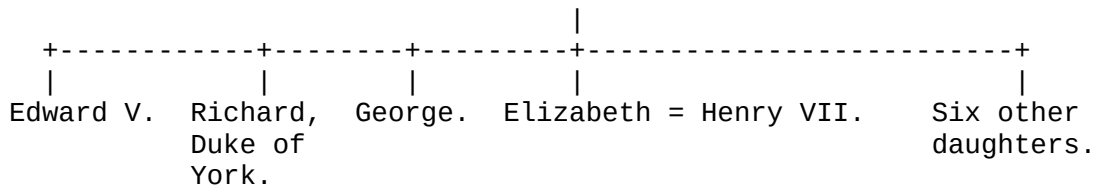
Triumphant entry of Edward.

EDWARD IV.

1461–1483.

[click here to see the image](#)

Born 1441 = Elizabeth Woodville.



CONTEMPORARY PRINCES

Scotland.	_France._	_Germany._	_Spain._
James III., 1460.	Louis XI., 1461.	Frederick III., 1440.	Henry IV., 1454. Ferdinand V., 1474.

POPES.--Pius II., 1458. Paul II., 1464. Sixtus IV., 1471.

Archbishops.	_Chancellors._
Thomas Bouchier, 1454.	George Neville, 1461.
	Robert Stillington, 1467.
	Laurence Booth, 1473.
	Rotherham, 1475.

Though in after years much addicted to sensual pleasure, Edward IV. never lost his practical energy; he was not a man to leave unimproved his present triumphant position. He at once despatched the Duke of Norfolk to the East of England to collect an army, and with the Earl of Warwick himself hastened northward, with an army composed chiefly of Welshmen from his own possessions, and of men of Kent, the great supporters of his house. In Yorkshire he met his enemy. The passage of the river Aire was disputed at Ferry Bridge; the Yorkists, under Lord Falconbridge (a Neville), falling upon the rear of Clifford and his Lancastrians, stopped his

Edward secures the crown. 1461.

Battle of Towton.
Mar. 29.

Yorkist Parliament.

passage, and killed that leader. On the 28th of March the armies were in presence, some eight miles from York. The battle was to be a decisive one. No quarter was to be expected on either side. The numbers engaged—of the Lancastrians, 60,000, of the Yorkists 48,000—were much larger than in most of the battles of these wars. For once the nation felt some interest in the quarrel. The change of the wind blew the snow continually in the eyes of the Lancastrians, and when the battle had raged through a great part of the night and till noon of the following day, the Yorkists had secured a complete victory. Again, the greatest names of the nobility are mentioned among the slain. Northumberland fell in the battle, Devonshire and Wiltshire were beheaded after it, and many reports speak of from 28,000 to 33,000 men left dead upon the field.^[96] Henry and his Queen, with Somerset and Exeter, fled into Scotland, and purchased such assistance as that country could give in the midst of its own intestine commotions by a promise of Berwick and Carlisle. Edward now felt safe on his throne, and returned to London, where the joy was great. There, in November, he met his first Parliament, by whom the three last monarchs were declared usurpers, and the acts of their reigns annihilated, with the exception of such judicial decisions as would if repealed have thrown the country into confusion. All the great leaders of the Lancastrian party were attainted, and their property confiscated. The session closed with a personal address of thanks from the King to the Commons, an unusual occurrence, and marking the political position of the House of York.

Meanwhile, Margaret had been seeking assistance from her own country, France; but Louis, busy in his own affairs and content with the enforced neutrality of England, only gave her a small sum of money, and allowed Peter de Brezé, Seneschal of Normandy, to enlist troops for her. With these forces she succeeded in capturing the three northern fortresses of Bamborough, Dunstanburgh and Alnwick. But before the end

With French help
Margaret keeps up the
war. 1462.

Hedgeley Moor.
Hexham. April 1464.

of the year, the two first of these were recovered, and Edward was so strong, that even Somerset and Percy deserted to his side. Again, the next year, the Queen with De Brezé attempted in vain to relieve Alnwick. Her fleet was wrecked, and with difficulty she made her way back to Scotland. But, though beaten, her cause was still alive. In various parts of the country, disturbances showed themselves. The clergy missed the favour they had received from the Lancastrians; and, in the beginning of the following year, the Percies and Somerset had gone back to their own party, and renewed attempts were made upon the North of England. But Warwick's brother Montague, at Hedgeley Moor, and again at Hexham, destroyed their forces, and both Percy and Somerset met their death. This was the second Duke of Somerset who had died in these wars. He was succeeded by his brother Edmund. A greater prize was the King, who, after hiding for some time, was

captured, in 1465, in Yorkshire, and brought with all signs of indignity to London. He was there, however, properly taken care of in the Tower.

Supported by his Commons, who granted him the wool tax and tonnage and poundage for life, King Edward seemed firmly seated on the throne. He was essentially a popular king. He sat and judged on his own King's Bench, talked familiarly with the people, and allowed the Commons to pass popular measures of finance, without regard to their want of wisdom.

Edward's popular government.

Apparent security of his throne.

A revocation of grants from the Crown was made, but with exceptions which rendered it nugatory; the importation of foreign corn or foreign merchandise was forbidden. The arrangement of the staple, by which wool and cloth could be sold only at Calais, and for bullion or ready money, was re-established; and still further to uphold the current theory of the day, and to keep gold and silver in the country, strict sumptuary laws were passed. Abroad, too, all seemed peaceful. The Pope had acknowledged the new King. France was too busy to interfere. With the rest of Europe treaties of amity were set on foot; and even with Scotland a long truce was made.

But the King had a weakness of character which destroyed his fine position. He was a slave to his passions; and now, regardless of all prudence, though various royal matches were suggested, especially one with Bona of Savoy, the sister of the French Queen, he was carried away by his admiration for Elizabeth Woodville, the daughter of Jacquetta, the Duchess

Destroyed by his marriage, 1466,

and rise of the Woodvilles.

Dowager of Bedford, and Richard Woodville, Lord Rivers, and the widow of Sir John Grey, a strong Lancastrian partisan. On the 29th of September, in spite of the opposition which he could not but have expected, the King was publicly married in the chapel at Reading. Had not the King recognised the weakness of the nobility, caused by the slaughters of the late wars, he would scarcely have ventured on a marriage so much beneath him. As it was, the few great nobles who remained were deeply hurt, and Edward found himself obliged to make the best of his plebeian marriage. An unusually ostentatious and solemn coronation was held, and an air of aristocracy given to the ceremony by the presence of his wife's relative, John of Luxembourg. His other measures for the same purpose were not so well judged. The marriage might have been pardoned had it not brought with it the elevation of the whole of the Queen's family, whom the King thought it necessary to raise in social rank. Her father was made an Earl, and given in succession the offices of Constable and Treasurer, and this at the expense of the nobles who were then holding those places. Her brother Anthony, a man of great accomplishments, was given the daughter, inheritance, and titles of Lord Scales. Another brother, John, at the age of twenty, was married, it is to be presumed, chiefly for interested reasons,

to the old Duchess of Norfolk, who was nearly eighty. Her five sisters found husbands among the noblest of the Yorkist party.^[97]

The displeasure of the Nevilles did not, however, at first show itself, and Warwick stood godfather to the young Princess Elizabeth. Their position indeed was still one of enormous influence; George, the youngest brother, was Chancellor and Archbishop of York; to his third brother, John of Montague, had been given the property and title of the Percies, and he was now Earl of Northumberland; and Warwick, Warden of the Western Marches of Scotland, and in the receipt of public income said to amount to 80,000 crowns, was the most popular man in the country. He lived with an ostentatious splendour, which threw all his rivals into the background.^[98] Nevertheless the marriage, and the formation of the new nobility consequent on it, began to divide England into new parties; on the one side, such as were left of the old nobility; on the other, the new. It was plain that the Nevilles, pledged though they were to the Yorkist side, would sooner or later side with their order against the King and his new friends. A still more important cause of quarrel existed in the difference between their foreign policy and that of the King. The House of Burgundy and Louis XI. of France were constant rivals; and while Warwick and the Nevilles inclined towards a French alliance, thus deserting the old policy of the Yorkists, Edward, seeing the advantages he would reap in a mercantile point of view, lent a willing ear to the advances of Charles, known afterwards as Charles the Bold of Burgundy, who was now demanding his sister Margaret as his wife. As a contingent advantage he knew that he would find in the Burgundian Prince a ready acknowledgment of his title to the crown of France, which he still had some thought of making good. On the return of Warwick from a friendly embassy to France, he found an alliance with Burgundy already concluded. The Count de la Roche, the natural brother of Charles, had appeared in England on the pretext of fighting a chivalrous duel with Anthony, Lord Scales; and had apparently arranged the marriage between Charles and Margaret which was consummated early in the following year. It would seem that this had been done contrary to the will of the Nevilles; for just before the arrival of De la Roche, at the opening of Parliament, Warwick was absent, and the King had suddenly deprived the Archbishop of York of his chancellorship, which he had given to the Bishop of Bath and Wells.

Power of the
Nevilles.

Their French policy.
Burgundian policy of
Edward. 1467.

With these causes of quarrel, Warwick and the Nevilles fell back into their old position of opposition to the Crown; and more completely to reproduce the often-repeated state of English politics, succeeded in securing a Plantagenet Prince as their nominal

Defection of the
Nevilles.

leader. The Duke of Clarence, Edward's brother, was induced, in spite of the King's prohibition, to go to Calais, and there marry Isabella, Warwick's daughter. This ominous union soon produced fruits. The lower orders—those orders that are below the burgher class—cared but little for the name of the ruler; it was much the same to them whether Lancastrian or Yorkist was on the throne, their interests were confined to evils which pressed upon themselves. They were therefore ready instruments in the hands of the opposition. And upon a quarrel upon some Church dues, the men of the northern counties rose under a popular leader, Robert Hilyard, commonly called Robin of Redesdale. The insurgents soon found nobler leaders. Lords Latimer and Fitz-Hugh, relations of Warwick, and Sir John Coniers appeared at their head, and with 60,000 men marched southward, declaring that Warwick alone could save the country, complaining that the money wrung from the people was squandered upon the Queen's relatives, and demanding the dismissal of the new counsellors, such as Herbert, Stafford, and Audley. At the same time, Warwick and his brothers promised the men of Kent that they would appear at their head to make demands similar to those of the northern insurgents. Herbert, who had just beaten Jasper Tudor with the last remnant of the Lancastrians in Wales, and received his title of Earl of Pembroke, and Humphrey Stafford, who had been made Earl of Devonshire, advanced against the rebels; but quarrelling between themselves, they were defeated, and Pembroke beheaded, while shortly after, Rivers and Sir John Woodville, the Queen's father and brother, were captured and met the same fate. It was sufficiently plain that Warwick had instigated this rebellion. The destruction of his chief enemies made his power for the time paramount. He even kept Edward for a short period prisoner in his castle of Middleham. But his disapprobation of the Government had not yet gone so far as to make him wish for a return of the Lancastrians. And when that party again raised its standard in the North, he felt himself unable to cope with it without the King's assistance, and therefore released him. A complete pardon was granted to the Nevilles, and apparent harmony again reigned.

Popular risings
inspired by them.
1469.

But it must have been obvious to all parties that it was but a temporary truce.^[99] Had Clarence been a man of more ability, Warwick would probably have put him on the throne. Failing him, it began to be plain to the Earl that it was only by connection with the Lancastrian party that he could hope finally to triumph over his enemies the new nobility. A new insurrection broke out in Lincoln, against the oppressions of the royal tax-gatherers. The insurgents, finding themselves no better off under the new dynasty than they had been before, declared for King Henry. At their head was young Sir Robert Wells. The King, not

Clarence's weakness
drives the Nevilles to
the Lancastrians.

Wells' rebellion.
1470.

Flight of Warwick.

yet aware of Warwick's designs, under promise of pardon drew Lord Wells (Sir Robert's father) and Sir Thomas Dymock from the sanctuary, and kept them as hostages, and intrusted Warwick and Clarence with the duty of collecting troops to repress the insurgents. They collected troops, indeed, but did not suppress the insurgents; and the King discovered that they were acting in union with Sir Robert Wells. He at once put Dymock and Wells to death, routed the insurgents near Empingham in Rutland, at a battle known by the name of "Lose Coat Field," and turned his arms against Clarence and Warwick, who had been seeking assistance in vain from his brother-in-law Stanley in Lancashire. They did not await his coming, but rapidly fled through Devonshire to France. Sir Robert Wells, anxious to revenge his father, had driven matters on too hastily for the success of the conspiracy. Warwick had always been anxious for a French alliance, and was therefore well received by Louis, who felt that there was now but little chance of peace with England except by restoration of the Lancastrians. He therefore contrived to bring the Earl and Margaret together; and the old enemies, finding that they had in common their hatred to the new nobility and their views of foreign politics, agreed to forget their old differences, and made a treaty by which Ann Neville was to marry the Prince of Wales, upon whom the throne was settled. Failing him it was to pass to Clarence. This treaty, which put Clarence's claims in the background, did not please him; and, utterly without principle, he at once opened negotiations with his brother, although he did not as yet openly join him.

In spite of all the warnings which he received from Burgundy, Edward remained in a condition of false security, even allowing Montague to retain his offices in England. He was absent from London in the North, when the Queen, Warwick and Clarence landed in Devonshire, issued a proclamation calling on the nation to arm, and soon found themselves surrounded by a sufficient army. So far did Edward carry his want of suspicion, that Montague, who at once declared for the Red Rose, as nearly as possible captured him at dinner in the neighbourhood of Doncaster; he had just time to escape, and fled (not without danger from a Hanseatic fleet) to Flanders. Warwick and his friends proceeded to London, drew the old King from the Tower, and re-crowned him with all ceremony. A Parliament assembled on the 26th of November. All the Acts of Edward's reign were annulled, and a general change took place in property and offices. It marks the effect of the fusion of parties, that this revolution, unlike most of the events of this war, was almost bloodless. Tiptoft, Earl of Worcester, who had rendered himself hateful by his severity as Constable, was almost the only victim.

Warwick returns and re-crowns Henry.

Though on many grounds (personal hatred to Warwick, sympathy with Edward's enmity to France, and mercantile and family reasons) the Duke of Burgundy would have been

Edward gets help from Burgundy. 1471.

naturally attached to the House of York, this friendship was of new growth, and could not make him forget his long connection with the House of Lancaster. It was therefore with much difficulty that Edward got from him a small pecuniary assistance. With such as it was, however, he collected about 2000 men, and took, what at first sight appears, the foolhardy step of landing at Ravenspur in Yorkshire. But he knew that he had friends in his enemy's camp. At first, declaring, in imitation of Henry IV., that he only came to claim his rights as Duke of York, he passed unmolested through Yorkshire, where Montague was. Even Warwick, who lay in the midland counties, watched his progress unmoved. He had received letters from Clarence, begging him not to stir till he joined him with reinforcements. But when Clarence took the field, it was not Warwick, but Edward to whom he went. Strong enough now again to assume the name of King of England, Edward marched to London, where the Archbishop of York had tried in vain to raise enthusiasm for the Lancastrian King. Too late, Warwick found that he had been deceived, and he also marched towards London. Edward met him with inferior forces in the neighbourhood of Barnet, and there a battle was fought, in which Warwick was entirely defeated, and himself and his brother Montague killed. Probably the great bulk of the people cared but little who was their ruler. York's army was very small—less than 10,000 men. A series of accidents gave him the victory. The indifference of the nation, weary of the squabble, explains the rapid success of these revolutions.

Clarence joins him.

Battle of Barnet.
April 14.

Meanwhile, the day before the battle, Queen Margaret had landed at Weymouth. For the moment, the true Lancastrians were almost glad when they heard that they were rid of their new Yorkist ally. The Queen's generals intended to march through Wales, there make a junction with Jasper Tudor, who was collecting forces, and thence move to their strongholds in the North. Edward divined their plan, and pushed rapidly across England, to secure if possible Gloucester and the valley of the Severn. The armies encountered at Tewkesbury, where the Queen had taken a strong position among the abbey buildings and the neighbouring enclosures. Again the superior skill of Edward secured the victory to his much inferior forces. The few remaining Lancastrian nobles, the Prince of Wales, Devonshire, Lord John Beaufort, and others, fell upon the field. The Duke of Somerset, the fourth and last of the Beauforts, was executed after it. Margaret and some others were taken prisoners.

Margaret lands.

Battle of Tewkesbury.
May 4.

There was one other danger, and then the Lancastrian party seemed destroyed for ever. The Bastard of Falconbridge suddenly appeared with a considerable fleet before London. The gallant defence of the citizens, and the arrival of

Edward's triumphant return. Murder of Henry VI.

assistance from the King, thwarted this last effort, and Edward returned in triumph, having proved the stability of the house of York. His arrival was immediately followed by the secret murder of King Henry, one of those dark deeds which has been attributed without much ground to Edward's brother, Richard of Gloucester. A bloody court of justice held in Canterbury, for the punishment of the Kentish men, closed this revolution of eleven weeks. On the subsequent death of Holland, Earl of Exeter, whose body was found upon the sea in the Straits of Dover, there were but two important members of the Lancastrian party left. These were Oxford, and Jasper Tudor, Earl of Pembroke, who made good their escape to Brittany, whence Jasper's nephew subsequently returned to England in that expedition which terminated in Bosworth field. The clergy and the lesser nobles, seeing further contest useless, made their peace with the reigning house, and received pardons, and after Parliament had re-established the Yorkist dynasty, the wars of the Roses seemed to be at an end, and England at peace.

But the house of York was now to feel that ineradicable evil which beset the Plantagenets. The princes of the family could not agree. Clarence had already occupied the position of chief of the opposition. He had already joined in the struggle between the old and new nobility as the partisan of the former party. Richard, a man of far greater ability, and of a reflective turn of mind, was in his heart inclined in the same direction. For the present, however, he saw his advantage in remaining the true and very efficient assistant of his brother Edward, by whom he had been intrusted with the government of the North. Clarence, incapable of being a great party leader, showed his disposition in lesser matters, and quarrelled with both his brothers. He had himself married Warwick's eldest daughter, Isabella, and was anxious to appropriate all the great Warwick possessions. When Richard, therefore, determined upon marrying Anne, the younger sister, he hid the young lady, who is said to have been discovered by her lover in the dress of a servant-maid, and when he was unable to prevent the marriage, refused to divide the inheritance. A fierce quarrel was the consequence, and it required the intervention of Parliament to secure an equitable division of the property. Thus embroiled with one brother, the Duke of Clarence speedily fell out with the other. On the death of his wife in 1476, he turned his thoughts to a second marriage with Mary of Burgundy, who became, on the death of Charles the Bold at Nancy in 1477, the heiress of his vast dominions. Edward prevented the marriage. In the first place, he would have much disliked to see his brother, on whom he had not the smallest reliance, powerful in Burgundy, and again, the Queen, and the Queen's party of the new nobility, were anxious that Mary should be married to the Earl of Rivers. The breach between the brothers was complete, and Edward, who

Clarence's quarrel
with Richard. 1476.

With Edward. 1477.

His trial.

His death. 1478.

never knew pity, only watched for an opportunity to rid himself of Clarence. The occasion chosen was trivial enough, but very characteristic of that age. A gentleman of Clarence's household, called Burdett, had uttered some angry words against the King. He was shortly after tried for necromancy, and as in the course of the inquiry it appeared that, among other acts of magic, he had cast the King's horoscope, he was condemned to death. With this verdict Clarence violently interfered. Edward was now able to charge him with interfering with the course of justice. He was impeached and tried before the House of Lords. The King in person was his accuser, and after a hot personal quarrel, in which the King charged him with all sorts of ungrateful acts of treason, he was condemned to death in 1478. A petition of the Commons, always at the command of Edward, removed the King's last scruple, and Clarence disappeared privately at the Tower, drowned it is said in a butt of Malmsey wine.

These quarrels had occupied several years, but meanwhile matters of more national interest had also engaged Edward's attention. Charles the Bold was full of vast plans for increasing his possessions, and with the Duke of Brittany alone of the peers of France, resisted the centralizing policy of Louis XI. He found no great difficulty in enlisting Edward in a coalition against that King. As early as 1472, the war had been spoken of as probable. It did not actually take place till 1475, after a treaty had been made by which Lorraine, Bar, and other districts lying between Burgundy and Flanders were to be given to the Duke, while Edward was content to stipulate for the acknowledgment of his title as King of France, and a formal coronation at Rheims. The war, begun on such feeble conditions, had a disgraceful conclusion. Money, of which Edward was very fond, was scraped together, chiefly by the personal application of the King for loans known as benevolences, and a considerable army landed in France. But Edward did not meet with the reception he had expected. Charles, whose mind was incapable of carrying out the vast schemes that it planned, was engaged in war in other parts of his dominions, and brought no help to his ally. The gates of Péronne were shut against him. St. Quentin, which Charles had told him would be given up to him by the Constable of St. Pol, opened fire upon his troops. Provisions were scantily supplied, and Louis, who well knew the character of his invader, saw his opportunity. At a private interview with the herald who brought the declaration of war, he bribed him, and won from him the hint that he might apply successfully either to Stanley or to Howard, counsellors high in Edward's favour. He took the hint, found those Lords ready recipients of his bribes, threw Amiens open, and supplied the English army lavishly with food; and shortly persuaded Edward to arrange terms at a personal interview at Pecquigni. He was

Edward joins
Burgundy against
France. 1475.

Failure of his
expedition.

Treaty of Pecquigni.
Sept. 13.

thoroughly afraid of the English soldiers, but rated them very low as diplomatists, and, as his manner was when he had great objects in view, was lavish with his money. A yearly pension, the expenses of the war, 50,000 crowns as a ransom for Margaret, and handsome bribes judiciously given to the chief members of the King's Council, secured the withdrawal of the English army. At the same time it was arranged that the Dauphin should marry the Princess Elizabeth. It mattered little to him, having now the English King in his pay, that the English to cover their disgrace spoke of the money payments as tribute, and that Edward continued to bear the title of the King of France. Nothing can give a better view of the despicable character of that new nobility on which Edward rested, than the readiness with which they accepted the French King's bribes.

The chief objects of Edward's life were, to collect money to be spent in magnificent debauchery, and to secure the position of his house by great marriages for his daughters. He had thus arranged for the marriage of Elizabeth, his eldest, with the Dauphin of France; Mary was to have been married to the King of Denmark; Cicely to the eldest son of James III. of Scotland; Katherine to the son of the King of Castile; and Anne was destined for the son of Maximilian of Austria, who by his marriage with Mary of Burgundy had become the possessor of that duchy. None of these marriages took effect. The events connected with some of them fill up the remainder of the reign.

Ambitious projects of marriage for his daughters.

James III. of Scotland was a man much like Edward, a product of the renaissance at that time making its way in England. Addicted to art in all its forms, he had surrounded himself with artists, and ennobled members of the lower orders, and had estranged all the old nobility. At the head of the discontented party was the King's brother, the Duke of Albany. Although James had already received some of the dowry of the English Princess, in consequence probably of some French intrigues, he seemed inclined to withdraw from the engagement. Therefore, when Albany, a fugitive from Scotland, sought his protection, Edward determined to support him and his party, and, finally, made a treaty with him at Fotheringay, in which he spoke of him as King Alexander. He obtained from him a promise of homage, and of the cession of Berwick and some other districts. Albany also engaged to marry the Princess Cicely, who was to be transferred to him, although previously engaged to the son of the Scotch King. An invasion of Scotland under Richard of Gloucester, and a conspiracy which broke out at the Bridge of Lauder, where James's favourite, Cochrane, was hanged, seemed for a moment to raise Albany to the summit of his ambition. But the Scotch had no intention of changing the succession to the throne, or suffering their

Affairs in Scotland.

Edward supports Albany. 1482.

England obtains Berwick.

kingdom to be in any way dependent on England. They restored Albany his property, but also returned the dowry of Cicely, and intimated that the match was entirely broken off. The advantage that the English gained from the whole affair was the much disputed town of Berwick.

The arrangements for the marriage between Elizabeth and the Dauphin were equally unsuccessful. Although that Princess had assumed the name of the Dauphiness, Louis was in no hurry to complete the marriage, and had indeed directed his views elsewhere. In 1477, Mary of Burgundy had married Maximilian the Archduke of Austria; and now Edward engaged to join him against France upon condition of receiving from him the same pension as Louis had paid him since Pecquigni. But, as usual, Louis' diplomacy got the better of Edward's. Mary of Burgundy died in 1482, and the French King contrived to make a treaty with Maximilian, by which the Dauphin, deserting Elizabeth, engaged himself to Margaret, the heiress of Burgundy. Edward was vowing vengeance at this trick, and speaking of a new invasion of France, when he died on the 9th of April, worn out probably by his self-indulgence.

His personal beauty, his success in war, the familiarity of his manners, his splendid household, and the share which he allowed himself to take in the commercial enterprise of the day, endeared Edward to the burgher class, and rendered him on the whole a popular monarch. But beneath this splendid exterior there existed a pitiless cruelty, a selfishness which sought its gratification in unbounded license, and which was ready to crush relentlessly any, however nearly related to himself, who crossed his path. The mixture of sensuality, love of the new state of society, mingled with political selfishness and cruelty, remind us rather of the character of an Italian tyrant than of an English king. The character of the monarchy which he established was also different from that which had hitherto been seen in England. It has been usual to name the reign of Henry VII. as that in which this change began. It is true that that Prince and his successors completed it; but already there are visible all the elements of that peculiar despotic government resting upon popular favour, which is the characteristic of the Tudor rule. In all respects Edward is the popular King. The old nobility had for the most part been destroyed. As around the Buonapartes of modern time, a new nobility of relatives or personal friends of the King had begun to be called into existence. The balance of the Constitution had been changed by the removal of the Baronage, the great check on the royal power, which now stood, as it were, face to face with the Commons, who were as yet unfitted to make head against it. The practice of tampering with the elections had ruined the independence of Parliament. The Church, no longer in sympathy with the nation, sought to secure their wealth by devotion to the Crown. The King thus found no class sufficiently strong to check his prerogative. For a time, therefore,

Edward's death. His character. 1483.

the constitutional advance of the preceding century was lost, and the government of England was practically despotism. At the same time, as the disturbances caused by the Wars of the Roses were not yet wholly over, and a short period of rapid revolutions intervenes before the final establishment of the constitutional change now begun, it is more convenient to adopt the old division, and to place the epoch of the new monarchy at the Battle of Bosworth.

EDWARD V.

1483.

RICHARD III.

1483–1485.

[click here to see the image](#)

Born, 1450 = Anne of Warwick.

|
Edward. Died 1484.

CONTEMPORARY PRINCES.

Scotland.		_France._		_Germany._		_Spain._	
James III.,		Charles VIII.,		Frederick III.,		Ferdinand,	} 1479.
1460.		1483.		1440.		Isabella,	}

POPES.--Sixtus IV., 1471. Innocent VIII., 1484.

Archbishop.		_Chancellor._
Thomas Bouchier, 1454.		John Russell, 1483.

Edward V. was between twelve and thirteen when he came to the throne. His reign, which lasted from the 9th of April to the 26th of June, was entirely occupied by a short and not very intelligible revolution, which terminated in the accession of his uncle, Richard of Gloucester. On the death of Edward IV., the state of parties was rather complicated. In the period of success which followed his restoration in 1471, he had collected round him counsellors from all parties, although chiefly

Edward's reign a
revolution.

State of parties.

inclined to the new nobility. His friends were thus divided into three sections—the Queen and her family, the most prominent members of which were Anthony, Lord Rivers; Grey, Earl of Dorset; his brother Sir Richard Grey, and Lord Lisle, who seem to have worked in unison with the Chancellor, Cardinal Rotheram, Archbishop of York, and Morton, Bishop of Ely: there were, secondly, the new nobility, of whom Hastings and Stanley were the representatives: and, thirdly, a certain number of the older nobles led by Stafford, Duke of Buckingham, and Sir John Howard. The two latter sections were full of jealousy of the Queen's party, in which feeling Richard joined. But his real connection was with Buckingham and the old nobles. His first step was, by a union of the other two parties, to overthrow the influence of the Queen. This he immediately proceeded to do.

As the young King was being brought to London for his coronation, under the care of Rivers and Grey, to whom his education had been intrusted, and under whose charge he had lived at Ludlow, Richard and Buckingham, with 900 men, appeared upon their line of march at Northampton. Rivers and Grey, conscious of the advantage which the appearance of the King in London would give them, were unwilling to come to an open quarrel, and sent Edward forward to Stony Stratford, while they went to pay their respects to Gloucester, who had taken the oath of allegiance, and hitherto put on all the appearance of loyalty. The two Lords were taken prisoners at Northampton, and Richard and Buckingham suddenly advancing to Stratford, by the rapidity of their movements dispersed 2000 men who accompanied Edward, and took possession of him. The news spread dismay in London. The Queen, her son Richard and her daughters, with Lord Lisle and the other Grey, took sanctuary at Westminster; while Hastings calmed men's minds by assuring them of Richard's loyalty, that he had only withdrawn the King from the pernicious influence of his relations, and that he would speedily appear with him to crown him. Upon Richard's appearance, therefore, everything at first went on in the regular order.

Richard first
overthrows Queen's
party.

According to precedent, Richard was appointed Protector or President of the Council. With the exception of the removal of Rotheram, and the appointment of Russell, Bishop of Lincoln, in his place, no important changes were made, and the Parliament was summoned, and the coronation appointed for midsummer.

Is made Protector.

Having thus vanquished one party, Richard determined to get rid of his other rivals also, and to rest exclusively upon Buckingham and the old nobles. The coronation was settled for the 22nd of June, when suddenly Richard despatched a messenger, Sir Richard Ratcliffe, to the North, where he was much beloved, bidding the people hasten to his aid, as the Queen was aiming at the life of himself and Buckingham. There is no proof of any such conspiracy. But the quarrel between the two sections of the Council is marked by the fact that they met apart, Hastings and his followers at St. Paul's, Richard, Buckingham, and their friends, at Crosby Place. They were however all joined on the 13th of June in the Tower, when Richard suddenly appeared with angry and suspicious countenance, charged the Queen and Jane Shore, the King's mistress, who now lived with Hastings, with aiming at his life by sorcery, in proof of which he exhibited one of his arms, which was smaller than the other, and included Hastings in the charge. At a given signal armed men entered the chamber, and Hastings, Stanley, and the Bishops of York and Ely, were apprehended. Hastings was beheaded without trial on the spot.

Quarrels with the new nobles.

Hastings' death and fall of his party.

This *coup d'état* was immediately followed up. The people were summoned to the Tower, where Buckingham and Richard appeared in rusty armour, as though in their extreme necessity they had taken it from the armoury.

Richard, with Buckingham's help, secures the crown.

Jane Shore was compelled to do penance through the streets of London. The Queen was persuaded by the Archbishop of Canterbury to surrender the young Prince Richard. And news arrived that, both in the North and in Wales, the people had risen for Richard. At the same time Grey and Rivers, hitherto kept prisoners in Northampton, were beheaded. It only remained for Richard to find some pretext for assuming the crown. He felt the necessity of forestalling the coronation, which would probably have withdrawn from him the protectorate, and have brought a commission of regency into power. On the very day that the coronation was to have been held, Dr. Shaw, brother of the Mayor of London, was put up to preach at Paul's Cross. He took for his text, "The imperfect branches shall be broken off, their fruit unprofitable,"^[100] and proceeded to expatiate upon the lax life of the late King; and moreover, to renew the charge which Clarence had once made, that that King was himself illegitimate. As for the present Princes, he asserted that they too were bastards. According to him, before Edward's marriage with

Elizabeth Woodville, he had been engaged to Lady Eleanor Talbot; by the laws of the Church, therefore, his subsequent marriage was void, and the King and his brothers illegitimate. He drew attention to the want of resemblance between Richard of York and Edward IV., and the close likeness which existed, on the other hand, between Richard and the Protector. At this moment the Protector made his appearance, expecting that the crowd would cry, "Long live, King Richard!" But the charges were too new and surprising; he was received in perfect silence. The failure of this attempt induced him to repeat it; and two days after, Buckingham came to Guildhall, and there addressed the people in a similar strain. He was determined to take no refusal, and upon a few cries of approbation, commanded the people to follow him to Baynard's Castle, where Richard then was. The Parliament was just assembling, a number of Lords and representatives from the Commons joined the crowd, and enabled him with some show of truth to draw up a petition called "The choice and prayer of the Lords spiritual and temporal and the Commons of England," in which, after recapitulating his story, he requested Richard to accept the crown. After some show of resistance, Richard accepted the petition, and took solemn possession of the throne at Westminster Abbey on the 26th. That this choice was by no means unanimous is plain from the order issued, commanding the inhabitants of London to keep within their houses after ten o'clock, and forbidding the wearing of arms.

Having once secured the throne, the object of Richard seems to have been to heal, as far as possible, the wounds that the war had made. John Lord Howard was the one of his followers whose reward was the most striking. His mother having been a Mowbray, he was made Duke of Norfolk and hereditary Marshal of England. The prisoners

Richard's policy of conciliation.

His strong position.

the King had taken, in company with Hastings, were released, and with strange and rash magnanimity, Stanley was given the office of Constable of England, while Morton of Ely, an old Lancastrian, whose influence he seems to have underrated, was sent to reside in a castle in the West of England. He even caused the body of Henry VI. to be removed from Chertsey Abbey to Windsor, as though the breach between the families was healed. The King was crowned in London, and then proceeded to make a progress through England. He had every reason to think his position was a good one. The people everywhere received him with a fair show of good-will. In York, where he was a second time crowned, his reception was enthusiastic. His

foreign relations were also promising. It is true that the recognition of France was somewhat brief and grudging; but with the young Philip of Burgundy there was an amicable correspondence; while Queen Isabella of Castile congratulated him heartily on having removed the stain of his brother's degrading marriage, and desired a close alliance with him against France, the chief reason perhaps of her show of affection.

But, though all at first seemed so promising, Richard soon learnt that it was not for him to pass unopposed into the position of a peaceful governor of a united England. The injury he had done the memory of his late brother, the cold-heartedness with which he had pushed aside the nephew of whom he was the guardian, and who with his brother was kept in secret confinement in the Tower, revived the old affection with which the South of England had regarded Edward IV. Moreover, the Queen's party was not destroyed, while Richard's own generosity had left at liberty supporters of the old state of affairs. Consequently the whole South of England, from Kent to Devonshire, showed signs of an intended insurrection.

Weak points in it.

Disaffection in the South.

It was just at this moment, and perhaps in the hope of removing those around whom disaffection might centre, that the King caused the report to be spread that the young Princes had disappeared from the Tower. It is needless to enter into a discussion as to their fate. The picturesque story which represents them as smothered beneath their bedclothes is the creation of the next age. Indeed, the popular view of the events of this reign and of the character of Richard is derived almost wholly from Sir Thomas More's life of him. All that contemporary writers mention is that the Princes disappeared, and were probably killed. Comines, the French historian, an excellent observer, says simply that Richard had the Princes killed in the Tower. And the fact that all those who had the charge of them, even down to Forest, the warden, were rewarded, makes it almost impossible that this should not have been the case.

Death of the Princes.

The effect was not what Richard expected. The friends of his late brother and of the Queen became still more anxious to preserve the old stock, and, probably at the suggestion of Morton, a Lancastrian who had found favour in Richard's sight, the project of a marriage between Edward's daughter Elizabeth and the young Richmond began to be discussed. The conspiracy soon

Projected marriage of Elizabeth and Richmond.

Defection of Buckingham.

proved to be very widespread, and it must have been a terrible surprise to Richard to hear that his chief friend and accomplice, Buckingham, had declared for the house of Lancaster. That nobleman's motives are not clear, but he probably found that the party of the old nobility, of which he was the leader, was no better off under Richard than it had been under Edward. Like other men of a tyrannical turn of mind, Richard had found his chief support in obsequious followers, and Ratcliffe, Catesby, and Lovel were his real advisers and friends. The Duke, therefore, an unprincipled and very ambitious man, thought he saw his advantage in becoming a principal agent in the restoration of the exiled house. It is probable, also, that the influence and skill of Morton, with whom he had been in communication, may have had something to do with it.

News was also brought to Richard that the young Richmond, who after Tewkesbury had fled with his uncle to Brittany, and had there become the centre of the Lancastrian party, was meditating a descent on England. Richard displayed his usual energy. He called on the men of York, on whom he could rely, to meet him at Leicester; hastily wrote to the Archbishop of York to send him the Great Seal, an unconstitutional act which Russell did not resist; put a price on the head of Buckingham; and appointed, as though sure of victory, a vice-constable to superintend any summary executions that might be necessary. Meanwhile, Kent, Surrey, Berkshire, Wiltshire, and Devon had risen, and Grey, Lord Dorset, had declared for Henry Tudor in Exeter. It was the intention of Buckingham, who was in Wales, to form a junction with the Southern leaders. For this purpose it was necessary to cross the Severn. But Sir Humphrey Stafford had broken the bridges, the floods were out, and the river impassable. His Welsh followers deserted, and Buckingham was obliged to fly. He sought a refuge with a dependant of his own in Shropshire, of the name of Banister, by whom he was betrayed. After vain entreaties for a personal interview with Richard, and for a legal trial, he was summarily executed. Richmond's part of the conspiracy had been an equal failure. His fleet had been scattered by a storm. He himself reached Plymouth, but the news of the failure of Buckingham, and the appearance of the King in the South, before whose approach all the gatherings of the rebels dissolved, induced him to return to Brittany.

Richmond's first invasion.

Death of Buckingham and failure of the conspiracy.

Again undisputed master of England, Richard summoned a Parliament to meet him in January. As was usual when one party was predominant, it proved to be devoted to the Government. Richard's special favourite, Catesby, was chosen for speaker, and all Richard's claims to the throne were declared to be just. Nor was this all: the oath of allegiance was demanded from all the adult population of England; and a huge bill of attainder and confiscation, mentioning more than 500 names, was passed. As the King was allowed to regrant the confiscated property, he was enabled to fill the southern counties with northern proprietors devoted to his cause; while with questionable wisdom, as it afterwards appeared, he sought to purchase the fidelity of the Stanleys, by giving to Lord Stanley, her present husband, the property of the Countess Margaret of Richmond, who was included in the bill of attainder.

Parliament and great confiscation. 1484.

But though defeated in his first efforts, her son, Henry Tudor, continued his preparations abroad. It was in vain that Richard, by promising Francis of Brittany his assistance against France, and by bribing the all-powerful minister Pierre Landais, succeeded in procuring Henry's dismissal from Brittany. He fled to the Court of Charles VIII. of France, where he was well received, and where the Lancastrian exiles gathered round him. Richard felt that all his efforts were necessary to oppose this Prince. He collected troops, demanded ships from the Cinque Ports, attempted a reconciliation with the Queen Dowager, by allowing her with her daughters to leave the sanctuary at Westminster, and contemplated a marriage between his own son Edward and her eldest daughter Elizabeth, a marriage which would have been the death blow to the Lancastrian party. He succeeded moreover in procuring a three years' truce with Scotland, and the promise of a marriage between the Duke of Rothesay, the heir to the Scotch crown, and his niece.^[101] The most important part of his plan was frustrated by the untimely death of his son, which plunged him in the deepest grief. But he strove to supply his place by nominating his nephew John de la Pole, the Earl of Lincoln, his heir.

Continued schemes of Richmond.

Richard's efforts to oppose him.

Attempts to win the Queen.

Death of the Prince of Wales. Lincoln declared heir.

Meanwhile the feeling of uneasiness increased. Lancastrian emissaries moved to and fro through the country. Clifford and some others of them were

General uneasiness in England. 1485.

apprehended and put to death. But the evil was too great to admit of a speedy remedy. Libels were freely scattered through the country; among others the well-known couplet, "The rat, the cat, and Lovel the dog, rule all England under the Hog," a plain allusion to his chief friends, Ratcliffe, Catesby and Lovel. William Collingbourne, its author, was captured and put to death. But libels increased in number, especially when there seemed to be grounds for asserting that, though his wife was still living, he was himself thinking of a subsequent marriage with the Princess Elizabeth of York. The opportune illness and death of his wife, and, it may be, the love^[102] felt for him by the Princess, added such an air of truth to the story, that, at the instigation of his best friends, he was induced to make a public contradiction of it before the Common Council in London. His finances, too, were in disorder. Free-handed and ostentatious, he had speedily spent the wealth which his brother's avarice had accumulated; and though he had himself caused a bill to be passed to put an end to benevolences, he was reduced to have recourse to that illegal method of taxation which the people in bitter jest termed the raising of malevolences.

His recourse to benevolences.

He was however prepared, when Richmond, supported by the French, made his second attempt upon England. But unfortunately for Richard, treason was at work among his own followers, and the Stanleys, without principle, without gratitude, and with a constant eye to their own aggrandizement, were in secret alliance with their young kinsman the Lancastrian Prince. At length the invasion came. The place of landing, which had been kept a profound secret, was Milford Haven: for the Tudor thought it prudent to enlist the national prejudices of the Welsh in his favour. The Leopard of England and the Dragon of Wales floated side by side on his standards. He advanced in safety to Shropshire; and the Welsh leaders joined him, as well as the Talbots of Shrewsbury. Richard had assembled his forces in the centre of England. Northumberland brought him troops from the North, Howard from the South, Brackenbury from London, Norfolk from the East. But it was very doubtful what part the Stanleys would take; and it was through the county where they were powerful, both as proprietors and as the King's governors, that Richmond had to pass. Lord Stanley demanded leave to go to his county; but the King, whose suspicions had been raised, insisted on his leaving his son Lord Strange as a hostage. Pleading illness, Lord

Richmond lands at Milford.

Conduct of the Stanleys.

Battle of Bosworth. Aug. 22.

Stanley had refused to join Richard, and with 5000 men retired before the invader, whom his brother Sir William had now openly joined. In August the armies approached one another in the neighbourhood of Atherstone. Richard then threw aside all doubts. He ordered Lord Strange to be beheaded, and felt that the struggle must be a final one. Lord Strange's keepers, however, thought it well to await the issue of the battle before carrying out the command: and in the middle of the struggle, Lord Stanley, who, afraid for his son's life, had kept aloof with his troops, suddenly joined Richmond. This turned the fortunes of the day; and in spite of the greatest personal bravery, Richard's army was completely beaten, and himself killed.

His character has been the subject of much discussion, nor is this strange. Had he lived in times of greater security, he would have been an able and admirable governor. Several of the enactments of his reign attest his wisdom and his love of justice. He recognized the evil of benevolences, and forbade them, although necessity drove him to have recourse to them. His efforts were much directed to the re-establishment of justice, to support which he had caused a bill to be passed, to secure the respectability of jurymen, by forbidding any but freeholders to the amount of 40s. from serving in that capacity. He restrained the lawlessness of the barons by the suppression of liveries; and while promising to uphold the liberties of the Church, had shown that he would not allow any interference with the civil power. He had also fostered the trade of England by opening fresh markets for English wool both in Spain and in Iceland. His personal character, too, was attractive. With beautiful though peculiar features, he was liberal and at times forgiving to the verge of folly. He had pardoned and extended constant favour to the wives and families of his political victims. In spite of his strange charge of adultery against her, he had been always a dutiful and affectionate son to his mother. The gentle side of his disposition is perhaps shown by his passionate love of music. But the troublous times in which he lived called out all his worst characteristics; and for political ends he had shown himself scheming, cold, and cruel; while the tyrannical temperament, which could brook no opposition, hurried him into deeds of violence which were the proximate cause of his downfall.

Richard's character
and laws.

It is necessary, as the border-land is thus reached between modern civilization and that of the middle ages, to say a few words on the political condition of the nation, which allowed of the establishment of the personal monarchy of the Tudors, and of the social state of the people from which modern forms of civilization were to spring.

Political condition
of the nation.

During the earlier part of the Lancastrian rule, Parliament, and especially the House of Commons, had apparently continued to rise in power. The Constitutional growth of the fourteenth century had been continued. The Commons had secured the unquestioned right of originating money bills, not to be altered by the House of Lords, nor discussed in the presence of the King. They had secured the right not only of recommending in petitions, but also of joining as an equal estate of the realm in the passing of laws. They had succeeded during the reign of Henry VI. in preventing any changes in the form of their petitions (which had not unfrequently been introduced when, after the session, the petition was enrolled), by bringing in complete Statutes, called Bills, to be rejected or accepted as a whole, instead of their old petitions. They had, in several instances, practised unquestioned the right of impeachment, and claimed, with some degree of success, the freedom of their members from arrest, even during the recess of Parliament. But in spite of this apparent advance, the real power of the Parliament before the close of the Wars of the Roses had almost disappeared. A statute in the eighth year of Henry VI. limited the franchise, with regard to the election of knights of the shire, to freeholders of lands or tenements to the value of forty shillings. This at once gave an aristocratic tone to the House. In addition to this it had become the fashion both of the nobility and of the Crown to tamper with the elections. With the new restricted franchise, the power of local magnates in the county elections was predominant, while, as regards the boroughs, the sheriffs exercised a power of summoning burgesses from such towns only as they pleased, and it was not difficult for the Crown or ruling party to bring the sheriffs under their influence. While the House of Commons thus lost its independence, the old Upper House had been virtually destroyed, and the new nobility was by its very nature dependent on the Crown. Another most important element of freedom had likewise disappeared. The great Churchmen, to whom the liberties of England owe so much, had been victorious over their enemies the Lollards. In the struggle they had lost their sympathy with the people. Their desire for the spiritual welfare of the country

had shrivelled to a selfish eagerness for the preservation of orthodoxy. They had been drawn into closer communication with Rome, and had begun to share its interests. Cardinal Beaufort, in spite of all opposition, had succeeded in retaining his Roman rank, and it had become habitual that the Archbishop of Canterbury at least should bear the title of Cardinal. Wealthy, worldly and self-seeking, the leaders of the clergy were inclined to devote themselves to political life; and, conscious of the alienation of the lower orders, and fearing for their property, which had already excited the envy of the laity, and which, while confiscation was reducing the nobles to beggary, had remained almost untouched, they sought employment and safety in becoming the devoted servants of the King.

At the same time that the practical efficiency of the Parliament had been decreasing, the power of the King's Council had been on the increase. The limits of its rights, springing as it did from the Concilium Ordinarium of the Plantagenet kings, had always been questionable, and its encroachments, in meddling with the petitions of the Lower House, and in issuing ordinances without the consent of Parliament, which had yet the authority of temporary laws, had been constantly objected to by the Commons. The long minority of Henry VI., during which the chief direction of the Government had been almost unavoidably in the hands of the Council, had tended greatly to increase its power.

Nevertheless, though constitutional growth had been checked, and the Commons had politically lost ground, the Wars of the Roses did not produce that complete exhaustion and depopulation of the country which might have been expected. The population appears to have been little, if at all, decreased, the number of inhabitants was still between three and four millions. In fact, it must be remembered that the broken hostilities of these wars did not on the whole amount to much more than three years of actual warfare; that the armies were in the field only for short consecutive periods, were usually few in number, and composed of untrained men, who returned, immediately their short service was over, to the cultivation of the fields. Thus the destruction and turbulence seemed to pass over the head of the great bulk of the population. Nor is this all. During the whole continuance of the war, the ordinary apparatus of justice was uninterrupted; courts were held, and judges went their circuit as usual. Indeed, it would seem to have been a period of unusual litigation, attended no doubt often with violence. For as property rapidly

Effects of the Wars
of the Roses.

changed hands the titles to it became insecure, and the process therefore by which a title was questioned was frequently the violent dispossession of the present holder. But still it was to the courts of law that the ultimate appeal was made. Again, although the loss of France and the exclusive attention to home politics greatly diminished the national strength upon the sea, trade does not appear to have been seriously damaged. At all events, it was so kept alive, that upon the establishment of peace it revived with fresh vigour; and we are told that Edward IV. himself engaged in the pursuit. This trait is characteristic not only of the man but of the time. The pursuit of trade had risen greatly in estimation; great traders had become nobles, and Suffolk, the prime minister, was an example of the height to which such families might rise. From the decay of noble families, and other more permanent causes, land had been necessarily brought into the market. Wealthy traders had purchased it, set up for landowners, and aimed at the dignity of knighthood. At the same time, the secondary gentry of the country, taking advantage of the decline of the nobility, found means in the midst of the disturbances to increase their property and influence. In spite therefore of the apparent insignificance of Parliament, the middle classes were in a vigorous and improving condition.

Lower down in the social scale the case was somewhat different. Serfdom had indeed almost disappeared, and existed only here and there in isolated cases. Free labour for wages had become general, and land was largely held by payment of money rents. Thus far there was improvement. But the change from slavery to personal freedom is always purchased at a somewhat heavy price—that price is the existence of poverty; it is no longer incumbent on employers to look after the wellbeing of free labourers; in time of want they are thrown upon their own resources. The new possessors of the soil too were inclined to work it to better profit than their predecessors had done; grazing became more common and employment proportionately scarcer. The unemployed labourer had two courses open to him: he might betake himself to the towns, or join the ranks of the rapidly increasing class of beggars. He there found himself in company of numbers of idle and needy men who took advantage of the disturbed state of the country. Discharged soldiers and sailors, and vagabonds who called themselves travelling scholars, were so plentiful, that as there was as yet no poor law in existence, stringent enactments were made against them. The number of those punished for crimes of lawlessness and

Changes in the lower classes.

violence was enormous. Fortescue describes with pride how the poor Englishman, seeing others possess what he wanted, would never scruple to take it by violence rather than be without it. Those of the unemployed labourers who preferred to seek the towns went to increase the crowd of journeymen, whose position could not have been very enviable. For the guild system was breaking down and giving place to the more modern arrangements of unlimited competition. The craft guilds, which in the thirteenth and fourteenth centuries had triumphed over the merchant guilds and aristocratic citizens of the towns, had speedily begun to deteriorate. The object for which they were founded was to secure for all members of the craft a fair chance of livelihood, without the danger of destructive competition. This object implied that the guild was co-extensive with the trade, and that its members were themselves craftsmen, carrying on their work with their own hands, with the assistance of apprentices. But a crowd of enfranchised villeins and unemployed labourers had gathered in the towns, and formed a class of journeymen or day-labourers, and the guild, originally a corporation of working men, changed gradually into an exclusive body of capitalists. Moreover, even within their own limits, their principles had failed as early as the reign of Edward III. We hear, for instance, of certain pepperers, who, separating themselves from their guild, became grocers [grossers] or general dealers. In other words, as individuals accumulated capital, they refused to have their enterprise limited by the guild laws; and thus setting up as independent capitalists, began to introduce the same relations between employer and employed which exist at present. Under these circumstances the unincorporated journeymen found the restrictions of the guild an obstacle in the way of advance, and were exposed to all the evils of an eager competition.

While thus the political position of the different orders was giving room for a temporary establishment of almost absolute monarchy, but at the same time allowing the formation of that middle class which was to overthrow it, and while the exclusive system of the middle ages was giving way to the modern relations of labour, the new culture, the existence of which more than anything else separates the middle ages from modern times, was beginning to make its way. As the leader in this direction Humphrey of Gloucester may be mentioned. In spite of his turbulent and disorderly character, he was a sincere lover of literature. He was in communication with several of the greater Italian

Influence of the
Renaissance.

scholars. More than one classical translation was dedicated to him. He carried his love of inquiry so far that he is believed to have dabbled in magical arts; and it is generally reported that his books, which he left to Oxford, were the nucleus of the present great library there. He did not stand alone in his literary tastes. Tiptoft the Earl of Worcester was likewise impregnated with Italian learning, and, among the newer nobles, Lord Rivers gave distinguished patronage to the art of printing, which Caxton introduced into England in the year 1469. Altogether, it would seem that among the upper classes the rudiments of learning were beginning to be widely spread, and that the laity were gradually becoming sufficiently cultivated to rival the Churchmen, and to take their proper part in the government of the country. It may be observed as an indication of this that Henry VI.'s reign was marked by the foundation of Eton, and that several considerable colleges were founded both in Oxford and Cambridge during the century. It is probable that these were chiefly intended as defences for orthodoxy, the teaching being as yet confined to the worst form of scholasticism.

It is strange, immediately after the great civil war, and before the outbreak of nautical energy under the reign of Queen Elizabeth, to meet with constant complaints of the degeneracy of the English as soldiers. But it seems as if changes in the military system, and the love of money and luxury which accompanied the Renaissance, were really producing their effects. Archery was giving way to the use of gunpowder; and we meet with statutes fixing the price of bows, and enacting general practice of archery, which clearly show that the use of the national weapon had to be artificially fostered. There was considerable difficulty in collecting a sufficiency of troops before the Battle of Bosworth, and Caxton writes to Richard III. a deplorable account of the decay of knighthood, to be cured, as he thinks, by the reintroduction of tournaments and the perusal of chivalrous romances. A change in warfare was, in fact, going on in Europe, which called into existence abroad standing armies, and the effect of which was felt in England, though circumstances postponed the establishment of a regular army some time longer. It was thus amid the general weakness in all classes except the Crown, and during the development of great social changes, that the Tudor sovereigns found it possible to establish that peculiar personal monarchy which occupies the transition period between mediæval and modern times, and under the shadow

Change in the
military system.

of which the various classes regained strength for the subsequent re-establishment of the Constitution.



SAXON ENGLAND.
ENGLAND UP TO
1066.

Oxford & Cambridge.

INDEX

Acre, siege of, [119](#);

taken by Richard I., [120](#)

Adela, daughter of Robert of Flanders, marries Cnut, [54](#)

Ælfgar, son of Leofric, given Harold's earldom of the East Angles, [22](#);

succeeds his father as Earl of Mercia, [23](#)

Ælfgyfu, wife of King Edwy, [12](#), [13](#)

Ælfric, Ealdorman of the Mercians, deserts Wiltshire and Salisbury, [17](#)

Æthelbald, son of Æthelwulf, marries Judith, [6](#);

conspires against his father, [6](#)

Æthelberht, Bretwalda, King of Kent, first Christian king, [3](#)

Æthelberht, King of Wessex and Kent, [6](#)

Æthelflæd, daughter of Alfred, Lady of the Mercians, [9](#);

her castles, [10](#)

Æthelfrith, King of Northumbria, [2](#)

Ætheling, legitimate son of the royal family, [34](#)

Æthelmær, brother of Stigand, Bishop of the East Angles, [49](#)

Æthelred, King of Wessex and Kent, repels the Danes, [7](#)

Æthelred the Unready, his enmity to Dunstan, [15](#);

his weak rule, quarrels with Cumberland and Normandy, [16](#);

marries Emma, massacres the Danes, [17](#);

flies to Normandy, is recalled and restored, [18](#);

dies, [19](#)

Æthelstan, son of Eadward, incorporates Bernicia, his supremacy acknowledged by Scotland, [11](#)

Æthelwine, Bishop of Durham, receives Robert de Comines, [46](#);

deprived and outlawed, [49](#);

at Hereward's camp, [50](#);

made prisoner, [51](#)

Æthelwulf, King of Wessex, fights against the Danes, forms a connection with Rome, divides his kingdom, [6](#)

Agriculture, the early system, [28](#);

ignorance of, causes famine, [72](#);

neglected, [87](#);

effect of the Black Death on, [229](#);

sheep farms, [256](#);
improvement in, [267](#)
Aldan, missionary from Iona, [4](#)

Alan Fergant of Brittany joins Philip of France against William I., marries William's daughter Constance, [53](#);
his son joins Matilda, [82](#)

Alexander II. of Scotland, swears fealty to John, [132](#)

Alexander III. of Scotland, swears fealty to Edward 1., [172](#);
dies, [181](#)

Alexander II., Pope, sends a ring and banner to William I., [25](#)

Alexander III., Pope, acknowledged by France and England, lives at Sens, [94](#);
anxious to secure Henry II.'s friendship, gives Becket slight support, [96](#);
receives him on his flight from England, returns to Italy, Frederick of Germany still refuses to acknowledge him, intercourse forbidden by Henry II. between him and England, [98](#);
appoints legates to examine Becket's case, [99](#);
removes the excommunications, [100](#);
he suspends Becket, [100](#);
sends a commission, [100](#);
after Becket's death sends legates for a formal inquiry, [101](#);
Henry II. promises adhesion to, [103](#)

Alfred the Great, anointed at Rome, [6](#);
conquers the Danes at Ashdown, [7](#);
makes peace, [7](#);
improves the fleet, [8](#);
flies from the Danes, [8](#);
defeats them at Edington, [8](#);
makes the Treaty of Wedmore, [8](#);
establishes supremacy over Northumbria, [9](#);
his character, [9](#)

Alfred, son of Æthelred, retires to Normandy, [19](#);
returns to Essex and is murdered, [21](#)

Alice, sister of Philip II., quarrel concerning, [112](#);
repudiated by Richard I., [118](#)

Allodial proprietor, or freeman, [33](#)

Alphege, Archbishop of Canterbury, killed by the Danes, [18](#);
reburied with honour by Cnut at Canterbury, [20](#)

Amiens, award of, [162](#)

Angles, come from Sleswig, [1](#);

settle in England, [2](#)

Anjou [see [Fulk](#) and [Geoffrey](#)], Henry II. conquers, [91](#)

Anselm, Fitz-Arthur, delays the funeral of William I., [55](#)

Anselm, Abbot of Bec, made Archbishop of Canterbury, [61](#);

reforms the Church, opposes William II., William accuses him of remissness in an expedition against Wales, [62](#);

he retires to Rome, [62](#);

recalled by Henry I., [63](#);

threatens to excommunicate Robert's friends, [65](#);

swears fealty to Matilda, [69](#);

asserts the independence of the Church, goes to Rome, submits to a compromise at Bec, holds a synod at Westminster, [71](#)

Appellants, impeach the friends of Richard II., [248](#)

Appellants against Gloucester promoted, [252](#);

deprived, [276](#);

conspire against Henry IV., [277](#)

Armagnacs, quarrel with Burgundians, [284-290](#);

have charge of the war, [292](#)

Army, house-carls, [20](#);

militia, [25](#);

javelins and axes the national weapons at Battle of Hastings, [26](#);

arrows at Battle of the Standard, [80](#);

change in character of, [225](#), [227](#);

raised by contract, [268](#)

Arras, congress of, [314](#)

Artevelt, alliance with Edward III., [219](#);

offers to make Prince of Wales Count of Flanders, murdered, [224](#)

Arthur, son of Geoffrey of Brittany, guardianship claimed by Philip II., [111](#);

supported by Longchamp, [121](#);

Richard I.'s recognition of, not renewed, supported by Philip, [126](#);

does homage to him, deserted by him, [127](#);

besieges Queen Eleanor, [128](#);

his death, [129](#)

Arundel, Bishop of Ely, Chancellor, [247](#);

deposed, [249](#);

Archbishop of Canterbury, banished, [252](#);

supports Henry IV., [254](#);

deprived of his chancellorship, [288](#)

Arundel, Lord, one of the Lords Appellants, [248](#);
arrested, [251](#);
executed, [252](#)

Ascough, minister under Suffolk, [318](#);
executed, [320](#)

Assize of Clarendon and of Northampton, [106](#), [108](#)

Augustine, the Missionary, comes to England, [3](#)

Auxerre, Treaty of, [284](#);
its effect, [290](#)

Badby; burnt, [288](#)

Bagsecg, a Danish leader, [7](#)

Baldwin of Flanders takes Philip II. prisoner, [124](#)

Baldwin of Redvers rebels against Stephen, [79](#)

Balliol, John, claims the Scotch throne, [182](#);
decided by Edward I., [183](#);
his position, [183](#);
his rebellion, [185](#)

Balliol, Edward, first invasion of Scotland, [216](#);
second invasion, [217](#)

Bamborough, founded by Ida, [2](#);
Mowbray besieged in, [59](#)

Banking-houses of Italy, [179](#);
of Bardi, [224](#)

Bari, Council of, [62](#)

Barons of the Exchequer, [75](#), [106](#);
assessed the taxes, [114](#)

Battles—
Agincourt, [295](#)
Arsouf, [120](#)
Assandun, [19](#)
Auray, [234](#)
Aylesford, [2](#)
Bannockburn, [203](#)
Basing, [7](#)

Beaugé, [301](#)
Blore Heath, [325](#)
Boroughbridge, [207](#)
Bouvines, [136](#)
Bramham, [282](#)
Brenneville, [68](#)
Brentford, [19](#)
Brunanburh, [11](#)
Châlons, [172](#)
Cressy, [225](#), [227](#)
Cricklade, [10](#)
Deorham, [2](#)
Dol, [104](#)
Dunbar, [185](#)
Edington, [8](#)
Ellandune, [5](#)
Englefield, [7](#)
Evesham, [167](#)
Ferrybridge, [328](#)
Formigny, [319](#)
Halidon Hill, [217](#)
Hastings, [26](#)
Heathfield, [3](#)
Hedgeley Moor, [329](#)
Hengestesdun, [5](#)
Herrings, the, [308](#)
Hettin, [111](#)
Hexham, [329](#)
Ipswich, [18](#)
Lewes, [163](#)
Lincoln, [83](#), [142](#)
Maldon, [16](#)
Maserfield, [4](#)
Merton, [7](#)
Mortimer's Cross, [327](#)
Mount Badon, [2](#)
Navarette, [235](#)
Neville's Cross, [228](#)
Northampton, [325](#)
Ockley, [6](#)
Orford, [19](#)
Otterbourne, [249](#)
Pataye, [310](#)
Pen Selwood, [19](#)
Poitiers, [231](#)
Puisac, [67](#)
Radcot, [248](#)
Reading, [7](#)
Rochelle, [236](#)
Sherstone, [19](#)

Shrewsbury, [280](#)
Stamford Bridge, [26](#)
Sluys, [220](#)
St. Albans, [323](#), [327](#)
St. Cloud, [284](#)
Swanage, [8](#)
Tenchebray, [66](#)
Tewkesbury, [335](#)
The Standard, [80](#)
Thetford, [7](#)
Towton, [328](#)
Verneuil, [305](#)
Wakefield, [327](#)
Wilton, [7](#), [84](#)

Basset, the Justiciary, hangs forty-four thieves at one Court, [74](#)

Beauchamp, Guy, second Earl of Warwick, opposes Gaveston, [200](#);
beheads him, [202](#)

Beauchamp, Thomas, fourth Earl, one of the Lords Appellant, [248](#);
arrested, [251](#);
exiled, [252](#)

Beauchamp, Richard, fifth Earl, succeeds York in France, [315](#)

Beaufort, Bishop of Winchester, quarrels with Gloucester, [306](#);
lends troops to Bedford, [311](#);
legate, attacked by Gloucester, [312](#);
at Arras, [314](#);
visits Edinburgh, [315](#);
head of peace party, [316](#);
dies, [318](#)

Beaumont, Robert, Count of Mellent, good adviser of William I. and II., [62](#);
supports Henry I., his large property, [65](#);
dies, [68](#)

Beaumont, Waleram, Count of Mellent (son of Robert), opposes the Church, [81](#), [82](#);
offers the crown to Theobald, [83](#)

Beaumont, Robert, Earl of Leicester (second son of Robert), offers the crown to Theobald, [83](#);
joins Henry of Anjou, [85](#);
left in charge of England, [91](#);
ordered to pronounce sentence against Becket, [98](#);
joins the Great Rebellion, [104](#)

Beaumont, Henry de (no relation to Counts of Mellent), favourite of Edward II., [201](#), [204](#)

Bec, compromise at, [71](#)

Beck, Anthony, Bishop of Durham, agent of Edward I., [172](#);
sent to Scotland, [181](#)

Becket, first employed by Archbishop Theobald, [91](#);
made Chancellor, [92](#);
his magnificence, arranges Prince Henry's marriage, [92](#);
joins in Henry II.'s war with France, [93](#);
made Archbishop, [95](#);
changes his life, resigns his temporal offices, [95](#);
upholds the encroachments of the Church, case of Philip Brois, [95](#);
accepts the Constitutions of Clarendon, then retracts, [95](#);
his reason for objecting, summoned to a council at Northampton, [96](#);
charges against him, [97](#);
his courage, leaves the court before judgment is given, and escapes to Gravelines, [98](#);
puts himself under the protection of Louis VII., [98](#);
favourably received by the Pope, [98](#);
he excommunicates his enemies, retires to Sens, [99](#);
meets the legates, but refuses to retract, suspended by the Pope, repeats his excommunications, [100](#);
Henry yields, but refuses the kiss of peace, [100](#);
at Fretheval he receives the kiss and a safe-conduct to England, returns, and continues his excommunications, his death, [101](#);
Henry does penance at his shrine, [105](#);
his bones removed to Canterbury Cathedral, [143](#)

Bedford. [See [John](#).]

Belesme, Robert de, son of Roger of Montgomery, opposes William II., [57](#);
quarrels with Grantmesnil, [58](#);
succeeds his brother Hugh as Earl of Shrewsbury, [59](#);
constant opponent of Henry I., his great possessions, [65](#);
Henry takes four castles from him, [66](#);
he retires to Normandy, [66](#);
taken prisoner by Henry at Bonneville, [67](#);
his cruelties, [73](#)

Benedictine rule, introduced into England by Dunstan, [15](#);
abbey established at Chester by Anselm, [61](#)

[Bercta](#), Christian wife of Æthelberht, [3](#)

Berengaria, daughter of Raymond of Barcelona, betrothed to Richard I., [93](#);
marries him, [118](#)

Bernicia, a division of Northumbria, [2](#);
conquered by Æthelstan, [11](#);
made an earldom by Dunstan, [15](#)

Bigod, Roger, supports Henry I. against Robert, [65](#)

Bigod, Hugh (son of Roger), takes the Earldom of East Anglia (Norfolk), [79](#);
declares for Henry II., [86](#);
surrenders castles, [91](#);
joins the Great Rebellion, [104](#)

Bigod, Roger, fourth Earl of Norfolk, one of the council, [159](#)

Bigod, Hugh (his brother), escapes, [164](#)

Birinus, converts Wessex, [4](#)

Black Death, [229](#);
its effect on labour, [267](#)

Black Prince, at Cressy, [227](#);
his expedition, [229](#);
at Poitiers, [231](#);
in Aquitaine, [234](#), [285](#);
illness, [236](#);
his political party, [239](#);
dies, [240](#)

Blanche of Castile, engaged to Louis, [127](#);
rules France, [145](#);
defeats Henry, [148](#)

Blanchelande, Treaty of, [52](#)

Blanchetaque, ford of, [225](#), [293](#)

Bocland, explained, [31](#)

Bohun, third Earl of Hereford, refuses to command the army for Guienne, [187](#)

Bohun, fourth Earl, marries daughter of Edward I., chief of the baronial party, [202](#);
killed, [207](#)

Boniface of Savoy, Archbishop of Canterbury, [151](#);
wastes his see, [154](#);
lives abroad, [158](#);
collects an army, [164](#)

Borough, origin of, [32](#)

Bouchier, Robt., 1st lay chancellor, [221](#), [239](#)

Bouchier, Thomas, archbishop and chancellor, [322](#)

Breakspear, the only English Pope, Adrian IV., [90](#);

grants Ireland to Henry I., [91](#)

Brember, Sir Nicholas, impeached, [248](#);
executed, [249](#)

Brétigny, Peace of, [233](#)

Bretwalda, title of the dominant chief, [2](#)

Brian Fitz-Count, grandson of William I., holds Wallingford for Matilda, [82](#);
attests her oath, [83](#);
defends Wallingford against Stephen, [85](#)

Brihtnoth, fights the Battle of Maldon, [16](#)

Brihtric, brother of Eadric Streona, [17](#)

Britons expel the Romans, [1](#);
invite the Saxons, [1](#);
their possessions in the West, [3](#);
independent north of the Dee, [5](#)

Brittany, suzerainty of, given up by Louis VI. to Henry I., [67](#);
Henry II. gets a hold upon it by securing Nantes, [92](#);
Earl Conan grants it to Henry II, [99](#);
does homage to France, [127](#);
alliance with England, [145](#);
disputed succession in, [222](#);
war in, [243](#);
alliance with Henry V., [298](#);
with France, [307](#);
with England, [307](#);
with France, [313](#);
receives the Tudors; 336;
banishes them, [347](#)

Bruce, claim to the Scotch throne, [182](#);
an English judge, [191](#)

Bruce, Robert, grandson of the claimant, [191](#);
murders Comyn, crowned, [192](#);
reconquers Scotland, [199](#);
wins Battle of Bannockburn, [203](#);
his offer of peace rejected, [204](#);
excommunicated, [205](#);
truce with, [206](#);
promises help to the rebel barons, [207](#);
title acknowledged by Edward II., [208](#);
war with Edward III., marriage treaty, [214](#);
dies, [216](#);

his use of infantry, [227](#)

Bruce, Edward, accepts the throne of Ireland, [204](#);
killed, [205](#)

Buckingham. [See [Stafford](#).]

Burgundy, Duke of (uncle of Charles VI.), disputes power with Orleans, [280](#)

Burgundy, John, murders Orleans, [282](#);
negotiates with Henry V., [291](#);
holds aloof from the war, [292](#);
joins the Queen's party, [298](#);
deserts Rouen, [299](#);
murdered, [300](#)

Burgundy, Philip, son of John, negotiates with Henry V., [300](#);
alliance with Bedford, [304](#);
alliance weakened by Gloucester, [305](#);
obtains the Netherlands, [306](#);
renewed alliance, [307](#);
quarrel with Bedford, [312](#);
alliance with France, [314](#)

Burgundy, Charles the Bold, marries Margaret, sister of Edward IV., [331](#);
alliance with Edward against France, [337](#);
death of, [336](#)

Burgundy, Mary of, proposals of marriage for, [336](#);
marries Maximilian, dies, [339](#)

Burhred, King of Mercia, [7](#), [8](#)

Burnell, Chancellor, [172](#);
his advice, [179](#)

Cade, Jack, his rebellion, [320](#)

Calais, siege of, [228](#)

Calne, Dunstan's synod at, [15](#)

Calverley, general of the Free Companies, [234](#)

Castles, built by Eadward, the nucleus of towns, [10](#);
built by William I. as garrisons, [43](#), [45-47](#);
set up in Wales, [59](#);
Wales kept in subjection by, [70](#);
multiplied in Stephen's reign, a sign of anarchy, [80](#);

tortures perpetrated in them, [87](#);
number of, [90](#);
put down by Henry II., [90](#)

Catesby, favourite of Richard III., [345](#);
speaker of his Parliament, [346](#);
couplet on him, [347](#)

Catherine of France, marries Henry V., [300](#)

Caxton, introduces printing, [353](#)

Ceawlin, a Bretwalda, [2](#)

Cenwulf, Christian king of Mercia, [4](#)

Ceolwulf, a Danish agent, king of Mercia, [8](#)

Ceorl, or freeman, [29](#)

Cerdic, a Saxon leader, [2](#)

Chancellor of the Exchequer, his duties, [75](#);
head of the secretaries, [106](#)

Chandos, English general in France, [234](#), [235](#)

Charlemagne corresponds with Offa, [5](#);
checks the Danes, [5](#)

Charles d'Albret, Constable of France, [292](#);
his character, [293](#)

Charles IV. demands homage of Edward II., [209](#)

Charles VI., accession, [234](#);
foments rebellion in Aquitaine, [235](#);
his daughter marries Richard II., [251](#);
his madness, [290](#);
dies, [302](#)

Charles VII., becomes Dauphin, [298](#);
rescued by Duchâtel, [299](#);
succeeds to the throne, [302](#);
character of, [304](#);
crowned at Rheims, [310](#);
enters Paris, [315](#)

Charter, the Great. [See [Magna](#).]

Charter of Henry I., [64](#);
of Stephen, [78](#)

Chartres, treaty of, [189](#)

Chateau-Gaillard, taken by Philip, [129](#)

Chaucer, [271](#), [273](#), [274](#)

Chester, conquered by Ecgberht, [5](#);
a Danish burgh, [8](#);
taken by William, [48](#);
made a Palatine county, [51](#);
constant fighting with Wales, [58](#)

Chicheley, Archbishop of Canterbury, persecutes the Lollards, [289](#);
grants money for the French War, [291](#)

Chinon, peace of, [136](#);
renewed, [143](#)

Church, organized by Theodore of Tarsus, [4](#);
increased importance of, [14](#);
Dunstan's reforms, [15](#);
its important position at the time of the Conquest, [36](#);
marriage of the clergy permitted, [36](#);
ecclesiastical and secular jurisdiction separated, [38](#), [49](#);
its national character, [48](#);
William I. tries to Romanize it, [38](#), [48](#);
marriage of the clergy forbidden by Lanfranc, [49](#);
William I. head of, [49](#);
general improvement of, [50](#);
oppressed by William II., his bad appointments, [60](#);
archbishopric vacant four years after Lanfranc's death, [61](#);
want of discipline in, [61](#);
Anselm defends ecclesiastical rights, [62](#);
his reforms, [62](#);
Irish and Scotch bishops acknowledge the supremacy of Canterbury, [62](#);
laymen forbidden to confer investitures, [62](#);
dispute between Anselm and Henry I. as to the supremacy of the Church or State, [71](#);
ends in a compromise at Bec, [71](#);
decrees against abuses in the Church at a synod at Westminster, [71](#);
its civilizing power, [71](#);
continued bad appointments in, [72](#);
its influence secures Stephen the throne, [77](#);
its great power, [78](#);
offended by Stephen, espouses Matilda's cause, [81](#), [82](#), [83](#);
mediates a compromise between Stephen and Prince Henry, [86](#);
gives scutage in Henry II.'s wars with Wales, [91](#);
and with France, [93](#);

abuses arising from the clergy not being amenable to the secular courts, [94](#);
claims upheld by Becket, [95](#), [96](#);
Richard I.'s ransom chiefly paid by, [123](#);
dispute as to the election of archbishops, [130](#);
interdict in John's reign, [131](#);
money extorted from, [133](#);
rights secured by Magna Charta, [138](#);
supports De Burgh, [143](#);
Langton resists Papal tyranny, [144](#), [146](#), [147](#);
society formed against foreign priests, [148](#);
opposes Des Roches, [150](#);
joins the lay opposition, [152](#);
revival in, [153](#);
foreign priests, [155](#);
Papal extortions, [158](#);
Statute of Mortmain, [175](#), [196](#);
half their property demanded by Edward I., [185](#);
refuses further grants, [186](#);
outlawed, [187](#);
represented in Parliament, [194](#);
quarrel with Edward II., [209](#);
Edward III. attempts to exclude the Bishops from Parliament, [221](#);
begins to be disliked by the people, [238](#), [239](#);
attacked by Wicliffe, [245](#), [267](#);
Statute of Provisors, [250](#);
hated by the people, [266](#);
supported by Henry IV., [284](#);
persecutes the Lollards, [289](#);
urges Henry V. to the French war, [290](#);
grants him the incomes of priories held by foreigners, [291](#);
remains prosperous during the war, [318](#);
retains its property during the Wars of the Roses, [340](#);
loses spirituality and sympathy with the people, [350](#)

Cistercian order, Henry II. threatens to expel it for receiving Becket, [99](#)

Clare, Richard de, Earl of Gloucester, head of the Barons, [159](#);
quarrels with De Montfort, [161](#);
commands the baronial party, dies, [162](#)

Clare, Gilbert de, Earl of Gloucester, joins De Montfort, [162](#);
on the committee, [164](#);
deserts De Montfort, [166](#);
rejoins the baronial party, [168](#);
governor in Edward I.'s absence, [172](#)

Clarence. [See [Lionel](#) and [Thomas](#).]

Clarence, George, son of Richard of York, marriage, [332](#);
supports Wells' rebellion, [333](#);

accompanies Warwick, [334](#);
joins Edward, [335](#);
quarrels with Richard, [336](#);
his death, [337](#)

Clifford, killed at St. Albans, [323](#);
northern lord, opponent of the Nevilles, [324](#)

Clifford (his son), killed at Ferrybridge, [328](#)

Clifford, executed by Richard III., [347](#)

Cnut, son of Swegen, acknowledged King of England by the Danes, compelled to retreat, [18](#);
Edmund cedes to him Northumbria and Mercia, acknowledged King of England on Edmund's death, banishes the royal family, [19](#);
desires to form a Scandinavian empire, his code of laws, goes to Rome, [20](#)

Cnut, King of Denmark, threatens to invade England, [54](#);
dies, [55](#)

Cobham, Lord, joins York, [321](#)

Coinage, false, forbidden, [64](#);
issued, [72](#);
severe punishment against, [74](#);
habit of breaking it, [74](#);
private coinage, [86](#);
renewed by Edward I., [175](#);
described in Edward III.'s time, [258](#), [259](#)

Columba founds Iona, [4](#)

Comitatus, body of warriors attending a chief, [30](#)

Commendation, explained, [31](#);
reasons for, [33](#)

Comyn, member of the regency, [181](#);
his claim to the throne, [182](#)

Comyn, John, regent, [190](#);
makes a treaty with Edward I., [191](#);
murdered, [192](#)

Conan, a citizen of Rouen, rebels against Robert, [57](#)

Conan, Prince of Brittany, marries a daughter of Henry I., [67](#);
grants Brittany to Henry II., [99](#)

Conrad of Montferrat, King of Jerusalem, [119](#), [120](#)

Constance, daughter of William I., marries Alan Fergant of Brittany, [53](#)

Constance, marries Geoffrey, son of Henry II., [99](#);
upholds Arthur's claims, [126](#)

Constantine, King of Scotland, receives Guthrith, defeated by Æthelstan, acknowledges his supremacy, [11](#)

Constitutions of Clarendon, produced by Henry II., [95](#);
description of, [96](#);
Becket accepts and recants, [96](#);
Henry II. promises to abrogate, [103](#)

Conversion of the English, [3](#)

Convocation, origin of, [193](#)

Copsige, Earl of Bernicia, killed in a revolt, [44](#)

Cornwall, British possession, [3](#);
submits to Wessex, [5](#);
alliance with the Danes, [5](#)

Cosne, siege of, [301](#)

Cotentin given to Robert of Normandy, [65](#)

Councils—
of Bari, [62](#);
of Rome, [62](#);
of Clarendon, [95](#);
of Northampton, [96](#);
of Lyons, [154](#)

Courcy, fights in Ireland, [103](#);
suppressed by De Lacey, [132](#)

Courtenay, Thomas, sixth Earl of Devonshire, with York, [320](#);
at war with Lord Bonville, [321](#);
joins Henry VI., [323](#);
beheaded, [329](#)

Courtenay, John, eighth Earl (brother of Thomas), killed at Tewkesbury, [335](#)

Courts (of law and justice) before the Conquest, [32-34](#);
modified by William I., [37](#), [38](#);
by Henry I., [74-76](#);
dispute between secular and ecclesiastical, [94](#), [96](#);
reorganized by Henry II., [106](#), [107](#), [108](#);

superiority of central courts increased, [124](#), [125](#)

Cressingham, Treasurer of Scotland, [186](#);
defeated by Wallace, [189](#)

Cromwell, Ralph, treasurer, [313](#);
joins York, [321](#)

Crusades, Robert pledges Normandy to be free to join in, [59](#);
his success at Dorylæum and Ascalon, [65](#);
Ivo of Grantmesnil at the siege of Antioch, [65](#);
preached by St. Bernard, [84](#);
Henry II. promises to go on one, [103](#);
causes for the third, [110](#);
urged by the Pope, [111](#);
preached by Heraclius, Bishop of Jerusalem, [111](#);
bad effect of, in England, [116](#);
of Richard I., [117-121](#);
perversions of, [153](#);
made excuse for taxes, [146](#), [155](#)

Cumberland, overrun by Danes, [8](#);
refuses to pay the Danegelt, [16](#);
a Scotch district, [51](#);
William II. peoples it from the destroyed villages near Winchester, [58](#);
David I. does homage for, [79](#)

Curia Regis, established by William I., [38](#);
organized by Henry I., [75](#);
has no legislative authority, [76](#);
reconstituted by Henry II., [106](#);
restricted to five persons, [107](#)

Customs, origin of, [174](#)

Cymric, a Saxon leader, [2](#)

Cytric of Northumbria does fealty to Æthelstan, [11](#)

Danes, first appearance of, [5](#);
winter in Thanet, [6](#);
conquer Northumbria and East Anglia, [7](#);
further conquests, treaty of Wedmore, [8](#);
in Ireland, [11](#), [14](#);
in the Lothians, [14](#);
fresh invasions in Æthelred's reign, [15](#);
massacred by Æthelred, [17](#);
fresh invasion under Thurkill, [17](#)

Danegelt, begun by Æthelred at Sigeric's advice, [16](#);
imposed by William I. on Cnut's threatened invasion, [54](#);
Henry II. makes scutage take its place, [93](#);
farmed, [113](#);
renewed by Richard I., [125](#)

Danelagu, country granted to the Danes, [10](#);
joins Swegen, [18](#)

Danish burghs, names of, [8](#);
Edmund Ironside gets possession of them, [18](#)

David of Wales, his rebellion and death, [176](#)

David I., King of Scotland, supports Matilda's claims, conspiracy to make him King of England, invades England, [79](#)

David II. of Scotland, marries Jane, sister of Edward III., [214](#);
deposed by Balliol, takes refuge in France, [217](#);
invades England, taken prisoner, [228](#);
his conduct as prisoner, [231](#);
released, [232](#)

Decretals, False, note, [94](#), [96](#)

Deira, southern division of Northumbria, [2](#)

De Lacey. [See [Lacey](#).]

Derby, son of Henry of Lancaster, sent to Gascony, [224](#)

Dermot, King of Leinster, carries off O'Ruark's wife, [102](#);
does homage to Henry II, Strongbow marries his daughter, [102](#)

Despenser, Thomas, made Earl of Gloucester, [252](#);
deprived, [276](#);
executed, [277](#)

Despensers, favourites of Edward II., [204](#);
power increases, [205](#);
quarrel with the Welsh marchers, banished, [206](#);
recalled, [207](#);
triumphant, [208](#);
prevent Edward II. from going to France, [209](#);
executed, [210](#)

Devonshire. [See [Courtenay](#).]

Domain, royal, origin of, [31](#), [33](#);
increased by William I., [43](#);

granted by Stephen to his new earls, [80](#);
source of royal revenue, [113](#)

Domesday-Book, a register of land, [38](#);
entries of “waste” in it, [47](#);
Hereward’s property mentioned in, [51](#);
made by William I., [55](#);
Ralph Flambard proposes to complete it, [57](#);
surveyors for it examined on oath, [108](#);
a similar survey ordered by Richard I., [125](#)

Dominicans, in England, [153](#)

Dress, in Edward III.’s time, [263](#)

Dublin, a Danish town, conquered by Strongbow, surrendered to Henry II., [102](#);
colonized by English, [103](#)

Dunois, French general, [310](#)

Dunstan, legends concerning him, [12](#);
his life, [13](#);
his imperial rule, [14](#);
his reform of the Church, [15](#);
his enemies force him to retire, [15](#)

Dyfed, a province in Wales, granted to Arnulf of Montgomery, [59](#)

Dymock, joins Wells’ rebellion, [333](#)

Eadgar the Peaceful, Dunstan raises him to an imperial position, [14](#), [15](#)

Eadgar, grandson of Edmund Ironside, Harold elected king instead of, [24](#);
elected king by the Southern Witan, [41](#);
offers the crown to William, [41](#);
attempts a rebellion, flies to Scotland, [45](#);
returns, [46](#);
received by Malcolm Canmore, [51](#);
serves with Robert of Normandy, taken prisoner at Tenchebray, but set free, [66](#);
dies, [67](#)

Eadred, conquers Northumbria, [11](#);
his reign, [13](#)

Eadric Streona, his bad influence, marries Æthelred’s daughter Edith, [17](#);
his treachery, [18](#);
Cnut employs him to kill Edwy, [19](#);
made Earl of Mercia, [20](#);
put to death, [20](#)

Eadric the Forester, or the Wild, ravages Hereford, [44](#);
supports Eadgar against William I., [45](#);
besieges Shrewsbury, and is defeated, [46](#), [47](#);
goes with William to Scotland, [52](#)

Eadward the Elder, his reign, [10](#), [11](#)

Eadward the Martyr, [15](#)

Eadwine, King of Northumbria, [3](#)

Ealdred, Archbishop of York, offers William I. the crown, [41](#);
death of, [49](#)

Ealdorman, origin of, [29](#);
rise of, [31](#);
duties of, [32](#)

Earl, origin of, [29](#), [35](#)

Earldoms, Dunstan divides Northumbria into three, [14](#);
Cnut divides England into four, [20](#);
Godwine's family obtain large, [22](#);
William I. limits their size to one county each, [37](#), [43](#);
only three in 1131, [80](#);
Stephen creates many, [80](#)

East Anglia, foundation of, [2](#);
subject to Kent, conversion of, conquered by Eadwine, [3](#);
conquered by Danes, [7](#);
helps Hasting against Alfred, [9](#);
acknowledges the supremacy of Wessex, [10](#);
supports Dunstan's party, [13](#);
repels the Danish invasion in Æthelred's reign, [16](#);
resists the Danes under Ulfcytel, [17](#);
Cnut makes it an earldom, [20](#);
helps Harold against William I., [26](#);
Ralph of Gwader, Earl of, [52](#);
Bigod becomes Earl of, [79](#)

Ecgberht, King of Wessex, secures its supremacy, [5](#)

Edith, daughter of Godwine, marries Edward the Confessor, [21](#);
dies, [53](#)

Edmund, King of East Anglia, [7](#)

Edmund, King, [11](#);
makes Osulf Earl of Northumbria, [12](#);

grants part of Strathclyde to Scotland, [12](#)

Edmund Ironside marries the wife of Sigeferth, [18](#);
chosen king by London, [19](#);
fights five battles against the Danes, [19](#);
gives up Northumbria and Mercia to Cnut, [19](#)

Edmund Rich, Archbishop of Canterbury, [147](#);
causes Des Roches' fall, [150](#);
his death, [151](#);
his reforms, [153](#)

Edmund, son of Henry III., accepts the kingdom of Sicily, [157](#);
governor in Henry III.'s absence, [172](#);
negotiates with Philip IV., [184](#)

Edmund, fifth son of Edward III., Duke of Cambridge and York, fighting in France, [235](#);
his marriage, [236](#);
friendly to Richard II., [249](#), [251](#);
assists Lancaster, [253](#)

Edmund, Earl of March, ignored by Henry IV., [276](#);
attempted escape, [280](#);
reinstated by Henry V., [288](#);
conspiracy to crown him, [292](#)

Edmund, Duke of Rutland, son of Richard of York, escapes to Ireland, [325](#);
beheaded, [327](#)

Edward I., governor of Gascony, [156](#);
engaged to Eleanor, [157](#);
a reformer, [160](#);
joins his father against the Barons, [162](#);
prisoner after Lewes, [163](#);
desire for his release, [164](#);
escapes, [166](#);
wins battle of Evesham, receives De Montfort's property, [167](#);
goes on a crusade, [168](#);
his coronation, [172](#);
his character, [173](#);
conquers Wales, [175](#), [176](#);
mediator between France and Aragon, [178](#);
checks disturbances, banishes the Jews, [179](#);
proposes a marriage treaty with Scotland, [181](#);
death of his wife, [182](#);
awards the crown of Scotland, [183](#);
war with France, [184](#);
with Scotland, [185](#), [186](#);
outlaws the clergy, [187](#);
arbitrary taxation, [187](#), [188](#);

goes to Flanders, [188](#);
makes treaty of Chartres, [189](#);
marries Margaret, [190](#);
defeats Wallace, [190](#);
second conquest of Scotland, [191](#);
death, [192](#)

Edward II., betrothed to Maid of Norway, [181](#);
governor in Edward I.'s absence, [187](#), [188](#);
betrothed to Isabella, [190](#);
his character [197](#);
favours to Gaveston, first expedition to Scotland, [198](#);
imprisons the Templars; [199](#);
second invasion of Scotland, [200](#);
restores Gaveston, flies from Lancaster, [202](#);
third invasion of Scotland, Bannockburn, [203](#);
accepts Lancaster as Minister, [205](#);
favours the Despencers, [206](#);
fourth invasion of Scotland, [208](#);
quarrels with the Church, with France, [209](#);
taken prisoner, [210](#);
murdered, [211](#)

Edward III., engaged to Philippa, [210](#);
made king, [211](#);
overthrows Mortimer, [215](#);
receives Balliol's fealty, his claim to the French throne, [217](#);
prepares for war, [219](#);
assumes the title of King of France, wins the battle of Sluys, [220](#);
displaces his ministry, quarrels with Stratford, [221](#);
supports John of Montfort, [222](#);
lands at La Hogue, [225](#);
battle of Cressy, [227](#)

Edward IV., takes refuge in Calais, lands with Warwick, [325](#);
collects troops, [326](#);
enters London, [327](#);
wins the battle of Towton, [328](#);
his first Parliament, [329](#);
his marriage, [300](#);
his Burgundian policy, [331](#);
imprisoned by Warwick, [333](#);
escapes to Flanders, [334](#);
wins the battle of Barnet, [335](#);
quarrels with Clarence, [336](#);
expedition to France, [337](#);
projects of marriage, [338](#);
death and character, [339](#)

Edward V., brought to London, [342](#);

deposed, [343](#);
murdered, [345](#)

Edward, son of Henry VI., born, [322](#);
marries Anne of Warwick, [334](#);
killed, [335](#)

Edward, son of Edward IV., captured, [343](#);
murdered, [345](#)

Edward, son of Richard III., dies, [347](#)

Edward, son of Æthelred, kept in Normandy, [19](#)

Edward, son of Edmund Ironside, sent abroad, [19](#);
dies, [23](#)

Edward the Confessor, elected king, [21](#);
his love of Frenchmen, [22](#);
his character and death, [24](#);
names Harold his successor, [25](#)

Edwin, son of Ælfgar, succeeds to his earldom of Mercia, [24](#);
defeated by Tostig, [26](#);
deserts Harold, [26](#);
hopes to be elected king, [40](#);
refuses to assist Eadgar, [41](#);
reinstated in his earldom, [44](#);
joins a rebellion, but submits to William I., [45](#);
joins Hereward's rebellion, [50](#);
is killed, [50](#)

Edwy, King, legends concerning him, [12](#);
banishes Dunstan, [13](#);
divides the kingdom with Eadgar, [13](#)

Eleanor, divorced wife of Louis VII., marries Henry of Anjou, [85](#);
her claim to Toulouse causes war between England and France, [92](#);
she urges her sons to rebellion, [103](#);
is disliked by Henry, [109](#);
restrains John in Richard's absence, [122](#);
boldly opposes him, [123](#);
assists John against Arthur, [126](#);
besieged in Mirabeau, [128](#)

Eleanor, daughter of Henry II., marries Alphonso of Castile, [109](#);
connects England with Spain, [114](#)

Eleanor of Provence, marries Henry III., [151](#);
assaulted by the Londoners, [162](#);

assembles an army, [164](#)

Eleanor of Castile, marries Edward I., [157](#);
her death, [182](#)

Elizabeth, daughter of Edward IV., proposed marriages for, [338](#), [345](#), [347](#)

Ella, leader of the Saxons, called Bretwalda, [2](#)

Ella, King of Northumbria, [7](#)

Emma, daughter of Richard the Fearless, marries Æthelred, [17](#);
followed by many Normans, [17](#);
retires to Normandy, [19](#);
marries Cnut, [20](#)

Emma, sister of Fitz-Osbern, marries Ralph, [52](#);
defends Norwich, [53](#)

English language, Provisions of Oxford published in, [160](#), [170](#);
becomes the language of the people, [271](#);
statute of Parliament in, [272](#);
made national by Chaucer, [273](#)

Englishry, law of, explained, [48](#)

Equitable power, meaning of, [76](#)

Esplechin, treaty of, [220](#)

Essex, Earl of, judicial duel between him and De Montfort, [91](#)

Ethel, land held by hereditary succession, [31](#)

Ethelbald, King of Mercia, [4](#)

Ethelric, Bishop of Selsey, [49](#)

Eustace of Boulogne, husband of Edward the Confessor's sister, [22](#);
attacks William's town of Dover, [44](#)

Eustace, son of Stephen, Henry of Winchester demands from Matilda his foreign possessions for him, [84](#);
Stephen brings him forward in opposition to Prince Henry, [85](#);
dies, [86](#);
Papal bull obtained to prevent his coronation, [92](#)

Exchequer Court organized by Roger of Salisbury, [75](#);
origin of the name, [106](#)

Exeter, conquered by the Danes, [8](#), [17](#);
faithful to Harold, [44](#);
desires independence, [45](#);
captured by William, [45](#)

Exeter, Earl of. [See [Holland](#).]

Eye, castle of, given to Becket, [92](#);
he borrows money on, [97](#)

Falconbridge. [See [Neville](#).]

Fastolf, Sir John, at battle of the Herrings, [308](#);
at Pataye, [310](#)

Faukes de Breauté, destruction of, [145](#)

Ferrand of Flanders, [133](#);
attacks Philip II., [134](#)

Ferrars of Derby joins the Great Rebellion against Henry II., [104](#)

Feudal system existed in England before the Conquest, [28](#);
its institutions in Germany before the Saxon invasion, [29](#);
origin of the connection between vassal and lord, [30](#);
German institutions introduced into England, [31](#);
connection between land and judicial power, [33](#);
every man made the man of the King, [35](#);
its natural growth checked by William I., [37](#);
fresh institutions introduced, [37](#);
unbridled in Stephen's reign, [78](#);
introduction of new nobles, [137](#);
chivalry takes its place, [270](#)

Finance. [See [Taxes](#).]

Fitz-Gerald, son of Nesta invades Ireland with Strongbow, [102](#)

Fitz-Gilbert, fights against Wales, [78](#);
dies, [79](#)

Fitz-Gilbert at Marlborough, [82](#)

Fitz-Osbern, made Earl of Hereford, [43](#);
the North left in his charge, [44](#);
given the castle of York, [46](#);
subdues the Rebellion in the West, [47](#)

Fitz-Osbern, Roger, his conspiracy, [52](#), [53](#)

Fitz-Peter, Geoffrey, Justiciary, [125](#);
Earl of Essex, [126](#);
character and death, [135](#)

Flanders, Philip, Count of, threatens to invade England, [100](#);
joins the Rebellion against Henry II., [104](#)

Fleet, improved by Alfred, [9](#);
made powerful by Eadgar, [14](#);
collected by Æthelred against the Danes, [17](#);
condition of, in Edward III.'s reign, [261](#), [262](#)

Flemings, Henry I., colonizes Wales with, [70](#)

Folcland, public land, [31](#);
becomes royal domain, [33](#);
made crown property by William I., [43](#)

Food, profusion of, [264](#)

Franchise explained, [76](#)

Franciscans, their success in England, [153](#)

Frankpledge, described, [35](#);
cannot be proved before the Conquest, [37](#);
used by Henry I. as the basis of his police system, [74](#);
the Hundred Court saw to its being carried out, [76](#)

Frederick Barbarossa, asserts the supremacy of the secular power; sets up a rival Pope Victor IV., [94](#);
on Victor's death sets up Pascal III., [98](#);
asks for two daughters of Henry II. for his son, and for Henry of Saxony, [99](#);
punishes Henry for deserting him, [109](#);
dies on his way to the third crusade, [119](#)

Free Companies of France, [232-234](#)

Free-holders degenerate into villeins, [35](#)

Froissart, his account of Gloucester, [251](#);
describes Richard II.'s rule, [253](#)

Fulk IV. of Anjou, assists Maine against William I., [52](#);
against William II., [59](#);
assists Henry I. against Robert, [66](#);
supports William Clito against Henry I., [68](#);
is won back by Henry, [68](#);
turns against him on Robert's death, [69](#)

Fulthorpe, betrays Richard II.'s plans to Gloucester, [248](#);
convicts Scrope and Mowbray, [281](#)

Gascoigne, Judge, refuses to convict Scrope and Mowbray, [281](#);
removed, [288](#)

Gascony, De Montfort's government of, [156](#)

Gaston de Bearn, his rebellion, [156](#);
treaty with Edward I., [172](#)

Gaveston, Piers, favourite of Edward II., banished, [198](#);
returns, [199](#);
anger of the Barons against, banished, [200](#);
returns, beheaded, [202](#)

Geoffrey, Bishop of Coutances, relieves Montacute, [47](#);
opposes William II., [57](#)

Geoffrey, son of Fulk of Anjou, marries Matilda, [70](#);
invades Normandy, [79](#);
Stephen purchases a truce from, [79](#);
Theobald proposes that the crown of England should be offered him, [84](#);
dies, [85](#)

Geoffrey of Lusignan, quarrels with Richard, [112](#)

Geoffrey of Monmouth's Chronicle, [271](#)

Geoffrey, son of Henry II., marries Constance of Brittany, [99](#);
joins the Great Rebellion against his father, [104](#);
is pardoned, [105](#);
joins Henry against Richard and his father, [110](#);
joins John against Richard, [111](#);
hurt by his father's partiality to John, claims Anjou, his father refuses, he flies to France, and dies, [111](#)

Geoffrey, natural son of Henry II., repels a Scotch invasion, [104](#);
made Bishop of Lincoln, [105](#);
made chancellor, attends Henry at his death, [112](#), [113](#);
made Archbishop of York in exchange for the chancellorship, [117](#);
promises not to enter England in Richard's absence, [117](#);
comes, and is arrested by Longchamp, [121](#);
John takes his part, [121](#)

Geraldus Cambrensis, the historian, his parentage, [70](#)

Gerberoi, reconciliation at, [54](#)

Gerbod, the Fleming, stepson of William I., made Earl of Chester, [51](#)

Gesith, comrade of the king, [30](#)

Gisors, treaty of, [67](#);
dispute concerning, [110](#);
meeting at, [111](#)

Godwine, made Earl of Essex, [20](#);
gets the South of England for Harthacnut, practically rules himself, accused of murdering Alfred, his eloquence secures the throne for Edward, his daughter Edith marries the king, [21](#);
his national policy opposed to Edward's French policy, obtains more earldoms for his family, [22](#);
his rivalry with Leofric, banished, [22](#);
returns in triumph, his death, [23](#);
his support of the secular clergy, [25](#);
his domains confiscated to William I., [43](#)

Gospatric, Earl of Northumberland, invades Cumberland, [51](#)

Gregory the Great sends missionaries to England, [3](#)

Grey of Ruthyn, taken prisoner, [278](#);
ransomed, [279](#)

Grey, Thomas, engaged to the heiress of the Duke of Exeter, [331](#);
Earl of Dorset, [341](#);
has charge of Edward V., apprehended, [342](#);
beheaded, [343](#)

Grey, Richard, [341](#);
takes sanctuary at Westminster, [342](#)

Grostête, Bishop of Lincoln, his reforms, [153](#)

Gryffith, his insurrection, [70](#)

Gualo, Papal Legate, [141](#);
recalled, [143](#)

Guilds, described, [259-261](#), [352](#), [353](#)

Guingamp, not granted to Henry II. with Brittany, [99](#)

Gurth, fourth son of Godwine, made Earl of East Anglia, [23](#);
killed at battle of Hastings, [27](#)

Guthrum, Danish invader, King of East Anglia, [7](#);
conquers Wareham and Exeter, baptized under the name of Æthelstan, [8](#)

Gutred, King of Northumbria, [9](#)

Guy of Lusignan, King of Jerusalem, meets Richard I. at Cyprus, [118](#);
besieges Acre, allies himself to Richard, [119](#);
Richard, knowing his incompetence, makes Henry of Champagne king instead of him, [120](#)

Gwynneth, his insurrection, [91](#)

Gytha, mother of Harold, flies to the Channel Isles, [45](#)

Halfdene, Danish leader, [7](#);
overruns Strathclyde, [8](#)

Harfleur, capture of, [292](#)

Harklay, defeats Lancaster at Boroughbridge, [207](#);
executed, [208](#)

Harold, son of Cnut, a barbarian, made King by Godwine, [21](#)

Harold, son of Godwine, outlawed and goes to Ireland; his Earldom given to Ælfgar, [22](#);
returns in triumph, succeeds to his father's earldom, fights successfully against Ælfgar and the Welsh, [23](#);
elected King, [24](#);
story of his oath to William, prepares to resist William's invasion, [25](#);
conquers Tostig, forms his camp at Senlac, [26](#);
killed in the battle, [27](#);
strong party for his family in the West, [44](#);
his sons dispersed, [45](#);
land in Devonshire, [46](#);
defeated and escape to Ireland, [47](#)

Harold Hardrada, King of Norway, his exploits, joins Tostig, slain, [26](#)

Harthacnut, King of South of England, [21](#)

Hasting, a Danish pirate, [9](#)

Hastings, his claim to the Scotch throne, [181](#)

Hastings, of the new nobility, [341](#);
joins Richard, [342](#);
beheaded, [343](#)

Haverfordwest, colonized by Flemings, [70](#)

Heathenism, sustained by Penda, [3](#);
succumbs to Oswi, [4](#)

Hélie de la Flèche, resists William II. in Maine, [59](#);

assists Henry I. against Robert, [66](#);
William Clito intrusted to him, [67](#);
flies with him, tries in vain to rouse the nobles in his favour, [67](#)

Henry I., quarrels with Robert, [53](#);
heir-apparent, [56](#);
joins Robert against Conan of Rouen, [57](#);
besieged in Mont St. Michel, [58](#);
hunting in the New Forest, crowned, [63](#);
conciliates England, his marriage, character of his policy, [64](#);
overcomes Robert and his partisans, [65](#), [66](#);
unites England and Normandy, [67](#);
his son's death, [68](#);
war against William Clito, [69](#);
his death, [70](#);
his dispute with Anselm, [71](#);
his administration, [74-76](#)

Henry II., born at Le Mans, [112](#);
comes to England, succeeds to Anjou, his marriage, [85](#);
his character, [89](#);
his reforms, [90](#);
fights in Anjou, Scotland, and Wales, [91](#);
his friendship for Becket, marriage treaty with Louis VII., goes to war for Toulouse, [92](#);
introduces scutage, [93](#);
objects to clerical courts, [94](#);
produces the Constitutions of Clarendon, [95](#);
his dispute with Becket, [96-98](#);
invades Wales, obtains Brittany, [99](#);
reconciliation with Becket, [100](#);
his behaviour at Becket's death, [101](#);
his conquest of Ireland, [102](#), [103](#);
suppresses the great insurrection, [104](#);
makes peace with France, [105](#);
his legislation, [106-108](#);
his position in Europe, [109](#);
difficulties with his sons, [110-112](#);
his death, [113](#);
his administration, and importance in Europe, [113](#), [114](#)

Henry III., declared of age, [144](#);
quarrels with De Burgh, [147](#);
fails in Poitou, [148](#);
becomes his own Minister, his marriage, [151](#);
second expedition to Poitou, [154](#);
his favour for foreigners, [155](#);
quarrel with De Montfort, [156](#);
accepts the kingdom of Sicily, [157](#);
promises reform, [159](#);
swears to the Provisions of Oxford, [160](#);

gets absolved from his vows, [161](#);
at the battle of Lewes, [163](#);
dies, [168](#)

Henry IV., made Earl of Derby, [247](#);
friendly to Richard II., [251](#);
quarrels with Norfolk, [252](#);
returns from banishment, [253](#);
captures Richard, [254](#);
his coronation, [275](#);
his difficulties, [277](#);
expedition to Scotland, [278](#);
his quarrel with the Percies, [279](#), [280](#);
captures Prince James of Scotland, [281](#);
his submission to the Commons, [282](#);
his failing health, [283](#);
his foreign policy, [284](#);
his Church policy, his jealousy of the Prince of Wales, [285](#), [286](#)

Henry V., in command of the war in Wales, [278](#);
at the battle of Shrewsbury, [280](#);
head of the Council, [283](#);
his character as Prince, [286](#);
his popularity, [287](#);
his Church policy, [288](#), [289](#);
his reasons for the French war, [290](#);
his preparations, [291](#);
he captures Harfleur, [292](#);
battle of Agincourt, [293](#), [295](#);
his friendship for Sigismund, [297](#);
his second invasion of France, [298](#);
besieges Rouen, [299](#);
makes the Treaty of Troyes, [300](#);
enters Paris, dies, [301](#)

Henry VI., his education intrusted to Warwick, [302](#);
coronation, [311](#);
marriage, [316](#);
his interview with York, [321](#);
first fit of imbecility, recovers, [322](#);
wounded at St Albans, [323](#);
second fit of imbecility, his recovery, [324](#);
he attempts reconciliation, [325](#);
deserted after the battle of Northampton, [326](#);
rescued by the Queen at the second battle of St. Albans, [327](#);
escapes to Scotland, [329](#);
captured and imprisoned, [330](#);
re-crowned, [334](#);
murdered, [336](#)

Henry of Poitou, Abbot of Peterborough, his bad character, [72](#)

Henry the Lion of Saxony, Frederick I. asks for Henry II.'s daughter for him, [99](#);
he marries Matilda, [109](#);
rival of Frederick, deserts him, [109](#);
asks the help of Henry II., [109](#)

Henry, son of Henry II., marries Margaret of France, [92](#);
crowned, [100](#);
demands actual possession of part of his kingdom, [103](#);
objects to his brother John's marriage-treaty, [103](#);
befriended by Louis VII., joins the Great Rebellion against his father, [104](#);
is conquered, his dependants have to abjure their fealty to him, [105](#);
is reconciled with his father, [105](#);
his character, [110](#);
demands homage from his brothers, is refused, dies, [110](#)

Henry VI., Emperor of Germany, marries Constance of Sicily, [118](#);
keeps Richard I. in prison, [122](#);
receives his homage for England, [123](#)

Henry of Lancaster, second son of Edmund, joins Isabella against Edward II., [210](#);
his opposition to Mortimer, [215](#);
member of Edward III.'s council, [216](#)

Henry, Bishop of Winchester, brother of Stephen, secures him the throne, [77](#);
upholds the dignity of the Church, escorts Matilda, demands the See of Salisbury for his nephew,
[82](#);
when Stephen refuses, declares his adhesion to Matilda, [83](#);
alienated by her refusal of his request for Eustace, demands Stephen's release, besieged by Matilda
at Winchester, [84](#);
deprived of his legatine authority, [85](#);
mediates a compromise between Henry and Stephen, [86](#);
retires to Clugny, [90](#)

Henry d'Almeynes, son of Richard, King of the Romans, prisoner after battle of Lewes, [163](#);
desires conciliatory policy, [168](#);
murdered, [172](#)

Heraclius, Bishop of Jerusalem, preaches a crusade, [111](#)

Herbert, Earl of Pembroke, defeats Jasper Tudor, killed, [332](#)

Hereford. [See [Bohun.](#)]

Hereward, attacks the monastery of Peterborough, collects the old English exiles, [50](#);
is defeated and escapes, legends concerning his death, [51](#)

Hidage explained, [113](#)

Hide of land explained, [31](#)

Hildebrand. [See [Pope Gregory VII.](#)]

Holland, Sir John, brother of Richard II., kills a friar, [246](#);
kills the Earl of Stafford, [247](#)

Holland, Duke of Exeter, flies to Scotland with Henry VI., [329](#);
murdered, [336](#)

Horsa, Jutish Ealdorman, [1](#);
killed, [2](#)

House-carls, explained, [20](#);
used tyrannically, [21](#);
faithful to Harold, [26](#)

Howard, Sir John, counsellor of Edward IV., [338](#);
supports Richard III., [341](#);

made Duke of Norfolk, [344](#);
at the battle of Bosworth, [348](#)

Hubba invades England, [6](#)

Hubert de Burgh, has charge of Arthur, [129](#);
defeats French fleet, [142](#);
Regent, [143](#);
destroys his enemies, [145](#);
his rule, [146](#);
prevents Henry III.'s expedition to France, [147](#);
his fall, [148](#);
character, [149](#);
property restored, [150](#)

Hugh, Bishop of Rouen, deserts Stephen, [83](#)

Hugh of Avranches, Earl of Chester, assists Odo, [54](#);
loses and wins back Anglesey, [59](#);
invites Anselm to establish Benedictine Abbey at Chester, [61](#)

Hugh de Grantmesnil, holds large property in England, [46](#);
opposes William II., [57](#);
quarrels with Belesme, [58](#)

Hugh of Neufchâtel receives Robert of Normandy, [53](#)

Hugh de Pudsey, Bishop of Durham, joins the Great Rebellion against Henry II., is conquered, [105](#);
buys the earldom of Northumbria, [116](#);
supplanted by Longchamp, becomes his enemy, [117](#);
produces his grievances against him, [121](#)

Humphrey, fourth son of Henry IV., Duke of Gloucester, proposed Regent in England, [302](#);
President of the Council, [304](#);
marries Jacqueline, [305](#);
quarrels with Beaufort, [306](#);
persecutes the Lollards, [312](#);
head of the war party, [313](#);
his claim on Flanders, [315](#);
his obstinacy, [316](#);
his death, [317](#);
his literary tastes, [353](#)

Hundred, analogous to the German Pagus, [29](#);
England divided into, [31](#)

Hundred Court, in Saxon times, [32](#);
connected with the Curia Regis by Henry I., [75](#), [76](#);
its duties, [76](#)

Huntingdon, Earl of, deprived, [276](#);
conspires against Henry IV., [277](#);
executed, [277](#)

Impeachment, first instance of parliamentary, [240](#);
by the Lords Appellant, [248](#)

Ingvar invades England, [6](#)

Interdict in John's reign, [131](#)

Investitures, dispute as to, [71](#)

Ireland, Danes in, [11](#);
Harold's sons fly there, [22](#), [45](#);
granted to Henry II. by Adrian IV., [91](#);
condition of, Strongbow's invasion, Henry II.'s conquest of, [102](#);
land granted to his followers, [103](#);
John restores order in, [132](#);
Edward Bruce King of, [204](#);
English government re-established, [205](#);
Richard II.'s expedition to, [250](#);
his second visit to, [253](#)

Irish Church, accepts Roman discipline, [102](#)

Isaac of Cyprus, conquered by Richard I., [118](#)

Isabella de la Marche, marries John, [128](#);
marries Count de la Marche, [154](#)

Isabella of France, marries Edward II., [190](#);
insulted at Leeds, [207](#);
goes to France, [209](#);
conspires against Edward II., [210](#);
deposes him, [211](#);
her rule, [213](#);
her deposition, [216](#)

Isabella of France marries Richard II., [251](#);
her restoration demanded, [278](#)

Isabella, wife of Charles VI., joins the Burgundians, [298](#)

Itinerant justices, sent out by Henry I., [75](#);
by Henry II., [107](#), [108](#)

Ivo of Taillebois, [50](#)

Ivo of Grantmesnil, [65](#)

Ivry, siege of, [305](#)

Jacqueline of Hainault, [305](#)

Jacquetta of St. Pol, marries Bedford, [312](#)

Jane, sister of Henry III., marries Alexander II., [143](#)

Jane, sister of Edward III., marries David II., [214](#)

Jane of Montfort defends Brittany, [222](#)

Jane Shore does penance, [343](#)

James I. of Scotland, captured and educated by Henry IV., [281](#);
released, marries Joan Beaufort, [305](#);
makes alliance with France, invades England, murdered, [315](#)

James III. of Scotland, his character, [338](#)

Jerusalem, kingdom of, refused by Robert, [65](#);
character of, [111](#);
overwhelmed by Saladin, [119](#)

Jews, admitted to England by William I., [115](#);
their condition, persecuted by Richard, [116](#);
by John, [133](#);
banished by Edward I., [179](#)

Joan of Arc, [308-311](#)

Joanna, daughter of Henry II., marries William of Sicily, [109](#);
imprisoned by Tancred, [118](#);
restored to Richard I., accompanies him to Palestine, [118](#);
marries Raymond of St. Gilles, [124](#)

John, Duke of Bedford, third son of Henry IV., Lieutenant of England, [291](#);
Regent in France, [302](#), [303](#);
character, marriage, [304](#);
visits England, [306](#);
returns, renews alliance with Burgundy and Brittany, [307](#);
captures Joan of Arc, [311](#);
his second marriage, [312](#);
visits England, [313](#);
dies, [314](#)

John, Bishop of Oxford, sent to the Pope, [98](#);

his excommunication by Becket, [99](#);
it is removed by the Pope, [100](#);
sent as Becket's escort, [101](#);
made Bishop of Norwich, [105](#)

John de Grey, Bishop of Norwich, elected Archbishop of Canterbury, great administrator, [130](#);
governor in Ireland, [132](#)

John (King), marries Alice of Savoy, [103](#);
favourite of Henry II., [109](#);
war with Richard, [110](#), [111](#);
Henry II.'s grief at his rebellion, [113](#);
his great possessions, [117](#);
tries to secure the succession, [121](#);
restrained by his mother, purchases Philip's favour, [122](#), [123](#);
his party destroyed, [123](#);
nominated successor, crowned at Rouen and Westminster, [126](#);
his strong position, [127](#);
excites the anger of his subjects, [128](#);
kills Arthur, loses Normandy, [129](#);
quarrels with the Church and the Pope, [131](#);
is excommunicated, settles Ireland, Scotland, and Wales, [132](#);
his extortions, joins the League, [133](#);
dethroned by the Pope, [134](#);
is reconciled with the Church, goes to Poitou, [135](#);
defeated at Bouvines, [136](#);
signs Magna Charta, [137](#);
attempts to break it, [139](#);
dies, [140](#)

John of Gaunt, fourth son of Edward III., commanding in France, marriage, [236](#);
assumes the government, [237](#), [239](#);
renewed power, [240](#);
protects Wicliffe, [240](#);
hated by the people, [240](#), [244](#);
head of the Council, [243](#);
deserts Wicliffe, [245](#);
character of his government, [245](#), [246](#);
goes to Spain, [246](#);
returns, [251](#);
dies, [253](#)

John, King of France, [229](#);
taken prisoner at Poitiers, [231](#);
liberated, [233](#);
dies, [234](#)

Judith, daughter of Charles the Bald, ancestress of Matilda, wife of William I., her three marriages, [6](#)

Jurisdiction, early organization of, [32](#);

connected with the possession of land, [33](#), [36](#);
of the Witan, [34](#);
old machinery retained by William, [37](#);
ecclesiastical separated from secular, [38](#), [94](#);
private, [87](#);
punishment of corrupt judges, [179](#)

Jury, origin of, [108](#)

Justiciary, his duties, [38](#);
president of the Curia Regis, [75](#)

Kemp, Archbishop of Canterbury and Chancellor, [321](#);
dies, [322](#)

Kenilworth, last stronghold of the Barons, [167](#);
Dictum of, [168](#)

Kent, Earl of, half-brother of Edward II., his conspiracy and death, [215](#)

Kent, Earl of, his conspiracy against Henry IV., beheaded, [277](#)

King, the origin of, [30](#);
his personal relation becomes territorial, [33](#);
his office elective, [34](#);
becomes supreme landowner, [37](#);
practically irresponsible, [38](#);
position of William I., [42](#);
of Henry I., as feudal lord, [64](#);
his equitable power, his power of making laws and levying taxes, [76](#);
misery caused by a weak king, [78](#), [86](#), [87](#);
rivalry with the Church, [94](#), [105](#);
his judicial power, [107](#);
opposition to his overstrained power, [125](#), [137](#), [138](#), [159](#);
view of his position in a political poem of Henry III.'s time, [169](#), [170](#);
desire of Edward I. for despotism, [173](#);
opposition of his clergy and barons, [187](#), [188](#);
his legislative power, [193](#);
Edward II.'s prerogative restricted by the Ordinances, [201](#);
Richard II.'s despotism, [253](#);
Henry IV.'s power checked by the Commons, [282](#), [283](#);
character of Edward IV.'s monarchy, [330](#), [340](#)

Knowles, general of the Free Companies, [234](#), [235](#);
opposes Wat Tyler, [244](#)

Lacey, Hugh de, does homage for land beyond Hereford, [59](#)

Lacey, Hugh (his nephew), sent as envoy to O'Connor, [102](#);
made Earl of Meath, [103](#)

Lacey, Hugh de (son of Earl of Meath), obtains the kingdom of Ulster, [132](#)

La Hire, French general, [310](#)

Lancaster, Thomas, Earl of, opposition to Gaveston, [200](#);
his great possessions, Edward II. flies from, [202](#);
made minister, [205](#);
joins Hereford in rebellion, [206](#);
surrenders, is beheaded, [207](#)

Land, how apportioned by the Saxons in England, [31](#);
tenure becomes military, [37](#);
granted to Normans by William I., [43](#)

Landrica, his jurisdiction, [33](#);
his position, [34](#)

Lanfranc, Archbishop of Canterbury, connects the Church with Rome, [38](#);
establishes ecclesiastical courts, [49](#);
England left in charge of, [53](#);
supports William II., [56](#);
restrains him, [57](#);
prevents the quarrel on investitures from reaching England, [60](#);
dies, [57](#)

Langton, Archbishop of Canterbury, consecrated, [131](#);
opposes John, [135](#);
causes Pandulf's fall, [143](#);
excommunicates Hubert's enemies, [145](#);
his national policy, [146](#);
dies, [147](#)

Latimer, leader of a rebellion against Edward IV., [332](#)

La Tremouille, favourite of Charles VII., [310](#);
opposed to peace, [313](#)

Layamon, his translation of Geoffrey of Monmouth's Chronicle, [271](#)

Leicester. [See [Beaumont](#).]

Leofric, Earl of Mercia, [20](#);
competes with Godwine, [22](#)

Leofwine, fifth son of Godwine, outlawed, [22](#);
Earl of Essex and Kent, [23](#);
killed at Hastings, [27](#)

Lindisfarne, episcopal See in, [4](#)

Lionel, third son of Edward III., Duke of Clarence, left in command of England during the French war, [228](#);
governor of Ireland, [250](#)

Lisle, Lord, [341](#);
takes sanctuary, [342](#)

Literature, [270-274](#), [353](#)

Llewellyn, John's son-in-law, submits to him, [132](#)

Llewellyn, attacks Mortimer's lands, [162](#);
refuses to obey the summons of Edward I., [175](#);
conquered and killed, [176](#)

Læt, position of, [29](#);
origin of, [30](#);
settle on the demesne land, [31](#)

Lollards, their petition, [251](#);
their doctrines, [267](#);
persecuted by Henry IV., [285](#);
by Henry V., [288](#), [289](#);
by Gloucester, [312](#);
by Suffolk, [318](#)

Longchamp, Chancellor, buys bishopric of Ely, [116](#);
justiciary and legate, [117](#);
Richard I. orders his arrest, his dispute with Geoffrey and John, is dismissed, [121](#);
retires to France, [122](#)

Lothians, granted to Scotland, [14](#)

Louis VI., upholds William Clito, defeated at Puyssac, makes peace, [67](#)

Louis VII., divorces Eleanor, [85](#);
his friendship secured by Henry II., [90](#);
cemented by a marriage-treaty, war with Henry II., [92](#);
receives Alexander III., [94](#);
protects Becket, [98](#);
war with Henry II., [100](#);
supports Prince Henry, [103](#), [104](#);
makes peace, [105](#);
jealous of Henry II.'s power, [109](#)

Louis VIII., engaged to Blanche of Castile, [127](#);
summoned to England, [139](#);

retires, [142](#);
dies, [145](#)

Louis XI., makes Treaty of Pecquigni, [338](#)

Louis of Bavaria, Emperor, dispute with the Pope, [219](#);
joins France against Edward III., [222](#)

Lovel, favourite of Richard III., [345](#)

Magesætas, men of Hereford, [19](#)

Magna Charta, [107](#), [137](#), [138](#), [139](#);
re-enacted, [168](#);
confirmed, [188](#)

Maid of Norway, betrothed, [181](#);
dies, [182](#)

Maine, Robert, Governor of, [52](#), [53](#);
William II. fights against, [59](#);
suzerainty of, given up by Louis VI. to Henry I., [67](#)

Maintainers, complaints against, [245](#);
explained, [270](#)

Malcolm I., King of Scotland, holds part of Strathclyde by military service, [12](#)

Malcolm II., King of Scotland, does homage to Cnut, [20](#)

Malcolm III., Canmore, King of Scotland, helps Eadgar, [45](#);
commends himself to William I., [46](#);
his savage invasions, [51](#);
marries Eadgar's sister, does homage to William I., [52](#);
his wars with William II., does homage to him, killed at Alnwick, [58](#)

Malcolm IV., King of Scotland, resigns three counties to Henry II., [90](#);
does homage for Huntingdon, [91](#);
follows Henry to his war with France, [93](#)

Malet, Count of, supports Robert, [65](#);
banished, [67](#)

Manny, Sir Walter, raises siege of Hennebone, [222](#);
invades Picardy, [233](#)

Manor, origin of, [32](#)

Mansell, holds seven hundred livings, [152](#);

on Henry III.'s council, [159](#);
driven to France, [162](#);
joins Eleanor's army, [164](#)

Marcel, revolutionary leader in Paris, [232](#)

Margaret, sister of Eadgar, marries Malcolm, [52](#)

Margaret, daughter of William the Lion, sent as hostage to John, [132](#)

Margaret, of France, marries Edward I., [190](#)

Margaret, marries Henry VI., [316](#);
character, [317](#);
wins battles of Wakefield and St. Albans, rescues the King, [327](#);
flies with him to Scotland, attempts to overthrow Edward IV., [329](#);
defeated at Tewkesbury, [335](#);
ransomed, [338](#)

Margaret, sister of Edward IV., marries Charles of Burgundy, [331](#)

Mark system, described, [28](#);
how carried out, [31](#)

Marlborough, castle of, held for Matilda, [83](#)

Marriage of the clergy, permitted by Dunstan, [14](#), [15](#),
forbidden by Lanfranc, [49](#)

Marshall, William, first Earl of Pembroke, ordered to supplant Longchamp, [121](#);
summoned to Rouen, [126](#);
advises John to disband his troops, [129](#);
declares Henry III. King, [141](#);
his character, government, [142](#);
death, [143](#)

Marshall, William, second Earl, head of the Barons at Brackley, [136](#);
his property attacked, [144](#);
quarrels with De Burgh, [146](#)

Marshall, Richard, third Earl, his patriotism, [149](#);
outlawed, murdered, [150](#)

Marshall, Gilbert, fourth Earl, restored to favour, [150](#)

Martin, Papal agent, his exactions, [154](#)

Mary of Burgundy, rivals for her hand, [336](#), [337](#);
marries Maximilian of Austria, [339](#)

Matilda, wife of William I., helps Robert, [53](#);
dies, [54](#);
her claim on Flanders, [69](#)

Matilda, niece of Eadgar Ætheling, marries Henry I., [64](#);
dies, [68](#)

Matilda, daughter of Henry I., marries Henry V., [67](#);
the Barons swear fealty to her, [69](#);
marries Geoffrey of Anjou, [70](#);
her claim passed over, [77](#);
David of Scotland supports her, [79](#);
Robert of Gloucester declares for her, [81](#);
lands, [82](#);
supported by Henry of Winchester, [83](#);
offends London and the Church, retires to France, [84](#)

Maud of Boulogne, wife of Stephen, fights for him, [81](#)

Mellent. [See [Beaumont](#).]

Mercenaries, of William I., [46](#), [54](#);
of Stephen, [81](#);
of Henry II., [90](#), [93](#);
of John, [133](#), [136](#), [139](#)

Mercia, foundation of, [2](#);
kingdom of, [4](#);
submits to Wessex, [5](#);
conquered by the Danes, [7](#);
submits to Eadward, [10](#);
Dunstan's reforms in, [14](#), [15](#);
rebels against Æthelred, [16](#);
overrun by Danes, [18](#);
surrendered to Cnut, [19](#);
made an Earldom for Eadric, [20](#)

Militia, Harold's, [26](#);
William II.'s, [59](#);
reorganized by Henry II., [109](#)

Milo, Constable of Gloucester, Earl of Hereford, Robert of Gloucester's agent, [81](#);
fights for Matilda, [82](#);
attests her oath, [83](#);
his son Roger surrenders his castles to Henry II., [90](#)

Moleyns, Bishop of Chichester, Minister under Suffolk, [318](#);
killed, [319](#)

Monarchy. [See [King](#).]

Montgomery, Roger, fights at Hastings, [27](#);
made Earl of Shrewsbury, [51](#);
opposes William II., [57](#)

Montgomery, Hugh, second Earl, killed while assisting Hugh of Chester, [59](#)

Montgomery, Roger, third son of the first Earl, does homage for Powys, [59](#)

Montgomery, Arnulf, fifth son of the first Earl, does homage for Dyfed, [59](#)

Montgomery, Robert, eldest son of the first Earl. [See [Belesme](#).]

Montmirail, Peace of, [100](#)

Morkere, a Thegn of the Danish Burghs, [18](#)

Morkere, son of Ælfgar, elected Earl of Northumbria, [24](#);
defeated by Tostig, [26](#);
calls a Witan, [40](#);
hopes to be elected King, deserts Eadgar, [41](#);
reinstated in his Earldom, [44](#);
rebels and is pardoned, [45](#);
joins Hereward's rebellion, [50](#);
made prisoner, [51](#)

Mortain, Count of. [See [Robert](#).]

Mortimer, Hugh, descended from Belesme, surrenders to Henry II., [90](#)

Mortimer, Roger, attacked by Llewellyn, [162](#);
tries to liberate Edward, [164](#);
succeeds, [166](#)

Mortimer, Roger, subdues Ireland, [205](#);
surrenders to Edward II., [207](#);
escapes from the Tower, [208](#);
in France with the Queen, [210](#);
his government, [213](#), [214](#);
made Earl of March, executed, [215](#)

Mortimer, Roger, fourth Earl of March, made heir-apparent, [246](#);
killed, [253](#)

Mortimer, Edward, outlawed, [252](#);
taken prisoner, [278](#);
refused leave to ransom himself, marries Glendower's daughter, [279](#)

Morton, Bishop of Ely, apprehended, [343](#);
released, [344](#);

proposes marriage between Henry Tudor and Elizabeth of York, [345](#)

Mowbray, Robert, Earl of Northumberland, kills Malcolm at Alnwick, [58](#);
his conspiracy against William II., [59](#)

Mowbray, Roger (son of Robert's nephew Nigel), opposes the invasion of David I., [79](#)

Mowbray, John, Edward I. relies upon, [191](#)

Mowbray, Thomas, Earl of Nottingham, one of the Lords Appellant, [248](#);
won over to Richard II., [251](#);
made Duke of Norfolk, [252](#);
banished, [252](#)

Mowbray, Thomas, joins Scrope's rebellion, beheaded, [281](#)

Mowbray, John, third Duke of Norfolk, joins York, [321](#);
defeated at St. Albans, [327](#)

Neville, Ralph, Chancellor, [151](#)

Neville, Ralph, made Earl of Westmoreland, [252](#);
partisan of Henry IV., [276](#);
conquers Scrope and Mowbray, [281](#)

Neville, Earl of Salisbury, joins York, [321](#);
Chancellor, [322](#);
retires, wins the battle of Blore Heath, [325](#);
beheaded, [327](#)

Neville, Earl of Warwick, the "Kingmaker," at St. Albans, [322](#);
retires to Calais, [325](#);
wins battle of Northampton, [326](#);
takes charge of Henry VI., [327](#);
defeated at St Albans, [327](#);
his power, [331](#);
keeps Edward IV. prisoner, pardoned, supports Wells' rebellion, [333](#);
makes a treaty with Margaret, re-crowns Henry VI., [334](#);
killed at Barnet, [335](#)

Neville, John, of Montague, wins battles of Hedgeley Moor and Hexham, [329](#);
made Earl of Northumberland, [331](#);
declares for Henry VI., [334](#);
killed, [335](#)

Neville, George, Archbishop of York, Chancellor, [331](#);
deprived of his chancellorship, [332](#)

Neville, William (son of Ralph), Lord Falconbridge, at Ferrybridge, [328](#)

New Forest, made by William I., [39](#);
Richard dies there, [54](#);
the displaced people taken to Cumberland, [58](#);
death of William II. in, [60](#)

Nicholas of Ely, Chancellor, [159](#)

Nicholas of Tusculum, Papal Legate, [135](#)

Nigel, Bishop of Ely, nephew of Roger of Salisbury, surrenders Devizes to Stephen, [81](#);
joins Matilda, [83](#)

Normandy, connected with England by Emma, [17](#);
Æthelred and his sons fly there, [18](#), [19](#);
Cnut forms alliance with, [20](#);
Edward the Confessor's friendship for, [21](#), [22](#);
William I. resides there, [53](#);
given to Robert, [53](#), [56](#);
anarchy in, [57](#);
pledged by Robert to William II., [59](#);
conquered by Philip II. from John, [129](#)

Northumbria, founded, [2](#);
claims supremacy, [3](#);
submits to Wessex, [5](#);
conquered by the Danes, [7](#);
helps Hasting against Alfred, [9](#);
acknowledges supremacy of Eadward, [10](#);
incorporated with Wessex, made an Earldom for Osulf, [12](#);
divided into three parts, [14](#);
surrendered to Cnut, [19](#);
Cnut makes it an Earldom, [20](#)

O'Connor, King of Ireland, war with Dermot of Leinster, [102](#);
submits to Henry II., [103](#)

Odo, Bishop of Bayeux, brother of William I., at Hastings, [27](#);
made Earl of Kent, [43](#);
left in charge of England, [44](#), [53](#);
rules severely, aims at the Papacy; William imprisons him, [54](#);
heads Norman opposition to William II., defeated, and retires to France, [57](#)

Offa, King of Mercia, [4](#);
his power, his dyke, [5](#)

Olaf, King of Norway, invades England, retires on receiving Danegelt, [16](#)

Oldcastle, his character, [286](#);

persecuted, [288](#);
escapes, his death, [289](#)

Ordainers, appointment of, [200](#)

Orleans, siege of, [307-310](#)

Orleton, Bishop of Hereford, his conspiracy, [209](#)

Osberht, King of Northumbria, [7](#)

Osulf, Earl of Northumbria, [12](#);
retains one third of it, [14](#)

Oswald, King of Northumbria, [4](#)

Oswi, King of Northumbria, [4](#)

Otho, son of Henry the Lion, brought up in England, [114](#);
elected Emperor, [123](#);
promises help to John, his rivalry with Philip of Swabia, [127](#);
supported by the Pope, [131](#);
receives money from John, [132](#);
crowned as Emperor, joins the Northern League, [133](#);
defeated at Bouvines, [136](#)

Otho, Papal Legate, his extortions, [146](#), [151](#)

Owen Glendower, rebellion, [278](#);
negotiates with the Percies, [279](#);
conquered, [282](#)

Palatine counties, established by William I., [51](#);
Ely made one by Henry I., [79](#)

Pale, English, provinces in Ireland, [103](#)

Pandulf, Papal Legate, forbids Philip to attack John, [134](#);
his government, [143](#)

Parliament, its origin, [106](#), [107](#);
Knights and Burghers summoned to, [165](#);
three Estates represented at, [185](#), [193](#), [194](#);
royal power restricted by, [201](#);
a Peer's privileges in, [221](#);
construction of, in Edward III.'s reign, [237](#), [238](#);
mercantile classes introduced, [264](#);
power of the Commons in Henry IV.'s reign, [282](#), [283](#)

Paulinus, missionary to Northumbria, [3](#), [4](#)

Peasantry, their sufferings in Henry I.'s reign, [72](#), [73](#);
in Stephen's reign, [86](#), [87](#);
effects of the Friars' preachings on, [153](#);
disturbances in Edward I.'s reign, [179](#);
their love for Lancaster, [207](#);
effect of Black Death upon, [229](#);
becoming more important, [237](#), [238](#);
their insurrection under Wat Tyler, [244](#);
oppression of the Commons, [245](#);
day labourers increasing, [260](#), [261](#);
effects of Wicliffe's preaching on, [267](#), [269](#);
the Statute of Labourers, [267](#), [268](#);
their sufferings after the French war, [318](#);
their hatred of Suffolk, [319](#);
Jack Cade's rebellion, [320](#);
rebellions against Edward IV., [332](#), [333](#);
their indifference in the War of the Roses, [332](#), [333](#), [335](#);
increased freedom of, and poverty, [352](#), [353](#)

Pecquigni, Treaty of, [338](#)

Pedro the Cruel, King of Castile, supported by the Black Prince, [234](#);
his daughters marry John of Gaunt and Edmund of York, [236](#)

Penda, King of Mercia, [4](#)

Percy, Henry, first Earl of Northumberland, Constable, partisan of Henry IV., [276](#);
quarrels with him, [278](#), [279](#);
submits, [280](#);
escapes, [281](#);
killed at Bramham, [282](#)

Percy, Thomas, brother of the first Earl, made Earl of Worcester, [252](#)

Percy, Hotspur, son of the first Earl, his marriage, [279](#);
killed, [280](#)

Percy, second Earl, reinstated, [288](#);
killed at St. Albans, [323](#)

Percy, Lord Egremont, son of the second Earl, fighting with the Nevilles, [321](#), [323](#)

Percy, third Earl, killed at Towton, [329](#)

Peter des Roches, Justiciary, [135](#);
his character and policy, charges Hubert with treason, [144](#);
retires to the crusades, [146](#);
returns, causes Hubert's fall, [148](#);

his rule, [149](#);
his fall, [150](#)

Peter of Savoy, uncle of Queen Eleanor, his possessions, [151](#);
joins her army, [164](#)

Peter de Aigue Blanche, Bishop of Hereford, [151](#);
envoy to Rome, [158](#);
attacked by Llewellyn, [162](#);
joins Eleanor's army, [164](#)

Peter III., of Aragon, conquers Sicily, [177](#).

Peter's Pence, begun by Æthelwulf, [6](#);
paid by William I., [50](#);
collected in Ireland, [102](#)

Philip I., jealous of William I., [53](#);
assists Robert, [54](#), [59](#);
jealous of William II., [60](#)

Philip II., makes peace with Henry II., [110](#);
claims the guardianship of Arthur, meets Henry at Gisors, [111](#);
declares war, [112](#);
goes on a crusade with Richard I., [116](#);
called the Lamb in Sicily, [117](#);
quarrels with Richard, [118](#);
befriends Conrad, [119](#);
withdraws from the Crusade, [120](#);
invades Richard's dominions, [122](#);
tries to prolong Richard's imprisonment, [123](#);
general alliance against him, [124](#);
helps Arthur against John, [126](#);
makes treaty with John, [127](#);
war with John, [128](#);
takes Normandy, [129](#);
league against him, [133](#);
victory at Bouvines, [136](#);
dies, [145](#)

Philip IV., his likeness to Edward I., [173](#);
quarrels with him, [184](#);
alliance with the Scotch, [185](#);
abolishes the Templars, [199](#)

Philip VI., his quarrel with Edward III., [218](#);
asks David II. to attack Edward, [228](#);
dies, [229](#)

Philip of Swabia, Emperor of Germany, [127](#);

makes peace with the Pope, [131](#);
assassinated, [132](#)

Philip of Burgundy. [See [Burgundy](#).]

Philippa, wife of Edward III., saves the lives of the men of Calais, [228](#)

Piers Ploughman, Vision of, [273](#)

Pole, Michael de la, advises retreat from Scotland, [246](#);
made Earl of Suffolk, dismissed, [247](#);
impeached, [248](#)

Pole, William de la, in command at the siege of Orleans, [307](#);
taken prisoner, [310](#);
arranges the marriage of Henry VI., [316](#);
made Marquis of Suffolk, [317](#);
chief Minister, unpopularity of, [318](#);
murdered, [319](#)

Pole, John de la, marries sister of Edward IV., [347](#)

Pole, John de la, Earl of Lincoln, declared heir, [347](#)

Police, the early system of, [35](#);
systematized at the Conquest, [37](#);
strictness of William I.'s, [39](#);
of Henry I., [73](#), [74](#)

Pope, Adrian IV. the only English one, [90](#);
grants Ireland to Henry II., [91](#)
Alexander III. [See [Alexander III.](#)]
Alexander IV., extorts money for Sicilian war, [158](#);
absolves Henry III. from his vow, [161](#)
Boniface VIII., his claim on Scotland, [191](#)
Boniface IX., grants Provisors, [250](#)
Calixtus II., mediates a treaty between Henry I. and Louis VI., [68](#)
Celestine III., excommunicates Longchamp's enemies, [122](#)
Clement III., raised by Henry IV. of Germany, [60](#)
Clement IV., excommunicates the Barons, [164](#)
Clement VI., attempts arbitration, [223](#)
Gregory VII., supports William I., [25](#);
revives the Papacy, [49](#);
demands homage and Peter's Pence, [50](#);
friendly relations with England, [60](#)
Gregory IX., his extortions, [147](#)
Gregory XI., restores the Papacy to Rome, [245](#)
Honorius III., his character, [147](#)
Innocent III., decides the election at Canterbury, [130](#);
consecrates Langton, [131](#);

his interdict and excommunication, [131](#);
declares John's crown forfeited, [134](#);
his tyranny in England, [135](#);
disallows Magna Charta, [139](#);
dies, [140](#)

Innocent IV., his exactions, [154](#);
offers Sicily to Edmund, [157](#)

John XXII., mediates between Edward II. and the barons, [205](#)

Victor III., acknowledged in England, [61](#)

Victor IV., acknowledged in Germany, [94](#)

Popes, position as arbitrators, [222](#), [223](#)

Powys, granted to Montgomery, [59](#)

Præmunire, Statute of, [250](#), [266](#);
writ of, used against Beaufort, [312](#)

Privy Council, origin of, [107](#)

Provisions of Oxford, [159](#)

Provisors, Statute of, [250](#), [265](#)

Purveyance, misery caused by, [73](#);
restrained by Henry I., [74](#);
restricted by Magna Charta, [139](#);
checked by the Statute of Stamford, [200](#);
exactd by the royal Princes, [215](#);
complained of, [245](#)

Ralph of Gwader, son of Ralph the Staller, Earl of Norfolk, conspires against William I., [52](#);
flies to Brittany, [53](#)

Ralph Flambard, Justiciary, his cruelties, [57](#);
arrested by Henry I., [64](#);
escapes to Normandy, [64](#)

Ranulf, Earl of Chester, fights against Wales, [78](#);
joins Matilda, [83](#)

Ratcliffe, favourite of Richard III., [342](#), [345](#), [347](#)

Raymond of Toulouse, quarrels with Richard, [112](#);
marries Joanna, [124](#);
revenge for injury done him, [133](#)

Reeve, his office, [31](#);
his duties, [32](#)

Renaissance, its effects, [338](#), [353](#)

Réné, Duke of Bar, [316](#)

Representation, not understood in Saxon times, [34](#);
used in making the Domesday Book, [55](#);
used in inquiries for financial purposes, [125](#);
first used in Parliament, [165](#);
principle established, [172](#), [193](#), [194](#)

Revenue. [See [Taxes](#).]

Richard I., engaged to Berengaria, [93](#);
joins the Great Rebellion against his father, [104](#);
pardoned, [105](#);
his success in Aquitaine excites Prince Henry's envy, [110](#);
his war with him, [111](#);
attacks Raymond of Toulouse, joins Philip II. against Henry II., receives his father's submission, [112](#);
gets absolution, is crowned, [115](#);
sells all offices in the Kingdom, and goes on a crusade, [116](#);
his quarrels in Sicily, [117](#);
conquers Cyprus, marries Berengaria, [118](#);
takes Acre, [120](#);
relieves Joppa, makes a truce with Saladin, [121](#);
imprisoned in Germany, [122](#);
does homage to Henry VI., returns to England, [123](#);
his wars with Philip, his death, [124](#);
his heavy taxation, [125](#);
names John as his successor, [126](#)

Richard II., made heir-apparent, [240](#);
his interview with Wat Tyler, [244](#);
his favourites, [247](#);
his character, [248](#);
assumes authority, [249](#);
his expedition to Ireland, [250](#);
his marriage, [251](#);
his vengeance, [252](#);
his despotism, [253](#);
deposed, [254](#);
death, [277](#)

Richard III., murder of Henry VI. imputed to him, [336](#);
his quarrel with Clarence, [336](#);
captures Edward V., [342](#);
secures the crown, [343](#);
his unpopularity, [345](#);
his energy, [346](#);

death of his son, [347](#);
killed at battle of Bosworth, [348](#);
his character, [349](#)

Richard, Prior of Dover, succeeds Becket as Archbishop of Canterbury, [105](#)

Richard, brother of Henry III., Count of Poitou, quarrels with De Burgh, [146](#);
his patriotic efforts, goes on a Crusade, [152](#);
marries Sancha, [154](#);
refuses the Sicilies, [157](#);
elected King of the Romans, [158](#);
joins Henry against the Barons, [162](#);
taken prisoner at the battle of Lewes, [163](#)

Richard, Earl of Cambridge, son of Edward III.'s son Edmund, his conspiracy, executed, [292](#)

Richard of York, son of the Earl of Cambridge, in command of the war in France, [314](#), [315](#);
leader of the Plantagenet Princes, [317](#);
concerned in Suffolk's death, [319](#);
appears in arms, [320](#);
duped into submission, [321](#);
President of the Council, [322](#);
victory at St. Albans, [323](#);
Protector, deposed, [324](#);
returns from Ireland, [325](#);
claims the throne, [326](#);
beheaded after Wakefield, [327](#)

Richard, son of Edward IV., in sanctuary, [342](#);
given up to Richard, [343](#);
murdered, [345](#)

Ridel, Godfrey, Becket's enemy, made Bishop of Ely, [105](#)

Rivaux, Treasurer, [148](#);
obtains confiscated property, [150](#)

Rivers. [See [Woodville](#).]

Robert, brother of William I., fights at Hastings, [27](#);
made Earl of Cornwall, [45](#);
opposes William II., [57](#);
banished, taken prisoner at Tenchebray, [66](#)

Robert de Comines, Earl of Northumberland, murdered, [46](#)

Robert, son of William I., Governor of Maine, [52](#);
does homage for it to Philip I., [53](#);
his rebellion and reconciliation with his father at Gerberoi, his expedition against Scotland, [54](#);
Normandy bequeathed to him, [56](#);

his character excites feudal anarchy, [57](#);
makes Treaty of Caen with William II., [58](#);
goes on a Crusade, pledging Normandy to William, [59](#);
claims the throne of England, surrenders to Henry I., [65](#);
taken prisoner at Tenchebray, [66](#)

Robert of Rhuddlan, his wars with Wales, [51](#)

Robert of Flanders, supports William Clito, killed, [68](#)

Robert of Batherton, rebels against Stephen, [79](#)

Robert, Earl of Gloucester, natural son of Henry I., swears fealty to Matilda, [69](#);
suppresses Gryffith's insurrection, [70](#);
one of the three remaining Earls, renounces his fealty to Stephen, [80](#);
his power in the West, [81](#);
brings Matilda to England, [82](#);
takes Stephen prisoner at the battle of Lincoln, [83](#);
taken prisoner, exchanged for Stephen, [84](#);
dies, his character, [85](#)

Robert of Artois, persuades Edward III. to the war with France, [218](#)

Robert of Gloucester, translated Layamon, [271](#)

Roger, Bishop of Salisbury, punishes false coiners, [74](#);
organizes the Exchequer Court, [75](#);
power of his family, [81](#);
arrested, [81](#);
dies, [82](#)

Rotheram, Archbishop of York, Chancellor, [341](#);
deposed, [342](#)

Rouen, siege of, [299](#);
loss of, [319](#)

Russell, Chancellor, [342](#), [346](#)

Rutland, made Earl of Albemarle, [252](#);
title removed, [276](#);
conspires against Henry IV., [277](#)

Sac and Soc, explained, [33](#);
benefit of, [76](#)

Saladin, his power in the East, [111](#);
greatness of his empire, takes Jerusalem, [119](#);
his truce with Richard, [121](#)

Saladin tax, imposed by Henry II., [111](#)

Salisbury, Earl of, conspires against Henry IV., beheaded, [277](#)

Salisbury, commanding at Orleans, [307](#)

Salisbury. [See [Neville](#).]

Sanctuary, effects of taking, [149](#)

Say, minister under Suffolk, [318](#);
executed, [320](#)

Scotland, does fealty to Eadward the Elder, [10](#);
to Æthelstan, [11](#);
rebels, and defeated at Brunanburh, [11](#);
the Lothians added to it, [14](#);
submits to Cnut, [20](#);
does homage to William I., [46](#);
invades England, [51](#);
the Lowlands anglicized, [52](#);
war with William II., [58](#);
does homage for Huntingdon to Henry II., [90](#), [91](#);
does homage to Henry II., [105](#);
repurchases its independence from Richard I., [116](#);
does homage to John, [128](#), [132](#);
peace and marriage treaty with Henry III., [143](#);
its relations with England, [180](#);
extinction of the royal family, [181](#);
rival claimants, [182](#);
Balliol made king, [183](#);
conquered by Edward I., [186](#);
Wallace's rebellion, [189](#), [190](#);
reconquered by Edward I., [191](#);
Bruce's rebellion, [192](#);
invaded by Edward II., [198](#), [200](#);
battle of Bannockburn, [203](#);
truce with England, [206](#);
Bruce acknowledged king by Edward II., [208](#);
war with Edward III., [214](#);
Edward Balliol's invasion, [216](#);
does fealty to Edward III., [217](#);
David Bruce's invasion, [228](#);
Edward III.'s "Burnt Candlemas," [231](#);
peace with England, [232](#);
war with Richard II., [246](#);
refuses homage to Henry IV., [278](#);
imprisonment of James II., [281](#);
released, [304](#);

- murdered, [315](#);
- truce with England, [316](#);
- independent spirit of, [339](#);
- truce with, [347](#)

Scrope, William, made Earl of Wiltshire, [252](#)

Scrope, Henry of Masham (nephew of the Earl), his conspiracy with Cambridge, executed, [292](#)

Scrope, Archbishop of York, his conspiracy with Mowbray, executed, [281](#)

Scutage, first instance of, [91](#);

- second, [93](#);
- reason for, [109](#);
- explained, [113](#);
- demanded by John, [136](#);
- restricted by Magna Charta, [138](#);
- demanded by Henry III., [148](#)

Sheriff, his duties, [32](#);

- untrustworthy, [75](#);
- court of, [76](#);
- peculation of, [106](#);
- restrained by Magna Charta, [139](#)

Shire, origin of, [31](#), [32](#)

Sibylla, wife of Robert of Normandy, [65](#)

Sicily, Richard I. and Philip in, [117](#);

- genealogy of the kings of, [125](#);
- Papal efforts to drive the Hohenstaufen from, [156](#);
- accepted by Edmund, son of Henry III., [157](#);
- renounced by the council, [161](#);
- given to Charles of Anjou, [168](#);
- conquered by Aragon, [177](#)

Sigeric, Archbishop of Canterbury, succeeds Dunstan, [16](#)

Sigismund, visit of, [297](#)

Simon de Montfort, his ancestors, marriage, goes on a crusade, [152](#);

- his government of Gascony, [156](#);
- quarrel with Valence, [158](#);
- surrenders his castles, [160](#);
- quarrels with Gloucester, [161](#);
- chief of the baronial party, [162](#);
- wins the battle of Lewes, [163](#);
- his rule, [164](#);
- his parliament, [165](#);

killed at Evesham, his property confiscated, [167](#);
the people's love for him, [169](#)

Siward, Earl of Northumberland, assists Edward against Godwine, [22](#);
mentioned in Macbeth, [23](#)

Slaves, causes of bondage, [29](#);
at the Conquest, [35](#);
English slaves in Scotland, [52](#);
forbidden by the Church, [71](#)

Soken, [meaning of, 33](#)

Sokmen, [35](#)

Somerset, John, Lieutenant-General in France, [316](#);
commits suicide, [319](#)

Somerset, Edmund, succeeds him in France, [319](#);
returns, triumphs over York, [321](#);
killed at St. Albans, [323](#)

Somerset, Henry, in power, [324](#);
flies to Scotland, joins Edward IV., rejoins Henry VI., killed at Hexham, [329](#)

Stafford, Henry, second Duke of Buckingham, marries Catherine Woodville, [331](#);
head of the old nobility, [341](#);
supports Richard III., [342](#);
joins Henry Tudor, [345](#);
executed, [346](#)

Stafford, Sir Humphrey, defeated by Jack Cade, [320](#), (distant relation of the Duke's)

Stafford, Humphrey (cousin of Sir Humphrey), Earl of Devonshire, defeated, [332](#)

Stafford, Sir Humphrey, prevents Buckingham from joining Henry Tudor, [346](#)

Stanley, one of the new nobility, [341](#);
apprehended, [343](#);
made constable, [344](#);
marries Margaret of Richmond, [347](#);
joins Henry Tudor, [348](#)

St. Brice, massacre of, [17](#)

Staple, Calais a staple town, [228](#);
origin of, [257](#);
rearranged by Edward IV., [330](#)

Statutes—

Of Carlisle, [265](#)
De Donis conditionalibus, [196](#)
De Hæretico comburendo, [276](#), [285](#)
Of Labourers, [267](#)
De Mercatoribus, [258](#)
Of Mortmain, [175](#), [196](#)
Of Præmunire, [250](#), [266](#)
Of Provisors, [250](#), [265](#)
Quia Emptores, [194](#), [196](#), [264](#)
Of Stamford, [200](#)
De Tallagio, [188](#)
Of Wales, [176](#)
Of Westminster, [174](#), [193](#), [195](#), [200](#)
Of Winchester, [177](#), [195](#)

Stephen, second son of Stephen of Blois and Adela, daughter of William I., swears fealty to Matilda, [69](#);

secures the throne, [77](#);
his character, [78](#);
goes to Normandy, purchases peace with Anjou, [79](#);
makes peace with Scotland, grants castles, and creates earldoms, [80](#);
by mercenaries defeats Gloucester's insurrection, [81](#);
offends the Church, [81](#), [82](#);
taken prisoner at the battle of Lincoln, [83](#);
released in exchange for Gloucester, defeated at Wilton, [84](#);
deserted by many of his nobles and by the Pope, [85](#);
accepts Henry as his heir, dies, misery caused by his weakness, [86](#)

Stigand, Archbishop of Canterbury, [23](#);
does not receive the Pallium from the Pope, [36](#), [49](#);
William I. will not be crowned by, seeks his ruin, [42](#);
is deposed, [48](#)

Stratford, John of, made Chancellor, [216](#);
his quarrel with Edward III., [221](#)

Strathclyde, its extent, [3](#);
peopled by Danes, [8](#);
does fealty to Eadward, [10](#);
Eadmund grants part of it to Scotland, [12](#)

Suffolk. [See [Pole](#).]

Swegen, or Swend, son of King of Denmark, invades England, [16](#);
his sister massacred, [17](#);
his great invasion, made King of England, [18](#)

Swend, King of Denmark, nephew of Cnut, willing to help the English, [44](#);
sends a fleet, [46](#), [47](#)

Talbot, Sir John, defeated at Pataye, [310](#);
defeats Burgundians, [315](#);
dies, [321](#)

Tallage, exacted by Matilda, [84](#);
explained, [113](#);
considered illegal after Edward I., [195](#)

Tannegui Duchâtel, becomes Master of France, [296](#);
rescues the Dauphin, [299](#);
murders Burgundy, [300](#)

Taxes, before the Conquest, [35](#);
whence derived, [38](#);
on land, [54](#);
no appeal against, [72](#);
Henry I.'s, [73](#);
in the hands of the King and Council, [76](#);
Henry II. introduces scutage, [93](#);
his revenue, [113](#);
Richard I.'s tax on land, [125](#);
John's severe taxes, [128](#), [133](#);
restricted by Magna Charta, [138](#);
complaints against De Burgh's, [144](#);
Henry III. demands scutage, [148](#);
tallages and aids, [155](#);
Edward I. establishes customs, [174](#);
his heavy taxes, [185](#), [186](#);
clergy outlawed for refusing to pay, [187](#);
complaints against, [188](#);
method of levying changed, [193](#), [194](#);
restricted by the Ordinances, [201](#);
Edward III.'s Maletolte, [219](#);
his subsidies, [223](#);
the poll tax, [240](#), [243](#);
Wat Tyler's riots against, [244](#);
Richard II.'s, [252](#), [253](#);
sufferings of the poor under, [269](#);
consent of Parliament necessary for levying, [282](#);
Henry V.'s, [291](#);
Bedford's, [313](#);
Wells' insurrection against, [333](#);
Richard III.'s malevolences, [348](#)

Templars, undertake a Crusade for Henry II., [103](#);
suppressed by Edward II., [199](#)

Thegns, their rise, [13](#);
duties of, [30](#);

court of, [33](#);
become Barons, [35](#)

Theobald of Blois, grandson of William I., defeats Louis VI. at Puyssac, [67](#);
urged to claim the crown after Henry I., [77](#);
again refuses it, [84](#)

Theobald, Archbishop of Canterbury, joins Henry's party, mediates a compromise, [85](#);
employs Becket, [92](#);
dies, [95](#)

Theodore of Tarsus, organizes the Church, [4](#)

Theows, or slaves, [29](#)

Thomas, Duke of Clarence, second son of Henry IV., invades France, [284](#);
killed at Beaugé, [301](#)

Thomas of Woodstock, Duke of Gloucester, sixth son of Edward III., Governor during the war, [233](#);
succeeds John of Gaunt, [246](#), [247](#);
one of the Lords Appellant, [248](#);
constant opponent of Richard II., [251](#);
arrested, [251](#);
strangled, [252](#)

Thurkill, or Thurcytel, invades England, [17](#);
joins the English, [18](#)

Thurstan, Archbishop of York, opposes David of Scotland, [79](#)

Tithing, explained, [35](#)

Tostig, third son of Godwine, made Earl of Northumbria, [23](#);
deposed, [24](#);
invades the North, slain, [26](#)

Trade of England, [256-258](#), [261](#), [262](#), [351](#)

Trail-bâtons, [195](#)

Tresilian, impeached, [248](#);
executed, [249](#)

Trinoda necessitas, explained, [35](#);
retained by William I., [37](#);
reorganized, [109](#)

Troyes, Treaty of, [300](#)

Tudor, Edmund, son of Owen and Catherine of France, brought forward, [321](#)

Tudor, Jasper, brother of Edmund, brought forward, [321](#);
defeated by Hubert of Pembroke, [332](#);
almost the only Lancastrian left, [336](#)

Tudor, Henry, son of Edmund, proposed marriage, [345](#);
first invasion, [346](#);
second invasion, [348](#)

Twenge, his riots, [148](#)

Valence, Aymer of, Bishop of Winchester, [155](#)

Valence, William of, his possessions, [151](#);
quarrels with De Montfort, [158](#);
refuses to surrender his castles, [160](#);
escapes from Lewes, [164](#);
returns, [166](#)

Valence, Earl of Pembroke, defeats Bruce, [192](#)

Vere, Aubrey de, defends Stephen's cause, [82](#)

Vere, Robert de, ninth Earl of Oxford, Duke of Ireland, favourite of Richard II., [247](#);
impeached, [248](#);
dies, [250](#)

Vere, Aubrey de, succeeds his nephew Robert, [250](#)

Vere, John de, thirteenth Earl of Oxford, almost the only Lancastrian left, [336](#)

Vexin, claimed by France, [55](#);
war on account of, [60](#);
Henry II. refuses to surrender it, [109](#);
John secures it, [127](#)

Viaticum, extorted by William II., [59](#)

Villeinage, position of, [36](#);
proposal to abolish it, [245](#);
disappearing, [267-269](#), [352](#)

Wales, remains British, [3](#);
Wessex establishes supremacy over, [5](#);
southern part colonized by Danes, [8](#);
assist Eadric the Wild against William I., [44](#);
William I. establishes Palatine Counties to restrain it, [51](#);
constant wars against William II., [58](#);

land granted to Norman Earls, [59](#);
Henry I. establishes colonies of Flemings in, [70](#);
insurrections under Gryffith, [70](#);
under Gwynneth, [91](#);
under Llewellyn, [132](#);
under Llewellyn, [176](#);
annexation of, [177](#);
Meredith's rebellion, [178](#);
rebellion against Edward II., [204](#);
quarrel with the Marchers, [206](#);
insurrection of Owen Glendower, [278](#), [282](#);
sympathy with the Lancastrians, [332](#), [335](#);
sympathy with the Tudors, [346](#), [348](#)

Wallace, his insurrection, [189](#);
defeat and death, [190](#);
his use of infantry, [225](#)

Walter, Hubert, Archbishop of Canterbury, opposes John, [123](#);
trained by Glanvill, [124](#);
withdraws from secular work, [125](#);
summoned to Rouen, [126](#);
persuades John to disband his troops, [129](#);
dies, [130](#)

Waltheof, Earl of Nottingham, [44](#);
destroys the castles of York, [47](#);
conspires against William, [52](#);
executed, miracles at his tomb, [53](#)

Ward of Trumpington, the false Richard II., [279](#), [292](#)

Warrenne, William of, first Earl of Surrey, conquers Hereward, [50](#)

Warrenne, William of, second Earl, supports Robert of Normandy, [65](#)

Warrenne, William of, natural son of Stephen (married the heiress of the third Earl), surrenders to Henry II., [91](#)

Warrenne, John, seventh Earl, opposes Edward I., [174](#);
Commander in Scotland, [185](#);
Guardian of Scotland, [186](#);
defeated by Wallace, [189](#)

Warwick (John of Plesseys), Henry III.'s Commissioner, [159](#)

Warwick (William Maudit), one of the Barons' Council, [159](#)

Warwick. [See [Beauchamp](#) and [Neville](#).]

Watling Street, Danish boundary, [8](#)

Wat Tyler, his insurrection, [244](#)

Wedmore, Treaty of,

Wells' rebellion, [333](#)

Weregild, explained, [29](#)

Wessex, foundation of, [2](#), [3](#);
conversion of, [4](#);
supremacy of, [5](#);
invaded by Danes, [7](#);
repels them, [8](#);
retains the supremacy, [10](#);
overrun by Thurkill, conquered by Cnut, [18](#);
restored to Edmund Ironside, [19](#);
helps Harold against William, [26](#)

Wicliffe, protected by John of Gaunt, [240](#);
deserted by him, recants, [245](#);
his preaching, [266](#), [267](#)

William I., visits England, [22](#);
his claims to the throne, [24](#), [36](#);
prepares to invade England, [25](#);
lands at Pevensey, and fights the battle of Hastings, [26](#);
checks the growth of feudalism, [37](#);
establishes the Curia Regis, [38](#);
character of his government, [39](#);
marches to London, [41](#);
crowned, [42](#);
gradually transfers the land to Normans, [43](#);
limits earldoms, [37](#), [43](#);
leaves England, returns to suppress insurrections, [44](#);
takes Exeter, and completes the conquest of the West, suppresses first Northern insurrection, [45](#);
suppresses the rebellion at York, [46](#);
lays waste Yorkshire, [47](#);
his legislation, [48](#);
his position with regard to the Church, [48](#), [49](#);
conquers Hereward, [50](#);
receives homage from Scotland, [52](#);
suppresses the conspiracy of Norman nobles, [52](#);
continues to reside in Normandy, quarrels with his sons, [53](#);
threatened invasion of England, [54](#);
Domesday survey and general oath allegiance, his death and burial, [55](#);
his will, [56](#)

William II., secures Lanfranc's support, is crowned, pleases the English by promises, [56](#);
defeats baronial rebellion, on Lanfranc's death leaves England to Ralph Flambard, [57](#);
intrigues in Normandy, makes treaty with Robert at Caen, receives homage from Malcolm, renews war with him, [58](#);
leaves the conquest of Wales to the Marchers, extorts viaticum from the host before going to

Normandy, holds Normandy in pledge, [59](#);
his formidable position, killed in the New Forest, his general success, [60](#);
his conduct towards the Church, [61](#), [62](#)

William Clito, son of Robert of Normandy, pretender to the Duchy, supported by Louis VII., deserted at treaty of Gisors, [67](#);
supported by Fulk of Anjou, and deserted, [68](#);
supported and again deserted by both Fulk and Louis, Louis tries to put him on the throne of Flanders, his death, [69](#);
his marriage, [72](#)

William, Earl of Boulogne, son of Stephen, promises homage to Henry II., [86](#)

William, son of Henry I., marries a daughter of Fulk of Anjou, [67](#);
the barons swear fealty to, drowned in the White Ship, [68](#)

William of Albemarle, opposes invasion of David I., [79](#);
his power in Yorkshire, submits to Henry II., [90](#)

William II., of Sicily, marries Joanna, [109](#);
his death delays the Crusade, [117](#)

William the Lion, King of Scotland, joins the Great Rebellion against Henry II., [104](#);
taken prisoner at Alnwick, does homage for Scotland, [105](#);
buys back his privileges from Richard, [116](#);
does personal homage to John, [128](#);
makes full submission, [132](#)

Winchelsea, Archbishop of Canterbury, refuses grants to Edward I., [186](#);
appointed adviser to Prince Edward, [187](#);
excommunicates Gaveston, [202](#)

Wishart, Bishop of St. Andrews, a member of the Regency, [181](#);
invites Edward I., [182](#);
trusted by Edward I., [191](#);
crowns Bruce, [192](#)

Witan, described, [32](#), [34](#), [37](#), [38](#);
consents to the Danegelt, [16](#);
assembled by Eadric, [18](#);
elects Cnut King, [20](#);
Godwine's quarrel referred to it, [22](#);
called on Harold's death, elects Eadgar, [41](#);
offers the crown to William I., [42](#);
tries and condemns Waltheof, [53](#)

Woodville, rise of the family, [330](#), [331](#);
Sir John, beheaded, [332](#);
Anthony, made Lord Scales, [331](#);
Lord Rivers, [341](#);

patronizes printing, [353](#);
beheaded, [342](#);
Elizabeth, marries Edward IV., [330](#)

Wulstan, Archbishop of York, [13](#)

Wykeham, William of, Chancellor, deposed 239;
restored, [240](#);
deposed, [240](#);
restored, [249](#)

FOOTNOTES:

[1] French Chroniclers have made this sudden death a judgment of God. Godwine is described as wishing that the piece of bread he ate might choke him if he were guilty of the death of Alfred, whereupon the bread stuck in his throat.

[2] This is the Siward who occurs in the Macbeth of Shakspeare. Though the events connected with his invasion of Scotland are very obscure, the poet seems on the whole to have changed the real history but slightly.

[3] As an illustration of this, Harold's great Foundation of the Holy Rood at Waltham was occupied by secular canons, and had a school attached, while Stigand, one of his firmest supporters, was the uncanonical Archbishop of Canterbury.

[4] See [p. 48](#)

[5] It is not certain how old Eadgar was. His father died in 1057. He must have been therefore at least nine years old, and was probably some years older, as we hear of his executing several acts of kingly authority.

[6] Called also Count of Meulan.

[7] Her name was Nesta. She married Gerald of Windsor, who, as constable of Arnulf of Shrewsbury, commanded the castle of Pembroke. Their grandson was the historian Geraldus Cambrensis.

[8] Stubb's Select Charters.

[9] Ordericus Vitalis.

[10] William of Malmesbury.

[11] Lappenberg, Thorpe's translation, page 377. There were certainly several more at the time of the accession, as their names occur attesting the charter of Stephen.

[12] Fiscal earls.

[13] Adulterine Castles. Will. Malm. Hist. Nov. I. § 18.

[14] See the conduct of Fitz-Hubert and Fitz-Gilbert at Devizes and Marlborough, [page 82](#).

[15] William of Malmesbury, Hist. Nov. II. § 34.

[16] The Bishop seems to have been appointed by Stephen as her escort. William of Malmesbury says that no gentleman could refuse an escort even to his enemy.

[17] Son of Count Alan Fergant of Brittany. Ang. Sax. Chron. ann. 1127.

[18] Bishop of Seéz, in Southern Normandy.

[19] Stubb's Select Charters, page 21, from Matthew of Paris, 1153.

[20] While Eleanor had been his wife, Louis had systematically pressed her claim.

[21] Ramiro of Aragon, a monk, who, for the sake of continuing the succession, was taken from his monastery, and married. His only daughter was the wife of Raymond of Barcelona. Their son became King of Aragon.—Robert de Monte.

[22] The individual payment in Normandy was sixty shillings in Angevin money. The knights' fees of England were popularly put at 60,000: at the same rate this would have amounted to £180,000. The scutage in England was, however, only two marks on a knight's fee. The scutage was repeated two years afterwards. On the supposition that the sum

mentioned applies to both those scutages, there would have been a payment of four marks, or £2, 13s. 4d., on a knight's fee. This would give £160,000. The sum actually paid seems not to have been more than a fifth of that sum.

[23] This view rested chiefly on the False Decretals, a body of false edicts purporting to be the decisions of very early Popes, which was produced the ninth century.

[24] The Decretal of Gratian was produced about the end of Stephen's reign. Gratian, a Tuscan Canonist, produced a collection of Papal decisions, known by his name, in 1151. The Decretals are collections of letters written by the early Popes in answers to questions addressed to them by the Bishops. The first collection was made at Rome by Dionysius in 550. In this collection, letters exaggerating Papal authority were subsequently introduced, known as the False Decretals. They received the Papal sanction from Nicholas I. about 860.

[25] These Constitutions will be found in full in Stubbs' Charters, p. 132.

[26] He is said to have objected especially to Articles 1, 3, 4, 7, 8 and 12.

[27] Robert de Monte.

[28] So called from a table chequered like a chessboard, and used for reckoning.

[29] The details of the King's last days are to be found in Giraldus Cambrensis, and in Hoveden. They are thrown together in an eloquent passage by Professor Stubbs in his Preface to Hoveden.

[30] See [genealogy](#) at the end of the chapter.

[31] See [genealogy](#) at the end of the chapter.

[32] A fanatical sect established in 1090 in the mountains of North Persia. They had two chief places, the one the fortress of Alamout in Persia, the other Masgat in the mountains of Libanus. Their name is derived from *Haschich*, an intoxicating drink with which they raised their enthusiasm.

[33] John de Grey belonged to this class.

[34] He had married Joanna, John's natural daughter.

[35] By writ of *quo warranto*.

[36] 20,000 are said to have died in London alone.

[37] There were about 150 Baronies at this time, but several Barons had more than one.

[38] They were the Bishop of Worcester, the Earls of Leicester, Gloucester, Norfolk, Hereford, John Fitz-Geoffrey, Peter de Montfort, Richard de Grey, Roger Mortimer, and Albemarle. Of the King's party, Boniface of Canterbury, Peter of Savoy, the Earl of Warwick, John Mansell, and James d'Audley: (in this signature he signed his name as James of Aldither, Fitz-Geoffrey as Geoffreyson.)

[39] Fifteen at least of the royal castles were in the hands of foreigners.

[40] Kenilworth and Odiham.

[41] Formal reference does not seem to have been made till 1263.

[42] Rishanger de Bell. Lew.

[43] Wykes is the most important.

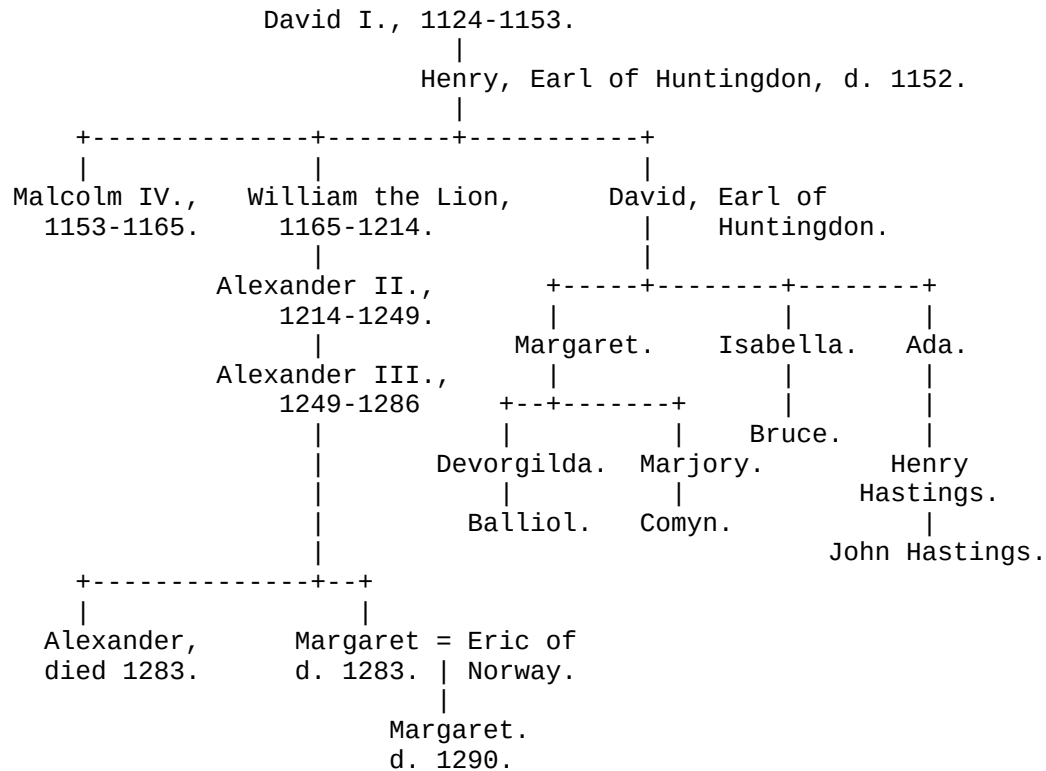
[44] Stubbs.

[45] It is thus that the bankers' street in London is called Lombard Street.

[46] "Homagium suum nobis debitum nobis absque conditione aliqua obtulit et detendit."—RYMER.

[47]

[click here to see the image](#)



[48] She was the widow of the King of Navarre.

[49] They are said even to have thrown little children into the air and caught them on their lances.

[50] There was probably no separate statute “De tallagio non concedendo,” though quoted as a statute in Charles I.’s reign. The articles given by Walter of Hemingburgh, which were regarded as that statute, omit the saving clause, but are now not considered authoritative.

[51] Sir Walter Scott.

[52] His sentence was: “That for the robberies and felony of which he had been guilty, he should be hanged by the neck; that as an outlaw, and not having come to the King’s peace, he should be cut down and beheaded as a traitor; that for sacrileges committed by him, he should be disembowelled, and his entrails burnt as a warning to others; that his head should be fixed to London Bridge, and his quarters to the towns of Berwick, Newcastle, Stirling, and Perth.”

[53] There were present at this Parliament seven Earls and forty-one Barons.

[54]

“Sire, si je voderoi mon garsoun chastier
 De une buffe ou de deus, pur ly amender,
 Sur moi betera bille, e me frad attachier,
 E avant que isse de prisone raunsoun grant doner.”
The Outlaw’s song of Traillebaston.
Political Songs, p. 231.

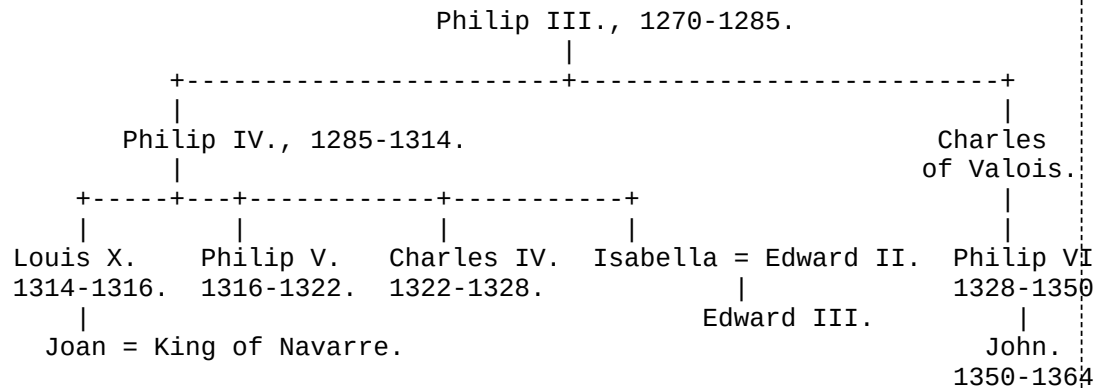
[55] A curious question was raised, whether a torturer could be fetched from the Continent, there being none in England.—Hemingburgh, 2287.

[56] He had lately received the Earldom of Norfolk, and the rank of Earl Marshall, by the death of Bigod without heirs.

[57] These are only the principal articles; there were many others, the arrangement of the law courts, the royal prerogative of justice, etc.

[58]

[click here to see the image](#)



[59] Made Duke of Lancaster in 1350.

[60] He alleged as his reason that he was now on his own lawful ground, in right of his mother.

[61] See [page 257](#).

[62] The revolted peasantry.

[63] Each piece of gold (a mark) was worth 13s. 4d., or two nobles.

[64] In 1385, during his Scotch expedition, his uncles, Cambridge and Buckingham, had been made Dukes of York and Gloucester; Lancaster's son Henry, Earl of Derby; the Duke of York's son George, Earl of Rutland; Robert de Vere, Marquis of Dublin; and De la Pole, Earl of Suffolk.

[65] Brother of Arundel, Bishop of Ely, subsequently Archbishop of York and of Canterbury.

[66] William of Wykeham again took the Seal.

[67] 38 Edward III.

[68] 16 Richard II.

[69] BERNER's Froissart, IV., chap. 78.

[70] There is an account preserved in the exchequer of the exports and imports in the year 1354. The total value of the exports was £212,338. They consisted of 31,651 sacks of wool, at £6 a sack; 65 wool-fells, hides, to the value of £89; 4774 pieces of cloth; 8061 pieces of worsted stuff. The imports mentioned consist of a little fine cloth and wax; 1830 tuns of wine; and linens, mercery, and grocery to the value of £23,000. To show the severity of the wool tax, it is to be observed that on the above-named exports the duty was £81,846, or more than 40 per cent. Robert of Avesbury gives a somewhat different account. He put the exports at 100,000 sacks of wool. He is thought to have died about 1356.

[71] In 1250 a fair was held in Tothill Fields, and all the shops in London were shut.—Matthew of Paris.

[72] There were also great Italian merchants and bankers. Thus we hear that Edward III. ruined the Bardi, that the taxes at the end of Edward I. were pledged to and collected by the Frescobaldi. The extent of the German transactions may be seen by a complaint in 1348, that the Tidmans of Limburg had bought up all the Cornish tin.

[73] By the 14th Richard II. half the money they received was to be expended in the commodities of the land.

[74] For the history of guilds, see Dr Brentano's Preface to the "Ordinance of British Guilds," in the English Text Society.

[75] The goldsmith's mark on all silver plate is a relic of this custom.

[76] Chaucer's Prologue:—

"He knew well alle havans as they were,
Fro' Gothlande to the Cape of Finnisterre."

[77] "Quod progenitores nostri, Reges Angliæ, domini maris et transmarini passagii, totis præteritis temporibus extiterunt."—Rymer, ii. 953.

[78] Rymer, ii. 823.

[79] Half a yard long.—Mon. Evesham.

[80] The Welsh infantry, who were largely employed after Edward I., had 2d. a day.

[81]

"To seche silver to the kyng y mi seed solde,
Forthi mi lond leye lith ant leorneth to slepe.
Seththe he mi feire feh fatte y my folde;
When y thenk o mi weole wel neh y wepe;
Thus bredeth monie beggares bolde.

Ther wakeneth in the world wondred ant woe,
Ase god is swynden anon as so for to swynke."
Political Songs, p. 152.

[82] The historian of this chivalrous knighthood was Froissart.

[83] Maintainers seem to have been of two sorts. On the borders of the counties palatine, confederacies were formed, who made sudden irruptions into the neighbouring counties, and carried off young women, particularly heiresses. They then retired within the freedoms of the counties palatine, and held their captives to ransom. The bodies of retainers who gathered round individual nobles, and stood by one another in such illegal actions as forcible desiesin, or ejection of rightful owners from their property, also received the name.

[84] The priest had, however, been dead a month before.

[85] Walsingham, 379.

[86] Four years afterwards he was captured and put to death, not as a traitor, but as a heretic. This throws considerable doubt on the truth of his connection with the present insurrection, a charge which was very slightly supported by evidence.

[87] There were fifteen Prelates and twenty-eight Temporal Peers at this council.

[88] A duke, 13s. 4d. a day; an earl, 6s. 8d; a baron, 4s.; a knight, 2s.; a man-at-arms, 1s.; an archer, 6d.; a hundred marks to each who supplied thirty armed men.

[89] The close connection between Sigismund and England is illustrated by the fact that in the following reign, on one occasion, a magnificent table decoration was introduced, representing Henry VI. and Sigismund receiving at the hands of a kneeling priest ballads in derision of the Lollards.

[90] This Lord Salisbury was son of Sir John de Montacute, a zealous Lollard, the faithful adherent of Richard II., who was beheaded, 1400, at Cirencester. Henry IV. restored the Earldom to his son. Lord Salisbury's daughter married Richard Neville, the Yorkist partisan, and father of the Kingmaker Warwick.

[91] This Beauchamp was the 5th Earl of Warwick, and it was his daughter who carried the title to Richard Neville the Kingmaker.

[92] This Prince was the second son of Louis II., Duke of Anjou, Count of Provence, and (as heir to his father, Louis I., who had been adopted by Joanna I. of Naples) titular King of

Naples. All these titles René inherited, besides the duchy of Bar, from his uncle, and the duchy of Lorraine from his wife. He was, moreover, himself named heir by Joanna II. of Naples, but failed to obtain the crown. At the time of Margaret's marriage, of all his territories Provence was the only one he retained.

[93] For a description of this disorder see a letter from "The chief persons in the county of Kildare to Richard Duke of York," Ellis Letters, second series, vol. i. 117.

[94] The Staffords, the head of whom was the Duke of Buckingham, were descended from Anne Plantagenet, daughter of Thomas of Woodstock, Duke of Gloucester, son of Edward III.

[95] Cromwell had been a great friend of Bedford and his financial reformer, but dislike to the conduct of the Suffolk party had driven him to join York.

[96] William of Worcester, however, puts it at 9,000.

[97] Stafford, the young Duke of Buckingham; the heir of Bourchier, Earl of Essex; Fitz-Alan, Earl of Arundel; Lord Strange of Knokyn; and Lord Herbert. Thomas Grey, her son by her first marriage, was engaged to the daughter and heiress of the Duke of Exeter, the King's niece.

[98] "Every tavern was full of his meat, for who that had any acquaintance in that house, he should have had as much sodden and roast as he might carry upon a long dagger."—Stowe.

[99] Even ordinary observers saw this. "I cannot tell what will fall of the world, for the King verily is disposed to go into Lincolnshire, and my Lord of Warwick, as it is supposed, shall go with the King; some men say that his going shall do good, and some say that it doth harm."—*Paston Letters*.

[100] Wisdom iv. 5.

[101] She was the daughter of his sister Elizabeth and the Duke of Suffolk.

[102] The love of the Princess rests upon a doubtful letter abridged by Buck in Kennett I. 568.

HISTORICAL BIOGRAPHIES

Edited by

THE REV. M. CREIGHTON, M.A.,

LATE FELLOW AND TUTOR OF MERTON COLLEGE, OXFORD.

With Maps and Plans. Small 8vo.

The most important and the most difficult point in Historical Teaching is to awaken a real interest in the minds of Beginners. For this purpose concise handbooks are seldom useful. General sketches, however accurate in their outlines of political or constitutional development, and however well adapted to dispel false ideas, still do not make history a living thing to the *young*. They are most valuable as maps on which to trace the route beforehand and show its direction, but they will seldom allure any one to take a walk.

The object of this series of Historical Biographies is to try and select from English History a few men whose lives were lived in stirring times. The intention is to treat their lives and times in some little detail, and to group round them the most distinctive features of the periods before and after those in which they lived.

It is hoped that in this way interest may be awakened without any sacrifice of accuracy, and that personal sympathies may be kindled without forgetfulness of the principles involved.

It may be added that round the lives of individuals it will be possible to bring together facts of social life in a clearer way, and to reproduce a more vivid picture of particular times than is possible in a historical handbook.

By reading short Biographies a few clear ideas may be formed in the pupil's mind, which may stimulate to further reading. A vivid impression of one period, however short, will carry the pupil onward and give more general histories an interest in their turn. Something, at least, will be gained if the pupil realizes that men in past times lived and moved in the same sort of way as they do at present.

Now ready.

1. **SIMON DE MONTFORT.** 2s. 6d.
2. **THE BLACK PRINCE.** 2s. 6d.
3. **SIR WALTER RALEGH.**

In preparation.

4. **OLIVER CROMWELL.**
5. **THE DUKE OF MARLBOROUGH.**
6. **THE DUKE OF WELLINGTON.**

RIVINGTONS

Waterloo Place London; Oxford and Cambridge.

English School-Classics

With Introductions, and Notes at the end of each Book.

EDITED BY FRANCIS STORR, B.A.,

CHIEF MASTER OF MODERN SUBJECTS AT MERCHANT TAYLORS' SCHOOL, LATE SCHOLAR OF TRINITY COLLEGE, CAMBRIDGE, AND BELL UNIVERSITY SCHOLAR.

Small 8vo.

THOMSON'S SEASONS: Winter.

With an Introduction to the Series, by the Rev. J. FRANCK BRIGHT, M.A., Fellow of University College, and Historical Lecturer at Balliol, New, and University Colleges, Oxford; late Master of the Modern School at Marlborough College. 1s.

COWPER'S TASK.

By FRANCIS STORR, B.A., Chief Master of Modern Subjects at Merchant Taylors' School. 2s.

Part I. (Book I.—The Sofa; Book II.—The Timepiece) 9d. Part II. (Book III.—The Garden; Book IV.—The Winter Evening) 9d. Part III. (Book V.—The Winter Morning Walk; Book VI.—The Winter Walk at Noon) 9d.

SCOTT'S LAY OF THE LAST MINSTREL.

By J. SURTEES PHILLPOTTS, M.A., Head-Master of Bedford Grammar School. 2s. 6d.; or in Four Parts, 9d. each.

SCOTT'S LADY OF THE LAKE.

By R. W. TAYLOR, M.A., Assistant-Master at Rugby School. 2s.; or in Four Parts, 9d. each.

NOTES TO SCOTT'S WAVERLEY.

By H. W. EVE, M.A., Head-Master of University College School, London. 1s.; or with the Text, 2s. 6d.

TWENTY OF BACON'S ESSAYS.

By FRANCIS STORR, B.A. 1s.

SIMPLE POEMS.

Edited by W. E. MULLINS, M.A., Assistant-Master at Marlborough College. 8d.

SELECTIONS FROM WORDSWORTH'S POEMS.

By H. H. TURNER, B.A., Scholar of Trinity College, Cambridge. 1s.

WORDSWORTH'S EXCURSION: The Wanderer.

By H. H. TURNER, B.A., Scholar of Trinity College, Cambridge. 1s.

MILTON'S PARADISE LOST.

By FRANCIS STORR, B.A.
Book I. 9d. Book II. 9d.

SELECTIONS FROM THE SPECTATOR.

By OSMUND AIRY, M.A., Assistant-Master at Wellington College. 1s.

BROWNE'S RELIGIO MEDICI.

By W. P. SMITH, M.A., Assistant-Master at Winchester College. 1s.

GOLDSMITH'S TRAVELLER AND DESERTED VILLAGE.

By C. SANKEY, M.A., Assistant-Master at Marlborough College. 1s.

EXTRACTS FROM GOLDSMITH'S VICAR OF WAKEFIELD.

By C. SANKEY, M.A., Assistant-Master at Marlborough College. 1s.

POEMS SELECTED FROM THE WORKS OF ROBERT BURNS.

By A. M. BELL, M.A., Balliol College, Oxford. 2s.

MACAULAY'S ESSAYS.

MOORE'S LIFE OF BYRON. By FRANCIS STORR, B.A. 9d.

BOSWELL'S LIFE OF JOHNSON. By FRANCIS STORR, B.A. 9d.

HALLAM'S CONSTITUTIONAL HISTORY. By H. F. BOYD, late Scholar of Brasenose College, Oxford. 1s.

SOUTHEY'S LIFE OF NELSON.

By W. E. MULLINS, M.A., Assistant-Master at Marlborough College.

* The General Introduction to the Series will be found in THOMSON'S *Winter*.

· Rivingtons · London · Oxford · Cambridge ·

TRANSCRIBER'S NOTE

The maps listed in the [List of Maps](#) were missing from the set of images of this book used for the creation of this etext. The map of 'Saxon England' was partly available and has been included [here](#) in the etext.

Obvious typographical errors and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

Except for those changes noted below, all misspellings in the text, and inconsistent or archaic usage, have been retained: for example, poll-tax, poll tax; Ferry Bridge, Ferrybridge; Kingmaker, King-maker; forbad; counsellor; guerilla; conventual; inutility; schismatical; discrown; carucate; enfiefed; bason; disafforesting; intrenched.

[Pg xvi](#): 'Battle of Brenville' replaced by 'Battle of Brenneville'.

[Pg xxii](#): 'Return of De Monfort' replaced by 'Return of De Montfort'.

[Pg xxxiv](#): 'Attempes to win' replaced by 'Attempts to win'.

[Pg xxxviii](#): 'the arbitrary of' replaced by 'the arbitrary'.

[Pg xxxviii](#): 'miscomprehension the' replaced by 'miscomprehension of the'.

[Pg xli](#): the section heading 'GENEALOGIES OF THE LEADING FAMILIES' was missing in the original text, and has been copied from the page header.

[Pg 19](#): 'acts of villany' replaced by 'acts of villainy'.

[Pg 68](#): 'upon Henry which' replaced by 'upon Henry from which'.

[Pg 160](#): 'fifteen counsellors' replaced by 'fifteen counsellors' (two occurrences).

[Pg 216](#): 'been so closly' replaced by 'been so closely'.

[Pg 233](#): 'But, succesful' replaced by 'But, successful'.

[Pg 303](#): Missing header 'CONTEMPORARY PRINCES' inserted.

[Pg 311](#): 'he was disappointed,' replaced by 'he was disappointed,'.

[Pg 328](#): Missing header 'CONTEMPORARY PRINCES' inserted.

Index.

[Alodial](#): replaced by 'Allodial'.

[Bereta](#): replaced by 'Bercta'.

[Orleton](#): 'his conspiracy,' replaced by 'his conspiracy,'.

[Soken](#): 'meaning of, 23' replaced by 'meaning of, 33'.

*** END OF THE PROJECT GUTENBERG EBOOK A HISTORY OF
ENGLAND, PERIOD I. MEDIÆVAL MONARCHY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.

(The founder of the family a kinsman of William I.)

DE BOHUNS (HEREFORD, ESSEX, NORTHAMPTON).

Henry de Bohun = Maud, daughter of Geoffrey Fitz-Peter, Earl of Essex.
 1st Earl of Hereford. Hereditary Constable of England. One of the Guardians of the Charter. Taken prisoner at battle of Lincoln. Died 1220.

Humphrey, 2nd Earl of Hereford = Maud, daughter of Earl of Ewe.
 Hereford. Made also Earl of Essex by Henry III. Godfather to Prince Edward. On Barons' side. Taken prisoner at Evesham. Restored to favour.

Humphrey = Eleanor, daughter of Eve and William de Braose.
 Commanded on Barons' side at Lewes. Taken prisoner at Evesham. Died 1266.

Humphrey, 3rd Earl of Hereford = Maud, daughter of Ingelram de Fines.
 and Essex. Restored to favour by Edward I. Fought in Scotland. Refused to fight for Edward I. Compelled him to ratify the Charter. Died 1293.

Humphrey, 4th Earl of Hereford and Essex = Elizabeth, daughter of Edward I.
 Fought for Edward I. and II. in Scotland. Taken prisoner at Stryvelin; exchanged for Bruce's wife. Refused to obey Edward's order not to fight Despensers. Joined Lancaster's insurrection. Killed at battle of Boroughbridge, 1322.

1	2	3
John = Alice Fitz-Alan, daughter of Earl of Arundel. 5th Earl of Hereford and Essex. Died 1335.	Humphrey. 6th Earl of Hereford and Essex.	William = Elizabeth, daughter of Badlesmere, widow of Edmund Mortimer. Fought at Cressy. Made Earl of Northampton, 1337. Died 1360.

Humphrey = Joan, daughter of Richard, 9th Earl of Arundel.
 7th Earl of Hereford, Essex, and Northampton. Died 1372.

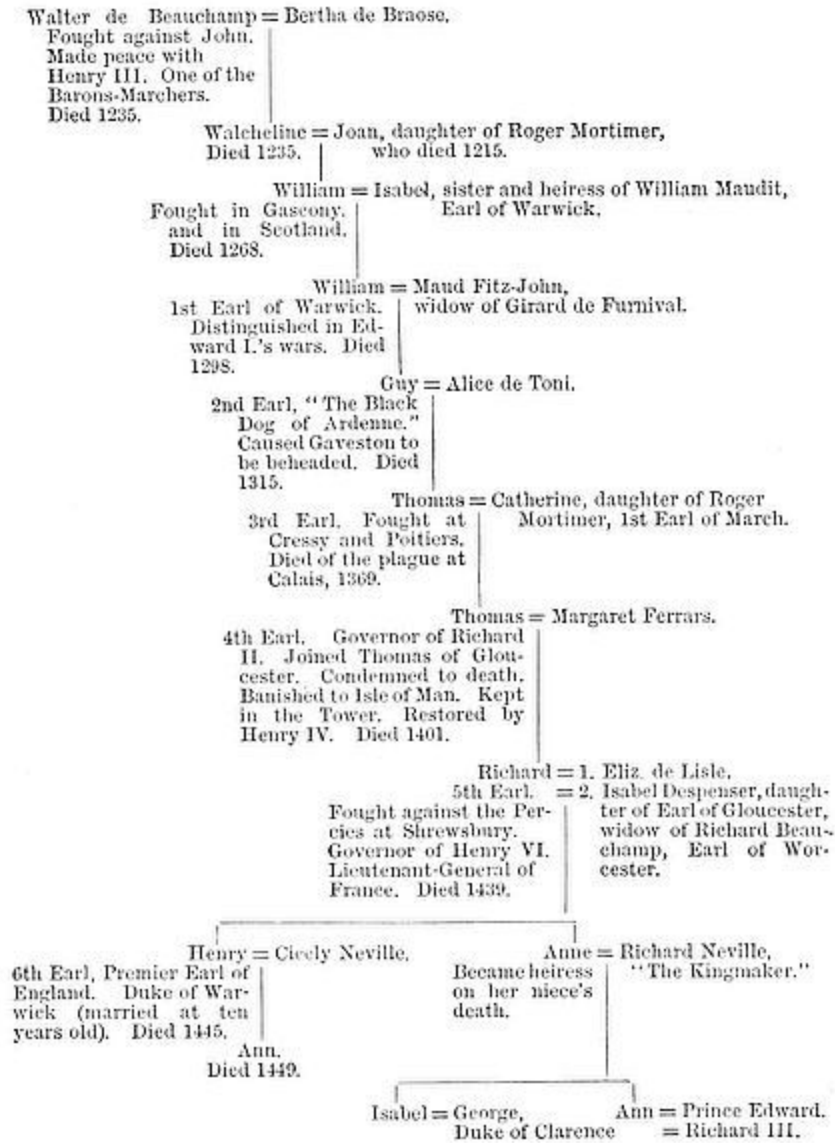
Eleanor = Thomas of Woodstock, sixth son of Edward III., who thus became Constable.
 Mary = Henry IV., who thus became Earl of Hereford, Essex, and Northampton.

[back](#)

(Family founded at the Conquest.)

BEAUCHAMP

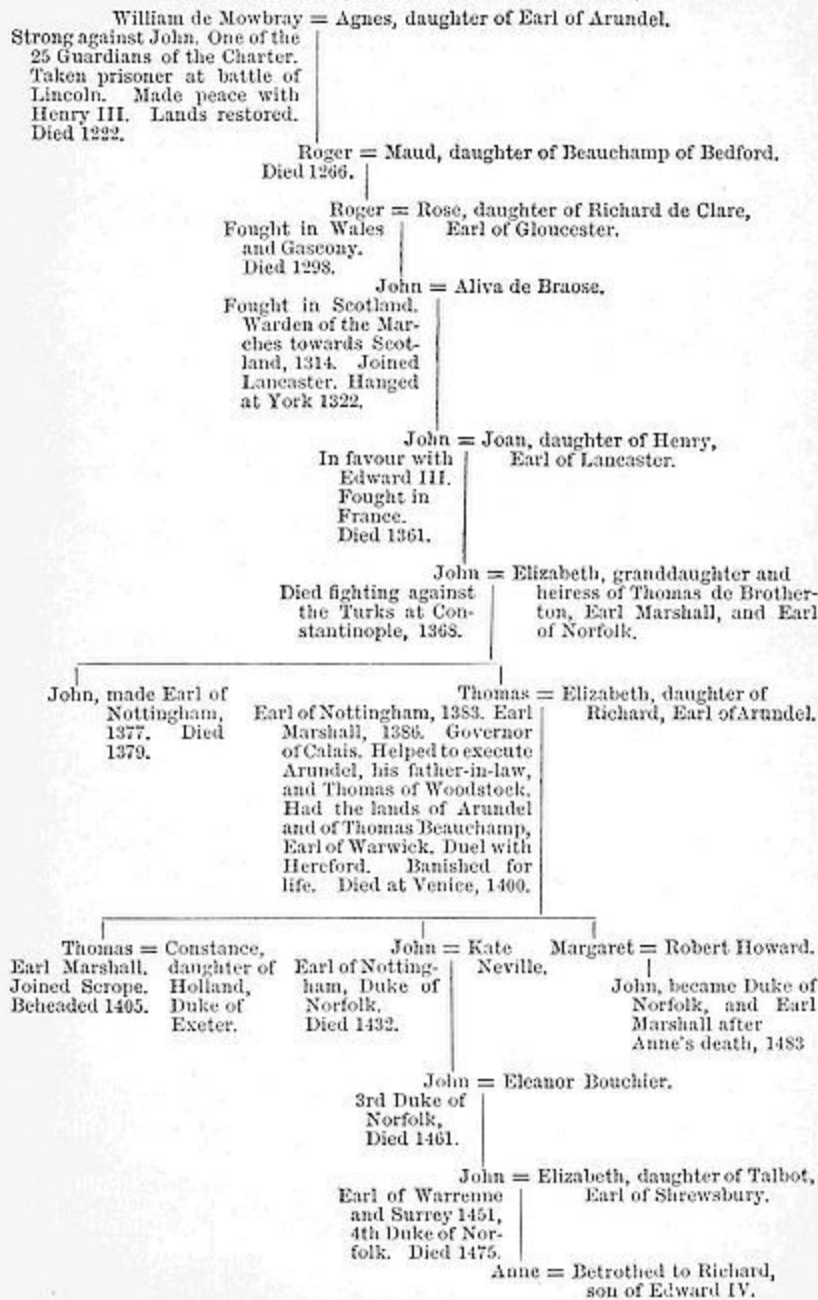
(WARWICK).



[back](#)

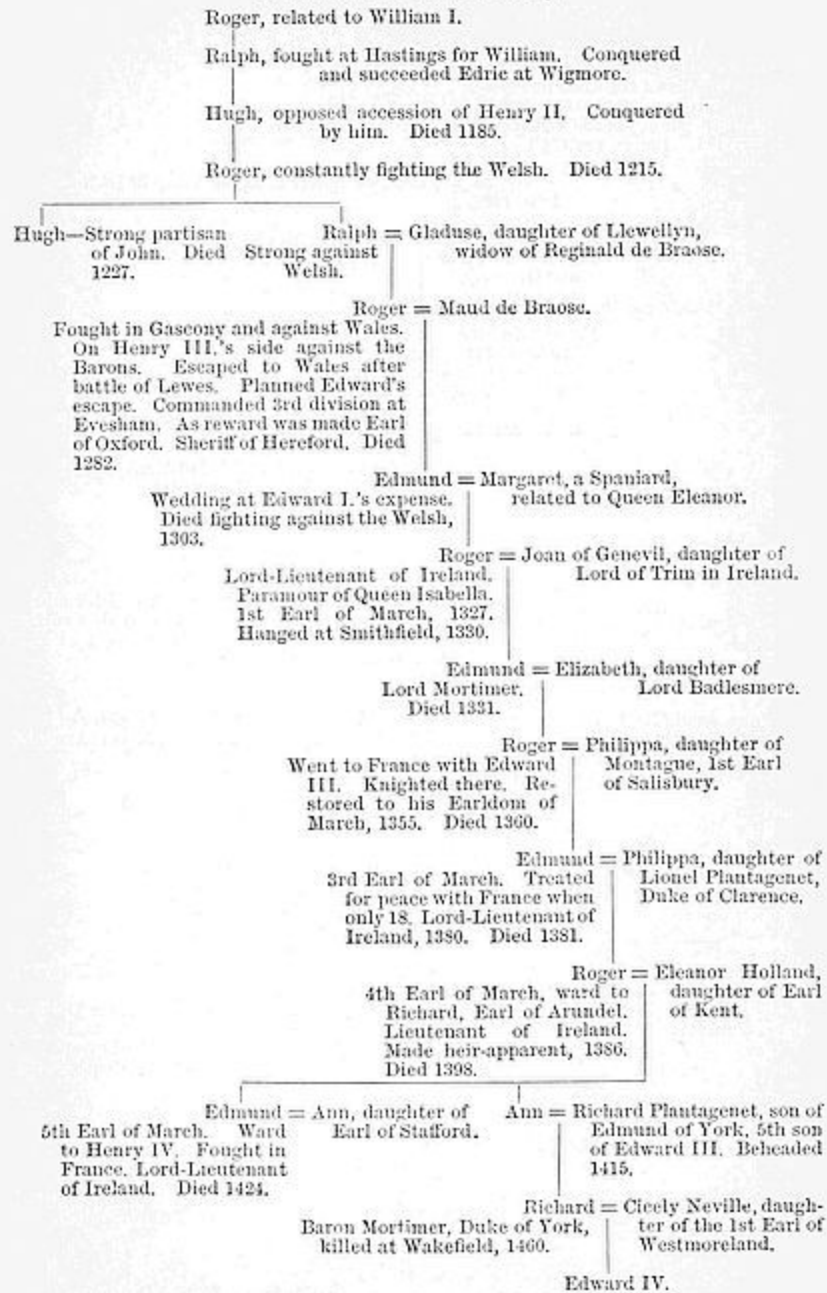
(Family founded at the Conquest.)

MOWBRAY (NOTTINGHAM, NORFOLK).

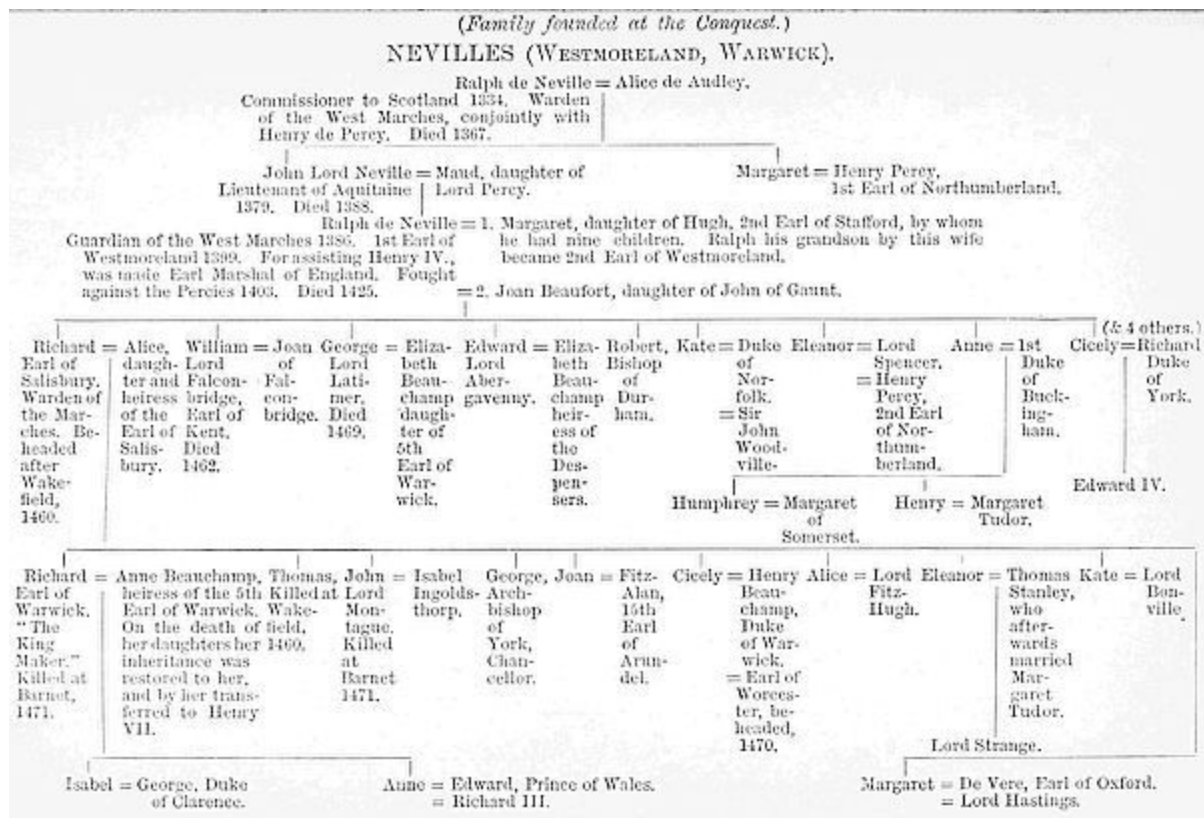


[back](#)

MORTIMERS (MARCH).



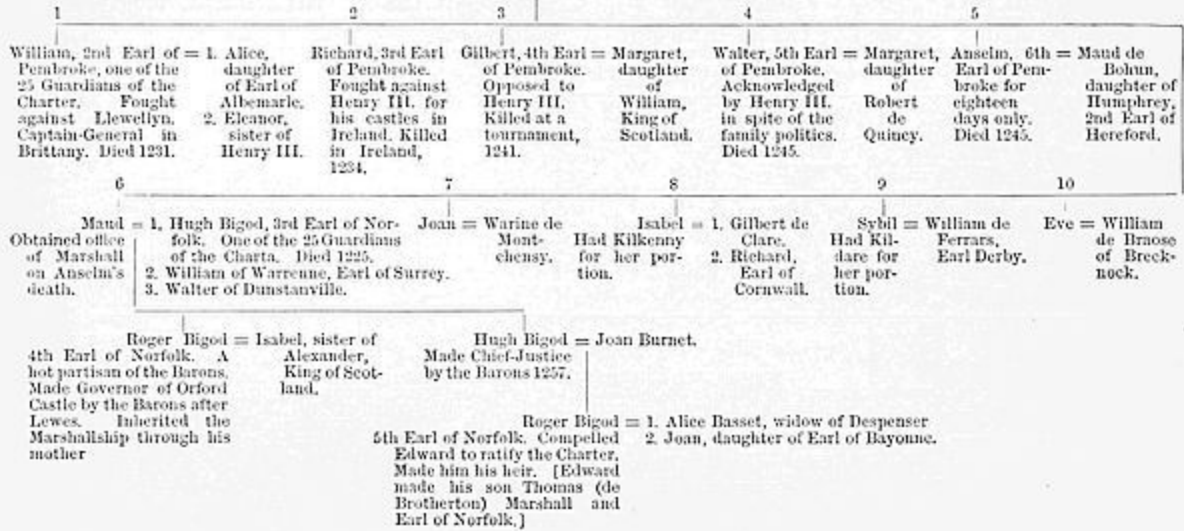
[back](#)



[back](#)

MARSHALLS AND BIGODS.

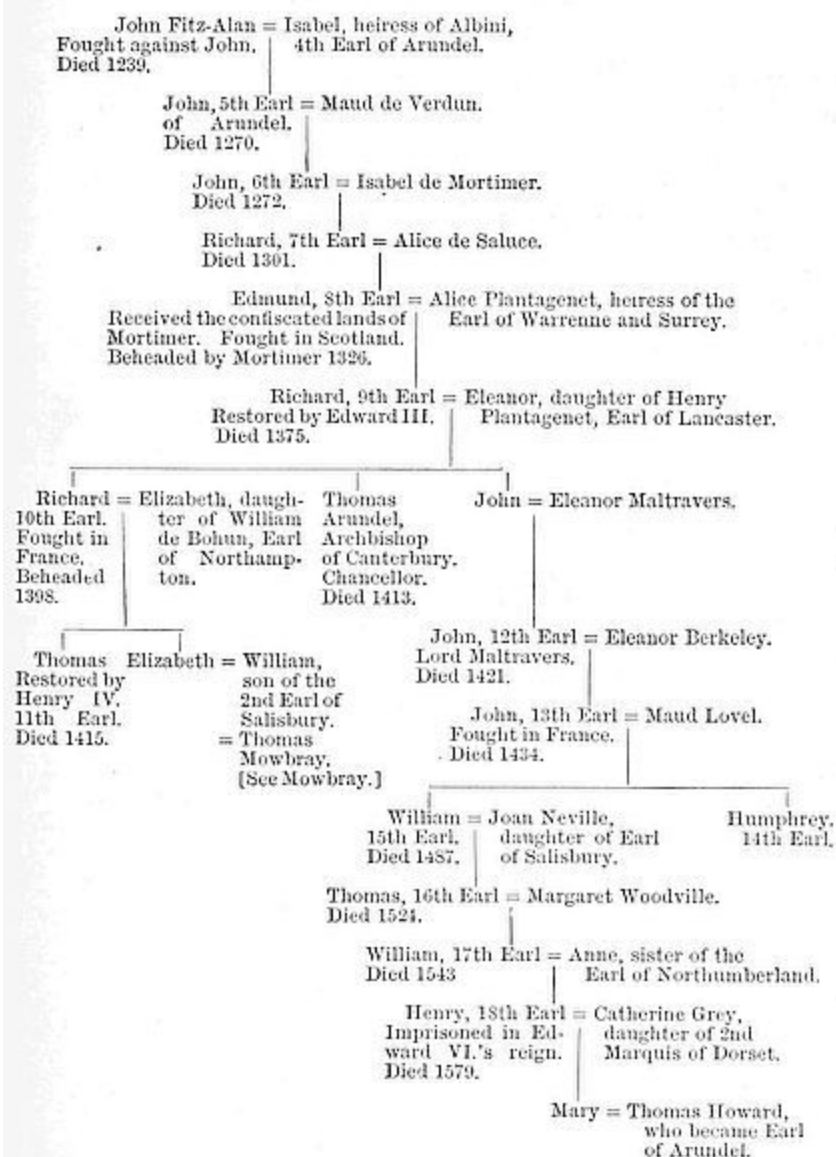
William Marshall = Isabel de Clare, heiress of Strongbow, Earl of Pembroke.
 Governor while Richard at Crusade. Made Earl of Pembroke 1199. John gave him Leinster 1203. Guardian of Henry III. Died 1219.



[back](#)

(Family founded at the Conquest.)

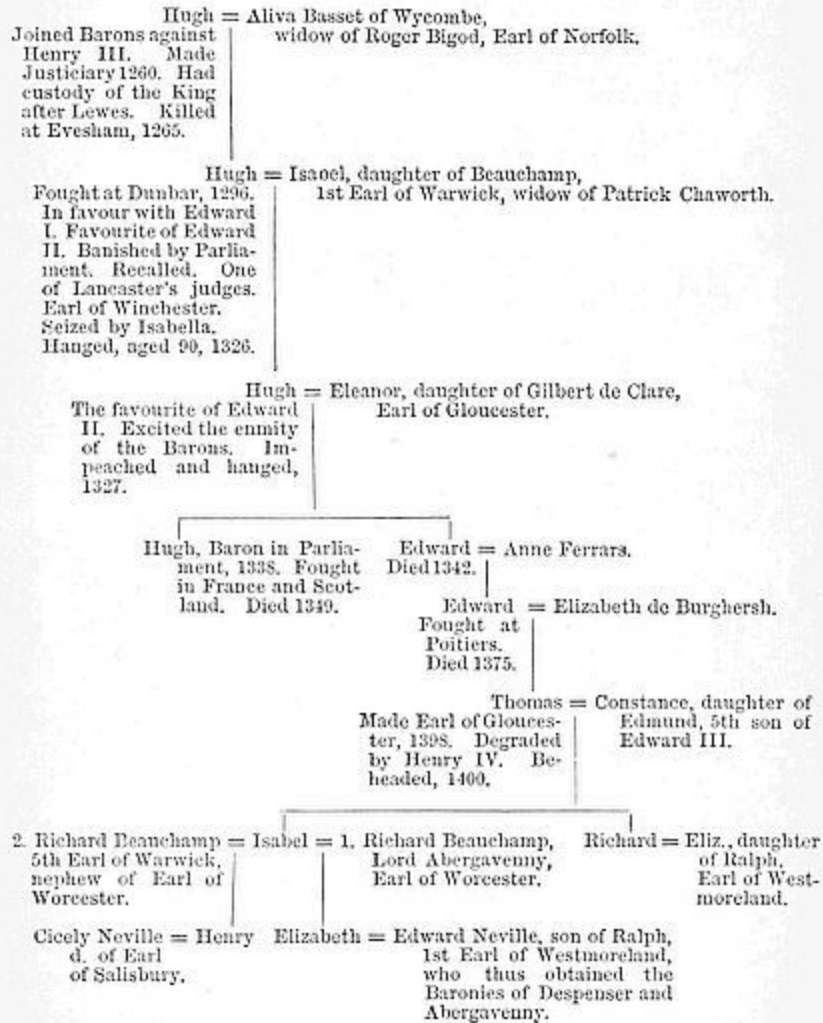
FITZ-ALAN (ARUNDEL).



[back](#)

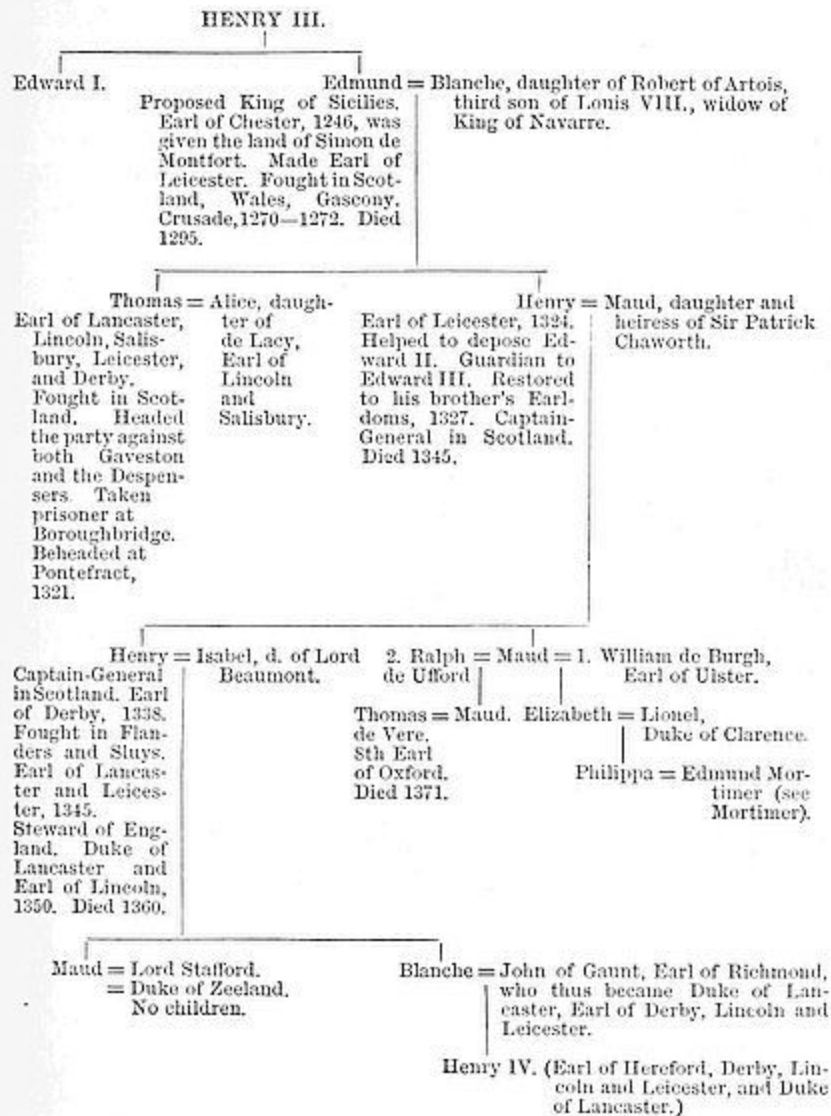
(Family founded in Henry I.'s reign.)

DESPENSERS.



[back](#)

LANCASTERS.



[back](#)

DE LA POLES.

William de la Pole = Catherine, daughter of Sir John Norwich,
Great Merchant at Kingston,
advanced £1000 to Edward
III., for which he was made
a Banneret.

Michael de la Pole = Katherine Wingfield.
Earl of Suffolk 1385.
Impeached and exiled.
Died at Paris 1388.

Sir Michael = Katherine, daughter of
the Earl of Stafford.
Restored to his Earldom
1399. In the French
wars. Died at Harfleur
1415.

Michael
3rd Earl of Suffolk.
Died at Agincourt
1415.

William, 4th Earl = Alice, granddaughter
of Chaucer.
Commanded at Verneuil and
Orleans. Brought Margaret
of Anjou over. Duke of
Suffolk 1448. Impeached,
banished, murdered in the
boat, 1450.

John de la Pole = Elizabeth, sister
of Edward IV.
Duke of Suffolk 1463.
Died 1491.

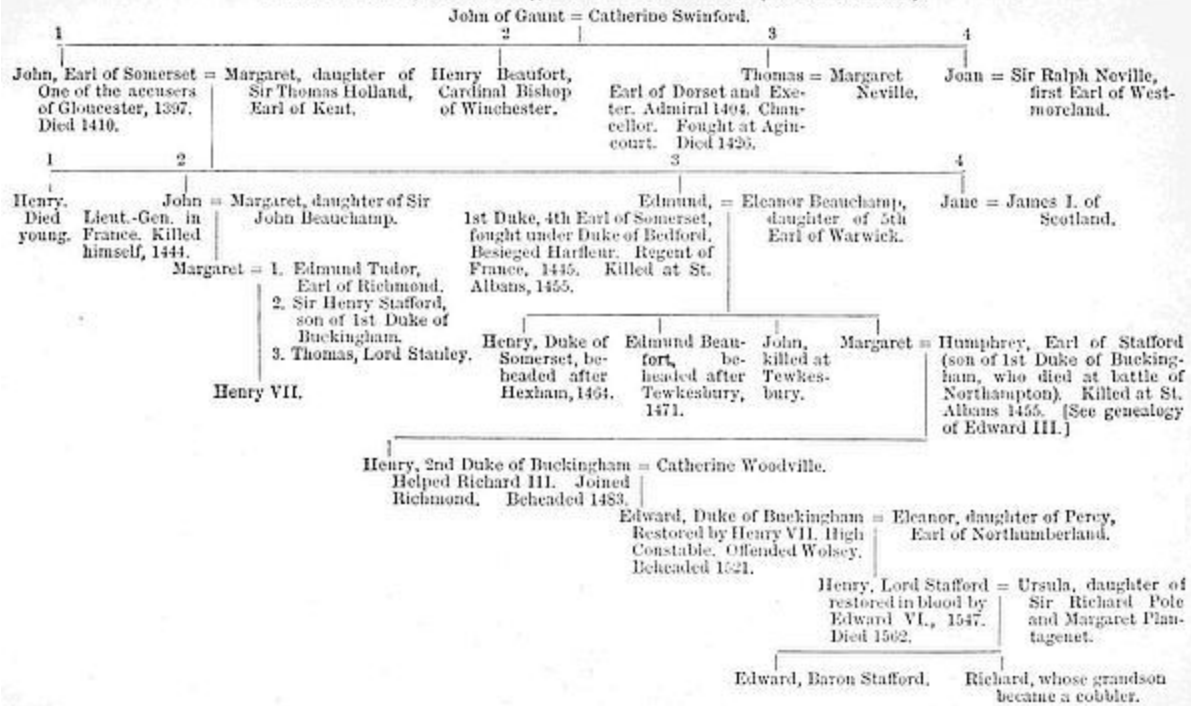
John, Earl of Lincoln.
Lord Lieutenant of Ireland.
Declared heir-apparent by
Richard III. Joined Lam-
bert Simnel. Died at
Battle of Stoke 1487.

Edmund. Fought at
first for Henry VII.
Subsequently took of-
fence and withdrew to
his aunt Margaret of
Burgundy. Was given
up. Imprisoned in the
Tower. Executed as
a Yorkist 1513.

Richard. Fought
for the French.
Died at Pavia 1525.
His dukedom of
Suffolk given to
Charles Brandon.

[back](#)

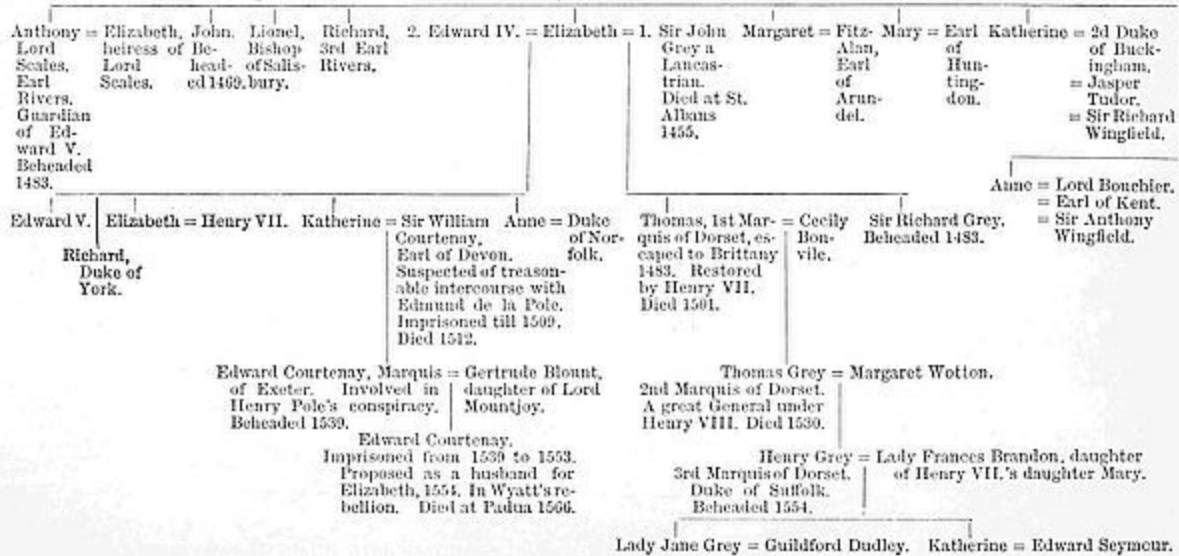
BEAUFORT (SOMERSETS), AND STAFFORD (BUCKINGHAMS).



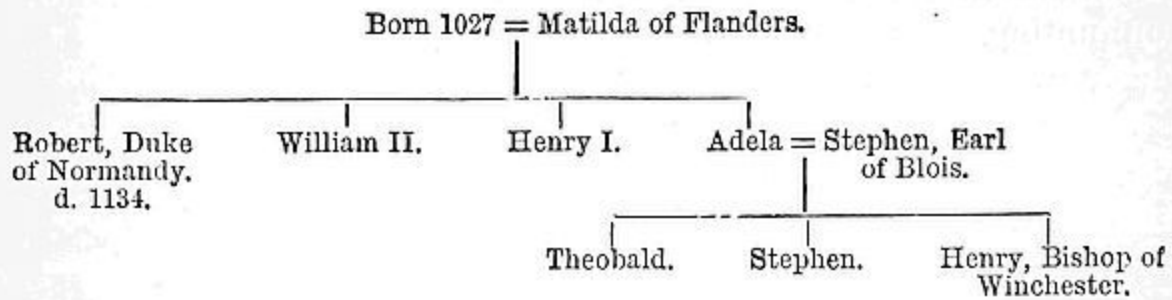
[back](#)

(COURTENAYS, GREYS).

Richard de Widville = Jacquetta of Luxembourg, Seneschal of Normandy, Earl Rivers 1466, Be- headed 1469.	widow of Duke of Bedford.
---	---------------------------



[back](#)



CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Malcolm III., 1057.	Philip I., 1060.	Henry IV., 1056.	Sancho II., 1065. Alphonso VI., 1072.

POPES.—Alexander II., 1061. Gregory VII., 1073. Vacancy one year.
Victor III., 1086.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Stigand, 1052—1070. Lanfranc, 1070—1089.	Odo of Bayeux, and William Fitz-Osbern, 1067. William de Warenne, and Richard Fitz-Gilbert, 1073. Lanfranc, Geoffrey of Coutances, and Robert, Count of Mortain, 1078.	Herfast, afterwards Bishop of Elmham, 1068. Osbern, afterwards Bishop of Exeter, 1070. Osmund, afterwards Bishop of Salisbury, 1074. Maurice, afterwards Bishop of London, 1078. William de Beaufeu, Bishop of Thetford, 1083. William Giffard, 1086.

[back](#)

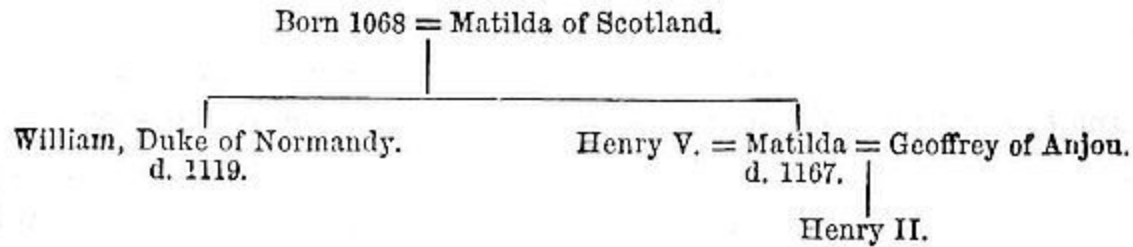
CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain</i>
Malcolm III., 1057. Donald Bane, 1093. Duncan, 1094. Donald Bane, 1094. Edgar, 1097.	Philip I., 1060.	Henry IV., 1056.	Alphonso VI., 1072

POPES.—Urban II., 1088. Pascal II., 1099.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Lanfranc, 1070—1089. Anselm, 1093—1109.	Odo of Bayeux, 1087. William de S. Carilepho, 1088. Ranulf Flambard, 1094.	William Giffard, 1087. Robert Bloett, 1090. Waldric, 1093. William Giffard, 1094.

[back](#)



CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Edgar, 1097. Alexander I., 1106. David I., 1124.	Phillip I., 1060. Louis VI., 1108.	Henry IV., 1056. Henry V., 1106. Lothaire II., 1125.	Alphonso VI., 1072. Alphonso VII., 1109. Alphonso VIII., 1134.

POPES.—Pascal II., 1099. Gelasius II., 1118. Calixtus II., 1119. Honorius II., 1124.
Innocent II., 1130.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Anselm, 1093—1109. Ralph of Escures, 1114— 1122. William of Corbeil, 1123— 1135.	Robert Bloett, 1100. Roger the Poor, Bishop of Salisbury, 1107.	William Giffard, 1100. Roger the Poor, 1101. William Giffard, 1103. Waldric, 1104. Ranulf, 1108. Geoffrey Rufus, 1124.

[back](#)

Born 1105=Maud of Boulogne.

Eustace, Earl of Boulogne.
d. 1152.

William, Earl of Boulogne.
d. 1159.

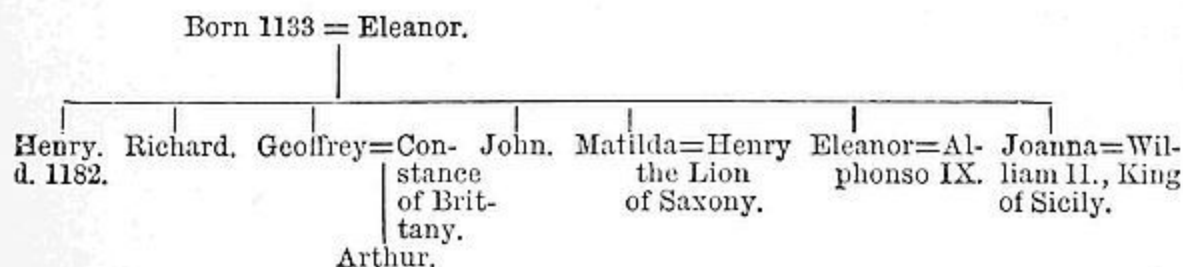
CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
David I., 1124. Malcolm IV., 1153.	Louis VI., 1108. Louis VII., 1137.	Lothaire II., 1125. Conrad III., 1138. Frederick I., 1152.	Alphonso VIII., 1134.

POPES.—Innocent II., 1130. Celestine II., 1143. Lucius II., 1144
Eugenius III., 1145. Anastasius IV., 1153.

<i>Archbishops.</i>	<i>Chief-Justice.</i>	<i>Chancellors.</i>
William of Corbeuil, 1123— 1136. Theobald, 1139—1161.	Roger, Bishop of Salisbury. 1135—1139.	Roger the Poor, 1135. Philip, 1139.

[back](#)



CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Malcolm IV., 1153. William, 1165.	Louis VII., 1137. Philip Augustus, 1180.	Frederic I., 1152.	Alphonso VIII., 1134. Sancho III., 1157. Alphonso IX., 1158.

POPES.—Adrian IV., 1154. Alexander III., 1159. Lucius III., 1181. Urban III., 1185.
Gregory VIII., 1187. Clement III., 1187.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Theobald, 1139—1161. Thomas à Becket, 1162— 1170. Richard, 1174—1184. Baldwin, 1185—1190.	Robert, Earl of Leicester, 1154—1167. Richard de Lucy, 1154— 1179. Ranulf Glanvill, 1180—1189.	Thomas à Becket, 1154—1162. Ralph de Warneville, 1173— 1181. Geoffrey, the King's son, 1181—1189.

[back](#)

Born 1157 = Berengaria of Navarre.

CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
William, 1165.	Philip 1180. Augustus,	Frederick Barba-rossa, 1155. Henry VI., 1191. Philip, 1198.	Alphonso IX., 1158.

POPES.—Clement III., 1187. Celestine III., 1191. Innocent III., 1198.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Baldwin, 1185—1190. Reginald Fitz-Jocelin, 1191. Hubert Walter, 1193.	Hugh of Durham, and William Earl of Essex, 1189. William Longchamp, 1190. Walter of Rouen, 1191— 1194. Hubert Walter, 1194—1198. Geoffrey Fitz-Peter, 1198— 1199.	William Longchamp, 1189. Eustace, Bishop of Ely, 1197.

[back](#)

Lines of Jerusalem and Sicily.

Godfrey de Bouillon, 1st King of Jerusalem ; his brother Baldwin I., 2nd King.

Baldwin II., cousin of Godfrey, 3rd King.

Melisenda = Fulk of Anjou.

Baldwin III.

Almeric.

Baldwin IV., the leper. Sybilla = Guy of Lusignan. Elizabeth = Conrad of Montferrat.

Tancred of Hauteville, descended from Rollo, Duke of Normandy.

Robert Guiscard,
conquered Sicily,
1090.

Roger.

Roger, 1st King of Sicily, 1130—1154.

Roger, died 1148.

William I., 1154.

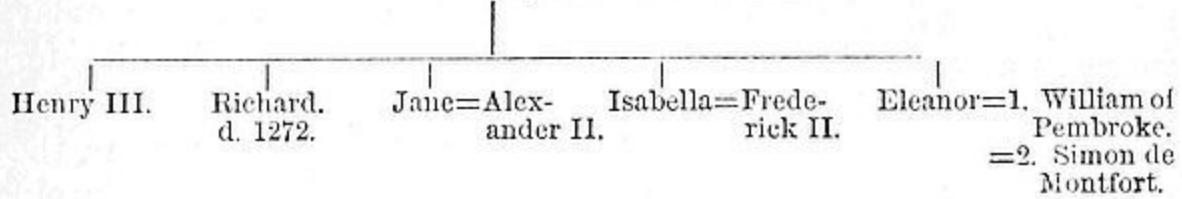
Constance = Henry VI., Emperor.

Tancred, 1189.

William II., 1166 = Joanna.

[back](#)

Born 1167 = 1. Hadwisa of Gloucester.
= 2. Isabella de la Marche.



CONTEMPORARY PRINCES.

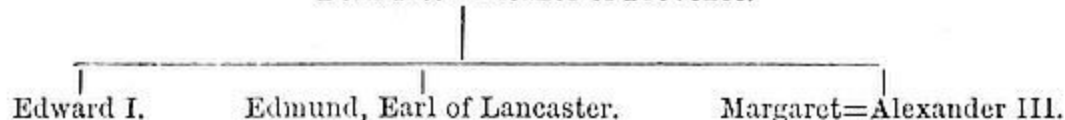
<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
William, 1165. Alexander II., 1214.	Philip Augustus, 1180.	Philip, 1198. Otho IV., 1209.	Alphonso IX., 1158. Henry I., 1214.

POPE.—Innocent III., 1198.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Hubert Walter, 1193—1205. Stephen Langton, 1207—1228.	Geoffrey Fitz-Peter, 1199. Peter des Roches, 1214. Hubert de Burgh, 1215.	Hubert Walter, 1199. Walter Grey, 1205. Peter des Roches, 1213. Walter Grey, 1214. Richard de Marisco, 1214.

[back](#)

Born 1207=Eleanor of Provence.



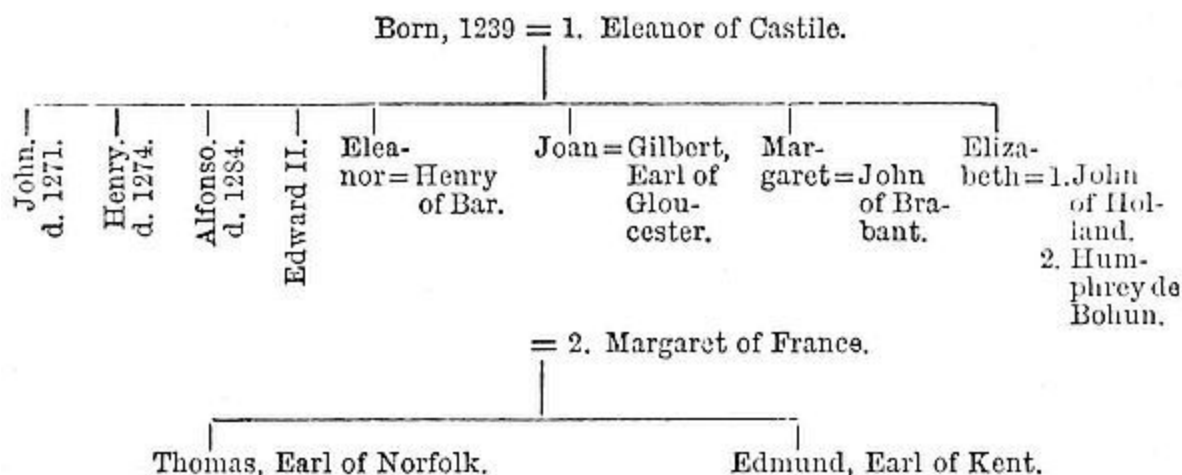
CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Alexander II., 1214.	Philip Augustus, 1180	Philip, 1197.	Henry I., 1214.
Alexander III., 1249.	Louis VIII., 1223.	Otho IV., 1208.	Ferdinand III., 1217.
	Louis IX., 1226.	Frederick II., 1218.	Alphonso X., 1252.
	Philip III., 1270.	Interregnum, 1250.	

POPES.—Honorius III., 1216. Gregory IX., 1227. Celestine IV., 1241 (vacancy 1241). Innocent IV., 1243. Alexander IV., 1254. Urban IV., 1261. Clement IV., 1265 (vacancy 1268). Gregory X., 1271.

<i>Archbishops.</i>	<i>Chief-Justices.</i>	<i>Chancellors.</i>
Stephen Langton, 1207—1228.	Hubert de Burgh, 1215—1232.	Richard de Marisco, 1214—1226.
Richard le Grand, 1229—1231.	Stephen Segrave, 1232—1234.	Ralph Neville, 1226—1244.
Edmund Rich, 1234—1240.	Hugh Bigot, 1258—1260.	Walter de Merton, 1261.
Boniface of Savoy, 1245—1270.	Hugh le Despencer, 1260.	Nicholas de Ely, 1263.
	Philip Basset, 1261.	Thomas Cantilupe, 1265.
		Walter Giffard, 1265.
		Godfrey Giffard, 1267.
		Richard Middleton, 1269—1272.

[back](#)



CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Alexander III., 1249.	Philip III., 1270.	Rodolph, 1272.	Alphonso X., 1252.
Margaret, 1286.	Philip IV., 1285.	Adolphus, 1291.	Sancho IV., 1284.
Interregnum, 1290.		Albert, 1298.	Ferdinand IV., 1295.
Baliol, 1292.			
Interregnum, 1296.			
Robert I., 1306.			

POPES.—Gregory X., 1271. Innocent V., 1276. Adrian V., 1276. John XX., 1276. Nicholas III., 1277. Martin IV., 1281. Honorius IV., 1285. Nicholas IV., 1288. Vacaney, two years. Celestine V., 1292. Boniface VIII., 1294. Benedict X., 1303. Vacaney, one year. Clement V., 1305.

<i>Archbishops.</i>	<i>Chancellors.</i>	<i>Chief-Justices.</i>
Robert Kilwardby, 1273—1278.	Walter de Merton, 1272.	Ralph de Hengham, 1273—1289.
John Peckham, 1279—1292.	Robert Burnell, 1273—1292.	Gilbert de Thornton, 1289—1295.
Robert Winchelsey, 1294—1313.	John Langton, 1292.	Roger Brabazon, 1295.
	William Greenfield, 1302.	
	William de Hamilton, 1304.	
	Ralph de Baldock, 1307.	

[back](#)

Born 1284 = Isabella of France

Edward III. John, Earl of Cornwall. Joan=David II. Eleanor=Duke of Gueldres.

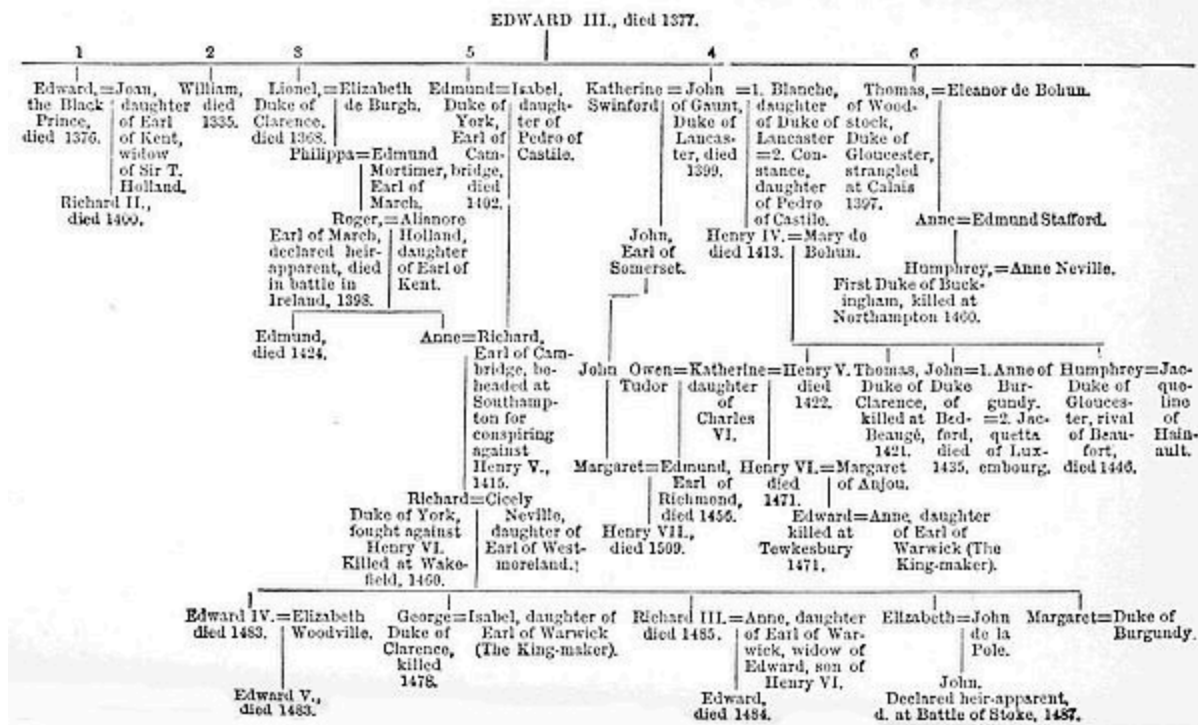
CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Robert I., 1306.	Philip IV., 1285. Louis X., 1314. Philip V., 1316. Charles IV., 1322.	Albert, 1298. Henry VII., 1308. Louis IV., 1313.	Ferdinand IV., 1295. Alphonso XI., 1312.

POPES.—Clement V., 1305. Vacancy for two years. John XXII., 1316.

<i>Archbishops.</i>	<i>Chancellors.</i>
Robert of Winchelsea, 1308— 1313. Walter Reynolds, 1313—1327.	John Langton, 1307. Walter Reynolds, 1310. John de Sandale, 1314. John de Hotham, 1318. John de Salmon, 1320. Robert de Baldock, 1323. Adam de Orleton, 1327.

[back](#)



[back](#)

Born 1312 = Philippa of Hainault.

Edward, =Joan of the Black Kent. Prince, d. 1376. Richard II.	William, d. 1335.	Lionel, Duke of Clarence, d. 1368.	John of Gaunt, Duke of Lancaster, d. 1399.	Edmund, Duke of York, d. 1402.	Thomas of Wood- stock, Duke of Gloucester, d. 1397.
--	----------------------	---	--	---	--

CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain (Castile).</i>
Robert I., 1306. David II., 1329. Robert II., 1370.	Charles IV., 1322. Philip VI., 1328. John, 1350. Charles V., 1364.	Louis IV., 1314. Charles IV., 1347.	Alphonso XI., 1312. Pedro, 1350. Henry II., 1368.

POPES.—John XXII., 1316. Benedict XI., 1334. Clement VI., 1342. Innocent VI.
1352. Urban V., 1362. Gregory XI., 1370.

<i>Archbishops.</i>	<i>Chancellors.</i>
Simon Mepeham, 1328. John of Stratford, 1333. Thomas Bradwardine, 1349. Simon Islip, 1349. Simon Langham, 1366. William Whittlesey, 1368. Simon Sudbury, 1376.	Henry of Burghersh, 1327. John of Stratford, 1330. Richard of Bury, 1334. John of Stratford, 1335. Robert of Stratford, 1337. Richard Bynteworth, 1338. John of Stratford, 1340. Robert of Stratford, 1340. Sir Robert Bouchier, 1340. Sir Robert Parnynge, 1341.
	Robert of Sadyngton, 1343. John of Offord, 1345. John of Thoresby, 1348. William of Edington, 1356. Simon Langham, 1363. William of Wykeham, 1367. Sir Robert Thorpe, 1371. Sir John Knyvet, 1372. Adam Houghton, 1377.

[back](#)

Born 1367 = 1. Anne of Bohemia, 1382.
 = 2. Isabella of France, 1396.

CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
Robert II., 1370.	Charles V., 1364.	Charles IV., 1347.	Henry II., 1368.
Robert III., 1390.	Charles VI., 1380.	Wenceslaus, 1378.	John I., 1379.
			Henry III., 1390.

POPES.—Gregory XI., 1370. Urban VI., 1378. Boniface IX., 1389. [Also Clement VII., 1378. Benedict XII., 1394.]

<i>Archbishops.</i>	<i>Chancellors.</i>
Simon Sudbury, 1375.	Sir Richard le Scrope, 1378.
William Courtenay, 1381.	Michael de la Pole, 1383.
Thomas Arundel, 1397.	Thomas Arundel, 1386.
	William of Wykeham, 1389.
	Thomas Arundel, 1391.
	Edmund Stafford, 1396.

[back](#)

Born 1366 = 1. Mary of Bohun.
 = 2. Joan of Navarre.

Henry V.	Thomas, Duke of Clarence.	John, Duke of Bedford.	Humphrey, Duke of Gloucester.	Blanche = Duke of Bavaria.	Philippa = King of Denmark.
----------	------------------------------	---------------------------	----------------------------------	-------------------------------	--------------------------------

CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain (Castile).</i>
Robert III., 1390. James I., 1405.	Charles VI., 1380.	Wenceslaus, 1378. Robert, 1400. Sigismund, 1410.	Henry III., 1390. John II., 1406.

POPES.—Boniface IX., 1389. Innocent VII., 1404. Gregory XII., 1406. Alexander V., 1409. John XXII., 1410.

<i>Archbishop.</i>	<i>Chancellors.</i>
Thomas Arundel, 1397.	John Searle, 1399. Edmund Stafford, 1401. Cardinal Beaufort, 1403. Thomas Longley, 1405.
	Thomas Arundel, 1407. Sir Thomas Beaufort, 1409. Thomas Arundel, 1412.

[back](#)

Born 1388 = Catherine of France.

Henry VI.

CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
James I., 1405.	Charles VI., 1380.	Sigismund, 1410.	John II., 1403.

POPES.—John XXII., 1410. Martin V., 1417.

<i>Archbishops.</i>	<i>Chancellors.</i>
Thomas Arundel, 1397.	Cardinal Beaufort, 1413.
Henry Chicheley, 1414.	Thomas Longley, 1417.

[back](#)

Born 1421 = Margaret of Anjou, 1445.

Edward. Died.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
James I., 1406. James II., 1436.	Charles VI., 1380. Charles VII., 1423.	Sigismund, 1410. Albert II., 1438. Frederick III., 1440	John II., 1406. Henry IV., 1454.

POPES.—Martin V., 1417. Eugenius IV., 1431. Nicolas V., 1447. Calixtus III., 1455.
Pius II., 1458.

Archbishops.
Henry Chicheley, 1414.
John Stafford, 1443.
John Kemp, 1452.
Thomas Bouchier, 1454.

Chancellors.
Thomas Longley, 1417.
Cardinal Beaufort, 1424.
Cardinal Kemp, 1426.
John Stafford, 1432.
Cardinal Kemp, 1450.
Earl of Salisbury, 1454.
Cardinal Bouchier, 1455.
William Waynflete, 1456.
George Neville, 1460.
Sir John Fortescue, 1461.

[back](#)

Born 1441 = Elizabeth Woodville.

Edward V. Richard, Duke of York. George. Elizabeth = Henry VII. Six other daughters.

Scotland.
James III., 1460.

France.
Louis XI., 1461.

Germany.
Frederick III., 1440.

Spain.
Henry IV., 1454.
Ferdinand V., 1474.

POPES.—Pius II., 1458. Paul II., 1464. Sixtus IV., 1471.

Archbishops.
Thomas Bouchier, 1454.

Chancellors.
George Neville, 1461.
Robert Stillington, 1467.
Laurence Booth, 1473.
Rotherham, 1475.

[back](#)

Born, 1450 = Anne of Warwick.

Edward. Died 1484.

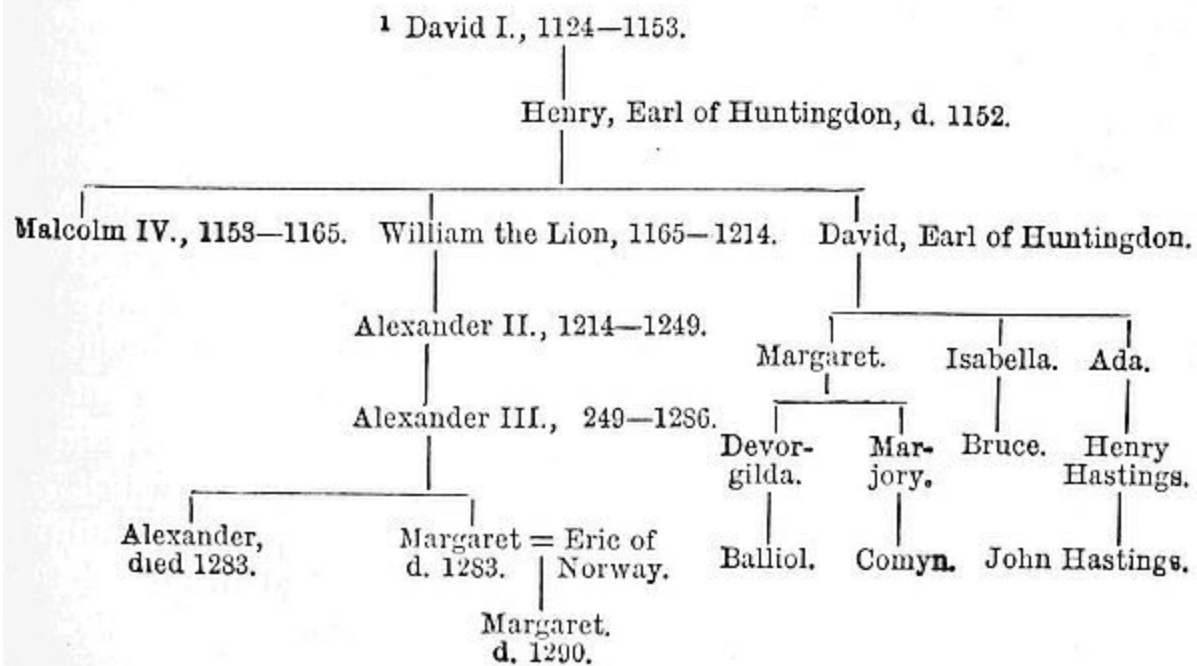
CONTEMPORARY PRINCES.

<i>Scotland.</i>	<i>France.</i>	<i>Germany.</i>	<i>Spain.</i>
James III., 1460.	Charles VIII., 1483.	Frederick III., 1440.	Ferdinand, } Isabella, } 1479.

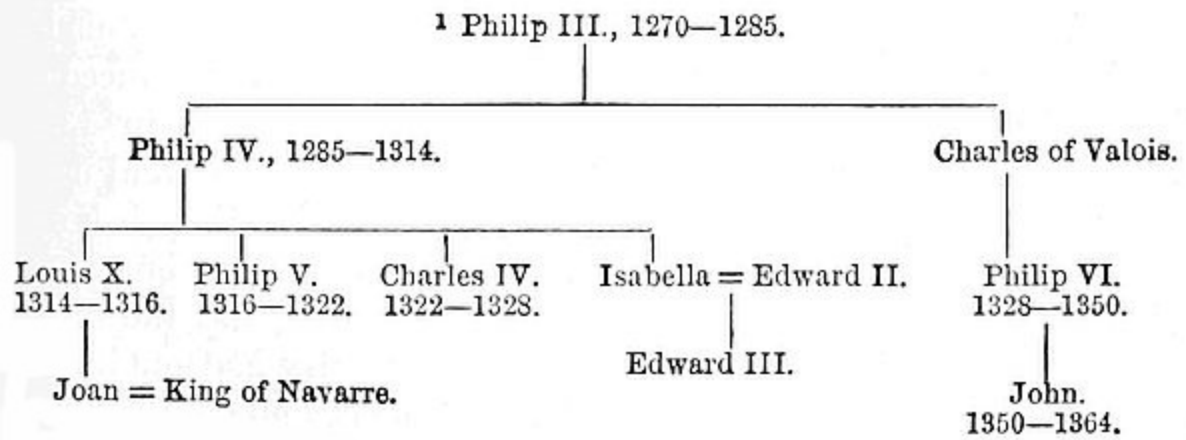
POPES.—Sixtus IV., 1471. Innocent VIII., 1484.

<i>Archbishop.</i>	<i>Chancellor.</i>
Thomas Bouchier, 1454.	John Russell, 1483.

[back](#)



[back](#)



[back](#)